

CASES DECIDED

IN THE

COURT OF APPEALS

OF THE

STATE OF NEW YORK

[61 NE3d 488, 39 NYS3d 89]

In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C.C.,
Respondent. R. THOMAS RANKIN, Esq., Attorney for the
Child, Appellant.

In the Matter of ESTRELLITA A., Respondent, v JENNIFER L.D.,
Appellant.

Argued June 2, 2016; decided August 30, 2016

SUMMARY

APPEAL, in the first above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 19, 2015. The Appellate Division affirmed an order of the Family Court of Chautauqua County (Judith S. Claire, J.), which had dismissed a petition for custody and visitation in a Family Court Act article 6 proceeding.

APPEAL, in the second above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 24, 2014. The Appellate Division affirmed an order of the Family Court of Suffolk County (Theresa Whelan, J.), which had, insofar as appealed from, granted a petition to the extent of awarding petitioner visitation in a Family Court Act article 6 proceeding. The appeal to the Appellate Division brought up for review the denial, by that Family Court (op 40 Misc 3d 219 [2013]), of respondent's motion to dismiss the petition for lack of standing.

Matter of Brooke S.B. v Elizabeth A.C.C., 129 AD3d 1578, reversed.

Matter of Estrellita A. v Jennifer L.D., 123 AD3d 1023, affirmed.

HEADNOTES

Parent, Child and Family — Custody — Standing of Non-Biological, Non-Adoptive Parent

1. *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]), which held that, in an unmarried couple, a partner without a biological or adoptive relation to a child is not the child's "parent" for purposes of standing to seek custody or visitation under the statute, notwithstanding their established relationship with the child, is overruled. In light of more recently delineated legal principles, including conferring parental standing based on equity in the context of adoption and support proceedings and the enactment of same-sex marriage in New York, the narrow definition of "parent" established in *Alison D.* had become unworkable when applied to increasingly varied familial relationships.

Parent, Child and Family — Custody — Standing of Non-Biological, Non-Adoptive Parent

2. Where, in an unmarried couple, a partner without a biological or adoptive relation to a child proves by clear and convincing evidence that he or she agreed with the biological parent of the child to conceive and raise the child as co-parents, the non-biological, non-adoptive partner has standing to seek visitation and custody as the child's "parent" under Domestic Relations Law § 70 (a). Accordingly, in separate Family Court Act article 6 proceedings where each petitioner—the non-biological, non-adoptive partner—alleged that she entered into a pre-conception agreement with the respondent biological parent to conceive and raise a child as co-parents, the allegations, if proved by clear and convincing evidence, were sufficient to establish petitioners' standing to seek custody and visitation under the statute. Because both cases were necessarily decided based on the facts presented, it would be premature to consider adopting a test for situations in which a couple did not enter into a pre-conception agreement. Additionally, the ultimate determination of whether the custody or visitation rights sought by the non-biological, non-adoptive parent should be granted rested in the sound discretion of the court, which determines the best interests of the child.

Parent, Child and Family — Custody — Standing of Non-Biological, Non-Adoptive Parent

3. In a Family Court Act article 6 proceeding brought by the partner in an unmarried couple without a biological or adoptive relation to the other partner's biological child, the Appellate Division order affirming Family Court's dismissal of the petition on constraint of *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) was reversed and the matter remitted to Family Court for further proceedings, as that decision has been overruled and no longer prevents the courts below from determining standing. Where, in an unmarried couple, a partner without a biological or adoptive relation to a child proves by clear and convincing evidence that he or she agreed with the biological parent of the child to conceive and raise the child as co-parents, the non-biological, non-adoptive partner has standing to seek visitation and custody as the child's "parent" under Domestic Relations Law § 70 (a). Accordingly, *Alison D.* no longer poses any obstacle to the consideration by the courts below of standing by equitable estoppel if petitioner proves by clear

and convincing evidence her allegation that a pre-conception agreement existed.

Parent, Child and Family — Custody — Standing of Non-Biological, Non-Adoptive Parent

4. In a Family Court Act article 6 proceeding brought by the partner in an unmarried couple who did not have a biological or adoptive relation to the other partner's biological child but had been ordered to pay child support, the courts below correctly resolved the question of standing by recognizing petitioner's standing to seek visitation as a "parent" under Domestic Relations Law § 70 (a) based on judicial estoppel. Respondent had obtained an order in the child support proceeding between the parties based on her successful argument that petitioner was a parent to the child, and was therefore estopped from taking the inconsistent position that petitioner was not, in fact, a parent to the child for purposes of visitation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Parent and Child §§ 26, 29, 31, 32, 36.
CARMODY-WAIT 2d, Child Custody and Visitation in
Matrimonial Actions §§ 118A:2, 118A:75, 118A:117.
McKINNEY'S, Domestic Relations Law § 70 (a).
NY JUR 2d, Domestic Relations §§ 336, 338, 339, 365, 478,
488.

ANNOTATION REFERENCE

See ALR Index under Children and Minors; Custody and
Support of Children; Visits and Visitation.

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POINTS OF COUNSEL

Warshaw Burstein, LLP, New York City (*Eric I. Wrubel*, *Linda Genero Sklaren* and *Alex R. Goldberg* of counsel), and *Goodell & Rankin*, Jamestown (*R. Thomas Rankin* of counsel), for appellant in the first above-entitled proceeding. I. Parentage by estoppel—rejected by *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) and *Debra H. v Janice R.* (14 NY3d 576 [2010])—has been used by New York courts for more than half a century to hold that non-adoptive, non-biological men are parents as a matter of law. (*Matter of Commissioner of Social Servs. v Julio J.*, 20 NY3d 995; *Matter of Shondel J. v Mark D.*,

7 NY3d 320; *Matter of Sharon GG. v Duane HH.*, 63 NY2d 859; *Matter of Luis Hugo O. v Paola O.*, 129 AD3d 976; *Matter of Angelo A.R. v Tenisha N.W.*, 108 AD3d 561; *Matter of Starla D. v Jeremy E.*, 95 AD3d 1605; *Matter of Antonio H. v Angelic W.*, 51 AD3d 1022; *Matter of Greg S. v Keri C.*, 38 AD3d 905; *Matter of Bruce W.L. v Carol A.P.*, 46 AD3d 1471; *Matter of Diana E. v Angel M.*, 20 AD3d 370.) II. Equitable estoppel should be extended to custody and visitation proceedings for purposes of establishing standing for parents unrelated to children by biology or adoption. (*Matter of Ettore I. v Angela D.*, 127 AD2d 6; *Matter of Sharon GG. v Duane HH.*, 95 AD2d 466; *State of New York ex rel. H. v P.*, 90 AD2d 434; *Hill v Hill*, 20 AD2d 923; *Brite v Brite*, 61 Misc 2d 10; *Matter of Anonymous*, 50 AD2d 890; *Matter of Tropea v Tropea*, 87 NY2d 727; *Matter of Lincoln v Lincoln*, 24 NY2d 270; *Matter of Juan R. v Necta V.*, 55 AD2d 33; *Kramer v Griffith*, 119 AD3d 655.) III. The Marriage Equality Act and the decision of the United States Supreme Court in *Obergefell v Hodges* (576 US —, 135 S Ct 2584 [2015]) obviated the bright-line rule of *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) and *Debra H. v Janice R.* (14 NY3d 576 [2010]), which tied parenthood solely to biology or adoption. (*Hernandez v Robles*, 7 NY3d 338; *Langan v St. Vincent's Hosp. of N.Y.*, 25 AD3d 90; *Gonzalez v Green*, 14 Misc 3d 641.) IV. *Stare decisis* is not a bar to overruling the obsolete, unjust precedent of *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]). (*People v Bing*, 76 NY2d 331; *Gallagher v St. Raymond's R. C. Church*, 21 NY2d 554; *Silver v Great Am. Ins. Co.*, 29 NY2d 356; *Gelbman v Gelbman*, 23 NY2d 434; *People v Rudolph*, 21 NY3d 497; *People v Epton*, 19 NY2d 496; *Matter of Lewis*, 25 NY3d 456; *People v Taylor*, 9 NY3d 129; *People v Saunders*, 85 NY2d 339; *Grace Plaza of Great Neck v Elbaum*, 82 NY2d 10.) V. Petitioner has made out a *prima facie* case of parentage by estoppel, giving her standing to bring a petition for custody and visitation with the child. (*Cron v Hargro Fabrics*, 91 NY2d 362; *Sanders v Winship*, 57 NY2d 391; *Morone v Morone*, 50 NY2d 481; *Underpinning & Found. Constructors v Chase Manhattan Bank, N.A.*, 46 NY2d 459; *Westhill Exports v Pope*, 12 NY2d 491.)

Susan L. Sommer, *Lambda Legal Defense and Education Fund, Inc.*, New York City, *Blank Rome LLP*, New York City (*Margaret Canby* and *Caroline Krauss-Browne* of counsel), and *Brett M. Figlewski*, *The LGBT Bar Association of Greater New York*, New York City, for *Brooke S.B.*, respondent in the first above-entitled proceeding. I. This Court should not adhere to

outmoded and unworkable precedents that unjustly deny standing to parents like Brooke S.B. (*Matter of Alison D. v Virginia M.*, 77 NY2d 651; *Debra H. v Janice R.*, 14 NY3d 576; *Lawrence v Texas*, 539 US 558; *Bowers v Hardwick*, 478 US 186; *People v Peque*, 22 NY3d 168; *Bing v Thunig*, 2 NY2d 656; *People v Bing*, 76 NY2d 331; *People v Hobson*, 39 NY2d 479; *Silver v Great Am. Ins. Co.*, 29 NY2d 356; *Gelbman v Gelbman*, 23 NY2d 434.) II. Brooke S.B. is entitled to standing as a parent under both Domestic Relations Law § 70's express terms and common law. (*Eschbach v Eschbach*, 56 NY2d 167; *Braschi v Stahl Assoc. Co.*, 74 NY2d 201; *Matter of Jacob*, 86 NY2d 651; *Matter of Village of Chestnut Ridge v Howard*, 92 NY2d 718; *Troxel v Granville*, 530 US 57; *Perry-Rogers v Fasano*, 276 AD2d 67; *Counihan v Bishop*, 111 AD3d 594; *Laura WW. v Peter WW.*, 51 AD3d 211; *Matter of H.M. v E.T.*, 14 NY3d 521; *Yonaty v Mincolla*, 97 AD3d 141.) III. This Court's rulings recognizing the parental status of a non-biological parent like Brooke S.B. for purposes of child support but not for purposes of custody and visitation are irreconcilable and disserve a child's compelling interest in the emotional support of a second parent. (*Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Matter of Juanita A. v Kenneth Mark N.*, 15 NY3d 1; *Mahoney-Buntzman v Buntzman*, 12 NY3d 415; *Matter of Sharon GG. v Duane HH.*, 95 AD2d 466; *Jean Maby H. v Joseph H.*, 246 AD2d 282; *Hiross v Hiross*, 224 AD2d 662; *Matter of Gilbert A. v Laura A.*, 261 AD2d 886; *Matter of Lorie F. v Raymond F.*, 239 AD2d 659; *Matter of Boyles v Boyles*, 95 AD2d 95; *Matter of Christopher S. v Ann Marie S.*, 173 Misc 2d 824.) IV. Inaction by the legislature calls for the courts to address, not ignore, the needs of this child. (*Windsor v United States*, 699 F3d 169; *Bourquin v Cuomo*, 85 NY2d 781; *Clark v Cuomo*, 66 NY2d 185; *Matter of Mashnouk v Miles*, 55 NY2d 80.) V. This Court should adopt standards, as many other states' courts have, recognizing the parental status of a person who, with the consent of a child's biological or adoptive parent, functions as the child's intended second parent. (*Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Matter of Juanita A. v Kenneth Mark N.*, 15 NY3d 1; *Matter of Multari v Sorrell*, 287 AD2d 764.) VI. Recognizing the standing of bonded intended parents would enhance, not diminish, certainty and stability for children and their parents. (*Debra H. v Janice R.*, 14 NY3d 576; *Matter of Alison D. v Virginia M.*, 77 NY2d 651; *Matter of Tropea v Tropea*, 87 NY2d 727; *Matter of Bonfiglio v Bonfiglio*, 134 AD2d 426; *Stanley v Illinois*, 405 US 645.) VII. Neither the availability of marriage and civil

union, nor of second-parent adoption, cures the injustice of refusing standing to Brooke S.B. (*Zablocki v Redhail*, 434 US 374; *Godfrey v Spano*, 13 NY3d 358; *M. L. B. v S. L. J.*, 519 US 102; *Matter of Sebastian*, 25 Misc 3d 567; *Plyler v Doe*, 457 US 202; *Debra H. v Janice R.*, 14 NY3d 576; *Matter of Behrens v Rimland*, 32 AD3d 929; *Matter of Janis C. v Christine T.*, 294 AD2d 496; *Beth R. v Donna M.*, 19 Misc 3d 724.) VIII. Denying M.B. and Brooke S.B. the right to enforce their parent-child relationship violates the New York and U.S. Constitutions. (*Planned Parenthood of Central Mo. v Danforth*, 428 US 52; *Smith v Organization of Foster Families For Equality & Reform*, 431 US 816; *Lehr v Robertson*, 463 US 248; *Michael H. v Gerald D.*, 491 US 110; *Prince v Massachusetts*, 321 US 158; *Troxel v Granville*, 530 US 57; *Matter of E.S. v P.D.*, 8 NY3d 150; *Gomez v Perez*, 409 US 535; *Weber v Aetna Casualty & Surety Co.*, 406 US 164; *Levy v Louisiana*, 391 US 68.)

Sherry A. Bjork, Frewsburg, for Elizabeth A.C.C., respondent in the first above-entitled proceeding. I. The argument for equitable estoppel is not applicable to this case and should not be extended to putative parents in custody and visitation proceedings concerning children with whom they lack a biological or adoptive relation. (*Matter of A.F. v K.H.*, 121 AD3d 683; *Debra H. v Janice R.*, 14 NY3d 576; *Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Nassau Trust Co. v Montrose Concrete Prods. Corp.*, 56 NY2d 175; *Matter of Palmatier v Dane*, 97 AD3d 864; *Matter of Behrens v Rimland*, 32 AD3d 929; *Matter of Janis C. v Christine T.*, 294 AD2d 496; *Matter of Multari v Sorrell*, 287 AD2d 764.) II. The definition of “parent” set forth in *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]), is not obsolete in light of the Marriage Equality Act, Domestic Relations Law § 10-a, and the decision of the United States Supreme Court in *Obergefell v Hodges* (576 US —, 135 S Ct 2584 [2015]), which implicitly recognizes that biology and adoption are no longer the sole means to establish parentage. III. Constitutional due process and equal protection guarantees do not require courts to grant standing to a putative parent to bring a custody and visitation proceeding concerning a child with whom the putative parent lacks a biological or adoptive relation, where the biological or adoptive parent has consented to the formation of a parent-child relationship between the putative parent and the child, and the putative parent has assumed the full panoply of parental functions. IV. Constitutional due process and equal protection guarantees do not give a child the right to maintain a relationship with a person unrelated to the child through

biology or adoption, who, with the consent of the child's biological or adoptive parent, has developed a parent-child relationship with the child and who has assumed the full panoply of parental functions. V. A partner of an unmarried parent can be denied standing to seek custody and visitation even where the unmarried parent has consented to the establishment of a parental relationship between the parent's partner and child; and the partner assumed the obligations of parenthood, resulting in formation of a bonded parental relationship with the child. (*People ex rel. Kropp v Shepsky*, 305 NY 465; *Matter of Bennett v Jeffreys*, 40 NY2d 543.) VI. *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]), approved in dicta in *Debra H. v Janice R.* (14 NY3d 576 [2010]), should be not be overruled by the Court. (*Wendy G-M. v Erin G-M.*, 45 Misc 3d 574.)

Quatela, Hargraves & Chimeri, PLLC, Hauppauge (*Christopher J. Chimeri* and *Margaret Schaefer* of counsel), for appellant in the second above-entitled proceeding. A hearing court may not grant visitation to non-parents absent the fit biological parent's consent and respondent lacked standing absent statutory criteria. (*Perry-Rogers v Fasano*, 276 AD2d 67; *Meyer v Nebraska*, 262 US 390; *Troxel v Granville*, 530 US 57; *Matter of Darlene T.*, 28 NY2d 391; *Matter of Bennett v Jeffreys*, 40 NY2d 543; *Debra H. v Janice R.*, 14 NY3d 576; *Matter of Alison D. v Virginia M.*, 77 NY2d 651; *Matter of Multari v Sorrell*, 287 AD2d 764; *Matter of Palmatier v Dane*, 97 AD3d 864; *Matter of A.F. v K.H.*, 121 AD3d 683.)

Kramer Levin Naftalis & Frankel LLP, New York City (*Andrew J. Estes* and *Jeffrey S. Trachtman* of counsel), and *Gervase & Mintz P.C.*, Garden City (*Susan G. Mintz* of counsel), for respondent in the second above-entitled proceeding. I. Estrellita A. has standing to seek visitation because she was adjudicated a parent in the support matter at Jennifer L.D.'s request. (*Debra H. v Janice R.*, 14 NY3d 576; *Matter of Alison D. v Virginia M.*, 77 NY2d 651; *Matter of H.M. v E.T.*, 14 NY3d 521; *Perry-Rogers v Fasano*, 276 AD2d 67; *Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Counihan v Bishop*, 111 AD3d 594; *Troxel v Granville*, 530 US 57; *Meyer v Nebraska*, 262 US 390; *Matter of Tropea v Tropea*, 87 NY2d 727; *Weiss v Weiss*, 52 NY2d 170.) II. The Family Court and the Appellate Division properly applied judicial estoppel to prevent Jennifer L.D. from challenging Estrellita A.'s status as a legal parent. (*Anonymous v Anonymous*, 137 AD2d 739; *Ford Motor Credit Co. v Colonial Funding Corp.*, 215 AD2d 435; *Matter of Mukuralinda v*

Kingombe, 100 AD3d 1431; *Mahoney-Buntzman v Buntzman*, 12 NY3d 415; *Crespo v Crespo*, 309 AD2d 727; *Perkins v Perkins*, 226 AD2d 610; *Matter of A.F. v K.H.*, 121 AD3d 683; *Gabrelian v Gabrelian*, 108 AD2d 445; *CDR Créances S.A.S. v Cohen*, 23 NY3d 307; *Alvarez v Snyder*, 264 AD2d 27.) III. Even if, arguendo, the Family Court decision was inconsistent with *Debra H. v Janice R.* (14 NY3d 576 [2010]) or *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]), this Court should modify, abrogate, or overrule those decisions to recognize standing here. (*Matter of Bennett v Jeffreys*, 40 NY2d 543; *Matter of Gilbert A. v Laura A.*, 261 AD2d 886; *Telaro v Telaro*, 25 NY2d 433; *Matter of Shondel J. v Mark D.*, 7 NY3d 320; *People v Peque*, 22 NY3d 168; *People v Bing*, 76 NY2d 331; *Matter of Angelo A.R. v Tenisha N.W.*, 108 AD3d 561; *Matter of Bruce W.L. v Carol A.P.*, 46 AD3d 1471; *Matter of Enrique G. v Lisbet E.*, 2 AD3d 288; *Matter of Lorie F. v Raymond F.*, 239 AD2d 659.)

Legal Aid Society of Suffolk County, Inc., Central Islip (*John B. Belmonte* and *Robert C. Mitchell* of counsel), Attorney for the Child, in the second above-entitled proceeding. I. Applying the principle of estoppel against inconsistent positions to determine respondent had standing as a parent to seek custody of or visitation with H.E.A.-D. does not violate the precedents of this honorable Court. (*Matter of Alison D. v Virginia M.*, 77 NY2d 651; *Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Matter of H.M. v E.T.*, 14 NY3d 521; *Debra H. v Janice R.*, 14 NY3d 576; *Matter of Multari v Sorrell*, 287 AD2d 764; *Anonymous v Anonymous*, 137 AD2d 739; *New Hampshire v Maine*, 532 US 742.) II. If this Court determines that applying the principle of estoppel against inconsistent positions to determine respondent has standing as a parent to seek custody of or visitation with H.E.A.-D. violates the rule of law in *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) and *Debra H. v Janice R.* (14 NY3d 576 [2010]), then this Court should overrule those cases because they deny the rights of the child without due process of law. (*Matter of Bennett v Jeffreys*, 40 NY2d 543.)

Suzanne B. Goldberg, *Columbia Law School*, New York City, for Richard J. Adago and others, amici curiae in the first above-entitled proceeding. I. Family law academics overwhelmingly endorse a functional approach to recognizing the legal family. II. Adoption of a functional approach to recognizing parent-child relationships in jurisdictions across the country, including New York, confirms the approach's viability and simplicity.

(*People v Damiano*, 87 NY2d 477; *People v Taylor*, 9 NY3d 129; *People v Hobson*, 39 NY2d 479; *People v Bing*, 76 NY2d 331; *Burnet v Coronado Oil & Gas Co.*, 285 US 393; *Bing v Thunig*, 2 NY2d 656; *Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Matter of Bennett v Jeffreys*, 40 NY2d 543; *Finlay v Finlay*, 240 NY 429; *Debra H. v Janice R.*, 14 NY3d 576.)

Cleary Gottlieb Steen & Hamilton LLP, New York City (*Carmine D. Boccuzzi* and *Daniel D. Queen* of counsel), for National Association of Social Workers and others, amici curiae in the first and second above-entitled proceedings. I. Parent-child attachment relationships are critical to a child's healthy development. II. The absence of a biological or adoptive connection between Brooke S.B. and Estrellita A. and the children did not affect the development of attachment relationships. III. Terminating the children's attachment relationships with Brooke S.B. and Estrellita A. would result in emotional harm to the children. IV. The children's health and welfare are best served by nurturing and maintaining their relationships with Brooke S.B. and Estrellita A. as well as their biological mothers.

Ropes & Gray LLP, New York City (*Christopher Thomas Brown* and *Michael Y. Jo* of counsel), *Ropes & Gray LLP*, Boston, Massachusetts (*Kathryn E. Wilhelm* and *Joshua D. Rovenger* of counsel), *National Center for Lesbian Rights*, San Francisco, California, *American Civil Liberties Union*, New York City, *New York Civil Liberties Union*, New York City, and *New York City Gay and Lesbian Anti-Violence Project*, New York City, for National Center for Lesbian Rights and others, amici curiae in the first above-entitled proceeding. I. New York lags behind other states by denying unmarried non-biological parents standing to protect their relationships with their children. (*Laura WW. v Peter WW.*, 51 AD3d 211.) II. Recognizing the standing of unmarried non-biological parents to seek custody or visitation rights would not violate the constitutional rights of biological parents. III. Granting unmarried non-biological parents the right to seek custody and visitation is necessary to protect the rights of such parents and their children under the United States Constitution. (*Lehr v Robertson*, 463 US 248; *Matter of Robert O. v Russell K.*, 80 NY2d 254; *Smith v Organization of Foster Families For Equality & Reform*, 431 US 816; *Michael H. v Gerald D.*, 491 US 110; *M. L. B. v S. L. J.*, 519 US 102; *Zablocki v Redhail*, 434 US 374; *Shapiro v Thompson*, 394 US 618; *Little v Streater*, 452 US 1;

Stanley v Illinois, 405 US 645; *Planned Parenthood of Central Mo. v Danforth*, 428 US 52.)

Ropes & Gray LLP, New York City (*Christopher Thomas Brown* and *Michael Y. Jo* of counsel), *Ropes & Gray LLP*, Boston, Massachusetts (*Kathryn E. Wilhelm* and *Joshua D. Rovenger* of counsel), *National Center for Lesbian Rights*, San Francisco, California, *American Civil Liberties Union*, New York City, and *New York City Gay and Lesbian Anti-Violence Project*, New York City, for National Center for Lesbian Rights and others, amici curiae in the second above-entitled proceeding. In this case, both the Family Court and the Second Department correctly found that Estrellita A. is a parent to her child and is therefore responsible for child support and entitled to visitation. (*Matter of H.M. v E.T.*, 14 NY3d 521.)

Latham & Watkins LLP, New York City (*Virginia F. Tent*, *Grant F. Wahlquist* and *Katelyn M. Beaudette* of counsel), for Association of the Bar of the City of New York and others, amici curiae in the first above-entitled proceeding. I. The current interpretation of Domestic Relations Law § 70 under *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) and its progeny harms parents like Brooke S.B. and children like M.B. (*People ex rel. Glendening v Glendening*, 259 App Div 384; *Debra H. v Janice R.*, 14 NY3d 576; *People ex rel. Spreckels v deRuyter*, 150 Misc 323; *Ullman v Ullman*, 151 App Div 419; *Linda R. v Richard E.*, 162 AD2d 48; *People ex rel. Watts v Watts*, 77 Misc 2d 178; *Troxel v Granville*, 530 US 57.) II. *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) and its progeny violate the constitutional rights of LGBT parents and their children. (*Stanley v Illinois*, 405 US 645; *Meyer v Nebraska*, 262 US 390; *Planned Parenthood of Central Mo. v Danforth*, 428 US 52; *Troxel v Granville*, 530 US 57; *Smith v Organization of Foster Families For Equality & Reform*, 431 US 816; *Lehr v Robertson*, 463 US 248; *Windsor v United States*, 699 F3d 169; *Matter of C.M. v C.H.*, 6 Misc 3d 361; *Matter of Gilbert A. v Laura A.*, 261 AD2d 886; *Matter of Christopher S. v Ann Marie S.*, 173 Misc 2d 824.) III. Equity demands that Brooke S.B., and those like her, be recognized as parents. (*Nassau Trust Co. v Montrose Concrete Prods. Corp.*, 56 NY2d 175; *Metropolitan Life Ins. Co. v Childs Co.*, 230 NY 285; *Triple Cities Constr. Co. v Maryland Cas. Co.*, 4 NY2d 443; *Romano v Metropolitan Life Ins. Co.*, 271 NY 288; *Rothschild v Title Guar. & Trust Co.*, 204 NY 458; *White v La Due & Fitch, Inc.*, 303 NY 122; *Matter of Sandfort v Sandfort*, 278 App Div 331; *Finlay v*

Finlay, 240 NY 429; *Matter of Rich v Kaminsky*, 254 App Div 6; *Matter of Shondel J. v Mark D.*, 7 NY3d 320.) IV. The *In re Custody of H.S.H.-K.* (193 Wis 2d 649, 533 NW2d 419 [1995]) test provides a model for assessing the claims of parents like Brooke S.B. (*Debra H. v Janice R.*, 14 NY3d 576; *Kujek v Goldman*, 150 NY 176; *Matter of Molinari v Tuthill*, 59 AD3d 722; *Matter of Shreve v Shreve*, 229 AD2d 1005.)

Latham & Watkins LLP, New York City (*Virginia F. Tent*, *Grant F. Wahlquist* and *Katelyn M. Beaudette* of counsel), for Association of the Bar of the City of New York and others, amici curiae in the second above-entitled proceeding. I. *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) adopted an unconstitutional and unnecessarily restrictive definition of “parent.” (*People ex rel. Glendening v Glendening*, 259 App Div 384; *People ex rel. Spreckels v deRuyter*, 150 Misc 323; *Troxel v Granville*, 530 US 57.) II. Equity demands that Estrellita A. be recognized as a parent. (*White v La Due & Fitch, Inc.*, 303 NY 122; *Matter of Sandfort v Sandfort*, 278 App Div 331; *Finlay v Finlay*, 240 NY 429; *Matter of Rich v Kaminsky*, 254 App Div 6; *Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Anonymous v Anonymous*, 137 AD2d 739; *Davis v Citibank, N.A.*, 116 AD3d 819; *Matter of Mukuralinda v Kingombe*, 100 AD3d 1431; *Mahoney-Buntzman v Buntzman*, 12 NY3d 415; *Debra H. v Janice R.*, 14 NY3d 576.) III. The *In re Custody of H.S.H.-K.* (193 Wis 2d 649, 533 NW2d 419 [1995]) test provides a model for assessing the claims of parents like Estrellita A.

David P. Miranda, *New York State Bar Association*, Albany, and *Paul, Weiss, Rifkind, Wharton & Garrison, LLP*, New York City (*Roberta A. Kaplan* and *Nila M. Merola* of counsel), for New York State Bar Association, amicus curiae in the first above-entitled proceeding. I. The Court is not bound by past precedent that is manifestly unjust. (*Silver v Great Am. Ins. Co.*, 29 NY2d 356; *Bing v Thunig*, 2 NY2d 656; *Payne v Tennessee*, 501 US 808; *Helvering v Hallock*, 309 US 106; *People v Hobson*, 39 NY2d 479; *Moragne v States Marine Lines, Inc.*, 398 US 375; *People v Rudolph*, 21 NY3d 497; *People v Epton*, 19 NY2d 496; *Woods v Lancet*, 303 NY 349; *Funk v United States*, 290 US 371.) II. *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) is outmoded and should be overturned. (*Troxel v Granville*, 530 US 57; *Braschi v Stahl Assoc. Co.*, 74 NY2d 201; *Matter of Jacob*, 86 NY2d 651; *Counihan v Bishop*, 111 AD3d 594; *Wendy G-M. v Erin G-M.*, 45 Misc 3d 574; *Matter of Leora F. v Sofia D.*, 167 Misc 2d 840; *Anonymous v Anonymous*, 20 AD3d 333; *Matter of Multari v Sorrell*, 287

AD2d 764; *Beth R. v Donna M.*, 19 Misc 3d 724; *Matter of C.M. v C.H.*, 6 Misc 3d 361.) III. *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) “bright-line rule” creates more uncertainty and has been rejected by other states. (*Debra H. v Janice R.*, 14 NY3d 576.) IV. Application of *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) is increasingly untenable and illogical. (*Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Matter of H.M. v E.T.*, 14 NY3d 521; *Kalechman v Drew Auto Rental*, 33 NY2d 397; *Anonymous v Anonymous*, 20 AD3d 333; *Matter of Janis C. v Christine T.*, 294 AD2d 496; *Matter of Cindy P. v Danny P.*, 206 AD2d 615; *Matter of Gilbert A. v Laura A.*, 261 AD2d 886; *Jean Maby H. v Joseph H.*, 246 AD2d 282; *Matter of Christopher S. v Ann Marie S.*, 173 Misc 2d 824; *Moragne v States Marine Lines, Inc.*, 398 US 375.)

Loeb & Loeb, LLP, New York City (*Eugene R. Licker* of counsel), for American Academy of Adoption Attorneys and others, amici curiae in the first above-entitled proceeding. I. This Court’s decisions regarding standing under Domestic Relations Law § 70 affect significant numbers of couples conceiving children through assisted reproductive technology. (*Matter of Alison D. v Virginia M.*, 77 NY2d 651.) II. A child’s emotional bond to their “parent” is not dependent on whether they are genetically related to that person. (*Matter of Jacob*, 86 NY2d 651.) III. Adoption is not a proper litmus test for parenthood for purposes of Domestic Relations Law § 70. (*Matter of Jacob*, 86 NY2d 651; *T.V. v New York State Dept. of Health*, 88 AD3d 290; *Matter of Sebastian*, 25 Misc 3d 567; *Matter of J.J.*, 44 Misc 3d 297; *Itskov v New York Fertility Inst., Inc.*, 11 Misc 3d 68.) IV. This Court should apply a facts and circumstances test to determine parenthood. (*Debra H. v Janice R.*, 14 NY3d 576; *Matter of Suarez v Williams*, 26 NY3d 440; *Matter of Granger v Misercola*, 21 NY3d 86; *Matter of Tropea v Tropea*, 87 NY2d 727; *Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Matter of Chaya S. v Frederick Herbert L.*, 90 NY2d 389; *People ex rel. Sibley v Sheppard*, 54 NY2d 320; *Matter of Corey L v Martin L*, 45 NY2d 383; *Matter of Boden v Boden*, 42 NY2d 210; *Matter of Stuart*, 280 NY 245.)

Cahill Gordon & Reindel LLP, New York City (*S. Penny Windle, Kerry Burns, Cindy Hong and Rebecca Salk* of counsel), for Sanctuary for Families and others, amici curiae in the first above-entitled proceeding. I. Applying a functional standard to determine parental standing would have unintended negative consequences for parents and children. (*Prince v Massachusetts*,

321 US 158; *Troxel v Granville*, 530 US 57; *Stanley v Illinois*, 405 US 645; *Pierce v Society of Sisters*, 268 US 510; *Meyer v Nebraska*, 262 US 390; *Debra H. v Janice R.*, 14 NY3d 576; *Matter of Alison D. v Virginia M.*, 77 NY2d 651; *Matter of Fountain v Fountain*, 83 AD2d 694; *Caban v Mohammed*, 441 US 380.) II. The Court should recognize the parental rights of Brooke S.B. without adopting a dangerous functional standard to determine parental standing in New York. (*Matter of Jacob*, 86 NY2d 651; *Debra H. v Janice R.*, 14 NY3d 576; *Matter of Bennett v Jeffreys*, 40 NY2d 543; *Jean Maby H. v Joseph H.*, 246 AD2d 282; *Matter of Shondel J. v Mark D.*, 7 NY3d 320.)

Fried, Frank, Harris, Shriver & Jacobson LLP, New York City (*Jennifer L. Colyer, Justin J. Santolli and Naz E. Wehrli* of counsel), for Lawyers for Children and another, amici curiae in the first and second above-entitled proceedings. I. The continuity of the parent-child attachment bond is critical to a child's development and well-being and should be preserved in the child's best interest. (*Matter of Tropea v Tropea*, 87 NY2d 727.) II. *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) has imposed unjustifiable hardships on children and should be overturned. (*Matter of C.M. v C.H.*, 6 Misc 3d 361; *Beth R. v Donna M.*, 19 Misc 3d 724; *Anonymous v Anonymous*, 20 AD3d 333; *Matter of Multari v Sorrell*, 287 AD2d 764.) III. New York courts have the necessary competence to adjudicate claims of non-biological, intended parenthood. (*Matter of Juanita A. v Kenneth Mark N.*, 15 NY3d 1; *Matter of Shondel J. v Mark D.*, 7 NY3d 320; *Matter of Baby Boy C.*, 84 NY2d 91; *Matter of H.M. v E.T.*, 76 AD3d 528, 14 NY3d 521; *Jean Maby H. v Joseph H.*, 246 AD2d 282; *Matter of Christopher S. v Ann Marie S.*, 173 Misc 2d 824; *Matter of Christian N. v Shante Jovan B.*, 132 AD3d 470.) IV. The availability of second-parent adoption or the right for same-sex couples to marry does not adequately protect children. (*Debra H. v Janice R.*, 14 NY3d 576.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

These two cases call upon us to assess the continued vitality of the rule promulgated in *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991])—namely that, in an unmarried couple, a partner without a biological or adoptive relation to a child is not that child's "parent" for purposes of standing to seek custody or visitation under Domestic Relations Law § 70 (a), notwithstanding their "established relationship with the child"

(77 NY2d at 655). Petitioners in these cases, who similarly lack any biological or adoptive connection to the subject children, argue that they should have standing to seek custody and visitation pursuant to Domestic Relations Law § 70 (a). We agree that, in light of more recently delineated legal principles, the definition of “parent” established by this Court 25 years ago in *Alison D.* has become unworkable when applied to increasingly varied familial relationships. Accordingly, today, we overrule *Alison D.* and hold that where a partner shows by clear and convincing evidence that the parties agreed to conceive a child and to raise the child together, the non-biological, non-adoptive partner has standing to seek visitation and custody under Domestic Relations Law § 70.

I.

Matter of Brooke S.B. v Elizabeth A.C.C.

Petitioner and respondent entered into a relationship in 2006 and, one year later, announced their engagement.¹ At the time, however, this was a purely symbolic gesture; same-sex couples could not legally marry in New York. Petitioner and respondent lacked the resources to travel to another jurisdiction to enter into a legal arrangement comparable to marriage, and it was then unclear whether New York would recognize an out-of-state same-sex union.

Shortly thereafter, the couple jointly decided to have a child and agreed that respondent would carry the child. In 2008, respondent became pregnant through artificial insemination. During respondent’s pregnancy, petitioner regularly attended prenatal doctor’s appointments, remained involved in respondent’s care, and joined respondent in the emergency room when she had a complication during the pregnancy. Respondent went into labor in June 2009. Petitioner stayed by her side and, when the subject child, a baby boy, was born, petitioner cut the umbilical cord. The couple gave the child petitioner’s last name.

The parties continued to live together with the child and raised him jointly, sharing in all major parental responsibilities. Petitioner stayed at home with the child for a year while respondent returned to work. The child referred to petitioner as “Mama B.”

1. The parties in both cases before us dispute the relevant facts. Given the procedural posture of these cases, our summary of the facts is derived from petitioners’ allegations in court filings and relevant decisions of the courts below.

In 2010, the parties ended their relationship. Initially, respondent permitted petitioner regular visits with the child. In late 2012, however, petitioner's relationship with respondent deteriorated and, in or about July 2013, respondent effectively terminated petitioner's contact with the child.

Subsequently, petitioner commenced this proceeding seeking joint custody of the child and regular visitation. Family Court appointed an attorney for the child. That attorney determined that the child's best interests would be served by allowing regular visitation with petitioner.

Respondent moved to dismiss the petition, asserting that petitioner lacked standing to seek visitation or custody under Domestic Relations Law § 70 as interpreted in *Alison D.* because, in the absence of a biological or adoptive connection to the child, petitioner was not a "parent" within the meaning of the statute. Petitioner and the attorney for the child opposed the motion, contending that, in light of the legislature's enactment of the Marriage Equality Act (*see* L 2011, ch 95; Domestic Relations Law § 10-a) and other changes in the law, *Alison D.* should no longer be followed. They further argued that petitioner's long-standing parental relationship with the child conferred standing to seek custody and visitation under principles of equitable estoppel.

After hearing argument on the motion, Family Court dismissed the petition. While commenting on the "heartbreaking" nature of the case, Family Court noted that petitioner did not adopt the child and therefore granted respondent's motion to dismiss on constraint of *Alison D.* The attorney for the child appealed.²

The Appellate Division unanimously affirmed (*see* 129 AD3d 1578, 1578-1579 [4th Dept 2015]). The Court concluded that, because petitioner had not married respondent, had not adopted the child, and had no biological relationship to the child, *Alison D.* prohibited Family Court from ruling that petitioner had standing to seek custody or visitation (*see id.* at 1579). We granted the attorney for the child leave to appeal (*see* 26 NY3d 901 [2015]).

Matter of Estrellita A. v Jennifer L.D.

Petitioner and respondent entered into a relationship in 2003 and moved in together later that year. In 2007, petitioner and

2. Petitioner appealed but, citing her financial condition, proceeded without an attorney. Her appeal was subsequently dismissed.

respondent registered as domestic partners, and thereafter, they agreed to have a child. The couple jointly decided that respondent would bear the child and that the donor should share petitioner's ethnicity. In February 2008, respondent became pregnant through artificial insemination. During the pregnancy, petitioner attended medical appointments with respondent. In November 2008, respondent gave birth to a baby girl. Petitioner cut the umbilical cord. The couple agreed that the child should call respondent "Mommy" and petitioner "Mama."

The child resided with the couple in their home and, over the next three years, the parties shared a complete range of parental responsibilities. However, in May 2012, petitioner and respondent ended their relationship, and petitioner moved out in September 2012. Afterward, petitioner continued to have contact with the child.

In October 2012, respondent commenced a proceeding in Family Court seeking child support from petitioner. Petitioner denied liability. While the support case was pending, petitioner filed a petition in Family Court that, as later amended, sought visitation with the child. The court appointed an attorney for the child.

After a hearing, Family Court granted respondent's child support petition and remanded the matter to a support magistrate to determine petitioner's support obligation. The court held that "the uncontroverted facts establish[ed]" that petitioner was "a parent" to the child and, as such, "chargeable with the support of the child." Petitioner then amended her visitation petition to indicate that she "ha[d] been adjudicated the parent" of the child and therefore was a legal parent for visitation purposes.

Thereafter, respondent moved to dismiss the visitation petition on the ground that petitioner did not have standing to seek custody or visitation under Domestic Relations Law § 70 as interpreted in *Alison D.* The attorney for the child supported visitation and opposed respondent's motion to dismiss. Petitioner also opposed respondent's motion to dismiss, asserting that *Alison D.* and our decision in *Debra H. v Janice R.* (14 NY3d 576 [2010]) did not foreclose a finding of standing based on judicial estoppel, as the prior judgment in the support proceeding determined that petitioner was a legal parent to the subject child. Respondent contended that the prerequisites for judicial estoppel had not been met.

Family Court denied respondent's motion to dismiss the visitation petition (*see* 40 Misc 3d 219, 219-225 [Fam Ct, Suffolk County 2013]). Citing *Alison D.* and *Debra H.*, the court acknowledged that petitioner did not have standing to petition for visitation based on equitable estoppel or her general status as a de facto parent (*see id.* at 225). However, given respondent's successful support petition, the court concluded that the doctrine of judicial estoppel conferred standing on petitioner to request visitation with the child (*see id.* at 225). The court distinguished *Alison D.* and *Debra H.*, reasoning that, in those cases, the Court "did not address the situation . . . where one party has asserted inconsistent positions" (*id.*). Here, in light of respondent's initial claim that petitioner was the child's legal parent in the support proceeding, the court "ma[de] a finding that respondent [wa]s judicially estopped from asserting that petitioner [wa]s not a parent based upon her sworn petition and testimony in a prior court proceeding where she took a different position because her interest in that case was different" (*id.*). Respondent filed an interlocutory appeal, which was dismissed by the Appellate Division.

Subsequently, Family Court held a hearing on the petition. The court found that petitioner's regular visitation and consultation on matters of import with respect to the child would serve the child's best interests. Respondent appealed.

Family Court's order was unanimously affirmed (*see* 123 AD3d 1023, 1023-1027 [2d Dept 2014]). The Appellate Division determined that, while Domestic Relations Law § 70, as interpreted in *Alison D.*, confers standing to seek custody or visitation only on a biological or adoptive parent, *Alison D.* does not preclude recognition of standing based upon the doctrine of judicial estoppel. Under that doctrine, the Court found, "a party who assumes a certain position in a prior legal proceeding and secures a favorable judgment therein is precluded from assuming a contrary position in another action simply because his or her interests have changed" (*id.* at 1026 [internal quotation marks and citations omitted]). The Appellate Division agreed with Family Court that the requirements of judicial estoppel had been met: respondent's position in the support proceeding was inconsistent with her position in the visitation proceeding; respondent had won a favorable judgment based on her earlier position; and allowing respondent to maintain an inconsistent position in the visitation proceeding would prejudice petitioner (*see id.* at 1026). Accordingly, the

Appellate Division concluded that respondent was judicially estopped from denying petitioner's standing as a "parent" of the child within the meaning of Domestic Relations Law § 70 (*see id.* at 1026-1027). We granted respondent leave to appeal (*see* 26 NY3d 901 [2015]).

II.

Domestic Relations Law § 70 provides:

"Where a minor child is residing within this state, *either parent* may apply to the supreme court for a writ of habeas corpus to have such minor child brought before such court; and on the return thereof, the court, on due consideration, may award the natural guardianship, charge and custody of such child to either parent for such time, under such regulations and restrictions, and with such provisions and directions, as the case may require, and may at any time thereafter vacate or modify such order. In all cases there shall be no *prima facie* right to the custody of the child in either parent, but the court shall determine solely what is for the *best interest of the child, and what will best promote its welfare and happiness*, and make award accordingly" (Domestic Relations Law § 70 [a] [emphases added]).

Only a "parent" may petition for custody or visitation under Domestic Relations Law § 70, yet the statute does not define that critical term, leaving it to be defined by the courts.³

In *Alison D.* (77 NY2d 651), we supplied a definition. In that case, Alison D. and Virginia M. were in a long-term relationship and decided to have a child (*see Alison D.*, 77 NY2d at 655). They agreed that Virginia M. would carry the baby and that they would jointly raise the child, sharing parenting responsibilities (*see id.*). After the child was born, Alison D. acted as a parent in all major respects, providing financial, emotional and practical support (*see id.*). Even after the couple ended their relationship and moved out of their shared home, Alison D. continued to regularly visit the child until he was about six years old, at which point Virginia M. terminated contact between them (*see id.*).

3. We note that by the use of the term "either," the plain language of Domestic Relations Law § 70 clearly limits a child to two parents, and no more than two, at any given time.

Alison D. petitioned for visitation pursuant to Domestic Relations Law § 70 (*see id.* at 656). In support of the petition, Alison D. argued that, although Virginia M. was concededly a fit parent, Alison D. nonetheless had standing to seek visitation with the child (*see id.*). The lower courts dismissed Alison D.’s petition for lack of standing, ruling that only a biological parent—and not a de facto parent—is a legal “parent” with standing to seek visitation under Domestic Relations Law § 70 (*see id.*; *see also Matter of Alison D. v Virginia M.*, 155 AD2d 11, 13-16 [2d Dept 1990]).

We affirmed the lower courts’ dismissal of Alison D.’s petition for lack of standing (*see Alison D.*, 77 NY2d at 655, 657). We decided that the word “parent” in Domestic Relations Law § 70 should be interpreted to preclude standing for a de facto parent who, under a theory of equitable estoppel, might otherwise be recognized as the child’s parent for visitation purposes (*see id.* at 656-657). Specifically, we held that “a biological stranger to a child who is properly in the custody of his biological mother” has no “standing to seek visitation with the child under Domestic Relations Law § 70” (*id.* at 654-655).

We rested our determination principally on the need to preserve the rights of biological parents (*see id.* at 656-657). Specifically, we reasoned that, “[t]raditionally, in this State it is the child’s mother and father who, assuming fitness, have the right to the care and custody of their child” (*id.* at 656). We therefore determined that the statute should not be read to permit a de facto parent to seek visitation of a child in a manner that “would necessarily impair the parents’ right to custody and control” (*id.* at 656-657).

Additionally, we suggested that, because the legislature expressly allowed certain non-parents—namely, grandparents and siblings—to seek custody or visitation (*see Domestic Relations Law §§ 71-72*), it must have intended to exclude de facto parents or parents by estoppel (*see Alison D.*, 77 NY2d at 657). And so, because Alison D. had no biological or adoptive connection to the subject child, she had no standing to seek visitation and “no right to petition the court to displace the choice made by this fit parent in deciding what is in the child’s best interests” (*id.*).

Judge Kaye dissented on the ground that a person who “stands in loco parentis” should have standing to seek visitation under Domestic Relations Law § 70 (*see id.* at 657-662).

[Kaye, J., dissenting]). Observing that the Court's decision would "fall[] hardest" on the millions of children raised in nontraditional families—including families headed by same-sex couples, unmarried opposite-sex couples, and stepparents—the dissent argued that the majority had "turn[ed] its back on a tradition of reading section 70 so as to promote the welfare of the children" (*id.* at 658-660). The dissent asserted that, because Domestic Relations Law § 70 did not define "parent"—and because the statute made express reference to the "best interest of the child"—the Court was free to craft a definition that accommodated the welfare of the child (*id.*). According to the dissent, well-established principles of equity—namely, "Supreme Court's equitable powers that complement" Domestic Relations Law § 70—supplied jurisdiction to act out of "concern for the welfare of the child" (*id.* at 660; *see Matter of Bachman v Mejias*, 1 NY2d 575, 581 [1956]; *Finlay v Finlay*, 240 NY 429, 433-434 [1925]; *Langerman v Langerman*, 303 NY 465, 471 [1952]).

At the same time, Judge Kaye in her dissent recognized that

"there must be some limitation on who can petition for visitation. Domestic Relations Law § 70 specifies that the person must be the child's 'parent,' and the law additionally recognizes certain rights of biological and legal parents. . . .

"It should be required that the relationship with the child came into being with the consent of the biological or legal parent" (*Alison D.*, 77 NY2d at 661-662 [Kaye, J., dissenting] [citations omitted]).

The dissent also noted that a properly constituted test should likely include other factors as well, to ensure that all relevant interests are protected (*see id.* at 661-662 [Kaye, J., dissenting]). Judge Kaye further stated in the dissent that she would have remanded *Alison D.* so that the lower court could engage in a two-part inquiry: first, to determine whether Alison D. stood "in loco parentis" under whatever test the Court devised; and then, "if so, whether it is in the child's best interest to allow her the visitation rights she claims" (*id.* at 662).

In 1991, same-sex partners could not marry in this state. Nor could a biological parent's unmarried partner adopt the child. As a result, a partner in a same-sex relationship not biologically related to a child was entirely precluded from obtaining standing to seek custody or visitation of that child under our definition of "parent" supplied in *Alison D.*

Four years later, in *Matter of Jacob* (86 NY2d 651 [1995]), we had occasion to decide whether “the unmarried partner of a child’s biological mother, whether heterosexual or homosexual, who is raising the child together with the biological parent, can become the child’s second parent by means of adoption” (*id.* at 656). We held that the adoptions sought in *Matter of Jacob*—“one by an unmarried heterosexual couple, the other by the lesbian partner of the child’s mother”—were “fully consistent with the adoption statute” (*id.*). We reasoned that, while the adoption statute “must be strictly construed,” our “primary loyalty must be to the statute’s legislative purpose—the child’s best interest” (*id.* at 657-658). The outcome in *Matter of Jacob* was to confer standing to seek custody or visitation upon unmarried, non-biological partners—including a partner in a same-sex relationship—who adopted the child, even under our restrictive definition of “parent” set forth in *Alison D.* (*id.* at 659).

Thereafter, in *Matter of Shondel J. v Mark D.* (7 NY3d 320 [2006]), we applied a similar analysis, holding that a “man who has mistakenly represented himself as a child’s father may be estopped from denying paternity, and made to pay child support, when the child justifiably relied on the man’s representation of paternity, to the child’s detriment” (*id.* at 324). We based our decision on “the best interests of the child,” emphasizing “[t]he potential damage to a child’s psyche caused by suddenly ending established parental support” (*id.* at 324, 330).⁴

Despite these intervening decisions that sought a means to take into account the best interests of the child in adoption and support proceedings, we declined to revisit *Alison D.* when confronted with a nearly identical situation almost 20 years later. *Debra H.*, as did *Alison D.*, involved an unmarried same-sex couple. Petitioner alleged that they agreed to have a child, and to that end, Janice R. was artificially inseminated and bore the child. Debra H. never adopted the child. After the couple ended their relationship, Debra H. petitioned for custody and visitation (*Debra H.*, 14 NY3d at 586-588). We declined to expand the definition of “parent” for purposes of Domestic Rela-

4. Furthermore, in *Matter of H.M. v E.T.* (14 NY3d 521 [2010]), for purposes of child support proceedings, we construed Family Ct Act § 413 (1) (a) in a manner consistent with principles of equitable estoppel by interpreting the term “parents” to include a biological parent’s former same-sex partner, notwithstanding the lack of a biological or adoptive connection to the child (*H.M.*, 14 NY3d at 526-527).

tions Law § 70, noting that “*Alison D.*, in conjunction with second-parent adoption, creates a bright-line rule that promotes certainty in the wake of domestic breakups” (*id.* at 593).

Nonetheless, in *Debra H.*, we arrived at a different result than in *Alison D.* Ultimately, we invoked the common-law doctrine of comity to rule that, because the couple had entered into a civil union in Vermont prior to the child’s birth—and because the union afforded Debra H. parental status under Vermont law—her parental status should be recognized under New York law as well (*see id.* at 598-601). Seeing no obstacle in New York’s public policy or comity doctrine to the recognition of the non-biological mother’s standing, we declared that “New York will recognize parentage created by a civil union in Vermont,” thereby granting standing to Debra H. to petition for custody and visitation of the subject child (*id.* at 600-601).

In a separate discussion, we also “reaffirm[ed] our holding in *Alison D.*” (*id.* at 589). We acknowledged the apparent tension in our decision to authorize parentage by estoppel in the support context (*see Shondel J.*, 7 NY3d 320) and yet deny it in the visitation and custody context (*see Alison D.*, 77 NY2d 651), but we decided that this incongruity did not fatally undermine *Alison D.* (*see Debra H.*, 14 NY3d at 592-593).

Chief Judge Lippman and Judge Ciparick concurred in the result, agreeing with the majority’s comity analysis but asserting that *Alison D.* should be overruled (*see id.* at 606-609 [Ciparick, J., concurring]). This concurrence asserted that *Alison D.* had indeed caused the widespread harm to children predicted by Judge Kaye’s dissent (*see id.* at 606-607). Noting the inconsistency between *Alison D.* and the Court’s ruling in *Shondel J.*, the concurrence concluded that “[s]upport obligations flow from parental rights; the duty to support and the rights of parentage go hand in hand and it is nonsensical to treat the two things as severable” (*id.* at 607). According to the concurrence, Supreme Court had “inherent equity powers and authority pursuant to Domestic Relations Law § 70 to determine who is a parent and what will serve the child’s best interests” (*id.* at 609). Echoing the dissent in *Alison D.*, and “taking into consideration the social changes” that occurred since that decision, the concurrence called for a “flexible, multi-factored” approach to determine whether a parental relationship had been established (*id.* at 608).

A separate concurrence by Judge Smith in that case acknowledged the same social changes and proposed that, in the inter-

est of insuring that “each child begins life with two parents,” an appropriate test would focus on whether “a child is conceived through [artificial insemination] by one member of a same-sex couple living together, with the knowledge and consent of the other” (*id.* at 611-612). Judge Smith observed that “[e]ach of these couples made a commitment to bring a child into a two-parent family, and it is unfair to the children to let the commitment go unenforced” (*id.* at 611).

III.

We must now decide whether, as respondents claim, the doctrine of *stare decisis* warrants retention of the rule established in *Alison D.* Under *stare decisis*, a court’s decision on an issue of law should generally bind the court in future cases that present the same issue (*see People v Rodriguez*, 25 NY3d 238, 243 [2015]; *People v Taylor*, 9 NY3d 129, 148-149 [2007]). The doctrine “promotes predictability in the law, engenders reliance on our decisions, encourages judicial restraint and reassures the public that our decisions arise from a continuum of legal principle rather than the personal caprice of the members of this Court” (*People v Peque*, 22 NY3d 168, 194 [2013]). But in the rarest of cases, we may overrule a prior decision if an extraordinary combination of factors undermines the reasoning and practical viability of our prior decision (*see People v Rudolph*, 21 NY3d 497, 500-503 [2013]; *see id.* at 505-507 [Grafteo, J., concurring]; *People v Reome*, 15 NY3d 188, 191-195 [2010]; *People v Feingold*, 7 NY3d 288, 291-296 [2006]).

Long before our decision in *Alison D.*, New York courts invoked their equitable powers to ensure that matters of custody, visitation and support were resolved in a manner that served the best interests of the child (*see Finlay*, 240 NY at 433; *Wilcox v Wilcox*, 14 NY 575, 578-579 [1856]; *see generally Guardian Loan Co. v Early*, 47 NY2d 515, 520 [1979]; *People ex rel. Lemon v Supreme Ct. of State of N.Y.*, 245 NY 24, 28 [1927]; *De Coppet v Cone*, 199 NY 56, 63 [1910]). Consistent with these broad equitable powers, our courts have historically exercised their “inherent equity powers and authority” in order to determine “who is a parent and what will serve a child’s best interests” (*Debra H.*, 14 NY3d at 609 [Ciparick, J., concurring]; *see also* NY Const, art VI, § 7 [a]).

Domestic Relations Law § 70 evolved in harmony with these equitable practices. The statute expanded in scope from a law narrowly conferring standing in custody and visitation matters

upon a legally separated, resident “husband and wife” pair (L 1909, ch 19) to a broader measure granting standing to “either parent” without regard to separation (L 1964, ch 564). The legislature made many of these changes to conform to the courts’ preexisting equitable practices (*see* L 1964, ch 564, § 1; Mem of Joint Legis Comm on Matrimonial and Family Laws, Bill Jacket, L 1964, ch 564 at 6). Tellingly, the statute has never mentioned, much less purported to limit, the court’s equitable powers, and even after its original enactment, courts continued to employ principles of equity to grant custody, visitation or related extra-statutory relief (*see People ex rel. Meredith v Meredith*, 272 App Div 79, 82-90 [2d Dept 1947], *affd* 297 NY 692 [1947]; *Matter of Rich v Kaminsky*, 254 App Div 6, 7-9 [1st Dept 1938]; *cf. Langerman*, 303 NY at 471-472; *Finlay*, 240 NY at 430-434).

Departing from this tradition of invoking equity, in *Alison D.*, we narrowly defined the term “parent,” thereby foreclosing “all inquiry into the child’s best interest” in custody and visitation cases involving parental figures who lacked biological or adoptive ties to the child (*Alison D.*, 77 NY2d at 659 [Kaye, J., dissenting]). And, in the years that followed, lower courts applying *Alison D.* were “forced to . . . permanently sever strongly formed bonds between children and adults with whom they have parental relationships” (*Debra H.*, 14 NY3d at 606 [Ciparick, J., concurring]). By “limiting their opportunity to maintain bonds that may be crucial to their development,” the rule of *Alison D.* has “fall[en] hardest on the children” (*Alison D.*, 77 NY2d at 658 [Kaye, J., dissenting]).

As a result, in the 25 years since *Alison D.* was decided, this Court has gone to great lengths to escape the inequitable results dictated by a needlessly narrow interpretation of the term “parent.” Now, we find ourselves in a legal landscape wherein a non-biological, non-adoptive “parent” may be estopped from disclaiming parentage and made to pay child support in a filiation proceeding (*Shondel J.*, 7 NY3d 320), yet denied standing to seek custody or visitation (*Alison D.*, 77 NY2d at 655). By creating a disparity in the support and custody contexts, *Alison D.* has created an inconsistency in the rights and obligations attendant to parenthood. Moreover, *Alison D.*’s foundational premise of heterosexual parenting and nonrecognition of same-sex couples is unsustainable, particularly in light of the enactment of same-sex marriage in New York State, and the United States Supreme Court’s holding in

Obergefell v Hodges (576 US —, 135 S Ct 2584 [2015]), which noted that the right to marry provides benefits not only for same-sex couples, but also the children being raised by those couples.

Under the current legal framework, which emphasizes biology, it is impossible—without marriage or adoption—for both former partners of a same-sex couple to have standing, as only one can be biologically related to the child (*see Alison D.*, 77 NY2d at 656). By contrast, where both partners in a heterosexual couple are biologically related to the child, both former partners will have standing regardless of marriage or adoption. It is this context that informs the Court's determination of a proper test for standing that ensures equality for same-sex parents and provides the opportunity for their children to have the love and support of two committed parents.

The Supreme Court has emphasized the stigma suffered by the “hundreds of thousands of children [who] are presently being raised by [same-sex] couples” (*Obergefell*, 576 US at —, 135 S Ct at 2600-2601). By “fixing biology as the key to visitation rights” (*Alison D.*, 77 NY2d at 657-658 [Kaye, J., dissenting]), the rule of *Alison D.* has inflicted disproportionate hardship on the growing number of nontraditional families across our state. At the time *Alison D.* was decided, estimates suggested that “more than 15.5 million children [did] not live with two biological parents, and that as many as 8 to 10 million children are born into families with a gay or lesbian parent” (*id.*). Demographic changes in the past 25 years have further transformed the elusive concept of the “average American family” (*Troxel v Granville*, 530 US 57, 63-64 [2000]); recent census statistics reflect the large number of same-sex couples residing in New York, and that many of New York's same-sex couples are raising children who are related to only one partner by birth or adoption (*see* Gary J. Gates & Abigail M. Cooke, The Williams Institute, *New York Census Snapshot: 2010* at 1-3).

Relatedly, legal commentators have taken issue with *Alison D.* for its negative impact on children. A growing body of social science reveals the trauma children suffer as a result of separation from a primary attachment figure—such as a de facto parent—regardless of that figure's biological or adoptive ties to the children (*see* Amanda Barfield, Note, *The Intersection of Same-Sex and Stepparent Visitation*, 23 JL & Pol'y 257, 259-260 [2014]; Ayelet Blecher-Prigat, *Rethinking Visitation: From a Parental to a Relational Right*, 16 Duke J Gender L & Pol'y 1,

7 [2009]; Suzanne B. Goldberg, *Family Law Cases as Law Reform Litigation: Unrecognized Parents and the Story of Alison D. v Virginia M.*, 17 Colum J Gender & L 307 [2008]; Mary Ellen Gill, Note, *Third Party Visitation in New York: Why the Current Standing Statute Is Failing Our Families*, 56 Syracuse L Rev 481, 488-489 [2006]; Joseph G. Arsenault, Comment, “Family” but not “Parent”: *The Same-Sex Coupling Jurisprudence of the New York Court of Appeals*, 58 Alb L Rev 813, 834, 836 [1995]; *see also* brief for National Association of Social Workers as amicus curiae at 13-17 [collecting articles]).

We must, however, protect the substantial and fundamental right of biological or adoptive parents to control the upbringing of their children (*see Alison D.*, 77 NY2d at 656-657; *Troxel v Granville*, 530 US 57, 65 [2000]). For certainly, “the interest of parents in the care, custody, and control of their children . . . is perhaps the oldest of the fundamental liberty interests,” and any infringement on that right “comes with an obvious cost” (*Troxel*, 530 US at 64-65). But here we do not consider whether to allow a third party to contest or infringe on those rights; rather, the issue is who qualifies as a “parent” with coequal rights. Nevertheless, the fundamental nature of those rights mandates caution in expanding the definition of that term and makes the element of consent of the biological or adoptive parent critical.

[1] While “parents and families have fundamental liberty interests in preserving” intimate family-like bonds, “so, too, do children have these interests” (*Troxel*, 530 US at 88-89 [Stevens, J., dissenting]), which must also inform the definition of “parent,” a term so central to the life of a child. The “bright-line” rule of *Alison D.* promotes the laudable goals of certainty and predictability in the wake of domestic disruption (*Debra H.*, 14 NY3d at 593-594). But bright lines cast a harsh light on any injustice and, as predicted by Judge Kaye, there is little doubt by whom that injustice has been most finely felt and most finely perceived (*see Alison D.*, 77 NY2d at 658 [Kaye, J., dissenting]). We will no longer engage in the “deft legal maneuvering” necessary to read fairness into an overly-restrictive definition of “parent” that sets too high a bar for reaching a child’s best interest and does not take into account equitable principles (*see Debra H.*, 14 NY3d at 606-608 [Ciparick, J., concurring]). Accordingly, we overrule *Alison D.*

IV.

Our holding that Domestic Relations Law § 70 permits a non-biological, non-adoptive parent to achieve standing to petition for custody and visitation requires us to specify the limited circumstances in which such a person has standing as a “parent” under Domestic Relations Law § 70 (*see Alison D.*, 77 NY2d at 661 [Kaye, J., dissenting]; *Troxel*, 530 US at 67). Because of the fundamental rights to which biological and adoptive parents are undeniably entitled, any encroachment on the rights of such parents and, especially, any test to expand who is a parent, must be, as Judge Kaye acknowledged in her dissent in *Alison D.*, appropriately narrow.

Petitioners and some of the amici urge that we endorse a functional test for standing, which has been employed in other jurisdictions that recognize parentage by estoppel in the custody and/or visitation context (*see In re Custody of H.S.H.-K.*, 193 Wis 2d 649, 694-695, 533 NW2d 419, 435-436 [1995] [visitation only]; *see also Conover v Conover*, 448 Md 548, 576-577, 141 A3d 31, 47-48 [2016] [collecting cases from other jurisdictions that have adopted the functional test in contexts of custody or visitation]). The functional test considers a variety of factors, many of which relate to the post-birth relationship between the putative parent and the child. Amicus Sanctuary for Families proposes a different test that hinges on whether petitioner can prove, by clear and convincing evidence, that a couple “jointly planned and explicitly agreed to the conception of a child with the intention of raising the child as co-parents” (brief for Sanctuary for Families as amicus curiae at 39).

Although the parties and amici disagree as to what test should be applied, they generally urge us to adopt a test that will apply in determining standing as a parent for all non-biological, non-adoptive, non-marital “parents” who are raising children. We reject the premise that we must now declare that one test would be appropriate for all situations, or that the proffered tests are the only options that should be considered.

[2] Petitioners in the two cases before us have alleged that the parties entered into a pre-conception agreement to conceive and raise a child as co-parents. We hold that these allegations, if proved by clear and convincing evidence, are sufficient to establish standing. Because we necessarily decide these cases based on the facts presented to us, it would be premature for us to consider adopting a test for situations in which a couple

did not enter into a pre-conception agreement. Accordingly, we do not now decide whether, in a case where a biological or adoptive parent consented to the creation of a parent-like relationship between his or her partner and child after conception, the partner can establish standing to seek visitation and custody.

Inasmuch as the conception test applies here, we do not opine on the proper test, if any, to be applied in situations in which a couple has not entered into a pre-conception agreement. We simply conclude that, where a petitioner proves by clear and convincing evidence that he or she has agreed with the biological parent of the child to conceive and raise the child as co-parents, the petitioner has presented sufficient evidence to achieve standing to seek custody and visitation of the child. Whether a partner without such an agreement can establish standing and, if so, what factors a petitioner must establish to achieve standing based on equitable estoppel are matters left for another day, upon a different record.

Additionally, we stress that this decision addresses only the ability of a person to establish standing as a parent to petition for custody or visitation; the ultimate determination of whether those rights shall be granted rests in the sound discretion of the court, which will determine the best interests of the child.

V.

We conclude that a person who is not a biological or adoptive parent may obtain standing to petition for custody or visitation under Domestic Relations Law § 70 (a) in accordance with the test outlined above.

[3] In *Brooke S.B.*, our decision in *Alison D.* prevented the courts below from determining standing because the petitioner was not the biological or adoptive parent of the child. That decision no longer poses any obstacle to those courts' consideration of standing by equitable estoppel here, if *Brooke S.B.* proves by clear and convincing evidence her allegation that a pre-conception agreement existed. Accordingly, in *Brooke S.B.*, the order of the Appellate Division should be reversed, without costs, and the matter remitted to Family Court for further proceedings in accordance with this opinion.

[4] In *Estrellita A.*, the courts below correctly resolved the question of standing by recognizing petitioner's standing based on judicial estoppel. In the child support proceeding, respon-

dent obtained an order compelling petitioner to pay child support based on her successful argument that petitioner was a parent to the child. Respondent was therefore estopped from taking the inconsistent position that petitioner was not, in fact, a parent to the child for purposes of visitation. Under the circumstances presented here, Family Court properly invoked the doctrine of judicial estoppel to recognize petitioner's standing to seek visitation as a "parent" under Domestic Relations Law § 70 (a). Accordingly, in *Estrellita A.*, the order of the Appellate Division should be affirmed, without costs.

FIGOTT, J. (concurring). While I agree with the application of judicial estoppel in *Matter of Estrellita A. v Jennifer L.D.*, and that the Appellate Division's decision in *Matter of Brooke S.B. v Elizabeth A.C.C.* should be reversed and the case remitted to Supreme Court for a hearing, I cannot join the majority's opinion overruling *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]). The definition of "parent" that we applied in that case was consistent with the legislative history of Domestic Relations Law § 70 and the common law, and despite several opportunities to do so, the legislature has never altered our conclusion. Rather than craft a new definition to achieve a result the majority perceives as more just, I would retain the rule that parental status under New York law derives from marriage, biology or adoption and decide *Brooke S.B.* on the basis of extraordinary circumstances. As we have said before, "any change in the meaning of 'parent' under our law should come by way of legislative enactment rather than judicial revamping of precedent" (*Debra H. v Janice R.*, 14 NY3d 576, 596 [2010]).

It has long been the rule in this state that, absent extraordinary circumstances, only parents have the right to seek custody or visitation of a minor child (see Domestic Relations Law § 70 [a] ["Where a minor child is residing within this state, either parent may apply to the . . . court for a writ of habeas corpus to have such minor child brought before such court; and on the return thereof, the court . . . may award the natural guardianship, charge and custody of such child to either parent"]). The legislature has not seen the need to define that term, and in the absence of a statutory definition, our Court has consistently interpreted it in the most obvious and colloquial sense to mean a child's natural parents or parents by adoption (see e.g. *People ex rel. Portnoy v Strasser*, 303 NY 539, 542 [1952] ["No court can, for any but the gravest reasons, transfer a child from its

natural parent to any other person”]; *People ex rel. Kropp v Shepsky*, 305 NY 465, 470 [1953]; see also Domestic Relations Law § 110 [defining adoption as a legal act whereby an adult acquires the rights and responsibilities of a parent with respect to the adoptee]). Thus, in *Matter of Ronald FF. v Cindy GG.*, we held that a man who lacked biological or adoptive ties to a child born out of wedlock could not interfere with a fit biological mother’s right to determine who may associate with her child because he was not a “parent” within the meaning of Domestic Relations Law § 70 (70 NY2d 141, 142 [1987]).

We applied the same rule to a same-sex couple in *Matter of Alison D. v Virginia M.*, holding that a biological stranger to a child who neither adopted the child nor married the child’s biological mother before the child’s birth lacked standing to seek visitation (77 NY2d 651, 656-657 [1991]). The petitioner in that case conceded she was not the child’s “parent” within the meaning of Domestic Relations Law § 70 but argued that her relationship with the child, as a *nonparent*, entitled her to seek visitation over the objection of the child’s indisputably fit biological mother. Framed in those terms, the answer was easy: the petitioner’s concession that she was not a parent of the child, coupled with the statutory language in Domestic Relations Law § 70 “giv[ing] *parents* the right to bring proceedings to ensure their proper exercise of [a child’s] care, custody and control,” deprived the petitioner of standing to seek visitation (*id.* at 657).

Notwithstanding the fact that it may be “beneficial to a child to have continued contact with a nonparent” in some cases (*id.*), we declined to expand the word “parent” in section 70 to include individuals like the petitioner who were admittedly nonparents but who had developed a close relationship with the child. Our reasoning was that, where the legislature had intended to allow other categories of persons to seek visitation, it had expressly conferred standing on those individuals and given courts the power to determine whether an award of visitation would be in the child’s best interest (*see id.*). Specifically, the legislature had previously provided that “[w]here circumstances show that conditions exist which equity would see fit to intervene,” a brother, sister or grandparent of a child may petition to have such child brought before the court to “make such directions as the best interest of the child may require, for visitation rights for such brother or sister [or grandparent or grandparents] in respect to such child”

(Domestic Relations Law §§ 71, 72 [1]). The legislature had also codified the common-law marital presumption of legitimacy for children conceived by artificial reproduction, so that any child born to a married woman by means of artificial insemination was deemed the legitimate, birth child of both spouses (*see* Domestic Relations Law § 73 [1]). In the absence of further legislative action defining the term “parent” or giving other nonparents the right to petition for visitation, we determined that a non-biological, non-adoptive parent who had not married the child’s biological mother lacked standing under the law (77 NY2d at 657).

Our Court reaffirmed *Alison D.*’s core holding just six years ago in *Debra H. v Janice R.* (14 NY3d 576 [2010]). Confronting many of the same arguments petitioners raise in these appeals, we rejected the impulse to judicially enlarge the term “parent” beyond marriage, biology or adoption. We observed that in the nearly 20 years that had passed since our decision in *Alison D.*, other states had *legislatively* expanded the class of individuals who may seek custody and/or visitation of a child (*see id.* at 596-597, citing Ind Code Ann §§ 31-17-2-8.5, 31-9-2-35.5; Colo Rev Stat Ann § 14-10-123; Tex Fam Code Ann § 102.003 [a] [9]; Minn Stat Ann § 257C.08 [4]; DC Code Ann § 16-831.01 [1]; Or Rev Stat Ann § 109.119 [1]; Wyo Stat Ann § 20-7-102 [a]). Our State had not—and has not, to this day. In the face of such legislative silence, we refused to undertake the kind of policy analysis reserved for the elected representatives of this State, who are better positioned to “conduct hearings and solicit comments from interested parties, evaluate the voluminous social science research in this area . . . , weigh the consequences of various proposals, and make the tradeoffs needed to fashion the rules that best serve the population of our state” (*id.* at 597).

The takeaway from *Debra H.* is that *Alison D.* didn’t break any new ground or retreat from a broader understanding of parenthood. It showed respect for the role of the legislature in defining who a parent is, and held, based on the legislative guidance before us, that the term was intended to include a child’s biological mother and father, a child’s adoptive parents, and, pursuant to a statute enacted in 1974, the spouse of a woman to whom a child was born by artificial insemination. Although many have complained that this standard “is formulaic, or too rigid, or out of step with the times” (*id.* at 594), such criticism is properly directed at the legislature, who

in the 107 years since Domestic Relations Law § 70 was enacted has chosen not to amend that section or define the term “parent” to include persons who establish a loving parental bond with a child, though they lack a biological or adoptive tie.

To be sure, there was a time when our interpretation of “parent” put same-sex couples on unequal footing with their heterosexual counterparts. When *Alison D.* was decided, for example, it was impossible for both members of a same-sex couple to become the legal parents of a child born to one partner by artificial insemination, because same-sex couples were not permitted to marry or adopt. Our Court eventually held that the adoption statute permitted unmarried same-sex partners to obtain second-parent adoptions (*see Matter of Jacob*, 86 NY2d 651, 656 [1995]), but it was not until 2011 that the legislature put an end to all sex-based distinctions in the law (*see* Domestic Relations Law § 10-a).

The legislature’s passage of the Marriage Equality Act granted same-sex couples the right to marry and made clear that “[n]o government treatment or legal status, effect, right, benefit, privilege, protection or responsibility relating to marriage . . . shall differ based on the parties to the marriage being or having been of the same sex rather than a different sex” (Domestic Relations Law § 10-a [2]). Having mandated gender neutrality with respect to every legal benefit and obligation arising from marriage, and eliminated every sex-based distinction in the law and common law, the legislature has formally declared its intention that “[s]ame-sex couples should have the same access as others to the protections, responsibilities, rights, obligations, and benefits of civil marriage” (L 2011, ch 95, § 2).

Same-sex couples are now afforded the same legal rights as heterosexual couples and are no longer barred from establishing the types of legal parent-child relationships that the law had previously disallowed. Today, a child born to a married person by means of artificial insemination with the consent of the other spouse is deemed to be the child of both spouses, regardless of the couple’s sexual orientation (2-22 NY Civil Practice: Family Court Proceedings § 22.08 [1] [Matthew Bender]; *Laura WW. v Peter WW.*, 51 AD3d 211, 217-218 [3d Dept 2008] [holding that a child born to a married woman is the legitimate child of both parties and that, absent evidence to the contrary, the spouse of the married woman is presumed

to have consented to such status]; *Matter of Kelly S. v Farah M.*, 139 AD3d 90, 103-104 [2d Dept 2016] [finding that the failure to strictly comply with the requirements of Domestic Relations Law § 73 did not preclude recognition of a biological mother's former same-sex partner as a parent to the child conceived by artificial insemination during the couple's domestic partnership]; *Wendy G-M. v Erin G-M.*, 45 Misc 3d 574, 593 [Sup Ct, Monroe County 2014] [applying the marital presumption to a child born of a same-sex couple married in Connecticut]). And if two individuals of the same sex choose not to marry but later conceive a child by artificial insemination, the non-biological parent may now adopt the child through a second-parent adoption.

The Marriage Equality Act and *Matter of Jacob* have erased any obstacles to living within the rights and duties of the Domestic Relations Law. The corollary is, absent further legislative action, an unmarried individual who lacks a biological or adoptive connection to a child conceived after 2011 does not have standing under Domestic Relations Law § 70, regardless of gender or sexual orientation. Unlike the majority, I would leave it to the legislature to determine whether a broader category of persons should be permitted to seek custody or visitation under the law. I remain of the view, as I was in *Debra H.*, that we should not “preempt our Legislature by sidestepping section 70 of the Domestic Relations Law as presently drafted and interpreted in *Alison D.* to create an additional category of parent . . . through the exercise of our common-law and equitable powers” (14 NY3d at 597).

I do agree, however, with the results the majority has reached in these cases. The Marriage Equality Act did not benefit the same-sex couples before us in these appeals, who entered into committed relationships and chose to rear children before they were permitted to exercise what our legislature and the Supreme Court of the United States have now declared a fundamental human right (*see generally Obergefell v Hodges*, 576 US —, 135 S Ct 2584 [2015]). That Brooke and Elizabeth did not have the same opportunity to marry one another before they decided to have a family means that the couple (and the child born to them through artificial insemination) did not receive the same legal protection our laws would have provided a child born to a heterosexual couple under similar circumstances. That is, the law did not presume—as it would have for a married heterosexual couple—that any child

born to one of the women during their relationship was the legitimate child of both.

In my view, this inequality and the substantial changes in the law that have occurred since our decision in *Debra H.* constitute extraordinary circumstances that give these petitioners standing to seek visitation (*see Ronald FF.*, 70 NY2d at 144-145 [barring the State from interfering with a parent's "(fundamental) right . . . to choose those with whom her child associates" unless it "shows some compelling State purpose which furthers the child's best interest"])). Namely, each couple agreed to conceive a child by artificial insemination at a time when they were not allowed to marry in New York and intended to raise the child in the type of relationship the couples would have formalized by marriage had our State permitted them to exercise that fundamental human right. On the basis of these facts, I would remit the matter in *Brooke S.B.* to Supreme Court for a hearing to determine whether it would be in the child's best interest to have regular visitation with petitioner. As the majority correctly concludes, the petitioner in *Estrellita A.* has standing by virtue of judicial estoppel (majority op at 29).

Matter of Brooke S.B. v Elizabeth A.C.C.: Order reversed, without costs, and matter remitted to Family Court, Chautauqua County, for further proceedings in accordance with the opinion herein.

Opinion by Judge ABDUS-SALAAM. Chief Judge DiFIORE and Judges RIVERA, STEIN and GARCIA concur. Judge PIGOTT concurs in a separate concurring opinion. Judge FAHEY taking no part.

Matter of Estrellita A. v Jennifer L.D.: Order affirmed, without costs.

Opinion by Judge ABDUS-SALAAM. Chief Judge DiFIORE and Judges RIVERA, STEIN and GARCIA concur. Judge PIGOTT concurs in a separate concurring opinion. Judge FAHEY taking no part.

[63 NE3d 1136, 41 NYS3d 192]

In the Matter of ALAN M. SIMON, a Justice of the Spring Valley Village Court and the Ramapo Town Court, Rockland County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Argued September 7, 2016; decided October 20, 2016

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, to review a determination of respondent State Commission on Judicial Conduct, dated March 29, 2016. The Commission determined that petitioner should be removed from the offices of Justice of the Spring Valley Village Court and Justice of the Ramapo Town Court, Rockland County.

HEADNOTE

Judges — Removal from Office — Pattern of Calculated Misconduct

The determination of respondent State Commission on Judicial Conduct that petitioner Justice should be removed from office was accepted. Petitioner's conceded misconduct qualified as "truly egregious" as it reflected a pattern of calculated misconduct that militated against his assertion that the misbehavior complained of would not be repeated if he was allowed to remain on the bench. The record reflected that, among other things, petitioner used a sanction—a tool meant to "shield" from frivolous conduct—as a "sword" to punish a legal services organization for a perceived slight in an inexcusable and patently improper way. The record was also replete with instances in which petitioner used his office and standing as a platform from which to bully and to intimidate, and he repeatedly threatened to hold various officials and employees of the Village in contempt without cause or process. Significantly, petitioner's hectoring extended beyond the courthouse inasmuch as he willfully injected himself into the political process involving the election of an office other than his own. Petitioner's misconduct apparently was tempered only by the intervention of the Commission, and he appeared unrepentant and evasive at the hearing held on the matter, testifying falsely on at least two occasions in an attempt to minimize his misconduct.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Federal Courts § 36; AM JUR 2d, Judges §§ 16–20, 44.

CARMODY-WAIT 2d, Officers of Court §§ 3:107, 3:116, 3:128, 3:138–3:150.

NY JUR 2d, Courts and Judges §§ 343, 346, 360, 439, 444–448, 450, 452–453, 463, 466.

ANNOTATION REFERENCE

Disciplinary action against judge on ground of abusive or intemperate language or conduct toward attorneys, court personnel, or parties to or witnesses in actions, and the like. 89 ALR4th 278.

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POINTS OF COUNSEL

Kantor, Davidoff, Mandelker, Twomey, Gallanty & Kesten, P.C., New York City (*Lawrence A. Mandelker* of counsel), and *Joseph A. Maria, P.C.*, White Plains, for petitioner. I. As the record demonstrates, there is a high level of assurance that if petitioner were permitted to remain on the bench, the misconduct complained of—threats to court staff and others to hold them in contempt, rudeness and use of abusive language—will not be repeated. (*Matter of Hart* [State Commn. on Jud. Conduct], 7 NY3d 1.) II. While petitioner's intemperate conduct in dealing with court and other Village of Spring Valley personnel cannot be excused, it always arose from an effort—albeit misguided—to improve the efficiency of the court or maintain the court's integrity and independence from a corrupt village administration that saw its Mayor and Deputy Mayor convicted of federal corruption charges. III. The misconduct of the judges who have been removed from the bench was far more egregious than petitioner's misconduct. (*Matter of Restaino* [State Commn. on Jud. Conduct], 10 NY3d 577; *Matter of Roberts*, 91 NY2d 93; *Matter of Blackburne* [State Commn. on Jud. Conduct], 7 NY3d 213; *Matter of Gibbons*, 98 NY2d 448; *Matter of Hart* [State Commn. on Jud. Conduct], 7 NY3d 1; *Matter of Myers*, 67 NY2d 550; *Matter of Sims* [State Commn. on Jud. Conduct], 61 NY2d 349; *Matter of Robert*, 89 NY2d 745; *Matter of Bauer*, 3 NY3d 158; *Matter of Mertens*, 56 AD2d 456.)

Robert H. Tembeckjian, Commission on Judicial Conduct, Albany (*Edward Lindner, Mary C. Farrington, Mark Levine* and *Pamela Tishman* of counsel), for respondent. Petitioner should be removed from judicial office. (*Matter of Roberts*, 91 NY2d 93; *Matter of Blackburne* [State Commn. on Jud. Conduct], 7 NY3d 213; *Matter of Aldrich v State Commn. on Jud. Conduct*, 58 NY2d 279; *Matter of Quinn v State Commn. on*

Jud. Conduct, 54 NY2d 386; *Matter of Restaino* [State Commn. on *Jud. Conduct*], 10 NY3d 577; *Matter of Jung* [State Commn. on *Jud. Conduct*], 11 NY3d 365; *Matter of Hamel* [State Commn. on *Jud. Conduct*], 88 NY2d 317; *Matter of Hart* [State Commn. on *Jud. Conduct*], 7 NY3d 1; *Matter of Assini*, 94 NY2d 26; *Matter of Duckman*, 92 NY2d 141.)

OPINION OF THE COURT

Per Curiam.

At the request of petitioner, Alan M. Simon, we review a determination of the State Commission on Judicial Conduct, which sustained six charges of misconduct against petitioner and recommended that he be removed from his judicial offices. Petitioner has been a Justice of the Spring Valley Village Court since 2005 and a Justice of the Ramapo Town Court since 2011. He also was appointed an Acting Justice of the Hillburn Village Court in 2016.

In seeking review, petitioner “concedes his misconduct,” but he challenges the Commission’s recommendation that he be removed (*see* Judiciary Law § 44 [7]). Specifically, petitioner contends that, in lieu of removal, we should direct that he be censured and restored to his judicial offices. We reject that contention and accept the determined sanction of removal.

In matters involving judicial misconduct we have broad statutory and constitutional authority to determine the appropriate sanction (*see Matter of Aldrich v State Commn. on Jud. Conduct*, 58 NY2d 279, 282 [1983], *rearg denied* 59 NY2d 967 [1983]). Judicial misconduct cases involve “institutional and collective judgment calls based on assessment of their individual facts, in relation to prevailing standards of judicial behavior and the prospect of future misconduct and continued judicial service” (*Matter of Roberts*, 91 NY2d 93, 97 [1997]). “[W]e have long defined the purpose of a judicial disciplinary proceeding not in terms of punishment for its own sake, ‘but [for] the imposition of sanctions where necessary to safeguard the Bench from unfit incumbents’ ” (*Matter of Restaino* [State Commn. on *Jud. Conduct*], 10 NY3d 577, 589 [2008], quoting *Matter of Duckman*, 92 NY2d 141, 152 [1998]).

The ultimate sanction of removal typically is “reserved for ‘truly egregious circumstances’ that extend beyond the limits of ‘even extremely poor judgment’ ” (*Restaino*, 10 NY3d at 589, quoting *Matter of Kiley*, 74 NY2d 364, 369, 370 [1989]), but it must also be kept in mind “that the ‘truly egregious’ standard

is measured with due regard to the higher standard of conduct to which judges are held” (*Restaino*, 10 NY3d at 589-590 [some internal quotation marks omitted]). Removal thus is warranted when a judge exhibits “a pattern of injudicious behavior . . . which cannot be viewed as acceptable conduct by one holding judicial office” (*Matter of VonderHeide* [*State Commn. on Jud. Conduct*], 72 NY2d 658, 660 [1988]) or an “abuse[] [of] the power of his [or her] office in a manner that . . . has irredeemably damaged public confidence in the integrity of his [or her] court” (*Matter of McGee v State Commn. on Jud. Conduct*, 59 NY2d 870, 871 [1983]).

Here, the Commission held, and petitioner concedes, that he violated these Rules Governing Judicial Conduct:

22 NYCRR 100.1 (entitled, “A judge shall uphold the integrity and independence of the judiciary”);

22 NYCRR 100.2 (A) (“A judge shall respect and comply with the law and shall act at all times in a manner that promotes public confidence in the integrity and impartiality of the judiciary”);

22 NYCRR 100.2 (C) (“A judge shall not lend the prestige of judicial office to advance the private interests of . . . others”);

22 NYCRR 100.3 (B) (1) (“A judge shall be faithful to the law and maintain professional competence in it. A judge shall not be swayed by partisan interests, public clamor or fear of criticism”);

22 NYCRR 100.3 (B) (3) (“A judge shall be patient, dignified and courteous to litigants, jurors, witnesses, lawyers and others with whom the judge deals in an official capacity . . .”);

22 NYCRR 100.3 (B) (6) (“A judge shall accord to every person who has a legal interest in a proceeding, or that person’s lawyer, the right to be heard according to law . . .”);

22 NYCRR 100.3 (C) (1) (“A judge shall diligently discharge the judge’s administrative responsibilities without bias or prejudice and maintain professional competence in judicial administration, and should cooperate with other judges and court officials in the administration of court business”); and

22 NYCRR 100.5 (A) (1) (c) and (d) (“Neither a sitting judge nor a candidate for public election to judicial office shall directly or indirectly engage in any political activity Prohibited political activity shall include . . . [c] engaging in any partisan political activity . . . [and] [d] participating in any political campaign for any office or permitting his or her name to be

used in connection with any activity of a political organization”).

The misconduct giving rise to that concession “qualifies as ‘truly egregious’ ” (*Restaino*, 10 NY3d at 590). The record reflects that, among other things, petitioner used a sanction—a tool meant to “shield” from frivolous conduct—as a “sword” to punish a legal services organization for a perceived slight in an inexcusable and patently improper way (*see* 22 NYCRR 130-1.1 [a] [authorizing the imposition of sanctions, but precluding town and village courts from applying such penalties]). The record is also replete with instances in which petitioner used his office and standing as a platform from which to bully and to intimidate. To that end, it is undisputed that petitioner engaged in ethnic smearing and name-calling and repeatedly displayed poor temperament—perhaps most significantly, by engaging in a physical altercation with a student worker.

Those actions are representative of an even more serious problem. Petitioner—in what allegedly was a grossly misguided attempt to motivate—repeatedly threatened to hold various officials and employees of the Village of Spring Valley in contempt without cause or process. Those threats “exceeded all measure of acceptable judicial conduct” (*Matter of Blackburne [State Commn. on Jud. Conduct]*, 7 NY3d 213, 221 [2006]), and we are particularly troubled by the testimony of one court officer, who suggested that petitioner’s threats were so common that they became “a joke.” The matter may have been a laughing one to that officer, but it was not to others.

Significantly, too, petitioner’s hectoring extended beyond the courthouse. In what ostensibly was an attempt to undermine a former co-judge and an apparent political adversary, petitioner willfully injected himself into the political process involving the election of an office other than his own. All of the foregoing actions reflect a pattern of calculated misconduct that militates against petitioner’s assertion that the misbehavior complained of will not be repeated if he is allowed to remain on the bench.¹ Petitioner’s misconduct apparently was tempered only by the intervention of the Commission, and at the hearing held with respect to this matter he appeared unrepentant and evasive, testifying falsely on at least two occasions in an attempt to

1. By operation of the New York State Constitution, petitioner is “ineligible to hold other judicial office” (NY Const, art VI, § 22 [h]).

minimize his misconduct—all of which renders suspect his guarantees of better behavior.²

Accordingly, the determined sanction should be accepted, without costs, and Alan M. Simon removed from the offices of Justice of the Spring Valley Village Court, Rockland County, and Justice of the Ramapo Town Court, Rockland County.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Determined sanction accepted, without costs, and Alan M. Simon removed from the offices of Justice of the Spring Valley Village Court, Rockland County, and Justice of the Ramapo Town Court, Rockland County.

2. Petitioner also claims that the Commission ignored the theory of the case that he presented to it, namely, that he acknowledged that his misconduct was not justified, but that “his motives were to protect the independence and integrity of the court from the undue influence of a corrupt mayor and improve its efficiency.” Even assuming the truth of that representation, the “means” by which petitioner attempted to effectuate those “ends” are unacceptable.

[63 NE3d 1140, 41 NYS3d 196]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DRU
ALLARD, Respondent.

Argued September 6, 2016; decided October 20, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 27, 2015. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Kings County (James P. Sullivan, J.), which had convicted defendant, upon a jury verdict, of menacing in the second degree as a hate crime (two counts); (2) granted defendant's motion pursuant to CPL 30.30 to dismiss the indictment on the ground that he was denied his statutory right to a speedy trial; (3) dismissed the indictment; and (4) remitted the matter to Supreme Court for the entry of an order in its discretion pursuant to CPL 160.50. The appeal to the Appellate Division brought up for review (1) an order of that Supreme Court (Sheryl L. Parker, J.), which had denied, after a hearing, that branch of defendant's omnibus motion which was to suppress physical evidence; and (2) an order of that court (John P. Walsh, J.), which had denied, without a hearing, defendant's motion pursuant to CPL 30.30. In a prior order (113 AD3d 624 [2014]), the Appellate Division (1) remitted the case to Supreme Court to hear and report on defendant's motion pursuant to CPL 30.30, and (2) held the appeal from the judgment in abeyance in the interim. The Supreme Court (Danny K. Chun, J.) held a hearing and submitted its report for review.

People v Allard, 128 AD3d 1081, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Right to Speedy Trial

Defendant's challenges to the People's claim, in opposition to defendant's motion to dismiss an indictment on the ground that he was denied his statutory right to a speedy trial, that certain days were excludable were preserved for appellate review, notwithstanding that he failed to raise them in a reply, as defendant was entitled to the hearing he had requested in his moving papers (CPL 210.45 [5] [c]). The court may deny a motion to dismiss an indictment without a hearing only if the People have "conclusively refuted" an allegation of fact essential to support the motion "by unquestionable documentary proof" (CPL 210.45 [5] [c]). While the People's opposition to de-

defendant's motion sufficiently demonstrated that there was a factual dispute to be resolved at a hearing, it was inadequate to warrant summary denial, so defendant was entitled to the hearing he requested in the moving papers. Pursuant to CPL 470.05 (2), to present a preserved question of law, a party claiming error must raise their challenge at the time of trial or the court's ruling, or at any subsequent time when the trial court had an opportunity of effectively changing the same. In the absence of a hearing, a defendant's substantive arguments will be unpreserved where the defendant failed to otherwise raise them, for instance, in the defendant's initial submission or in a reply. However, a defendant's failure to reply is not fatal to his or her claim where, as here, the defendant properly requests and receives a hearing and, at that hearing, his or her arguments are raised and developed.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review §§ 208, 212, 216, 618, 647, 716, 937; AM JUR 2d, Criminal Law §§ 929; 932, 938–942; AM JUR 2d, Indictments and Informations §§ 264, 266, 269.

CARMODY-WAIT 2d, Timeliness of Prosecution; Speedy Trial §§ 186:56, 186:84, 186:86, 186:135–186:139; CARMODY-WAIT 2d, Pretrial Motions §§ 189:109, 189:177; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:16, 207:43.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 15.4, 18.1–18.3, 27.5.

McKINNEY'S, CPL 210.45, 470.05 (2).

NY JUR 2d, Criminal Law: Procedure §§ 909, 1531, 1595–1597, 1600, 1618, 1622, 1900, 1905, 1966–1968.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Discontinuance, Dismissal, and Nonsuit; Estoppel and Waiver; Indictments and Informations; Pleadings; Speedy Trial.

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POINTS OF COUNSEL

Eric Gonzalez, Acting District Attorney, Brooklyn (Thomas M. Ross and Leonard Joblove of counsel), for appellant. The Appellate Division's holding that defendant preserved his CPL 30.30 claim for appellate review is erroneous, because, prior to the determination of the CPL 30.30 motion, defendant did not

challenge the People's argument that the period at issue was excludable pursuant to CPL 30.30 (4) (g), and because the trial court did not expressly decide the question that defendant raised on appeal regarding the excludability of that period. (*People v Autry*, 75 NY2d 836; *People v Creech*, 60 NY2d 895; *People v Cona*, 49 NY2d 26; *People v Beasley*, 16 NY3d 289; *People v Goode*, 87 NY2d 1045; *People v Luperon*, 85 NY2d 71; *People v Hampton*, 21 NY3d 277; *People v Prado*, 4 NY3d 725; *People v Carter*, 285 AD2d 384; *People v Samuels*, 224 AD2d 261.)

Lynn W.L. Fahey, Appellate Advocates, New York City (*Joshua M. Levine* of counsel), for respondent. The People's preservation arguments regarding the Appellate Division's non-final, intermediate order remanding for a speedy trial hearing are academic and not cognizable in this appeal from the Court's subsequent order dismissing the indictment, and the Appellate Division correctly held, in any event, that respondent was entitled to a hearing on his motion to dismiss the indictment pursuant to CPL 30.30. (*People v Dunn*, 4 NY3d 495; *People v Hernandez*, 98 NY2d 8; *People v Stevens*, 91 NY2d 270; *People v Laing*, 79 NY2d 166; *Matter of State of New York v King*, 36 NY2d 59; *People v Rossi*, 5 NY2d 396; *People v Copp*a, 45 NY2d 244; *Matter of Santangelo v People*, 38 NY2d 536; *People v Jackson*, 80 NY2d 112; *People v Hecker*, 15 NY3d 625.)

OPINION OF THE COURT

GARCIA, J.

Defendant Dru Allard moved to dismiss the indictment pursuant to CPL 30.30 on the ground that he was denied his statutory right to a speedy trial. Among other things, defendant alleged that the People should be charged with the 97-day period between Supreme Court's dismissal of all felony counts in the indictment, and the People's service of a new indictment. Defendant argued that "[t]he absence of a valid indictment during this period . . . directly impaired the People's ability to proceed to trial and as such must be charged." Defendant's moving papers requested summary dismissal of the indictment or that "a hearing be held to determine the facts."

In opposition, the People argued, among other things, that 32 of those 97 days were excludable as "delay occasioned by exceptional circumstances" under CPL 30.30 (4) (g) because "the complaining witness was on vacation in Egypt and beyond the control of the People," and the People could not re-present

the case to the grand jury until his return. Defendant did not file reply papers.

Supreme Court denied defendant's motion without a hearing. Defendant appealed and, in response, the People claimed that defendant's CPL 30.30 arguments were unpreserved.

The Appellate Division remitted to Supreme Court for a hearing on the motion, holding the appeal in abeyance in the interim (113 AD3d 624 [2d Dept 2014]). The Court held that, "[c]ontrary to the People's contention, the defendant's claim that the summary denial was error is properly preserved for appellate review" (*id.* at 625). The Appellate Division also determined that defendant was entitled to a hearing pursuant to CPL 210.45 (5) because the People failed, as required by the statute, to conclusively refute defendant's motion with "unquestionable documentary proof" (*id.* at 626 [citation and internal quotation marks omitted]).

Supreme Court thereafter conducted a hearing on defendant's CPL 30.30 motion. The People presented testimony from the complaining witness—now returned from vacation—and a former Assistant District Attorney previously assigned to defendant's case. Defense counsel cross-examined each witness, eliciting testimony regarding the circumstances surrounding the complainant's travel abroad and the People's efforts to secure his testimony in advance of his departure. After the hearing, both parties filed post-hearing submissions. Defendant argued, among other things, that the People failed to make the requisite showing of "due diligence" required to invoke CPL 30.30 (4) (g).

Supreme Court held that "the People failed to conclusively demonstrate that they attempted with due diligence to make the complainant available." Finding that the 32 days "while the complainant was unavailable to testify should be charged to the People," Supreme Court concluded that the People exceeded their six-month speedy trial period. The Appellate Division agreed, granting defendant's CPL 30.30 motion to dismiss the indictment (128 AD3d 1081 [2d Dept 2015]). A Judge of this Court granted leave to appeal (26 NY3d 965 [2015]), and we now affirm.

On appeal, the People do not challenge the merits of defendant's CPL 30.30 claim. Rather, the People contend that the Appellate Division erred in concluding that defendant's claim was "properly preserved for appellate review" (113 AD3d at 625)

because defendant failed to comply with this Court’s “well established” procedure for preserving an argument in a CPL 30.30 motion (*People v Beasley*, 16 NY3d 289, 292 [2011]). Pursuant to that procedure, a defendant bears the initial burden of alleging that the People were not ready for trial within the statutorily prescribed time period (*People v Goode*, 87 NY2d 1045, 1047 [1996]). The People, in opposition, “must ordinarily identify the exclusions on which they intend to rely” (*People v Luperon*, 85 NY2d 71, 78 [1995]). A defendant “preserves challenges to the People’s reliance on those exclusions for appellate review by identifying any legal or factual impediments to the use of those exclusions” (*Goode*, 87 NY2d at 1047 [brackets and internal quotation marks omitted]). The parties do not dispute that, in this case, defendant did not file a reply identifying any “legal or factual impediments” to the People’s proffered exclusions.

Invoking CPL 210.45, defendant contends that he was not required to challenge the People’s claimed exclusions in a reply because he was statutorily entitled to a hearing. Specifically, pursuant to CPL 210.45, once “all papers of both parties have been filed,” including any “documentary evidence,” the motion court must determine “whether the motion is determinable without a hearing to resolve questions of fact” (CPL 210.45 [3]). The court may deny the motion without a hearing only if, as relevant here, the People have “conclusively refuted” an allegation of fact essential to support the motion “by unquestionable documentary proof” (CPL 210.45 [5] [c]).

In this appeal, the parties ask us to reconcile their perceived tension between CPL 210.45 and our established procedure for preserving a statutory speedy trial argument. In essence, the People argue that, because defendant did not reply, defendant failed to preserve his CPL 30.30 arguments, including his request for a hearing, for appellate review. But such a rigid interpretation of our established procedure is not mandated by our case law, nor is it consistent with this Court’s functional approach to preservation.

Our cases applying the “basic rules of preservation” in the context of CPL 30.30 motions do not purport to affect the governing procedural rules mandated by statute (*Luperon*, 85 NY2d at 78). Indeed, CPL 210.45 furnishes the general procedure applicable to *all* motions to dismiss an indictment—including, among others, motions based on defective grand jury proceedings, untimely prosecutions, a defendant’s immunity,

and CPL 30.30 grounds (CPL 210.20 [1]). Accordingly, pursuant to CPL 210.45, unless the People's opposition "conclusively refuted" defendant's motion "by unquestionable documentary proof," Supreme Court could not deny the motion without conducting a hearing (CPL 210.45 [5] [c]). Here, while the People's opposition sufficiently demonstrated "that there [wa]s a factual dispute which must be resolved at a hearing" (*People v Gruden*, 42 NY2d 214, 217 [1977]), it was inadequate to warrant summary denial of the motion. As such, defendant was entitled to the hearing he requested in his moving papers (CPL 210.45 [5] [c]).

Our case law setting forth the procedure for preserving a CPL 30.30 argument is consistent with this application of CPL 210.45. Pursuant to CPL 470.05 (2), to present a preserved "question of law," a party claiming error must raise their challenge "at the time of" the trial court's ruling, or "at any subsequent time when the [trial] court had an opportunity of effectively changing the same." To that end, our case law establishes that, where nothing in the record "would have alerted the trial court" to a defendant's CPL 30.30 claims, those claims are unpreserved for appellate review (*Beasley*, 16 NY3d at 292). A defendant's challenges to the People's claimed exclusions may be raised in a reply filing or, alternatively, they may be raised at a hearing on the motion, if one is held. By raising challenges to the People's claimed exclusions in a reply or during a CPL 30.30 hearing, a defendant adequately brings his claims "to the attention of the trial court at a time and in a way that g[i]ve[s] the [trial court] the opportunity to remedy the problem and thereby avert reversible error" (*Luperon*, 85 NY2d at 78; *see also* CPL 470.05 [2]).*

In the absence of a hearing, a defendant's substantive CPL 30.30 arguments will be unpreserved where the defendant failed to otherwise raise them, for instance, "in his initial submission or in a reply" (*Beasley*, 16 NY3d at 292-293).

* We recognize that, if a defendant waits until the hearing to identify the legal and factual impediments to the People's claimed exclusions, the People may be required to present proof regarding every exclusion, resulting in needlessly lengthy hearings. However, hearing courts can address this potential issue by, for instance, holding a prehearing conference to narrow the scope of the hearing or directing the defendant to notify the People, in advance of the hearing, of the periods he intends to challenge. Of course, only those periods for which the People have not provided "unquestionable documentary proof"—for example, a transcript or letter evidencing defendant's consent—need be addressed at any hearing.

Accordingly, a defendant would be well-advised to raise any CPL 30.30 arguments in a reply so as to ensure their preservation. For instance, where a defendant mistakenly believes that the People failed to “conclusively refute[]” his motion (CPL 210.45 [5] [c])—and therefore opts not to reply—the defendant risks summary denial of his motion, leaving him with an unsuccessful and unpreserved claim. However, a defendant’s failure to reply is not fatal to his claim where, as here, the defendant properly requests and receives a hearing and, at that hearing, his arguments are raised and developed (*People v Jones*, 21 NY3d 449, 454 [2013]).

In this case, defendant adequately preserved his challenges to the People’s claimed exclusions, and the merits of defendant’s motion are not challenged here. Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed.

[63 NE3d 1144, 41 NYS3d 200]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v Nnamdi
Clarke, Respondent.

Argued September 6, 2016; decided October 25, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 12, 2014. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Robert C. Kohm, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree (two counts), reckless endangerment in the first degree and unlawful possession of marijuana; (2) vacated a prior order of that court (James P. Griffin, J.), brought up for review on the appeal to the Appellate Division from the judgment, which had denied, without a hearing, defendant's motion pursuant to CPL 30.30 to dismiss the indictment on the ground that he was deprived of his statutory right to a speedy trial; (3) granted defendant's motion; and (4) remitted the matter to the Supreme Court, Queens County, for the purpose of entering an order in its discretion pursuant to CPL 160.50.

People v Clarke, 122 AD3d 765, affirmed.

HEADNOTE**Crimes — Right to Speedy Trial — Prosecutorial Delay in Obtaining Defendant's DNA Sample — Due Diligence**

The 161-day period of delay between defendant's consent to a DNA swab for comparison with the DNA results obtained from swabs of the gun he was charged with criminally possessing and the People's production of a report of the DNA results was chargeable to the People for speedy trial purposes, as they failed to exercise due diligence in obtaining defendant's DNA sample. The purpose behind CPL 30.30 is to promote prompt trials for defendants in criminal cases. CPL 30.30 (4) (g) allows exclusion from the computation of the time within which the People must be ready for trial "periods of delay occasioned by exceptional circumstances" in obtaining unavailable evidence "material to the people's case, when the district attorney has exercised due diligence to obtain such evidence" (CPL 30.30 [4] [g] [i]). Therefore, if the exclusion is to be given reasonable effect and is to fulfill the legislative purpose, it must be limited to instances in which the prosecution's inability to proceed is justified by the purposes of the investigation and credible, vigorous activity in pursuing it. There was no reasonable excuse for the People's delay in seeking a court order for defendant's DNA exemplar. The weapon was promptly submitted to the medical examiner by law enforcement for examination and the People waited almost nine months after the indictment

to ask the medical examiner what results, if any, were obtained from the scientific testing performed on the gun swabs. Such prosecutorial inaction contravened CPL 30.30.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Continuance §§ 50–53; AM JUR 2d, Criminal Law §§ 331, 927, 929, 933, 936–940, 1030; AM JUR 2d, Evidence §§ 964, 1019, 1034.
CARMODY-WAIT 2d, Physical Examinations and Tests § 175:18; CARMODY-WAIT 2d, Timeliness of Prosecution; Speedy Trial §§ 186:53–186:56, 186:84, 186:103, 186:108, 186:125, 186:131–186:134.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 18.2–18.5, 24.3.
MCKINNEY'S, CPL 30.30 (4) (g) (i).
NY JUR 2d, Criminal Law: Procedure §§ 712, 720, 1731, 1900, 1905, 1928, 1954–1957.

ANNOTATION REFERENCE

Delay between filing of complaint or other charge and arrest of accused as violation of right to speedy trial. 85 ALR2d 980.

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POINTS OF COUNSEL

Richard A. Brown, District Attorney, Kew Gardens (Sharon Y. Brodt, Robert J. Masters and John M. Castellano of counsel), for appellant. The People did not exceed their speedy trial time, as the period during which a previously unavailable scientific procedure was used to compare defendant's DNA against DNA found on the gun he was charged with possessing was excludable. (People v Wright, 50 AD3d 429; People v Sibblies, 22 NY3d 1174; People v Megnath, 27 Misc 3d 405; People v Bargerstock, 192 AD2d 1058; People v Fulmer, 87 AD3d 1385; People v Carter, 91 NY2d 795; People v Robinson, 47 AD3d 847; People v Williams, 244 AD2d 587; People v Lathon, 120 AD3d 1132; People v Miller, 113 AD3d 885.)

Lynn W.L. Fahey, Appellate Advocates, New York City (William G. Kastin of counsel), for respondent. The Appellate

Division properly concluded that the People failed to act with due diligence and that Mr. Nnamdi Clarke's statutory right to a speedy trial was violated when, pursuant to a mandatory Police Department "protocol," the police submitted swabs to the laboratory for DNA testing, but the People waited until 15 months after the laboratory had first found human DNA suitable for comparison, and nine months after Mr. Clarke was indicted, before they formally sought a DNA sample from him as the trial was ready to begin. (*People v Berkowitz*, 50 NY2d 333; *People v Price*, 14 NY3d 61; *People v Goss*, 87 NY2d 792; *People v Sinistaj*, 67 NY2d 236; *People v McKenna*, 76 NY2d 59; *People v Osgood*, 52 NY2d 37; *People v Anderson*, 66 NY2d 529; *People v Carter*, 91 NY2d 795; *People v Cortes*, 80 NY2d 201; *People v Worley*, 66 NY2d 523.)

OPINION OF THE COURT

Chief Judge DiFiore.

On this appeal, we are asked to review whether the Appellate Division erred in holding that the People were chargeable with the period of delay of 161 days for DNA testing after having failed to exercise due diligence in seeking defendant's DNA exemplar in order to conduct comparative testing with the DNA obtained by the Office of Chief Medical Examiner (OCME) from the gun that was the subject of weapons offenses charged in the indictment. We hold that the Appellate Division properly determined that the People did not exercise due diligence in obtaining defendant's DNA exemplar and, based on that prosecutorial inaction, the 161-day period at issue was not excludable from CPL 30.30 speedy trial computation as an exceptional circumstance.

This criminal action commenced when defendant was charged by felony complaint on November 29, 2007 in Criminal Court (*see People v Osgood*, 52 NY2d 37, 43 [1980]). Defendant was arraigned on December 3, 2007 and, after a period of pre-indictment delay for which defendant waived his CPL 30.30 rights, he was indicted on August 18, 2008. Defendant was charged with attempted murder in the first degree, criminal possession of a weapon in the second degree, and other related charges.

In May 2009, almost nine months after defendant's indictment, the People moved for an order to take an oral swab from defendant to obtain his DNA sample for comparison with the

DNA results obtained from the swabs of the gun by OCME.* There is no dispute that there was an OCME lab report, dated February 11, 2008, that plainly indicated that DNA was found on the swabs from the recovered gun. The report stated that “[f]urther analysis could be done upon submission of a blood or saliva sample from a suspect” and provided that such testing would “require approximately 60 days.” Noting that his client had “been incarcerated for some time now,” defense counsel declared his readiness for trial and argued that the ensuing delay for the DNA testing should be chargeable to the People. On June 5, 2009, defendant consented to the taking of an oral swab and on November 13, 2009, the People produced the DNA report.

Defendant moved to dismiss the indictment pursuant to CPL 30.30, arguing that “[t]he People waited one year and four months to begin a DNA analysis of an object . . . three of their witnesses claimed he possessed,” that the delay was “without justification,” and that a period in excess of six months had elapsed, violating defendant’s right to a speedy trial. The People opposed the motion citing various CPL 30.30 (4) exceptions, including CPL 30.30 (4) (g), asserting that the period of delay attributable to the DNA testing was an exceptional circumstance under the statute. On June 9, 2010, the court denied defendant’s CPL 30.30 motion without a hearing, finding a relevant portion of the period at issue excludable under CPL 30.30 (4) (g). Defendant was convicted, upon a jury verdict, of criminal possession of a weapon in the second degree (two counts), reckless endangerment in the first degree, and unlawful possession of marijuana.

On appeal, the Appellate Division held that the 161-day period of delay between when defendant consented to the DNA swab (June 5, 2009), and when the People produced a report of the DNA results (November 13, 2009), was chargeable to the People for failing to exercise due diligence in obtaining defendant’s DNA sample (122 AD3d 765, 766 [2d Dept 2014], citing CPL 30.30 [4] [g]). The Appellate Division, upon adding the 161-day period “to the periods of delay correctly conceded by the People,” held that “the People exceeded the six-month period in which they were required to be ready for trial” (*id.*).

* The People moved for discovery under CPL 240.40 to compel the taking of defendant’s DNA sample. Generally, CPL 240.90 provides 45 days after arraignment on the indictment for such a discovery motion by a prosecutor except for “good cause shown” (CPL 240.90 [1]).

The Appellate Division reversed the judgment, on the law, granted defendant's CPL 30.30 motion, and dismissed the indictment. We now affirm.

CPL 30.30, the "so-called 'speedy trial' statute," is a long-standing fixture in our State's prosecution of criminal actions and was specifically intended "to address delays occasioned by prosecutorial inaction" (*People v McKenna*, 76 NY2d 59, 63 [1990]). In 1972, when the legislature enacted CPL 30.30, it was accompanied by a memorandum of the State Executive Department, Crime Control Council which declared "the purpose of the bill [is to] ' . . . promote prompt trials for defendants in criminal cases,' " noting "that '[t]he public, defendants and the victims of crimes all have a strong interest in the prompt trial of criminal cases' " (*People v Anderson*, 66 NY2d 529, 535 n 1 [1985], quoting 1972 McKinney's Session Laws of NY at 3259).

"Pursuant to CPL 30.30 (1) (a), the People must be ready for trial within six months of the commencement of a criminal action accusing a defendant of a felony offense" (*People v Carter*, 91 NY2d 795, 798 [1998]). "CPL 30.30 (4) lists the periods which are to be excluded from the computation of the time within which the People are required to be ready" (*McKenna*, 76 NY2d at 62). CPL 30.30 (4) (g), the statutory provision at issue here, allows the exclusion of "periods of delay occasioned by exceptional circumstances" in obtaining unavailable evidence "material to the people's case, when the district attorney has exercised due diligence to obtain such evidence" (CPL 30.30 [4] [g] [i]).

The time to conduct DNA testing and to produce a DNA report may, under certain circumstances, be excluded from speedy trial computation as an exceptional circumstance. To invoke the exclusion provided in CPL 30.30 (4) (g), however, the People must exercise due diligence in obtaining the evidence. If the exclusion "is to be given reasonable effect and . . . is to fulfill the legislative purpose, [it] must be limited to instances in which the prosecution's inability to proceed is justified by the purposes of the investigation and credible, vigorous activity in pursuing it" (*People v Washington*, 43 NY2d 772, 774 [1977]). In addition, while we have recognized that " '[t]here is no precise definition of what constitutes an exceptional circumstance under CPL 30.30 (4) (g),' " we have stated "that the range of the term's application is limited by the dominant legislative intent informing CPL 30.30, namely,

to discourage prosecutorial inaction” (*People v Price*, 14 NY3d 61, 64 [2010], quoting *People v Smietana*, 98 NY2d 336, 341 [2002]).

Here, as a result of the People’s inaction in obtaining defendant’s DNA exemplar, the 161-day period of delay to test the DNA and to produce the DNA report was not excludable from speedy trial computation as an exceptional circumstance.

The People argue that it was OCME’s obligation to affirmatively inform them that there was DNA evidence from the gun swabs available for comparison and that OCME did not, until May 2009, provide the People with the February 2008 report indicating that DNA had been recovered. The People also argue as justification for their inaction that they were not aware of OCME’s LCN (low copy number) DNA testing on the gun swabs as it was a new advance in scientific technology. Therefore, the argument goes, they had no affirmative obligation—despite their discovery obligations under CPL article 240 (see generally *People v DaGata*, 86 NY2d 40 [1995]) and their repeated declarations of readiness for trial on the record—to diligently ascertain the existence of all the laboratory reports of scientific tests performed at the request of law enforcement on the gun swabs from OCME. These proffered explanations do not justify the prosecutorial inaction in this case. It is the People alone who have the burden of proof of showing that they exercised due diligence sufficient to exclude the delay (see *People v Berkowitz*, 50 NY2d 333, 349 [1980]), and that burden was not sustained here.

There is no reasonable excuse for the People’s delay in seeking a court order for defendant’s DNA exemplar. The weapon was promptly submitted to OCME by law enforcement for examination and the People waited until May 2009, almost nine months after the indictment, to ask OCME what results, if any, were obtained from the scientific testing performed on the gun swabs. CPL 30.30 is a People-ready rule, and the Appellate Division correctly held that the prosecutorial inaction in this case contravenes CPL 30.30.

Accordingly, the order of the Appellate Division should be affirmed.

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order affirmed.

[64 NE3d 952, 41 NYS3d 723]

In the Matter of RAFAEL CORTORREAL, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Argued September 13, 2016; decided October 25, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 18, 2014. The Appellate Division affirmed a judgment (denominated decision and order) of the Supreme Court, Albany County (Raymond J. Elliott, J.), which had dismissed the petition in a proceeding pursuant to CPLR article 78 to review a determination finding petitioner guilty of violating certain prison disciplinary rules.

Matter of Cortorreal v Annucci, 123 AD3d 1337, reversed.

HEADNOTES

Prisons and Prisoners — Discipline of Inmates — Right to Present Witnesses — Requested Witness's Refusal to Testify

1. As a general rule, when a requested inmate witness refuses to testify at a prison disciplinary hearing, a simple statement by the inmate on a refusal form that he or she does not want to be involved or does not wish to testify is sufficient to protect the requesting inmate's right to call that witness. Accordingly, in a proceeding to review a determination that found petitioner inmate guilty of violating certain prison disciplinary rules, petitioner's right to call witnesses was not denied where three inmates from whom petitioner requested testimony wrote, next to a preprinted "I do not want to be involved" option on their refusal forms, the words "I do not wish to testify" or similar language. Though an inmate's right to call witnesses is denied when a requested inmate witness refuses to testify and the record does not reflect any reason for the refusal or that any inquiry was made of him or her as to why he or she refused or that the hearing officer communicated with the inmate to verify his or her refusal, a refusing inmate witness provides a reason by stating that he or she does not wish to testify, which clarifies that the inmate will not testify because he or she does not wish to, and not because he or she is under compulsion or threat. Forcing a requested inmate witness to come up with an explanation that is judged substantial enough would be an unwise exercise. Rather, a hearing officer's focus should be on whether the manner of refusal signifies coercion.

Prisons and Prisoners — Discipline of Inmates — Right to Present Witnesses — Meaningful Inquiry into Witness Coercion

2. When a hearing officer in a prison disciplinary hearing is presented with an affidavit in which a refusing inmate witness claims that he or she was coerced into refusing to testify at the hearing or in a related proceeding, the hearing officer has an obligation to undertake a meaningful inquiry into the allegation, either through an in-person or telephone interview of the witness

or through a suitably briefed correction officer, depending on the circumstances surrounding the allegation. Accordingly, in a proceeding to review a determination after a rehearing that found petitioner inmate guilty of violating certain prison disciplinary rules, petitioner's right to call witnesses at the rehearing was violated where the hearing officer failed to make a meaningful inquiry, either personally or through a correction officer, into an allegation made in a sworn affidavit by an inmate witness refusing to testify that at the time of the first hearing a named correction officer told him "that it would not be a good thing" to testify for petitioner, and that the officer had made this communication "in an aggressive manner meant to intimidate." The record contained no indication that the hearing officer or anyone testifying before the hearing officer asked the refusing inmate witness whether his refusal to testify at the rehearing was influenced by a prior threat or intimidation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Penal and Correctional Institutions §§ 127–129.
NY JUR 2d, Penal and Correctional Institutions §§ 187, 192–194

ANNOTATION REFERENCE

See ALR Index under Prisons and Prisoners.

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POINTS OF COUNSEL

Karen L. Murtagh, Prisoners' Legal Services of New York, Albany (Matthew P. McGowan of counsel), for appellant. I. The holding of *Matter of Barnes v LeFevre* (69 NY2d 649 [1986]) that a prisoner's right to call witnesses is violated if there is no reason, nor any inquiry into the reason, for a witness's refusal to testify is not contingent upon whether a requested inmate witness initially agrees to testify prior to refusing to do so. (*Wolff v McDonnell*, 418 US 539; *Matter of Crowley v O'Keefe*, 148 AD2d 816, 74 NY2d 613; *Matter of Hill v Selsky*, 19 AD3d 64; *Matter of Abdur-Raheem v Prack*, 98 AD3d 1152; *Matter of Codrington v Mann*, 174 AD2d 868; *Matter of Tafari v Fischer*, 78 AD3d 1405; *Matter of Tafari v Fischer*, 82 AD3d 1430, 17 NY3d 702; *Matter of Silva v Scully*, 138 AD2d 717; *Matter of Tulloch v Fischer*, 90 AD3d 1370; *Matter of Jamison v Fischer*, 119 AD3d 1306.) II. An allegation that a witness in a prison

disciplinary hearing has been coerced by staff to refrain from testifying in a substantially related proceeding requires meaningful, personal inquiry by the hearing officer into the allegation. (*Matter of Codrington v Mann*, 174 AD2d 868; *Matter of Delgado v Fischer*, 100 AD3d 1171; *Matter of Brodie v Selsky*, 203 AD2d 671.)

Eric T. Schneiderman, Attorney General, Albany (Andrea Oser, Barbara D. Underwood and Julie M. Sheridan of counsel), for respondent. I. Any error with respect to petitioner's right to call witnesses was harmless because petitioner did not establish that the testimony he sought to present would have been material and non-redundant. (*Wolff v McDonnell*, 418 US 539; *Matter of Hill v Selsky*, 19 AD3d 64; *Silva v Casey*, 992 F2d 20; *Matter of Jones v Fischer*, 102 AD3d 1025; *Matter of Davis v Goord*, 46 AD3d 955, 10 NY3d 821.) II. The hearing officer had no duty of further inquiry as to inmate witnesses Vargas, Butler and Harris because the record provided adequate means to judge the authenticity and voluntariness of their refusals to testify. (*Wolff v McDonnell*, 418 US 539; *Ponte v Real*, 471 US 491; *Matter of Laureano v Kuhlmann*, 75 NY2d 141; *Matter of Hill v Selsky*, 19 AD3d 64; *Silva v Casey*, 992 F2d 20; *Matter of Barnes v LeFevre*, 69 NY2d 649; *Matter of Procopio v Fischer*, 100 AD3d 1292; *Matter of Barca v Fischer*, 80 AD3d 1038, 16 NY3d 711; *Matter of Reynoso v Fischer*, 67 AD3d 1166, 14 NY3d 767; *Matter of Tafari v Fischer*, 78 AD3d 1405.) III. The hearing officer was not required to personally interview inmate Blackman to satisfy any duty of further inquiry. (*Matter of Delgado v Fischer*, 100 AD3d 1171; *Matter of Codrington v Mann*, 174 AD2d 868.)

OPINION OF THE COURT

FAHEY, J.

A hearing officer presiding at an inmate's disciplinary hearing violates the inmate's right to call witnesses by failing to undertake a meaningful inquiry into a requested witness's allegation that the witness had been coerced into refusing to testify in a related proceeding.

I.

While he was incarcerated at Sing Sing Correctional Facility, petitioner Rafael Cortorreal was employed as a building porter. On July 25, 2012, a correction officer found marihuana hidden in a waste container outside the building where petitioner

worked. The officer had been searching for the contraband after receiving tips from two confidential informants implicating petitioner.

The correction officer completed an inmate misbehavior report alleging that petitioner had violated two standards of inmate behavior under 7 NYCRR 270.2. On August 23, 2012, a tier III disciplinary hearing was held at Sing Sing, and petitioner was found guilty of both charges. The decision was reversed, however, on administrative appeal, on the ground that “a potentially relevant witness was not properly addressed through testimony or denial.”

By the winter, petitioner had been transferred to Southport Correctional Facility. There, a rehearing commenced before a hearing officer on December 5, 2012. The correction officer who had charged petitioner testified that, as a building porter, petitioner had been given unsupervised access to the area where the marijuana had been found, and that other inmates would not have had such unmonitored access.

Petitioner pleaded not guilty, claiming that the confidential informants had fabricated their allegations, and that any number of inmates could have placed the marijuana outside the building. Petitioner requested testimony from 10 inmate witnesses. Eight refused to testify, completing “Requested Inmate Witness Refusal To Testify” forms. Five of these wrote short explanations, next to a preprinted “I do not want to be involved” option, generally to the effect that they had no knowledge of the situation. The remaining three inmates wrote, next to the same preprinted option, the words “I do not wish to testify” or similar language. (The other two requested inmate witnesses are not pertinent to this appeal.)

On December 21, 2012, the hearing officer showed the refusal forms to petitioner and read them to him because petitioner had some difficulty reading English. Petitioner asked the hearing officer to confirm “personally” that the eight refusing inmates were not willing to testify; the hearing officer declined.

On the same date, the hearing officer accepted into evidence a sworn affidavit by one of the refusing inmate witnesses, whose testimony petitioner had also requested at the August hearing. In the affidavit, the refusing inmate stated that at the time of the first hearing a named correction officer at Sing Sing had told him “that it would not be a good thing” to testify for petitioner, and that the officer had made this communication

“in an aggressive manner meant to intimidate.” The inmate also stated in the affidavit that he had been “told” what to write on the refusal form he had signed in August.

The hearing officer did not contact the inmate, nor did he contact the correction officer who had allegedly coerced the inmate. Instead, the hearing officer took testimony from the correction officer who had been present on December 17, 2012, when the inmate signed a refusal form with respect to the rehearing. That officer testified that he had not coerced the inmate, that he had not witnessed any coercion, and that the inmate had not mentioned any prior intimidation.

At the conclusion of the rehearing, the hearing officer found petitioner guilty of violating the two prison disciplinary rules and imposed a penalty of 12 months’ punitive confinement in a special housing unit. The Department of Corrections and Community Supervision (DOCCS) affirmed the hearing disposition on administrative appeal.

Petitioner commenced this CPLR article 78 proceeding against the Acting Commissioner of DOCCS, challenging the determination. He argues that the three refusal forms stating only that the requested inmate did not wish to testify failed to supply a reason for refusal to testify, as required by our case law. Petitioner also contends that the hearing officer failed to conduct adequate inquiry into the allegation of coercion. Supreme Court dismissed the petition. The Appellate Division affirmed (*Matter of Cortorreal v Annucci*, 123 AD3d 1337 [3d Dept 2014]).

We granted petitioner leave to appeal and now reverse.

II.

An inmate at a prison disciplinary hearing retains the constitutional right to procedural due process, “implemented by the prison regulations in this State” (*Matter of Laureano v Kuhlmann*, 75 NY2d 141, 146 [1990]). Specifically, an “inmate may call witnesses on his [or her] behalf provided their testimony is material, is not redundant, and doing so does not jeopardize institutional safety or correctional goals” (7 NYCRR 254.5 [a]; see *Wolff v McDonnell*, 418 US 539, 566 [1974]). In *Matter of Barnes v LeFevre* (69 NY2d 649 [1986]), interpreting 7 NYCRR 254.5, we held that when a requested witness refuses to testify and

“the record does not reflect any reason for the . . . refusal to testify, or that any inquiry was made of him [or her] as to why he [or she] refused or that the hearing officer communicated with the witness to verify his [or her] refusal to testify, there has been a denial of the inmate’s right to call witnesses as provided in the regulations” (*Barnes*, 69 NY2d at 650).

[1] The parties do not dispute that when a requested inmate witness steadfastly refuses to testify, a “witness refusal form signed by the inmate indicating the reason he [or she] would not testify adequately protect[s] petitioner’s right” to call witnesses (*Matter of Jamison v Fischer*, 119 AD3d 1306, 1306 [3d Dept 2014]; see also e.g. *Matter of Tulloch v Fischer*, 90 AD3d 1370, 1371 [3d Dept 2011]). Petitioner contends, however, that an inmate who, in refusing to testify, adds no substantive explanation to the printed “I do not want to be involved” line, but merely repeats the same idea in different language or writes “I do not wish to testify,” has not given a “reason” for refusal to testify within the meaning of *Barnes* and its progeny.¹ We disagree.

When a requested inmate witness states that he or she is refusing to testify because he or she does not want to get involved or does not wish to testify, the inmate is giving a reason under *Barnes*. As this Court emphasized in its decision, the record in *Barnes* did not reflect “any reason” for the refusal (69 NY2d at 650). We did not suggest that some reasons, and not others, are adequate. The fact that an explanation is minimal does not make it any less of a reason. When a refusing inmate witness states that he or she does not wish to testify, that is providing a reason. The statement clarifies that the inmate will not testify because he or she does not wish to, and not because he or she is under compulsion or threat. Saying one will not testify because one does not wish to testify is not a redundancy or tautology.

Moreover, the subjective response of an inmate, faced with a request that he or she testify at another inmate’s disciplinary hearing, is likely to be somewhat inchoate. The inmate’s reason for not wishing to testify may ultimately be simply the desire to avoid becoming entangled in another prisoner’s affairs. Forcing an inmate to come up with an explanation that is judged

1. Petitioner does not challenge the refusals of those inmates who added words to the effect that they had no knowledge of the incident.

substantial enough would be an unwise exercise. Rather, a hearing officer's focus should be on whether the manner of refusal signifies coercion.

We hold that, as a general rule, when a requested inmate witness refuses to testify, a simple statement by the inmate on a refusal form that he or she does not want to be involved or does not wish to testify is sufficient to protect the requesting inmate's right to call that witness.²

III.

Petitioner's second argument is based on the hearing officer's response to the allegation by one requested inmate witness of coercion at the time of the first hearing. Petitioner contends that the hearing officer's inquiry was so inadequate as to violate his right to "call witnesses on his behalf" (7 NYCRR 254.5 [a]; see *Wolff*, 418 US at 566).

When a hearing officer in a prison disciplinary hearing is presented with an affidavit in which a refusing inmate witness claims that he or she was coerced into refusing to testify at the hearing or in a related proceeding, the hearing officer has an obligation to undertake a meaningful inquiry into the allegation. As respondent concedes, when there is a "claim of coercion, . . . the Hearing Officer ha[s] a duty to inquire further into [the] refusal to testify" (*Matter of Delgado v Fischer*, 100 AD3d 1171, 1172 [3d Dept 2012]). Whether such an inquiry will require an in-person or telephone interview of the refusing inmate by the hearing officer or may instead proceed through the intermediary of a suitably briefed correction officer will depend on the circumstances surrounding the allegation.

[2] Here, the hearing officer failed to make a meaningful inquiry, either personally or through a correction officer, into the allegation of coercion by the refusing inmate witness. Notably, the correction officer who had interviewed the refusing inmate witness in December 2012 with regard to whether he would testify at the rehearing was not the officer who had

2. We have no occasion in this appeal to consider the different rule applied by the Appellate Division in cases where an inmate agrees to testify and later changes his or her mind (compare *Matter of Abdur-Raheem v Prack*, 98 AD3d 1152, 1153 [3d Dept 2012], *Matter of Hill v Selsky*, 19 AD3d 64, 67 [3d Dept 2005], and *Matter of Codrington v Mann*, 174 AD2d 868, 869 [3d Dept 1991], with *Jamison*, 119 AD3d at 1306, *Tulloch*, 90 AD3d at 1371, and *Matter of Tafari v Fischer*, 78 AD3d 1405, 1406 [3d Dept 2010], *lv denied* 16 NY3d 704 [2011]). It is sufficient for us to note that there is no inconsistency between our holding and those cases.

spoken with the inmate in the summer of 2012 with regard to the original hearing. Moreover, there is no evidence in the record that the interviewing officer was aware, at the time of the December 2012 interview, of the affidavit alleging earlier coercion. It was brought to the hearing officer's attention only after the correction officer had interviewed the inmate. The correction officer would have had no reason to investigate the allegation during the interview or elicit the inmate's recollections with respect to the matter. In short, the record contains no indication that the hearing officer or anyone testifying before the hearing officer asked the inmate whether his refusal to testify at the rehearing was influenced by a prior threat or intimidation.

In these circumstances, the hearing officer failed to determine, in a meaningful manner, whether the inmate's refusal to testify at the rehearing was because of intimidation at the time of the first hearing. Respondent notes that the inmate witness who alleged intimidation had been transferred from Sing Sing to a distant correctional facility by the time of the rehearing, making it less likely that any prior threat would influence him. We cannot accept that a transfer from one DOCCS facility to another would eliminate the taint of any coercion that occurred. In all, the hearing officer failed to undertake the required meaningful effort to determine whether the failure to testify was the product of coercion.

For these reasons, we conclude that a violation of petitioner's right to call witnesses occurred and the lower courts erred in dismissing his article 78 petition.

IV.

The parties do not contest the remedy upon reversal. Petitioner seeks the remedy of expungement. For its part, respondent concedes that no fair rehearing is now possible and does not seek remittal for a new hearing in the event of a reversal.

Accordingly, the order of the Appellate Division should be reversed, without costs, the petition granted, respondent's determination annulled, and respondent directed to expunge all references to the proceeding from petitioner's files.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam and Garcia concur; Judge Stein taking no part.

Order reversed, without costs, petition granted, respondent's determination annulled and respondent directed to expunge all references to the proceeding from petitioner's files.

[64 NE3d 284, 41 NYS3d 464]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
HENDERSON, Appellant.

Argued September 6, 2016; decided October 25, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 10, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Michael A. Gary, J.), which had convicted defendant, upon a jury verdict, of rape in the first degree and criminal sexual act in the first degree (two counts).

People v Henderson, 120 AD3d 1258, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Statutory Speedy Trial Motion — Claim That People Failed to Act with Due Diligence in Securing DNA Testing

In a prosecution for rape and sexual assault in which defendant was charged with acting in concert with multiple accomplices, defendant was not denied effective assistance of counsel based on his trial counsel's failure to argue that two adjournments totaling 86 days were chargeable to the People due to their alleged failure to act with due diligence in securing DNA testing. Defendant's claim that the People did not exercise due diligence was based on the supposition that the People did not seek testing of fingernail screens as part of, or at the same time as, the sexual assault evidence collection kit and instead permitted the medical examiner to do sequential testing of the evidence after defendant had been excluded from the semen sample. In essence, defendant contended that had defense counsel argued that those delays were chargeable to the People, the indictment would have been dismissed. However, there was nothing in the record to demonstrate that the People were not diligent in requesting DNA testing on the evidence or that the manner in which the DNA testing was conducted was inconsistent with standard laboratory protocols. Moreover, at the time of defendant's CPL 30.30 motion, there already was Appellate Division authority holding that the period of time needed to obtain the results of DNA testing could be excluded from speedy trial computation as an exceptional circumstance under CPL 30.30 (4) (g).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 933, 937, 1111–1116.
CARMODY-WAIT 2d, Right to Counsel §§ 184:161, 184:162,
184:241; CARMODY-WAIT 2d, Timeliness of Prosecution;
Speedy Trial §§ 186:103, 186:108.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 18.3.

McKINNEY'S, CPL 30.30 (4) (g).

NY JUR 2d, Criminal Law: Procedure §§ 909, 1905, 1954.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Speedy Trial.

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Query: effective /4 counsel & "speedy trial" & diligen!

POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Leila Hull* of counsel), for appellant. Defense counsel failed to provide meaningful representation and the effective assistance of counsel when he filed a motion to dismiss the indictment on speedy trial grounds, but failed to argue that the People must be charged for delays directly caused by their dilatory decision to permit the DNA evidence to be tested in stages. (*Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137; *People v Harris*, 82 NY2d 409; *People v Beasley*, 16 NY3d 289; *People v McKenna*, 76 NY2d 59; *Henry v Poole*, 409 F3d 48; *People v Benevento*, 91 NY2d 708; *People v Rivera*, 71 NY2d 705; *Murray v Carrier*, 477 US 478; *People v Caban*, 5 NY3d 143.)

Eric Gonzalez, Acting District Attorney, Brooklyn (*Ann Bordley* and *Leonard Joblove* of counsel), for respondent. I. Defendant received effective representation from his trial attorney. (*People v Keschner*, 25 NY3d 704; *People v McGee*, 20 NY3d 513; *Yarborough v Gentry*, 540 US 1; *Harrington v Richter*, 562 US 86; *Strickland v Washington*, 466 US 668; *People v Hobot*, 84 NY2d 1021; *People v Stultz*, 2 NY3d 277; *People v Oathout*, 21 NY3d 127; *People v Blake*, 24 NY3d 78; *People v Vasquez*, 20 NY3d 461.) II. Defense counsel's litigation of the CPL 30.30 motion was not ineffective. (*People v Keschner*, 25 NY3d 704; *People v Blake*, 24 NY3d 78; *People v Borrell*, 12 NY3d 365; *People v Turner*, 5 NY3d 476; *People v McGee*, 20 NY3d 513; *People v Carter*, 7 NY3d 875; *People v Thompson*, 21 NY3d 555; *People v Vasquez*, 20 NY3d 461; *People v Brunner*, 16 NY3d 820; *People v Baker*, 14 NY3d 266.)

OPINION OF THE COURT

Chief Judge DiFiore.

After a jury trial, defendant was convicted of rape in the first degree and criminal sexual act in the first degree (two counts).

Prior to trial, defendant filed a CPL 30.30 motion to dismiss the indictment on the ground that he was deprived of his statutory right to a speedy trial. The trial court, as relevant here, excluded the periods of delay for the DNA testing process as exceptional circumstances under CPL 30.30 (4) (g) and denied defendant's speedy trial motion without a hearing. Defendant claims on direct appeal that he was denied effective assistance of counsel because his trial counsel's motion to dismiss the indictment on CPL 30.30 grounds failed to argue that the People should be charged for certain periods of delay due to the testing of the DNA evidence by the Office of Chief Medical Examiner (OCME) in successive stages. The record does not support defendant's contention.

Defendant was charged with acting in concert with multiple accomplices in a sexual assault. As the People explained at defendant's arraignment on the indictment on January 7, 2009, OCME had generated one full male DNA profile from the sexual assault evidence collection kit and extra alleles were found on the semen samples from the victim's jeans. Defendant then consented to provide his DNA exemplar. On June 24, 2009, the People stated that OCME had not yet finished its final report but reported that it was "a no-match." The case was adjourned to August 13, 2009 for a final conference, and on that date, the People reported that OCME did not have its final report and had not reported the results of the DNA analysis. After inquiry from the court, the People explained that after receiving the testing results from the semen sample, additional testing had been performed on the fingernail screens.

As we have previously stated, "[v]ery rarely, a single lapse by otherwise competent counsel compels the conclusion that a defendant was deprived of his constitutional right to effective legal representation" (*People v Turner*, 5 NY3d 476, 478 [2005]). In *People v Brunner* (16 NY3d 820 [2011]), a case where defense counsel failed to file a CPL 30.30 motion entirely, we held that defendant's ineffective assistance of counsel claim failed as there was "nothing clear cut about his CPL 30.30 claim" and "the governing law was unfavorable" (16 NY3d at 821).

Here, defendant argues that he was denied effective assistance of counsel because his trial counsel failed to argue that the June 24, 2009 and August 13, 2009 adjournments, totaling 86 days, were chargeable to the People due to their alleged failure to act with due diligence in securing DNA testing

(see CPL 30.30 [4] [g]). Defendant's claim that the People did not exercise due diligence is based on the supposition that the People did not seek testing of the fingernail screens as part of, or at the same time as, the sexual assault evidence collection kit and instead permitted OCME to do sequential testing of the evidence after defendant had been excluded from the semen sample. In essence, defendant contends that had defense counsel argued that those delays were chargeable to the People under CPL 30.30, the indictment would have been dismissed.

On this record, defense counsel was not ineffective for failing to raise the argument that the People were not acting with due diligence, as there is nothing in the record to demonstrate that the People were not diligent in requesting DNA testing on the evidence or that the manner in which the DNA testing was conducted by OCME was inconsistent with standard laboratory protocols. In addition, at the time of defendant's CPL 30.30 motion, there already was Appellate Division authority holding that the period of time needed to obtain the results of DNA testing could be excluded from speedy trial computation as an exceptional circumstance (see e.g. *People v Robinson*, 47 AD3d 847 [2d Dept 2008], *lv denied* 10 NY3d 869 [2008]).

In sum, defendant's assumptions as to the protocols for successive DNA testing are based on matters outside the record and beyond review on this appeal. The ineffective assistance of counsel claim that defendant presents to this Court is of the type where "it would be better, and in some cases essential, that an appellate attack on the effectiveness of counsel be bottomed on an evidentiary exploration by collateral or post-conviction proceeding brought under CPL 440.10" (*People v Brown*, 45 NY2d 852, 854 [1978]).

Accordingly, the order of the Appellate Division should be affirmed.

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order affirmed.

[64 NE3d 286, 41 NYS3d 466]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES
K. WILSON, Appellant.

Argued September 8, 2016; decided October 25, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered September 26, 2014. The Appellate Division order, insofar as appealed from, affirmed a judgment of the Monroe County Court (Stephen R. Sirkin, J.) to the extent it had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts), burglary in the first degree (three counts), assault in the first degree (two counts) and assault in the second degree.

People v Wilson, 120 AD3d 1531, affirmed.

HEADNOTE

Crimes — Confession — Voluntary Nature of Statements — Use by People for Impeachment Purposes

County Court did not abuse its discretion in denying defendant's motion to preclude the People from using defendant's statements to police, made after he had invoked his *Miranda* rights and determined by County Court to be voluntary, on cross-examination or rebuttal for impeachment purposes should defendant choose to testify. If a statement made by the defendant to the police is voluntary, it may be used for impeachment purposes; but if a statement is involuntary, it will not be admissible, even if it may be deemed reliable. A rule rendering inadmissible for impeachment purposes any statement elicited by law enforcement after the defendant invokes the right to remain silent would effectively sanction perjury on the part of a testifying defendant by permitting the defendant to offer testimony that is inconsistent or at odds with the defendant's prior statements. The investigator who read defendant his *Miranda* rights acknowledged that he understood that defendant's post-*Miranda* statements could not be used by the People in their case-in-chief but could be utilized by the People for impeachment purposes. However, there was nothing in the record to support the contention that the investigator consciously circumvented defendant's invocation of his Fifth Amendment rights or otherwise rendered defendant's statements involuntary as a matter of law.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 895, 905; AM JUR 2d, Evidence §§ 609, 715, 726, 738, 740, 744–747, 756–759, 764, 767; AM JUR 2d, Witnesses §§ 833, 866, 868.

CARMODY-WAIT 2d, Confessions; Privilege Against Self-Incrimination §§ 176:10, 176:20, 176:92, 176:100, 176:103; CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:253–194:254, 194:266; CARMODY-WAIT 2d, Testimony of Witnesses §§ 195:140, 195:172.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 2.9–2.10, 6.2, 6.5–6.10, 9.1, 9.4–9.6, 10.5, 20.6.

NY JUR 2d, Criminal Law: Procedure §§ 541, 550, 611, 619, 626, 2095, 2097, 2293–2294, 2356, 2426–2428.

US Const 5th Amend.

ANNOTATION REFERENCE

Propriety of Using Otherwise Inadmissible Statement, Taken in Violation of *Miranda* Rule, to Impeach Criminal Defendant's Credibility—State Cases. 42 ALR6th 237.

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Query: Miranda! /5 confess! or state! & cross! /s impeach!

POINTS OF COUNSEL

Charles T. Noce, Conflict Defender, Rochester (Kathleen P. Reardon of counsel), for appellant. I. *Miranda's* bright-line rule disallowing police misconduct to procure evidence unlawfully from a suspect despite invocation of his constitutional right against self-incrimination must be reinstated so that impeachment of a suspect with those post-invocation statements is prohibited. (*People v Maerling*, 64 NY2d 134; *Harris v New York*, 401 US 222; *Mincey v Arizona*, 437 US 385; *New Jersey v Portash*, 440 US 450; *Oregon v Hass*, 420 US 714; *People v Padron*, 134 AD2d 625; *Oregon v Elstad*, 470 US 298; *Missouri v Seibert*, 542 US 600; *Edwards v Arizona*, 451 US 477; *Minnick v Mississippi*, 498 US 146.) II. The identification procedures were suggestive and tainted and should have resulted in suppression of identification evidence. (*People v Green*, 107 AD3d 915; *People v Hall*, 81 AD2d 644; *People v Tindal*, 69 AD2d 58; *People v Sheirot*, 124 AD2d 14; *People v Cosme*, 125 AD2d 485; *People v Jones*, 171 AD2d 757; *People v Ballott*, 20 NY2d 600; *People v Racine*, 28 Misc 3d 1223[A], 2010 NY Slip Op 51440[U]; *Wong Sun v United States*, 371 US 471; *United States v Wade*, 388 US 218.)

Sandra Doorley, District Attorney, Rochester (Robert J. Shoemaker of counsel), for respondent. I. Defendant's statements

could be used against him on cross-examination or rebuttal because they were voluntarily made. (*Harris v New York*, 401 US 222; *People v Maerling*, 64 NY2d 134; *People v Reid*, 19 NY3d 382; *People v Washington*, 51 NY2d 214; *People v Curtis*, 286 AD2d 900; *People v Cole*, 100 AD2d 442; *United States v Gilkeson*, 431 F Supp 2d 270; *Edwards v Arizona*, 451 US 477; *People v Tavaréz*, 16 AD3d 164; *Matter of Jimmy D.*, 15 NY3d 417.) II. The multiple identification procedures were not suggestive. (*People v Ervin*, 5 AD3d 316, 3 NY3d 639; *People v Morgan*, 96 AD3d 1418, 20 NY3d 987; *People v Rodriguez*, 64 NY2d 738; *People v Johnson*, 52 AD3d 1286, 11 NY3d 738; *People v Jones*, 125 AD2d 333, 69 NY2d 829; *People v Malphurs*, 111 AD2d 266, 66 NY2d 616; *People v Greene*, 36 AD3d 219, 9 NY3d 277; *People v Bolling*, 148 AD2d 622, 74 NY2d 947; *People v Hall*, 81 AD2d 644; *People v Moore*, 202 AD2d 1046, 84 NY2d 830.)

OPINION OF THE COURT

PIGOTT, J.

In *People v Harris* (25 NY2d 175 [1969], *affd* 401 US 222 [1971]), this Court held that a statement obtained in violation of a defendant's rights under *Miranda v Arizona* (384 US 436 [1966]) may be utilized for impeachment purposes on the cross-examination of a defendant whose testimony is inconsistent with the illegally obtained statement (*see Harris*, 25 NY2d at 177; *see also People v Johnson*, 27 NY2d 119, 121-122 [1970], *cert denied* 401 US 966 [1971]; *People v Kulis*, 18 NY2d 318 [1966]). In this appeal, defendant advocates for a bright-line rule that would preclude the People from utilizing on cross-examination or rebuttal *any* statement provided by the defendant to the police after the defendant refuses to waive his *Miranda* rights. We decline defendant's invitation to adopt such a rule, and affirm the order of the Appellate Division.

I.

On September 14, 2006, at approximately 9:00 p.m., complainant and three children were entering a home they shared when they were confronted by two armed men. The men demanded that complainant empty his pockets. Although complainant complied, one of the intruders shot him and one of the children. The intruders took complainant's wallet and car keys and fled the house. One of the children locked the door, but an unidentified individual returned, kicked in the front door to gain entry, and shot complainant twice in the head.

Two days after the incident, Investigator Matthew Hill showed a photo array to one of the child witnesses. The child pointed to a photo of defendant and stated that “it kind of looks like him.” Five days later, Hill showed the same witness a different array containing a more up-to-date photograph of defendant, and the child pointed to the photo and said, “that looks just like him.”

On October 11, 2006, Hill prepared a photo array that was shown to complainant, who had since come out of a coma. The photo array utilized the up-to-date photo of defendant. Complainant identified defendant as one of the intruders. Approximately two weeks later, police took defendant into custody. The child witness who had previously identified defendant from the photo array viewed a six-person lineup and identified defendant as one of the armed intruders. Defendant was transported to the public safety building for further questioning.

Prior to interviewing defendant, Hill read defendant his *Miranda* rights. Defendant stated that he understood the rights and exercised his right not to speak with Hill. At that point, Hill told defendant that he was being charged for the shootings that had occurred on September 14, 2006. According to Hill, defendant “acted surprised like he didn’t know what [Hill] was talking about,” so Hill apprised defendant of the charges and of the fact that he was being charged with a co-defendant. Investigator Brian Tucker, who was also in the interview room, asked defendant if he knew the codefendant, and defendant responded that he did not. Defendant again “acted surprised,” so Hill stated, “well, you must know what I’m talking about because this guy [the codefendant] . . . had shot himself at some point after this incident.” At that point, defendant stated that the codefendant had not shot himself because “nobody shoots themselves there like that” and acknowledged that he knew codefendant.

In an 11-count indictment, defendant and codefendant were charged with attempted murder in the second degree and various assault, robbery and burglary counts. The People served a CPL 710.30 notice upon defendant concerning defendant’s post-*Miranda* statements. As relevant here, defendant moved for a *Huntley/Wade* hearing seeking suppression of defendant’s statements and the witness identifications. The People withdrew their CPL 710.30 notice and stipulated that they would utilize defendant’s statements only for cross-examination purposes

should defendant choose to testify. In response, defendant moved to convert his suppression motion to a preclusion motion, arguing that should defendant opt to testify, the People should be precluded from using the statements he made to police for impeachment purposes because they were obtained in violation of a constitutional right.

At a hearing on the issue, Hill and Tucker testified as to the substance of defendant's post-*Miranda* statements. Defense counsel argued that it was the "plan or design" of the police to knowingly continue to question defendant after he had invoked his *Miranda* rights so as to preclude defendant from taking the stand. Defense counsel claimed that if it could be shown that the investigators continued interrogating defendant in bad faith, then the People could not use any evidence from that impropriety on cross-examination or rebuttal. County Court permitted defense counsel to question the investigators about the circumstances surrounding the making of the statements. During that testimony, Hill acknowledged that once defendant invoked his Fifth Amendment rights, he knew that defendant did not wish to speak. Hill also stated that he knew that once a defendant invokes such rights anything the defendant states may not be used on direct examination, but that statements obtained after the invocation of *Miranda* could be used on cross-examination or rebuttal. County Court, finding defendant's statements to have been voluntarily made, denied defendant's motion to preclude the People's use of the statements on cross-examination or rebuttal.

The matter proceeded to trial. Defendant did not testify or call any witnesses. He was ultimately convicted of, among other things, attempted murder in the second degree, and sentenced to an aggregate term of 50 years. The Appellate Division modified by reversing that part of the judgment convicting defendant of attempted murder in the second degree, dismissing the ninth count of the amended indictment and ordering the sentences on the remaining counts to run concurrently as to each other (resulting in an aggregate sentence of 25 years), and otherwise affirmed (120 AD3d 1531, 1532 [4th Dept 2014]). As relevant here, the Appellate Division held that County Court "did not err in determining that defendant's statements to the police during a brief exchange, made by defendant after he refused to waive his *Miranda* rights, were voluntary and

thus were admissible for impeachment purposes” (*id.* at 1533 [citations omitted]).*

A Judge of this Court granted defendant leave to appeal (25 NY3d 993 [2015]).

II.

It is undisputed that the statements made by defendant to police were made after he had invoked his *Miranda* rights, and, thus, the People were prohibited from using the statements in their case-in-chief (*see People v Wise*, 46 NY2d 321, 328-329 [1978]; *Harris*, 25 NY2d at 177). Defendant argues that this rule does not go far enough, and advocates for a rule that precludes the People from utilizing post-invocation statements on cross-examination or rebuttal for impeachment purposes should a defendant opt to testify.

This Court has long held that if a statement made by the defendant to the police is voluntary, it may be used for impeachment purposes; but if a statement is involuntary, it will not be admissible, even if it may be deemed reliable (*see People v Maerling*, 64 NY2d 134, 140 [1984]; *People v Walker*, 110 AD2d 730, 732 [2d Dept 1985], *affd for reasons stated* 67 NY2d 776 [1986] [where statements are involuntarily obtained through coercion, such statements are inadmissible for use on cross-examination or rebuttal]).

The rule proposed by defendant would render inadmissible for impeachment purposes *any* statement elicited by law enforcement after the defendant invokes the right to remain silent. The adoption of such a rule, however, would require us to overrule our own decision in *Harris* and its progeny, and would effectively sanction perjury on the part of a testifying defendant by permitting the defendant to offer testimony that is inconsistent or at odds with the defendant’s prior statements (*see Harris*, 401 US at 226; *see also Kulis*, 18 NY2d at 323).

Here, County Court determined that the statements were voluntary and the Appellate Division affirmed that determination. Hill acknowledged that he was aware of the *Harris* deci-

* Defendant also appealed County Court’s determination that the manner in which the photo arrays were shown to complainant and the child witness, and the lineup procedure employed by the police, were not unduly suggestive. The Appellate Division held that County Court did not err in refusing to suppress the identification evidence (120 AD3d at 1532-1533). We have considered defendant’s challenge to that determination and conclude that it is without merit.

sion and understood that defendant's post-*Miranda* statements could not be used by the People in their case-in-chief but could be utilized by the People for impeachment purposes. However, there is nothing in the record to support defendant's contention, in reliance on *People v Nelson* (189 Misc 2d 362, 365 [Monroe County Ct 2001]), that Hill consciously circumvented defendant's invocation of his Fifth Amendment rights or otherwise rendered defendant's statements involuntary as a matter of law. Thus, it cannot be said that County Court abused its discretion in denying defendant's motion to preclude the People from utilizing the statements on cross-examination or rebuttal. Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed.

Chief Judge DiFIORE and Judges RIVERA, ABDUS-SALAAM, STEIN and GARCIA concur; Judge FAHEY taking no part.

Order, insofar as appealed from, affirmed.

[64 NE3d 280, 41 NYS3d 460]

ADAM VILLAR, Respondent, v TIMOTHY B. HOWARD, Erie County Sheriff, Appellant.

Argued September 13, 2016; decided October 25, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered March 20, 2015. The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, Erie County (Shirley Troutman, J.), which had granted defendant's motion to dismiss the complaint. The modification consisted of denying defendant's motion in part and reinstating the complaint except to the extent that it alleged that defendant was vicariously liable for the negligence of his employees. The following question was certified by the Appellate Division: "Was the order of this Court entered March 20, 2015 properly made?"

Villar v Howard, 126 AD3d 1297, affirmed.

HEADNOTES**Municipal Corporations — Notice of Claim — Notice Not Required Where County Not Statutorily Obligated to Indemnify Defendant County Sheriff**

1. The Appellate Division properly concluded that the County had no statutory obligation within the meaning of General Municipal Law § 50-e (1) (b) to indemnify defendant, the County Sheriff, such that plaintiff was not required to serve a notice of claim as a condition precedent to the commencement of his personal injury action against defendant. A decades old County resolution, entitled "Liability Insurance for the Sheriff's Department," did not statutorily obligate the County to indemnify defendant for purposes of section 50-e (1) (b). When read as a whole, the resolution made clear that the County agreed to provide "Liability Insurance" for defendant in exchange for nominal consideration because "policies of law enforcement liability insurance paid for by the County" had become prohibitively expensive. In resolving to act as an insurer, the County recognized that it could not statutorily obligate itself to defend and indemnify defendant, as it had agreed to do for defendant's employees, under the New York State Constitution.

Negligence — Duty — Duty of County Sheriff to Protect County Jail Inmates

2. In an action commenced by plaintiff, a former inmate of the county correctional facility, against defendant, the County Sheriff, arising after plaintiff was sexually assaulted twice in a correctional facility shower stall by another inmate, plaintiff's complaint adequately set forth a negligence claim against defendant sufficient to survive a motion to dismiss, notwithstanding the absence of allegations that defendant was present and failed to prevent the

attacks on plaintiff, or had specific prior knowledge that plaintiff was particularly vulnerable to assault. Defendant—prescribed by law to safely keep inmates of the county jail—is by no means an insurer of inmate safety or required to provide unremitting surveillance in all circumstances. However, having assumed physical custody of inmates, who cannot protect and defend themselves in the same way as those at liberty can, defendant owes a duty of care to safeguard inmates, even from attacks by fellow inmates.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Municipal Corporations, Counties, and Other Political Subdivisions §§ 598, 600, 644, 648; AM JUR 2d, Municipal, County, School, and State Tort Liability § 393; AM JUR 2d, Penal and Correctional Institutions §§ 158, 168–172.

CARMODY-WAIT 2d, Actions and Proceedings by and Against Convicts § 125:16; CARMODY-WAIT 2d, Actions by and Against Public Bodies and Public Officers §§ 144:27, 144:28.

McKINNEY'S, General Municipal Law § 50-e (1) (b).

NY JUR 2d, Government Tort Liability §§ 179, 384, 385.

NEW YORK LAW OF TORTS §§ 17:26, 17:57.

ANNOTATION REFERENCE

See ALR Index under Counties; Notice of Claims; Prisons and Prisoners; Sheriffs.

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POINTS OF COUNSEL

Michael A. Siragusa, County Attorney, Buffalo (Kenneth R. Kirby of counsel), for appellant. I. The plaintiff's failure to serve a notice of claim within 90 days of the alleged incidents or, in lieu thereof, to move for permission to serve a late notice of claim before the expiration of the one-year statute of limitations applicable to the plaintiff's action against Sheriff Timothy B. Howard properly required and requires dismissal of the plaintiff's complaint. (*Goodwin v Pretorius*, 105 AD3d 207; *Rew v County of Niagara*, 73 AD3d 1463; *Cropsey v County of Orleans Indus. Dev. Agency*, 66 AD3d 1361; *Matter of Winkler v Sheriff of Queens County*, 256 App Div 770; *Fonfa v State of New York*, 88 Misc 2d 343; *Clark-Fitzpatrick, Inc. v Long Is.*

R.R. Co., 70 NY2d 382; *Kern v City of New York*, 161 Misc 2d 38; *Mosey v County of Erie*, 117 AD3d 1381; *Hennessey v Robinson*, 985 F Supp 283; *Analisa Salon, Ltd. v Elide Props., LLC*, 46 AD3d 721.) II. The complaint fails to allege facts upon which an actionable duty, owed by the defendant, Sheriff Timothy B. Howard, to the plaintiff Adam Villar, in particular, can be predicated. (*Leon v Martinez*, 84 NY2d 83; *Olszewski v Waters of Orchard Park*, 303 AD2d 995; *Dominski v Frank Williams & Son, LLC*, 46 AD3d 1443; *Donovan v Ficus Invs., Inc.*, 20 Misc 3d 1139[A], 2008 NY Slip Op 51797[U]; *Burke v Warren County Sheriff's Dept.*, 916 F Supp 181; *Kingston v County of Erie*, 122 AD2d 543; *Foyster v Tutuska*, 25 AD2d 940; *Isereau v Stone*, 3 AD2d 243; *Schulik v County of Monroe*, 202 AD2d 960; *Padgett v State of New York*, 163 AD2d 914.) III. The plaintiff's failure to plead facts showing the existence of an actionable special duty owed by Sheriff Timothy B. Howard, in particular, to the plaintiff, in particular, to prevent or protect him from a co-inmate's sexual assaults/rapes subjects the complaint to dismissal pursuant to the "public duty" rule also known as the "governmental function immunity" doctrine. (*Williams v State of New York*, 308 NY 548; *Kircher v City of Jamestown*, 74 NY2d 251; *Trisvan v County of Monroe*, 26 AD3d 875, 6 NY3d 891; *Isereau v Stone*, 207 Misc 941, 3 AD2d 243; *Sachanowski v Wyoming County Sheriff's Dept.*, 244 AD2d 908; *Middleton v Town of Salina*, 108 AD3d 1052; *Valdez v City of New York*, 18 NY3d 69; *Applewhite v Accuhealth, Inc.*, 21 NY3d 420; *Rennix v Jackson*, 43 Misc 3d 1205[A], 2014 NY Slip Op 50499[U]; *Klepanchuk v County of Monroe*, 129 AD3d 1609.) IV. The conduct complained of by the plaintiff is, of necessity or inherently, "discretionary," giving rise to immunity without the need for discovery. (*Donovan v Ficus Invs., Inc.*, 20 Misc 3d 1139[A], 2008 NY Slip Op 51797[U]; *Santoro v Town of Smithtown*, 40 AD3d 736; *Tango v Tulevech*, 61 NY2d 34; *McLean v City of New York*, 12 NY3d 194; *Mosey v County of Erie*, 117 AD3d 1381.) V. The plaintiff's arguments notwithstanding, the Supreme Court correctly found, under the "facts pled," that the plaintiff failed to demonstrate the existence of an actionable legal duty of care owed to him by the defendant. (*Bowman v Campbell*, 193 AD2d 921; *Wilson v Sponable*, 81 AD2d 1; *Quinones v County of Suffolk*, 20 Misc 3d 1123[A], 2008 NY Slip Op 51596[U]; *Schulik v County of Monroe*, 202 AD2d 960; *Padgett v State of New York*, 163 AD2d 914; *Smith v County of Albany*, 12 AD3d 912; *Vasquez v State of New York*, 68 AD3d 1275; *Craig v City of New York*, 15 Misc 3d 1124[A], 2007 NY

Slip Op 50829[U].) VI. Plaintiff's resort to the hearsay allegations of Acting Assistant United States Attorney General Loretta King in a since-concluded—without any admission of liability—lawsuit brought against, among others, the County of Erie and Sheriff Timothy B. Howard, about alleged conditions, generally, at the Erie County jails, does not change the foregoing analysis. (*Red Robin Stores, Inc. v Rose*, 274 App Div 462; *Bigelow-Sanford v Specialized Commercial Floors of Rochester*, 77 AD2d 464; *Schulik v County of Monroe*, 202 AD2d 960.)

Connors LLP, Buffalo (*John T. Loss* and *Paul A. Woodard* of counsel), for respondent. I. A notice of claim is not required as a condition precedent to suing the Erie County Sheriff. (*Barr v County of Albany*, 50 NY2d 247; *Mosey v County of Erie*, 117 AD3d 1381; *Bardi v Warren County Sheriff's Dept.*, 194 AD2d 21; *Bowman v Campbell*, 193 AD2d 921; *Williams v Town of Irondequoit*, 59 AD2d 1049.) II. Even if a notice of claim were required, one was properly served here. (*Goodwin v Pretorius*, 105 AD3d 207; *Sandak v Tuxedo Union School Dist. No. 3*, 308 NY 226; *Pierce v Hickey*, 129 AD3d 1287; *Cleghorne v City of New York*, 99 AD3d 443; *Tannenbaum v City of New York*, 30 AD3d 357; *White v Averill Park Cent. School Dist.*, 195 Misc 2d 409; *Finger Lakes Racing Assn. v New York State Racing & Wagering Bd.*, 45 NY2d 471; *Camarella v East Irondequoit Cent. School Bd.*, 34 NY2d 139; *Brown v City of New York*, 95 NY2d 389.) III. The complaint pleads cognizable causes of action premised on Sheriff Timothy B. Howard's own negligence. (*Landon v Kroll Lab. Specialists, Inc.*, 22 NY3d 1; *Snyder v Plank*, 77 AD3d 1332; *Adams v County of Rensselaer*, 66 NY2d 725; *Sanchez v State of New York*, 99 NY2d 247; *Luckey v City of New York*, 120 AD3d 403; *Barnette v City of New York*, 96 AD3d 700; *Baumeister v Town of Cheektowaga*, 34 AD3d 1187; *Smith v County of Albany*, 12 AD3d 912; *Deer Consumer Prods., Inc. v Little*, 32 Misc 3d 1243[A], 2011 NY Slip Op 51691[U]; *Matter of Khatibi v Weill*, 8 AD3d 485.) IV. In this motion to dismiss context, Sheriff Timothy B. Howard has failed to prove his affirmative defense of governmental immunity. (*Valdez v City of New York*, 18 NY3d 69; *Tango v Tulevech*, 61 NY2d 34; *CPC Intl. v McKesson Corp.*, 70 NY2d 268; *Sanchez v State of New York*, 99 NY2d 247; *Mon v City of New York*, 78 NY2d 309; *Haddock v City of New York*, 75 NY2d 478; *Kirchner v County of Niagara*, 107 AD3d 1620.)

OPINION OF THE COURT

STEIN, J.

General Municipal Law § 50-e (1) (b) provides that service of a notice of claim upon a public corporation is not a condition precedent to the commencement of an action against “an officer, appointee or employee of [the] public corporation” unless “the corporation has a statutory obligation to indemnify such person” under the General Municipal Law “or any other provision of law.” On this appeal, we are asked to determine whether Erie County had a statutory obligation within the meaning of section 50-e (1) (b) to indemnify defendant, the Erie County Sheriff, such that a notice of claim was required. Because we agree with the Appellate Division that no such statutory obligation exists and we conclude that the complaint was otherwise sufficient to withstand a motion to dismiss, we affirm.

Plaintiff alleges that, while being held for five days at the Erie County Correctional Facility in January 2010, he was sexually assaulted twice in a shower stall by an inmate. He commenced several actions following these incidents; the complaint in this action alleged that defendant Sheriff breached a duty to protect plaintiff from a reasonably foreseeable hazard of sexual assault, disregarded known risks of harm to inmates vulnerable to sexual abuse by other inmates at the facility, and had actual knowledge of the dangerous propensities of the inmate who assaulted plaintiff. Defendant moved to dismiss the complaint pursuant to CPLR 3211, arguing that plaintiff failed to serve a notice of claim naming defendant and that the complaint did not state a cognizable cause of action.

Supreme Court granted defendant’s motion, dismissing the complaint because “[n]o notice of claim was served nor was permission sought of the court to serve a late notice, prior to the expiration of the statute of limitations applicable to a sheriff.” The court reasoned that plaintiff was required to serve a notice of claim pursuant to General Municipal Law § 50-e because the County is statutorily obligated to indemnify defendant under “the County legislature’s resolution of May 16, 1985.” As relevant here, the court also concluded that the allegedly negligent acts were “inherently discretionary” and that, in any event, plaintiff failed to establish that defendant owed him a duty of care in the first instance.

Upon plaintiff’s appeal, the Appellate Division modified by reinstating the complaint except to the extent it alleged that

defendant is vicariously liable for the negligence of his employees (126 AD3d 1297 [4th Dept 2015]). The Court held that plaintiff was not required to serve a notice of claim prior to commencing this action because Erie County has no statutory obligation to indemnify defendant (*see id.* at 1298-1299). The Court further concluded that, pursuant to Correction Law § 500-c, defendant has a duty to safely “keep” the prisoners in the county jail, and rejected defendant’s argument that the complaint must be dismissed because his alleged negligence arises from discretionary acts for which he is entitled to governmental immunity, explaining that defendant’s argument presents a factual question that cannot be determined at the pleading stage (*see id.* at 1299).

[1] Addressing first whether a notice of claim was required, we conclude that the Appellate Division properly rejected defendant’s argument that a May 16, 1985 Erie County resolution entitled “Liability Insurance for the Sheriff’s Department” statutorily obligates the county to indemnify defendant Sheriff for purposes of General Municipal Law § 50-e (1) (b). In the “Whereas” clauses of the resolution, the County noted that the law enforcement liability insurance that it traditionally purchased for the Sheriff’s Department had become prohibitively expensive, and that it was obligated to defend and indemnify the Sheriff’s Department employees pursuant to a collective bargaining agreement and Public Officers Law § 18, “but the County cannot, under the New York State Constitution, be made responsible for the acts of the Sheriff.” Thus, the County resolved to act as insurer for the Sheriff, in exchange for an annual payment of \$1, provided that the County’s obligation did not extend to punitive or exemplary damages and that the County would not be made responsible for the acts of the Sheriff or become a party in actions arising out of the acts of the Sheriff.

The resolution, when read as a whole, makes clear that the County agreed to provide “Liability Insurance” for the Sheriff in exchange for consideration because “policies of law enforcement liability insurance paid for by the County” had become prohibitively expensive. In resolving to act as an insurer, the County recognized—as was commonly understood at the time—that it could not statutorily obligate itself to defend and indemnify the Sheriff, as it had agreed to do for the Sheriff’s employees, under the New York State Constitution (*see Rep of Law Rev Commn, 1981 McKinney’s Session Laws of NY at*

2321 and n 47).¹ Absent the existence of any statutory obligation on the County to indemnify the Sheriff—as opposed to an agreement to act as his insurer—the Appellate Division correctly ruled that service of a notice of claim was not required under General Municipal Law § 50-e.

[2] Defendant Sheriff further argues that, to survive a motion to dismiss, the complaint would have to allege that he was present and failed to prevent the attacks on plaintiff, or had specific prior knowledge that plaintiff was particularly vulnerable to assault. This Court rejected similar arguments with respect to state prison inmates in *Sanchez v State of New York* on the ground that the defendant sought to “improperly modif[y] the test for foreseeability from what is reasonably to be perceived, to what is actually foreseen, and thus unduly circumscribe[] the standard of care normally due any party: reasonable care under the circumstances” (99 NY2d 247, 254 [2002]). While the State is by no means an insurer of inmate safety or required to provide unremitting surveillance in all circumstances (*see id.* at 253, 256), we explained in *Sanchez* that, “[h]aving assumed physical custody of inmates, who cannot protect and defend themselves in the same way as those at liberty can, the State owes a duty of care to safeguard inmates, even from attacks by fellow inmates” (*id.* at 252). Inasmuch as “the Sheriff is [similarly] prescribed, by law, to safely keep inmates of the County Jail” (*Adams v County of Rensselaer*, 66 NY2d 725, 727 [1985]; *see* Correction Law § 500-c; *Kemp v Waldron*, 115 AD2d 869, 870 [3d Dept 1985]), the rule set forth in *Sanchez* applies equally here. “[A]ccept[ing] the facts as alleged in the complaint as true, accord[ing] plaintiff[] the benefit of every possible favorable inference . . . [and] consider[ing] [the] affidavit[] submitted by . . . plaintiff to remedy any defects in the complaint” (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994]), we conclude that the complaint adequately set forth a negligence claim to survive a CPLR 3211 (a) (7) motion to dismiss.²

Finally, we agree with the Appellate Division that resolution of defendant’s argument that he is entitled to governmental

1. Although the constitutional bar has since been removed (*see Bardi v Warren County Sheriff’s Dept.*, 194 AD2d 21, 23 [3d Dept 1993]), Erie County has not adopted an obligation to indemnify the Sheriff or otherwise altered its 1985 resolution.

2. Defendant’s argument that plaintiff was required to allege a special duty lacks merit (*see Sanchez*, 99 NY2d 247, 253 n 3 [2002]; *Kemp*, 115 AD2d 869, 870 [3d Dept 1985]).

immunity—an affirmative defense on which he bears the burden of proof (*see Valdez v City of New York*, 18 NY3d 69, 79-80 [2011])—is not appropriate at this stage of the proceedings. Defendant’s remaining arguments have been rendered academic by our decision. Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed, with costs, and the certified question answered in the affirmative.

Chief Judge DiFiore and Judges Rivera, Abdus-Salaam and Garcia concur; Judges Pigott and Fahey taking no part.

Order, insofar as appealed from, affirmed, with costs, and certified question answered in the affirmative.

[65 NE3d 35, 42 NYS3d 64]

THREE AMIGOS SJJ REST., INC., Doing Business as THE CHEETAH CLUB, et al., Plaintiffs, and DOMINICA O'NEILL et al., Appellants, v CBS NEWS INC. et al., Respondents.

Argued September 6, 2016; decided October 25, 2016

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 4, 2015. The Appellate Division order, insofar as appealed from, with two Justices dissenting, affirmed, insofar as appealed from and as limited by the briefs, so much of an order of the Supreme Court, New York County (Ellen M. Coin, J.; op 2013 NY Slip Op 31081[U] [2013]), as had granted defendants' motion to dismiss the defamation claims pursuant to CPLR 3211 (a) (1) and (7) to the extent brought by plaintiffs Dominica O'Neill, Shawn Callahan and Philip Stein.

Three Amigos SJJ Rest., Inc. v CBS News Inc., 132 AD3d 82, affirmed.

HEADNOTE

Libel and Slander — Actionable Words — Statements of and Concerning Plaintiffs

In a defamation action by plaintiffs, employees of independent entities which provided management and talent services to a strip club raided as part of a federal investigation into a human trafficking ring, defendants' statements about the club's alleged involvement in the investigation and that the club was "run by the mafia" made during a news broadcast were not of and concerning plaintiffs. In order to establish a prima facie case of defamation, plaintiffs must show that the matter published is of and concerning them. Although it is not necessary for the plaintiffs to be named in the publication, they must plead and prove that the statement referred to them and that a person hearing or reading the statement reasonably could have interpreted it as such. The news broadcast stated that the club was purportedly used by the Mafia to carry out a larger trafficking scheme. It did not mention any employees of the club or of the management and talent agencies that facilitated its daily operations, let alone the individual plaintiffs, who were not identified or pictured in the report. In context, the statement that the club was "run by the mafia" could not reasonably have been understood to mean that certain unnamed individuals who did not work for the club but oversaw its food, beverage and talent services were members of organized crime. Thus, the broadcast failed to include sufficient particulars of identification in order to be actionable by an individual, and did not describe a particular, specifically defined group of individuals who ran the club such that the small group libel doctrine would apply.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Libel and Slander §§ 28, 29, 202, 209.
DOBBS LAW OF TORTS §§ 527, 528.
NY JUR 2d, Defamation and Privacy §§ 51, 52, 55, 74, 75.
NEW YORK LAW OF TORTS §§ 1:41, 1:42.

ANNOTATION REFERENCE

See ALR Index under Libel and Slander.

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POINTS OF COUNSEL

Rex Whitehorn & Associates, P.C., Great Neck (*Rex Whitehorn* of counsel), and *Law Offices of Nichelle A. Johnson, PLLC*, New Rochelle (*Nichelle A. Johnson* and *Vivian Lee* of counsel), for appellants. I. On a motion to dismiss the complaint the plaintiffs' averments should be viewed in the light most favorable to the plaintiffs. (*Grand Realty Co. v City of White Plains*, 125 AD2d 639; *Barrows v Rozansky*, 111 AD2d 105; *Holly v Pennysaver Corp.*, 98 AD2d 570; *Ossining Union Free School Dist. v Anderson LaRocca Anderson*, 73 NY2d 417; *AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 5 NY3d 582; *Sagorsky v Malyon*, 307 NY 584; *Beechwood Coram Bldgs. Co., LLC v Cesar Chaikin, P.E., P.C.*, 2007 NY Slip Op 34267[U].) II. The defamatory statement is of and concerning the individual plaintiffs by law. (*DeBlasio v North Shore Univ. Hosp.*, 213 AD2d 584; *Geisler v Petrocelli*, 616 F2d 636; *Fetler v Houghton Mifflin Co.*, 364 F2d 650; *Gross v Cantor*, 270 NY 93; *Michaels v Gannett Co.*, 10 AD2d 417; *Bridgwood v Newspaper PM Inc.*, 276 App Div 858; *Chicherchia v Cleary*, 207 AD2d 855; *Tracy v Newsday, Inc.*, 5 NY2d 134; *Julian v American Bus. Consultants*, 2 NY2d 1; *Mencher v Chesley*, 297 NY 94.) III. First Amendment considerations must be balanced with a person's good name. (*Frank v National Broadcasting Co.*, 119 AD2d 252; *New York Times Co. v Sullivan*, 376 US 254.)

Levine Sullivan Koch & Schulz, LLP, New York City (*Jay Ward Brown* of counsel), *Levine Sullivan Koch & Schulz, LLP*, Washington, D.C. (*Chad R. Bowman*, of the District of Colum-

bia and Maryland bars, admitted pro hac vice, of counsel), and *CBS Law Department*, New York City (Anthony M. Bongiorno and Joseph F. Richburg of counsel), for respondents. I. Whether the individual plaintiffs can maintain claims arising from the challenged reports is a question of law for the court. (*Matter of Holmes v Winter*, 22 NY3d 300; *Immuno AG. v Moor-Jankowski*, 145 AD2d 114, 77 NY2d 235; *Matter of Beach v Shanley*, 62 NY2d 241; *Simkin v Blank*, 19 NY3d 46; *Maas v Cornell Univ.*, 94 NY2d 87; *Biro v Condé Nast*, 883 F Supp 2d 441; *Springer v Viking Press*, 60 NY2d 916; *Carlucci v Poughkeepsie Newspapers*, 57 NY2d 883; *Cohn v National Broadcasting Co.*, 50 NY2d 885; *Fulani v New York Times Co.*, 260 AD2d 215.) II. The challenged statements are not “of and concerning” the individual plaintiffs under well-established New York law. (*Carlucci v Poughkeepsie Newspapers*, 57 NY2d 883; *Cohn v National Broadcasting Co.*, 50 NY2d 885; *Alf v Buffalo News, Inc.*, 100 AD3d 1487, 21 NY3d 988; *Fulani v New York Times Co.*, 260 AD2d 215; *Afftrex, Ltd. v General Elec. Co.*, 161 AD2d 855; *Chau v Lewis*, 771 F3d 118; *Cardone v Empire Blue Cross & Blue Shield*, 884 F Supp 838; *McMillen v Arthritis Found.*, 432 F Supp 430; *Provisional Govt. of Republic of New Afrika v American Broadcasting Cos., Inc.*, 609 F Supp 104; *Gilman v Spitzer*, 902 F Supp 2d 389.) III. The First Amendment also bars claims by the individual plaintiffs. (*New York Times Co. v Sullivan*, 376 US 254; *Algarin v Town of Wallkill*, 421 F3d 137; *Abramson v Pataki*, 278 F3d 93; *Gilman v Spitzer*, 902 F Supp 2d 389; *Yow v National Enquirer, Inc.*, 550 F Supp 2d 1179; *Auvil v CBS 60 Minutes*, 800 F Supp 928.)

OPINION OF THE COURT

PIGOTT, J.

The issue in this defamation case is whether certain statements made by defendants during a news broadcast were “of and concerning” the plaintiffs. The underlying events occurred on November 30, 2011, when federal authorities raided the Cheetah Club (Cheetah’s) in Manhattan. Authorities believed Cheetah’s was one of several strip clubs involved in a trafficking ring in which members of the Bonanno and Gambino crime families illegally brought Russian and eastern European women into the United States. The investigation was dubbed “Operation Dancing Brides” because the women were placed in sham marriages for citizenship purposes and forced to dance in New York City strip clubs.

CBS 2 News reported on the raid during a noon news broadcast. While standing in front of the Cheetah Club, reporter Kathryn Brown stated,

“[S]ources tell CBS-2 News this bust is being dubbed ‘Operation Dancing Brides’ and this strip club here, Cheetahs in Midtown, they say is at the center of the operation. Cheetahs advertises exotic women and the federals—federal authorities say it is run by the mafia. They have been here—feds have been here all morning. They conducted an early morning raid and they’ve been here for hours inside collecting evidence. They are still inside right now.

“Meantime, earlier this morning, agents with the immigrations and customs enforcement arrested 25 men described as ringleaders of this entire operation. Many of them they say are members of the Gambino and Bonanno crime families. They say the men were involved in an elaborate operation to recruit women from Russia and eastern Europe into the U.S. The ringleaders would then pay young men living here in the U.S. and upstate New York to marry these women on paper, then force the women to work as dancers in strip clubs across New York City, including Cheetahs. The men are charged with a variety of crimes including visa fraud, marriage fraud, and racketeering.

“This is still a developing story and we will have much more on this tonight on CBS-2 News at 5:00.”

The station followed up with the story during its evening broadcast:

“Federal authorities . . . say the club, Cheetahs, is one of several at the center of an underground immigration ring that stretches from Times Square to the heart of Russia. Investigators say Russian and Italian mobsters were working together in the elaborate scheme to bring Russian and eastern European women to the U.S., then funnel them to strip clubs to work as exotic dancers.”

A summary of the same story was subsequently posted to the local CBS New York website, with a statement that Cheetah’s was “one of several [strip clubs] at the center of an underground

immigration ring . . . operated by colluding, organized crime entities that profited wildly through a combination of extortion and fraud.”

Three Amigos SJL Rest., Inc., doing business as the Cheetah Club, commenced a defamation action against CBS Broadcasting Inc. (incorrectly sued as CBS News, Inc.) and several of its reporters for broadcasting and publishing allegedly false stories about the club’s connection to the Mafia. Times Square Restaurant Group and Times Square Restaurant No. 1, Inc.—independent entities that provide management and talent services to the club—were also plaintiffs in the action, along with Dominica O’Neill, Shawn Callahan and Philip Stein, who were employed by the two Times Square Restaurant entities and involved in the Cheetah Club’s daily operations. Plaintiffs alleged, as relevant here, that defendants’ false statements about the club’s involvement in Operation Dancing Brides, particularly the statement that Cheetah’s was “run by the mafia,” subjected them to scorn and ridicule and adversely affected their ability to earn income.

Defendants moved to dismiss the claims by the two Times Square Restaurant entities and plaintiffs O’Neill, Callahan and Stein pursuant to CPLR 3211 (a) (1) and (7), arguing that the news reports were not “of and concerning” them.* Supreme Court granted defendants’ motion with respect to those plaintiffs (2013 NY Slip Op 31081[U] [Sup Ct, NY County 2013]), and the Appellate Division affirmed, with two Justices dissenting in part (132 AD3d 82 [1st Dept 2015]). The individual plaintiffs, but not the Times Square Restaurant entities, appealed as of right pursuant to CPLR 5601 (a), and we now affirm.

In order to establish a prima facie case of defamation, plaintiffs must show that the matter published is “of and concerning” them (*Julian v American Bus. Consultants*, 2 NY2d 1, 17 [1956]). Although it is not necessary for the plaintiffs to be named in the publication, they must plead and prove that the statement referred to them and that a person hearing or reading the statement reasonably could have interpreted it as such (*see id.*; Prosser & Keeton, Torts § 111 at 783 [5th ed 1984]). This burden is not a light one, and the question of

* Defendants also moved to dismiss, on other grounds, certain claims made by Three Amigos SJL Rest., Inc. (doing business as the Cheetah Club), which is not a party to this appeal. Defendants conceded, however, that the challenged statements were “of and concerning” the Cheetah Club.

whether an allegedly defamatory statement could reasonably be interpreted to be “of and concerning” a particular plaintiff is a question of law for the courts to decide (*see Springer v Viking Press*, 60 NY2d 916, 917 [1983]; *Carlucci v Poughkeepsie Newspapers*, 57 NY2d 883, 885 [1982]).

Accepting as true each and every allegation in the complaint, the challenged statements were not of and concerning plaintiffs O’Neill, Callahan and Stein. The news broadcast stated that *Cheetah’s* was purportedly used by the Mafia to carry out a larger trafficking scheme. It did not mention any employees of the club or of the management and talent agencies that facilitate its daily operations, let alone the individual plaintiffs in these appeals, who were not identified or pictured in the report. In context, the statement that *Cheetah’s* was “run by the mafia” could not reasonably have been understood to mean that certain unnamed individuals who do not work for *Cheetah’s* but oversee its food, beverage and talent services are members of organized crime (*see Hays v American Defense Socy.*, 252 NY 266, 269-270 [1929]; *see also Carlucci*, 57 NY2d at 885; *Kirch v Liberty Media Corp.*, 449 F3d 388, 398 [2d Cir 2006] [holding, under New York law, that a defamatory statement directed at a corporation is not “of and concerning” unnamed employees of that corporation]). Nor did the challenged statements describe a particular, specifically-defined group of individuals who “run” the *Cheetah Club*, such that the small group libel doctrine would apply (*see Gross v Cantor*, 270 NY 93, 94, 96 [1936] [allegedly defamatory statements directed at “all save one of the radio editors in New York City” was of and concerning plaintiff New York City radio editor]). Contrary to the dissent’s assertion, defendants’ broadcast referred only to the club and failed to include sufficient particulars of identification in order to be actionable by an individual (*cf. Brady v Ottaway Newspapers*, 84 AD2d 226, 233 [2d Dept 1981]).

Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed, with costs.

STEIN, J. (dissenting). In my view, the courts below erred in granting defendants’ motion to dismiss the complaint as asserted by plaintiffs Dominica O’Neill, Shawn Callahan, and Philip Stein on the ground that, as a matter of law, the challenged statement was not “of and concerning” those individual plaintiffs. I, therefore, respectfully dissent.

To assert a viable defamation claim, the allegedly defamatory statement must be susceptible to a reasonable interpretation by those “acquainted with the parties and the subject” as being “of and concerning” the plaintiff (*Carlucci v Poughkeepsie Newspapers*, 57 NY2d 883, 885 [1982]; see *Springer v Viking Press*, 60 NY2d 916, 917 [1983]; *Julian v American Bus. Consultants*, 2 NY2d 1, 7 [1956]). To be sure, “[t]he ‘of and concerning’ requirement stands as a significant limitation on the universe of those who may seek a legal remedy for communications they think to be false and defamatory and to have injured them” (*Kirch v Liberty Media Corp.*, 449 F3d 388, 399-400 [2d Cir 2006]). However, the allegedly defamatory remark need not refer to a plaintiff by name and, in such cases, a plaintiff may demonstrate through “extrinsic facts” that the statement referred to him or her (*Gross v Cantor*, 270 NY 93, 95 [1936]; see *Chicherchia v Cleary*, 207 AD2d 855, 856 [2d Dept 1994]; *Bee Publs. v Cheektowaga Times*, 107 AD2d 382, 385 [4th Dept 1985]). Significantly, it is not necessary that the general public understand the statement to concern the plaintiff, so long as those familiar with the plaintiff would reasonably understand the statement as referring to him or her (see *Carlucci*, 57 NY2d at 885; *Gilman v Spitzer*, 538 Fed Appx 45, 47 [2d Cir 2013]).

While application of the allegedly defamatory words to the plaintiff need only be stated generally (see CPLR 3016 [a]), courts may dismiss a complaint where, as a threshold matter of law, the statement cannot be reasonably understood as being “of and concerning” the plaintiff (see e.g. *Springer*, 60 NY2d at 917; *Carlucci*, 57 NY2d at 885). However, the question of whether a statement is “of and concerning” the plaintiff is generally one for the jury (see *Harwood Pharmacal Co. v National Broadcasting Co.*, 9 NY2d 460, 462 [1961]; *Gross*, 270 NY at 96; *Bee Publs.*, 107 AD2d at 385; *Brady v Ottaway Newspapers*, 84 AD2d 226, 231 [2d Dept 1981]; *Grinaldo v Meusburger*, 34 AD2d 586, 587 [3d Dept 1970], *appeal dismissed* 27 NY2d 598 [1970]; *Geisler v Petrocelli*, 616 F2d 636, 640 [2d Cir 1980]; 2A NY PJI2d 3:25 at 327 [2016]). Moreover, at the pleading stage, courts must accept the allegations of the complaint as true and, reading the complaint in conjunction with supplementing affidavits, a motion to dismiss must be denied “[i]f, upon any reasonable view of the stated facts, plaintiff would be entitled to recovery for defamation” (*Silsdorf v Levine*, 59 NY2d 8, 12 [1983], *cert denied* 464 US 831 [1983]; see *Davis v Boenheim*, 24 NY3d 262, 268 [2014]; *Rovello v Orofino Realty Co.*, 40 NY2d 633, 635 [1976]).

As reflected in the majority opinion of this Court, resolution of defendants' motion to dismiss in the instant case depends upon whether defendants' broadcast—and, in particular, defendants' statement that the Cheetah Club was “run by the mafia”—can reasonably be understood as a statement “of and concerning” the three individual plaintiffs. According to the complaint and O'Neill's affidavit, plaintiffs—although technically employees of other corporations—provided the Cheetah Club with management, promotional, talent, and booking services, and also handled the day-to-day operations of the club. O'Neill averred that plaintiffs comprised a “small and exclusive group of individuals who ‘run’ and manage” the club, were present at the club on a daily basis managing and operating its affairs, and were known by customers, vendors, entertainers, and city officials as the persons who “ran” the club. In other words, plaintiffs asserted that they were “the face of ‘management’ of the Cheetah Club.” O'Neill also averred that, after defendants' broadcast aired, she was contacted by numerous individuals who believed—as a result of the broadcast—that she was a member of the Mafia and involved in human trafficking.

In my opinion, assuming the truth of these allegations, defendants' statement that Cheetah's was “run by the mafia” could reasonably be interpreted by patrons, business associates, and other persons familiar with plaintiffs and their role at the Cheetah Club, as being “of and concerning” plaintiffs. Contrary to the view of the majority of this Court, I agree with the dissenting Justices of the Appellate Division that, viewing the broadcast in its entirety, an average listener—particularly someone familiar with plaintiffs and the establishment—could very reasonably understand the challenged statement to mean that plaintiffs—the individuals who managed the day-to-day operations of the establishment—were involved with a criminal organization. One need not “strain” to discern this interpretation (*Cohn v National Broadcasting Co.*, 50 NY2d 885, 887 [1980], *cert denied* 449 US 1022 [1980]), which is at least as plausible as the one adopted by the majority here—namely, that defendants' remark meant only that the club was “used by the Mafia to carry out a larger trafficking scheme” (majority op at 87). Given that the statement is susceptible to more than one reasonable interpretation, at least one of which implicates plaintiffs as members of the Mafia, its meaning should not be decided as a matter of law. Rather, it is the province of the jury

to determine whether the statement referred to plaintiffs (*see Harwood*, 9 NY2d at 462).

Defendants correctly point out that a statement is typically not found to be “of and concerning” an individual where the plaintiff is merely an employee of an establishment about which allegedly defamatory statements have been made (*see Carlucci*, 57 NY2d at 885; *Afftrex, Ltd. v General Elec. Co.*, 161 AD2d 855, 856 [3d Dept 1990]; *Cohn v National Broadcasting Co.*, 67 AD2d 140, 146 [1st Dept 1979], *affd* 50 NY2d 885 [1980]). However, the statement at issue here is not directed solely at the Cheetah Club as a corporate entity. The statement that Cheetah’s was “run by the mafia” could just as reasonably be interpreted as meaning that the *individuals who ran the club* were associated with the Mafia (*see Harwood*, 9 NY2d at 462). Furthermore, to the extent the majority relies on the fact that plaintiffs did not “own” Cheetah’s and were technically employed by other corporations, such facts are irrelevant because knowledge of the corporate structure cannot be imputed, without any basis in the record, to the average patron or associate who observed or knew plaintiffs to seemingly be in control of, or running, the club.

Defendants’ argument that plaintiffs’ defamation cause of action fails because the statement does not refer to a sufficiently small or identifiable group is also unpersuasive. “[A] plaintiff’s claim is insufficient if the allegedly defamatory statement referenced the plaintiff solely as a member of a group, unless the plaintiff can show that the circumstances of the publication reasonably give rise to the conclusion that there is a particular reference to the plaintiff” (*Diaz v NBC Universal, Inc.*, 337 Fed Appx 94, 96 [2d Cir 2009]; *see Gross*, 270 NY at 96; *Abramson v Pataki*, 278 F3d 93, 102 [2d Cir 2002]; Restatement [Second] of Torts § 564A [1977]). “The underlying premise of this principle is that the larger the collectivity named in the libel, the less likely it is that a reader would understand it to refer to a particular individual” (*Brady*, 84 AD2d at 228). However, where a group is sufficiently small, a defamation claim may be viable because “reference to the individual plaintiff reasonably follows from the statement and the question of reference is left for the jury” (*Brady*, 84 AD2d at 231; *see Gross*, 270 NY at 96).

Here, the “group” at issue is comprised of those individuals who “run” the Cheetah Club. According to plaintiffs’ allegations, there are only three individuals who managed or ran Cheetah’s and who would be identified by those familiar with

the club as the individuals who “run” the club. This is undoubtedly a sufficiently small group for a defamation claim to remain viable (*see Gross*, 270 NY at 95 [all but one of 12 radio editors in New York]; *Brady*, 84 AD2d at 238 [53 police officers sufficiently small size]; *compare Diaz*, 337 Fed Appx at 96 [group including several hundred individuals is too large to support a defamation claim]). Therefore, it “does not . . . appear that the publication was so scattered a generality or described so large a class . . . that no one could have been personally injured by it” (*Gross*, 270 NY at 96).

Accordingly, I would reverse the Appellate Division order insofar as it is appealed.

Judges RIVERA, ABDUS-SALAAM, FAHEY and GARCIA concur; Judge STEIN dissents in an opinion; Chief Judge DiFIORE taking no part.

Order, insofar as appealed from, affirmed, with costs.

[65 NE3d 46, 42 NYS3d 75]

In the Matter of JAMAL S., a Person Alleged to be a Juvenile
Delinquent, Respondent. PRESENTMENT AGENCY, Appellant.

Argued September 15, 2016; decided October 27, 2016

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 4, 2014. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of disposition of the Family Court of Bronx County (Peter J. Passidomo, J.), which had adjudicated respondent a juvenile delinquent upon his admission that he committed an act that, if committed by an adult, would constitute the crime of criminal possession of a weapon in the second degree, and placed respondent on probation for a period of 18 months; (2) granted respondent's motion to suppress evidence; (3) vacated the dispositional order; and (4) dismissed the petition.

Matter of Jamal S., 123 AD3d 429, reversed.

HEADNOTES

Courts — Court of Appeals — Jurisdiction — Question of Law

1. The Court of Appeals had jurisdiction over petitioner presentment agency's appeal from an order of the Appellate Division finding that the search that uncovered a weapon from respondent's shoe following his arrest was unreasonable, since the dissent at the Appellate Division was on a question of law. Although questions of the reasonableness of police conduct can rarely be resolved as a matter of law even when the facts are not in dispute, here, the majority and dissent did not disagree on facts or inferences material to the narrow issues before the Court of Appeals. Rather, the majority and dissent disagreed as to whether the search of respondent's shoes was justified, as a matter of law.

Crimes — Arrest — Probable Cause to Arrest Juvenile Based on Misrepresentation of Age

2. The police had probable cause to arrest respondent juvenile, who was unable to produce identification after he was stopped by police for riding his bicycle against the flow of traffic on a one-way street, for disorderly conduct based on his representation that he was 16 years old and the officers' observations of him in the street. The officers' initial arrest of respondent was lawful in light of what they believed at the time. Respondent initially told police on the street that he was 16 years old. Because he lacked identification, the police transported him to the precinct, where, nearly an hour later, he told them that he was only 15 years old. Thereafter, the officers treated respondent as a juvenile, placing him in a juvenile room and making him remove his belt, shoelaces and shoes as a protective measure until his parents were notified and he could be picked up from the precinct.

Crimes — Unlawful Search and Seizure — Reasonable Search of Juvenile's Shoes Following Arrest

3. The search of respondent's shoes upon being placed in a juvenile room at the police precinct to wait for his parents to be notified of his arrest was reasonable. The officers were not first required to suspect that respondent either possessed contraband or posed a danger to himself or officers before being directed to remove his shoes. The limited search of respondent's shoes while he was temporarily detained and awaiting the notification of his parents was a reasonable protective measure employed by police to ensure both the safety of respondent and the officers, and the intrusion was minimal.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Appellate Review § 75; AM JUR 2d, Arrest §§ 32–34; AM JUR 2d, Juvenile Courts and Delinquent and Dependent Children §§ 10–13, 59, 69–71; AM JUR 2d, Searches and Seizures § 260.

CARMODY-WAIT 2d, Courts and Their Jurisdiction § 2:116; CARMODY-WAIT 2d, Appeals to the Court of Appeals § 71:2; CARMODY-WAIT 2d, Proceedings Involving Abused and Neglected Children, Destitute Children, Juvenile Delinquents, and Persons in Need of Supervision §§ 119:254, 119A:255; CARMODY-WAIT 2d, Search and Seizure §§ 173:305, 173:306, 173:308; CARMODY-WAIT 2d, Arrest or Other Detention; Post-Arrest Procedure §§ 177:11, 177:12.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 24.11, 27.5.

NY JUR 2d, Appellate Review § 184; NY JUR 2d, Criminal Law: Procedure §§ 68, 69, 74, 90, 96, 481; NY JUR 2d, Domestic Relations §§ 1422–1424, 1428.

SIEGEL, NY PRAC § 10.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Arrests; Jurisdiction; Juvenile Courts and Delinquent Children; Search and Seizure.

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POINTS OF COUNSEL

Zachary W. Carter, Corporation Counsel, New York City (Tahirih M. Sadrieh, Richard Dearing, Cecelia Chang and

Deborah A. Brenner of counsel), for appellant. Respondent's loaded gun was recovered as a result of a lawful search. (*Bell v Wolfish*, 441 US 520; *People v Gonzalez*, 62 NY2d 386; *People v Ellis*, 62 NY2d 393; *United States v Robinson*, 414 US 218; *United States v Edwards*, 415 US 800; *People v Weintraub*, 35 NY2d 351; *People v Perel*, 34 NY2d 462; *Illinois v Lafayette*, 462 US 640; *People v Troiano*, 35 NY2d 476; *People v Tejada*, 93 NY2d 963.)

Seymour W. James, Jr., *The Legal Aid Society*, New York City (*Raymond E. Rogers*, *Tamara A. Steckler* and *Eileen Malunowicz* of counsel), for respondent. I. This Court lacks jurisdiction to review this case under CPLR 5601 (a) because the two-Justice dissent in the Appellate Division concerned the reasonableness of a police search, which is not a question of law but rather a mixed question of law and fact. (*Hayden v Sieni*, 82 NY2d 835; *Merrill v Albany Med. Ctr. Hosp.*, 71 NY2d 990; *Nelson v Times Sq. Stores Corp.*, 67 NY2d 645; *Guaspari v Gorsky*, 29 NY2d 891; *Matter of Daniel H.*, 15 NY3d 883; *Matter of Marcus CC. v Erica BB.*, 22 NY3d 911; *Matter of Saperston v Holdaway*, 20 NY3d 1052; *Matter of Koegler v Woodard*, 19 NY3d 1013; *Matter of Jaquan M.*, 19 NY3d 1041; *Matter of Darryl C.*, 19 NY3d 1040.) II. The record contains support for the ruling of the Appellate Division suppressing evidence seized during a search after the police took respondent into custody with the intention of issuing him a summons for a bicycle infraction. (*People v Cantor*, 36 NY2d 106; *People v Hollman*, 79 NY2d 181; *People v De Bour*, 40 NY2d 210; *People v Dodt*, 61 NY2d 408; *People v Williams*, 17 NY3d 834; *People v Harrison*, 57 NY2d 470; *People v McRay*, 51 NY2d 594; *People v Howard*, 22 NY3d 388; *People v Brown*, 25 NY3d 973; *People v Batista*, 88 NY2d 650.)

OPINION OF THE COURT

PIGOTT, J.

On August 13, 2012 at approximately 10:30 p.m., Officer Leo and his partner were on patrol when they observed respondent Jamal S. and his companion riding their bicycles against the flow of traffic on a one-way street. The officers stopped the two individuals. Respondent told the officers that he was 16 years old. Initially, Officer Leo intended to issue respondent a summons for disorderly conduct (Penal Law § 240.20 [7]), but because he was unable to produce identification, the officers patted him down, placed him in handcuffs and transported him to the precinct. When he arrived at the precinct at approximately 11:00 p.m., he was searched a second time.

At approximately 11:20 p.m., respondent told the officers that he was actually 15 years old. The officers then intended to call his parents, but respondent was unable to recall their telephone numbers, and, although his cell phone contained the numbers, it was not charged. While the officers were charging respondent's phone for him, Officer Leo asked Officer Dooley to place respondent in the juvenile room. Officer Dooley patted respondent down and directed him to remove his belt, shoelaces and shoes as standard police procedure for juveniles. A revolver was recovered from one of the shoes.

The presentment agency filed a juvenile delinquency petition charging respondent with various weapon possession counts. Family Court denied respondent's motion to suppress, holding that the police had probable cause to arrest him for disorderly conduct based on the street encounter. The court further held that the seizure of the gun was not the result of an illegal search, because the officers were justified in having respondent remove his belt, shoelaces and shoes as part of police protocol to ensure a detainee's safety.

Respondent thereafter pleaded guilty to committing an act that, had it been committed by an adult, constituted criminal possession of a weapon in the second degree (Penal Law § 265.03 [3]). He was adjudicated a juvenile delinquent and placed on 18 months' probation.

A divided Appellate Division reversed, with the majority holding that the search that uncovered the weapon from respondent's shoe was unreasonable as a matter of law (123 AD3d 429, 429 [1st Dept 2014]). As relevant here, the majority rejected the presentment agency's argument that matters of safety permitted the officers to require respondent to remove his shoes, stating that safety provided "no justification in this case where [respondent] was continuously in police custody and had been searched twice before being directed to remove his shoes" (*id.* at 431). It acknowledged that there are "appropriate cases" when "officers are authorized to employ reasonable measures to guard against detainees' self-infliction of harm," which "may include the removal of belts and shoelaces," but the removal of the shoes could not be considered a protective measure since officers had previously searched him and had no basis to believe that respondent possessed contraband or otherwise was dangerous (*id.*).

The dissenters countered "that the limited search undertaken when [respondent] was about to be placed in the precinct's

juvenile room, unguarded, was reasonable in scope and manner of execution” (*id.* at 432). They concluded that it was of no moment that, at the time of the search, the officers “had no reason to expect that [respondent] had ‘anything on him,’ or otherwise posed a danger,” because respondent “was subject to the actual supervision and control of police officers, who were responsible for his safety until such time as he could be released to his mother’s custody” (*id.* at 435).

The presentment agency appealed to this Court as of right pursuant to CPLR 5601 (a), and we now reverse.

[1] At issue here is whether the police had the authority to arrest respondent and whether the subsequent search of his shoes was reasonable. Although “questions of the reasonableness of [police] conduct can rarely be resolved as a matter of law even when the facts are not in dispute” (*People v Harrison*, 57 NY2d 470, 478 [1982]), here, the majority and dissent did not disagree on facts or inferences material to the narrow issues before us. Rather, the majority and dissent disagreed as to whether the search of respondent’s shoes was justified, as a matter of law (*compare* 123 AD3d at 431 *with id.* at 434-435 [Andrias, J., dissenting]). Therefore, the dual dissent was on a question of law and we have jurisdiction over this appeal (*see* Arthur Karger, Powers of the New York Court of Appeals §§ 6:4, 6:5 at 200-207 [3d ed rev 2005]).

[2] On the merits, we agree with Family Court that the officers’ initial arrest of respondent was lawful in light of what they believed at the time (*cf. Matter of Victor M.*, 9 NY3d 84, 87 [2007] [holding that a warrantless arrest of a juvenile for committing violations was improper where the juvenile was 15 years old at the time of the arrest and there was “no evidence in the record that the officer either believed or had reason to believe that he was older”]). Respondent initially told police on the street that he was 16 years old. Because he lacked identification, the police transported him to the precinct, where, nearly an hour later, he told them that he was only 15 years old. Thereafter, the officers treated respondent as a juvenile, placing him in a juvenile room and making him remove his belt, shoelaces and shoes as a protective measure until his parents were notified and he could be picked up from the precinct. Based on respondent’s representation that he was 16 years old and the officers’ observations of him in the street, the officers had probable cause to arrest respondent for disorderly conduct.

[3] We also conclude that the limited search of respondent's shoes was reasonable. The majority found no fault with the request that respondent remove his belt and shoelaces as a safety precaution; rather it was the request to remove his shoes that the majority held to be "far more intrusive than a frisk or a patdown" (123 AD3d at 431 [citation omitted]). However, the officers were not first required to suspect that respondent either possessed contraband or posed a danger to himself or officers before being directed to remove his shoes. In that regard, the limited search of respondent's shoes while he was temporarily detained and awaiting the notification of his parents was a reasonable protective measure employed by police to ensure both the safety of respondent and the officers, and the intrusion was minimal (*see generally Matter of Shamel C.*, 254 AD2d 87, 87 [1st Dept 1998]).*

Accordingly, the order of the Appellate Division should be reversed, without costs, and the dispositional order of Family Court, Bronx County, reinstated.

RIVERA, J. (dissenting). The appeal should be dismissed for lack of jurisdiction under CPLR 5601 (a) because the Appellate Division's two-Justice dissent was not on a question of law. Accordingly, I would not reach the merits.

A party may take an appeal as of right from an order of the Appellate Division pursuant to CPLR 5601 (a) "where there is a dissent by at least two justices on a question of law in favor of the party taking such appeal" (CPLR 5601 [a]; *Matter of Robert S.*, 76 NY2d 770 [1990]; *see* Arthur Karger, Powers of the New York Court of Appeals §§ 6:4, 6:5 at 200-207 [3d ed rev 2005]). No appeal lies where the dual dissent is on a question of fact or a mixed question of law and fact (*see e.g. Matter of Daniel H.*, 15 NY3d 883, 884 [2010]). As the Court has explained, a mixed question is presented where "facts are disputed, where credibility is at issue or where reasonable minds may differ as to the inference to be drawn from the

* The dissent interprets our holding by suggesting that it "opens the door to intrusive searches of every juvenile who enters a precinct, even in cases where a parent is willing and able to pick up a child who is being held without legal authority" (dissenting op at 100 n 2). Respondent was brought to the precinct based upon the misrepresentation that he was 16 years old, and, when the officers decided to treat him as a juvenile, they placed him in the juvenile room. Having respondent remove his shoes as part of police protocol while he was temporarily detained waiting for his parents to arrive was simply not "intrusive," as the dissent claims.

established facts” (*People v McRay*, 51 NY2d 594, 601 [1980]). The Court has consistently applied this limitation on jurisdiction to delinquency cases (see e.g. *Matter of Daniel H.*, 15 NY3d 883, 884 [2010]; *Matter of Jaquan M.*, 19 NY3d 1041 [2012]; *Matter of Darryl C.*, 19 NY3d 1040 [2012]; *Matter of Melissa O.*, 87 NY2d 916 [1996]).

In determining whether jurisdiction is properly based on CPLR 5601, this Court makes an independent assessment and is not bound by any characterizations of the grounds for the dissent contained in the Appellate Division opinion (*Merrill v Albany Med. Ctr. Hosp.*, 71 NY2d 990, 991 [1988]). Thus, the fact that the Appellate Division majority described its decision as being made “as a matter of law” is irrelevant to whether the dissent was actually predicated on a mixed question of law and fact (see *People v Holland*, 18 NY3d 840, 841 [2011]). Instead, we must look to the analytical disagreement in the dissent to determine whether a question of law is presented (*Feldsberg v Nitschke*, 49 NY2d 636, 640 n 1 [1980]). “Where it is equivocal whether a dissent rests upon disagreement in fact or law, the dissent is not on a question of law within the meaning of CPLR 5601 (subd. [a])” (*Gillies Agency v Filor*, 32 NY2d 759, 760 [1973]).

This is not a case where a question of law as to the “minimum showing necessary” to establish a predicate for a search or seizure is presented (*People v McRay*, 51 NY2d 594, 601 [1980]). Instead, the parties focus on the reasonableness of the police conduct. It is by now well established that the reasonableness of police conduct presents a mixed question of law and fact generally beyond the review of this Court (see e.g. *People v Williams*, 17 NY3d 834, 835 [2011] [“The reasonableness of a seizure, the existence of probable cause or reasonable suspicion, the classification of a detention as an arrest and the attenuation of evidence from police misconduct are all mixed questions of law and fact that are beyond this Court’s review unless there is no record support for the determinations of the court below”]). A determination of what is reasonable in any given situation requires a contextualized assessment of specific facts. While questions concerning the reasonableness of police conduct frequently arise in criminal cases, this Court applies the same standard in delinquency cases (see *Matter of Daniel H.*, 15 NY3d at 884).

In this case the dissent and majority’s conclusions do not depend on the application of different legal standards. Indeed,

there is no dispute of law between the dissent and the majority. Rather, the disagreement that animates the dual dissent is whether the search of this respondent was reasonable “considering the totality of the circumstances,” as the dissent termed it (*Matter of Jamal S.*, 123 AD3d 429, 432 [1st Dept 2014]). The dissent’s conclusions as to the reasonableness of the search turn on the meaning attached to the facts and the inferences to be drawn concerning the propriety of respondent’s arrest, transport to the precinct, continued detention, and finally the search itself. That is, the dissenters “drew . . . different inference[s] from the established facts [than the majority did], thus deciding [only] mixed question[s] of law and fact” (*People v Brown*, 25 NY3d 973, 976 [2015]). Unlike the Appellate Division majority, the dissent inferred that it was reasonable for the police to doubt respondent was 15 years old, given the facts that at the time of his arrest he told the police he was 16 and then failed to present identification to support his later claim that he was only 15. Further, and contrary to the majority’s view that respondent’s encounter with the police “began with the detention of a juvenile who did nothing more than ride a bicycle in the wrong direction on a roadway” (*Matter of Jamal S.*, 123 AD3d at 431-432), the dissenters found that respondent had committed disorderly conduct, which merited an arrest in light of respondent’s claim to be 16. Based upon the fact that respondent initially lied about his age, the dissent inferred that his presence in the precinct was “largely . . . a result of his own misrepresentation” (*Matter of Jamal S.*, 123 AD3d at 434). The dissent also had no quarrel with the intentional overnight delay in releasing respondent to his mother prior to the search, yet the majority found the record lacked an explanation for such delay when respondent’s mother told the arresting officer at 11:00 p.m. that she would pick him up, and the officer told her to instead “come in the morning.”¹

These are just some of the facts and inferences that informed the dissent’s view of the lawfulness of respondent’s detention

1. Although the Appellate Division dissent and majority largely agree upon the facts, my colleagues are incorrect that the majority and dissent were in complete agreement about the facts material to whether the search was reasonable based on the “totality of the circumstances” (majority op at 97). The dissent’s time line, for example, has the officers placing respondent in the juvenile room and conducting the search while his phone is still charging, before speaking to respondent’s mother (*Matter of Jamal S.*, 123 AD3d at 432-433). The majority concludes that the police spoke to respondent’s mother at 11:00 p.m., prior to the search, and inexplicably told her to pick him up the next day (*id.* at 429-430).

in the juvenile room and the reasonableness of a third search of a previously searched teenager. As with a typical mixed question of law and fact, “reasonable minds may differ as to the inference to be drawn” from the record (*People v Harrison*, 57 NY2d 470, 477 [1982], citing *McRay*, 51 NY2d at 601), but for purposes of determining whether an appeal as of right lies under CPLR 5601 (a), there is no legal issue upon which the Appellate Division dissent and majority disagree.²

The dissent’s conclusion that the police conduct was reasonable “considering the totality of the circumstances” presents a mixed question of law and fact, and is therefore beyond the scope of our power to review. I dissent.

Judges ABDUS-SALAAM, FAHEY and GARCIA concur; Judge RIVERA dissents and votes to dismiss the appeal, in an opinion in which Chief Judge DiFIORE and Judge STEIN concur.

Order reversed, without costs, and dispositional order of Family Court, Bronx County, reinstated.

2. In any event, the majority’s conclusion that searching a juvenile’s shoes is reasonable as a matter of law opens the door to intrusive searches of every juvenile who enters a precinct, even in cases where a parent is willing and able to pick up a child who is being held without legal authority.

[65 NE3d 41, 42 NYS3d 70]

STACY S. KILLON, Respondent, v ROBERT A. PARROTTA, Appellant.

Argued September 15, 2016; decided October 27, 2016

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered February 26, 2015. The Appellate Division modified, on the facts, (1) an order of the Supreme Court, Warren County (Robert J. Muller, J.), which had, among other things, granted plaintiff's motion to set aside the verdict on the issue of certain damages; and (2) the judgment entered thereon. The modification consisted of ordering a new trial on the issues of past and future pain and suffering unless, within 20 days after service of a copy of the Appellate Division order, defendant stipulated to increase the awards for past pain and suffering to \$200,000 and for future pain and suffering to \$150,000, in which event the order and judgment, as so modified, would be affirmed. Defendant so stipulated. The appeal brings up for review a prior nonfinal order of that Appellate Division (98 AD3d 828 [2012]), entered August 30, 2012. The Appellate Division order, with two Justices dissenting, had (1) reversed, on the law, an order of that Supreme Court which had denied plaintiff's motion to set aside the verdict; (2) reversed, on the law, a judgment of that Supreme Court, entered upon a jury verdict in favor of defendant, dismissing the complaint; (3) granted plaintiff's motion; and (4) remitted the matter to the Supreme Court for a new trial.

Killon v Parrotta, 125 AD3d 1220, reversed.

HEADNOTES

Trial — Verdict — Setting Verdict Aside — “Utterly Irrational” Test

1. In plaintiff's action to recover damages for injuries sustained in a physical altercation with defendant, the Appellate Division failed to apply the “utterly irrational” test in determining as a matter of law that defendant was the initial aggressor, thereby improperly precluding him from raising a justification defense during retrial of the case. The Appellate Division may not disregard a jury verdict as against the weight of the evidence unless the evidence so preponderated in favor of the moving party that it could not have been reached on any fair interpretation of the evidence. Where the Appellate Division intends to hold that a jury verdict is insufficient as a matter of law, it must first determine that the verdict is “utterly irrational,” meaning that there is no valid line of reasoning and permissible inferences which could

possibly lead a rational person to the conclusion reached by the jury on the basis of the evidence presented at trial. Although the Appellate Division examined the facts and determined that the jury's conclusion that defendant was not the first to threaten the immediate use of physical force was unreachable on any fair interpretation of the evidence—ostensibly a weight of the evidence review—the effect of that order was to hold as a matter of law that defendant was the initial aggressor to whom the defense of justification was not available—a determination that could only be reached by concluding that the verdict was utterly irrational.

Trial — Verdict — Setting Verdict Aside — Verdict Not “Utterly Irrational”

2. In plaintiff's action to recover damages for injuries sustained in a physical altercation with defendant, the jury's determination that defendant acted in self-defense was not utterly irrational so as to render the verdict insufficient as a matter of law. To conclude that a verdict is utterly irrational, requiring vacatur of the verdict, the court must determine that there is no valid line of reasoning and permissible inferences which could possibly lead a rational person to the conclusion reached by the jury on the basis of the evidence presented at trial. Although the entire encounter occurred because defendant drove to plaintiff's home, it was not utterly irrational for the jury, under the charge delivered to it, to determine that defendant was not the initial aggressor based on the conflicting versions of events.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Assault and Battery §§ 120–127; AM JUR 2d, Trial § 1660.

CARMODY-WAIT 2d, Appeals in the Appellate Division §§ 72:5, 72:163, 72:172.

DOBBS LAW OF TORTS §§ 24, 80–82.

NY JUR 2d, Appellate Review §§ 699, 701; NY JUR 2d, Assault—Civil Aspects §§ 10–12; NY JUR 2d, Trial §§ 588, 589.

NEW YORK LAW OF TORTS § 1:16.

SIEGEL, NY PRAC §§ 401, 543.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Assault and Battery; Justification or Excuse; Vacation and Modification of Judgment or Verdict.

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Query: “jury verdict” /s “utterly irrational”

POINTS OF COUNSEL

Gregory V. Canale, Queensbury, for appellant. I. The lower court erred by vacating the jury verdict in appellant's favor,

improperly making new findings of fact, and directing a verdict against appellant's justification defense without finding the jury verdict to be utterly irrational. (*Lolik v Big v Supermarkets*, 86 NY2d 744; *Rocky Point Drive-In, L.P. v Town of Brookhaven*, 21 NY3d 729; *Matter of State of New York v Daniel F.*, 19 NY3d 1086; *Campbell v City of Elmira*, 84 NY2d 505; *Mirand v City of New York*, 84 NY2d 44; *Cohen v Hallmark Cards*, 45 NY2d 493; *Small v Lorillard Tobacco Co.*, 94 NY2d 43; *Middleton v Whitridge*, 213 NY 499; *Soto v New York City Tr. Auth.*, 6 NY3d 487; *Loewinthan v Le Vine*, 299 NY 372.) II. The lower court failed to recognize that the first person in an encounter who resorts to deadly physical force is properly defined as the initial aggressor. (*People v McWilliams*, 48 AD3d 1266; *People v Daniel*, 35 AD3d 877; *People v Walker*, 285 AD2d 364; *People v Coleman*, 70 NY2d 817.) III. The evidence more nearly comports with the jury finding that the respondent was the first to use or threatened the immediate use of physical force. (*Rocky Point Drive-In, L.P. v Town of Brookhaven*, 21 NY3d 729; *Cohen v Hallmark Cards*, 45 NY2d 493; *Matter of State of New York v Daniel F.*, 19 NY3d 1086; *Martin v City of Albany*, 42 NY2d 13.)

Brennan & White, LLP, Queensbury (*Joseph R. Brennan* of counsel), for respondent. I. The Court of Appeals is without jurisdiction to consider this appeal. (*Matter of Robert S.*, 76 NY2d 770; *Matter of Tamara B. v Pete F.*, 80 NY2d 959; *Patron v Patron*, 40 NY2d 582; *Rocky Point Drive-In, L.P. v Town of Brookhaven*, 21 NY3d 729; *Cohen v Hallmark Cards*, 45 NY2d 493.) II. The trial evidence so preponderated in the respondent's favor that the jury verdict that the appellant sustained his burden of proof on the affirmative defense of justification could not have been reached through any fair interpretation of the evidence. (*Olmsted v Pizza Hut of Am., Inc.*, 81 AD3d 1223; *Bouchard v Champlain Enters., Inc.*, 53 AD3d 933; *People v Dingley*, 50 AD2d 361; *People v Grady*, 40 AD3d 1368; *People v Dickerson*, 67 AD3d 700; *People v Aiken*, 4 NY3d 324; *People v Peele*, 73 AD3d 1219; *People v Mungin*, 106 AD2d 519.) III. The appellant's representations on this appeal of the facts of the case are belied by the record.

OPINION OF THE COURT

ABDUS-SALAAM, J.

The issue presented is whether the Appellate Division applied the correct test in setting aside the jury verdict and

concluding as a matter of law that defendant was the initial aggressor in the physical altercation between the parties, rendering a justification defense unavailable to defendant during retrial of the case. We hold that the Appellate Division did not apply the “utterly irrational” test required to make that determination as a matter of law. Applying that test to the trial evidence and in consideration of the jury instruction given, we hold that it was not utterly irrational for the jury to find that defendant was not the initial aggressor and that he acted in self-defense. We therefore reverse and remit to Supreme Court for retrial.

I.

This personal injury action resulted from a physical altercation between plaintiff, Stacy Killon, and defendant, Robert Parrotta. During trial the evidence revealed that plaintiff, a longtime friend of defendant’s then wife, made a drunken threatening phone call to defendant concerning defendant’s treatment of his wife. In response, defendant drove approximately 20 miles in the middle of the night to plaintiff’s residence in Olmstedville. Defendant’s stated intention was to end their dispute face-to-face, or to engage in a physical altercation. During defendant’s drive, he placed two phone calls to his then wife. Although defendant testified during trial that she did not answer either of his calls, his then wife testified that she had answered and defendant told her he was going to Olmstedville to beat up plaintiff and to tell plaintiff that he was coming for that purpose.

When defendant arrived at plaintiff’s home, he shined his truck lights onto plaintiff’s property. Defendant and plaintiff, however, disagree on what occurred thereafter. Defendant claims that after plaintiff saw him, plaintiff exited his home with a maul hammer handle in hand. Defendant testified that he only wanted to talk to plaintiff, but after seeing plaintiff with the maul handle, he retrieved a bat out of his truck to defend himself. According to defendant, plaintiff then encouraged his dog to attack defendant. Defendant testified that plaintiff, still standing on his porch, swung the maul handle at him, grazing the back of defendant’s head. Defendant, claiming he could not retreat because he had bad knees, swung his bat at plaintiff. Although defendant does not recall the bat making contact with plaintiff, plaintiff suffered extensive damage to his jaw as a result. Defendant fled the scene following the

incident. In plaintiff's version of events, when defendant arrived at his home, he repeatedly told defendant to leave. He stated that as he stepped off his front porch he threw the maul handle to the ground, not at defendant. Defendant then swung his bat at plaintiff, causing plaintiff's injuries. Additionally, a witness for plaintiff who was present during the incident testified that when defendant arrived, he came out of his truck with the bat.

Supreme Court provided the following jury instruction:

"defendant claims he was acting in self-defense and therefore is not liable for damages to the plaintiff. The defendant has the burden of establishing self-defense by a fair preponderance of the credible evidence, as I have already defined that term for you.

"In order to establish self-defense, the defendant must establish that he reasonably believed the plaintiff was attacking or about to attack him and that the force that the defendant used to prevent injury to himself was reasonable under the circumstances. . . . In order for the defendant to be justified in using physical force, you must find the following factors:

"First. Whether the defendant was the initial aggressor. Initial aggressor means the person who first attacks or threatens to attack . . . [t]he actual striking of the first blow or inflicting the first wound is not in itself determinative of the question of who was the initial aggressor. . . . A person who reasonably believes that another person is about to use physical force upon him need not wait until he's struck or wounded. He may in such circumstances use physical force defensively, so long as it was reasonable for him to believe that the other person was using or about to use physical force upon him. He is then not considered to be the initial aggressor, even though he strikes the first blow or inflicts the first wound.

"Verbal quarrels, the use of abusive language, the calling of names or verbal threats do not justify the use of any physical force. You may not consider any of these in determining who was the initial aggressor.

“If you are satisfied that the defendant was the initial aggressor, then you must find he was not acting in self-defense. On the other hand, if the defendant was not the initial aggressor, you must continue . . . to the remaining factors.”

The jury reached a unanimous verdict that defendant battered plaintiff by striking him with a bat, but also found that defendant acted in self-defense. Plaintiff moved for an order pursuant to CPLR 4404 (a) to set aside the verdict as a matter of law and direct judgment in his favor or, alternatively, set aside the verdict as contrary to the weight of the credible evidence and grant him a new trial. Supreme Court denied plaintiff’s motion, holding that based on all the facts presented, the jury could have concluded that defendant’s actions were in self-defense, and judgment was entered in defendant’s favor.

On appeal, the Appellate Division reversed the Supreme Court order and judgment and ordered a new trial (98 AD3d 828 [3d Dept 2012] [hereinafter the 2012 Appellate Division order]). The Court concluded that “no fair interpretation of the evidence” supported “the verdict finding that defendant acted in self-defense” inasmuch as it was predicated upon “a conclusion that defendant was not the initial aggressor in the encounter” (*id.* at 829). The Court held that

“[d]espite plaintiff’s prior threatening phone calls and the evidence that plaintiff was the first of the two to swing his club, there is no dispute that defendant drove to plaintiff’s home and then advanced on plaintiff’s front porch with a bat in his hand while demanding a fist fight. Given these circumstances, the jury’s conclusion that defendant was not the first to threaten the immediate use of physical force is unreachable on any fair interpretation of the evidence” (*id.* at 830).

Two Justices dissented and voted to affirm, contending that “there [wa]s a fair interpretation of the evidence that support[ed] the conclusion that defendant was not the initial aggressor and, therefore, the jury’s verdict should not be disturbed” (*id.* at 830). The dissent noted that “the fact that defendant went to plaintiff’s home, approached the porch holding a bat and invited plaintiff to fist fight with him d[id] not require a finding that defendant was the initial aggressor” (*id.* at 831 [emphasis omitted]).

During the retrial ordered by the Appellate Division majority, Supreme Court indicated that it was constrained by the

holding in the 2012 Appellate Division order that defendant was the initial aggressor, as a matter of law, and denied defendant's request to charge the jury on self-defense. The jury found that defendant had committed a battery upon plaintiff and that plaintiff did not provoke the battery. The jury also awarded plaintiff \$200,000 in damages for medical costs, \$0 for past pain and suffering, and \$25,000 for future pain and suffering. As relevant here, on appeal from the retrial, the Appellate Division "reject[ed] defendant's claim that Supreme Court erred because it did not issue a justification charge to the jury" because that "defense is not available to the initial aggressor, and defendant concedes that, pursuant to this Court's prior decision, he was the 'initial aggressor'" (125 AD3d 1220, 1220-1221 [3d Dept 2015]).¹

Defendant's appeal to this Court from the 2015 order brings up for review the prior non-final 2012 order, which concluded as a matter of law that defendant was the initial aggressor to whom the defense of justification is not available (*see* CPLR 5601 [a]; 98 AD3d at 830; 125 AD3d at 1221).

II.

The question before us is whether the Appellate Division's legal conclusion in its 2012 order was reached under the proper test. When the Appellate Division reviews a jury determination, either it may examine the facts to determine whether the weight of the evidence comports with the verdict, or the Court may determine that the evidence presented was insufficient as a matter of law, rendering the verdict utterly irrational (*see Cohen v Hallmark Cards*, 45 NY2d 493, 499 [1978]). Defendant argues that the Appellate Division erred by setting aside the jury verdict in his favor and improperly determining as a matter of law that a justification defense was unavailable to him, without finding the verdict to be utterly irrational. We agree.

The Appellate Division may not disregard a jury verdict as against the weight of the evidence unless "the evidence so preponderate[d] in favor of the [moving party] that [it] could not have been reached on any fair interpretation of the evidence" (*Lolik v Big v Supermarkets*, 86 NY2d 744, 746

1. The Appellate Division also held that "the jury's failure to award damages for plaintiff's past pain and suffering deviated materially from reasonable compensation," requiring a retrial unless the parties could stipulate to an increase in the awards for past and future pain and suffering (125 AD3d at 1223). Thereafter, the parties did so stipulate.

[1995]). Where the Appellate Division determines that a verdict is against the weight of the evidence, the remedy is to remit for a new trial. By contrast, where the Appellate Division intends to hold that a jury verdict is insufficient as a matter of law, it must first determine that the verdict is “utterly irrational” (*Campbell v City of Elmira*, 84 NY2d 505, 510 [1994]). To conclude that a verdict is utterly irrational, requiring vacatur of the verdict, the Court must determine that “there is simply no valid line of reasoning and permissible inferences which could possibly lead [a] rational [person] to the conclusion reached by the jury on the basis of the evidence presented at trial” (*id.* at 509 [emphasis omitted]). “When it can be said that ‘it would not be utterly irrational for a jury to reach the result it . . . determined . . . , the court may not conclude that the verdict is as a matter of law not supported by the evidence’ ” (*id.* at 510 [emphasis omitted], quoting *Cohen*, 45 NY2d at 499).

[1] In its 2012 order, although the Appellate Division examined the facts and determined that “the jury’s conclusion that defendant was not the first to threaten the immediate use of physical force [wa]s unreachable on any fair interpretation of the evidence” (98 AD3d at 830)—ostensibly a weight of the evidence review—the effect of that order was to hold as a matter of law that defendant was the initial aggressor to whom the defense of justification was not available—a determination that could only be reached by concluding that the verdict was “utterly irrational.” Yet, the Appellate Division did not use the utterly irrational test. The Appellate Division’s error in not applying the proper test resulted in defendant being improperly precluded from raising a justification defense on the retrial. Defendant should have been afforded a new trial on all the issues in the case, including consideration of his justification defense by the jury. Despite this error, reversal is only required if we find that the jury verdict was not utterly irrational.

III.

Because determining whether a jury verdict was utterly irrational involves a pure question of law, this Court may look at the trial evidence and make that determination (*see e.g. Cohen*, 45 NY2d 493). We must consider the jury charge as to initial aggressor and self-defense that was given during the first trial because the instruction, submitted without objection, is the law of the case (*see Passantino v Consolidated Edison Co. of*

N.Y., 54 NY2d 840, 842 [1981]). Based on that instruction, set forth above, we hold that the jury's determination that defendant acted in self-defense was not utterly irrational.

[2] The evidence presented during the first trial, as summarized in this opinion, revealed conflicting versions of events. Although the entire encounter occurred because defendant drove to the plaintiff's home, it was not utterly irrational for the jury, under the charge delivered to it, to determine that defendant was not the initial aggressor based on the conflicting versions. The jury could have believed that plaintiff brought out a weapon first, told his dog to attack defendant, and swung his weapon first. Because the jury verdict was not utterly irrational, we reverse and remit to Supreme Court for a new trial.²

Accordingly, the order appealed from and the August 30, 2012 Appellate Division order insofar as brought up for review should be reversed, with costs, and the matter remitted to Supreme Court for a new trial in accordance with the opinion herein.

Chief Judge DiFiore and Judges Pigott, Rivera, Fahey and Garcia concur; Judge Stein taking no part.

Order appealed from and the August 30, 2012 Appellate Division order insofar as brought up for review reversed, with costs, and matter remitted to Supreme Court, Warren County, for a new trial in accordance with the opinion herein.

2. While we would normally remit to the Appellate Division to consider whether the jury's verdict on self-defense was against the weight of the evidence, under these unusual circumstances, where the Appellate Division already performed that analysis and decided the case should be re-tried, remittal directly to Supreme Court for a new trial is most appropriate.

[65 NE3d 51, 42 NYS3d 80]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LERIO GUERRERO, Appellant.

Argued September 8, 2016; decided October 27, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 24, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bonnie G. Wittner, J.), which had convicted defendant, upon his plea of guilty, of rape in the first degree, sodomy in the first degree (two counts), burglary in the first degree, robbery in the first degree (two counts) and attempted robbery in the first degree.

People v Guerrero, 126 AD3d 613, affirmed.

HEADNOTES**Crimes — Indictment — Sufficiency of Evidence before Grand Jury — Challenge to Nonjurisdictional Defects Forfeited by Guilty Plea**

1. In a sexual assault prosecution in which defendant was arraigned on a “DNA indictment” identifying the perpetrator only by his DNA profile, which was later amended to add defendant’s name, defendant, by pleading guilty to all counts of the amended indictment, forfeited his right to challenge the legal sufficiency of the DNA indictment and amended indictment that named him. Insufficiency of an indictment’s factual allegations does not constitute a jurisdictional defect that is reviewable by the Court of Appeals, and, once a guilty plea has been entered, the sufficiency of the evidence before the grand jury cannot be challenged. Thus, a guilty plea generally results in a forfeiture of the right to appellate review of any nonjurisdictional defects in the proceedings. Here, the DNA indictment properly charged a person with acts that constituted a crime. Defendant’s challenge to the legal sufficiency of the DNA indictment was based on the failure to identify him as the perpetrator by name, but that alleged defect was not a jurisdictional one, and therefore did not survive his guilty plea. By pleading guilty, defendant acknowledged that he was the person who committed the offense, and his conviction thus rested directly on the sufficiency of his plea, not on the legal or constitutional sufficiency of any proceedings which might have led to his conviction after trial.

Crimes — Indictment — Challenge to Hearsay Statements Forfeited by Guilty Plea

2. In a sexual assault prosecution in which defendant was arraigned on a “DNA indictment” identifying the perpetrator only by his DNA profile, which was later amended to add defendant’s name, defendant, by pleading guilty to all counts of the amended indictment, forfeited his argument that the People improperly used hearsay statements to link defendant’s DNA to the DNA

profile contained in the DNA indictment. Insufficiency of an indictment's factual allegations does not constitute a jurisdictional defect that is reviewable by the Court of Appeals, and, once a guilty plea has been entered, the sufficiency of the evidence before the grand jury cannot be challenged. Thus, a guilty plea generally results in a forfeiture of the right to appellate review of any nonjurisdictional defects in the proceedings. In support of their motion to amend the DNA indictment only to reflect defendant's name, the People presented certain hearsay statements that, among other things, linked the DNA profile contained in the DNA indictment to DNA developed from a cigarette butt smoked by defendant. The amendment simply added defendant's name to the indictment, so that it was listed along with his DNA profile. As such, defendant's hearsay challenges to the amended indictment were nonjurisdictional in nature, and did not survive defendant's guilty plea or appeal waiver.

RESEARCH REFERENCES

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AM JUR 2d, Criminal Law § 642; AM JUR 2d, Indictments and Informations § 160.
CARMODY-WAIT 2d, Commencing the Prosecution; Grand Jury §§ 178:298, 178:307, 178:345; CARMODY-WAIT 2d, Pleas and Plea Bargaining §§ 182:27–182:29.
LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 19.5, 21.6.
NY JUR 2d, Criminal Law: Procedure §§ 1325, 1327, 1530.

ANNOTATION REFERENCE

See ALR Index under DNA; Guilty Pleas; Indictments and Informations.

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POINTS OF COUNSEL

Glenn A. Garber, P.C., New York City (*Glenn A. Garber* of counsel), for appellant. Lerio Guerrero's constitutional rights to prosecution by indictment and due process of law were violated as a result of the DNA indictment, amended indictment, and delayed prosecution. (*People v Martinez*, 52 AD3d 68; *People v Iannone*, 45 NY2d 589; *People v Pelchat*, 62 NY2d 97; *Matter of Jaffe v Scheinman*, 47 NY2d 188; *People v Sexton*, 187 NY 495; *People v Perez*, 83 NY2d 269; *Klopper v North Carolina*, 386 US 213; *Matter of Benjamin L.*, 92 NY2d 660; *People v Decker*, 13 NY3d 12; *People v Taranovich*, 37 NY2d 442.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Malancha Chanda* and David M. Cohn of counsel), for respondent. Defendant's challenges to the indictment and the timeliness of his prosecution are, for the most part, forfeited and waived and are, in any event, wholly meritless. (*People v Keizer*, 100 NY2d 114; *People v Alexander*, 97 NY2d 482; *People v Hansen*, 95 NY2d 227; *People v Seaberg*, 74 NY2d 1; *People v Bradshaw*, 18 NY3d 257; *People v Johnson*, 14 NY3d 483; *People v Ramos*, 7 NY3d 737; *People v Callahan*, 80 NY2d 273; *People v Lopez*, 6 NY3d 248; *People v Campbell*, 97 NY2d 532.)

OPINION OF THE COURT

PIGOTT, J.

The primary issue on this appeal is whether defendant, by pleading guilty to all of the counts of an amended indictment, forfeited his right to challenge the legal sufficiency of the so-called "DNA indictment"¹ and the subsequent amendment that added only his name to that indictment. We hold that defendant, by pleading guilty, forfeited his right to challenge both the underlying "DNA indictment" and the amended indictment that named him.

I.

On November 8, 1998, a man attacked a woman as she was entering her apartment. The man held a piece of broken glass to the victim's throat, cutting himself and leaving blood on the victim's coat. He forced the victim into her apartment, where he sexually assaulted her and stole her wallet. He then took her to an ATM and forced her to withdraw money. The victim escaped and was transported to a hospital where a rape kit was prepared. In addition to recovering the man's blood from the victim's coat, investigators also recovered a "joint" impression from the ATM receipt. Although 16 latent fingerprints were recovered from the crime scene, only six were deemed "usable."

As part of the ensuing investigation, in addition to recovering the usable fingerprints and entering them in the state fingerprint identification system (but uncovering no match), investigators processed the crime scene, canvassed the apartment building for potential witnesses, obtained video surveillance footage from the ATM, distributed it to the press for

1. A "DNA indictment" is one that identifies the defendant by his or her DNA profile as opposed to by name.

release to the public, and had the victim review mug shots and do a sketch with a New York City Police Department sketch artist. Although the police could not locate or identify the perpetrator, they were able to isolate the perpetrator's DNA profile from the rape kit. In July 1999, investigators deemed the case "closed" because all leads had been exhausted.

On April 13, 2005, a New York County grand jury, utilizing the perpetrator's DNA profile as an identifier, charged the perpetrator by "DNA indictment" (under the name "John Doe") with one count of rape in the first degree (Penal Law § 130.35 [1]), two counts of sodomy in the first degree (Penal Law § 130.50 [1]), burglary in the first degree (Penal Law § 140.30 [3]), two counts of robbery in the first degree (Penal Law § 160.15 [3]), and attempted robbery in the first degree (Penal Law §§ 110.00, 160.15 [3]).

As part of the grand jury presentation, in addition to presenting the testimony of the victim, the People called an expert in DNA analysis. That expert, who worked for the Office of the Chief Medical Examiner (OCME), testified that the DNA profile developed from the rape kit matched the DNA profile taken from the blood found on the victim's coat. The expert also testified that the chances that the perpetrator and another person shared the same DNA profile were less than a trillion to one.

In May 2011, while questioning defendant concerning an unrelated rape in Brooklyn, investigators recovered defendant's DNA from a cigarette butt. That evidence was sent to OCME, which determined that the DNA profile taken from the cigarette butt matched the profile taken from the evidence obtained in the instant rape case. Investigators also matched the joint impression taken from the ATM receipt to the joint on defendant's right index finger.

On June 9, 2011, the People moved, on notice to defendant, to amend the April 13, 2005 indictment to add defendant's name to the caption. As bases for the amendment, the People explained that (1) a detective for the Manhattan Special Victims Squad had spoken with a detective with the Brooklyn Special Victims Squad, and learned that defendant had smoked a cigarette in the latter detective's office and that detective had vouchered the cigarette butt and sent it to the OCME Forensic Biology laboratory; (2) the assistant director of the OCME Forensic Biology laboratory determined that the DNA profile from the cigarette butt matched the DNA profile taken from

the rape kit and victim's coat; and (3) the detective for the Manhattan Special Victims Squad had spoken with a detective from the Latent Print Unit, who compared defendant's joint impression to the impression left on the ATM receipt and determined that they matched. Defendant was arrested on June 10, 2011 and arraigned on the DNA indictment.

Defendant thereafter filed an omnibus motion seeking, among other things, an order denying the People's motion to amend the indictment (CPL 210.20, 210.25 [defective indictment]) and dismissing the DNA indictment on the grounds that its prosecution was untimely (CPL 30.10 [statute of limitations], 210.20 [1] [f]) and was violative of defendant's right to a speedy trial (CPL 30.20 [1]; 30.30 [1] [a]; 210.20 [1] [g]). As relevant here, defendant claimed that the DNA indictment was legally insufficient to establish the identity of the perpetrator and that the 2005 grand jury presentation lacked "competent testimonial and scientific evidence" to link the DNA profile to him. In addition, defendant argued that the People's motion to amend the indictment contained "double hearsay" relative to the recovery of the cigarette butt and the matching of the fingerprint to the ATM receipt, and "hearsay" relative to the DNA match of the cigarette butt with the rape kit and victim's coat. The People opposed those parts of the omnibus motion seeking dismissal of the DNA indictment and denial of the motion to amend.

Supreme Court denied defendant's motion to dismiss the DNA indictment as defective and in violation of defendant's right to a speedy trial, and upheld the amendment of the indictment. The court held that the prosecution was not time-barred on speedy trial grounds because investigators had exercised "reasonable diligence" in attempting to locate defendant.² Defendant then pleaded guilty to each count in the amended indictment. As a condition of the plea, he also executed a written waiver of his right to appeal. Supreme Court sentenced de-

2. Defendant successfully sought reargument of Supreme Court's ruling relative to the amended indictment and the statute of limitations determination. Upon reargument, Supreme Court denied defendant's motion except as to the issue whether investigators exercised "reasonable diligence" in their attempt to identify defendant. Before a hearing on that issue was held, however, the People successfully moved for reconsideration of Supreme Court's reargument order, with Supreme Court holding that the People had submitted additional evidence establishing that investigators had in fact exercised reasonable diligence, such that a hearing was unnecessary.

fendant as promised to a 15-year prison term on each count (to run concurrently), with five years' postrelease supervision.

In affirming Supreme Court, the Appellate Division held that defendant was not deprived of his constitutional right to a speedy trial, and that defendant's arguments concerning the DNA indictment, amended indictment and statute of limitations were forfeited by his guilty plea and "foreclosed by his valid waiver of the right to appeal" (126 AD3d 613, 613-614 [1st Dept 2015]). A Judge of this Court granted defendant leave to appeal (25 NY3d 1202 [2015]), and we now affirm.

II.

Defendant does not challenge the voluntariness of his plea, nor does he claim that the DNA indictment or amended indictment failed to provide adequate notice of the charges. Rather, defendant contends that the DNA indictment was not based upon legally sufficient evidence establishing his identity as the perpetrator, and that the indictment was improperly amended by reliance on hearsay statements. Specifically, defendant argues that the evidence submitted in support of the amended indictment should have been presented through live, nonhearsay testimony before a grand jury so the grand jury had an opportunity to assess the evidence in determining whether defendant matched the DNA profile and make a determination as to whether defendant should be indicted. Essentially, defendant argues that the identification of the perpetrator is an essential element of proof that must be established before a grand jury, and that the procedure employed here deprived defendant of his fundamental constitutional right to be prosecuted by indictment for a felony offense, which, according to defendant, is jurisdictional in nature.³

Generally, a guilty plea marks the end of a criminal matter as opposed to providing a gateway to further litigation (*see People v Hansen*, 95 NY2d 227, 230 [2000], citing *People v Taylor*, 65 NY2d 1, 5 [1985]). Certain matters will survive a guilty plea, however, such as those involving "jurisdictional

3. Defendant makes the additional argument that his prosecution for rape in the first degree was untimely under the five-year statute of limitations that was in effect at the time. We have held, however, that "[t]he statute of limitations under CPL 30.10 is not a jurisdictional matter, nor is it a right of constitutional dimension" that survives a guilty plea (*People v Parilla*, 8 NY3d 654, 659 [2007]). As such, defendant's statute of limitations argument is not properly before us.

defects” (*People v Iannone*, 45 NY2d 589, 600 [1978]) or “rights of a constitutional dimension that go to the very heart of the process” (*Hansen*, 95 NY2d at 230). “The distinction between jurisdictional and nonjurisdictional defects ‘is between defects implicating the integrity of the process . . . and less fundamental flaws, such as evidentiary or technical matters’ ” (*People v Dreyden*, 15 NY3d 100, 103 [2010], quoting *Hansen*, 95 NY2d at 231).

A jurisdictional defect in an indictment may not be waived by a guilty plea and can be raised for the first time on appeal (see *Iannone*, 45 NY2d at 600; *People v Scott*, 3 NY2d 148 [1957]). “An indictment is rendered jurisdictionally defective only if it does not charge the defendant with the commission of a particular crime, by, for example, failing to allege every material element of the crime charged, or alleging acts that do not equal a crime at all” (*Hansen*, 95 NY2d at 231, citing *Iannone*, 45 NY2d at 600).

Before a person accused of a felony is required to defend against that charge, the People must first persuade a grand jury that there are “sufficient legal reasons . . . to believe the person guilty” (*Hansen*, 95 NY2d at 231 [citation omitted]). CPL 190.65 (1) provides, in relevant part, that “a grand jury may indict a person for an offense when (a) the evidence before it is legally sufficient to establish that such person committed such offense . . . and (b) competent and admissible evidence before it provides reasonable cause to believe that such person committed such offense.”

Insufficiency of an indictment’s factual allegations, however, does not constitute a jurisdictional defect that is reviewable by this Court (see *Iannone*, 45 NY2d at 600-601, citing *People v Soto*, 44 NY2d 683, 684 [1978]), and, once a guilty plea has been entered, “the sufficiency of the evidence before the Grand Jury cannot be challenged” (*Hansen*, 95 NY2d at 233 [citation omitted]). Thus, “[a] guilty plea generally results in a forfeiture of the right to appellate review of any nonjurisdictional defects in the proceedings” (*People v Konieczny*, 2 NY3d 569, 572 [2004], quoting *People v Fernandez*, 67 NY2d 686, 688 [1986]).

[1] Here, the DNA indictment properly charged a person with acts that constitute a crime, albeit identifying the individual by a unique DNA profile rather than by his name. As such, it avoided the jurisdictional infirmities we mentioned

in *Iannone*. Defendant's challenge to the legal sufficiency of the DNA indictment is based on the failure to identify him as the perpetrator by name, but this alleged defect is not a jurisdictional one, and therefore, does not survive his guilty plea. By pleading guilty, defendant acknowledged that he was the person who committed the offense. Defendant therefore forfeited his challenge and is foreclosed from raising the issue on appeal. Once defendant pleaded guilty, his " 'conviction rest[ed] directly on the sufficiency of his plea, not on the legal or constitutional sufficiency of any proceedings which might have led to his conviction after trial' " (*Hansen*, 95 NY2d at 230, quoting *People v Di Raffaele*, 55 NY2d 234, 240 [1982]).

III.

Defendant next claims that his challenge to the amended indictment based on the hearsay grounds survived his guilty plea.⁴ We disagree.

[2] The People's motion to amend requested that the DNA indictment be amended to only reflect defendant's name. In support of that motion, the People presented certain hearsay statements that, among other things, linked the DNA profile contained in the DNA indictment to DNA developed from a cigarette butt smoked by defendant. But, by pleading guilty to the amended indictment, defendant forfeited the argument that the People improperly utilized the hearsay statements to link defendant's DNA to the DNA profile contained in the DNA indictment (see *Hansen*, 95 NY2d at 231-232; see e.g. *People v McGuire*, 122 AD3d 947, 947 [2d Dept 2014], *lv denied* 26 NY3d 969 [2015]; *People v McKinney*, 122 AD3d 1083, 1083 [3d Dept 2014], *lv denied* 25 NY3d 1167 [2015]; *People v Torres*, 117 AD3d 1497, 1498 [4th Dept 2014], *lv denied* 24 NY3d 963 [2014]). The amendment simply added defendant's name to the indictment, so that it was listed along with his DNA profile (see *People v Bogdanoff*, 254 NY 16, 29 [1930]). As such, defendant's hearsay challenges to the amended indictment are non-jurisdictional in nature and also did not survive defendant's guilty plea or appeal waiver.

IV.

Finally, although defendant's constitutional speedy trial argument survived defendant's guilty plea and appeal waiver

4. Defendant never denied that he was the perpetrator, merely asserting the evidentiary hearsay issue.

(see *People v Blakley*, 34 NY2d 311, 314 [1974]), we affirm the Appellate Division's determination that there was no constitutional violation (see *People v Taranovich*, 37 NY2d 442 [1975]).

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). Defendant Lerio Guerrero claims he was deprived of his constitutional right to indictment by a grand jury when the People failed to present that accusatory body with the evidence matching his DNA to the genetic numerical identifier in the caption of the original indictment. Since a grand jury has never accused defendant specifically of the crime for which he stands convicted, and the amended indictment that substituted his name for the DNA profile of the unknown perpetrator was not the product of a grand jury's deliberative process, defendant's conviction must be reversed and the indictment dismissed.¹

The facts and relevant procedural history of this appeal are not in dispute. Shortly before the statute of limitations expired, the People obtained a grand jury indictment charging an unknown perpetrator for crimes arising from a sexual assault and robbery. The police investigation had proved unsuccessful in identifying a person responsible for the crimes charged, and, based on samples from the rape kit, the caption referred to the perpetrator as a "John Doe," with a DNA profile consisting of a 14-row genetic numerical identifier.

Years later, after police obtained a sample of defendant's DNA during the course of an unrelated investigation, the People moved to amend the indictment upon presentation of double hearsay evidence, asserting that defendant's DNA matched the genetic numerical identifier. A judge granted the motion. Defendant unsuccessfully moved to dismiss the indictment based, in part, on the People's failure to present the linking evidence to the grand jury. Thereafter, defendant pleaded guilty to the crimes charged in the amended indictment. On appeal to this Court he renews his claim that the indictment is defective and asserts that his guilty plea does not bar this Court's review. Defendant is correct on both points.

The State Constitution expressly provides for indictment by a grand jury before an individual may be tried for an infamous

1. Given my conclusion that the conviction must be overturned and the indictment dismissed as constitutionally defective, I take no position on the majority's resolution of defendant's remaining claims.

crime (NY Const, art I, § 6; *see also People v Iannone*, 45 NY2d 589, 593 n 3 [1978]). This requirement is “intended to prevent the people of this State from potentially oppressive excesses by the agents of the government in the exercise of the prosecutorial authority vested in the State” (*Iannone*, 45 NY2d at 594 [citation omitted]). “Thus, before an individual may be publicly accused of crime and put to the onerous task of defending himself from such accusations, the State must convince a Grand Jury composed of the accused’s peers that there exists sufficient evidence and legal reason to believe the accused guilty” (*id.*). As the constitutional “check” on the prosecutorial power of the State and in its accusatory role, the grand jury “remains the exclusive judge of the facts with respect to any matter before it” (*People v Pelchat*, 62 NY2d 97, 105 [1984]).²

A defendant who pleads guilty may assert challenges on appeal that “relate either to jurisdictional matters . . . or to rights of a constitutional dimension that go to the very heart of the process” (*People v Hansen*, 95 NY2d 227, 230 [2000] [emphasis added]). Here, defendant’s challenge is constitutional in nature because his claim is grounded in the “fundamental right” to have a grand jury of his peers determine whether evidence and legal reason support the charges against him (*Iannone*, 45 NY2d at 593). Specifically, he argues that the indictment is defective because the People did not present the linking DNA evidence to the grand jury for it to consider whether to charge him as the person matching the DNA profile.

Contrary to the majority’s view, this is not a nonjurisdictional challenge to the sufficiency of the indictment (majority op at 116-117). Defendant neither claims that the evidence is quantitatively deficient, nor asserts a technical error as to form, both of which are arguments foreclosed by his plea (*see Hansen*, 95 NY2d at 231 [explaining that “evidentiary or technical matters” do not survive a guilty plea and arguments about the sufficiency of the evidence presented to the grand jury are foreclosed]).

Rather, he claims that substitution of his name for the DNA numerical identifier requires the exercise of the grand jury’s accusatory power and cannot be accomplished on submission to the trial court by a motion to amend. The defect concerns who

2. The opportunity for a defendant to waive indictment by grand jury upon consent of the district attorney is not at issue on this appeal (*see* NY Const, art I, § 6).

may accuse defendant based on evidence of a match to the inculpatory DNA, and therefore goes to the essential role of the grand jury and the “integrity of the process” (*id.*).

This distinction is critical because while a challenge to the sufficiency of the indictment qua document is forfeited by a defendant’s plea, a challenge to the indictment as the embodiment of the grand jury deliberative process may be raised on appeal. In *Iannone*, this Court held that “the basic essential function of an indictment qua document is simply to notify the defendant of the crime of which he stands indicted” so that the defendant may prepare a defense (45 NY2d at 598). Defendant’s claim does not center on the notification purpose of the indictment, but on the essential accusatory role of the grand jury within the criminal justice system. That role requires that the grand jury indict him specifically, if persuaded by the People’s DNA linking evidence (*People v Calbud, Inc.*, 49 NY2d 389, 394 [1980] [“The primary function of the Grand Jury in our system is to investigate crimes and determine whether sufficient evidence exists to accuse a citizen of a crime and subject him or her to criminal prosecution”])).

The People argue that defendant forfeited his claim because the grand jury did in fact decide to indict the person with the DNA numerical sequence identifier as set forth in the indictment caption. While the grand jury may have indicted an unknown person with a genetic descriptor, the indictment and amended indictment do not constitute a grand jury accusation of him specifically because the grand jury never considered whether the DNA evidence matched defendant.

Turning to the merits, this is not a typical change of name by which one moniker is replaced with another. First, the DNA profile consisting of 14 rows of numbers and letters is not commonly understood as a person’s “name.” Second, despite the People’s attempt to minimize the task-at-hand as simply ministerial in nature, more was required than the exchange of a known person’s name for an alphanumeric descriptor. As illustrated by the record and the People’s hearsay evidence, the amendment process was complex; it required untainted collection of defendant’s DNA and preservation of the chain of custody, as well as genetic testing and the scientific assessment and opinion-based comparison of DNA samples.

Also unpersuasive is the People’s argument that substitution of defendant’s name is a technical change within the meaning

of CPL 200.70 (1). This provision allows for amendment of the indictment

“[a]t any time before or during trial, . . . with notice to the defendant and opportunity to be heard, . . . with respect to defects, errors or variances from the proof relating to matters of form, time, place, names of persons and the like, when such an amendment does not change the theory or theories of the prosecution as reflected in the evidence before the grand jury which filed such indictment, or otherwise tend to prejudice the defendant on the merits.”

However, the statute does not apply to DNA indictments because substitution of a person’s name for a genetic numerical sequence is not error correction. Indeed, the People have never taken the position, nor could they, that the DNA sequence presented to the grand jury is defective or mistaken. They do not argue that there is a variance from proof relating to defendant’s name because, of course, there was no proof of his name in the indictment originally presented to the grand jury. This is understandable because in the DNA indictment context, name substitution is not mere error correction, intended to cure a misspelling or a misunderstanding about a person’s legal name.

Given the nature of changing a name in the DNA indictment context, the People’s interpretation of CPL 200.70 (1) is also not in accord with its legislative purpose to change the strict common-law rule that forbade even minor changes to an indictment (*People v Perez*, 83 NY2d 269, 273-276 [1994] [explaining that the legislature passed CPL 200.70 in response to this Court’s decision in *People v Van Every* (222 NY 74 [1917]), which dismissed an indictment for legal impossibility because it stated that the crime occurred on a future date]). Unlike an incorrect name or alias, which constitutes a defect or clerical error in an indictment, the substitution of a human being’s name for a genetic alphanumeric sequence requires establishing the scientifically acceptable link between the DNA obtained from the crime and a defendant’s DNA.

Furthermore, the People assert that our case law characterizes a name change on an indictment as a mere technicality, but a close reading of the cited authority reveals that the cited case was about the modern approach to the indictment process. Specifically, the People cite *People v Bogdanoff* to support their proposition that a name change is a technicality, but *Bogdanoff*,

decided in 1930, upheld the legality of simplified indictments and clarified that the legal formalism of common-law indictments was no longer relevant (254 NY 16, 32 [1930]; *see also Iannone*, 45 NY2d at 597 [interpreting *Bogdanoff* in this manner]). In *Bogdanoff*, the defendants attempted to challenge an indictment as being too ambiguous in its description of the crime, and the Court held that the bill of particulars could be used to interpret the indictment (*id.* at 25). The Court made reference to “fictitious or erroneous names” only as an example of the liberalization of the indictment process, and in this context recognized that “error in description or name may be corrected or disregarded” (*id.* at 29). The Court’s move away from the highly technical formalities of the past does not permit removal from the grand jury of its essential function as an accusatory body.³

Close examination of this case exposes that the People’s argument has no basis in our jurisprudence. Rather, *Bogdanoff* merely upheld the liberalization and simplification of indictments by use of a bill of particulars showing “that an accusation of crime . . . was intended and calculated to describe the crime for which the accused is held” (254 NY at 30-31). This is easily distinguishable from what the People seek to do in this appeal. Additionally, *Bogdanoff* was decided before the discovery of DNA and the application of scientific advancements that allow the People to identify a perpetrator based on a genetically and biologically-based numerical sequence. This case is not appropriate guidance or binding precedent on the issue presented on this appeal.

3. The same is true of the cases cited in the *Bogdanoff* decision. First, in *People v Seidenshner* (210 NY 341 [1914]), the codefendants argued that their criminal aliases should not be included in the indictment because they would prejudice the jury, but the Court held that both their true names and criminal aliases could properly be included in the indictment. Second, in *People v Johnson* (104 NY 213 [1887]), the name of the victim was missing from the indictment, and the defendant argued that this was an essential element of the crime such that the indictment was insufficient to charge him with a crime. However, the Court held that the victim’s name need not be included in the indictment (*id.* at 217). Lastly, in *United States ex rel. Mouquin v Hecht* (22 F2d 264, 265 [2d Cir 1927]), the Second Circuit held that an indictment charging “Louis A. Mouquin” need not be corrected, even though the defendant’s true name was “Louis C. Mouquin.” Though this case is nearest to the rule urged by the People here, it still misses the mark because the case refers to a minor change to the name of a known defendant. Taken together, these cases illustrate that the authority upon which the People’s argument is built does not support its conclusion and is easily distinguishable from the facts presented here.

The fact is that the perpetrator was not known and the People never presented the grand jury with any name—fictitious or otherwise—but with a scientific method for identifying the alleged perpetrator. There is no doubt about the crime charged or that the DNA presented to the grand jury is alleged to belong to the perpetrator. No extraneous evidence is necessary to clarify the meaning of the grand jury’s words. Instead, the grand jury simply never accused defendant as the person linked to the DNA of the perpetrator.

There are also policy reasons to reject the People’s argument that substitution of a name for a DNA profile does not require grand jury involvement. The People secured the DNA indictment fully aware that in order to prosecute a suspect identified in the future, a name would have to be substituted for the DNA profile, and this would require presenting DNA evidence establishing a link between a named human being and the crime. If, prior to 2005, law enforcement had matched defendant’s DNA to the DNA from the rape kit, the People would have presented the evidence at that time to the grand jury. Allowing the People to amend the indictment once the necessary DNA evidence was discovered years later, without submission to the grand jury, perverts the intended purpose of CPL 200.70 to address insignificant changes to the indictment and thereby avoid dismissals due to technical defects (*see Perez*, 83 NY2d at 276). It also undermines the purpose of the grand jury to “prevent the people . . . from potentially oppressive excesses . . . in the exercise of the prosecutorial authority vested in the State” (*Iannone*, 45 NY2d at 594).

To the extent the People suggest that defendant may challenge the linking evidence at trial, this ignores the reality that cases are overwhelmingly resolved by pleas, which is further reason to reaffirm a defendant’s right to the grand jury’s consideration of the evidence linking him to the crime. For example, “[n]inety-seven percent of federal convictions and ninety-four percent of state convictions are the result of guilty pleas” (*Missouri v Frye*, 566 US —, —, 132 S Ct 1399, 1407 [2012], citing Department of Justice, Bureau of Justice Statistics, Sourcebook of Criminal Justice Statistics Online, table 5.22.2009). The numbers speak for themselves and make plain that the vast majority of defendants will never go to trial, and therefore lose the chance to challenge the DNA evidence before a jury of their peers. Yet, DNA evidence is an extremely potent tool for the People (*People v Wright*, 25 NY3d

769, 783 [2015]). “The persuasiveness of DNA evidence is so great that . . . ‘[w]hen DNA evidence is introduced against an accused at trial, the prosecutor’s case can take on an aura of invincibility’ ” (*id.* [citation omitted]). With such high stakes, it is even more important to preserve the grand jury’s role as a check against prosecutorial abuse.

The practical impact of requiring the People to present the DNA linkage evidence to a grand jury in cases involving DNA indictments is limited, and the law already provides a mechanism to address these situations. The People may obtain a superceding indictment that relates back to the earlier indictment (*People v Lomax*, 50 NY2d 351, 356 [1980]; *People v Sinistaj*, 67 NY2d 236, 237 [1986]). Additionally, if dismissal of the indictment is required, the People may re-present to another grand jury (*Lomax*, 50 NY2d at 356). Though a holding in favor of a defendant will sometimes require additional action by the People, this should not impact our analysis. Arguments about “the waste of prosecutorial resources that will result from requiring a superseding indictment” have merit but are “policy considerations [that] must be addressed by the Legislature, however, not the courts” (*Perez*, 83 NY2d at 276).

For these reasons, the People failed to present the grand jury with the only evidence linking defendant to the alleged perpetrator’s DNA, depriving him of his fundamental right to grand jury indictment. His conviction should be reversed and the indictment dismissed.

Chief Judge DiFiore and Judges Abdus-Salaam, Stein, Fahey and Garcia concur; Judge Rivera dissents in an opinion.

Order affirmed.

[65 NE3d 675, 42 NYS3d 646]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTONIO
ARAGON, Appellant.

Argued September 7, 2016; decided November 1, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered July 29, 2014. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Joanne D. Quiñones, J.), which had convicted defendant, upon his plea of guilty, of disorderly conduct.

People v Aragon, 44 Misc 3d 140(A), 2014 NY Slip Op 51281(U), affirmed.

HEADNOTE

Crimes — Possession of Weapon — Sufficiency of Accusatory Instrument — Metal Knuckles

In the prosecution of defendant for criminal possession of a weapon in the fourth degree (Penal Law § 265.01 [1]), the accusatory instrument alleging that defendant unlawfully possessed “brass metal knuckles,” which were recovered from defendant’s pants pocket by the police officer who stopped him, was facially sufficient. Although the Penal Law provides no definition for “metal knuckles,” one of the per se weapons listed in Penal Law § 265.01 (1), they have a common meaning in ordinary American parlance, which corresponds to the dictionary definition. The term “brass knuckles,” or “metal knuckles,” describes a metal object with multiple holes, through which an individual places his or her fingers so that a metal bar rests atop the individual’s knuckles. That object is used as a weapon to cause increased pain when the person wearing it hits someone with a fist. Accordingly, the accusatory instrument clearly informed defendant that he was in criminal possession of “brass metal knuckles,” a per se weapon, in violation of Penal Law § 265.01 (1). The term “brass metal knuckles” gave defendant a clear description of the object recovered from his pocket at a specific time and place. Under the common and natural definition of the term, as well as the dictionary definition, defendant was adequately informed of the charge against him. Moreover, the character of metal knuckles is such that one need only look at the object to discern whether it is in fact metal knuckles, and the accusatory instrument did not require any specific description of the officer’s training or experience in identifying brass knuckles.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Trial § 885; AM JUR 2d, Weapons and Firearms
§§ 2, 9–11, 17, 26, 34.

CARMODY-WAIT 2d, Particular Types of Evidence § 194:16;
CARMODY-WAIT 2d, Appeals in Criminal Cases
§§ 207:34, 207:134.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 15.1,
19.2–19.5.

McKINNEY'S, Penal Law § 265.01 (1).

NY JUR 2d, Criminal Law: Substantive Principles and Of-
fenses §§ 429, 1853, 1861, 1866, 1870, 1873–1876, 1890,
1910, 1914.

ANNOTATION REFERENCE

See ALR Index under Indictments and Informations;
Weapons and Firearms.

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ment!)

POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (Harold V. Ferguson, Jr. of counsel), for appellant. The accusatory instrument charging appellant with criminal possession of a weapon in the fourth degree was jurisdictionally defective because it failed to allege sufficient evidentiary facts to support its conclusory allegation that appellant possessed “metal knuckles.” (*People v Dreyden*, 15 NY3d 100; *People v Alejandro*, 70 NY2d 133; *People v Jackson*, 18 NY3d 738; *People v Dumas*, 68 NY2d 729; *People v Casey*, 95 NY2d 354; *People v Kalin*, 12 NY3d 225; *Whiteley v Warden, Wyo. State Penitentiary*, 401 US 560; *Giordenello v United States*, 357 US 480; *People v Hendricks*, 25 NY2d 129; *People v Wirchansky*, 41 NY2d 130.)

Cyrus R. Vance, Jr., District Attorney, New York City (Philip Morrow and Alan Gadlin of counsel), for respondent. The misdemeanor complaint was jurisdictionally sufficient. (*People v Dumay*, 23 NY3d 518; *People v Jackson*, 18 NY3d 738; *People v Suber*, 19 NY3d 247; *People v Kalin*, 12 NY3d 225; *People v Casey*, 95 NY2d 354; *People v Laurore*, 30 Misc 3d 1237[A], 2011 NY Slip Op 50388[U]; *People v Morales*, 20 NY3d 240; *People v Persce*, 204 NY 397; *We're Assoc. Co. v Cohen, Stracher & Bloom*, 65 NY2d 148; *People v Singleton*, 127 Misc 2d 735.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

This appeal presents the issue of whether the accusatory instrument alleging that defendant unlawfully possessed “brass metal knuckles” was facially sufficient. We agree with the Appellate Term that the accusatory instrument is facially sufficient.

Penal Law § 265.01 (1) lists a number of per se weapons, the mere possession of which renders a person guilty of criminal possession of a weapon in the fourth degree. The relevant weapon here, metal knuckles, is included in that list. Defendant was charged with violating Penal Law § 265.01 (1). In particular, the accusatory instrument stated that the police officer who stopped him “recovered one set of brass metal knuckles from defendant’s right front pants pocket.” Defendant moved to dismiss the complaint on the ground that the accusatory instrument was facially insufficient, contending that it merely asserted an ultimate conclusion without indicating the underlying factual basis for that conclusion or any supporting evidence for it. Criminal Court denied defendant’s motion. Defendant then agreed to plead guilty to disorderly conduct, waiving prosecution by information and formal allocution. On appeal, defendant again argued that the accusatory instrument was facially insufficient. The Appellate Term affirmed, holding that the factual allegations in the accusatory instrument were “sufficiently evidentiary in character to establish reasonable cause to believe that defendant was guilty of the charged offense,” noting that it provided defendant with “‘adequate notice to enable [him] to prepare a defense and invoke his protection against double jeopardy’ ” (44 Misc 3d 140[A], 2014 NY Slip Op 51281[U], *1 [2014]).

As an initial matter, because defendant waived prosecution by information, the standard applicable to his challenge to the accusatory instrument is that of a misdemeanor complaint (*see* CPL 170.65 [3]; *People v Dumay*, 23 NY3d 518, 522-524 [2014]). Criminal Procedure Law § 100.15 (3) provides that the factual part of a misdemeanor complaint “must contain a statement of the complainant alleging facts of an evidentiary character supporting or tending to support the charges.” The complaint must also “provide reasonable cause to believe that the defendant

committed the offense charged” (CPL 100.40 [4] [b]; see *People v Dumas*, 68 NY2d 729, 731 [1986]). “[A]n accusatory instrument must be given a reasonable, not overly technical reading” (*People v Konieczny*, 2 NY3d 569, 576 [2004]). Thus, the test for facial sufficiency “is, simply, whether the accusatory instrument failed to supply defendant with sufficient notice of the charged crime to satisfy the demands of due process and double jeopardy” (*People v Dreyden*, 15 NY3d 100, 103 [2010]).

Several of the per se weapons listed in Penal Law § 265.01 (1) are defined in Penal Law § 265.00; however, the Penal Law provides no definition for “metal knuckles.” In such a circumstance, courts should give the term its “usual and commonly understood meaning” (McKinney’s Cons Laws of NY, Book 1, Statutes § 232; *People v Morales*, 20 NY3d 240, 247 [2012]). In arriving at the “most natural and obvious meaning” of a term (*id.*), we have looked to dictionary definitions (see e.g. *People v Keyes*, 75 NY2d 343, 348 [1990] [referencing the Webster’s Dictionary definition of the term “procure” to interpret a Penal Law provision, where that term was undefined by the statute]). Black’s Law Dictionary does not define “metal knuckles,” but does define “brass knuckles” as “[a] piece of metal designed to fit over the fingers as a weapon for use in a fistfight” (Black’s Law Dictionary 225 [10th ed 2014]). In general, metal knuckles have a common meaning in ordinary American parlance, which corresponds to the dictionary definition. In fact, in *People v Persce*, this Court stated that along with the slungshot at issue there, metal knuckles have a “well-understood character” (204 NY 397, 402 [1912]). The term “brass knuckles,” or “metal knuckles,” describes a metal object with multiple holes, through which an individual places his or her fingers so that a metal bar rests atop the individual’s knuckles. That object is used as a weapon to cause increased pain when the person wearing it hits someone with a fist.

In support of his claim that the accusatory instrument was insufficient, defendant points to the use of “brass knuckles” on jewelry pieces, cell phone cases, luggage tags, and other novelty items. That argument, however, is meritless when considered in the context of facial sufficiency of an instrument charging an individual with criminal possession of a per se weapon listed in Penal Law § 265.01 (1). The items referenced by defendant are not the type of objects that are punishable as per se weapons,

to the extent that they are not capable of being worn and used as weapons.*

“[A] reasonable, not overly technical reading” of the accusatory instrument here satisfies our sufficiency standard (*Konieczny*, 2 NY3d at 576), as it supplied “defendant with sufficient notice of the charged crime to satisfy the demands of due process and double jeopardy” (*Dreyden*, 15 NY3d at 103). The accusatory instrument clearly informed defendant that he was in criminal possession of “brass metal knuckles,” a per se weapon, in violation of Penal Law § 265.01 (1). The term “brass metal knuckles” gave defendant a clear description of the object recovered from his pocket at a specific time and place. Under the common and natural definition of the term, as well as the dictionary definition, defendant was adequately informed of the charge against him.

Finally, citing *Dreyden*, where we stated that “[a]n arresting officer should, at the very least, explain briefly, with reference to his training and experience, how he or she formed the belief that the object observed in defendant’s possession was a” gravity knife (15 NY3d at 104), defendant argues that the accusatory instrument here is likewise invalid because it failed to cite to the officer’s training and experience in identifying brass knuckles. *Dreyden*, like our more recent decision in *People v Sans* (26 NY3d 13 [2015]), dealt with a gravity knife, a knife which by its statutory definition must be opened and remain open in a particular manner for it to be considered a per se weapon (see Penal Law § 265.00 [5]). We explained in *Sans* that

“[w]e do not mandate that an officer recite that he or she has training and experience in identifying gravity knives or expressly state the origin of his or her skills in that area. Rather, *Dreyden* requires that an arresting officer explain the basis of his or her conclusion that the defendant’s knife was a gravity knife. The general principle applicable here is that when an allegation involves a conclusion

* In the circumstance where a person is charged in an accusatory instrument with criminal possession of metal knuckles for having jewelry or other novelty items shaped like metal knuckles, and the factual section of the instrument is similar to that here, the issue of whether the item is a per se weapon can be tested at trial or challenged before the court (see e.g. *People v Braunschut*, 101 Misc 2d 684 [Crim Ct, Queens County 1979]). Here, however, the only issue before us is sufficiency of the accusatory instrument.

drawn by a police officer that involves the exercise of professional skill or experience, some explanation concerning the basis for that conclusion must be evident from the accusatory instrument” (*Sans*, 26 NY3d at 17-18 [internal quotation marks omitted]).

We concluded that the accusatory instrument sufficiently pleaded that the police officer exercised his expertise by testing the knife and determining that it opened and locked in the manner proscribed by the statute defining gravity knife.

In contrast to gravity knives, which are identified as such based on the way a user opens the device, metal knuckles do not require a special operating mechanism. Moreover, the character of metal knuckles is such that one need only look at the object to discern whether it is in fact metal knuckles. Thus, the officer here did not have to “exercise . . . professional skill or experience” to conclude defendant possessed metal knuckles (*id.*), and the accusatory instrument did not require any specific description of the officer’s training or experience. Accordingly, the Appellate Term order should be affirmed.

Chief Judge DiFiore and Judges Pigott, Rivera, Stein, Fahey and Garcia concur.

Order affirmed.

[65 NE3d 680, 42 NYS3d 651]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
HERMAN BANK, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
HERMAN H. BANK, Appellant.

Argued September 15, 2016; decided November 1, 2016

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered January 2, 2015. The Appellate Division affirmed an order of the Monroe County Court (Douglas A. Randall, J.) which had denied defendant's motion pursuant to CPL 440.10 to vacate a judgment of that County Court (John J. Connell, J.) convicting defendant, after a nonjury trial, of manslaughter in the second degree (two counts), vehicular manslaughter in the first degree, vehicular manslaughter in the second degree (two counts), vehicular assault in the second degree, driving while ability impaired by drugs and one-way violation.

APPEAL, in the second above-entitled action, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 12, 2015. The Appellate Division modified, on the law, a judgment of the Monroe County Court (John J. Connell, J.), which had convicted defendant, after a nonjury trial, of manslaughter in the second degree (two counts), vehicular manslaughter in the first degree, vehicular manslaughter in the second degree (two counts), vehicular assault in the second degree, driving while ability impaired by drugs and one-way violation. The modification consisted of reversing those parts of the judgment convicting defendant of vehicular manslaughter in the second degree (two counts) and driving while ability impaired by drugs and dismissing counts four, five and seven of the indictment. The Appellate Division affirmed the judgment as modified.

People v Bank, 124 AD3d 1376, affirmed.

People v Bank, 129 AD3d 1445, affirmed.

HEADNOTES**Crimes — Right to Counsel — Effective Representation — Incorrect Advice Regarding Potential Sentences**

1. In defendant's prosecution for vehicular manslaughter and related crimes, defense counsel's incorrect advice that defendant's potential sentences on each count were statutorily required to run consecutively, which allegedly caused defendant to forgo pursuing a negotiated plea, did not deprive defendant of the effective assistance of counsel. A defendant has no constitutional right to a plea bargain, and defendant was required to show more than incorrect advice by defense counsel. The record supported the Appellate Division's determination that there was no possibility that a reduced plea would have been offered to defendant. Therefore, the incorrect advice could not have affected the outcome of the proceedings. The People entertained no plea possibility or any reduction in the sentence given, among other things, that the maximum sentence defendant faced for killing two adults and injuring a third was an aggregate term of just 5 to 15 years. Nor was there any proof that the court would have extended an offer to a reduced sentence. Rather, the sentencing court remarked that it did not think the maximum sentence was enough punishment for defendant under the circumstances.

Crimes — Right to Counsel — Effective Representation — Reliance on Testimony of Clinical Pharmacist Rather than Forensic Psychiatrist Regarding Effect of Medications on Defendant's Mental State

2. In defendant's prosecution for vehicular manslaughter and related crimes, defense counsel's reliance, in support of the affirmative defense that defendant was suffering from a mental disease that rendered him legally not responsible, on the expert testimony of a clinical pharmacist, as opposed to a forensic psychiatrist, as to how defendant's prescription medications for bipolar disorder altered his mental state prior to the accident did not amount to ineffective assistance of counsel. Defendant and his attorney pursued a reasonable trial strategy by attempting to demonstrate the effect of the medications on defendant's mental health. The expert supported the defense's theory that defendant was in a state of mania as a result of the combination of his bipolar medication and a new prescription, and she testified in great detail as to how these drug interactions could have rendered defendant incapable of understanding the consequences of his actions.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 1111–1117.

CARMODY-WAIT 2d, Right to Counsel §§ 184:162–184:165, 184:224, 184:229, 184:263.

LaFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 11.7.

NY JUR 2d, Criminal Law: Procedure §§ 867–877, 900, 902, 932.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Concurrent and Consecutive Sentences; Plea Bargaining.

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POINTS OF COUNSEL

Robert N. Isseks, Middletown, for appellant in the first above-entitled action. I. Counsel's performance fell below an objective standard of reasonableness. (*Boria v Keane*, 99 F3d 492; *Davis v Greiner*, 428 F3d 81; *Cullen v United States*, 194 F3d 401; *Purdy v Zeldes*, 337 F3d 253; *United States v Gordon*, 156 F3d 376; *United States v Day*, 969 F2d 39.) II. Counsel's deficient performance prejudiced the defense. (*Pham v United States*, 317 F3d 178; *People v Caban*, 5 NY3d 143; *People v Perron*, 287 AD2d 808; *Boria v Keane*, 99 F3d 492; *People v McDonald*, 1 NY3d 109.) III. The findings and holdings below derogate a defendant's right to attempt to negotiate a disposition. (*Mask v McGinnis*, 233 F3d 132; *United States v Williams*, 372 F3d 96; *People v Cornelio*, 227 AD2d 248.) IV. The County Court should not have rejected Herman Bank's offer of proof. (*Mask v McGinnis*, 233 F3d 132.)

Sandra Doorley, District Attorney, Rochester (*Leah R. Mervine* of counsel), for respondent in the first above-entitled action. I. Defendant failed to establish that but for his attorney's misunderstanding, it was reasonably probable that a plea bargain acceptable to defendant would have been reached. (*People v Lashway*, 25 NY3d 478; *People v Howard*, 22 NY3d 388; *People v Garcia*, 19 AD3d 17; *People v Britton*, 49 AD3d 893; *People v Prochilo*, 41 NY2d 759; *People v Abar*, 99 NY2d 406; *People v Lane*, 83 AD3d 1118, 17 NY3d 818; *People v Thomson*, 46 AD3d 939, 9 NY3d 1039; *People v Harrison*, 57 NY2d 470; *People v Hernandez*, 22 NY3d 972.) II. Defendant has no constitutional right to a plea offer. (*People v Adams*, 20 NY3d 608; *Mask v McGinnis*, 233 F3d 132; *United States v Williams*, 372 F3d 96.) III. County Court did not abuse its discretion in sustaining objections to improper questions at the hearing. (*People v Aska*, 91 NY2d 979; *United States v Carmichael*, 216 F3d 224; *People v Ragland*, 240 AD2d 598, 90 NY2d 1013.)

Timothy P. Donaher, Public Defender, Rochester (*Timothy Davis* and *James Eckert* of counsel), for appellant in the second above-entitled action. Mr. Herman H. Bank was denied meaningful representation at trial because his attorney proceeded with a psychiatric defense, but relied on the services

of a pharmacist whose practice did not include making diagnoses and who was thus professionally incapable of meeting the defense's burden of proof; as a result, counsel presented an affirmative defense which materially aided the prosecution and which had no hope of success. (*People v Zaborski*, 59 NY2d 863; *People v Kohl*, 72 NY2d 191; *People v Edney*, 39 NY2d 620; *People v Bradley*, 88 NY2d 901; *People v Lewis*, 2 NY3d 224; *People v Berroa*, 99 NY2d 134; *People v Stultz*, 2 NY3d 277; *People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137.)

Sandra Doorley, District Attorney, Rochester (*Leah R. Mervine* of counsel), for respondent in the second above-entitled action. Defendant received meaningful assistance of counsel. (*People v Satterfield*, 66 NY2d 796; *People v Baldi*, 54 NY2d 137; *People v Barboni*, 21 NY3d 393; *People v Venkatesan*, 295 AD2d 635, 99 NY2d 565; *People v Maxey*, 129 AD3d 1664; *People v Rivera*, 71 NY2d 705; *People v Bradley*, 88 NY2d 901; *People v Love*, 57 NY2d 998; *People v McLean*, 15 NY3d 117.)

OPINION OF THE COURT

FIGOTT, J.

On May 27, 2007, defendant, who was operating his car while under the influence of cocaine, drove the wrong way on Interstate 590 in Monroe County. He collided with another vehicle at highway speed, killing two of the occupants and seriously injuring a third.

Defendant was charged with multiple criminal counts, including two counts of manslaughter in the second degree (Penal Law § 125.15 [1]) and vehicular manslaughter in the first degree (Penal Law § 125.13 [4]). He pleaded not guilty and the case proceeded to a bench trial on December 9, 2008.

At trial, the People presented the testimony of three eyewitnesses who observed defendant's vehicle traveling the wrong way on the interstate shortly before the accident. They also presented several witnesses who testified to the aftermath of the crash. One of the paramedics who arrived on the scene testified that defendant, who was trapped in his vehicle, appeared "calm and glassy eyed." Defendant repeatedly asked how many cars he hit, and angrily stated that his girlfriend was "on a date with another guy." Prior to being extracted from the vehicle, the paramedic administered morphine to the defendant.

A responding state trooper testified that he found two bottles of prescription pills in defendant's vehicle. The Trooper went to the hospital after defendant was transported there, and based on his observations, asked defendant to submit to a chemical test. At first, defendant stated: "I don't think I can do that. I made a mistake earlier in Buffalo. I was with a hooker. She blew cocaine smoke in my mouth . . . That will show up." The Trooper then obtained a court order for a blood draw, which revealed the presence of cocaine in defendant's system but none of the prescription drugs that were found in the vehicle. The People also presented the testimony of a toxicologist, who opined that defendant "was under the influence of cocaine at the time of the accident" and "would not be capable of safely driving a motor vehicle."

Defendant asserted the affirmative defense that he was suffering from a mental disease or defect that rendered him not legally responsible. His counsel supported that theory by calling a clinical pharmacist, who opined that defendant "in the condition that he was in on that evening, lacked adequate [insight] and judgment as to the consequences of his actions." The expert explained defendant's history of bipolar disorder and stated that before the crash, he was not taking his prescription medication, resulting in mania. She also testified that the prescription drug defendant was taking predisposes someone to entering a manic or hypomanic phase, if not prescribed with a mood stabilizer. The expert disagreed with, and challenged the finding of the People's experts who had performed an extrapolation to determine the level of cocaine in defendant's blood at the time of the crash. Finally, she discussed how the morphine that was administered to defendant at the scene of the crash could have had negative effects on the voluntariness and accuracy of his post-accident statements.

In rebuttal, the People called a physician who opined that defendant was not hypomanic at the time of the crash and that even if he was, he would have understood the nature and consequences of his actions. In addition to the physician, the People also called a forensic psychiatrist, who testified that defendant's actions prior to and after the accident were consistent with drug intoxication and not his proffered defense. In sur-rebuttal, defense counsel challenged the methodology of the People's forensic psychiatrist with his own expert.

Following deliberations, the court found defendant guilty on all counts of the indictment. At sentencing, the court noted

that it was “limited in what sentence can be imposed as a message not only to [defendant], but to the community. I think it does call for the maximum, more than the maximum.” He then sentenced defendant to an aggregate indeterminate term of incarceration of 5 to 15 years.

On direct appeal, the Appellate Division affirmed the judgment of conviction and sentence with respect to five of the eight counts, including the counts of manslaughter in the second degree and vehicular manslaughter in the first degree, rejecting defendant’s argument that defense counsel’s choice to present his defense through a pharmacological expert rather than a psychological or psychiatric expert deprived him of meaningful representation (129 AD3d 1445 [4th Dept 2015]).

I.

Some four years later and after the death of both his attorney* and the original Judge, defendant filed a motion pursuant to CPL 440.10 seeking to vacate the judgment of conviction on the ground that he had received ineffective assistance of counsel in the pretrial stages of the proceedings against him. Specifically, he argued that his attorney was constitutionally deficient because he mistakenly believed that defendant’s potential sentences on each count were statutorily required to run consecutively. He further alleged that his attorney did not engage in plea negotiations, and therefore no plea offer was conveyed to him as a result of counsel’s erroneous advice.

During a hearing on the motion, defendant averred that his attorney advised him that he faced consecutive sentences with an aggregate maximum term of 11¹/₃ to 34 years. Relying on the attorney’s incorrect advice, defendant did not believe that a negotiated plea was worth pursuing and his attorney never engaged in plea negotiations on his behalf. Instead, defense counsel told the prosecutor that defendant was not interested in entering into plea negotiations.

In response, the People called the Assistant District Attorney who had been responsible for the case the year before it went to trial. Her testimony was that the case involved “a very horrific crash” and did not warrant a plea bargain. She testified that she had “made clear” to defendant’s attorney that she would not be making any plea offers, and further, that even if she felt an offer was appropriate, “given the magnitude of the

* Defense counsel died in August 2010.

case,” she would have still needed the consent of the District Attorney of Monroe County to any reduction from the maximum.

County Court denied defendant’s motion and the Appellate Division unanimously affirmed (124 AD3d 1376 [4th Dept 2015]). The Court held that while defendant established that defense counsel incorrectly advised him during plea negotiations that he was facing consecutive sentences after conviction, he failed to establish that he was deprived of the possibility of a plea bargain acceptable to him as the result of that error (*id.* at 1377). A Judge of this Court granted defendant leave to appeal from that order (25 NY3d 1159 [2015]) and from the order affirming the judgment (26 NY3d 925 [2015]).

Defendant’s sole argument with respect to the CPL 440.10 motion is that his attorney was constitutionally ineffective for incorrectly advising him, at the pretrial stage, that his sentences were statutorily required to run consecutively. He contends that the record demonstrates a “reasonable probability” that this incorrect advice “affected the outcome of the proceedings” and that he was denied “meaningful representation” based “on the [un]fairness of the process as a whole.”

It is well settled that a defendant is entitled to the effective assistance of competent counsel at the plea negotiations stage (*see Padilla v Kentucky*, 559 US 356, 364 [2010]). A defendant, however, has no constitutional right to a plea bargain (*see Lafler v Cooper*, 566 US —, —, 132 S Ct 1376, 1395 [2012]; *People v Adams*, 20 NY3d 608, 613 [2013]). In New York, the standard for an ineffective assistance of counsel claim is whether the defendant was afforded “meaningful representation” and, while significant, the prejudice component of an ineffective assistance claim is not necessarily indispensable (*People v Henry*, 95 NY2d 563, 565 [2000]; *see People v Stultz*, 2 NY3d 277, 284 [2004]; *People v Benevento*, 91 NY2d 708, 712 [1998]).

[1] Here, the Appellate Division found, and the record supports the determination, that defendant’s attorney incorrectly advised him that he was subject to mandatory consecutive sentences. There is no dispute that counsel’s advice to defendant was incorrect: consecutive sentences were not mandatory nor even an option (*see Penal Law* § 70.25 [2]).

However, defendant was required to show more than incorrect advice by defense counsel. Here, the record supports the Appellate Division’s determination that there was no possibil-

ity that a reduced plea would have been offered to defendant. Therefore, the incorrect advice could not have affected the outcome of the proceedings. The People entertained no plea possibility or any reduction in the sentence given, among other things, the maximum sentence defendant faced for killing two adults and injuring a third was an aggregate term of just 5 to 15 years. Nor was there any proof that the court would have extended an offer to a reduced sentence. Rather, the sentencing court remarked that it did not think the maximum sentence was enough punishment for defendant under the circumstances of this case.

We have considered defendant's remaining arguments on his motion and find them to be lacking in merit.

II.

[2] With respect to the direct appeal, defendant argues that his attorney's reliance on the expert testimony of a clinical pharmacist, as opposed to a forensic psychiatrist, amounted to ineffective assistance of counsel. But defendant, a pharmacist himself, and his attorney pursued a reasonable trial strategy by attempting to demonstrate the effect of the medications on defendant's mental health. The expert supported the defense's theory that defendant was in a state of mania as a result of the combination of his bipolar medication and a new prescription, and she testified in great detail as to how these drug interactions could have rendered defendant incapable of understanding the consequences of his actions. We cannot question, in hindsight, what appears to have been a reasonable strategy of placing before the trier of fact testimony as to how defendant's medication altered his mental state. Defendant's claim that defense counsel should have put on a different expert, or that one even exists, is purely conjectural.

Accordingly, each of the Appellate Division orders should be affirmed.

Chief Judge DiFIORE and Judges RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

In each case: Order affirmed.

[65 NE3d 684, 42 NYS3d 655]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LYXON
CHERY, Appellant.

Argued September 15, 2016; decided November 1, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 16, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Daniel P. Conviser, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and robbery in the second degree (two counts).

People v Chery, 127 AD3d 533, affirmed.

HEADNOTES

Crimes — Right to Remain Silent — Evidence of Defendant's Selective Silence in Spontaneous Statement to Police — Permissible Use to Impeach Defendant's Trial Testimony

1. The trial court in defendant's robbery prosecution did not err in allowing the People to use defendant's selective silence, while making a spontaneous postdetention statement to police, to impeach his trial testimony that complainant had hit him on the head with a piece of wood, as defendant's conspicuous omission of such exculpatory facts tended to show that his trial testimony was a recent fabrication. While evidence of a defendant's pretrial silence is generally inadmissible, when given circumstances make it most unnatural to omit certain information from a statement, the fact of the omission is itself admissible for purposes of impeachment. Defendant's statement was not the product of interrogation, but was made spontaneously at the scene, prior to the issuance of *Miranda* warnings. In addition, the substance of defendant's spontaneous statement was not inculpatory, but a description of the complainant's conduct and was made to inform the police when the information was timely to their decision as to whether to arrest defendant or complainant. Defendant admitted in his direct testimony that he was not silent and that he had given the police his version of complainant's misconduct at the scene. Consequently, the credibility of his initial spontaneous statement was legitimately called into question by his trial testimony. Defendant elected to provide some explanation of what happened at the scene, and it was unnatural to have omitted the significantly more favorable version of events to which he testified at trial.

Crimes — Appeal — Preservation of Issue for Review — Inquiries Beyond Scope of Ruling Permitting Use of Defendant's Selective Silence in Spontaneous Statement to Police for Impeachment

2. Defendant failed to preserve for appellate review any argument that the People went beyond the scope of the trial court's ruling permitting them to use defendant's selective silence, while making a spontaneous postdetention

statement to police, to impeach his trial testimony that complainant had hit him on the head with a piece of wood by inquiring as to matters that preceded the altercation and would not have been unnatural omissions from the statement, as defense counsel did not object to any testimony on that basis. In any event, there was no significant probability that the result would have been different even if the court had denied the People's request to impeach defendant. The evidence was overwhelming and the content of defendant's spontaneous statement was already before the jury through the two conflicting versions as provided by the responding officer's testimony and defendant's direct testimony, thus allowing the jurors to draw their own conclusion as to credibility from the plainly inconsistent testimony.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 895, 1017; AM JUR 2d, Evidence §§ 353, 817, 885; AM JUR 2d, Trial §§ 465, 467, 484–485; AM JUR 2d, Witnesses § 868.
 CARMODY-WAIT 2d, Conduct of Trial, in General §§ 190:44–190:45; CARMODY-WAIT 2d, Particular Types of Evidence § 194:253; CARMODY-WAIT 2d, Testimony of Witnesses §§ 195:137, 195:171–195:172.
 LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 2.10, 6.8–6.9, 9.5–9.6, 24.5.
 NY JUR 2d, Criminal Law: Procedure §§ 563, 568, 2091, 2099, 2429–2430, 2674, 2702, 2722, 3677.

ANNOTATION REFERENCE

Impeachment of defendant in criminal case by showing defendant's prearrest silence—state cases. 35 ALR4th 731.

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POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Marisa K. Cabrera of counsel), for appellant. I. The trial court erred in permitting the prosecutor to impeach Lyxon Chery with omissions made during the course of his pre-Miranda, spontaneous statement to the responding officer. (*People v Savage*, 50 NY2d 673; *People v Conyers*, 52 NY2d 454; *People v De George*, 73 NY2d 614; *People v Williams*, 25 NY3d 185; *People v Rothschild*, 35 NY2d 355; *Miranda v Arizona*, 384 US 436; *People v Vasquez*, 88 NY2d 561; *People v*

Barber, 143 AD2d 450; *People v Bornholdt*, 33 NY2d 75; *People v Lanahan*, 55 NY2d 711.) II. The court's refusal to issue a missing witness charge for the prosecution's failure to call the responding officer denied Lyxon Chery a fair trial in this case where the facts were in sharp dispute. (*People v Gonzalez*, 68 NY2d 424; *Graves v United States*, 150 US 118; *People v Keen*, 94 NY2d 533; *People v Rodriguez*, 38 NY2d 95; *People v Thomas*, 21 NY3d 226; *People v Kitching*, 78 NY2d 532.) III. The jury's verdict convicting Lyxon Chery of robbery in the second degree must be set aside as legally insufficient where the prosecution failed to prove that the complainant suffered physical injury when he sustained bruising and a cut on his hand and leg, refused medical treatment, and did not miss any days of work. (*Jackson v Virginia*, 443 US 307; *People v Contes*, 60 NY2d 620; *People v Schulz*, 4 NY3d 521; *People v Pope*, 174 AD2d 319; *People v DiStefano*, 252 AD2d 530; *People v Chiddick*, 8 NY3d 445; *Matter of Philip A.*, 49 NY2d 198; *People v Brown*, 145 AD2d 301; *People v Williams*, 170 AD2d 361; *People v Williams*, 112 AD2d 176.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Patricia Curran* and *Alice Wiseman* of counsel), for respondent. I. The court properly allowed the prosecutor to impeach defendant with significant, unnatural omissions in his spontaneous statement to Officer Ramon Gutierrez at the scene. (*People v Savage*, 50 NY2d 673; *People v Belge*, 41 NY2d 60; *People v Kello*, 96 NY2d 740; *People v Gray*, 86 NY2d 10; *People v Colon*, 46 AD3d 260; *People v Waters*, 90 NY2d 826; *People v Clarke*, 81 NY2d 777; *People v Boyd*, 58 NY2d 1016; *People v Love*, 57 NY2d 1023; *People v Qualls*, 55 NY2d 733.) II. The trial court did not abuse its discretion in denying defendant's request for a missing witness charge. (*People v Macana*, 84 NY2d 173; *People v Gonzalez*, 68 NY2d 424; *People v Erts*, 73 NY2d 872; *People v Buckler*, 39 NY2d 895; *People v Stridiron*, 33 NY2d 287; *People v Savinon*, 100 NY2d 192; *People v Fields*, 76 NY2d 761; *People v Rodriguez*, 38 NY2d 95; *People v Ortiz*, 83 NY2d 989; *People v Perez*, 157 AD2d 581.) III. The trial evidence proved beyond a reasonable doubt that the victim suffered physical injury during the robbery. (*People v Norman*, 85 NY2d 609; *People v Gordon*, 23 NY3d 643; *People v Delamota*, 18 NY3d 107; *People v Henderson*, 92 NY2d 677; *People v McDowell*, 28 NY2d 373; *Matter of Philip A.*, 49 NY2d 198; *People v Martinez*, 90 AD3d 409; *People v Oree*, 58 AD3d 473; *People v Chiddick*, 8 NY3d 445; *People v Guidice*, 83 NY2d 630.)

OPINION OF THE COURT

Chief Judge DiFiore.

The issue presented by this appeal is whether it was error to allow the People to use defendant's selective silence, while making a spontaneous postdetention statement to the police, to impeach his trial testimony. We hold that, under the circumstances presented, impeachment through cross-examination was permissible in order to challenge the credibility of defendant's trial testimony as to the events that had transpired at the scene.

Shortly after midnight on April 20, 2012, defendant and another man attacked complainant, the lone employee in a small grocery store, while he was closing the store for the night.* Defendant robbed complainant of \$215. Two witnesses, who testified at trial, observed the altercation between defendant and the complainant. When the responding officer arrived at the scene, he saw defendant with a sharp metal object in his hand and also observed a long wooden board on the sidewalk. In addition, the officer noticed that complainant had sustained injuries. The police initially placed both men in handcuffs but, after speaking with complainant and the witnesses, arrested only defendant. When the officer searched defendant, he recovered an envelope containing \$215 from defendant's pocket.

Prior to trial, the court denied defendant's motion to suppress the statement defendant made to the responding officer at the scene, concluding that the statement "was spontaneous and not the product of investigation." Thus, at trial, the responding officer was permitted to testify that "defendant asked me why isn't [complainant] going to jail, he kicked my bike, he should be going to jail too."

Defendant testified on his own behalf. Before defendant began testifying, the prosecutor asked the court in advance for a short break to follow the direct testimony. The prosecutor told the court that, depending upon the content of defendant's testimony, "I may . . . request some kind of motions after he testifies, opening doors, things like that."

Defendant then testified that, prior to the altercation, he had been outside the store with a friend. Defendant claimed that, after the friend drove away, and while defendant was packing up to leave, defendant saw complainant chasing two teenage

* The testimony at trial was that the accomplice fled the scene before the police arrived.

girls from the store and cursing at them for trying to steal from the store. Defendant related that he told complainant, in essence, that it was not good for business to treat people that way. Defendant testified that complainant then began kicking defendant's bicycle and that complainant hit him on the head with a piece of wood. According to defendant, the two men were struggling over control of the wooden board when the police arrived and separated them. When asked if he told the police "what was going on," defendant testified that he told the police officer at the scene that complainant "was kicking my bike, and then we got into a fight, and if he come with the wood, that's not my wood, that's his wood."

After defendant's direct testimony, the prosecutor asked the court for permission to impeach him on cross-examination with the omissions from his initial, spontaneous statement to the police. The prosecutor asserted that, based on *People v Savage* (50 NY2d 673 [1980]), defendant was subject to impeachment because he had testified to certain events that were not included in his initial statement (i.e., complainant striking him with the wooden board) and "which logically would have been said to the police when they arrived on the scene." The prosecutor further maintained that the situation presented here—where a defendant provides a statement to the police at the scene and a different recitation of events at trial—was distinguishable from the situation presented when a defendant remains silent. Defense counsel argued that *Savage* was distinguishable because the defendant in *Savage* had received *Miranda* warnings prior to making his statement. After initially expressing its own concerns that the impeachment could impact defendant's right to remain silent, the court concluded that this situation fell within the *Savage* rule and granted the application.

Without any further objection from defense counsel, the defendant on cross-examination contradicted himself, testifying both that he told the police that complainant had hit him with a wooden board and that he did not tell the police about being hit with the board. He testified that he did not tell the police about the two teenage girls being chased from the store. Moreover, defendant reiterated that he told the police that complainant had been "kicking my bike" and should be "go[ing] to jail too."

The jury convicted defendant of robbery in the first degree and two counts of robbery in the second degree. The Appellate

Division affirmed (127 AD3d 533 [1st Dept 2015]). The Court concluded that the unnatural omissions from defendant's spontaneous statement to the police at the scene were the proper subject of impeachment. A Judge of this Court granted defendant leave to appeal (25 NY3d 1199 [2015]) and we now affirm.

As an initial matter, because this case involves defendant's silence in conjunction with his spontaneous, postdetention statement, this is not a case that implicates defendant's constitutional right to due process or to remain silent (*see Jenkins v Anderson*, 447 US 231 [1980]; *Doyle v Ohio*, 426 US 610 [1976]). Rather, we consider the propriety of the People's use of defendant's significant omissions for impeachment purposes under our State's rules of evidence (*see e.g. People v Conyers*, 52 NY2d 454, 457 [1981]; *Savage*, 50 NY2d at 678).

As we have recently restated, “[i]t is a well-established principle of state evidentiary law that evidence of a defendant's pretrial silence is generally inadmissible” (*People v Williams*, 25 NY3d 185, 190 [2015]). This rule applies both to the People's direct case and, “absent unusual circumstances,” to impeachment of defendant's trial testimony (*see* 25 NY3d at 191). The reasoning behind this restriction is that “a defendant's silence is generally ambiguous and ‘of extremely limited probative worth’” (25 NY3d at 191, quoting *Conyers*, 52 NY2d at 458).

We have recognized a narrow exception to the general rule when the defendant has not, in fact, remained silent. Thus, in *Savage*, we held that “when given circumstances make it most unnatural to omit certain information from a statement, the fact of the omission is itself admissible for purposes of impeachment” (50 NY2d at 679). There, after receiving his *Miranda* warnings, Savage made statements to the police indicating that he had shot another man during an altercation. However, at trial, Savage testified that the basis of the altercation underlying the shooting was the victim's attempt to rob him and that his discharge of the weapon had been accidental. We held that, although the prosecution is not permitted to advocate that the jury draw any adverse inferences from a defendant's postarrest silence, “in a case like the one before us today, where we deal with a defendant who did not stand mute, evenhanded logic dictates that time-tested evidentiary procedures for the ascertainment of truth not be ignored” (50 NY2d at 681).

[1] The facts of this case are different from *Savage* in several respects. These differences, however, support the application of our rule in *Savage*. Here, unlike in *Savage*, defendant's statement was not the product of interrogation, but was made spontaneously at the scene, prior to the issuance of *Miranda* warnings. In addition, the substance of defendant's spontaneous statement was not inculpatory, but a description of the complainant's conduct and was made to inform the police when the information was timely to their decision as to whether to arrest defendant or complainant. Even more significant, defendant admitted in his direct testimony that he was not silent and that he had given the police his version of complainant's misconduct at the scene. Consequently, the credibility of his initial spontaneous statement was legitimately called into question by his trial testimony.

Here, defendant elected to provide some explanation of what happened at the scene, and it was unnatural to have omitted the significantly more favorable version of events to which he testified at trial—that complainant had assaulted him. “[D]efendant’s conspicuous omission of these exculpatory facts in his voluntary statement to police tended to show that his trial testimony was a recent fabrication” (*Williams*, 25 NY3d at 192).

[2] To the extent the People went beyond the proper scope of the trial court’s original *Savage* ruling by inquiring as to matters that preceded the altercation and would not have been unnatural omissions from the spontaneous statement (i.e., complainant chasing the girls from the store), any such argument is unpreserved, as defense counsel did not object to any testimony on that basis. Notably, in this case, there is no significant probability that the result would have been different even if the court had denied the People’s request to impeach defendant (*see People v Crimmins*, 36 NY2d 230, 242 [1975]). The evidence was overwhelming and the content of defendant’s spontaneous statement was already before the jury through the two conflicting versions as provided by the responding officer’s testimony and defendant’s direct testimony, thus allowing the jurors to draw their own conclusion as to credibility from the plainly inconsistent testimony.

Defendant’s remaining arguments are without merit.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (concurring). For the reasons stated by the majority, I agree that the facts of this case make it different from *People v Savage* (50 NY2d 673 [1980]) (majority op at 145). Unlike the majority, I find those differences cannot be analytically overcome and believe that it was error to allow the People to impeach the defendant's trial testimony with his selective silence during cross-examination. Omissions from a non-exculpatory, spontaneous, pre-*Miranda* statement to police at the scene of the arrest do not rise to the "limited and unusual circumstances" contemplated in *People v Williams* (25 NY3d 185, 193 [2015]). However, because the error was harmless, and because the other claims are without merit, the Appellate Division should be affirmed.

Judges PIGOTT, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Judge RIVERA concurs in result in a separate concurring opinion.

Order affirmed.

[65 NE3d 688, 42 NYS3d 659]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS A.
PABON, Appellant.

Argued September 14, 2016; decided November 1, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered March 27, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Thomas E. Moran, J.), which had convicted defendant, after a nonjury trial, of course of sexual conduct against a child in the first degree.

People v Pabon, 126 AD3d 1447, affirmed.

HEADNOTES

Crimes — Timeliness of Prosecution — Toll of Limitations Period for Sexual Offenses Committed against Minor

1. Defendant's prosecution for course of sexual conduct against a child in the first degree for acts committed when the victim was seven years old but not disclosed to police until the victim was 21 years old was not time-barred, as CPL 30.10 (3) (f) applied to toll the five-year statute of limitations set forth in CPL 30.10 (3) (former [e]) for defendant's crime until the victim attained the age of 18 and did not render CPL 30.10 (3) (e) superfluous and ineffective. The crime for which defendant stood convicted is expressly encompassed by CPL 30.10 (3) (f), and involves the type of conduct the legislature sought to address by expansive, albeit delayed, prosecution of multiple acts of sexual abuse against a minor. CPL 30.10 (3) (f) is a tolling provision and as such is dependent on reference to time limits found elsewhere in the statute. Thus, there is no conflict obvious from the interplay of paragraphs (e) and (f) of subdivision (3), as one sets forth a five-year prosecution deadline and the other explains when the clock begins to run on that deadline. The legislature created the crime of course of sexual conduct against a child in order to address the difficulty in prosecuting multiple sexual offenses committed against a child over an extended period of time. Moreover, CPL 30.10 (3) (e) was intended to address the obstacles to prosecution by recognizing that a series of multiple sexual assaults of a child over an extended period of time is a continuous crime. Further, the legislature's subsequent amendment of CPL 30.10 (3) (e) and (f) to eliminate the limitations period for course of sexual conduct against a child in the first degree indicates that it must have understood CPL 30.10 (3) (f) to have applied to that crime prior to the amendment.

Crimes — Harmless and Prejudicial Error — Testimony That Defendant Lied during Police Interview

2. The court's error in admitting into evidence in defendant's nonjury criminal trial over proper objection opinion testimony from an investigator that defendant had lied to him during a post-arrest interview was harmless.

Absent some reliable indication that, notwithstanding the erroneous ruling, the judge knows that the evidence must be disregarded, it cannot be presumed that the judge, acting as the finder of fact, will forgo consideration of the evidence during the course of the trial or in reaching a verdict. Here, the judge's on-the-record statement that he was "not taking [the investigator's] judgment" provided sufficient assurance that he was not adopting the investigator's assessment of defendant's honesty.

Crimes — Conduct of Trial Judge — Request to Sequester Judge's Notes and Electronic Devices

3. The denial of defendant's mistrial motions and request during his nonjury criminal trial to sequester the judge's notes, cell phone, computer and an unidentified document alleged to be a document not in evidence did not deprive defendant of proper appellate review. In a nonjury trial the judge serves dual roles, and while sitting as the factfinder the judge continues to be responsible for all the judicial obligations attendant to overseeing a trial. Thus, a judge may take notes and rely on technological instruments to facilitate the proper discharge of those judicial duties. Moreover, any claim that the judge misused items defendant sought to have sequestered or that the judge was distracted and failed to give proper consideration to the evidence was unsupported by the record. Trial counsel admitted he did not know the nature or content of the document the judge was holding, and the judge indicated that he did not know what document counsel was referencing and assured him that he was listening to the testimony. Additionally, counsel failed to object at the time of the alleged misuse of the notes and electronic devices, and based his subsequent mistrial motion on mere observations of the judge's possession and unspecified operation of the phone and computer. Under such circumstances, there was no abuse of discretion in the trial judge's denial of defendant's motions.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 244, 249, 252, 261; AM JUR 2d, Evidence §§ 472–473, 1389, AM JUR 2d, Indictments and Informations §§ 44, 127; AM JUR 2d, Mentally Impaired Persons §§ 125–126.

CARMODY-WAIT 2d, Commencing the Prosecution; Grand Jury § 178:314; CARMODY-WAIT 2d, Timeliness of Prosecution; Speedy Trial §§ 186:11, 186:14, 186:20, 186:29.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 18.3, 18.5, 19.3.

McKINNEY'S, CPL 30.10 (3) (e), (f).

NY JUR 2d, Criminal Law: Procedure §§ 1884–1885, 1889–1892; NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 623–625, 685; NY JUR 2d, Limitations and Laches § 133.

ANNOTATION REFERENCE

See ALR Index under Children and Minors; Criminal

Law; Indictments and Informations; Limitations of Actions;
Sexual Relations and Offenses.

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POINTS OF COUNSEL

Easton Thompson Kasperek Shiffrin LLP, Rochester (Brian Shiffrin of counsel), for appellant. I. The 2012 commencement of a prosecution of Mr. Luis Pabon for course of sexual conduct in the first degree for acts allegedly committed no later than February 1999 was time-barred by CPL 30.10. (*People v Keindl*, 68 NY2d 410; *People v Devane*, 78 AD3d 1586; *People v Muhina*, 66 AD3d 1397, 13 NY3d 909; *People v Perry*, 114 AD3d 1282; *People v Leisner*, 73 NY2d 140; *People v Randall-Whitaker*, 55 AD3d 931; *People v Scanlon*, 52 AD3d 1035; *People v DeLong*, 206 AD2d 914; *Matter of Caselnova v New York State Dept. of Health*, 91 NY2d 441; *People v Walker*, 81 NY2d 661.) II. The admission, over objection, of the personal opinion of the investigating officer that Mr. Pabon lied when he denied guilt was reversible error. (*People v Williams*, 20 NY3d 579; *People v Smith*, 18 NY3d 544; *People v Arnold*, 98 NY2d 63; *People v Moreno*, 70 NY2d 403; *People v Brown*, 24 NY2d 168; *People v Smith*, 104 AD2d 160; *People v Walden*, 148 AD2d 971; *People v Kozlowski*, 11 NY3d 223; *People v Ciaccio*, 47 NY2d 431; *People v Williams*, 6 NY2d 18.) III. The trial court's failure to respond to, let alone refute, the claim of improper conduct and its refusal to sequester the relevant evidence deprived Mr. Pabon of his right to appellate review of the denial of the mistrial motion based on improper conduct of the court. (*People v Moreno*, 70 NY2d 403; *People v Ashwal*, 39 NY2d 105; *People v Reynolds*, 90 AD3d 956; *Price Bros. Co. v Philadelphia Gear Corp.*, 629 F2d 444; *People v Giarletta*, 72 AD3d 838; *People v Brown*, 24 NY2d 168; *People v Montgomery*, 24 NY2d 130; *People v Kinchen*, 60 NY2d 772; *People v Charleston*, 54 NY2d 622; *People v De Mauro*, 48 NY2d 892.)

Sandra Doorley, District Attorney, Rochester (Robert J. Shoemaker of counsel), for respondent. I. The charge was not time-barred. (*Stogner v California*, 539 US 607; *New York State Psychiatric Assn., Inc. v New York State Dept. of Health*, 19 NY3d 17; *Matter of Dutchess County Dept. of Social Servs. v*

Day, 96 NY2d 149; *People v Ryan*, 274 NY 149; *People ex rel. Wood v Lacombe*, 99 NY 43; *People v Hammons*, 7 Misc 3d 1028[A], 2005 NY Slip Op 50794[U], 68 AD3d 1800, 14 NY3d 801; *People v Quinto*, 77 AD3d 76, 18 NY3d 409.) II. The personal opinion of the investigator did not deprive defendant of a fair trial. (*People v Glover*, 195 AD2d 999; *People v Lewis*, 11 AD3d 954; *People v Hartzog*, 15 AD3d 866, 4 NY3d 831; *People v Cronin*, 60 NY2d 430; *People v Kozlowski*, 11 NY3d 223; *People v Mann*, 172 AD2d 1010; *People v Gupton*, 281 AD2d 963; *People v Sims*, 127 AD2d 805, 70 NY2d 656; *People v Smith*, 77 AD3d 564, 16 NY3d 837; *People v Brown*, 24 NY2d 168.) III. The Judge properly refused to sequester his cell phone, his computer, and his paper work. (*People v Gilbert*, 103 AD2d 967; *People v Mays*, 197 AD2d 361; *People v Reynolds*, 90 AD3d 956; *People v Giarletta*, 72 AD3d 838; *People v Harrison*, 85 NY2d 794; *People v Mann*, 172 AD2d 1010; *People v Moreno*, 70 NY2d 403.)

OPINION OF THE COURT

RIVERA, J.

Defendant Luis A. Pabon challenges his conviction upon a nonjury verdict on the grounds that his prosecution is untimely, the judge was exposed to inadmissible opinion testimony prejudicial to the defense, and the judge erroneously refused to sequester items essential to defendant's claims of judicial misconduct. Contrary to defendant's argument, the tolling provision of CPL 30.10 (3) (f) applies to his crime and as a result the indictment is not time-barred. Defendant's other claims present no basis to overturn his conviction, or otherwise disturb the decision below.

Defendant was indicted on one count of course of sexual conduct in the first degree (Penal Law § 130.75 [1] [a]) for acts committed between 1998 and 1999 when he sexually assaulted AM, the seven-year-old daughter of defendant's former lover. Defendant was charged after AM disclosed the abuse to the police in 2012, when she was 21 years old.

Before trial, defendant moved to dismiss the indictment as time-barred. Supreme Court denied the motion, rejecting defendant's argument that CPL 30.10 (3) (f) did not toll the limitations period because such a reading would render the five-year limitations period in CPL 30.10 (3) (e) superfluous.

At defendant's nonjury trial, an investigating officer testified that he believed defendant lied to him when defendant denied

the allegations during a post-arrest interview. Defense counsel objected, asserting that the investigator could not testify as to defendant's veracity because that was a matter to be determined solely by the court. The judge overruled the objection stating he was listening to the testimony and "not taking [the investigator's] judgment."

Defense counsel also moved for a mistrial twice, based on what counsel argued was inappropriate behavior by the judge "sitting as the sole juror in the case." Specifically, counsel objected to what he assumed was the judge's reading of a document not in evidence while the investigator testified and to the judge's note-taking and alleged operation of a cell phone and a computer during the trial. The court denied the mistrial motions, as well as counsel's request that the judge sequester his cell phone, computer, notes, and the document.

The Appellate Division affirmed the conviction, with one Justice dissenting (126 AD3d 1447 [4th Dept 2015]). As relevant here, the Court held that the indictment was not time-barred because CPL 30.10 (3) (f) tolled the statute of limitations for defendant's crime until the victim attained the age of 18. The Court further concluded that admission of the investigator's opinion testimony was harmless error because "in a nonjury trial, the court is presumed to be capable of disregarding any improper or unduly prejudicial aspect of the evidence" (*id.* at 1448). The Court also summarily rejected defendant's claim that he was denied appellate review by the judge's refusal to sequester the named items (*id.* at 1449).

The dissent would have reversed and dismissed the indictment as time-barred, concluding that application of CPL 30.10 (3) (f) to toll the five-year limitations period of CPL 30.10 (3) (e) would render the latter superfluous and ineffective (*id.* at 1450). The dissenting Justice granted defendant leave to appeal (25 NY3d 1174 [2015, DeJoseph, J.]).

Defendant claims his prosecution is time-barred because the applicable five-year limitations period set forth in CPL former 30.10 (3) (e) expired before the filing of the felony complaint, and the statute of limitations is not subject to tolling under CPL 30.10 (3) (f). Defendant's argument is unpersuasive, misconstrues the statutory provisions, and ignores the relevant legislative history. The crime for which defendant stands convicted is expressly encompassed by CPL 30.10 (3) (f), and involves the type of conduct the legislature sought to address

by expansive, albeit delayed, prosecution of multiple acts of sexual abuse against a minor.

It is well established that since “the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language itself, giving effect to the plain meaning thereof” (*People v Golo*, 26 NY3d 358, 361 [2015], citing *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). “[W]hen the statutory language is clear and unambiguous, it should be construed so as to give effect to the plain meaning of the words used” (*People v Jones*, 26 NY3d 730, 733 [2016]). Further, “[a]ll parts of a statute must be harmonized with each other as well as with the general intent of the whole statute, and effect and meaning must, if possible, be given to the entire statute and every part and word thereof” (McKinney’s Cons Laws of NY, Book 1, Statutes § 98 [a]).

In 1996, the legislature enacted Penal Law § 130.75 creating the crime for which defendant was convicted, course of sexual conduct against a child in the first degree (L 1996, ch 122, § 6). At the same time the legislature added CPL 30.10 (3) (e) and (f). Section 30.10 (3) (e) provided, in relevant part, that “[a] prosecution for course of sexual conduct in the first degree as defined in section 130.75 of the penal law . . . may be commenced within five years of the commission of the most recent act of sexual conduct.” Section 30.10 (3) (f) tolls the limitations period in a prosecution of a sex offense against a minor, and mandates,

“[f]or purposes of a prosecution involving a sexual offense as defined in article one hundred thirty of the penal law committed against a child less than eighteen years of age . . . , the period of limitation shall not begin to run until the child has reached the age of eighteen or the offense is reported to a law enforcement agency or statewide central register of child abuse and maltreatment, whichever occurs earlier.”

In 2006, the legislature eliminated the statute of limitations in CPL 30.10 (3) (e) for course of sexual conduct against a child in the first degree, and in its place, by amendment to CPL 30.10 (2) (a), provided that prosecution of this crime “may be commenced at any time” (CPL 30.10, as amended by L 2006, ch 3). The legislature intended that the change apply retroactively to

offenses whose respective statutes of limitations had not expired by the effective date of the amendment (L 2006, ch 3, § 5 [eff June 2006], reprinted in 2006 McKinney's Session Laws of NY at 5; see generally *Stogner v California*, 539 US 607 [2003]).

By its plain language, and under prescribed circumstances not challenged on this appeal, CPL 30.10 (3) (f) tolls the period of limitations applicable to course of sexual conduct against a child in the first degree, as defined in Penal Law § 130.75 (1) (a). Defendant does not challenge the clarity of the text or this direct line of analysis. Instead, defendant claims that the application of this interpretation presents a statutory conflict. As defendant sees it, because the tolling provision in CPL 30.10 (3) (f) applies to the general five-year statute of limitations in CPL 30.10 (2) (b), which governs all non-class A felonies including, by definition, defendant's crime, and since his crime is a continuing crime, meaning the limitations period would have commenced with the last act committed, there is no circumstance under which the specific limitations period in CPL 30.10 (3) (e) controls, rather than the period in CPL 30.10 (2) (b). In that case, CPL 30.10 (3) (e) serves no purpose and is mere statutory surplus. Defendant argues this result is in contravention of the rules of statutory interpretation which require both that a statute be construed to give meaning to all its words and that, where a conflict arises between parts of a statute, the specific overrides the general. To avoid this result, defendant claims that the tolling provision in paragraph (f) should not apply to the statute of limitations in paragraph (e).

[1] Defendant's proposed construction can neither be squared with the text, legislative purpose, and history of the relevant statutory provisions, nor can it find support in logic and reason. Unlike CPL 30.10 (3) (e), which is a self-contained statute of limitations, CPL 30.10 (3) (f) is a tolling provision and as such is dependent on reference to time limits found elsewhere in the statute. Defendant mistakenly equates the two paragraphs—as if they are both statutes of limitations—when he claims they are in conflict and the specific provision of CPL 30.10 (3) (e) overrides the general provision of CPL 30.10 (3) (f). The more apt comparison is to the two statutes of limitations in CPL 30.10 (3) (e) and 30.10 (2) (b), which harmoniously coexist as a specific and general statute of limitations, respectively, and which in no way lead to the conclusion promoted by defendant, that CPL 30.10 (3) (e) is superfluous. Regardless, there is no

conflict obvious from the interplay of paragraphs (e) and (f) of subdivision (3). One sets forth a five-year prosecution deadline and the other explains when the clock begins to run on that deadline.

Apart from this text-based analysis, our interpretation of these paragraphs is also consistent with the purpose of the 1996 legislation and the 2006 amendment. The legislature created the crime of course of sexual conduct against a child (Penal Law § 130.75) in order to address the difficulty in prosecuting multiple sexual offenses committed against a child over an extended period of time. Under this Court's 1986 decision in *People v Keindl* (68 NY2d 410 [1986]), in order to provide sufficient notice to the defendant as to the crimes charged, prosecutors needed to charge each instance of sexual assault separately, and with specificity as to the intervals of the past events (see *People v Morris*, 61 NY2d 290 [1984]; *People v Watt*, 84 NY2d 948 [1994]). Based on the reality that child victims are less capable of providing specific detail as to the dates and times of each sexual assault committed over an extended period of time, claims of continued abuse went unprosecuted because child victims often could not remember the dates when the sexual assaults had occurred or how many times they were assaulted in that same period of time. In 1996, the legislature voted to remove this impediment to the prosecution of those who commit repeated sex crimes against minors during a period of time in excess of three months. The 1996 amendment, which created the crime of course of sexual conduct against a child and the five-year statute of limitations set forth in CPL 30.10 (3) (e), rendered repeated sexual assaults "continuing crimes," which "can be prosecuted and proven regardless of whether child-victims can specify the particular dates and times of the individual acts of sexual conduct" (Governor's Program Bill Mem No. 39R, Bill Jacket, L 1996, ch 122 at 8). Simply put, CPL 30.10 (3) (e) was intended to address the obstacles to prosecution by recognizing that a series of multiple sexual assaults of a child over an extended period of time is, indeed, a continuous crime.

The legislature also sought to address additional barriers to prosecution by tolling the statutes of limitations. As this Court has explained, at the time CPL 30.10 (3) (e) and (f) were enacted,

"there was a widespread recognition that the strictures of the limitations periods pertaining to

sex offenses against children presented unique difficulties because many child victims are hesitant or fearful of disclosing such crimes, especially when the sexual abuse is committed by a family member or an individual in the child's household. In response to these concerns, new laws adding tolling provisions to the statutes of limitations for sexual offenses against children were enacted in 1996 as part of a 'major step' toward 'ensur[ing] that the law provides the highest level of protection possible to these most vulnerable victims' (*People v Quinto*, 18 NY3d 409, 412 [2012], quoting Letter from President of Borough of Queens, June 5, 1996, Bill Jacket, L 1996, ch 122 at 22, and Letter from Mayor of City of NY, June 5, 1996, Bill Jacket, L 1996, ch 122 at 28).

As a consequence, "CPL 30.10 (3) (f) was a major component of the legislative package" (*Quinto*, 18 NY3d at 413). This legislative goal of

"[d]elaying the commencement of the relevant limitations period until the age of maturity was intended to 'increase the likelihood that young adults, recently freed from a position of dependency, will disclose the offenses committed against them in order to seek redress through the criminal justice system' and that this would 'also improve opportunities for preventing recurrences of the conduct by the perpetrator'" (*id.* at 413, quoting Letter from Council on Children and Families, June 17, 1996, Bill Jacket, L 1996, ch 122 at 18).

The language and history of the subsequent 2006 amendments to CPL 30.10 (3) (e) and (f) further illustrate that the legislature could not have intended defendant's interpretation. The 2006 amendment eliminated the limitations period for course of sexual conduct against a child in the first degree from CPL 30.10 (3) (e), and included it in CPL 30.10 (2) (a) (CPL 30.10, as amended by L 2006, ch 3). Section 30.10 (3) (f) was also amended to toll the period of limitations for sexual offenses defined in article 130, "*other than* a sexual offense delineated in" CPL 30.10 (2) (a) (*id.* [emphasis added]). These changes to the statutory scheme explicitly excluded course of sexual conduct against a child in the first degree from CPL

30.10 (3) (f), meaning that the legislature must have understood CPL 30.10 (3) (f) to have applied to this crime prior to the amendment. In other words, the legislature would not have excluded a crime from CPL 30.10 (3) (f) unless it believed that crime was previously within its ambit.*

The plain language of CPL 30.10 (3) (e) and (f), the natural interplay between these provisions, and the legislative history of the 1996 and 2006 amendments provide ample reasons to reject defendant's proposed interpretation, but there is also the problem that defendant's construction leads to absurd results. We carefully scrutinize this impact of defendant's approach because courts are "governed by the principle that we must interpret a statute so as to avoid an unreasonable or absurd application of the law" (*People v Garson*, 6 NY3d 604, 614 [2006] [internal quotation marks omitted], citing *People v Santi*, 3 NY3d 234, 244 [2004]). Indeed, "courts have repeatedly rejected statutory constructions that are unconscionable or antithetical to legislative objectives" (*Matter of New York State Assn. of Criminal Defense Lawyers v Kaye*, 96 NY2d 512, 519 [2001]).

Two examples illustrate why the interpretation defendant advocates is untenable. First, if we applied defendant's reading to the statute, it would mean that the People could not prosecute a defendant in the case of a victim sexually abused from ages three to four who discloses at 16, because the statute of limitations would have expired when the child turned nine, but if the crimes referenced in CPL 30.10 (3) (e) were tolled under CPL 30.10 (3) (f) until disclosure at age 16, the statute of limitations would not expire until the child turned 21. Certainly the legislature, set on removing obstacles to prosecutions and recognizing "child victims are hesitant or fearful of disclosing such crimes" (*Quinto*, 18 NY3d at 412), could not have intended the statute to foreclose prosecution in such a case. Second, under defendant's approach prosecutions of single abuse cases would be tolled, while those involving multiple acts against a minor would be barred five years after the last act. Meaning that, had defendant been accused of sexually abusing AM just once, he could have been prosecuted up to and

* Defendant attempts to obfuscate the obvious, that the legislature could not make plainer its intent to extend the time for prosecution of this crime, both by eliminating the statute of limitations and by intending that the amendment have retroactive application to the fullest extent permissible under the law.

until 2015, but, having been accused of *continued* sexual abuse over a three-month period, his prosecution was entirely foreclosed after 2004. Defendant's interpretation thereby does less to prevent a recurrence of sexual abuse of children than to incentivize a child abuser to commit multiple acts. Such interpretation is "unconscionable or antithetical to [the] legislative objectives" (*Assn. of Criminal Defense Lawyers*, 96 NY2d at 519) of "improv[ing] opportunities for preventing recurrences of the conduct by the perpetrator" (*Quinto*, 18 NY3d at 413 [citation and internal quotation marks omitted]).

In sum, application of CPL 30.10 (3) (f) to crimes described in CPL 30.10 (3) (e) conforms with the statutory text and furthers the legislative goal of those statutes by tolling the limitations period. Therefore, defendant's prosecution is not time-barred.

Defendant's alternative claim that the trial judge's admission of irrelevant testimony warrants a new trial is unpersuasive because the error was harmless. As the Appellate Division correctly determined, the judge should not have admitted the investigator's opinion testimony that defendant lied to him during the interview (*see People v Ciaccio*, 47 NY2d 431, 439 [1979] ["(i)t is always within the sole province of the jury to decide whether the testimony of any witness is truthful or not"]). Instead, the appropriate course would have been for the judge to sustain defense counsel's objection and preclude or strike the testimony. Nevertheless, the Appellate Division has applied a presumption that a court in a nonjury trial will disregard improper evidence because judges, unlike jurors, are sufficiently well-versed in the law to understand rules of evidence and, in the case of a bench trial, may be presumed to rely only on admissible evidence (*see e.g. People v Cobb*, 294 AD2d 199, 200 [1st Dept 2002]; *People v Livingston*, 184 AD2d 529 [2d Dept 1992]; *People v Maxam*, 161 AD2d 961 [3d Dept 1990]; *People v LoMaglio*, 124 AD3d 1414 [4th Dept 2015]). In the same vein, this Court in *People v Moreno* (70 NY2d 403, 406 [1987], quoting *People v Brown*, 24 NY2d 168, 172 [1969]) has recognized that a judge, "by reasons of [his] learning, experience and judicial discipline, is uniquely capable of distinguishing the issues and of making an objective determination' based upon appropriate legal criteria, despite awareness of facts which cannot properly be relied upon in making the decision." Defendant argues that this presumption does not apply when a judge erroneously admits evidence because, by

admitting it, the judge has revealed a misunderstanding regarding the evidence's proper use.

[2] We need not resolve the applicability of the presumption recognized by the Appellate Division as a general matter because the underlying rationale for such a presumption does not logically extend to this case, where the judge erroneously allowed inadmissible evidence over proper objection. Absent some reliable indication that, notwithstanding the erroneous ruling, the judge knows that the evidence must be disregarded, we cannot presume the judge, acting as the finder of fact, will forgo consideration of the evidence during the course of the trial or in reaching a verdict (*cf. People v Smith*, 18 NY3d 544, 552 [2012] [judge's erroneous admission of evidence warranted reversal because the judge "clearly relied" on the evidence and it "led to the conviction"])). Here, the judge's on-the-record statement that he was "not taking [the investigator's] judgment" provides sufficient assurance that he was not adopting the investigator's assessment of defendant's honesty. Therefore, the erroneous admission of the testimony was harmless.

[3] We also reject defendant's remaining claim that the judge's denial of his mistrial motions and request to sequester the judge's notes, cell phone, computer, and unidentified document deprived defendant of proper appellate review. Defendant contends that in a bench trial the judge sits as a jury and is therefore subject to the same limitations as any juror, meaning the judge may not look at unadmitted documents, take notes, or use electronic devices during the proceedings. Defendant ignores that in a nonjury trial the judge serves in dual roles, and while sitting as the factfinder the judge continues to be responsible for all the judicial obligations attendant to overseeing a trial. Thus, a judge may take notes and rely on technological instruments to facilitate the proper discharge of these judicial duties.

To the extent defendant claims the judge misused items defendant sought to have sequestered or, as his arguments imply, that the judge was distracted and failed to give proper consideration to the evidence, his claims are unsupported by the record. Trial counsel admitted he did not know the nature or content of the document the judge was holding and, as the record shows, the judge indicated that although he did not know what document counsel was referencing, he assured him that he was in fact listening to the testimony. Additionally, counsel failed to object at the time of the alleged misuse of the

notes and electronic devices, and based his subsequent mistrial motion on mere observations of the judge's possession and unspecified operation of the phone and computer. Under these circumstances, we perceive no abuse of discretion in the trial judge's denial of defendant's motions for mistrial and to sequester the named items (*see Harris v Village of E. Hills*, 41 NY2d 446, 451 [1977]; *see also People v Rice*, 75 NY2d 929, 933 [1990]).

Accordingly, the order of the Appellate Division should be affirmed.

PIGOTT, J. (concurring). I would affirm for reasons stated in the memorandum of the Appellate Division (126 AD3d 1447 [2015]).

Chief Judge DiFIORE and Judges ABDUS-SALAAM, STEIN and FAHEY concur; Judge PIGOTT concurs in result in an opinion in which Judge GARCIA concurs.

Order affirmed.

[65 NE3d 1253, 43 NYS3d 218]

JUSTINIAN CAPITAL SPC, for and on Behalf of BLUE HERON
SEGREGATED PORTFOLIO, Appellant, v WESTLB AG, NEW
YORK BRANCH, et al., Respondents.

Argued September 14, 2016; decided October 27, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 21, 2015. The Appellate Division affirmed an order of the Supreme Court, New York County (Shirley Werner Kornreich, J.; op 43 Misc 3d 598 [2014]), which had (1) granted the motion by defendants WestLB AG, New York Branch and WestLB Asset Management (US) LLC for summary judgment dismissing the complaint on the ground of champerty, and (2) directed the clerk to enter judgment dismissing the complaint with prejudice.

Justinian Capital SPC v WestLB AG, 128 AD3d 553, affirmed.

HEADNOTES

Assignments — Purchase of Claims for Purpose of Bringing Action — Champerty

1. Plaintiff's acquisition of notes from nonparty assignor, a German bank which received substantial support from the German government, was champertous as a matter of law, since the notes were acquired for the sole purpose of bringing litigation against defendants, German banks partly owned by the government, so the assignor could avoid any repercussions from filing a direct action against defendants. Judiciary Law § 489, New York's champerty statute, restricts individuals and companies from purchasing or taking an assignment of notes or other securities "with the intent and for the purpose of bringing an action or proceeding thereon" (Judiciary Law § 489 [1]). Therefore, to constitute the offense of champerty the primary purpose of the purchase must be to enable one to bring a suit, and the intent to bring a suit must not be merely incidental and contingent. Here, the impetus for the assignment of the notes to plaintiff, a shell company with few or no assets, was the nonparty assignor's desire to sue defendants for causing the notes' decline in value and not be named as the plaintiff in the lawsuit. Plaintiff's business plan, in turn, was acquiring investments that suffered major losses in order to sue on them, and it did so here within days after it was assigned the notes. There was no evidence that plaintiff's acquisition of the notes was for any purpose other than the lawsuit it commenced almost immediately after acquiring the notes. The lawsuit was not merely an incidental or secondary purpose of the assignment, but its very essence.

Assignments — Purchase of Claims for Purpose of Bringing Action — Champerty — Safe Harbor Provision

2. Plaintiff's champertous conduct in acquiring notes from nonparty assignor for the purpose of bringing litigation against defendants did not fall

within the safe harbor provision of Judiciary Law § 489 (2), where plaintiff did not pay the purchase price or have a binding and bona fide obligation to pay the purchase price of the notes independent of the successful outcome of the lawsuit. Judiciary Law § 489 (2) exempts the purchase or assignment of notes or other securities from the restrictions of section 489 (1) when the notes or other securities “hav[e] an aggregate purchase price of at least [\$500,000].” Requiring that an actual payment of at least \$500,000 have been made for large-scale commercial transactions in New York’s debt-trading markets to fall within the safe harbor would be overly restrictive and hinder the legislative goal of market fluidity. Thus, the phrase “purchase price” in section 489 (2) is better understood as requiring a binding and bona fide obligation to pay \$500,000 or more for notes or other securities, which is satisfied by actual payment of at least \$500,000 or the transfer of financial value worth at least that amount in exchange for the notes or other securities. The sale and purchase agreement here was structured so that plaintiff did not have to pay the \$1,000,000 base purchase price unless the lawsuit was successful. The due date listed for the purchase price was artificial because failure to pay the purchase price by that date did not constitute a default or a breach of the agreement. Rather, the agreement permitted plaintiff to exercise the option to let the due date pass without consequence and deduct the purchase price from its share of any proceeds from the lawsuit.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Assignments §§ 114, 136, 139; AM JUR 2d, Bills and Notes §§ 8, 185, 217; AM JUR 2d, Champerty, Maintenance, and Barratry §§ 1, 3, 6, 8, 15.
CARMODY-WAIT 2d, Officers of Court §§ 3:226–3:227, 3:238–3:241; CARMODY-WAIT 2d, Parties § 19:35.
MCKINNEY’S, Judiciary Law §§ 489 (1), (2).
NEW YORK CONTRACT LAW §§ 15:1–15:14.
NY JUR 2d, Assignments § 37; NY JUR 2d, Champerty and Maintenance §§ 1–14.
WILLISTON ON CONTRACTS (4th ed) §§ 15:1–15:5, 74:1, 74:55.

ANNOTATION REFERENCE

Assertion of defense of champerty in action by champer-tous assignee. 22 ALR2d 1000.

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POINTS OF COUNSEL

Grant & Eisenhofer P.A., New York City (*James J. Sabella*,
Jay W. Eisenhofer, *Deborah A. Elman* and *Robert D. Gerson* of

counsel), for appellant. I. Defendants bear the burden of proving champerty. (*Bluebird Partners v First Fid. Bank*, 94 NY2d 726.) II. The Appellate Division erred in holding that a binding obligation to transfer \$500,000 to the seller is insufficient to satisfy the safe harbor of Judiciary Law § 489 (2), and that, instead, the \$500,000 must actually have changed hands. (*Vollmer v Automobile Fire Ins. Co.*, 207 App Div 67; *Chartis Specialty Ins. Co. v Queen Anne HS, LLC*, 867 F Supp 2d 1111; *Matter of Auerbach v Board of Educ. of City School Dist. of City of N.Y.*, 86 NY2d 198; *Puckett v United States*, 556 US 129; *Bunton v Houze*, 40 Misc 3d 1212[A], 2013 NY Slip Op 51164[U].) III. The Appellate Division erred in upholding summary judgment that the assignment was champertous, given that there is substantial evidence that the assignment did not stir up litigation and that the purpose of the assignment was to enforce a legitimate claim. (*Coopers & Lybrand v Levitt*, 52 AD2d 493; *Lost Lots Assoc. v Bruyn*, 68 AD2d 1006; *Knobel v Estate of Eugene A. Hoffman, Inc.*, 105 Misc 2d 333; *Trust for Certificate Holders of Merrill Lynch Mtge. Invs., Inc. Mtge. Pass-Through Certificates, Series 1999-C1 v Love Funding Corp.*, 13 NY3d 190.)

Hughes Hubbard & Reed LLP, New York City (*Christopher M. Paparella, Marc A. Weinstein, Savvas A. Foukas and Seth Schulman-Marcus* of counsel), for respondents. I. The champerty statute's safe harbor does not extend to a sham purchase price. (*Matter of Long v Adirondack Park Agency*, 76 NY2d 416; *Long v State of New York*, 7 NY3d 269; *People v Santi*, 3 NY3d 234; *Vollmer v Automobile Fire Ins. Co.*, 207 App Div 67; *Chartis Specialty Ins. Co. v Queen Anne HS, LLC*, 867 F Supp 2d 1111; *Matter of Tompkins County Support Collection Unit v Chamberlin*, 99 NY2d 328.) II. The agreement is champertous. (*Trust for Certificate Holders of Merrill Lynch Mtge. Invs., Inc. Mtge. Pass-Through Certificates, Series 1999-C1 v Love Funding Corp.*, 13 NY3d 190; *Ehrlich v Rebco Ins. Exch.*, 225 AD2d 75; *Bennett v Supreme Enforcement Corp.*, 275 NY 502; *Zindle, Inc. v Friedman's Express, Inc.*, 258 App Div 636; *Hospital Credit Exch., Inc. v Shapiro*, 186 Misc 658; *BSC Assoc., LLC v Leidos, Inc.*, 91 F Supp 3d 319; *Fairchild Hiller Corp. v McDonnell Douglas Corp.*, 28 NY2d 325; *Wightman v Catlin*, 113 App Div 24.)

Kellogg, Huber, Hansen, Todd, Evans & Figel, P.L.L.C., Washington, D.C. (*Derek T. Ho* of counsel), and *Burford Capital LLC*, New York City (*Melissa P. Sobel* of counsel), for Burford

Capital LLC, amicus curiae. I. Judiciary Law § 489 does not prohibit transactions designed to facilitate enforcement of valid claims, only those that seek to profit by securing litigation costs. (*Bluebird Partners v First Fid. Bank*, 94 NY2d 726; *Elliott Assoc., L.P. v Banco de la Nacion*, 194 F3d 363; *Moses v McDivitt*, 88 NY 62; *Wetmore v Hegeman*, 88 NY 69; *Beers v Washbond*, 86 App Div 582; *Wightman v Catlin*, 113 App Div 24; *Trust for Certificate Holders of Merrill Lynch Mtge. Invs., Inc. Mtge. Pass-Through Certificates, Series 1999-C1 v Love Funding Corp.*, 13 NY3d 190; *Matter of Aronsky v Board of Educ., Community School Dist. No. 22 of City of N.Y.*, 75 NY2d 997; *Matter of Moran Towing & Transp. Co. v New York State Tax Commn.*, 72 NY2d 166; *Del Webb Communities, Inc. v Partington*, 652 F3d 1145.) II. Judiciary Law § 489's safe harbor applies to transactions involving a payment obligation of at least \$500,000. (*Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55; *McKechnie v Ortiz*, 132 AD2d 472; *Matter of Delmar Box Co. [Aetna Ins. Co.]*, 309 NY 60.)

OPINION OF THE COURT

Chief Judge DiFiore.

The concept of champerty dates back to French feudal times (*Bluebird Partners v First Fid. Bank*, 94 NY2d 726, 733-734 [2000]). In the English legal system, the word “champart” was used “as a metaphor to indicate a disapproval of lawsuits brought ‘for part of the profits’ of the action” (*id.* at 734 [citations omitted]). As we have explained, the champerty doctrine was developed “to prevent or curtail the commercialization of or trading in litigation” (*id.* at 729). New York's champerty doctrine is codified at Judiciary Law § 489 (1). As pertinent here, the statute prohibits the purchase of notes, securities, or other instruments or claims with the intent and for the primary purpose of bringing a lawsuit (*see id.* at 735-736).

Justinian Capital SPC, a Cayman Islands company, brings this action against WestLB AG, New York Branch and WestLB Asset Management (US) LLC (collectively, WestLB), alleging that WestLB's fraud (among other malfeasance) in managing two investment vehicles caused a steep decline in the value of notes purchased by nonparty Deutsche Pfandbriefbank AG (DPAG). Justinian acquired the notes from DPAG days before it commenced this action.

In this appeal, we must first decide whether Justinian's acquisition of the notes from DPAG is champertous as a matter

of law. If the answer is “yes,” we must then decide whether the acquisition falls within the champerty statute’s safe harbor provision codified at Judiciary Law § 489 (2). The safe harbor provides that the champerty doctrine of section 489 (1) is inapplicable when the notes or other securities are acquired for “an aggregate purchase price of at least five hundred thousand dollars” (Judiciary Law § 489 [2]).

As set forth below, we hold that Justinian’s acquisition of the notes was champertous and, further, that Justinian is not entitled to the protection of the safe harbor provision. Therefore, the order of the Appellate Division should be affirmed.

I.

In 2003, nonparty DPAG invested close to €180 million (approximately \$209 million) in notes (the notes) issued by two special purpose companies, Blue Heron Funding VI Ltd. and Blue Heron Funding VII Ltd. (collectively, the Blue Heron portfolios). The Blue Heron portfolios were sponsored and managed by defendants WestLB. By January 2008, the notes had lost much (if not all) of their value.

After the value of the notes declined, DPAG considered its options. In the summer of 2009, DPAG’s board of directors approved filing a direct lawsuit against WestLB. Both DPAG and WestLB are German banks and, at the time, DPAG was receiving substantial support from the German government and WestLB was partly owned by the government. Because of these relationships the DPAG board expressed concerns about pursuing a direct action to vindicate its rights for fear that the government would withdraw support from DPAG if it sued WestLB. This fear of repercussions from bringing a direct lawsuit led DPAG to consider another option in which a third party would bring the lawsuit and remit a portion of any proceeds to DPAG. In February 2010, DPAG discussed this option with plaintiff Justinian, a Cayman Islands shell company with few or no assets. A presentation submitted by Justinian in this action described Justinian’s business plan as:

“(1) purchase an investment that has suffered a major loss from a company so that the company does not need to report such loss on its balance sheet; (2) commence litigation to recover the loss on the investment; (3) remit the recovery from such litigation to the company, minus a cut taken by

Justinian; and (4) partner with specific law firms . . . to conduct litigation.”

Ultimately, the DPAG board approved the option of having Justinian bring suit because it presented the “best risk return profile” for DPAG.

In April 2010, DPAG and Justinian entered into a sale and purchase agreement (the agreement). Pursuant to the agreement, DPAG would assign the notes to Justinian and Justinian would agree to pay DPAG a base purchase price of \$1,000,000 (representing \$500,000 for the Blue Heron Funding VI notes and \$500,000 for the Blue Heron Funding VII notes). The notes were assigned to Justinian shortly after execution of the agreement. The assignment, however, was not contingent on Justinian’s payment of the \$1,000,000. Nor did Justinian’s failure to pay the \$1,000,000 constitute an event of default under section 9 of the agreement. According to Justinian’s principal and chief negotiator of the agreement, Thomas Lowe, Justinian’s failure to pay the \$1,000,000 did not constitute a breach of the agreement. Under the terms of the agreement, the only consequences of Justinian’s failure to pay by the selected due date appear to be that interest would accrue on the \$1,000,000 and that Justinian’s share of any proceeds recovered from the lawsuit would be reduced from 20% to 15%. Justinian has not paid any portion of the \$1,000,000 base purchase price, and DPAG has not demanded payment.

Within days after the agreement was executed and shortly before the statute of limitations was to expire, Justinian filed a summons with notice in Supreme Court commencing this action against WestLB.¹ The subsequent complaint alleged causes of action in breach of contract, fraud, breach of fiduciary duty, negligence, negligent misrepresentation, and breach of the covenants of good faith and fair dealing, all in connection with WestLB’s alleged purchase of ineligible assets for the Blue Heron portfolios that caused the value of the notes to deteriorate.

WestLB moved to dismiss, alleging that Justinian lacked standing to bring this action. Justinian opposed the motion. In reply, WestLB raised the affirmative defense of champerty, arguing that Justinian’s acquisition of the notes was champertous under Judiciary Law § 489. After oral argument, Supreme

1. Brightwater Capital Management LLC was also named as a defendant, but was dismissed from the case by Supreme Court.

Court issued a written decision concluding that there were “questions of fact surrounding Justinian’s actual purpose and intent in purchasing the [notes] that require further discovery to resolve” (37 Misc 3d 518, 528 [Sup Ct, NY County 2012]). The court ordered discovery limited to the issues related to champerty and reserved judgment on the motion to dismiss.

After champerty-related discovery was complete, WestLB renewed its motion to dismiss, which Supreme Court treated as a motion for summary judgment. Supreme Court dismissed the complaint, concluding that the agreement was champertous because Justinian had not made a bona fide purchase of the notes and was, therefore, suing on a debt it did not own. Supreme Court also concluded that Justinian was not entitled to the protection of the champerty safe harbor of Judiciary Law § 489 (2) because Justinian had not made an actual payment of \$500,000 or more (43 Misc 3d 598 [Sup Ct, NY County 2014]). On appeal, the Appellate Division affirmed, largely adopting the rationale of Supreme Court (128 AD3d 553 [1st Dept 2015]). This Court granted leave to appeal (25 NY3d 914 [2015]). We affirm, although our reasoning is somewhat different.

II.

Judiciary Law § 489 is New York’s champerty statute. Section 489 (1) restricts individuals and companies from purchasing or taking an assignment of notes or other securities “with the intent and for the purpose of bringing an action or proceeding thereon.”

In a prominent early champerty case, *Moses v McDivitt* (88 NY 62, 65 [1882]), we concluded that the language “with the intent and for the purpose” contained in a predecessor champerty statute²—language which Judiciary Law § 489 (1) has retained—was significant. We determined that simply intending to bring a lawsuit on a purchased security is not champerty, but when the purchase of a security was “made for the very purpose of bringing such suit” that is champerty because “this implies an exclusion of any other purpose” (88 NY at 65). Therefore, we held that “[t]o constitute the offense [of champerty] the *primary purpose* of the purchase must be to enable [one] to bring a suit, and the intent to bring a suit must not be merely incidental and contingent” (*id.* [emphasis

2. 2 Rev Stat of NY, part III, ch III, tit II, art 3, § 71 at 228 (1st ed 1829).

added]). The primary purpose test articulated in *Moses* has been echoed in our courts for well over a century. In *Trust for Certificate Holders of Merrill Lynch Mtge. Invs., Inc. Mtge. Pass-Through Certificates, Series 1999-C1 v Love Funding Corp.* (13 NY3d 190, 198-199 [2009]), we endorsed the distinction in *Moses* “between acquiring a thing in action in order to obtain costs and acquiring it in order to protect an independent right of the assignee” and opined that “the purpose behind [the plaintiff’s] acquisition of rights” is the critical issue in assessing whether such acquisition is champertous. Similarly, in *Bluebird Partners v First Fid. Bank* (94 NY2d 726, 736 [2000]), we held that “in order to constitute champertous conduct in the acquisition of rights . . . the foundational intent to sue on that claim must at least have been the primary purpose for, if not the sole motivation behind, entering into the transaction.”³

[1] Here, the impetus for the assignment of the notes to Justinian was DPAG’s desire to sue WestLB for causing the notes’ decline in value and not be named as the plaintiff in the lawsuit. Justinian’s business plan, in turn, was acquiring investments that suffered major losses in order to sue on them, and it did so here within days after it was assigned the notes. Contrary to the suggestion by the dissent, there was no evidence, even following completion of champerty-related discovery, that Justinian’s acquisition of the notes was for any purpose other than the lawsuit it commenced almost immediately after acquiring the notes (dissenting op at 172-173). Justinian’s principal speculated at his deposition as to other possible sources of recovery on the notes—for example, that

3. We reject Justinian’s contention that Judiciary Law § 489 has no application unless the underlying claim is frivolous or was brought by Justinian to secure “costs.” Justinian’s contention is based on certain language in *Love Funding*. However, nothing in *Love Funding* or any of our previous cases stands for the proposition that champerty turns on whether the underlying claim is frivolous, nor does Judiciary Law § 489 require the claim to be frivolous for the prohibition against champerty to apply. Indeed, we make no such finding as to the merits of this lawsuit. The reference in *Love Funding* to litigation being “‘stirred up . . . in [an] effort to secure costs’” (*Love Funding*, 13 NY3d at 201, quoting *Wightman v Catlin*, 113 App Div 24, 28 [2d Dept 1906]) harks back to earlier cases, from before 1907, when “the prohibition of champerty was limited in scope and largely directed toward preventing attorneys from filing suit merely as a vehicle for obtaining costs, which, at the time, included attorneys’ fees” (*Bluebird Partners*, 94 NY2d at 734 [emphasis added]). Thus, the reference to champerty as a vehicle to obtain costs has no application to a company such as Justinian, which is not a law firm and would not obtain attorneys’ fees by virtue of bringing the lawsuit.

there “might have been” an insolvency or that there “might have been” a restructuring or distribution between the time of acquisition and 2047 when the notes were due. Such speculation does not suffice to defeat summary judgment. We have long held that “[m]ere conclusions, expressions of hope or unsubstantiated allegations or assertions are insufficient” to defeat summary judgment (*Gilbert Frank Corp. v Federal Ins. Co.*, 70 NY2d 966, 967 [1988], quoting *Zuckerman v City of New York*, 49 NY2d 557, 562 [1980]). Indeed, “[t]he moving party need not specifically disprove every remotely possible state of facts on which its opponent might win” to be entitled to summary judgment, particularly when the opponent’s “theorizing” is “farfetched” (*Ferluckaj v Goldman Sachs & Co.*, 12 NY3d 316, 320 [2009]). Here, the lawsuit was not merely an incidental or secondary purpose of the assignment, but its very essence. Justinian’s sole purpose in acquiring the notes was to bring this action and hence, its acquisition was champertous.

III.

Conduct that is champertous under Judiciary Law § 489 (1) is nonetheless permissible if it falls within the safe harbor provision of Judiciary Law § 489 (2). Section 489 (2) exempts the purchase or assignment of notes or other securities from the restrictions of section 489 (1) when the notes or other securities “hav[e] an aggregate purchase price of at least five hundred thousand dollars” (Judiciary Law § 489 [2]). Here, although the price listed in the agreement, \$1,000,000, satisfies the threshold dollar amount for the safe harbor, Justinian has not actually paid any portion of that price. Justinian argues that a binding obligation to pay is sufficient to receive the protection of the safe harbor. WestLB argues that in order to come within the safe harbor an actual payment of at least \$500,000 must have been made. The courts below endorsed WestLB’s position. We do not agree. Actual payment of the purchase price need not have occurred to receive the protection of the safe harbor. Nonetheless, for the reasons set forth below, under the circumstances presented here, Justinian is not entitled to the protection of the safe harbor.

The parties disagree about whether the phrase “purchase price” in section 489 (2) is ambiguous. Justinian argues that it is unambiguous and means whatever amount is denominated the “purchase price” in a purchase agreement. WestLB argues that reading “purchase price” with “‘absolute literalness’ ”

would violate the safe harbor’s “‘purpose and intent’ ” (brief for defendants-respondents at 14, quoting *Matter of Long v Adirondack Park Agency*, 76 NY2d 416, 420 [1990]). We agree with that statement.

Although the phrase “purchase price” may be unambiguous in some contexts, here it is not, and we must look to the legislative history to discern its meaning (see *Matter of Auerbach v Board of Educ. of City School Dist. of City of N.Y.*, 86 NY2d 198, 204 [1995]). A review of draft versions of the safe harbor legislation introduced during the legislative session reveals that at least one version of the bill contemplated that the safe harbor would protect a purchaser of notes or securities if *either* the aggregate face amount of the notes or securities sued upon totaled at least \$1,000,000 *or* the purchaser had paid, in the aggregate, at least \$500,000 to acquire them (2003 NY Senate Bill S2992-A). The statute as enacted contained different language, requiring instead that the notes or securities have “an aggregate purchase price” of at least \$500,000 (Judiciary Law § 489 [2]). The “purchase price” language effectively falls between the two earlier proposed safe harbor formulations—strong indication that the legislature did not intend either that actual payment necessarily had to have been made or that face value alone would suffice to obtain the protection of the safe harbor.

The legislative explanation of the safe harbor’s purpose further supports our reading. New York has long been a leading commercial center, and our statutes and jurisprudence have, over many years, greatly enhanced New York’s leadership as the center of commercial litigation. The safe harbor was enacted to exempt large-scale commercial transactions in New York’s debt-trading markets from the champerty statute in order to facilitate the fluidity of transactions in these markets (see Assembly Mem in Support, Bill Jacket, L 2004, ch 394 at 4, 2004 NY Legis Ann at 282-283). The participants in commercial transactions and the debt markets are sophisticated investors who structure complex transactions. Requiring that an actual payment of at least \$500,000 have been made for these transactions to fall within the safe harbor would be overly restrictive and hinder the legislative goal of market fluidity. The phrase “purchase price” in section 489 (2) is better understood as requiring a binding and bona fide obligation to pay \$500,000 or more for notes or other securities, which is satisfied by actual payment of at least \$500,000 or the transfer

of financial value worth at least \$500,000 in exchange for the notes or other securities. Such understanding conforms with the realities of these markets in which payment obligations may be structured in various forms, whether by exchange of funds, forgiveness of a debt, a promissory note, or transfer of other collateral. We emphasize that we find no problem with parties structuring their agreements to meet the safe harbor's requirements, so long as the \$500,000 threshold is met, as set forth above.

However, as the dissent concedes, “[u]nquestionably, if the obligation to pay [at least \$500,000] [i]s entirely contingent on a successful outcome in [the] litigation, it [does] not constitute a binding and bona fide debt” (dissenting op at 175). The legislative history reveals that a purchase price of at least \$500,000 was selected because the legislature took comfort that buyers of claims would “not invest large sums of money” to pursue litigation unless the buyers believed in the value of their investments (*see* Assembly Mem in Support, Bill Jacket, L 2004, ch 394 at 4, 2004 NY Legis Ann at 283). This comfort is lost when a purchaser of notes or other securities structures an agreement to make payment of the purchase price contingent on a successful recovery in the lawsuit; such an arrangement permits purchasers to receive the protection of the safe harbor without bearing any risk or having any “skin in the game,” as the legislature intended. The legislature intended that those who benefit from the protections of the safe harbor have a binding and bona fide obligation to pay a purchase price of at least \$500,000, irrespective of the outcome of the lawsuit.

[2] That is precisely what is lacking here. The record establishes, and we conclude as a matter of law, that the \$1,000,000 base purchase price listed in the agreement was not a binding and bona fide obligation to pay the purchase price other than from the proceeds of the lawsuit. The agreement was structured so that Justinian did not have to pay the purchase price unless the lawsuit was successful, in litigation or in settlement. The due date listed for the purchase price was artificial because failure to pay the purchase price by this date did not constitute a default or a breach of the agreement. The agreement permitted Justinian to exercise the option to let the due date pass without consequence and simply deduct the \$1,000,000 (plus interest) from its share of any proceeds from the lawsuit.

In sum, we hold that because the notes were acquired for the sole purpose of bringing litigation, the acquisition was

champertous. Further, because Justinian did not pay the purchase price or have a binding and bona fide obligation to pay the purchase price of the notes independent of the successful outcome of the lawsuit, Justinian is not entitled to the protection of the safe harbor. In essence, the agreement at issue here was a sham transaction between the owner of a claim which did not want to bring it (DPAG) and an undercapitalized assignee which did not want to assume the \$500,000 risk required to qualify for the safe harbor protection of section 489 (2) (Justinian).

Accordingly, the order of the Appellate Division should be affirmed, with costs.

STEIN, J. (dissenting). This case requires us to determine whether the transfer of notes from nonparty Deutsche Pfandbriefbank AG (DPAG) to plaintiff Justinian Capital SPC was champertous as a matter of law and, if so, whether the statutory safe harbor provision applies. Because the answer to each of these two questions depends on the intent of one or both of the parties to that transaction, and such intent is—as in almost all cases—a factual issue, I cannot agree with the majority of this Court that summary judgment is appropriate here. Therefore, I respectfully dissent.

I. Champerty

We need not travel back to feudal France or merry old England to discuss champerty. When the New York State Legislature enacted statutes prohibiting champerty, it intended to abolish the common-law version of that doctrine and, thus, our primary focus must be on the relevant statutory provisions (see *Sedgwick v Stanton*, 14 NY 289, 299 [1856]). Judiciary Law § 489 (1) provides that no person or corporation may buy or take an assignment of notes or other security instruments “with the intent and for the purpose of bringing an action or proceeding thereon.”* This Court has stated that “the critical issue to assessing the sufficiency of [a] champerty finding is . . . the purpose behind [the assignee’s] acquisition of rights that allowed it to sue” (*Trust for Certificate Holders of Merrill Lynch Mtge. Invs., Inc. Mtge. Pass-Through Certificates, Series 1999-C1 v Love Funding Corp.*, 13 NY3d 190, 198 [2009] [internal quotation marks and citation omitted]). “The bottom

* Judiciary Law § 488 is similar, but applies only to attorneys.

line is that Judiciary Law § 489 requires that the acquisition be made with the intent and for *the* purpose (as contrasted to *a* purpose) of bringing an action or proceeding” (*Bluebird Partners v First Fid. Bank*, 94 NY2d 726, 736 [2000] [citations omitted]; see *Sprung v Jaffe*, 3 NY2d 539, 544 [1957]; *Moses v McDivitt*, 88 NY 62, 65 [1882]).

“[W]hile this Court has been willing to find that an action is *not* champertous as a matter of law, it has been hesitant to find that an action *is* champertous as a matter of law” (*Bluebird Partners*, 94 NY2d at 734-735 [citations omitted]). Indeed, until today, we have never found summary judgment appropriate to hold a transaction champertous as a matter of law. This hesitation is understandable because the intent and purpose of the purchaser or assignee is usually a factual question that cannot be decided on summary judgment (see *Love Funding Corp.*, 13 NY3d at 200; *Bluebird Partners*, 94 NY2d at 738; *Fairchild Hiller Corp. v McDonnell Douglas Corp.*, 28 NY2d 325, 330 [1971]).

In deciding summary judgment motions, courts should simply identify triable material issues of fact, and may not invade the province of the jury by making credibility determinations or weighing the probative force of the evidence presented by each side (see *Vega v Restani Constr. Corp.*, 18 NY3d 499, 505 [2012]). On such a motion, the facts must be viewed in the light most favorable to the nonmoving party (here, plaintiff) (see *Jacobsen v New York City Health & Hosps. Corp.*, 22 NY3d 824, 833 [2014]). Because champerty is an affirmative defense (see *Bluebird Partners*, 94 NY2d at 729; *Fairchild Hiller Corp.*, 28 NY2d at 329), defendants bore the burden of demonstrating that the assignment was champertous (see *Kirschner v KPMG LLP*, 15 NY3d 446, 478 [2010]). I believe that, in arriving at its definitive conclusion regarding plaintiff’s sole purpose in acquiring the notes here, the majority has overlooked or disregarded these basic principles.

To be sure, the majority points to evidence in the record that would support a finding that plaintiff was a champertor, merely acting as a proxy to bring suit for DPAG. However, the record also contains evidence supporting plaintiff’s argument that it procured the notes with an intent to enforce its rights in them in whatever way possible, not necessarily by way of litigation. In fact, plaintiff affirmatively alleges that it acquired the notes for the lawful purpose of enforcing rights under them and that, while litigation on the notes was a real possibility when it took

the assignment, litigation was not the only option under consideration when it was negotiating for their acquisition. For example, plaintiff's principal testified that one possible avenue to recover on the notes was through bankruptcy proceedings. In addition, the funds at issue could potentially have been restructured with some amount paid to noteholders. Alternatively, a distribution could still be forthcoming on the notes because they are not due until 2047, leaving some possibility that the notes will regain value over time.

Contrary to the majority's assertion, discussion of these options did not constitute mere after-the-fact speculation. As relevant to the question of plaintiff's intent when acquiring the notes, plaintiff's principal testified that such options were among those considered as possibilities at the time plaintiff was negotiating with DPAG regarding the purchase of the notes. The principal's use of the words "might have been" in connection with several of the options did not necessarily indicate that their pursuit was speculative; instead, such words appropriately reflected his recognition that, as a practical matter, the outcome under any option was also dependent on defendants' responses to plaintiff's efforts. Thus, the record contains nonspeculative evidence that options other than litigation were under consideration before plaintiff acquired the notes, notwithstanding any uncertainty about whether plaintiff would actually be successful in obtaining a recovery by pursuing them. Such evidence was sufficient to create a question of fact precluding summary judgment.

Furthermore, litigation is a legitimate consideration when acquiring any distressed debt instrument. Plaintiff commenced this litigation soon after acquiring the notes, but explained that a hasty commencement was necessary because the statute of limitations was about to run shortly after the purchase agreement was executed; this did not mean that litigation was necessarily plaintiff's sole purpose or option. Indeed, due to the impending statute of limitations deadline, commencement of this action was necessary to protect plaintiff's rights while it explored its other options, in case its efforts thereunder were not fruitful. The action was commenced by a summons with notice, and there is evidence that plaintiff unsuccessfully attempted to contact defendants, prior to filing the complaint, to discuss options other than protracted litigation. While defendants may dispute having received such communications from plaintiff, the courts may not, for purposes of defendants' sum-

mary judgment motion, make credibility determinations and must view the evidence in plaintiff's favor.

Nor does an agreement to receive a percentage share in the recovery make a transaction champertous per se (*see Fairchild Hiller Corp.*, 28 NY2d at 328, 330 [no champerty despite 75% sharing agreement]). Here, plaintiff explained that the agreement's adjustment to the purchase price—adding 80% or 85% of the recovery in litigation or settlement, on top of the base purchase price of \$1 million—was a commercially reasonable way of structuring the sale of distressed debt instruments that are difficult to value.

Thus, even if the majority is correct that the greater weight of the evidence would support a finding of champerty, because there is conflicting evidence regarding plaintiff's purpose in purchasing the notes, and because intent is generally a factual question, I believe it was error to grant summary judgment to defendants, finding this transaction champertous as a matter of law. I would, therefore, deny summary judgment on this factual issue and permit the parties to proceed to trial to resolve it.

II. Safe Harbor

Regardless of whether the transaction is champertous as a matter of law (as the majority has determined), or there is a question of fact regarding its allegedly champertous nature (as I have concluded), we must decide whether the safe harbor provision of Judiciary Law § 489 (2) is applicable. That provision exempts the purchase or assignment of notes or other securities from being champertous under subdivision (1) when they have “an aggregate purchase price of at least [\$500,000].” I agree with the majority that this statutory language is ambiguous, and that the “purchase price” in subdivision (2) can include either actual payment of, or a binding and bona fide legal obligation to pay, at least \$500,000. However, I disagree with the majority's application of that provision to find, as a matter of law, that the purchase price set forth in the agreement here did not constitute a binding and bona fide obligation on plaintiff's part.

It is generally inadvisable for courts to look beyond the four corners of a contract to ferret out whether the parties actually intended to pay the purchase price set forth therein (*see Morlee Sales Corp. v Manufacturers Trust Co.*, 9 NY2d 16, 19-20 [1961]; *Hutchison v Ross*, 262 NY 381, 398 [1933]). Otherwise,

courts could regularly become mired down in an attempt to discern the parties' intent when entering a contract, rather than simply applying the language employed in the contract. However, in those circumstances in which a contract is ambiguous on its face and it becomes necessary to determine the parties' intent by resorting to extrinsic evidence, the issue becomes one for the jury and summary judgment is inappropriate (*see Hartford Acc. & Indem. Co. v Wesolowski*, 33 NY2d 169, 172 [1973]). Such is the case here.

The agreement at issue contains arguably inconsistent provisions, and it is unclear on its face as to whether the parties ever intended that DPAG would be able to collect the \$1 million base purchase price from plaintiff absent recovery from defendants in this action. Unquestionably, if the obligation to pay was entirely contingent on a successful outcome in this litigation, it would not constitute a binding and bona fide debt. However, the agreement requires plaintiff to pay the \$1 million base purchase price by a date certain, without regard to the success of this action. Although that date was five months after the execution of the agreement, the delay was arguably designed to provide plaintiff with an opportunity to raise that sizeable amount. The majority's reference to plaintiff as a "shell company" with virtually no assets (majority op at 164; *see* 128 AD3d 553, 555 [1st Dept 2015]), ignores the possibility that plaintiff was capable of raising capital, which it had apparently succeeded in doing for other similar transactions. Moreover, under the contract, plaintiff's failure to timely pay the base purchase price carried consequences, including the accrual of interest until full payment, and an increase in the purchase price adjustment from 80% to 85% of any recovery.

The majority correctly notes that the failure to timely pay the base purchase price was not designated in the contract as a default event. Contrary to the majority's conclusory statement, however, neither this omission, nor any provision of the contract—nor even DPAG's failure to enforce plaintiff's obligation to pay thus far—necessarily means that the failure to pay does not constitute a breach of the agreement. A failure to perform one's promise or contractual obligation—such as the payment of \$1 million—is the very definition of a breach of contract (*see* Black's Law Dictionary [10th ed 2014], breach of contract) and, therefore, need not be—and rarely is—explicitly identified as such in the contract, itself. The deposition testimony cited by the majority, wherein one of DPAG's

principals indicated that he did not think plaintiff's failure to timely pay would be a breach, is irrelevant unless the contract language is ambiguous so as to require the courts to consider extrinsic evidence to ascertain the parties' intent. If it is necessary to review extrinsic evidence regarding intent, factual questions exist that a jury must resolve. Even then, courts interpreting the contract are not bound by that one individual's personal opinion, but may consider it as merely some evidence of DPAG's intent.

Here, the contract's provision concerning the base purchase price is susceptible to an interpretation that would create an unqualified, bona fide obligation to pay \$1 million. Nevertheless, as the majority points out, other provisions of the contract, such as certain limitations on DPAG's remedies, raise questions as to whether DPAG intended to enforce its rights in the event of plaintiff's breach of the payment provision, including whether DPAG is feasibly able to do so. In my view, these factual questions, which stem from contractual provisions that cannot fully be read in harmony, would permit the Court to look beyond the four corners of the agreement. However, I cannot agree with the majority's conclusion that this was a "sham transaction" as a matter of law (majority op at 171).

Finally, the majority correctly notes this state's leadership role in promoting and supporting large-scale, complex commercial markets and transactions, and recognizes that participants in such transactions are "sophisticated investors" (majority op at 169). However, in my view, the majority's decision discourages transactions aimed at fostering accountability in commercial dealings, generally, and, in this particular case, successfully forecloses litigation against parties that are alleged to have committed fraud against all of the investors in more than one portfolio.

In sum, resolution of the questions of whether the transaction was champertous and, if so, whether the parties' contract included a bona fide obligation for plaintiff to pay \$1 million for the notes, such that the safe harbor provision would apply, requires a factfinder to ascertain the parties' intent, a determination that is inappropriate on a motion for summary judgment (see *Love Funding Corp.*, 13 NY3d at 200; *Bluebird Partners*, 94 NY2d at 738; *Fairchild Hiller Corp.*, 28 NY2d at 330). Accordingly, I would reverse the Appellate Division order and deny summary judgment.

Judges RIVERA, ABDUS-SALAAM, FAHEY and GARCIA concur;
Judge STEIN dissents in an opinion in which Judge PIGOTT
concurs.

Order affirmed, with costs.

[65 NE3d 1263, 43 NYS3d 228]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALEXIS OCASIO, Respondent.

Argued September 7, 2016; decided November 1, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered June 19, 2015. The Appellate Term affirmed an order of the Criminal Court of the City of New York, Bronx County (Steven Hornstein, J.), which had granted defendant's motion to dismiss the accusatory instrument for facial insufficiency.

People v Ocasio, 48 Misc 3d 127(A), 2015 NY Slip Op 50929(U), reversed.

HEADNOTE

Crimes — Possession of Weapon — Sufficiency of Accusatory Instrument — Extendable Metal Baton as “Billy”

In the prosecution of defendant for criminal possession of a weapon in the fourth degree, the accusatory instrument alleging that defendant possessed a metal, extendable striking weapon with a handle grip was sufficient to charge him with possessing a “billy” under Penal Law § 265.01 (1) so as to provide sufficient notice for him to prepare a defense and to protect him from multiple prosecutions. The Penal Law contains no definition of “billy,” but dictionary definitions generally recognize that the term “baton” is synonymous with the word “billy” or “billy club.” Although some dictionaries note that a billy is usually a wooden instrument, the definitions are not limited thereto, and the well-understood character of a “billy,” as used in Penal Law § 265.01 (1), encompasses an extendable, metal baton. Moreover, Penal Law § 265.20 (b) creates an exception to the prohibition against possessing a billy set forth in section 265.01 for “that type of billy commonly known as a ‘police baton.’” That language—which must be harmonized and interpreted consistently with Penal Law § 265.01—demonstrates that the legislature considered “batons” that are designed as weapons to be a “type of billy” (Penal Law § 265.20 [b]). The common thread, consistent with the general understanding of the term, is that a “billy” is a cylindrical or rounded, rigid, club or baton with a handle grip which, from its appearance and inherent characteristics, is designed to be used as a striking weapon and not for other lawful purposes. Such a definition or description does not hinge on the type of material of which the billy is comprised, as is plain from the absence of any statutory language limiting the term “billy” to a specific material.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Evidence § 952; AM JUR 2d, Weapons and Firearms §§ 2, 9–11, 26.

CARMODY-WAIT 2d, Habeas Corpus § 139:48; CARMODY-WAIT 2d, Commencing the Prosecution; Grand Jury §§ 178:1, 178:14, 178:17–178:18; CARMODY-WAIT 2d, Appeals in Criminal Cases §§ 207:34, 207:134–237:135.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 15.1, 19.1–19.4.

McKINNEY'S, Penal Law §§ 265.01 (1); 265.20 (b).

NY JUR 2d, Criminal Law: Procedure § 955; NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 1582, 1861, 1866, 1869, 1872–1876.

ANNOTATION REFERENCE

See ALR Index under Criminal Law; Indictments and Informations; Weapons and Firearms.

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POINTS OF COUNSEL

Darcel D. Clark, District Attorney, Bronx (*Marianne Stracquadanio*, *Joseph N. Ferdenzi*, *Stanley R. Kaplan* and *Nancy D. Killian* of counsel), for appellant. The Appellate Term, under constraint of an antiquated Third Department case, erroneously determined that an expandable baton of the type used by the New York City Police Department could not be a “billy,” and that, accordingly, it could not be a per se weapon under Penal Law § 265.01 (1). (*People v Talbert*, 107 AD2d 842; *People v Schoonmaker*, 40 AD2d 1066; *People v Houghton*, 86 Misc 2d 925; *People v Buhagiar*, 185 Misc 2d 203; *People v Jin Lu*, 39 Misc 3d 501; *People v Litto*, 8 NY3d 692; *People v Phillips*, 7 Misc 3d 1004[A], 2005 NY Slip Op 50438[U]; *Mountain View Coach Lines v Storms*, 102 AD2d 663; *People v Casey*, 95 NY2d 354; *People v Gonzalez*, 184 Misc 2d 262.)

Paul, Weiss, Rifkind, Wharton & Garrison LLP, New York City (*Paul A. Paterson*, *Audra J. Soloway* and *Stephen C. Thompson* of counsel), and *Robin Steinberg*, *The Bronx Defenders*, Bronx (*Marika Meis* and *Sid Thaxter* of counsel), for respondent. I. Mr. Alexis Ocasio is not alleged to have possessed any item listed in Penal Law § 265.01 (1) as a prohibited weapon. (*People v Visarities*, 220 App Div 657; *People v Dreyden*, 15 NY3d 100.) II. A metal, extendable baton is not a “billy”

for purposes of Penal Law § 265.01 (1). (*People v Talbert*, 107 AD2d 842; *People v Buhagiar*, 185 Misc 2d 203; *People v Phillips*, 7 Misc 3d 1004[A], 2005 NY Slip Op 50438[U]; *People v Braunhut*, 101 Misc 2d 684; *People v Graham*, 177 Misc 2d 542; *People v Cruz*, 48 NY2d 419; *Kolender v Lawson*, 461 US 352; *Bowie v City of Columbia*, 378 US 347; *People v Schoonmaker*, 40 AD2d 1066; *People v Litto*, 8 NY3d 692.)

OPINION OF THE COURT

STEIN, J.

Defendant was charged with one count of criminal possession of a weapon in the fourth degree (*see* Penal Law § 265.01 [1]). The accusatory instrument alleged that a police officer observed defendant with a “rubber-gripped, metal, extendable baton (billy club)” in his rear pants pocket. The officer averred—based on his training and experience—that “said baton device is designed primarily as a weapon, consisting of a tubular, metal body with a rubber grip and extendable feature and used to inflict serious injury upon a person by striking or choking.” Defendant moved to dismiss the accusatory instrument as facially insufficient. Criminal Court granted defendant’s motion, concluding that the allegations describing the object possessed by defendant were insufficient to charge him with possessing a billy within the meaning of Penal Law § 265.01 (1). The Appellate Term affirmed (48 Misc 3d 127[A], 2015 NY Slip Op 50929[U] [App Term, 1st Dept 2015]). A Judge of this Court granted the People leave to appeal (26 NY3d 970 [2015]), and we now reverse.

To be facially sufficient, the factual allegations of a complaint or information, together with those of any supporting depositions, must “provide reasonable cause to believe that the defendant committed the offense charged” in the instrument (CPL 100.40 [1] [b]; [4] [b]; *see People v Kalin*, 12 NY3d 225, 228 [2009]). A misdemeanor information must also contain “[n]on-hearsay allegations . . . [which] establish, if true, every element of the offense charged and the defendant’s commission thereof” (CPL 100.40 [1] [c]; *see People v Smalls*, 26 NY3d 1064, 1066 [2015]). We have oft stated that, “‘[s]o long as the factual allegations of an information give an accused notice sufficient to prepare a defense and are adequately detailed to prevent a defendant from being tried twice for the same offense, they should be given a fair and not overly restrictive or technical reading’” (*Smalls*, 26 NY3d at 1066-1067, quoting *People v Casey*, 95 NY2d 354, 360 [2000]).

Here, defendant argues that the accusatory instrument is facially insufficient because the object described therein does not constitute a “billy” under Penal Law § 265.01 (1). More specifically, he contends that the accusatory instrument describes the object as being “metal” and “extendable,” whereas, in his view, the statutory term “billy” refers only to short, wooden clubs of a fixed length.

The starting point for our analysis is the statutory language in question (*see People v Golo*, 26 NY3d 358, 361 [2015]). Under Penal Law § 265.01 (1), a person commits the offense of criminal possession of a weapon in the fourth degree when he or she possesses a “billy.” The legislative prohibition on billies was enacted in 1866 (*see* L 1866, ch 716).¹ At that time, “billies” or “billy clubs” were generally comprised of wood. The Penal Law does not define the term “billy,” wooden or otherwise, but we recognized, over a century ago, that the weapons prohibited by section 265.01 (1), including billies, had a “well-understood character” (*People v Persce*, 204 NY 397, 402 [1912]). As commonly occurs with weaponry, however, technological advances throughout the years have resulted in modifications to the traditional wooden billy. Today, such weapons, often referred to as “batons,” may be comprised of metal or synthetic materials, and variations include either fixed length or “extendable” instruments. The issue before us on this appeal distills to whether the “well-understood character” (*id.*) of a “billy,” as used in Penal Law § 265.01 (1), encompasses an extendable, metal baton.

Because the Penal Law contains no definition of “billy,” we must give the term its “ordinary” and “commonly understood” meaning (*People v Versaggi*, 83 NY2d 123, 129 [1994]; *see People v Morales*, 20 NY3d 240, 247 [2012]; *People v Quinto*, 18 NY3d 409, 417 [2012]). In determining the meaning of statutory language, we “have regarded dictionary definitions as useful guideposts” (*Yaniveth R. v LTD Realty Co.*, 27 NY3d 186, 192 [2016]; *see e.g. Versaggi*, 83 NY2d at 129). To that end, a billy has been defined as a “small bludgeon that may be carried in the pocket; a club; especially, a policeman’s club” (1 Black’s Law Dictionary 213 [4th ed 1951]). Although some dictionaries note that a billy is *usually* a wooden instrument

1. In 1866, the relevant statute did not criminalize mere possession of the listed weapons (*see* L 1866, ch 716). The legislature amended the statute in 1905 to make possession of the enumerated weapons, including a “billy,” a strict liability offense (*see* L 1905, ch 92, § 2).

(see e.g. Merriam-Webster's Collegiate Dictionary 122 [11th ed 2003]), the definitions are not limited thereto, and dictionary definitions generally recognize that the term "baton" is synonymous with the word "billy" or "billy club" (see e.g. Webster's Unabridged Dictionary 207 [2d ed 2001]; Merriam-Webster Online Dictionary, billy club [<http://www.merriam-webster.com/dictionary/billy%20club>] [accessed Oct. 11, 2016]).

Notably, case law in this state has recognized that the terms "nightstick" and "baton" may be interchangeable with the term "billy" (see *People v Talbert*, 107 AD2d 842, 843-844 [3d Dept 1985] [defining billy as a "heavy wooden stick with a handle grip which, from its appearance, is designed to be used to strike an individual and not for other lawful purposes" but recognizing that "(a) policeman's nightstick or billy club is clearly a billy"]; *People v Schoonmaker*, 40 AD2d 1066, 1066-1067 [3d Dept 1972] [policeman's club, referred to as a "baton," "fits any standard definition of the term 'billy'"]). Likewise, courts in other jurisdictions have held, when interpreting criminal statutes, that a modern-day collapsible, metal baton falls within the common definition of a billy (see *Shahit v City of Detroit Police Officer Tosqui*, 2005 WL 1345413, *15, 2005 US Dist LEXIS 44942, *47-48 [ED Mich, June 1, 2005, No. 04-71538] [collecting definitions], *affd* 192 Fed Appx 382 [6th Cir 2006]; *People v Mercer*, 42 Cal App 4th Supp 1, 5, 49 Cal Rptr 2d 728, 730 [App Dept, Super Ct 1995]).

As the People point out, Penal Law § 265.20 (b) also lends support to their position that a "baton" may qualify as a type of billy under Penal Law § 265.01 (1). This statute was amended in 1979 in response to an Appellate Division decision equating a police "baton" to a "billy" (L 1979, ch 667; see Mem in Support, Bill Jacket, L 1979, ch 667; *Schoonmaker*, 40 AD2d at 1066-1067). Concerned that the carrying of batons by auxiliary police officers would violate Penal Law § 265.01 (1), the legislature enacted section 265.20 (b) to create an exception, which states, in relevant part, that the prohibition against possessing a billy set forth in section 265.01 "shall not apply to possession of *that type of billy commonly known as a 'police baton'*" of specified dimensions if possessed by auxiliary police officers in certain cities (Penal Law § 265.20 [b] [emphasis added]; see Mem in Support, Bill Jacket, L 1979, ch 667). While we are mindful that Penal Law § 265.01 (1) should be interpreted narrowly in light of the absence of an intent element, this language in section 265.20 (b)—which must be harmonized

and interpreted consistently with Penal Law § 265.01—plainly demonstrates that the legislature considered “batons” that are designed as weapons to be a “type of billy” (Penal Law § 265.20 [b]; *see generally* McKinney’s Cons Laws of NY, Book 1, Statutes § 97).²

The common thread, consistent with the general understanding of the term, is that a “billy” is a cylindrical or rounded, rigid, club or baton with a handle grip which, from its appearance and inherent characteristics, is designed to be used as a striking weapon and not for other lawful purposes.³ Such a definition or description does not hinge on the type of material of which the billy is comprised, as is plain from the absence of any statutory language limiting the term “billy” to a specific material. Indeed, although the legislature has banned some weapons made of a specific material, it has not done so with the “billy.” For example, Penal Law § 265.01 (1) initially prohibited only “metal” knuckles, but was later amended to also ban “plastic” knuckles—an amendment made necessary by the legislature’s original qualification of the term “knuckles” as being comprised of “metal.” Absent such an amendment, an interpretation of “metal” knuckles as including “plastic” would conflict with the plain language of the statute. By comparison,

2. To the extent the dissent implies that the legislature’s failure to enact a 2008 proposed amendment adding “collapsible batons” to Penal Law § 265.01 (1) supports its position that the existing prohibition on “billies” does not include collapsible batons, we note that “inaction by the Legislature is inconclusive in determining legislative intent” (*Matter of New York State Assn. of Life Underwriters v New York State Banking Dept.*, 83 NY2d 353, 363 [1994]; *Clark v Cuomo*, 66 NY2d 185, 190-191 [1985]) and such inaction is susceptible to varying interpretations. In any event, more recently proposed legislation arguably suggests that at least some of the members of the legislature interpret the prohibition on “billies” to include “collapsible batons”; that legislation would amend Penal Law § 265.20 (b) to expressly permit auxiliary police officers to carry “collapsible batons” by exempting them from application of the prohibition on billies in Penal Law § 265.01 (1) (*see* 2015 NY Senate Bill S1142; 2015 NY Assembly Bill A59).

3. Contrary to the dissent’s assertion, this definition does not render superfluous the inclusion of the terms blackjack, bludgeon, and sandclub in Penal Law § 265.01 (1). While an in-depth discussion of the definitions of such weapons is outside of the scope of our holding in this case, it suffices to note that such instruments have defining characteristics that distinguish them from billies (*see generally* *People v McPherson*, 220 NY 123, 125 [1917] [a bludgeon has one heavier or thicker end]; *see* *People v Guevara*, 86 Misc 2d 1044, 1045 [Crim Ct, Bronx County 1976] [a blackjack has a characteristically flexible handle]; *see also* 2 Black’s Law Dictionary 1507 [4th ed 1951] [a sandbag is defined as “(a) tube of strong, flexible material filled with sand” (emphasis added)]).

the legislature has never prohibited only “wooden” billies—or, as the dissent suggests, “wooden club[s]” (dissenting op at 187)—signaling that its intended definition is not confined to objects made out of a particular material, as defendant would have us hold. Unquestionably, a billy made of metal or other synthetic material remains a billy under the statute in accordance with the ordinary meaning of the term. In so concluding, we do not read the relevant statute “broadly” (dissenting op at 188 n 2) but, rather, give effect to the plain meaning of the statutory language, as the term “billy” is commonly understood.

Similarly, the collapsible or extendable nature of the instrument described in the accusatory instrument does not meaningfully change the essence, functionality, or inherent characteristics of the object such that the baton should be considered a weapon separate and distinct from a billy. Initially, we note that the common definitions of the term “billy” do not specifically require that the instrument be of fixed length, as the dissent assumes. Moreover, to conclude that the mere fact that a billy is collapsible or extendable renders it a different weapon altogether would produce an absurd result whereby, absent a specific statutory amendment, minor modifications to an instrument that do not alter its general characteristics, purpose, or primary use and function as a weapon—modifications which incidentally may, as here, actually render a weapon more dangerous or easily concealed—would insulate the possessor from criminal liability (see *People v Garson*, 6 NY3d 604, 614 [2006] [“we must interpret a statute so as to avoid an unreasonable or absurd application of the law” (internal quotation marks omitted)]).

In our view, the foregoing leads to the conclusion that the only plausible interpretation of the term “billy” encompasses a collapsible metal baton (see *People v Green*, 68 NY2d 151, 153 [1986] [noting that, while the interpretation of a criminal statute that is more favorable to defendant should be adopted where there are two plausible constructions, “the core question always remains that of legislative intent”]). Our conclusion in this regard does not rest—as the dissent suggests—on whether or not law enforcement personnel has chosen to use this particular type of instrument. Rather, our determination follows from the common understanding of the term “billy” and our view that the baton at issue here fits comfortably within the definition thereof. Therefore, we hold that the accusatory instrument alleging that defendant possessed a metal, extend-

able striking weapon with a handle grip was sufficient to charge him with possessing a “billy” under Penal Law § 265.01 (1) so as to provide sufficient notice for him to prepare a defense and to protect him from multiple prosecutions. Defendant raises no preserved constitutional challenge to Penal Law § 265.01 (1) as so interpreted.⁴

Accordingly, the order of the Appellate Term should be reversed and defendant’s motion to dismiss the accusatory instrument denied.

RIVERA, J. (dissenting). The People equate a modern-day, rubber-gripped, metal extendable baton with a centuries-old solid wooden club of fixed length known as a “billy” for purposes of criminal liability under Penal Law § 265.01 (1). While both billies and extendable batons have been used as police batons at different points in history, they are distinct objects. As unpersuasive as the People’s argument that, in the absence of a legislative definition, we may transmute the term “billy,” whose definition has remained stable since the 1850s, into “police baton,” is the majority’s conclusion that the legislature intended the billy to include batons, regardless of functional design and construction. The legislature has not amended the statute to permit this expansive definition, despite opportunity to do so, and faced with a statute which creates a category of weapons that are per se illegal to possess, we must narrowly construe its terms. Therefore, I dissent and would affirm the dismissal of the accusatory instrument.

Penal Law § 265.01 (1) provides:

“A person is guilty of criminal possession of a weapon in the fourth degree when: (1) [such person] possesses any firearm, electronic dart gun, electronic stun gun, gravity knife, switchblade knife, pilum ballistic knife, metal knuckle knife, cane sword, billy, blackjack, bludgeon, plastic knuckles, metal knuckles, chuka stick, sand bag, sandclub, wrist-brace type slingshot or slungshot, shiriken or ‘Kung Fu star.’”

The statute imposes strict liability, and those prosecuted must be aware of physically possessing one of the listed weapons for

4. For that reason, any challenge based on the void for vagueness doctrine (see generally *People v Cruz*, 48 NY2d 419, 423 [1979]), addressed by the dissent, is not properly before us.

the People to establish guilt, without proof of criminal intent or knowledge of the weapon's legal status (*see People v Parrilla*, 27 NY3d 400, 404 [2016]). The billy is not defined in the statute, leaving it to the courts to determine its ordinary meaning (*Taniguchi v Kan Pacific Saipan, Ltd.*, 566 US —, —, 132 S Ct 1997, 2002 [2012]). Given the per se nature of the crime and that a defendant's intent is immaterial, as a matter of fundamental fairness it is incumbent upon us to read Penal Law § 265.01 (1) narrowly, limiting application to objects which bear the essential characteristics of those weapons specifically identified by the legislature. A criminal statute must provide people a reasonable opportunity to understand what conduct it prohibits (*see Hill v Colorado*, 530 US 703 [2000]). "There can be no doubt that a deprivation of the right of fair warning can result not only from vague statutory language but also from an unforeseeable and retroactive judicial expansion of narrow and precise statutory language" (*Bouie v City of Columbia*, 378 US 347, 352 [1964]). Furthermore, "due process bars courts from applying a novel construction of a criminal statute to conduct that neither the statute nor any prior judicial decision has fairly disclosed to be within its scope" (*United States v Lanier*, 520 US 259, 266 [1997]). Thus, to place a defendant on notice of the potential exposure to criminal sanction, it must be clear that the object described in the accusatory instrument is the same as the statutorily proscribed weapon (*People v Cruz*, 48 NY2d 419, 423-424 [1979]).

In *People v Persce* (204 NY 397 [1912]), this Court upheld the legislature's authority to impose per se liability for possession of certain specified items, including the billy, stating that their "well-understood character" justified the legislature "in regarding them as dangerous and foul weapons seldom used for justifiable purposes but ordinarily the effective and illegitimate implements of thugs and brutes in carrying out their unlawful purposes" (*id.* at 402). The Court assumed the legislative understanding of these weapons' character was informed by the common knowledge of their appearance and instrumentality (*id.*). Here, the parties concur that a billy was recognized at the time of its inclusion in the predecessor statute to Penal Law § 265.01 in 1866 (L 1866, ch 716, § 1) as a solid wooden club, of fixed dimension and proportions, and that this was the term's meaning for well over a century.

Yet the accusatory instrument described the object possessed by defendant as a "rubber-gripped, metal, extendable baton (billy club)," which the police officer-deponent asserted "is

designed primarily as a weapon, consisting of a tubular, metal body with a rubber grip and extendable feature and used to inflict serious injury upon a person by striking or choking.” This description includes none of the essential distinguishing physical characteristics of a “billy” as defined at the time the statute was passed. Moreover, the allegation that the metal baton may be used to strike, choke or inflict serious injury—a fact commonly shared with a multitude of objects not listed in Penal Law § 265.01 (1)—is an allegation regarding a possible function of an object and not its inherent physical characteristics, and thus is not a factual allegation identifying the object as a billy.

Nevertheless, the majority adopts a wholesale re-envisioning of a billy as a rubber-gripped, metal, extendable baton with a telescoping tube and locking mechanism, on the basis that some dictionary definitions equate a baton with a billy. To the extent the majority relies on modern dictionary definitions for guidance, it does so selectively, for, as the majority recognizes (*see* majority op at 181-182), there are recent dictionary editions that refer to the historic description of the billy as a wooden club, further establishing these aspects of its “well-understood character” (*Persce* at 402).¹ A historical illustration of these recognized characteristics is the definition contained in a contemporary dictionary from when the billy was first prohibited, which described it as “a watchman’s club,” with “club” defined as a “heavy staff or piece of wood, usually tapering in form, and wielded with the hand” (*An American Dictionary of the English Language* 242 [1864]). There is no reason to discard this long-standing definition of a wooden club, which retains its prominence today, in order to impose broad liability under Penal Law § 265.01 (1).

Furthermore, the language in Penal Law § 265.20 (b) does not support the notion that a billy includes a metal extendable police baton. The legislature amended Penal Law § 265.20 (b) in 1979 in order to exempt certain auxiliary police officers from liability under Penal Law § 265.01 for “possession of that type of billy commonly known as a ‘police baton’ which is twenty-

1. The American Heritage Dictionary defines “billy” as “[a] billy club,” which is defined as a “short wooden club, esp[ecially] a police officer’s [club]” (*The American Heritage Dictionary* 86 [3d ed 1994]). Webster’s Third New International Dictionary defines a “billy” as “a heavy, usu[ally] wooden weapon for delivering blows . . . esp[ecially] . . . a policeman’s club” (*Webster’s Third New International Dictionary* 216 [1971]).

four to twenty-six inches in length and no more than one and one-quarter inches in thickness” (Penal Law § 265.20 [b]). The precision of this description clearly indicates that the legislature was referring to the traditional wooden billy, of fixed dimension and carried by police officers since the middle of the nineteenth century. While the legislature specifically defined a particular type of police baton to be a type of billy, it does not follow that any baton used by the police, without regard to its physical characteristics, is a billy. This is a simple but crucial distinction.

Despite the specificity of Penal Law § 265.20 (b) and the long understood common definition of the billy as a wooden club of fixed length, the majority concludes that a rubber-gripped, metal, extendable baton of indeterminate length and thickness with a locking mechanism is now the proscribed “billy.”² However, the majority’s “common thread” between the two—“that a ‘billy’ is a . . . club or baton with a handle grip which, from its appearance and inherent characteristics, is designed to be used as a striking weapon and not for other lawful purposes” (majority op at 183)—is simply another means of defining the object beyond the common understanding of the definition both at the time the statute was enacted and at present. Moreover, the differences between billies and the class of baton described in the accusatory instrument give them distinct advantages and disadvantages. For example, while a billy has a set length and can be cumbersome to carry, an extendable baton is lighter and fits more easily on a police officer’s belt. Even the majority recognizes that these differences between a billy and an extendable baton can render the latter more dangerous as it is easily concealable (majority op at 184).

2. The majority argues that because the legislature has in the past banned weapons made of a specific material, but not the billy, it must have intended that the billy be defined broadly (majority op at 183-184). Quite the opposite. The fact that the legislature found it necessary to update Penal Law § 265.01 (1) to add plastic knuckles confirms that the statute is not to be read broadly and instead applies only to those specifically described weapons listed. Similarly, the legislature has had ample opportunity to amend the statute to include a police baton made of materials unimagined in the 1800s, but has not done so. For example, in 2007, the State Senate did in fact pass an amendment to add “collapsible batons” to the statute, but the amendment did not pass the Assembly (see 2007 NY Senate Bill S7415). Contrary to the majority’s assertion (majority op at 183 n 2), the 2015 proposed amendment to Penal Law § 265.20 (b) reaffirms that the billy considered synonymous with a police baton has a distinctive character: 24 to 26 inches in length and no more than 1¼ inches thick.

The differences are, of course, important as the statute enumerates many similar striking weapons with handle grips, meaning that accepting the majority's definition makes the inclusion of blackjack, bludgeon, and sandclub alongside billy redundant, thus violating the rule against superfluities (see *Hibbs v Winn*, 542 US 88, 101 [2004]). Indeed, as defendant notes, as recently as 2013 the People argued that a nearly identical object was a "bludgeon" (see *People v Lopresti*, Crim Ct, Bronx County, Nov. 21, 2013, docket No. 2012BX053605, slip op at 1, 9).³

While the statute is not ambiguous, a broad interpretation of the term "billy" injects uncertainty into our Penal Law and deprives defendants of notice and fair warning as to what weapons, created through technological advances in design and construction, are now within the scope of Penal Law § 265.01. Confusion will certainly lead to claims of statutory ambiguity and for the application of the rule of lenity, which provides "if two constructions of a criminal statute are plausible, the one more favorable to the defendant should be adopted" (*People v Green*, 68 NY2d 151, 153 [1986]). We can avoid this outcome by adhering to the well-established understanding of the billy and recognizing that it does not include the object described in the accusatory instrument.

It bears noting that the majority's assertion that a possessor could escape criminal liability for a slightly modified, more dangerous weapon is beside the point because the object either is or is not a billy. Moreover, this appeal does not involve a minor cosmetic change to a billy; here we are presented with an object dramatically different in its physical characteristics. Regardless, whether a metal extendable baton should be added to Penal Law § 265.01 (1) because it is more dangerous than a solid wooden billy club is a policy matter beyond the scope of our judicial authority (*Steelworkers v Weber*, 443 US 193, 221 [1979] [it is an oft-stated principle that the judiciary's "duty is to construe rather than rewrite legislation"]; *Morissette v United States*, 342 US 246, 263 [1952] [the judiciary "should not enlarge the reach of enacted crimes by constituting them from anything less than the incriminating components contem-

3. The majority states that these "instruments have defining characteristics that distinguish them from billies" (majority op at 183 n 3). We concur, but maintain that our colleagues definition of "billy" would make these distinctions superfluous.

plated by the words used in the statute”]).⁴ If this recent tool of law enforcement is to be treated as a per se weapon, imposing criminal liability without proof of intent, that decision must be made by the legislature. As is obvious from the statute’s exclusion of other dangerous weapons, the legislature chooses which weapons are per se illegal under Penal Law § 265.01 (1), and which weapons require the People to establish a defendant’s possession was with the intent to use unlawfully, as provided under Penal Law § 265.01 (2).

For these reasons, I would affirm the order below dismissing the accusatory instrument as facially insufficient.

Judges ABDUS-SALAAM, FAHEY and GARCIA concur; Judge RIVERA dissents and votes to affirm in an opinion in which Chief Judge DiFIORE and Judge PIGOTT concur.

Order reversed and defendant’s motion to dismiss the accusatory instrument denied.

4. For example, when the legislature decided to add plastic knuckles to Penal Law § 265.01, it did so because they could be taken through metal detectors.

[66 NE3d 641, 43 NYS3d 771]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RONI SMITH, Respondent.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KEITH FAGAN, Respondent.

Argued September 13, 2016; decided November 1, 2016

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 15, 2015. The Appellate Division modified, as an exercise of discretion in the interest of justice, a judgment of resentence of the Supreme Court, New York County (Maxwell Wiley, J.), which had resented defendant, as a first felony offender, to a term of seven years, with five years' postrelease supervision. The modification consisted of reducing the sentence to a term of six years, with five years' postrelease supervision. The Appellate Division affirmed the judgment of resentence as modified. The appeal to the Appellate Division brought up for review an order of that Supreme Court which had granted defendant's CPL 440.20 motion to set aside his sentence.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 1, 2015. The Appellate Division affirmed (1) a judgment of resentence of the Supreme Court, Bronx County (George R. Villegas, J.), which had resented defendant, as a second violent felony offender, to a term of 15 years, with five years' postrelease supervision; and (2) an order of that Supreme Court which had denied the People's CPL 440.40 motion to set aside the judgment of resentence.

People v Smith, 132 AD3d 511, reversed.

People v Fagan, 134 AD3d 411, reversed.

HEADNOTES

Crimes — Vacatur of Judgment of Conviction — Failure to Apprise Defendant of Postrelease Supervision — Retroactive Application of New Precedent

1. Retroactive application of the decision of the Court of Appeals in *People v Catu* (4 NY3d 242 [2005]) to vacate defendants' pre-*Catu* predicate felony

convictions on the ground that they were unconstitutionally obtained because the court failed to apprise defendants of the postrelease supervision (PRS) component relative to the sentences imposed on their guilty pleas was not warranted, as defendants' convictions were not obtained in violation of the law as it existed at the time of their respective convictions. In *People v Catu* the Court of Appeals held that a defendant who is not apprised of the PRS component is entitled to reversal of the conviction and automatic vacatur of the plea, and that the defendant is not required to demonstrate that he or she would not have pleaded guilty had he or she been aware of the PRS component. A prior conviction may not be counted for predicate felony purposes if it was obtained in violation of the defendant's rights as defined by the law at the time of the conviction. The law at the time of defendants' respective predicate convictions did not require automatic vacatur for a court's failure to pronounce PRS. Although the law required a defendant be informed of the direct consequences of a guilty plea, it also required that defects in plea allocutions could not result in a reversal absent a showing of prejudice. Both state and federal law required that a defendant demonstrate that he or she would not have pleaded guilty had he or she known about a mandatory term of the sentence.

Crimes — Vacatur of Judgment of Conviction — Failure to Apprise Defendant of Postrelease Supervision — Application of New Precedent Based on Federal Retroactivity Principles

2. Federal retroactivity principles did not warrant vacatur of defendants' predicate felony convictions based upon the subsequently issued decision of the Court of Appeals in *People v Catu* (4 NY3d 242 [2005]) on the ground that those convictions were unconstitutionally obtained because the court failed to apprise defendants of the postrelease supervision (PRS) component relative to the sentences imposed on their guilty pleas. In *People v Catu* the Court of Appeals held that a defendant who is not apprised of the PRS component is entitled to reversal of the conviction and automatic vacatur of the plea, and that the defendant is not required to demonstrate that he or she would not have pleaded guilty had he or she been aware of the PRS component. A prior conviction may not be used as a predicate conviction where it was obtained in violation of present law which is properly applied to it under recognized principles of retroactivity. Under federal rules, new constitutional rules of criminal procedure will not be applicable to those cases which have become final before the new rules are announced. However, a new rule will be applied retroactively if it is a watershed rule of criminal procedure that implicates the fundamental fairness and accuracy of the criminal proceeding. The *Catu* "automatic vacatur" rule did not constitute such a "watershed rule" because it was not necessary to prevent an impermissibly large risk of an inaccurate conviction, and it was doubtful that the failure of the courts to apprise defendants of the PRS component resulted in them pleading guilty to crimes that they did not commit. Moreover, *Catu* did not alter the understanding of the bedrock procedural elements essential to the fairness of a proceeding.

Crimes — Vacatur of Judgment of Conviction — Failure to Apprise Defendant of Postrelease Supervision — Application of New Precedent Based on State Retroactivity Principles

3. State retroactivity principles did not support retroactive application of the decision of the Court of Appeals in *People v Catu* (4 NY3d 242 [2005]) to vacate defendants' predicate felony convictions on the ground that those convictions were unconstitutionally obtained because the court failed to ap-

prise defendants of the postrelease supervision (PRS) component relative to the sentences imposed on their guilty pleas. In *People v Catu* the Court of Appeals held that a defendant who is not apprised of the PRS component is entitled to reversal of the conviction and automatic vacatur of the plea, and that the defendant is not required to demonstrate that he or she would not have pleaded guilty had he or she been aware of the PRS component. In determining whether a new precedent should be afforded a retroactive application, courts should weigh the purpose to be served by the new standards, the extent of the reliance by law enforcement on the old standards and the effect on the administration of justice of a retroactive application of the new standards. Although a court's failure to advise a pleading defendant of the PRS component constitutes a due process violation, it cannot be said that the purpose of the *Catu* rule—automatic vacatur—has any bearing on the defendant's guilt or innocence. While PRS is an important component of a sentence, a court's failure to inform a defendant of that component is not likely to result in the conviction of an innocent person. Moreover, prosecutors, defense counsel and courts had relied extensively on the legitimacy of pre-*Catu* predicate felony convictions for enhancement purposes where PRS had not been pronounced, and retroactive application of *Catu* would do little to advance the administration of justice as it would render useless prior predicate convictions as a result of a sentencing error that bore no relationship to the defendant's guilt or innocence.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Courts § 150; AM JUR 2d, Criminal Law §§ 589, 601, 606.
CARMODY-WAIT 2d, Pleas and Plea Bargaining §§ 182:62, 182:86; CARMODY-WAIT 2d, Sentencing Procedures § 203:149.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 21.4, 21.5.
NY JUR 2d, Criminal Law: Procedure §§ 952, 1563, 3747.

ANNOTATION REFERENCE

See ALR Index under Guilty Pleas; Parole, Probation, and Pardon; Sentence and Punishment.

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POINTS OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (Dana Poole, Alan Gadlin and David M. Cohn of counsel), for appel-

lant in the first above-entitled action. Defendant was properly sentenced as a second violent felony offender in 2012, and his CPL 440.20 motion challenging that sentence should have been denied. (*People v Catu*, 4 NY3d 242; *People v Love*, 71 NY2d 711; *People v Louree*, 8 NY3d 541; *People v Hill*, 9 NY3d 189; *People v Van Deusen*, 7 NY3d 744; *People v Pignataro*, 22 NY3d 381; *Hunter v Fogg*, 616 F2d 55; *Caputo v Henderson*, 541 F2d 979; *Hill v Lockhart*, 474 US 52; *United States v Timmreck*, 441 US 780.)

Robert S. Dean, Center for Appellate Litigation, New York City (David J. Klem of counsel), for respondent in the first above-entitled action. The 2002 *Catu*-infected conviction was unconstitutionally obtained and could not be used to enhance Roni Smith's sentence in the instant matter. (*People v Konstantinides*, 14 NY3d 1; *People v Harris*, 61 NY2d 9; *Burgett v Texas*, 389 US 109; *People v Santiago*, 91 AD3d 438; *People v Abdus-Samad*, 69 AD3d 516; *People v Small*, 26 NY3d 253; *United States v Ruiz*, 536 US 622; *Brady v United States*, 397 US 742; *Boykin v Alabama*, 395 US 238; *North Carolina v Alford*, 400 US 25.)

Darcel D. Clark, District Attorney, Bronx (Justin J. Braun, Clara H. Salzberg and Nancy D. Killian of counsel), for appellant in the second above-entitled action. I. Even if *People v Catu* (4 NY3d 242 [2005]) applies to defendant's predicate conviction, the postrelease supervision defect was cured by defendant's subsequent resentencing pursuant to Penal Law § 70.85 and does not, therefore, foreclose the use of the predicate conviction in a subsequent persistent violent felony statement. (*People v Pignataro*, 22 NY3d 381; *People v Acevedo*, 17 NY3d 297; *People v Boyer*, 22 NY3d 15; *People v Agard*, 127 AD3d 602; *People v Lara*, 130 AD3d 463; *People v Nelson*, 133 AD3d 536; *People v Brewington*, 127 AD3d 1248; *People v Louree*, 8 NY3d 541; *Matter of Garner v New York State Dept. of Correctional Servs.*, 10 NY3d 358.) II. *People v Catu* (4 NY3d 242 [2005]) does not retroactively apply to defendant's 2000 guilty plea in the first instance. (*People v Catalanotte*, 72 NY2d 641; *People v Love*, 71 NY2d 711; *People v Pignataro*, 22 NY3d 381; *People v Pepper*, 53 NY2d 213; *Desist v United States*, 394 US 244; *People v Mason*, 2 AD3d 272; *People v Ballinger*, 12 AD3d 686; *People v Goss*, 286 AD2d 180; *People v Bonilla*, 6 AD3d 1059; *People v Nixon*, 21 NY2d 338.)

Robert S. Dean, Center for Appellate Litigation, New York City (*Barbara Zolot* of counsel), for respondent in the second above-entitled action. I. Keith Fagan’s plea violated *People v Catu* (4 NY3d 242 [2005]), a defect that the removal of post-release supervision pursuant to *People v Williams* (14 NY3d 198 [2010]), after he had served four years of it, did not, and could not, remedy. As such, his conviction was unconstitutionally obtained and was properly excluded by the court from predicate use at his resentencing in the instant matter. (*People v Pignataro*, 22 NY3d 381; *People v Hill*, 9 NY3d 189; *People v Van Deusen*, 7 NY3d 744; *Matter of Garner v New York State Dept. of Correctional Servs.*, 10 NY3d 358; *People v Sparber*, 10 NY3d 457; *People v Acevedo*, 17 NY3d 297; *People v Boyer*, 22 NY3d 15; *People v Lingle*, 16 NY3d 621; *People v McConnell*, 49 NY2d 340; *Matter of Chaipis v State Liq. Auth.*, 44 NY2d 57.) II. As *People v Catu* (4 NY3d 242 [2005]) applied a well-established constitutional principle to a new circumstance, it was not a “new rule” and was properly applied to Keith Fagan’s 2000 conviction. (*People v Catalonotte*, 72 NY2d 641; *People v Callendar*, 90 NY2d 831; *Boykin v Alabama*, 395 US 238; *People v Ford*, 86 NY2d 397; *Hill v Lockhart*, 474 US 52; *Mabry v Johnson*, 467 US 504; *North Carolina v Alford*, 400 US 25; *McCarthy v United States*, 394 US 459; *People v Hinton*, 31 NY2d 71; *People v Hagan*, 24 NY2d 395.)

OPINION OF THE COURT

PIGOTT, J.

At the time of its enactment in 1998, Penal Law § 70.45 (1) (as added by L 1998, ch 1, § 15) provided that “[e]ach determinate sentence also includes, as a part thereof, an additional period of post-release supervision” (PRS). A substantial number of trial courts mistakenly interpreted the provision to mean that PRS arose as a matter of law and did not need to be pronounced at sentencing.¹ Thereafter, in *People v Catu* (4 NY3d 242 [2005]), we held that PRS “is a direct consequence of a criminal conviction” such that a court accepting a guilty plea from a defendant must ensure that the defendant is aware of the PRS component of his sentence in order for the defendant “to knowingly, voluntarily and intelligently choose among alternative courses of action” (*id.* at 244-245). We explained

1. Notably, it was not until 2008 that the legislature amended Penal Law § 70.45 (1) to require that “[w]hen a court imposes a determinate sentence it shall in each case state not only the term of imprisonment, but also an additional period of [PRS] as determined pursuant to this article” (L 2008, ch 141, § 3).

that “[a]lthough the court is not required to engage in any particular litany when allocuting the defendant, ‘due process requires that the record must be clear that the plea represents a voluntary and intelligent choice among the alternative courses of action open to the defendant’” (*id.* at 245, quoting *People v Ford*, 86 NY2d 397, 403 [1995]). Therefore, a defendant who is not apprised of the PRS component is entitled to reversal of the conviction and automatic vacatur of the plea, and the defendant is not required to demonstrate that he would not have pleaded guilty had he been aware of the PRS component (*Catu*, 4 NY3d at 244-245).

On these appeals, neither defendant Smith nor defendant Fagan was apprised by the court of the PRS component relative to the sentence imposed on their guilty pleas entered in January 2002 and May 2000, respectively. They brought post-conviction motions to challenge their *Catu*-infected pleas and convictions that were utilized later to enhance sentences for subsequent crimes, essentially seeking retroactive application of *Catu* to disqualify their predicate offenses. In each case, defendant was satisfied with the plea and does not now claim innocence. Rather, because a subsequent crime has predicate felony implications, defendants challenged the use of their earlier convictions as “unconstitutionally obtained” on the ground that they were not apprised of the PRS component of their sentence. Although each defendant’s challenge to the use of the *Catu*-infected conviction originated under the guise of an ineffective assistance of counsel claim, the primary issue that we must decide is whether, pursuant to either federal or state retroactivity principles, *Catu* applies retroactively in enhanced sentence proceedings. We hold that it does not, and, therefore, reverse the orders of the Appellate Division in each appeal.

I.

People v Smith

In November 2001, defendant Roni Smith pleaded guilty to the violent felony of robbery in the first degree (Penal Law §§ 70.02 [1]; 160.15 [4]) in satisfaction of all counts in the indictment. The trial court failed to advise defendant that his sentence also included a mandatory term of PRS.² In January 2002, he was sentenced to a determinate term of seven years’

2. Although the sentencing minutes are not in the record, the parties agree that there is no indication that defendant was apprised of PRS at

(n. cont’d)

imprisonment. According to defendant, he filed a timely notice of appeal,³ but it appears that such appeal was never perfected.

In April 2007, one year before his seven-year term of imprisonment expired, defendant was conditionally released and the Department of Corrections and Community Supervision (DOCCS) administratively imposed a sentence of five years' PRS pursuant to Penal Law § 70.45 (1). While defendant was serving his administratively-imposed PRS term, we held that PRS sentences must be "pronounced" by the court pursuant to CPL 380.20 and 380.40 and may not be administratively imposed (*Matter of Garner v New York State Dept. of Correctional Servs.*, 10 NY3d 358 [2008]; see *People v Sparber*, 10 NY3d 457 [2008]).

On October 14, 2008, the sentencing court held a resentencing proceeding pursuant to Correction Law § 601-d.⁴ At that point, defendant had served 18 months of PRS. The court stated that it was unsure if it had previously advised defendant of the PRS term because it did not have the minutes. Defendant stated that he would accept a minimum PRS term—2½ years—and that if the People agreed, defendant "would waive waiting for the actual minutes to arrive and waive any claims he had with respect to the plea without the court reimposing the sentence again with the actual term of [PRS] as part of the sentence, nunc pro tunc." The court then sentenced defendant to seven years' imprisonment with the minimum 2½ year term of PRS, nunc pro tunc to January 2002. So, as of that date, defendant, for the second time, pleaded guilty to robbery in the first degree, was advised of PRS and served his PRS sentence, which expired on October 23, 2009.

In December 2010, he was indicted on two counts of criminal possession of a weapon in the second degree (Penal Law § 265.03 [1] [b]; [3]) for an incident that occurred on November 17, 2010. He pleaded guilty to the first count of the indictment in satisfaction of both counts. Prior to allocution, the People filed a statement of predicate violent felony conviction (Penal Law § 70.04; CPL 400.15) that utilized defendant's January

sentencing. Notably, defendant's commitment sheet did not contain any reference to PRS.

3. Defendant's notice of appeal is not contained in the record.

4. This provision was enacted in response to our decisions in *Garner* and *Sparber*, and facilitated a review by sentencing courts of all cases between September 1, 1998 and June 30, 2008 where the PRS term was not specified in the commitment order.

2002 first-degree robbery conviction as a predicate offense. At the plea proceeding, defendant stated that he was the same person mentioned in the statement and that he did not wish to challenge the constitutionality of his prior conviction. The court adjudicated defendant a second violent felony offender. At the June 6, 2012 sentencing proceeding, defendant was sentenced to a determinate seven-year term of imprisonment with five years' PRS.⁵

In June 2014, defendant made a motion to set aside his sentence pursuant to CPL 440.20 (1) on the ground that defense counsel at his 2012 sentencing was ineffective for not challenging the 2002 predicate conviction, which, according to defendant, was obtained in violation of *Catu*. Defendant argued that his predicate conviction was "unlawfully obtained" under CPL 400.15 (7) (b)⁶ because defense counsel failed to investigate the predicate conviction and lacked a strategic basis for not doing so. He sought vacatur of his 2012 sentence, disqualification of his 2002 robbery conviction as a predicate offense, and resentencing as a first violent felony offender.

Defendant supported the motion with an affirmation of defense counsel who represented defendant relative to the 2012 conviction. Counsel explained that he failed to investigate the proceedings that led to the 2002 conviction, and he did not ask defendant if the court had apprised defendant of PRS. He was unaware that the predicate conviction had been unconstitutionally obtained at the time of defendant's arraignment on the predicate felony, and maintained that, had he known about the *Catu* error, he would have challenged the predicate conviction as "unconstitutionally obtained" and defendant would not have been adjudicated a second violent felony offender.

The People opposed the motion, claiming that a *Catu* error does not rise to the level of a federal constitutional violation and that *Catu* did not apply retroactively to convictions that had become final prior to the *Catu* decision.

5. Defendant filed a timely notice of appeal, which was eventually withdrawn by stipulation of the parties. The sole issue raised was whether defendant was required to register pursuant to New York City's Gun Offender Registration Act.

6. This provision states, as relevant here, that a prior conviction "which was obtained in violation of the rights of the defendant under the applicable provisions of the constitution of the United States must not be counted in determining whether the defendant has been subjected to a predicate violent felony conviction."

Supreme Court, relying on *People v Fagan* (116 AD3d 451 [1st Dept 2014]), granted defendant's motion, holding that he was deprived of the effective assistance of counsel due to counsel's failure to challenge the predicate conviction. As relevant here, Supreme Court determined that *Catu* applied retroactively. The court resentenced defendant as a first felony offender to seven years' imprisonment with five years' PRS.

The Appellate Division modified the judgment by reducing defendant's sentence to a term of six years' imprisonment with five years' PRS, but otherwise affirmed (132 AD3d 511, 511 [1st Dept 2015]). Pointing to CPL 400.15 (7) (b), the Court held that

“[b]ecause a conviction obtained in violation of *Catu* implicates rights under the federal Constitution as well as the state constitution, the [motion] court properly granted defendant's CPL 440.20 motion and vacated his sentence as a second violent felony offender on the ground that his 2002 conviction could not be counted as a predicate felony under CPL 400.15 (7) (b)” (*id.* at 511-512 [citations omitted]).

Moreover, the Court held that although the 2002 conviction preceded the *Catu* decision, “the rule of law announced in *Catu* applies retroactively to pre-*Catu* convictions” (*id.* [citations omitted]).

A Judge of this Court granted the People leave to appeal.

II.

People v Fagan

On April 18, 2000, defendant Keith Fagan pleaded guilty to attempted robbery in the first degree.⁷ The following month, he was sentenced as a second felony offender to a determinate term of seven years' imprisonment. The court did not apprise defendant at sentencing that he was subject to a mandatory term of PRS.

Defendant was released from prison in March 2006 and DOCCS administratively imposed a five-year PRS sentence. On January 28, 2009, defendant appeared for a Correction Law § 601-d hearing. At the hearing, the court acknowledged

7. The minutes to the plea proceeding have been lost, but the parties agree that defendant had not been apprised of PRS.

that the administratively-imposed PRS was illegal, and, to remedy the illegality, resentenced defendant to a seven-year determinate sentence with five years' PRS nunc pro tunc to the original sentencing date of May 23, 2000.

In February 2009, defendant was charged in a 12-count indictment with committing various offenses, including robbery and grand larceny. While defendant was awaiting trial on that indictment, Supreme Court vacated defendant's PRS term that had been imposed at the January 28, 2009 resentencing in light of *People v Williams* (14 NY3d 198 [2010], *cert denied* 562 US 947 [2010]), in which we held that "after release from prison, [there is] a legitimate expectation in the finality of a sentence [that] arises and the Double Jeopardy Clause prevents reformation to attach a PRS component to the original completed sentence" (*Williams*, 14 NY3d at 217).

In June 2010, defendant proceeded to trial on the February 2009 indictment. In the middle of trial, however, he pleaded guilty to the lesser included offense of attempted robbery in the first degree in satisfaction of all 12 counts in the indictment. He was arraigned as a persistent violent felony offender based on two prior felonies—a 1980 conviction for criminal sexual act in the first degree and the May 2000 attempted robbery conviction. Defendant admitted that he was the person named in the persistent violent felony information filed by the People, and did not challenge any of the allegations contained therein. On July 6, 2010, he was sentenced as a persistent violent felony offender to 18 years to life imprisonment.

In January 2013, defendant moved for an order setting aside his sentence pursuant to CPL 440.20 (1) on the ground that his adjudication as a persistent violent felony offender was illegally imposed and invalid because his May 2000 attempted robbery conviction was "unconstitutionally obtained" under *Catu* and could not serve to enhance his sentence. He also claimed that his counsel was ineffective for not challenging the People's use of the May 2000 conviction as a predicate offense. In an affirmation submitted in support of the motion, defense counsel who was present at the July 2010 sentencing acknowledged that he did not challenge the May 2000 conviction as unconstitutionally obtained and did not ask defendant whether the court had apprised him of the PRS component prior to his pleading guilty, and stated that, had he been aware that defendant's May 2000 conviction had been obtained without defendant having been apprised of the PRS component, he would have challenged the prior conviction.

The People countered that the *Williams* vacatur and defendant's 2010 resentencing that excised the PRS component rectified the *Catu* error and gave defendant what he had bargained for in 2000 when he pleaded guilty, such that the May 2000 conviction was not "unlawfully obtained." They argued that defendant's counsel at the 2010 plea proceeding could not have been ineffective for failing to raise a frivolous claim.

Defendant responded by arguing that although the *Williams* vacatur effectively removed one year from the five-year PRS term (four of which he had served), that action did not cure the *Catu* error.

Supreme Court denied defendant's motion in its entirety. The Appellate Division reversed and granted defendant's motion, holding that defense counsel was ineffective for not challenging the constitutionality of the May 2000 conviction at the sentencing proceeding (116 AD3d 451, 451 [1st Dept 2014]). Relying on defense counsel's affirmation, the Court stated that "this was not a case where an attorney may have reasonably believed that it would have been futile to raise a *Catu* issue regarding the constitutionality, for predicate felony purposes, of defendant's 2000 conviction, or that the law was unclear on this issue" (*id.* at 452). As such, according to the Court, defendant was "entitled to have his persistent felony offender status litigated with proper assistance of counsel, at a new adjudication and sentencing" (*id.*).

On remand, Supreme Court, utilizing only the 1980 predicate conviction, sentenced defendant as a second violent felony offender to a 15-year determinate term with five years' PRS. The People filed a notice of appeal.

The People also moved pursuant to CPL 440.40 for an order to set aside defendant's sentence and adjudicate defendant a persistent violent felony offender. Supreme Court denied the motion. The People filed a timely notice of appeal. The People's appeals from the judgment of resentence and the denial of the People's CPL 440.40 motion were consolidated.

The Appellate Division heard the consolidated appeals and unanimously affirmed, holding, as relevant here, that a *Catu* violation implicates both the State and Federal Constitutions, and that although the *Catu* error occurred in 2000—well before the *Catu* decision in 2005—the *Catu* decision applied retroactively (134 AD3d 411, 412 [1st Dept 2015]).

A Judge of this Court granted the People leave to appeal.

III.CPL 400.15 (7) (b) and Federal Retroactivity

In order to establish that a defendant is a second violent felony offender under CPL 400.15 (7) (a), the People must prove beyond a reasonable doubt that the defendant was convicted of the predicate violent felony offense in question. Once that burden is met, the burden shifts to the defendant to establish that the prior conviction was “unconstitutionally obtained” (CPL 400.15 [7] [b]). CPL 400.15 (7) (b) provides that “[a] previous conviction in this or any other jurisdiction which was obtained *in violation of the rights of the defendant under the applicable provisions of the constitution of the United States* must not be counted in determining whether the defendant has been subjected to a predicate violent felony conviction” (emphasis supplied).

Defendants contend that their *Catu*-infected convictions that predated our *Catu* decision were unconstitutionally obtained under CPL 400.15 (7) (b) and therefore cannot be utilized as predicate convictions to enhance their sentences. Because these appeals involve postconviction attacks on defendants’ respective prior convictions,⁸ we begin our analysis with *People v Catalanotte* (72 NY2d 641 [1988], *cert denied* 493 US 811 [1989]). That case addressed whether the defendant’s sentence as a second felony offender could be predicated on a prior conviction that “satisfied constitutional standards when obtained and ha[d] survived postconviction collateral attack, but was obtained by means which, if the indictment were tried [at present], would violate [the] defendant’s rights [to a public trial] under the Sixth Amendment of the United States Constitution” (*id.* at 643).

In *Catalanotte*, the defendant unsuccessfully claimed on direct appeal that he had been deprived of his right to a public trial when the trial judge summarily excluded spectators from the courtroom during the testimony of an undercover officer

8. We recognize that defendant Smith’s direct appeal from the 2002 conviction is not technically “final” because he has not perfected that appeal, and there is no indication from the record that the People moved to dismiss that appeal. Defendant Smith has not provided any excuse as to why he has not pursued his direct appeal. As it stands, the direct appeal has remained stagnant for more than a decade. Because of the procedural posture of this particular appeal, i.e., defendant Smith made a postconviction motion attacking his predicate conviction based on a *Catu* error, we will consider defendant’s appeal as one involving a collateral attack.

(*see id.*). Years after the defendant's appeal had become exhausted, this Court held in another case that it was reversible error for a court to summarily close the courtroom simply because a witness was an undercover police officer (*see id.* at 643-644, citing *People v Jones*, 47 NY2d 409, 414-415 [1979], *cert denied* 444 US 946 [1979]).

In 1986, the defendant pleaded guilty to attempted robbery in the second degree, and the court adjudicated the defendant a second felony offender utilizing the 1971 conviction as a predicate over the defendant's objection that the 1971 conviction was "unconstitutionally obtained" under *People v Jones* (*Catalanotte*, 72 NY2d at 644). The defendant argued on appeal to this Court for the application of the *Jones* rule to prevent the enhanced punishment for the 1986 conviction, claiming that the prior conviction had been "unconstitutionally obtained" (*id.*). We began our analysis by setting forth the pertinent rule, namely, that

"for purposes of determining whether a prior conviction 'was unconstitutionally obtained' [under CPL 400.21 (7) (b)⁹—and thus may not be counted for predicate felony purposes—the proper inquiry is to determine whether the conviction was obtained in violation of the defendant's rights as defined by the law at the time of the conviction or by present law which is properly applied to it under recognized principles of retroactivity" (*id.* at 643).

We explained that the clear import of the phrases "was obtained" and "was unconstitutionally obtained" under CPL 400.21 (7) (b) necessarily indicated that the validity of the conviction must "be determined as of the time it was entered," and that an unconstitutional conviction is one that is "obtained in violation of the defendant's constitutional rights, i.e., his rights as defined by the law existing at the time the conviction was obtained or by subsequent law applicable to the judgment under principles of retroactivity" (*id.* at 644-645). Significantly, we noted that a "conviction does not become unconstitutional merely because the law has changed subsequent to the defendant's direct appeal of that conviction" (*id.* at 645). As relevant here, we held in *Catalanotte* that

9. This provision is substantially similar in language to CPL 400.15 (7) (b).

“[s]ince the predicate felony statute operates upon the prior conviction rather than the prior practice, accepted principles of retroactivity must be applied to determine whether a conviction ‘was unconstitutionally obtained’ and thus may not be counted when the People seek to impose an enhanced sentence. Under those rules, a defendant is entitled to the benefit of any change in the law if the change occurs before his conviction becomes final or, if the right at stake is such that the law has engrafted an exception to the traditional rule to permit collateral attack on judgments of conviction after they have become final” (id. at 645 [citations omitted and emphasis supplied]).

Applying that rule, we held that the 1971 conviction met neither criteria, noting that the court’s closure of the courtroom in 1971 had complied, at that time, with the existing legal requirements for a public trial (*see id.* at 645), and, while this Court had eventually declared a similar procedure unconstitutional, it did not make the *Jones* rule retroactive, nor did it require a finding that the predicate conviction had been “unconstitutionally obtained” (*id.* at 645-646). We explained that “[t]he logic of such an interpretation is manifest when one considers that the proper meaning to be given to broadly stated constitutional commands, *such as due process of law* and right to a public trial, changes constantly” (*id.* at 646 [emphasis supplied]).

[1] Applying the first *Catalanotte* rule here, i.e., that a prior conviction may not be counted for predicate felony purposes if “the conviction was obtained in violation of the defendant’s rights as defined by the law at the time of the conviction” (*Catalanotte*, 72 NY2d at 643), it is evident that the law at the time of defendants’ respective predicate convictions in 2002 and 2000 did not require automatic vacatur for a court’s failure to pronounce PRS. Although at the time of defendants’ predicate convictions the law required a defendant be informed of the direct consequences of a guilty plea, i.e., those that have “a definite, immediate and largely automatic effect on [a] defendant’s punishment” (*Ford*, 86 NY2d at 403), the law also required that defects in plea allocutions could not result in a reversal absent a showing of prejudice (*see People v Nixon*, 21 NY2d 338, 355 [1967], *cert denied* 393 US 1067 [1969] [“It should never be enough to undo a plea because of some omission in inquiry at the time of plea without a showing of

prejudice”]). Indeed, in the PRS cases that preceded our *Catu* decision, the Appellate Division Departments required a showing of prejudice (see e.g. *People v Mason*, 2 AD3d 272, 272-273 [1st Dept 2003], *lv denied* 1 NY3d 630 [2004] [direct appeal]; *People v Ballinger*, 12 AD3d 686, 688 [2d Dept 2004] [CPL 440.10 motion]; *People v Bonilla*, 6 AD3d 1059, 1060 [4th Dept 2004] [CPL 440.10 motion] [relying on *Nixon*]; see also *People v Melio*, 304 AD2d 247, 252 [2d Dept 2003] [direct appeal]).¹⁰

And, in *People v Catu* (2 AD3d 306 [1st Dept 2003], *revd* 4 NY3d 242 [2005]), the Appellate Division specifically held that the defendant, who made his motion pursuant to CPL 440.10, was not entitled to plea vacatur because he failed to show that had he known of the PRS component he would not have pleaded guilty (see *id.* at 306). In support of that contention, the Appellate Division relied on *United States v Timmreck* (441 US 780 [1979]). In that case, the United States Supreme Court held that a defendant was not entitled to vacatur of his sentence because the District Court had failed to apprise him at the time of his plea that his prison sentence also included a three-year mandatory minimum special parole term, noting that the defendant did not argue that he was unaware of the mandatory term or that he would not have pleaded guilty had the judge apprised him of the mandatory term (see *id.* at 783-784).¹¹

In light of the foregoing, neither defendant Smith’s nor Fagan’s conviction was obtained in violation of the law as it existed at the time of their respective convictions. Both state and federal law required that a defendant demonstrate that he would not have pleaded guilty had he known about a mandatory term of his sentence. It was not until our 2005 decision in *Catu* that a defendant was entitled to automatic vacatur.

Nor does application of the second *Catalanotte* rule—that a prior conviction may not be used as a predicate conviction where the conviction was obtained in violation of “present law

10. In *People v Goss* (286 AD2d 180 [3d Dept 2001]), the Third Department held that a defendant was entitled to withdraw his plea prior to sentencing because he had not been advised of the PRS component (see *id.* at 184). Notably, however, the *Goss* court addressed (but rejected) the People’s argument that County Court’s failure to advise him of the PRS component was harmless (see *id.*).

11. Notably, the federal standard requires a defendant to demonstrate that the court’s error during the plea proceeding affected the defendant’s decision to accept the plea (see *United States v Westcott*, 159 F3d 107, 112-113 [2d Cir 1998], *cert denied* 525 US 1084 [1999]; *Caputo v Henderson*, 541 F2d 979, 984 [2d Cir 1976]).

which is properly applied to it under recognized principles of retroactivity” (*Catalanotte*, 72 NY2d at 643)—lend support to defendants’ argument that they should be permitted to mount a postconviction challenge to a final predicate conviction. CPL 400.15 (7) (b) expressly refers to challenges of previous convictions “obtained in violation of the rights of the defendant under the applicable provisions of the constitution of the United States,” but, assuming for the purposes of this appeal that CPL 400.15 (7) (b) applies to violations of the New York Constitution, neither state nor federal retroactivity principles would permit these defendants to mount a postconviction attack on their predicate convictions.¹²

Because defendants Smith and Fagan claim that their prior convictions were “unconstitutionally obtained” under the United States Constitution, we will first address the application of federal retroactivity rules to the instant appeals.

In *Teague v Lane* (489 US 288 [1989]), the United States Supreme Court, in addressing the issue of retroactivity for cases on collateral review, recognized that, “[u]nless they fall within an exception to the general rule, new constitutional rules of criminal procedure will not be applicable to those cases which have become final before the new rules are announced” (*id.* at 310; see *Whorton v Bockting*, 549 US 406, 416 [2007] [under *Teague*, an old rule will apply on direct and collateral review, whereas a new rule applies to only cases that are still on direct review]). That holding raises the pertinent question as to what constitutes a “new rule” for purposes of retroactivity analysis. The *Teague* court explained that “a case announces a new rule when it breaks new ground or imposes a new obligation on the States or the Federal Government. To put it differently, a case announces a new rule if the result was not *dictated* by precedent existing at the time the defendant’s conviction became final” (*Teague*, 489 US at 301 [citations omitted]).¹³ A result is not deemed “dictated by precedent,” however, unless it would have been “apparent to all reasonable jurists” (*Lambrix v Singletary*, 520 US 518, 527-528 [1997]).

12. In light of this assumption, we need not address the People’s argument that our holding in *People v Pignataro* (22 NY3d 381 [2013]) established that a *Catu* error constitutes only a violation of the State Constitution, thereby taking it out of the realm of CPL 400.15 (7) (b).

13. In contrast, an “old rule” is one that applies a well-established constitutional principle to a new circumstance, and, as such, is always retroactive (*Yates v Aiken*, 484 US 211, 216 [1988]; *People v Eastman*, 85 NY2d 265, 275 [1995]).

As with most rules, there are exceptions. As relevant here, a new rule will be applied retroactively if it is a “watershed rule[] of criminal procedure” that implicates “the fundamental fairness and accuracy of the criminal proceeding” (see *Saffle v Parks*, 494 US 484, 495 [1990], citing *Teague*, 489 US at 311).¹⁴ This exception is limited “to those new procedures without which the likelihood of an accurate conviction is seriously diminished” (*Teague*, 489 US at 313). Absent an applicable exception, “[a]ll other new rules of criminal procedure must be applied in future trials and in cases pending on direct review, but may not provide the basis for a federal collateral attack on a state-court conviction” (*Danforth v Minnesota*, 552 US 264, 266 [2008] [summarizing the *Teague* rule]).

[2] Defendants contend that our opinion in *Catu* merely applied the well-established constitutional principle that a defendant must be apprised of the direct consequences of his or her plea in order for the plea to meet the “knowing, intelligent and voluntary” requirement (*Ford*, 86 NY2d at 403). To that end, defendants are partially correct, since prior to the *Catu* decision, Penal Law § 70.45 (1) required that “[e]ach determinate sentence . . . include[], as a part thereof, an additional period of [PRS]” (emphasis supplied). All four Appellate Division Departments were in agreement that PRS was a direct consequence of a guilty plea (see *Ballinger*, 12 AD3d at 687-688; *Bonilla*, 6 AD3d at 1060; *Mason*, 2 AD3d at 272-273; *Goss*, 286 AD2d at 184). However, *Catu* did more than simply apply a long-held constitutional principle to a new circumstance—it created a new rule calling for automatic vacatur of the plea without requiring the defendant to demonstrate prejudice, which plainly differed from prior law (see *Nixon*, 21 NY2d at 355 [“It should never be enough to undo a plea because of some omission in inquiry at the time of plea without a showing of prejudice”]). Significantly, the Appellate Division’s *Catu* decision focused on the prejudice component (2 AD3d at 306), and did not address the issue whether PRS was a direct consequence of a plea, which, by that point, was well established among the four Appellate Division Departments. Therefore, our determination in *Catu* announced a new rule that a defendant who is not apprised of PRS need not demonstrate

14. The other exception, not applicable here, is when the new rule “place[s] certain kinds of primary individual conduct beyond the power of the States to proscribe” (*People v Baret*, 23 NY3d 777, 791 [2014], quoting *Danforth v Minnesota*, 552 US 264, 266 [2008]).

prejudice in order to obtain a reversal and plea vacatur, and given the state of the law pre-*Catu*, our determination in *Catu* was most certainly *not* dictated by precedent.

Nor does *Catu* fall within an applicable recognized exception that would permit a new rule to be retroactively applied on collateral attack because it did not constitute a “watershed rule[] of criminal procedure,” i.e., it is not a “‘new procedure[] [of fundamental fairness] without which the likelihood of an accurate conviction is seriously diminished’” (*People v Baret*, 23 NY3d 777, 784 [2014], *cert denied* 574 US —, 135 S Ct 961 [2015], quoting *Teague*, 489 US at 311, 313). The United States Supreme Court has stated that this particular exception is an “extremely narrow” one (*Schriro v Summerlin*, 542 US 348, 352 [2004]), and has repeatedly analogized such a rule to the right to counsel established by *Gideon v Wainwright* (372 US 335 [1963]) (*see Whorton*, 549 US at 419 [rejecting retroactive application of *Crawford v Washington* (541 US 36 [2004])]; *Teague*, 489 US at 311-312; *see also Schriro*, 542 US at 355-356 [rejecting retroactive application of *Ring v Arizona* (536 US 584 [2002])]). *Gideon*—which held that counsel must be appointed for any indigent defendant charged with a felony—is the lodestar case for this exception because “[w]hen a defendant who wishes to be represented by counsel is denied representation . . . , the risk of an unreliable verdict is intolerably high” (*Whorton*, 549 US at 419 [citations omitted]).

In order to apply a new “watershed rule” retroactively, the rule must meet two requirements, namely, it “must be necessary to prevent an impermissibly large risk of an inaccurate conviction . . . [and it] must alter our understanding of the bedrock procedural elements essential to the fairness of a proceeding” (*Whorton*, 549 US at 418 [citations and internal quotation marks omitted]). The latter requirement mandates that the new rule “constitute a previously unrecognized bedrock procedural element that is essential to the fairness of a proceeding,” and the United States Supreme Court has “looked to the example of *Gideon*” in analyzing the requirement (*id.* at 421).

Our *Catu* “automatic vacatur” rule did not constitute such a “watershed rule” comparable to the determination in *Gideon*. *Catu* was not necessary to prevent an impermissibly large risk of an inaccurate conviction, and it is doubtful that the failure of the courts to apprise defendants Smith and Fagan of the PRS component resulted in them pleading guilty to crimes that

they did not commit. Indeed, when presented with their prior convictions, defendants Smith and Fagan acknowledged that they were the individuals mentioned in the predicate felony statements filed by the People, and that they did not wish to challenge any of the allegations contained within their respective statements.

Similarly, *Catu*'s automatic vacatur rule did not "alter our understanding of the *bedrock procedural elements* essential to the fairness of a proceeding" (*Whorton*, 549 US at 420, quoting *Sawyer v Smith*, 497 US 227, 242 [1990]). To be sure, although *Catu* is a significant decision that created a rule that called for automatic vacatur of convictions where a defendant is not apprised of the PRS component of the sentence, the rule itself is not on par with *Gideon*. Indeed, as noted above, the federal rules do not call for automatic vacatur, but require a defendant to show that an error during the plea proceeding affected the defendant's decision to plead guilty (see *Westcott*, 159 F3d at 112-113; *Caputo*, 541 F2d at 984).

IV.

State Retroactivity

Assuming for the sake of this appeal only that CPL 400.15 (7) (b) allows a defendant to challenge a predicate conviction obtained as a violation of his state constitutional right, state retroactivity principles militate against a retroactive application of *Catu*. In *People v Pepper* (53 NY2d 213 [1981], *cert denied* 454 US 967 [1981]), this Court adopted a three-part test to assist in determining whether a new precedent should be afforded a retroactive application (*id.* at 220). We explained that courts should weigh and examine (1) "the purpose to be served by the new standards"; (2) "the extent of the reliance by law enforcement authorities on the old standards"; and (3) "the effect on the administration of justice of a retroactive application of the new standards" (*id.*). The second and third factors are given substantial weight only "when the answer to the retroactivity question is not to be found in the purpose of the new rule itself" (*id.* [citation omitted]). "Thus, where otherwise there could be a complete miscarriage of justice, current constitutional standards that go to the heart of a reliable determination of guilt or innocence have been substituted for those in effect at the time of trial" (*id.* at 221). As a general rule, the *Pepper* rules "disfavor retroactivity" (*Baret*, 23 NY3d at 799).

In *Pepper*, we were asked to determine the retroactivity of our holding in *People v Samuels* (49 NY2d 218 [1980]), where “we held that once an accusatory instrument has been filed a defendant cannot waive his constitutional right to counsel save in the presence of counsel” (*Pepper*, 53 NY2d at 217, citing *Samuels*, 49 NY2d 218). Incidentally, we held in *Pepper* that *Samuels* retroactively applied to defendants whose direct appeals were not final at the time it was decided; however, we refused to apply it to those defendants who had exhausted their direct appeals, noting “only complete retroactivity could make *Samuels* applicable [in the latter case]. And that, impermissibly, would mean that every defendant to whose case it was relevant, no matter how remote in time and merit, would become its beneficiary” (*id.* at 222).

[3] Although a court’s failure to advise a pleading defendant of the PRS component constitutes a due process violation, it cannot be said that the purpose of the *Catu* rule—automatic vacatur—has any bearing on the defendant’s guilt or innocence. It is highly unlikely that defendants who pleaded guilty to criminal offenses that required determinate sentences but did not have PRS pronounced pleaded guilty to crimes that they did not commit. Thus, while PRS is certainly an important component of a sentence, a court’s failure to inform a defendant of that component is not likely to result in the conviction of an innocent person.

Nor do the second and third factors weigh in favor of retroactivity. Prior to these particular appeals, prosecutors, defense counsel and courts had relied extensively on the legitimacy of pre-*Catu* predicate felony convictions for enhancement purposes where PRS had not been pronounced. Moreover, retroactive application of *Catu* would do little to advance the administration of justice as it would render useless prior predicate convictions as a result of a sentencing error that bore no relationship to the defendant’s guilt or innocence. The legislature, in an attempt to remedy the *Catu* errors committed between September 1, 1998 and June 30, 2008, enacted Penal Law § 70.85, which granted the court, with the consent of the district attorney, the authority to reimpose the original determinate sentence without any term of PRS (*see* Penal Law § 70.85; L 2008, ch 141, § 2). This essentially created an exception to Penal Law § 70.45’s requirement that a PRS component be added to all determinate sentences, such that a sentence pronounced without PRS under Penal Law § 70.85 nonetheless constitutes a legal sentence.

Finally, in addition to the statutory avenues of relief that have been enacted to assist a defendant in rectifying *Catu* errors, our case law permits a defendant to raise an unpreserved *Catu* error on direct appeal (see *People v Louree*, 8 NY3d 541, 545-546 n [2007] [also holding that a defendant may not raise a *Catu* objection by way of a CPL article 440 proceeding]). Moreover, we have held that because there is little distinction between a *Catu* claim and a challenge to the adequacy of a plea allocution, “[i]n the absence of justification for a defendant’s failure to pursue [that] issue in a direct appeal . . . , [a *Catu*] claim may not be raised in a CPL 440.10 motion” (*People v Stewart*, 16 NY3d 839, 841 [2011]). Based on the foregoing, the application of the *Pepper* test does not favor state retroactivity.

V.

Conclusion

In *People v Smith*, the Appellate Division erred in holding that *Catu* applies retroactively to pre-*Catu* convictions. Accordingly, the Appellate Division order should be reversed, the resentence vacated and the original sentence reinstated.

In *People v Fagan*, the Appellate Division likewise erred in determining that defendant Fagan was entitled to challenge his pre-*Catu* predicate conviction on the ground that *Catu* applied retroactively. Accordingly, the Appellate Division order should be reversed, the resentence vacated and the original sentence reinstated.

Chief Judge DiFiore (concurring). For the reasons that follow, I concur in the result. In my view, defendants’ original convictions were constitutionally obtained under this Court’s jurisprudence and permissibly used as predicate convictions to enhance defendants’ sentences.

In 1998, with the adoption of Jenna’s Law, the legislature “eliminat[ed] parole for all violent felony offenders . . . [and] enacted a scheme of determinate sentencing to be followed by periods of mandatory postrelease supervision” (PRS) (see *People v Catu*, 4 NY3d 242, 244 [2005]; Penal Law § 70.45 [1]). The statutory mandate of PRS, which continues beyond a defendant’s release from his or her maximum determinate term of incarceration, had “‘a definite, immediate and largely automatic effect on defendant’s punishment’ ” (*Catu*, 4 NY3d at

244, quoting *People v Ford*, 86 NY2d 397, 403 [1995]). The failure of many trial courts to properly impose that PRS term, in connection with both trial and plea convictions, has resulted in a chaotic landscape and led to a litany of cases before this Court, beginning with *People v Catu* (4 NY3d 242 [2005]).

In *Catu*, we addressed a trial court's failure to advise the defendant of his PRS term in connection with his bargained-for sentence on a guilty plea where the defendant's status as a predicate felony offender mandated that his sentence include a five-year PRS period. The defendant in *Catu* sought the vacatur of his plea on direct appeal and moved for the same relief through a CPL 440.10 motion, seeking to return to his preplea position before the trial court. We held that PRS "is a direct consequence of a criminal conviction" such that the failure to inform a defendant of his or her PRS term prior to taking a guilty plea violated the long-standing due process requirement that pleas be entered "knowingly, voluntarily and intelligently" (*id.* at 244, 245). We further held that the remedy for that error is to permit a defendant to vacate his or her plea and return to the trial court (*see id.*).¹ As we later explicated, "vacatur of the plea is the remedy for a *Catu* error since it returns a defendant to his or her status before the constitutional infirmity occurred," i.e., the preplea status where defendant faces the risk of an even greater determinate sentence and the certain imposition of PRS if convicted (*People v Hill*, 9 NY3d 189, 191 [2007]).

Prior to 2008, because Penal Law § 70.45 (1) mandated that determinate sentences include a period of PRS, sentences without the proper imposition of PRS were illegal. Thus, the remedy in cases where the trial court failed to advise defendant at the time of the guilty plea of PRS in connection with the bargained-for sentence was a resentencing. Since the conviction was on a guilty plea, the vacatur of that plea was also

1. The majority's retroactivity analysis is predicated on the basis that the *Catu* remedy of automatic vacatur of the plea did not exist before our 2005 decision (*see* majority op at 205). However, at the time both defendant Smith and defendant Fagan pleaded guilty, the law allowed defendants to challenge the voluntariness of their pleas if the courts imposed sentences in excess of that for which defendants bargained and were promised on the record (*see e.g. People v Selikoff*, 35 NY2d 227 [1974]; *People v Esposito*, 32 NY2d 921 [1973]). Thus, where a defendant pleaded guilty in exchange for a promised determinate sentence and a court imposed PRS without his or her knowledge, he or she could allege, even at the pre-*Catu* stage, that the guilty plea was involuntary and unconstitutionally obtained (*see People v Harris*, 61 NY2d 9 [1983]; CPL 400.15 [7] [b]).

required. The court could not merely grant specific performance of the promised, and more lenient, sentence.² However, in 2008 the legislature enacted Penal Law § 70.85, “[t]ransitional exception to determinate sentencing laws,” creating an alternative remedy for the trial court’s failure to advise a defendant of his or her PRS term at the time of his or her guilty plea.³ The statute authorizes the court to “re-impose the originally imposed determinate sentence of imprisonment without any term of [PRS],” and permits that sentence to “be deemed a lawful sentence,” so long as the district attorney consents (Penal Law § 70.85). Accordingly, with section 70.85, the legislature carved out an exception to Penal Law § 70.45 thereby “allowing a determinate sentence without a term of PRS to stand as a legal sentence” (*People v Pignataro*, 22 NY3d 381, 384 [2013]). The statute relegates PRS to a *possible* consequence in plea cases in the relevant time period, rather than a definite, immediate, and automatic part of a defendant’s sentence. We later sanctioned this transitional remedy as “a constitutionally permissible legislative remedy for the defectiveness of the plea” (*id.* at 387). Defendants are effectively given more lenient sentences while their plea convictions are afforded a much needed finality.

In a related line of cases, we addressed a trial court’s error in failing to pronounce PRS at sentencing following either a trial verdict or a knowing, voluntary and intelligent guilty plea where a PRS term was included on the commitment sheet, which reflects the court’s commitment of the defendant to the custody of the Department of Correctional Services (DOCS)⁴ (see *People v Sparber*, 10 NY3d 457 [2008]; CPL 380.20).⁵ We held that the “sole remedy” for that procedural error “is to

2. Notably, we rejected an argument that this error could be cured by resentencing the defendant such that the prison term and PRS term together are within the range of the sentence promised to defendant in connection with the plea (see *Hill*, 9 NY3d at 192; *People v Louree*, 8 NY3d 541, 545 [2007]; *People v Van Deusen*, 7 NY3d 744, 746 [2006]; but see *People v Collier*, 22 NY3d 429 [2013]).

3. This remedy is available for determinate sentences imposed between September 1, 1998 and June 30, 2008.

4. While this department is now referred to as the Department of Corrections and Community Supervision (DOCCS), it was known as DOCS at the time relevant to these appeals and, therefore, will be referred to as DOCS throughout.

5. In *Sparber*, the defendant was not informed of his PRS term prior to pleading guilty, and the court failed to pronounce PRS at sentencing, but defendant’s commitment sheet reflected a five-year PRS term (see *id.*). The defendant

(n. cont’d)

vacate the sentence and remit for a resentencing hearing so that the trial judge can make the required pronouncement” (*Sparber*, 10 NY3d at 471). As we later clarified in a matter involving a trial conviction, that resentencing proceeding “is not a plenary proceeding,” but is “limited to remedying this specific procedural error,” i.e., the court’s failure to pronounce the sentence of PRS (*People v Lingle*, 16 NY3d 621, 635 [2011]).

Then there were the cases where the sentence of PRS was never imposed as the trial court failed to pronounce the PRS term at sentence and also failed to include any such sentence on the commitment order to DOCS. These defendants without a PRS sentence would be released from prison prior to the expiration of their determinate sentences without any supervision, thus serving less punishment than originally imposed by the trial court and less punishment than statutorily required. In those cases, in an attempt to ensure the defendant was serving a legal sentence under section 70.45, DOCS administratively imposed PRS (*see Matter of Garner v New York State Dept. of Correctional Servs.*, 10 NY3d 358 [2008]). This extrajudicial attempt to impose PRS at a postjudgment stage was illegal. Specifically, we held that PRS, as any sentence, must be pronounced by the court at sentencing and, therefore, administrative imposition of the PRS term by DOCS was prohibited (*see id.* at 362). However, the remedy for that error, too, was a resentencing proceeding in the trial court (*see e.g. People v Velez*, 19 NY3d 642, 645-646 [2012]).

In order to facilitate such resentencing proceedings, where there was no imposition of PRS in a sentence by the trial court, the legislature passed Correction Law § 601-d. The statutory procedure allowed for the resentencing of persons “in DOCS’s custody, or under its supervision, [that were] given a determinate sentence which was required by law to include PRS, but where DOCS’s records do not show that a PRS term was actually imposed” (*id.* at 646). Such a defendant is considered a “designated person” under the statute and the department is instructed to “make notification of that fact to the court that sentenced such person, and to the inmate or releasee,” at which point “[t]he court shall promptly seek to obtain sentencing minutes, plea minutes and any other records and shall . . . conduct any reconstruction proceedings that may be necessary” (Correction Law § 601-d [2], [4] [b]).

defendant rejected the remedy of the vacatur of his plea under *Catu*, seeking a more lenient sentence by having his PRS term expunged (*see id.* at 466).

The postjudgment imposition of PRS proved somewhat problematic and, in *People v Williams* (14 NY3d 198 [2010]), we placed a temporal limitation on a court's ability to impose PRS in these situations. We held that "after release from prison, a legitimate expectation in the finality of a sentence arises and the Double Jeopardy Clause prevents reformation [of the sentence] to attach a PRS component to the original completed sentence" (*id.* at 217). Put differently,

"once a defendant is released from custody and returns to the community after serving the period of incarceration that was ordered by the sentencing court, and the time to appeal the sentence has expired or the appeal has been finally determined . . . the Double Jeopardy Clause prevents a court from modifying the sentence to include a period of [PRS]" (*id.* at 219-220).

The corrective relief by the court for the double jeopardy violation is the vacatur of the illegal resentencing and the reinstatement of the original sentence (*id.* at 222). Importantly, while the Double Jeopardy Clause prohibits untimely imposition of any new punishment, including PRS, the constitutional error is a function of the resentencing court acting outside of its authority. It does not affect a defendant's original conviction (*see e.g. People v Jordan*, 15 NY3d 727 [2010] [reinstating original sentence where defendant resentenced to PRS in violation of Double Jeopardy Clause]).

Here, the constitutional infirmity that both defendants argue rendered their respective original convictions⁶ "unconstitutionally obtained" within the meaning of CPL 400.15 (7) (b) is the failure of the trial courts to impose PRS as part of their original judgment or otherwise advise defendants in their original proceeding that the sentence included a mandatory period of PRS. Defendants' essential argument is that this is a *Catu* error that infected their guilty pleas and requires disqualification of those convictions as predicate convictions. With that in mind, I now turn to the cases before us. In doing so, I adopt the facts of the majority, but highlight those relevant to my analysis.

6. "Original conviction" refers to defendant Smith's 2002 conviction and defendant Fagan's 2000 conviction.

People v Smith

In November 2001, defendant Smith pleaded guilty to robbery in the first degree, a violent felony (Penal Law §§ 70.02 [1]; 160.15 [4]). Defendant, when sentenced in January 2002, was never sentenced to PRS as he was not advised that his bargained-for sentence would include a mandatory PRS term, and defendant's commitment sheet reflected no such term. Nevertheless, upon his release from prison in April 2007, DOCS administratively imposed a PRS term. In October 2008, this illegal imposition of PRS was captured and defendant was resentenced pursuant to Correction Law § 601-d based on the omission of a PRS term from his sentence for his 2002 conviction. During that resentencing proceeding, the trial court admitted that it did not have possession of the minutes of defendant's 2001 plea proceeding and, thus, could not be sure if it had advised defendant of the mandatory PRS term. Pivotaly, defendant agreed to "waive waiting for the actual minutes to arrive and waive any claims he had with respect to the plea" so long as the court "grant[ed] him the minimum post-release period" of 2½ years (the maximum possibility being five years). The record reflects that the court specifically asked defense counsel the following: "You're asking me to sentence [defendant] to the minimum period of post-release supervision and not withdraw [defendant's] plea. Is that what you're talking about?", to which defense counsel responded "[defendant] indicated he's prepared to do that if the prosecutor's office would be willing to go along with it." The court then sentenced defendant to the minimum PRS period.

Based on this exchange, defendant, having chosen not to seek the remedy of vacatur of the guilty plea and the opportunity to be restored to a preplea status, cannot now claim his original conviction was unconstitutionally obtained (*see generally People v DeValle*, 94 NY2d 870 [2000]).

Defendant was not actually sentenced to PRS in 2002. Nor was he sentenced to a PRS term upon the administrative imposition of PRS by DOCS, as that action was a nullity (*see Garner*, 10 NY3d at 360). To rectify that error, defendant was brought back to the trial court in 2008 to be resentenced. There, before the imposition of sentence, defendant declined to seek the *Catu* remedy of vacatur of his plea (and return to uncertain preplea status), asking instead for the minimum 2½-year PRS period. Consequently, defendant effectively waived any argument that his plea was not knowingly, voluntarily and

intelligently entered or that it was otherwise unconstitutionally obtained.

To the extent defendant could invoke our 2010 decision in *Williams* to render the untimely imposition of PRS at resentencing in 2008 a violation of double jeopardy, that illegal sentence would not affect the legality of the underlying plea conviction. “The Constitution does not require that sentencing should be a game in which a wrong move by the judge means immunity for the prisoner” (*United States v DiFrancesco*, 449 US 117, 135 [1980] [citation and internal quotation marks omitted]). Indeed, after electing to maintain his guilty plea with knowledge of the imposition of PRS, after the 2008 resentencing defendant was in the same position as any defendant with a lawfully obtained conviction and an illegal sentence. The only appropriate corrective relief is the vacatur of the illegal sentence and the reinstatement of the original sentence (see *Williams*, 14 NY3d at 222). Defendant cannot now retain the benefit of the bargained-for plea, but eliminate the 2002 conviction for consideration as a predicate felony conviction based on the corrected *Catu* error.

People v Fagan

In April 2000, defendant Fagan pleaded guilty to attempted robbery in the first degree. Defendant was not advised that his sentence would include a mandatory PRS term, nor was such term pronounced at sentencing or included in the court’s commitment order. Nevertheless, upon release in March 2006, DOCS administratively imposed a PRS term. This illegal imposition of PRS was captured in January 2009 and defendant also was resentenced in the trial court pursuant to Correction Law § 601-d based on the omission of a PRS term from his sentence for his 2000 conviction. However, that sentence violated the Double Jeopardy Clause under this Court’s decision in *Williams* because defendant had already completed his determinate sentence and served a portion of his PRS term. In March 2010, the illegal imposition of PRS was vacated by the trial court on these grounds and defendant’s original sentence was restored. Thus, as of that time—prior to the use of the original conviction as a predicate felony for enhanced sentencing—defendant’s sentence for his 2000 conviction was the originally imposed determinate term of seven years, with no PRS, as promised to defendant at the time of his guilty plea.

Penal Law § 70.85 specifically provides that, as an alternative to the remedy of vacatur of the plea, a court can “re-impose

the originally imposed determinate sentence of imprisonment without any term of [PRS].” Here, defendant received that lawful non-PRS sentence. Defendant’s original sentence for his 2000 conviction was reimposed and the intervening attempts to impose PRS were nullified (under *Williams*). Thus, like defendant Smith, defendant Fagan’s original conviction on his guilty plea was not infected by a *Catu* error, as the sentence actually promised at the time of the plea was the sentence actually imposed. Having received the benefit of the “constitutionally permissible legislative remedy for the defectiveness of the plea” in section 70.85 (*Pignataro*, 22 NY3d at 387), no constitutional infirmity remained with respect to defendant’s original conviction. The fact that, due to the court’s resentencing error at the postjudgment stage, defendant Fagan served some portion of his PRS term (some of which is within the range of the expected determinate sentence imposed) and may be entitled to some other form of relief does not undermine the lawfulness of that original conviction (*see DiFrancesco*, 449 US at 135 [noting that the wrong move of a sentencing judge does not invalidate the conviction]).

As of March 2010, defendant’s 2000 conviction was a lawful conviction for which he received a legal sentence. In fact, defendant received the precise sentence for which he bargained, undermining any argument that his guilty plea was not knowingly, voluntarily and intelligently entered. Therefore, nothing barred the use of the 2000 conviction as a predicate felony conviction in connection with defendant’s sentence for his 2010 conviction.

For those reasons, I would reverse the Appellate Division order in both matters, vacate defendants’ resentences, and reinstate defendants’ original sentences.

RIVERA, J. (dissenting). This Court has long abided by the cardinal principle that “[a] conviction obtained in violation of one’s constitutional rights may not be used to enhance punishment for another offense” (*People v Harris*, 61 NY2d 9, 16 [1983]). That is, until now.

In these appeals, the majority has determined that defendants’ respective convictions may serve as a predicate for sentencing purposes because the constitutional defect complained of was first recognized in *People v Catu* (4 NY3d 242 [2005]), and has no retroactive application to defendants’ cases. This conclusion is not supported by the case law, which clearly

shows that *Catu* was based on due process guarantees already well established in both federal and state jurisprudence. As a consequence, and unsurprisingly, we previously applied *Catu* retroactively. The legislature acted on the same understanding and passed Penal Law § 70.85 in response to *Catu* and its progeny on the assumption that all tainted sentences, going back to 1998, were subject to the *Catu* holding. Therefore, because distinguishing defendants' convictions here belies case law, legislation, and fairness, I dissent.

In addition to the general constitutional prohibition on the use in sentencing of unconstitutionally obtained prior convictions (*People v Harris*, 61 NY2d at 16, citing *Burgett v Texas*, 389 US 109, 115 [1967]), New York has a statutory ban on consideration of such convictions as predicate offenses. Pursuant to CPL 400.15 (7) (b), “[a] previous conviction in this or any other jurisdiction which was obtained in violation of the rights of the defendant under the applicable provisions of the constitution of the United States must not be counted in determining whether the defendant has been subjected to a predicate violent felony conviction.”¹ An unconstitutional conviction is one “obtained in violation of the defendant’s constitutional rights, i.e., [a defendant’s] rights as defined by the law existing at the time the conviction was obtained or by subsequent law applicable to the judgment under principles of retroactivity” (*People v Catalanotte*, 72 NY2d 641, 644-645 [1988]).

Here, the relevant due process rights were known and clearly defined at the time of the defendants’ respective convictions. In the context of guilty pleas, both the United States Supreme Court and this Court have long held that a plea must be knowing and voluntary for the plea to comport with the due process guaranteed to criminal defendants (*Boykin v Alabama*, 395 US 238, 242 [1969]; *Matter of Chaipis v State Liq. Auth.*, 44 NY2d 57, 63 [1978]; *People v Hill*, 9 NY3d 189, 191 [2007], citing NY Const, art I, § 6; *People v Ford*, 86 NY2d 397, 403 [1995]; *McCarthy v United States*, 394 US 459, 466 [1969]). As an additional protection of a defendant’s rights, “[a] trial court has the constitutional duty to ensure that a defendant, before pleading guilty, has a full understanding of what the plea connotes and its consequences” (*Ford*, 86 NY2d at 402-403 [cita-

1. As I discuss, since defendants’ convictions implicated their federally recognized due process rights, I have no occasion to address the People’s argument that CPL 400.15 (7) (b) does not apply to state constitutional violations.

tions omitted]). To that end, “the record must be clear that ‘the plea represents a voluntary and intelligent choice among the alternative courses of action open to the defendant,’ ” and the court must advise the defendant of those direct consequences of the plea “which ha[ve] a definite, immediate and largely automatic effect on defendant’s punishment” (*id.* at 403). In *Catu*, in reliance on these due process requirements, the Court stated that the mandatory postrelease supervision (PRS) portion of a sentence is “a direct consequence of a criminal conviction” (4 NY3d at 244). Accordingly, “the failure of a court to advise of [PRS] requires reversal of the conviction” (*id.* at 245), because “the constitutional defect lies in the plea itself and not in the resulting sentence” (*Hill*, 9 NY3d at 191).

As this discussion illustrates, the Court in *Catu* did not rely on amorphous or unsettled concepts of due process or break new legal ground. It simply applied existing doctrine “defined by the law existing at the time the conviction was obtained” (*Catalanotte*, 72 NY2d at 645), to the facts before it (*see Ford*, 86 NY2d at 403 [explaining the plea is not voluntary when a defendant is not told of the direct consequences of guilty plea and defining “direct consequence(s)” as those that are “definite, immediate and largely automatic” upon entry of the plea]).

The same rules apply here. The courts in defendants’ cases failed to advise them of the PRS portion of their sentences. As a consequence, these defendants’ convictions were obtained in violation of their recognized due process rights, rendering their respective pleas constitutionally defective (*People v Catu*, 4 NY3d 242, 245 [2005]; majority op at 195-196). Under *Harris* and CPL 400.15, the convictions may not serve as a predicate offense to enhance their sentences for a future offense (*Harris*, 61 NY2d at 16; CPL 400.15 [7] [b]).

This would not be the first time that this Court has applied *Catu* retroactively. In *People v Pignataro*, defendant pleaded guilty to attempted assault and was orally sentenced to a 15-year determinate sentence in February 2001, without being advised of his mandatory PRS (22 NY3d 381, 383 [2013]). Thereafter, defendant did not perfect his direct appeal, and instead commenced post-conviction proceedings, first to challenge the constitutionality of his guilty plea and later to challenge his Penal Law § 70.85 resentencing (*id.*). The provision was enacted in 2008, in the wake of *Catu* and a subsequent

line of cases addressing various sentencing challenges, and “authorizes a trial court to ‘re-impose,’ with the People’s consent, ‘the originally imposed determinate sentence of imprisonment without any term of [PRS]’ ” (*Pignataro*, 22 NY3d at 384, quoting Penal Law § 70.85). We would have no occasion to consider *Pignataro*’s challenge to Penal Law § 70.85—a legislative remedy specifically designed to address *Catu* errors—if the plea was not obtained in violation of the defendant’s constitutional rights, making his sentence unlawful and subject to the legislative “cure.”²

Our determination that Penal Law § 70.85 was “a constitutionally permissible legislative remedy” (*id.* at 387) for a defective plea establishes that while the type of relief may change, the underlying constitutional violation remains the same. Certainly that was the legislature’s understanding when it passed Penal Law § 70.85, creating a “[t]ransitional exception to determinate sentencing laws” applicable only to cases in which a sentence without PRS was imposed between September 1, 1998, the year the legislature made PRS a mandatory component of determinate sentencing, and the 2008 date when section 70.85 took effect (L 1998, ch 1 [Jenna’s Law]). The legislature would not have needed to reach back to 1998 in order to “avoid the need for pleas to be vacated” (Governor’s Approval Mem, Bill Jacket, L 2008, ch 141 at 5-6, 2008 NY Legis Ann at 106), if *Catu* applied only prospectively.

The decision applying *Catu* retroactively is quite limited and would affect a narrow class of individuals. Those potentially affected are defendants who completed PRS before resentencing, and who commit another crime that places them at risk for sentence enhancement. Put another way, the class includes only defendants who: (1) were convicted and sentenced after 1997 but before 2005, and who were not advised of the mandatory PRS portion of the sentence; (2) were released from prison before 2008, did not have their convictions cured by Penal Law

2. The majority makes too much of the short memorandum order in *People v Stewart* (16 NY3d 839 [2011]), suggesting that the decision supports denying retroactive application of *Catu* (majority op at 211). The summary opinion in *Stewart* merely recognized the obvious—that *Catu* errors are plain on the face of the record and thus reviewable on direct appeal. The Court did not foreclose any other avenue of review, or limit the reach of *Catu*. Indeed, in *People v Hill* (9 NY3d 189, 190 [2007]), the Court applied *Catu* to a defendant’s CPL 440.10 postjudgment challenge to his 2002 conviction.

§ 70.85, and served the mandatory PRS; and (3) committed a new offense that puts them at risk for sentence enhancement.³

Apart from the other legal reasons I have discussed, it is inherently unfair to permit sentencing enhancement for this group of defendants because it would mean “the accused in effect suffers anew from the deprivation” of due process which infected the prior conviction (*Burgett*, 389 US at 115). Such result undermines our constitutional principles and the holding of *Catu*.

Judges ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Chief Judge DiFIORE concurs in result in a separate concurring opinion; Judge RIVERA dissents and votes to affirm in an opinion.

In each case: Order reversed, the resentence vacated and the original sentence reinstated.

3. Since the issue before us involves defendants who are repeat offenders it is worth noting that the State’s recidivism rate has been steadily declining since 2001, and hit a record low in 2013, with only 9% of ex-offenders released from prison in 2010 being incarcerated for a new crime in the years that followed (Department of Corrections & Community Supervision, Press Release, *Return Rate for Parolees Committing New Felony Crimes Hits Historic Low*, Nov. 24, 2014, http://www.doccs.ny.gov/PressRel/2014/Recidivism_Rates_2010.pdf, cached at http://www.nycourts.gov/reporter/webdocs/Recidivism_Rates_2010.pdf).

[66 NE3d 669, 43 NYS3d 799]

In the Matter of GANIYU ADEBOLA ODUNBAKU, Respondent, v
DIANA ODUNBAKU, Appellant. (And Another Proceeding.)

Argued October 20, 2016; decided November 17, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 19, 2015. The Appellate Division order, insofar as appealed from, affirmed so much of an order of the Family Court of Richmond County (Arnold Lim, J.), dated March 11, 2014, as had, upon, in effect, granting re-argument, adhered to a prior order of that court, dated November 8, 2013. The November 2013 order (1) denied, as untimely, respondent-petitioner's objections to findings of fact, dated July 23, 2013, and orders, dated July 24, 2013, of that court (Gregory L. Gliedman, S.M.), which had (a) granted the petition of petitioner-respondent for a downward modification of his child support obligation, set his basic child support obligation and capped the arrears, and (b) dismissed without prejudice the cross petition of respondent-petitioner alleging a violation by petitioner-respondent of a prior child support order; and (2) confirmed and continued the July 2013 orders.

Matter of Odunbaku v Odunbaku, 131 AD3d 617, reversed.

HEADNOTE

Parent, Child and Family — Support — Timeliness of Objections — Failure to Serve Orders of Support Magistrate on Party's Attorney of Record

If a party is represented by counsel, the time requirements set out in Family Court Act § 439 (e) for objections to a support magistrate's final order, when the order is served by mail, do not begin to run until the order is mailed to counsel. Accordingly, the objections of respondent-petitioner mother to a support magistrate's orders and accompanying findings of fact in related child support proceedings were improperly denied as untimely under section 439 (e) where the orders were not mailed to the mother's counsel of record, notwithstanding that they were mailed directly to the mother. Basic procedural dictates and fundamental policy considerations require that once counsel has appeared in a matter a statute of limitations or time requirement cannot begin to run unless that counsel is served with the determination or the order or judgment sought to be reviewed. Thus, in the absence of unambiguous statutory language stating a legislative intention to depart from the standard practice, any general requirement that notice must be served upon the party must be read to require, at least, that notice be served upon the attorney the party has chosen to represent him or her. Here, the reference to the mailing of the order to a "party or parties" in section 439 (e)

must be read to require that the order be mailed to the party's counsel in order for the statutory time requirement to commence as the statute does not convey in language that could not be mistaken that mailing to a represented party is dispositive for time requirement purposes and mailing to counsel is unnecessary.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Divorce and Separation § 978; AM JUR 2d, Process § 99.
 CARMODY-WAIT 2d, Support Proceedings §§ 119:128, 119:130, 119:133, 119:134.
 MCKINNEY'S, Family Court Act § 439 (e).
 NEW YORK FAMILY COURT PRACTICE 2d, § 7:8.
 NY JUR 2d, Domestic Relations §§ 1086, 1095; NY JUR 2d, Process and Papers § 146.

ANNOTATION REFERENCE

See ALR Index under Custody and Support of Children; Process and Service of Process and Papers.

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POINTS OF COUNSEL

Morrison & Foerster LLP, Washington, D.C. (*Joseph Palmore* and *Marc A. Hearron* of counsel), *Morrisson & Foerster LLP*, New York City (*Grant J. Esposito*, *Daniel Matz-Brown*, *Lauren M. Gambier* and *Joshua R. Stein* of counsel), and *Nancy Goodhill*, *Staten Island Legal Services*, Staten Island (*Shelly Agarwala* of counsel), for appellant. Where a party is represented, the time for filing objections to a support magistrate's order in Family Court does not begin to run until the order is served on the party's counsel. (*Matter of Bianca v Frank*, 43 NY2d 168; *Matter of Case v Monroe Community Coll.*, 89 NY2d 438; *Krieger v Krieger*, 205 AD2d 975; *Courtesy Sandwich Shop v Port of N.Y. Auth.*, 12 NY2d 379; *Overstock.com, Inc. v New York State Dept. of Taxation & Fin.*, 20 NY3d 586; *Jones v Flowers*, 547 US 220; *Mullane v Central Hanover Bank & Trust Co.*, 339 US 306; *Walker v City of Hutchinson*, 352 US 112; *Robinson v Hanrahan*, 409 US 38; *Covey v Town of Somers*, 351 US 141.)

Segal & Greenberg LLP, New York City (Cindy A. Singh and Philip C. Segal of counsel), for respondent. I. The Family Court correctly denied Diana Odunbaku's objections as untimely given that they were filed after the statutory time limit set forth in Family Court Act § 439 (e) had run. (*Matter of Bianca v Frank*, 43 NY2d 168; *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48; *Matter of Alonzo M. v New York City Dept. of Probation*, 72 NY2d 662; *Matter of Orlando F.*, 40 NY2d 103; *Matter of Robert J.*, 2 NY3d 339.) II. Diana Odunbaku's remaining arguments are without merit and, in any event, unpreserved for appellate review. (*Matter of Monahan v Hartka*, 17 AD3d 758; *Judith S. v Howard S.*, 46 AD3d 318; *Tewari v Tsoutsouras*, 75 NY2d 1; *Matter of Commissioner of Social Servs. v Segarra*, 78 NY2d 220; *Schillawski v State of New York*, 9 NY2d 235.)

Simpson Thacher & Bartlett LLP, New York City (Joseph M. McLaughlin, Jillian de Chavez-Lau and Michael P. Waks of counsel), for Sanctuary for Families and others, amici curiae. I. The lower courts' misinterpretation of Family Court Act § 439 (e) and 22 NYCRR 205.36 undermines the relationship between attorneys and their clients. II. Adopting appellant's position would promote uniform application throughout New York family courts of an interpretation of Family Court Act § 439 (e) and 22 NYCRR 205.36 that furthers New York's public policy interests. III. Consistent with federal civil, criminal, and immigration proceedings, and many states' family court and civil rules, the best reading of Family Court Act § 439 (e) and 22 NYCRR 205.36 requires the clerk to serve a represented individual's attorney. (*Kiki Undies Corp. v Promenade Hosiery Mills, Inc.*, 308 F Supp 489; *Hawk v United States*, 340 F2d 792; *Hamazaspyan v Holder*, 590 F3d 744.)

OPINION OF THE COURT

FAHEY, J.

We apply our precedent in *Matter of Bianca v Frank* (43 NY2d 168 [1977]) to Family Court Act § 439 (e) and hold that if a party is represented by counsel, the time requirements set out in the statute for objections to a support magistrate's final order, when the order is served by mail, do not begin to run until the order is mailed to counsel.

Diana Odunbaku (the mother) retained Staten Island Legal Services to represent her in her efforts to obtain child support from Ganiyu Adebola Odunbaku (the father), with whom she

had a son. Through counsel, who represented her throughout the proceedings described below, the mother filed a support petition in Family Court. Following a hearing, the Support Magistrate, finding the father's testimony incredible and his financial proof unreliable, entered a support order against him in the amount of \$236 per week. The father did not make the required payments. The mother filed a violation petition. The father, meanwhile, sought a downward modification of his support obligations. The Support Magistrate made a finding that the father was in willful violation of the support order and granted a money judgment to the mother in the amount of \$16,940; the Support Magistrate dismissed the father's modification petition.

The father paid \$7,000, but subsequently petitioned Family Court once again for a downward modification. The mother cross-petitioned for a finding that the father was, again, in willful violation of the support order. This time, the father supplied documentary evidence of his inability to pay, including evidence that he had been receiving Social Security Disability benefits following an accident. A different support magistrate granted the father's petition and modified the support order, significantly reducing the father's child support obligation, to \$25 per month. The Support Magistrate's order, dated July 24, 2013, contained a notice, in accordance with Family Court Act § 439 (e), that "written objections to this order may be filed with this court within 30 days of the date the order was received in court or by personal service, or if the order was received by mail, within 35 days of the mailing of the order." A separate order, with the same date and notice, dismissed the mother's cross petition.

On the same day, the Clerk of Family Court mailed the orders and accompanying findings of fact directly to the father and to the mother. Family Court did not mail the documents to the father's lawyer or the mother's lawyer, nor did the court have an electronic filing system or other means whereby counsel could learn of developments in the case. It was not until the following month that the mother notified her attorney that she had received court papers pertaining to her case. Counsel went to Family Court's record room to retrieve the orders and findings of fact, but was not immediately given all of the papers.

On September 3, 2013—41 days after the orders were mailed by Family Court—the mother, through counsel, filed objections.

Counsel, attempting to explain the tardiness of the objections, stated that Staten Island Legal Services had “never received any order[], finding or notice of decision despite being Attorney of Record in this action.” Family Court denied the mother’s objections as untimely, and confirmed and continued the Support Magistrate’s orders, without reaching the merits of the mother’s contentions.

Family Court relied on Family Court Act § 439 (e), which provides that

“[s]pecific written objections to a final order of a support magistrate may be filed by either party with the court within thirty days after receipt of the order in court or by personal service, or, if the objecting party or parties did not receive the order in court or by personal service, *thirty-five days after mailing of the order to such party or parties*” (emphasis added).

The objections had been filed more than 35 days after Family Court mailed the orders to the mother. Family Court further ruled that “the mailing of a copy of the order and findings of fact to a party of the proceedings satisfies the requirements of . . . § 439(e) and [22 NYCRR] 205.36(b)”* and that “neither the Family Court Act nor [22 NYCRR 205.36 (b)] specifically requires that the Clerk of Court shall mail a copy of the Support Magistrate’s order and decision to a party’s attorney.”

The mother moved to reargue. Family Court adhered to its prior ruling. The mother appealed from the Support Magistrate’s orders and findings of fact, as well as from Family Court’s order denying her objections and its order upon reargument. She relied on our decision in *Matter of Bianca v Frank* (43 NY2d 168 [1977]).

The Appellate Division affirmed Family Court’s order upon reargument and dismissed the mother’s appeals from the other orders (*see Matter of Odunbaku v Odunbaku*, 131 AD3d 617 [2d Dept 2015]). The Appellate Division did not cite *Bianca*. Instead, the Court relied on 22 NYCRR 205.36 (b).

We granted the mother leave to appeal (26 NY3d 913 [2015]) and now reverse.

Matter of Bianca v Frank is dispositive. There, we held that “basic procedural dictates and . . . fundamental policy

* 22 NYCRR 205.36 (b) provides that “[a]t the time of the entry of the order of support, the clerk of [Family Court] shall cause a copy of the findings of fact and order of support to be served either in person or by mail upon the parties to the proceeding or their attorneys.”

considerations . . . require that once counsel has appeared in a matter a Statute of Limitations or time requirement cannot begin to run unless that counsel is served with the determination or the order or judgment sought to be reviewed” (*Bianca*, 43 NY2d at 173). The *Bianca* Court recognized that this principle would not apply if “a legislative enactment . . . specifically exclude[d] the necessity of serving counsel” by stating the legislative “intention to depart from the standard practice . . . in unmistakable terms” (*id.*). Yet, in the absence of such unambiguous statutory language, “any general requirement that notice must be served upon the party . . . must be read . . . to require, at least, that notice be served upon the attorney the party has chosen to represent him” (*id.*).

Bianca interpreted a statute of limitations in a county administrative code, which stated that “[a] petition to review a determination by the commissioner to . . . discipline a member of the police force shall not be granted after the expiration of thirty days from the service of a notice of such determination upon the member of the force so . . . disciplined” (*id.*), to require that notice be served upon the member’s attorney. Although the petitioner himself had been served with the determination, petitioner’s attorney had not been served with it, and so the Court held that the statute of limitations had not commenced. Subsequently, we extended the *Bianca* principle so as to apply to representation by a union (see *Matter of Case v Monroe Community Coll.*, 89 NY2d 438, 442 [1997], *mot to amend denied* 89 NY2d 1081 [1997], *rearg denied* 89 NY2d 1087 [1997] [holding that a grievant is deemed to have been served with an award once service is properly effected on his or her designated agent, whether an attorney or not]).

The rationale of *Bianca* is straightforward.

“[O]nce a party chooses to be represented by counsel in an action or proceeding, whether administrative or judicial, the attorney is deemed to act as his agent in all respects relevant to the proceeding. Thus any documents, particularly those purporting to have legal effect on the proceeding, should be served on the attorney the party has chosen to handle the matter on his behalf” (*Bianca*, 43 NY2d at 173).

Indeed, “[t]his is not simply a matter of courtesy and fairness; it is the traditional and accepted practice which has been all

but universally codified” (*id.*). In particular, as the Court noted, CPLR 2103 (b) provides that “[e]xcept where otherwise prescribed by law or order of court, papers to be served upon a party in a pending action shall be served upon the party’s attorney.”

Bianca governs here. The reference to the mailing of the order to a “party or parties” in Family Court Act § 439 (e) must be read to require that the order be mailed to the party’s counsel, in order for the statutory time requirement to commence.

For his part, the father contends that Family Court Act § 439 (e) states “in unmistakable terms” (*Bianca*, 43 NY2d at 173) the intent to exclude the necessity of serving counsel. We do not read the plain language of Family Court Act § 439 (e) in this manner. It is true, of course, that section 439 (e) uses the term “party,” but the statute does not convey in language that could not be mistaken that mailing to a represented party is dispositive for time requirement purposes and mailing to counsel is unnecessary, notwithstanding *Bianca*.

Significantly, Family Court Act § 439 (e), enacted in 1985 (*see* L 1985, ch 809, § 14), with the 35-day requirement added in 1996 (*see* L 1996, ch 242, § 1), postdates *Bianca*, decided in 1977. In this regard, it is well settled that “[t]he Legislature is . . . presumed to be aware of the decisional and statute law in existence at the time of an enactment” (*Arbegast v Board of Educ. of S. New Berlin Cent. School*, 65 NY2d 161, 169 [1985]; *see also e.g. Hammelburger v Foursome Inn Corp.*, 54 NY2d 580, 588 [1981]; *Orinoco Realty Co. v Bandler*, 233 NY 24, 30 [1922]). Although the legislature would have been aware of the requirement to express in the most direct, unequivocal terms any intent to “specifically exclude the necessity of serving counsel” (*Bianca*, 43 NY2d at 173), it failed to include language explicitly overriding the general rule of *Bianca* that service on counsel is required.

The father also contends that application of the *Bianca* rule is burdensome. The burden on Family Court is minimal.

Notably, mailing court orders to the parties without also mailing the orders to their attorneys impairs effective access to justice on the part of vulnerable individuals and undermines their representation. Indeed, the practice deprives the party of some of the principal benefits of being represented by an attorney.

We hold, therefore, pursuant to *Bianca*, that if a party is represented by counsel, the 35-day time requirement set out in Family Court Act § 439 (e) does not begin to run until the final order is mailed to counsel.

There is no need for us to consider the mother's alternative arguments, given our ruling.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be reversed, without costs, and the matters remitted to Family Court for further proceedings in accordance with this opinion.

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and GARCIA concur; Chief Judge DiFIORE taking no part.

Order, insofar as appealed from, reversed, without costs, and matters remitted to Family Court, Richmond County, for further proceedings in accordance with the opinion herein.

[66 NE3d 673, 43 NYS3d 803]

In the Matter of JAMES R. DIEGELMAN et al., Appellants, v CITY
OF BUFFALO et al., Respondents.

Argued October 14, 2016; decided November 21, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 12, 2015. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Erie County (John P. Lane, J.H.O.), which had granted the application of claimants for leave to serve a late notice of claim; and (2) denied the application.

Matter of Diegelman v City of Buffalo, 129 AD3d 1527, reversed.

HEADNOTE

**Negligence — Injuries to Police Officers — Right of Action against
Municipal Employer Not Providing Workers' Compensation Law
Coverage**

General Municipal Law § 205-e (1), which provides police officers a cause of action for line-of-duty injuries caused by statutory or regulatory violations subject to a proviso prohibiting recipients of workers' compensation benefits from suing their employers in tort under section 205-e, does not bar a police officer entitled to receive benefits under General Municipal Law § 207-c for a duty-related injury from pursuing a claim against the employer under section 205-e, where the municipal employer has elected not to provide coverage pursuant to the Workers' Compensation Law. Workers' compensation benefits and General Municipal Law § 207-c benefits are neither equivalent nor "mutually exclusive" such that the payment of benefits under one statute forecloses payment under the other statute. Rather, the two statutory compensation systems are independent of each other. In enacting the two statutes, the legislature chose different eligibility standards, and separate bodies are charged with determining entitlement to benefits in proceedings involving significantly distinct burdens and procedures. The language of General Municipal Law § 205-e prohibits only recipients of workers' compensation benefits from commencing suit against their employers; it does not, by its terms, bar the commencement of suits by recipients of section 207-c benefits. Moreover, the legislative intent of section 205-e was to offer an umbrella of protection for police officers who, in the course of their many and varied duties, are injured by the negligence of anyone who violates any relevant statute or regulation. The legislative history demonstrates that the Governor, the legislature and the affected municipalities were aware that a municipality that does not provide workers' compensation could be sued by police officers despite their receipt of section 207-c benefits.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Municipal, County, School, and State Tort Liability §§ 16, 22, 88, 145, 154–155, 553, 730; AM JUR 2d,

Workers' Compensation § 488.

CARMODY-WAIT 2d, Parties §§ 19:161–19:162; CARMODY-WAIT 2d, Action for Wrongful Death §§ 130:11, 130:14, 130:28; CARMODY-WAIT 2d, Actions By and Against Public Bodies and Public Officers §§ 144:8, 144:18.

DOBBS LAW OF TORTS §§ 343, 425, 495, 503–506.

McKINNEY'S, General Municipal Law §§ 205–e (1); 207–c.

NY JUR 2d, Employment Relations §§ 356–357; NY JUR 2d, Government Tort Liability §§ 12, 137; NY JUR 2d, Workers' Compensation §§ 4, 75, 84, 88, 118, 195, 1037.

NEW YORK LAW OF TORTS §§ 12:7, 12:82, 12:107, 17:19, 17:26–17:27, 17:47, 17:67, 19:39.

ANNOTATION REFERENCE

See ALR Index under Labor and Employment; Municipal Corporations; Police and Law Enforcement Officers; Public Officers and Employees; Workers' Compensation.

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POINTS OF COUNSEL

Lipsitz Green Scime Cambria LLP, Buffalo (*John A. Collins* of counsel), for appellants. I. The Fourth Department erred in holding that General Municipal Law § 207-c bars claimants from interposing a personal injury claim against the City of Buffalo. (*Matter of Ryan v City of New York*, 228 NY 16; *Matter of Krug v City of New York*, 196 App Div 226; *Buckley v City of New York*, 56 NY2d 300; *Matter of Chabala v County of Westchester*, 284 App Div 341, 308 NY 1012; *Matter of Leone v Oneida County Sheriff's Dept.*, 80 NY2d 850; *Gammons v City of New York*, 24 NY3d 562; *Santangelo v State of New York*, 71 NY2d 393; *El-Dehdan v El-Dehdan*, 26 NY3d 19; *Wadler v City of New York*, 14 NY3d 192; *Zanghi v Niagara Frontier Transp. Commn.*, 85 NY2d 423.) II. Regardless of whether they have a cognizable claim against the City of Buffalo, claimants may interpose a claim against the City of Buffalo Board of Education. (*Titusville Iron Co. v City of New York*, 207 NY 203; *Matter of Fuhrmann v Graves*, 235 NY 77; *O'Dette v Parton*, 190 AD2d 1074.)

Timothy A. Ball, Corporation Counsel, Buffalo (*David M. Lee* of counsel), for respondents. I. A police officer's right to the

receipt of benefits under General Municipal Law § 207-c bars a claim against the officer's municipal employer. (*Gammons v City of New York*, 24 NY3d 562; *Weiner v City of New York*, 84 AD3d 140, 19 NY3d 852; *Matter of Balcerak v County of Nassau*, 94 NY2d 253; *Matter of Birmingham v City of Niagara Falls*, 282 App Div 970; *El-Dehdan v El-Dehdan*, 26 NY3d 19; *Damiani v City of Buffalo*, 198 AD2d 814, 83 NY2d 757; *Matter of McKay v Town of W. Seneca*, 51 AD2d 373, 41 NY2d 931.) II. The claim against the City of Buffalo Board of Education is barred under the traditional factors that courts consider in deciding an application for leave to serve a late notice of claim.

OPINION OF THE COURT

STEIN, J.

In this appeal, we are asked to determine whether a police officer who is entitled to receive benefits under General Municipal Law § 207-c for a duty-related injury is barred from bringing a claim against his or her employer under General Municipal Law § 205-e. We conclude that, where the municipal employer has elected not to provide coverage pursuant to the Workers' Compensation Law, a police officer who suffers a line-of-duty injury caused by the employer's statutory or regulatory violations may pursue a section 205-e claim.

I.

Respondent City of Buffalo (the City) employed claimant James R. Diegelman as a police officer from 1968 until 1995. On August 9, 2012, he was diagnosed with mesothelioma, a cancer caused by exposure to asbestos. Claimant and his wife, Andrea M. Diegelman (hereinafter claimants), allege that exposure to asbestos occurred during his employment at properties owned by the City and respondent Board of Education, and used by the Police Department. Claimants commenced this proceeding seeking permission to serve a late notice of claim on the City. In opposition, the City argued, among other things, that leave should be denied on the ground that the claim was patently without merit because General Municipal Law § 207-c provides the exclusive remedy for the alleged work-related injuries.

Supreme Court granted claimants' application for permission to serve a late notice of claim on the City. The City appealed, and the Appellate Division reversed on the law and denied the

application (129 AD3d 1527 [4th Dept 2015]). The Appellate Division agreed with the City that the claim was barred by General Municipal Law § 207-c and, thus, held that claimants' application should be denied because "leave to file a late notice of claim is not appropriate for a patently meritless claim" (129 AD3d at 1527 [internal quotation marks and citation omitted]). This Court granted claimants' motion for leave to appeal (26 NY3d 913 [2015]).

II.

This appeal turns on the interplay of General Municipal Law §§ 205-e and 207-c, and the Workers' Compensation Law. "In addition to any other right of action or recovery under any other provision of law," section 205-e permits police officers to bring tort claims for injuries sustained "while in the discharge or performance at any time or place of any duty imposed by . . . superior officer[s]" where such injuries occur "directly or indirectly as a result of any neglect, omission, willful or culpable negligence of any person or persons in failing to comply with the requirements of any of the statutes, ordinances, rules, orders and requirements of the federal, state, county, village, town or city governments" (General Municipal Law § 205-e [1]). Separately, section 207-c "provides for the payment of the full amount of regular salary or wages," along with payment for medical treatment and hospital care, "to a police officer or other covered municipal employee who is injured 'in the performance of his [or her] duties' or is taken ill 'as a result of the performance of [such] duties' " (*Matter of Theroux v Reilly*, 1 NY3d 232, 239 [2003], quoting General Municipal Law § 207-c [1]). The Workers' Compensation Law is, of course, " 'the State's most general and comprehensive social program, enacted to provide all injured employees with some scheduled compensation and medical expenses, regardless of fault for ordinary and unqualified employment duties' " (*Theroux*, 1 NY3d at 242, quoting *Matter of Balcerak v County of Nassau*, 94 NY2d 253, 259 [1999]; accord *Auqui v Seven Thirty One Ltd. Partnership*, 22 NY3d 246, 255-256 [2013]).

It is well settled that workers' compensation benefits are generally the "sole and exclusive remedy of an employee against his [or her] employer for injuries in the course of employment," and that the receipt of such benefits "precludes suits against an employer for injuries in the course of employment" (*Weiner v City of New York*, 19 NY3d 852, 854 [2012]).

Thus, the right of action contained in section 205-e is subject to a proviso that “nothing in th[at] section shall be deemed to expand or restrict any right afforded to or limitation imposed upon an employer, an employee or his or her representative by virtue of any provisions of the workers’ compensation law” (General Municipal Law § 205-e [1]). In other words, the proviso prohibits “recipients of workers’ compensation benefits [from] su[ing] their employers in tort under section 205-[e]” (*Weiner*, 19 NY3d at 855).

Inasmuch as the City of Buffalo, like many other large municipalities, has elected not to provide workers’ compensation benefits to its police officers (*see generally Matter of Leone v Oneida County Sheriff’s Dept.*, 80 NY2d 850, 851 [1992]), claimants argue that the proviso in section 205-e (1) is inapplicable to this action. They maintain that the Appellate Division erred in extending the proviso’s bar on suits to cover not just recipients of workers’ compensation benefits but, also, recipients of General Municipal Law § 207-c benefits. The City responds that section 207-c “is essentially a super workers’ compensation scheme for police officers” and, thus, workers’ compensation exclusivity rules should apply to police officers who receive section 207-c benefits, regardless of whether they are entitled to benefits under the Workers’ Compensation Law.

Workers’ Compensation Law § 30 (3) provides that “any salary or wages paid . . . , or the cost of any medical treatment or hospital care provided[,] . . . under and pursuant to the provisions of section [207-c] shall be credited against any award of [workers’] compensation.” As this Court has previously recognized, the purpose of Workers’ Compensation Law § 30 (3) is to “avoid duplication of benefits” inasmuch as there is some overlap between workers’ compensation benefits and section 207-c benefits (*Leone*, 80 NY2d at 852).¹ However, workers’ compensation benefits and General Municipal Law § 207-c

1. Workers’ compensation benefits, where provided, are awarded “[i]n addition to General Municipal Law § 207-c (1) benefits” (*Matter of Leone v Oneida County Sheriff’s Dept.*, 80 NY2d 850, 851 [1992] [emphasis added]). Where a municipality provides its police officers with workers’ compensation benefits, the “municipality’s obligation to pay wages and medical costs under General Municipal Law . . . [§] 207-c is in no way dependent upon any determination made by the” Workers’ Compensation Board, and a police officer is “not required to exhaust [his or] her administrative remedies in [a] workers’ compensation proceeding before pursuing” benefits under section 207-c (*Matter of Davidson v LaGrange Fire Dist.*, 82 AD3d 1227, 1230 [2d Dept 2011]). In practice, when a police officer is awarded workers’ compensa-

(n. cont’d)

benefits are neither equivalent nor “mutually exclusive” such that the payments of benefits under one statute forecloses payment under the other statute (*Matter of McKay v Town of W. Seneca*, 51 AD2d 373, 378 [3d Dept 1976, Mahoney, J., dissenting], *revd on dissenting op of Mahoney, J.*, 41 NY2d 931 [1977]; see *Leone*, 80 NY2d at 851-852). Rather, the two statutory compensation systems are independent of each other and, contrary to the City’s argument that section 207-c is essentially a super workers’ compensation scheme, the Workers’ Compensation Law “features a more lenient and more inclusive standard of covered activity than is intended to be covered and compensated in a General Municipal Law § 207-c benefits universe” (*Balcerak*, 94 NY2d at 261).

In enacting the two statutes, “the Legislature chose different eligibility standards—‘arising out of and in the course of employment’ for workers’ compensation benefits; ‘in the performance of his [or her] duties’ for section 207-c benefits” (*Theroux*, 1 NY3d at 242). Pursuant to those differing standards, “police . . . officers may be eligible for Workers’ Compensation benefits as a result of circumstances that might not entitle them to General Municipal Law § 207-c benefits” (*Balcerak*, 94 NY2d at 260). Specifically, “[w]orkers’ compensation benefits are intended to be dispensed regardless of fault, for any injury arising out of and in the course of one’s employment . . . [,] [while] [s]ection 207-c benefits . . . are more expansive, but apply to a narrower class of work-related injury, relative to the performance of law enforcement duties” (*Auqui*, 22 NY3d at 256). Moreover, separate bodies are charged with determining entitlement to benefits under the Workers’ Compensation Law and General Municipal Law § 207-c, in proceedings involving “significantly distinct” burdens and procedures (*id.* at 256-257; accord *Balcerak*, 94 NY2d at 261). Indeed, we have repeatedly explained that, because “the issue involving the entitlement to benefits in the General Municipal Law setting is not . . . the same one decided in a Workers’ Compensation determination” (*Balcerak*, 94 NY2d at 261), a finding by the Workers’ Compen-

tion benefits, those benefits may be made payable to the employer as a credit for section 207-c benefits already paid (see *Matter of McCabe v Albany County Sheriff’s Dept.*, 129 AD3d 1348, 1348 [3d Dept 2015]), if the award of workers’ compensation benefits would constitute a duplication of the payment of medical expenses or salary benefits awarded under section 207-c (cf. *Leone*, 80 NY2d at 852 [no credit for section 207-c benefits is allowed against a workers’ compensation schedule loss of use award because such award does not duplicate 207-c benefits]).

sation Board that an injury is work-related cannot be given collateral estoppel effect against a municipality that denies an application for section 207-c benefits (*see Auqui*, 22 NY3d at 256-257; *Theroux*, 1 NY3d at 242; *Balcerak*, 94 NY2d at 256-257).

Therefore, we reject the City's argument, also adopted by the dissent, that General Municipal Law § 207-c benefits can be equated to workers' compensation benefits for purposes of interpreting the proviso contained in General Municipal Law § 205-e.² The language of section 205-e prohibits only recipients of *workers' compensation benefits* from commencing suit against their employers; it does not, by its terms, bar the commencement of suits by recipients of *section 207-c benefits*—which we have repeatedly recognized to be separate and distinct from workers' compensation benefits. In fact, section 205-e states that the right contained therein is “[i]n addition to any other right of action or recovery under any other provision of law” (General Municipal Law § 205-e [1]). If the legislature had intended the proviso in section 205-e to extend to suits by recipients of section 207-c benefits, “it easily could have and surely would have written the statute to say so” (*Theroux*, 1 NY3d at 240). As we recently explained in interpreting section 205-e in *Gammons v City of New York*, we “cannot by implication supply in a statute a provision which it is reasonable to suppose the Legislature intended intentionally to omit because the failure of the Legislature to include a matter within the scope of an act may be construed as an indication that its exclusion was intended” (24 NY3d 562, 570 [2014] [internal quotation marks and citation omitted]; *see McKinney's Cons Laws of NY*, Book 1, Statutes § 74). In other words, “[w]e may not create a limitation that the Legislature did not enact” (*Theroux*, 1 NY3d at 240).

III.

Extending the bar on suits by recipients of workers' compensation benefits in General Municipal Law § 205-e to the

2. The Appellate Division decisions relied upon by the dissent ultimately flow from *O'Dette v Parton* (190 AD2d 1074 [4th Dept 1993]), which is inapposite. In *O'Dette*, it was uncontroverted that the plaintiff was entitled to workers' compensation benefits (*see id.* at 1075). To the extent that the Second and Fourth Departments routinely relied upon *O'Dette* for the proposition that entitlement to General Municipal Law § 207-c benefits for duty-related injuries bars a claim against an employer under section 205-e even where workers' compensation benefits are unavailable, that reliance was misplaced.

recipients of section 207-c benefits—as the City and the dissent urge us to do—would not only be inconsistent with the language of section 205-e itself, it would also be contrary to a number of our prior cases acknowledging that the legislature’s purpose in enacting section 205-e and subsequently amending it was to “abrogate judicial decisions [of this Court] interpreting” the right provided in “General Municipal Law § 205-e restrictively” (*Gammons v City of New York*, 24 NY3d at 568; see *Williams v City of New York*, 2 NY3d 352, 363-364 [2004]; *Giuffrida v Citibank Corp.*, 100 NY2d 72, 76-79 [2003]; *Gonzalez v Iocovello*, 93 NY2d 539, 548-549 [1999]; *Schiavone v City of New York*, 92 NY2d 308, 313 [1998]). “General Municipal Law § 205-e was originally enacted in 1989 for the express purpose of ‘mitigat[ing] the effect of the common law “fireman’s rule”’ as applied to police officers” (*Schiavone*, 92 NY2d at 313, quoting Mem of State Exec Dept, L 1989, ch 346, 1989 McKinney’s Session Laws of NY at 2140). Section 205-e “conferred on police officers the same benefits that section 205-a [had been enacted to] offer[] firefighters, namely, a cause of action for line-of-duty injuries caused by statutory or regulatory violations” (*Giuffrida*, 100 NY2d at 77). Because “some courts initially held that section 205-e did not apply retroactively,” the statute was first amended in 1990 to “‘ensure that causes of action not time-barred or finally adjudicated can be brought under the new law’” (*Schiavone*, 92 NY2d at 313, quoting Mem of State Exec Dept, L 1990, ch 762, 1990 McKinney’s Session Laws of NY at 2494, 2495). The 1990 amendment also declared the statute to be remedial in nature (*see id.*).

In 1992, “the Legislature acted once again, this time in response to court decisions that restricted a police officer’s cause of action under General Municipal Law § 205-e to situations where the officer’s injuries resulted from ‘violations pertaining to the safe maintenance and control of premises’” (*Giuffrida*, 100 NY2d at 77, quoting L 1992, ch 474, § 1). That amendment clarified “that an officer would have a right of action for injuries sustained ‘in the discharge or performance at any time or place of any duty imposed [by law, etc.]’” (*Schiavone*, 92 NY2d at 314 [emphasis omitted], quoting General Municipal Law § 205-e [1]).

The final substantive amendment took place in 1996, again in response to court decisions that interpreted section 205-e restrictively. Specifically, the 1996 amendment added subdivision (3) to section 205-e “to permit liability even in cases where

the injury is due to a violation of a codified common-law duty, constitut[ing] another rejection of a judicial decision holding otherwise” (*Gammons*, 24 NY3d at 568-569; *see Gonzalez*, 93 NY2d at 549). In addition, the 1996 amendment provided that a claim lies under section 205-e even if the violation did not increase the dangers inherent in a police officer’s job (*see Giuffrida*, 100 NY2d at 78). That amendment was also accompanied by an express statement of “Legislative intent” indicating that it was

“intended to ensure once and for all that section 205-e of the [G]eneral [M]unicipal [L]aw is applied by the courts in accordance with its original legislative intent to offer an umbrella of protection for police officers, who, in the course of their many and varied duties, are injured by the negligence of anyone who violates any relevant statute, ordinance, code, rule and/or regulation” (L 1996, ch 703, § 1).

As we explained in *Williams*, this “series of amendments to section 205-e teaches us that we should apply this provision ‘expansively’ so as to *favor recovery by police officers whenever possible*” (2 NY3d at 364 [emphasis added]; *see Gammons*, 24 NY3d at 569).

Moreover, the same 1996 enactment that amended General Municipal Law § 205-e also created General Obligations Law § 11-106, which “created a distinct right of action for police officers and firefighters injured by the negligence or intentional conduct of any person, *except an employer or co-employee*” (*Gonzalez*, 93 NY2d at 549), thereby largely abolishing the firefighter’s rule (*see Giuffrida*, 100 NY2d at 78), but maintaining the common-law bar on tort claims against employers and co-employees (*see Williams*, 2 NY3d at 363). This Court has long rejected the position of the dissent that the enactment of General Obligations Law § 11-106 evinced a legislative intent to prohibit tort claims against municipal employers; rather, we recognized shortly after that provision was enacted that the legislative history of the 1996 amendment made clear “that the employer exemption in General Obligations Law § 11-106 should *not* be incorporated into ‘the unambiguous terms’ of General Municipal Law § 205-e” (*Gonzalez*, 93 NY2d at 549 [emphasis added], quoting Sponsor’s Mem in Support, Bill Jacket, L 1996, ch 703 at 8, 1996 NY Legis Ann at 529). Subsequently, we explained that “while a police officer can as-

sert a common-law tort claim against the general public, liability against a fellow officer or employer can only be based on the statutory right of action in General Municipal Law § 205-e” (*Williams*, 2 NY3d at 363).³ Particularly because a police officer’s right to sue his or her employer is now derived solely from section 205-e, adoption of the City’s restrictive interpretation of the statute would contravene the well-settled canon of statutory construction that remedial statutes—such as section 205-e (see *Schiavone*, 92 NY2d at 313)—“should be construed broadly so as to effectuate their purpose” (*Matter of Scanlan v Buffalo Pub. School Sys.*, 90 NY2d 662, 676 [1997]).

Finally, the City’s construction of the statute is inconsistent with the legislative history of the 1996 amendment, which reveals that the New York State Conference of Mayors and Municipal Officials, as well as the Mayors of New York City and Rochester individually, specifically objected to the bill based upon their recognition that General Municipal Law § 205-e, as amended, would permit police officers to sue their employers despite receiving generous benefits under section 207-c, thereby greatly expanding the liability of cities such as Buffalo that do not provide workers’ compensation benefits for their police officers (see Letter from Edward C. Farrell, July 10, 1996, Bill Jacket, L 1996, ch 703 at 28-29; Letter from William A. Johnson, Jr., Oct. 8, 1996, Bill Jacket, L 1996, ch 703 at 48; Letter from Rudolph W. Giuliani, July 8, 1996, Bill Jacket, L 1996, ch 703 at 33). In signing the bill, however, Governor Pataki observed that those municipalities, “by not providing workers’ compensation[,] . . . have avoided and will continue to avoid substantial costs” (Governor’s Approval Mem, Bill Jacket, L 1996, ch 703 at 13, 1996 NY Legis Ann at 532). In other words, the legislative history demonstrates that the Governor, the legislature and the affected municipalities were aware at the time of the enactment of the 1996 amendment that a municipality that does not provide workers’ compensation could be sued by police officers despite their receipt of section 207-c benefits.

3. Contrary to the dissent’s contention that suits by injured police officers against municipal employers have never been recognized in the 25 years since the enactment of General Municipal Law § 205-e, this Court expressly recognized as a general matter that such suits are permissible over a decade ago in *Williams v City of New York* (2 NY3d 352, 363 [2004]).

IV.

In short, we conclude that General Municipal Law § 205-e, when construed “in an unforced and natural manner” (*Theroux*, 1 NY3d at 240), cannot be read to bar suits by recipients of General Municipal Law § 207-c benefits when those police officers are employed by municipalities that have elected not to provide workers’ compensation coverage. The contrary interpretation urged by the City and the dissent is inconsistent with the plain words of the statute, as well as the express statement of legislative intent and the legislative history of the statute. The City’s interpretation also conflicts with our prior decisions recognizing that the statute should be applied expansively and disregards the distinctions between workers’ compensation benefits and section 207-c benefits long recognized by this Court. Claimants’ remaining argument is unpreserved.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the matter remitted to that court for consideration of issues raised but not determined on the appeal to that court.

PIGOTT, J. (dissenting). Section 205-e of the General Municipal Law—the provision under which plaintiff seeks to impose liability against his municipal employer—was passed by the legislature in 1989 (*see* L 1989, ch 346, § 1). That section was enacted, in large part, in response to this Court’s decision in *Santangelo v State of New York* (71 NY2d 393 [1988]), where we held that on-duty police officers were not entitled to recover for injuries sustained in the line of duty as a result of the negligence of *third* parties (*see* Senate Introducer’s Mem in Support, Bill Jacket, L 1989, ch 346 at 5, 1989 NY Legis Ann at 180; *see also* Letter from Dean G. Skelos to Executive Chamber, June 30, 1989, Bill Jacket, L 1989, ch 346 at 6). The statute provides that, so long as the injured officer could show that the third party failed to comply with the requirements of any statute, ordinance, rule or order of a government entity, the injured officer could bring a negligence cause of action against the third party.

When enacting section 205-e, the legislature recognized that permitting officers to bring negligence actions against third parties could result in fiscal savings to the municipal employer. Since the injured police officers (living in municipalities with a

population of less than one million)¹ were already entitled to receive their salaries and payment of their medical bills and hospital fees pursuant to General Municipal Law § 207-c, the municipality could now file a lien and recoup those costs from the third-party wrongdoer (*see* Senate Introducer's Mem in Support, Bill Jacket, L 1989, ch 346 at 5, 1989 NY Legis Ann at 180).

Nowhere in the legislative history of the enactment of section 205-e did the legislature indicate that it intended for the injured employee to commence a lawsuit against the municipal employer providing section 207-c benefits. Indeed, appellate courts routinely recognized that section 207-c benefits were the injured police officer's exclusive remedy against his or her municipal employer (*see e.g. Nieves v City of Yonkers*, 268 AD2d 412 [2d Dept 2000]; *Damiani v City of Buffalo*, 198 AD2d 814 [4th Dept 1993]).

While elected officials expressed a fear during debate concerning the 1996 amendments that section 205-e could be viewed as giving injured officers a viable cause of action against their municipal employer, the legislature made clear that the common-law bar on tort claims against municipal employers remained (*see* General Obligations Law § 11-106), thereby evidencing its continued intention to prohibit such suits. Further, the legislature did not alter the language of section 205-e in any way to indicate a change in the statute's original intent, which was to provide municipal employers paying 207-c benefits a fiscal savings, not subject them to liability. In the more than 25 years since the enactment of 205-e, an injured police officer suing his or her municipal employer has remained anathema.²

The majority spends much of its time distinguishing workers' compensation from section 207-c benefits. But that analysis

1. All municipalities except New York City are compelled to provide full salary and health care benefits to their firefighters and police officers injured while on duty pursuant to the General Municipal Law. Therefore, the legislature has chosen to treat New York City differently and there is no basis to compare General Municipal Law § 207-c to the rules pertaining to that municipality. Nor is there any basis to rely on prior precedent of this Court that involved injured police officers suing the City of New York under section 205-e to determine the issue at hand.

2. The majority notes our decision in *Williams v City of New York* (2 NY3d 352, 363 [2004]) for the proposition that this Court has recognized suits against municipal employers under section 205-e (*see* majority op at 240 n 3). *Williams*, however, involved lawsuits against the City of New York and did not involve injured police officers receiving section 207-c benefits.

begs the question: Why would an injured officer receiving section 207-c benefits, as opposed to workers' compensation, be entitled to sue his or her employer? Indeed, this Court has recognized that section 207-c benefits are expansive (even more so than workers' compensation benefits). Injured officers receive their full amount of regular salary or wages, and the municipality is "liable for all medical treatment and hospital care necessitated by the injury or illness," which payments "continue [even] after the employee's retirement, and are bestowed in addition to any retirement allowance or pension" (*Matter of Theroux v Reilly*, 1 NY3d 232, 239 [2003]). The fact that section 207-c provides different benefits than workers' compensation, however, does not authorize an officer to bring a lawsuit against his or her municipal employer. The more expansive benefits available under section 207-c compels just the opposite conclusion.

The legislative history of section 205-e provides no explanation for the distinction the majority attempts to make between workers' compensation and 207-c benefits because there is none. In my view, injured officers are no more entitled to commence an action against their municipal employer pursuant to section 205-e when they are receiving section 207-c benefits than if they were receiving benefits under workers' compensation. Therefore, I dissent.

Chief Judge DiFiore and Judges Rivera, Abdus-Salaam, Fahy and Garcia concur; Judge Pigott dissents and votes to affirm in an opinion.

Order reversed, with costs, and matter remitted to the Appellate Division, Fourth Department, for consideration of the facts and issues raised but not determined on the appeal to that court.

[66 NE3d 1044, 44 NYS3d 326]

In the Matter of COUNTY OF CHEMUNG, Respondent, v NIRAV R. SHAH, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., Appellants.

In the Matter of COUNTY OF ST. LAWRENCE, Respondent, v NIRAV R. SHAH, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., Appellants. (And Two Other Related Proceedings.)

In the Matter of COUNTY OF CHAUTAUQUA, Appellant, v NIRAV R. SHAH, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., Respondents.

In the Matter of COUNTY OF JEFFERSON, Appellant, v NIRAV R. SHAH, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., Respondents.

In the Matter of COUNTY OF ONEIDA, Appellant, v NIRAV R. SHAH, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., Respondents.

In the Matter of COUNTY OF GENESEE, Appellant, v NIRAV R. SHAH, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., Respondents.

In the Matter of COUNTY OF CAYUGA, Appellant, v NIRAV R. SHAH, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., Respondents.

In the Matter of COUNTY OF MONROE, Appellant, v NIRAV R. SHAH, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., Respondents.

Argued September 7, 2016; decided October 27, 2016

SUMMARY

APPEAL, in the first above-entitled proceeding and action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 8, 2015. The Appellate Division modified, on the law, a judgment (denominated order) of the Supreme Court, Chemung County (Judith F. O'Shea, J.) which, in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, had (1) declared that respondents could not rely on Laws of 2012, chapter 56, § 1, part D, § 61 to deny petitioner's claim for Medicaid overburden costs

incurred prior to January 1, 2006 pursuant to Social Services Law § 368-a; (2) granted the petition and annulled as arbitrary, capricious and/or affected by an error of law respondents' August 12, 2013 denial of petitioner's reimbursement claims; (3) directed respondents to allow petitioner's claims for reimbursement for \$606,203.31; and (4) ordered respondents to calculate and pay any remaining overburden reimbursement due under Social Services Law § 368-a. The modification consisted of (1) reversing so much of the judgment as had declared Laws of 2012, chapter 56, § 1, part D, § 61 to be unconstitutional; and (2) declaring Laws of 2012, chapter 56, § 1, part D, § 61 to be constitutional with a grace period of six months commencing November 26, 2014. The Appellate Division affirmed the judgment as modified.

APPEAL, in the second above-entitled group of related proceedings and actions, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 26, 2014. The Appellate Division modified, on the law, a judgment (denominated order) of the Supreme Court, St. Lawrence County (David R. Demarest, J.), in the combined proceeding pursuant to CPLR article 78 and action for declaratory judgment under index No. 2013-140712; (2) a judgment (denominated order) of that Supreme Court in the combined proceeding pursuant to CPLR article 78 and action for declaratory judgment under index No. 2013-140998; and (3) a judgment of that Supreme Court in the combined proceeding pursuant to CPLR article 78 and action for declaratory judgment under index No. 2013-141656. The judgment under index No. 2013-140712 had (1) declared Laws of 2012, chapter 56, § 1, part D, § 61 unconstitutional insofar as it attempts to deny petitioner repayment of obligations already accrued; (2) granted, in all respects, petitioner's request for an order annulling respondents' December 4, 2012 decision denying petitioner's claim for reimbursement as arbitrary, capricious and/or affected by an error of law; (3) granted petitioner's request for an order in the nature of mandamus directing respondents to review, verify and pay any legitimate claimed overburden expenses; (4) directed respondents to pay the pending claim of \$495,116 or provide proof that the claim was not legitimate within 30 days; (5) deemed moot petitioner's other requested relief; and (6) denied petitioner's claim for attorney's fees. The judgment under index No. 2013-140998 had (1) declared Laws of 2012,

chapter 56, § 1, part D, § 61 unconstitutional insofar as it attempts to deny petitioner repayment of obligations already accrued; (2) granted, in all respects, petitioner's request for an order annulling respondents' March 21, 2013 decision denying petitioner's claim for reimbursement as arbitrary, capricious and/or affected by an error of law; (3) granted petitioner's request for an order in the nature of mandamus directing respondents to review, verify and pay any legitimate claimed overburden expenses; (4) directed respondents to pay the pending claim of \$281,412.61 or provide proof that the claim was not legitimate within 30 days; (5) deemed moot petitioner's other requested relief; and (6) denied petitioner's claim for attorney's fees. The judgment under index No. 2013-141656 had (1) declared Laws of 2012, chapter 56, § 1, part D, § 61 unconstitutional insofar as it attempts to deny petitioner repayment of obligations already accrued; (2) granted, in all respects, petitioner's request for an order annulling respondents' April 10, 2013 decision denying petitioner's claim for reimbursement as arbitrary, capricious and/or affected by an error of law; (3) granted petitioner's request for an order in the nature of mandamus directing respondents to review, verify and pay any legitimate claimed overburden expenses; (4) directed respondents to pay the pending claim of \$84,203.96 or provide proof that the claim was not legitimate within 30 days; (5) denied as academic petitioner's other requested relief; and (6) directed respondents to forthwith (a) provide to petitioner all information necessary to identify, verify, and determine the total overburden expenses that petitioner incurred on respondents' behalf prior to January 1, 2006; (b) in cooperation with petitioner, identify verify and determine the total overburden expenses due; and (c) pay to petitioner the total overburden expenses that petitioner incurred on respondents' behalf prior to January 1, 2006, for which petitioner had not already received reimbursement. The modification consisted of (1) reversing so much of the judgments as had declared Laws of 2012, chapter 56, § 1, part D, § 61 to be unconstitutional; and (2) declaring Laws of 2012, chapter 56, § 1, part D, § 61 to be constitutional with a grace period of six months from the date of the Appellate Division decision for social services districts to submit claims for overburden expenditures incurred prior to 2006. The Appellate Division affirmed the judgment as modified.

APPEAL, in the third above-entitled proceeding and action, on constitutional grounds, from an order of the Appellate Division

of the Supreme Court in the Fourth Judicial Department, entered March 20, 2015. The Appellate Division modified, on the law, a judgment of the Supreme Court, Chautauqua County (Deborah A. Chimes, J.), which, in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, had (1) granted in part and denied in part the petition and complaint; (2) adjudged that petitioner's right to reimbursement under Social Services Law § 368-a accrued prior to 2006, upon petitioner's payment to the New York State Department of Health for services provided to overburdened patients for which no local share was owing; (3) adjudged that petitioner's right to reimbursement under Social Services Law § 368-a was a vested right that could not be extinguished by retroactive legislation; (4) adjudged Laws of 2012, chapter 56, § 1, part D, § 61 unconstitutional insofar as it attempted to deny petitioner repayment of obligations already accrued; (5) annulled respondents' September 4, 2013 determination denying petitioner's reimbursement claim; (6) directed respondents to pay petitioner's \$217,967.75 reimbursement claim within 30 days; and (7) denied petitioner's remaining relief requested. The modification consisted of (1) denying the petition and complaint in its entirety; and (2) granting judgment in favor of respondents declaring that Laws of 2012, chapter 56, § 1, part D, § 61 had not been shown to be unconstitutional. The Appellate Division affirmed the judgment as modified.

APPEAL, in the fourth above-entitled proceeding and action, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 20, 2015. The Appellate Division modified, on the law, a judgment of the Supreme Court, Jefferson County (Hugh A. Gilbert, J.), which, in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, had (1) granted the first, second, third and fourth causes of action in the petition and complaint and the relief requested therein; (2) annulled respondents' September 4, 2013 determination purporting to deny petitioner's claims for reimbursement of overburden expenses incurred prior to January 1, 2006, pursuant to Social Services Law § 368-a, solely on the basis of Laws of 2012, chapter 56, § 1, part D, § 61; (3) declared Laws of 2012, chapter 56, § 1, part D, § 61 unconstitutional insofar as it attempted to deny petitioner repayment of obligations already accrued; (4) directed respondents to pay petitioner's reimbursement claims for \$114,501.50 and to calculate and pay

the total remaining overburden reimbursement due and owing to petitioner pursuant to Social Services Law § 368-a within 30 days; and (5) denied petitioner's remaining causes of action and relief requested therein as academic. The modification consisted of (1) denying the petition and complaint in its entirety; and (2) granting judgment in favor of respondents declaring that Laws of 2012, chapter 56, § 1, part D, § 61 had not been shown to be unconstitutional. The Appellate Division affirmed the judgment as modified.

APPEAL, in the fifth above-entitled proceeding and action, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered May 1, 2015. The Appellate Division modified, on the law, a judgment (denominated order) of the Supreme Court, Oneida County (Bernadette T. Clark, J.), which, in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, had (1) annulled respondents' August 20, 2013 and October 10, 2013 denials of petitioner's reimbursement claims as arbitrary, capricious and/or affected by an error of law; (2) directed respondents to calculate, verify and pay any remaining overburden expenses and reimbursement due under Social Services Law § 368-a within 30 days; (3) directed respondents to allow petitioner's claims for reimbursements and pay petitioner's pending claims for reimbursement in the amount of \$3,123,878.56 within 30 days; (4) denied respondents' motion for summary judgment; (5) denied petitioner's request for costs, disbursements and attorney's fees; and (6) denied the remaining relief requested in the petition. The modification consisted of (1) denying the petition and complaint in its entirety; and (2) granting judgment in favor of respondents declaring that Laws of 2012, chapter 56, § 1, part D, § 61 had not been shown to be unconstitutional. The Appellate Division affirmed the judgment as modified.

APPEAL, in the sixth above-entitled proceeding and action, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered May 1, 2015. The Appellate Division modified, on the law, a judgment of the Supreme Court, Genesee County (Robert C. Noonan, J.), which, in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, had (1) denied respondents' objections in points of law one through four; (2) granted respondents' objection in point of law number five; (3) determined that respondents' March 17, 2014 denial of

petitioner's reimbursement claim was timely; (4) dismissed petitioner's first cause of action for mandamus relief based upon respondents' default under 18 NYCRR 601.4; (5) granted petitioner's second cause of action to the extent of directing respondents to comply with the mandatory duty enjoined upon them by law to identify, calculate, and verify the total unreimbursed overburden local share payments made by petitioner prior to January 1, 2006, and to reimburse petitioner for such payments; (6) granted petitioner's third and fourth causes of action insofar as it declared that Laws of 2012, chapter 56, § 1, part D, § 61 is in violation of General Construction Law § 93 and/or unconstitutional and therefore invalid, null and void; (7) dismissed as academic petitioner's fifth cause of action for violation of various statutes relating to state and local government; (8) granted the sixth cause of action to the extent of directing partial summary judgment against respondents in the amount of \$313,134, plus statutory interest; and (9) dismissed as academic petitioner's seventh and eighth causes of action for, respectively, unjust enrichment and a constructive trust. The modification consisted of (1) denying the petition and complaint in its entirety; and (2) granting judgment in favor of respondents declaring that Laws of 2012, chapter 56, § 1, part D, § 61 had not been shown to be unconstitutional. The Appellate Division affirmed the judgment as modified.

APPEAL, in the seventh above-entitled proceeding and action, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 12, 2015. The Appellate Division modified, on the law, a judgment of the Supreme Court, Cayuga County (Thomas G. Leone, J.), which, in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, had (1) adjudged that petitioner's right to be reimbursed under Social Services Law § 368-a accrued prior to 2006 upon petitioner's payment to the New York State Department of Health for services provided to overburdened patients for which no local share was owing; (2) adjudged that petitioner's right to reimbursement under Social Services Law § 368-a is a vested right that cannot be extinguished by retroactive legislation; (3) declared Laws of 2012, chapter 56, § 1, part D, § 61 unconstitutional insofar as it attempts to deny petitioner repayment of obligations already accrued; (4) granted in part and denied in part the petition and complaint; (5) annulled respondents' February 10, 2014 determination denying petitioner's reim-

bursement claim solely on the basis of Laws of 2012, chapter 56, § 1, part D, § 61 as arbitrary, capricious and/or affected by an error of law; (6) directed respondents to forthwith allow petitioner's claims for reimbursement and to pay \$426,630.15 to petitioner within 30 days; and (7) denied petitioner's remaining relief requested as academic. The modification consisted of (1) denying the petition and complaint in its entirety; and (2) granting judgment in favor of respondents declaring that Laws of 2012, chapter 56, § 1, part D, § 61 had not been shown to be unconstitutional. The Appellate Division affirmed the judgment as modified.

APPEAL, in the eighth above-entitled proceeding and action, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 12, 2015. The Appellate Division modified, on the law, a judgment (denominated order) of the Supreme Court, Monroe County (William P. Polito, J.), which, in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, had (1) annulled respondents' February 20, 2014 and March 6, 2014 determinations denying petitioner's reimbursement claims as arbitrary, capricious and/or affected by error of law; (2) granted the petition to the extent of directing respondents to allow petitioner's reimbursement claims, totaling \$4,713,784.94, within 30 days, or ordering a referee's hearing to resolve any dispute in the dollar amounts of the claims; (3) denied respondents' motion for summary judgment; (4) denied petitioner's request for costs, disbursements and attorney's fees; and (5) denied petitioner's remaining relief requested as academic. The modification consisted of (1) denying the petition and complaint in its entirety; and (2) granting judgment in favor of respondents declaring that Laws of 2012, chapter 56, § 1, part D, § 61 had not been shown to be unconstitutional. The Appellate Division affirmed the judgment as modified.

Matter of County of Chemung v Shah, 124 AD3d 963, reversed.

Matter of County of St. Lawrence v Shah, 124 AD3d 88, reversed.

Matter of County of Chautauqua v Shah, 126 AD3d 1317, affirmed.

Matter of County of Jefferson v Shah, 126 AD3d 1322, affirmed.

Matter of County of Oneida v Shah, 128 AD3d 1381, affirmed.

Matter of County of Genesee v Shah, 128 AD3d 1380, affirmed.

Matter of County of Cayuga v Shah, 129 AD3d 1503, affirmed.

Matter of County of Monroe v Shah, 129 AD3d 1505, affirmed.

HEADNOTES

Health — Medicaid Reimbursement Payments — Medicaid Cap Statute — Constitutionality of Amendment Imposing Time Limit on Claims for Overburden Reimbursements

1. A 2012 amendment (L 2012, ch 56, § 1, part D, § 61 [section 61]) to the Medicaid Cap Statute (L 2005, ch 58, § 1, part C, § 1), which provided that no overburden reimbursement (*see* Social Services Law § 368-a [1] [h]) for social services district expenditures incurred prior to January 1, 2006 would be made for claims submitted on and after April 1, 2012, was constitutional. Acts of the legislature are entitled to a strong presumption of constitutionality, which can only be overcome when it can be shown beyond a reasonable doubt that the act conflicts with a fundamental law, and reconciliation of the statute with the constitution has been found to be impossible. Here, even if petitioner counties, as social services districts, had a vested right to any reimbursements that accrued before 2006, section 61 was constitutional under any possible theory presented. The legislatively-mandated cutoff date for submission of pre-2006 claims was a response to judicial misinterpretations of prior statutory efforts to end the claims process, which was administratively instituted by the New York State Department of Health under the State's former Medicaid allocation regime. Once the State complied with its statutory obligation under Social Services Law § 368-a (1) (h) (i) to pay the counties for overburden reimbursements, it was fully consistent with the prior mandatory reimbursement scheme for the legislature to impose a deadline on claims for unpaid funds. That deadline was not in conflict with a fundamental law or constitutional principles. Just as the counties could not be heard to complain that the legislature replaced one Medicaid allocation scheme with another, thus redefining the counties' expense burden, so too were they without recourse when the legislature imposed a deadline on their submission of claims for overburden reimbursements, thereby closing the door on pre-2006 claims.

Health — Medicaid Reimbursement Payments — Medicaid Cap Statute — Constitutionality of Amendment Imposing Time Limit on Claims for Overburden Reimbursements — Procedural Due Process

2. Procedural due process did not mandate extension of the April 1, 2012 deadline for petitioner counties, as social services districts, to submit claims for Medicaid overburden reimbursements (*see* Social Services Law § 368-a [1] [h]) for district expenditures incurred prior to January 1, 2006, as imposed by an amendment (L 2012, ch 56, § 1, part D, § 61 [section 61]) to the Medicaid Cap Statute (L 2005, ch 58, § 1, part C, § 1), to protect the counties' vested rights in any unpaid funds. Procedural due process guarantees notice and an opportunity to be heard before a claimant is deprived of liberty or a recognized property interest. As far back as 1988, the counties were on notice under the prior Medicaid allocation scheme that the State was obligated to pay overburden reimbursements and that the counties could pursue claims

for amounts still owed after payment. The counties knew on a weekly basis the amount the State was taking to satisfy their local share of Medicaid expenses, and the State provided quarterly reports by which the counties could determine if they had a potential claim. After the enactment of the Medicaid Cap Statute, when the State began categorically rejecting claims submitted after 2006, almost a decade of litigation ensued and resulted in the eventual payment of all outstanding claims. Thereafter, the counties continued to submit more claims as the effective date of section 61 approached. Thus, it could not be said that the counties did not have notice of the claims process or an opportunity to seek reimbursement for claims, including those going back over 20 years. The counties had no claim to the continuation of the former overburden reimbursement system in perpetuity because the State acted well within its authority to reallocate Medicaid spending under the Medicaid Cap Statute, which provided significant benefits to the counties. Moreover, the deadline furthered the State's significant interest in the stability of its finances and the budgeting process.

Proceeding against Body or Officer — Mandamus — When Remedy Available — State's Payment of Medicaid Overburden Reimbursements to Counties

3. Petitioner counties, as social services districts, were not entitled to mandamus relief requiring the New York State Department of Health (DOH) to pay all claims for Medicaid overburden reimbursement (*see* Social Services Law § 368-a [1] [h]) for district expenditures incurred prior to January 1, 2006, which were submitted after the April 1, 2012 deadline for such claims as imposed by an amendment (L 2012, ch 56, § 1, part D, § 61 [section 61]) to the Medicaid Cap Statute (L 2005, ch 58, § 1, part C, § 1). Mandamus is an extraordinary remedy which is used to enforce an administrative act positively required to be done by a provision of law. Here, DOH made its initial determinations and reimbursed counties quarterly, and then paid out all claims submitted prior to the deadline. The Social Services Law required no more. Inasmuch as section 61 was deemed constitutional, ordering mandamus would be inconsistent with that conclusion.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Constitutional Law §§ 34, 140–143, 622; AM JUR 2d, Welfare Laws §§ 33–34, 37, 41–44, 93, 105.
CARMODY-WAIT 2d, Joinder of Parties § 19:56; CARMODY-WAIT 2d, Injunctions § 78:116; CARMODY-WAIT 2d, Proceeding Against a Body or Officer §§ 145:1425, 145:1447, 145:1646, 145:1663.
MCKINNEY'S, Social Services Law § 368–a (1) (h).
NY JUR 2d, Declaratory Judgments and Agreed Case § 167;
NY JUR 2d, Public Welfare and Elder Assistance §§ 2, 51, 163, 171, 184, 402, 407, 433, 464, 492; NY JUR 2d, Statutes § 245.

ANNOTATION REFERENCE

See ALR Index under Constitutional Law; Due Process; Equal Protection; Medicaid; Poor Persons.

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POINTS OF COUNSEL

Eric T. Schneiderman, Attorney General, Albany (Victor Paladino, Barbara D. Underwood and Andrew D. Bing of counsel), for appellants in the first and second above-entitled combined proceedings and actions and respondents in the second, third, fourth, fifth, sixth, seventh and eighth above-entitled combined proceedings and actions. I. The 2012 amendment extinguished the State's obligation to pay pre-2006 overburden reimbursement to counties. (Matter of County of Niagara v Shah, 122 AD3d 1240; Ivey v State of New York, 80 NY2d 474; Brothers v Florence, 95 NY2d 290.) II. The 2012 amendment is constitutional. (Dalton v Pataki, 5 NY3d 243; Matter of E.S. v P.D., 8 NY3d 150; Ysursa v Pocatello Ed. Assn., 555 US 353; Williams v Mayor of Baltimore, 289 US 36; Trenton v New Jersey, 262 US 182; South Carolina v Katzenbach, 383 US 301; City of New York v Richardson, 473 F2d 923; City of E. St. Louis v Circuit Ct. for Twentieth Jud. Circuit, St. Clair County, Ill., 986 F2d 1142; City of Safety Harbor v Birchfield, 529 F2d 1251; Hernandez v Robles, 7 NY3d 338.) III. In any event, the counties lack a clear legal right to mandamus relief. (Matter of Brusco v Braun, 84 NY2d 674.)

Whiteman Osterman & Hanna LLP, Albany (Christopher E. Buckey and Robert S. Rosborough IV of counsel), and Nancy Rose Stormer, P.C., Utica (Nancy Rose Stormer and Michael Bagge of counsel), for respondent in the first and second above-entitled combined proceedings and actions and appellant in the second, third, fourth, fifth, sixth, seventh and eighth above-entitled combined proceedings and actions, and Bond Schoeneck & King, PLLC, Utica (Raymond A. Meier of counsel), for appellant in the fifth and eighth above-entitled combined proceedings and actions. I. The Third Department properly construed section 61 as imposing a final limitations period for the submission of overburden reimbursement claims. (County of Rensselaer v Regan, 173 AD2d 37, 80 NY2d 988; Matter of Krauskopf v Perales, 139 AD2d 147, 74 NY2d 730; Alweis v Evans, 69 NY2d 199; Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities, 19 NY3d 106; Matter of Town of Brookhaven v New York State Bd. of

Equalization & Assessment, 88 NY2d 354; *Pines v State of New York*, 115 AD3d 80, 23 NY3d 982; *Matter of Tiffany*, 179 NY 455; *Matter of Natural Resources Defense Council v New York City Dept. of Sanitation*, 83 NY2d 215; *Matter of Consolidated Edison Co. of N.Y. v Department of Env'tl. Conservation*, 71 NY2d 186; *Ball v State of New York*, 41 NY2d 617.) II. This Court should review the merits of the erroneous Fourth Department orders. (*Commercial Bank v Sherwood*, 162 NY 310; *Matter of Lopez v Evans*, 25 NY3d 199; *County of Nassau v Canavan*, 1 NY3d 134; *People v Ahearn*, 196 NY 221; *Matter of Graziano v County of Albany*, 3 NY3d 475; *Matter of Fry v Village of Tarrytown*, 89 NY2d 714; *City of E. St. Louis v Circuit Ct. for Twentieth Jud. Circuit, St. Clair County, Ill.*, 986 F2d 1142; *City of New Rochelle v Town of Mamaroneck*, 111 F Supp 2d 353; *In re Gucci*, 126 F3d 380; *City of S. Lake Tahoe v California Tahoe Regional Planning Agency*, 625 F2d 231.) III. Petitioners may challenge section 61 under the Due Process Clause of the New York Constitution. (*Williams v Mayor of Baltimore*, 289 US 36; *Newark v New Jersey*, 262 US 192; *Trenton v New Jersey*, 262 US 182; *Hunter v Pittsburgh*, 207 US 161; *Hernandez v Robles*, 7 NY3d 338; *City of New York v State of New York*, 86 NY2d 286; *City of E. St. Louis v Circuit Ct. for Twentieth Jud. Circuit, St. Clair County, Ill.*, 986 F2d 1142; *City of S. Lake Tahoe v California Tahoe Regional Planning Agency*, 625 F2d 231; *Cooper v Morin*, 49 NY2d 69; *Community Bd. 7 of Borough of Manhattan v Schaffer*, 84 NY2d 148.) IV. If this Court adopts the Fourth Department's construction of section 61, it unconstitutionally impairs petitioners' vested rights to reimbursement. (*Matter of Chrysler Props. v Morris*, 23 NY2d 515; *James Sq. Assoc. LP v Mullen*, 21 NY3d 233; *Alliance of Am. Insurers v Chu*, 77 NY2d 573; *Matter of Hodes v Axelrod*, 70 NY2d 364; *Franza v Olin*, 73 AD3d 44; *Gilbert v Ackerman*, 159 NY 118; *Matter of County of Niagara v Daines*, 91 AD3d 1288; *Matter of County of Herkimer v Daines*, 60 AD3d 1456; *O'Neil v State of New York*, 223 NY 40; *Rhem v Malcolm*, 507 F2d 333.) V. Petitioners are entitled to mandamus to compel respondents to satisfy their reimbursement duty pursuant to Social Services Law § 368-a. (*Klostermann v Cuomo*, 61 NY2d 525; *People ex rel. Francis v Common Council of City of Troy*, 78 NY 33; *Matter of Brusco v Braun*, 84 NY2d 674; *Matter of County of Fulton v State of New York*, 76 NY2d 675.) VI. Respondents are liable for conversion and unjust enrichment and this Court should impose a constructive trust over the unpaid overburden reimbursement funds. (*Parsa v*

State of New York, 64 NY2d 143; *Ford Motor Credit Co. v State of New York*, 219 AD2d 202, 88 NY2d 813; *Robert R. Gibbs, Inc. v State of New York*, 70 AD2d 750; *230 Park Ave. Assoc. v State of New York*, 165 Misc 2d 920; *Thyroff v Nationwide Mut. Ins. Co.*, 8 NY3d 283; *State of New York v Seventh Regiment Fund*, 98 NY2d 249; *Colavito v New York Organ Donor Network, Inc.*, 8 NY3d 43; *Key Bank of N.Y. v Grossi*, 227 AD2d 841; *Brennan's Bus Serv. v Brennan*, 107 AD2d 858; *Lemle v Lemle*, 92 AD3d 494.)

Zachary W. Carter, Corporation Counsel, New York City (*Michael Pfautz*, *Michael Pastor*, *Richard Dearing*, *Devin Slack* and *Brian Horan* of counsel), for City of New York, amicus curiae. No categorical rule bars a local government from challenging retroactive state legislation that destroys its proprietary rights. (*City of New York v State of New York*, 86 NY2d 286; *County of Albany v Hooker*, 204 NY 1; *Alliance of Am. Insurers v Chu*, 77 NY2d 573; *Matter of Hodes v Axelrod*, 70 NY2d 364; *Black Riv. Regulating Dist. v Adirondack League Club*, 307 NY 475; *Matter of Jeter v Ellenville Cent. School Dist.*, 41 NY2d 283; *County of Rensselaer v Regan*, 173 AD2d 37; *Matter of City of New York v Lawton*, 128 AD2d 202; *Purcell v Regan*, 126 AD2d 849.)

Stephen J. Acquario, General Counsel, New York State Association of Counties, Albany and *Friedman Kaplan Seiler & Adelman LLP*, New York City (*Katherine L. Pringle* and *Rebecca C. Serbin* of counsel), for New York State Association of Counties, amicus curiae. I. The counties may challenge section 61. (*Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *City of New York v State of New York*, 86 NY2d 286; *County of Albany v Hooker*, 204 NY 1; *People ex rel. Rodgers v Coler*, 166 NY 1; *Black Riv. Regulating Dist. v Adirondack League Club*, 307 NY 475; *Matter of Jeter v Ellenville Cent. School Dist.*, 41 NY2d 283; *Campaign for Fiscal Equity v State of New York*, 205 AD2d 272; *In re World Trade Ctr. Lower Manhattan Disaster Site Litig.*, 66 F Supp 3d 466; *Yonkers Commn. on Human Rights v City of Yonkers*, 654 F Supp 544; *New York State Assn. of Nurse Anesthetists v Novello*, 2 NY3d 207.) II. Section 61 is unconstitutional because it retroactively extinguishes the counties' vested right to reimbursement. (*Alliance of Am. Insurers v Chu*, 77 NY2d 573; *Matter of Hodes v Axelrod*, 70 NY2d 364.)

OPINION OF THE COURT

RIVERA, J.

In these appeals, several counties challenge the constitutionality of the 2012 amendment (L 2012, ch 56, § 1, part D, § 61) (section 61) to the Medicaid Cap Statute (L 2005, ch 58, § 1, part C, § 1), which closes the door on reimbursement claims for a category of Medicaid disability expenses paid by the counties to the State prior to 2006. The current appeals are the latest round in a decade-long struggle between the counties and the State, during which the counties demanded payment after the state legislature restructured the Medicaid local-share payment system, and enacted a flat cap on total county Medicaid expenses. We are now faced with divergent departmental approaches to the resolution of the singular question underlying these proceedings: whether the State must consider and pay claims submitted after the effective date of the legislative deadline for pre-2006 reimbursement claims set forth in section 61. We conclude section 61 is constitutional, and that the State is under no further obligation to address outstanding county reimbursement claims filed after April 1, 2012, nor must the State initiate an administrative review of its records to identify and pay for any pre-2006 claims.

I.

Medicaid is a federal program that provides medical services to low-income individuals with limited resources (*see generally Matter of Visiting Nurse Serv. of N.Y. Home Care v New York State Dept. of Health*, 5 NY3d 499, 503 [2005]; 42 USC § 1395 *et seq.*). The program is jointly funded by the federal government and the states (42 USC §§ 1396a, 1396b). In New York, the program is administered through the State Department of Health (DOH), and the State pays for covered medical services and, in turn, is partially reimbursed a specified percentage for these expenses by the federal government (*id.*). Unreimbursed expenses are shared between the State and 58 local social services districts, which are coterminous with the State's counties (Social Services Law § 368-a [1] [d]).¹

From 1984 until 2006 the State directly billed the counties for their respective local shares, which included costs for a category of medical services for certain Medicaid recipients for which the counties bore no financial responsibility, and for

1. The exception is New York City, whose five counties are constituted as a single social service district (Social Services Law § 61).

which they were entitled to repayment, known as “overburden reimbursements” (Social Services Law § 368-a [1] [h]). The State deposited the local share in a special escrow Medicaid fund maintained by the State Comptroller (Social Services Law § 367-b [14]). As required by Social Services Law § 368-a (1) (h) (i), upon review by DOH of the local share, the State was obligated to pay the county 100% of Medicaid services provided to recipients who were eligible for overburden reimbursement.²

From 1984 to 2005, the State met its obligation to pay overburden reimbursements in two ways. First, DOH identified overburden reimbursement-eligible patients and paid the counties quarterly. Second, DOH instituted a process whereby counties could submit reimbursement claims for eligible patients overlooked by DOH (18 NYCRR 601.4; part 635). To assist with the claims process, DOH would send each county several reports that included the client identification number of each patient for which the county was entitled to reimbursement, the amount the county had originally paid for that patient’s Medicaid expenditures, and the reimbursement amount. The State also made the adjudicated claims history file available to the counties, and it included details from 1984 onward regarding all Medicaid claims that DOH’s fiscal agent paid for services provided to Medicaid recipients. Any county that believed it was owed a reimbursement based on its review of these reports could notify DOH in writing by letter or upon submission of a claim in accordance with DOH regulations.

In response to rising Medicaid costs and the fiscal burdens they imposed on the counties, in 2005 the legislature enacted the Medicaid Cap Statute (Cap Statute) to limit the counties’ financial responsibility for Medicaid expenditures. The Cap Statute replaced the counties’ fixed percentage of Medicaid

2. The Department of Health:

“shall review the expenditures made by social services districts for medical assistance for needy persons, and the administration thereof, before making reimbursement If approved by the [DOH], such expenditures . . . shall be subject to reimbursement by the state in accordance with this section and the regulations of the [DOH] as follows: . . .

“(h) (i) Beginning January first, [1984], one hundred per centum of the amount expended for medical assistance for those individuals who are eligible . . . as a result of a mental disability as determined by [state officials] after first deducting therefrom any federal funds properly received or to be received on account thereof” (Social Services Law § 368-a [1] [h] [i]).

expenses (for example, roughly 25%), with a maximum individualized county cap, based on the Medicaid expenditures made by or on behalf of each county during the 2005 base year, after deducting any overburden reimbursement payments made to the county.

Thereafter, DOH interpreted the Cap Statute as imposing a specific annual contribution amount on the counties that they could not reduce by seeking payment for outstanding overburden reimbursements, and DOH denied overburden reimbursement claims submitted after the enactment of the Cap Statute. Niagara, Herkimer, and St. Lawrence Counties each brought CPLR article 78 proceedings challenging the denials. Supreme Court granted the Counties partial relief and, when DOH appealed, the Appellate Division held that DOH's application of the Medicaid Cap Statute to the Counties' claims "constituted an impermissible retroactive application of the statute" (*Matter of County of St. Lawrence v Daines*, 81 AD3d 212, 214 [3d Dept 2011], *lv denied* 17 NY3d 703 [2011]; *see also Matter of County of Herkimer v Daines*, 60 AD3d 1456, 1457 [4th Dept 2009], *lv denied* 13 NY3d 707 [2009]; *Matter of County of Niagara v Daines*, 60 AD3d 1460, 1461 [4th Dept 2009], *lv denied* 13 NY3d 708 [2009]).

On the heels of the Counties' success in the courts, the legislature enacted an amendment in 2010 that DOH interpreted as barring the Counties from seeking past overburden reimbursements. Another round of litigation ensued, and the Appellate Division ultimately rejected the State's statutory construction and annulled DOH's denials of overburden claims, concluding that the 2010 amendment did not clearly and unambiguously extinguish the State's obligation to pay the pre-2006 claims (*see Matter of County of St. Lawrence v Shah*, 95 AD3d 1548, 1548, 1551-1553 [3d Dept 2012]; *Matter of County of Niagara v Daines*, 91 AD3d 1288, 1290 [4th Dept 2012], *lv denied* 94 AD3d 1481 [2012]).

While these appeals were pending, the legislature enacted section 61 as part of the 2012-2013 executive budget, which expressly provides that "[n]otwithstanding the provisions of section 368-a of the social services law or any other contrary provision of law, no reimbursement shall be made for social services districts' claims submitted on and after the effective date of this paragraph, for district expenditures incurred prior to January 1, 2006" (L 2012, ch 56, § 1, part D, § 61). Section 61, which was proposed on January 17, 2012 and passed on

March 30, 2012, had an effective date of April 1, 2012. According to the State Executive Budget Memorandum, section 61 was intended:

“to clarify that local governments cannot claim for overburden expenses incurred prior to January 1, 2006, when the ‘local cap’ statute that limited local contributions to Medicaid expenditures took effect. This is necessary to address adverse court decisions that have resulted in State costs paid to local districts for pre-cap periods, which conflict with the original intent of the local cap statute.” (Mem in Support, 2012-13 NY State Executive Budget, Health and Mental Hygiene Article VII Legislation at 18.)

When the 2012 amendment was passed, overburden claims could be up to 28 years old.

Shortly before the April 1st effective date, St. Lawrence and Chemung Counties submitted claims for millions of dollars of pre-2006 overburden reimbursements. DOH paid these claims in 2012 but rejected claims from several upstate counties, including additional claims from St. Lawrence and Chemung Counties submitted after April 1, 2012.

St. Lawrence County commenced three combined CPLR article 78 proceedings and actions for declaratory judgment (for each claim rejected by DOH). The County sought to annul DOH’s decision to deny reimbursement for claims submitted after April 1, 2012 as arbitrary and capricious and to compel DOH to approve and pay the claims. It further requested that the court declare section 61 unconstitutional for depriving the County of its vested property rights, and impose a constructive trust over the funds that DOH was allegedly obligated to reimburse. DOH moved and the County cross-moved for summary judgment on the declaratory judgment and state law claim. Supreme Court concluded that the County had a vested right to reimbursement for the overburden expenditures which could not be extinguished. It declared section 61 unconstitutional, annulled DOH’s denials of the County’s claims, and directed DOH to pay the claims submitted by the County (*Matter of County of St. Lawrence v Shah*, Sup Ct, St. Lawrence County, July 31, 2013, Demarest, J., index No. 140712). Supreme Court also granted the County’s request for mandamus relief and held that DOH has a unilateral obligation to calculate and reimburse the County for the pre-2006 overburden expenditures.

The Third Department modified Supreme Court's order, and held section 61 constitutional, construing it as a statute of limitations that did not extinguish the counties' substantive rights but merely ended the time for submission of their claims. As a matter of procedural due process, the Court imposed a six-month grace period from the date of its decision for submission of the counties' pre-2006 claims (*Matter of County of St. Lawrence v Shah*, 124 AD3d 88, 92-93 [3d Dept 2014]). The Court also upheld the grant of mandamus relief, which required DOH to identify, verify and pay all overburden expenditures incurred by the County before 2006 (*id.* at 94).

In the summer of 2013, Chemung County commenced a combined CPLR article 78 proceeding and action for declaratory judgment seeking similar relief to that sought in the *St. Lawrence* litigation. Supreme Court held in Chemung County's favor on the reasoning of the decision in the *St. Lawrence* proceedings. On appeal, the Third Department applied its *St. Lawrence* decision and reached the same conclusion (*Matter of County of Chemung v Shah*, 124 AD3d 963 [3d Dept 2015]).

Shortly before the decision in *St. Lawrence*, the Fourth Department held in an article 78 proceeding and declaratory judgment action commenced by Niagara County that section 61 applies retroactively to extinguish the pre-2006 overburden claims. However, the Court remitted for consideration of any properly alleged State challenges to the County's argument that section 61 violated due process by extinguishing its vested rights in the claims (*Matter of County of Niagara v Shah*, 122 AD3d 1240 [4th Dept 2014]).

Before a decision was rendered on that issue in the Niagara County litigation, and in nearly identical actions commenced by Chautauqua County and Jefferson County, the Fourth Department held that the State waived its defense that the Counties lacked capacity to assert constitutional challenges against the State and state legislation. However, the Court determined that the Counties were not persons within the meaning of the Due Process Clauses of the Federal and State Constitutions, and therefore failed to establish the unconstitutionality of section 61 (*Matter of County of Chautauqua v Shah*, 126 AD3d 1317 [4th Dept 2015]; *Matter of County of Jefferson v Shah*, 126 AD3d 1322 [4th Dept 2015]; *Matter of County of Oneida v Shah*, 128 AD3d 1381 [4th Dept 2015]; *Matter of County of Genesee v Shah*, 128 AD3d 1380 [4th Dept 2015]; *Matter of County of Cayuga v Shah*, 129 AD3d 1503 [4th Dept

2015]; *Matter of County of Monroe v Shah*, 129 AD3d 1505 [4th Dept 2015]). Those Counties appealed to this Court.

We granted the State leave to appeal in *Matter of County of Chemung v Shah* (124 AD3d 963 [3d Dept 2015]) and *County of St. Lawrence* (124 AD3d 88 [3d Dept 2014]) to resolve the divergence and apparent conflict in the Appellate Division (*Matter of County of Chemung v Shah*, 25 NY3d 903 [2015]; *Matter of County of St. Lawrence v Shah*, 25 NY3d 903 [2015]).

II.

On appeal to us, the Counties assert that they possess constitutionally protected vested rights in the unpaid funds which cannot be extinguished by retroactive application of section 61 without violating their due process rights. Under this interpretation of the statutory scheme, the Counties have no burden to demand payment and the State must pay any overburden reimbursements due under Social Services Law § 368-a (1) (h) (i), regardless of whether the Counties submitted claims before April 1, 2012, or at any time thereafter. This would mean that the State has an ongoing obligation, terminated only by payment of outstanding reimbursements, irrespective of the age of the claim.

Alternatively, the Counties argue section 61 may be interpreted to avoid any constitutional deficiencies as a statute of limitations that sets a deadline for the submission of claims without extinguishing the Counties' substantive rights, but that the deadline set forth in section 61 must be extended to provide an adequate period in which to submit their remaining claims. Lastly, the Counties argue that mandamus relief is not only appropriate but necessary to compel the State's compliance with its statutory duty under Social Services Law § 368-a.

The State responds that the Counties fail to present a viable due process challenge to the constitutionality of section 61. The State argues the Counties are neither "persons" guaranteed due process in the constitutional sense, nor are they holders of any rights in a particular form of Medicaid allocation. Regardless, according to the State, the Counties have not been unfairly harmed by its decision to replace one Medicaid expense repayment system with another because the Cap Statute provides greater financial benefits to the counties. The State maintains that the legislature responded to the rapidly increasing Medicaid costs with a ceiling on the counties' financial exposure, essentially providing them with a fixed dollar amount

rather than a fixed percentage of overall costs. Under the Cap Statute, the total amount the counties could pay was limited, but part of this legislative “deal” was that the counties would be required to pay their full cap amount each year, without any credit for reimbursements owed. The State also claims that the Counties lack a clear legal right to the mandamus relief granted here, specifically a massive, retrospective review by the State of 22 years of Medicaid expenditures.

The litigation posture of these appeals presents insurmountable obstacles to our consideration of some of the State’s objections to the Counties’ ability to pursue its challenge to section 61. As the State concedes, it waived any argument that the Counties are without capacity to sue the State under the general rule that municipalities are “creatures or agents of the State,” without authority to “contest the actions of their principal or creator affecting them in their governmental capacity or as representatives of their inhabitants” (*City of New York v State of New York*, 86 NY2d 286, 290 [1995]; *see also Williams v Mayor of Baltimore*, 289 US 36, 40 [1933]). The State’s waiver encompasses any challenge to the Counties’ argument that they hold a proprietary interest in the overburden reimbursements (*see City of New York*, 86 NY2d at 291-292). The State also failed to preserve its argument that the Counties lack a substantive due process right to the monies they now claim because the municipalities are not persons within the meaning of the Federal and State Due Process Clauses.

We now turn to the merits of the Counties’ challenge to the State’s interpretation of section 61. Five principles guide our analysis. First, “[i]t is well settled that acts of the Legislature are entitled to a strong presumption of constitutionality” (*Cohen v Cuomo*, 19 NY3d 196, 201 [2012]). This presumption can only be overcome when it can be shown beyond a reasonable doubt that it conflicts with a fundamental law, and “until every reasonable mode of reconciliation of the statute with the Constitution has been resorted to, and reconciliation has been found impossible” (*Matter of Fay*, 291 NY 198, 207 [1943]). Second, “statutes relating to the same subject matter . . . must be read together and applied harmoniously and consistently” (*Alweis v Evans*, 69 NY2d 199, 204 [1987]). Third, we aim to effectuate the intent of the legislature, and the clearest indicator of legislative intent is the plain meaning of the statutory language (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). Fourth, any claim can be time-barred,

including constitutional claims (*Block v North Dakota ex rel. Board of Univ. and School Lands*, 461 US 273, 292 [1983]). Fifth, extensive arguments about a cost allocation scheme's economic and political wisdom is outside the scope of judicial review (*Matter of Jeter v Ellenville Cent. School Dist.*, 41 NY2d 283, 287 [1977]). As the Supreme Court has held,

“[w]hether the enactment is wise or unwise, whether it is based on sound economic theory, whether it is the best means to achieve the desired result, whether, in short, the legislative discretion within its prescribed limits should be exercised in a particular manner, are matters for the judgment of the legislature, and the earnest conflict of serious opinion does not suffice to bring them within the range of judicial cognizance.” (*Chicago, B. & Q. R. Co. v McGuire*, 219 US 549, 569 [1911].)

In other words, the counties cannot challenge the State's decision to prospectively reallocate Medicaid payments.

[1] With these principles in mind, we are able to resolve these appeals without deciding between the parties' competing positions as to whether section 61 extinguishes substantive claims, or merely sets forth the outer temporal limit during which counties may challenge the State's initial overburden payment determination to seek additional reimbursement. If we assume, *arguendo*, that the counties have a vested right to any reimbursements that accrued before 2006, then under any possible theory presented in these appeals, section 61 is constitutional.

By its express language that “no reimbursement shall be made for social services districts' claims submitted on and after the effective date of this paragraph, for district expenditures incurred prior to January 1, 2006,” section 61 terminates the submission of pre-2006 claims past its effective date. This legislatively-mandated cutoff date was a response to judicial misinterpretations of prior statutory efforts to end the claims process which was administratively instituted by DOH under the State's former Medicaid allocation regime (Mem in Support, 2012-13 NY State Executive Budget, Health and Mental Hygiene Article VII Legislation at 18 [section 61 necessary to address adverse court decisions that conflict with statute's original intent]). Once the State complied with its statutory obligation under Social Services Law § 368-a (1) (h) (i) to pay the counties for overburden reimbursements, it was fully

consistent with the prior mandatory reimbursement scheme for the legislature to impose a deadline on claims for unpaid funds. That deadline was neither in conflict with a fundamental law nor our constitutional principles. Just as the Counties cannot be heard to complain that the legislature replaced one Medicaid allocation scheme with another, thus redefining the counties' expense burden, so too are the counties without recourse when the legislature imposes a deadline on the counties' submission of claims for overburden reimbursements, thereby closing the door on pre-2006 claims.

[2] There is also no merit to the Counties' claim that procedural due process mandates that section 61 be extended beyond its effective date in order to protect their vested rights in any unpaid funds. It is well established that procedural due process guarantees notice and an opportunity to be heard before a claimant is deprived of liberty or a recognized property interest (*Matter of Quinton A.*, 49 NY2d 328, 334 [1980]). "[N]o one rule as to the length of time which will be deemed reasonable can be laid down for the government of all cases alike. Different circumstances will often require a different rule. What would be reasonable in one class of cases would be entirely unreasonable in another" (*McGahey v Virginia*, 135 US 662, 707 [1890]). The question distills to what is reasonable under the circumstances (*Terry v Anderson*, 95 US 628, 633 [1877]). In deciding the Counties' argument for additional time to submit claims, our analysis focuses on the overburden reimbursement claims process, the litigation following the enactment of the Cap Statute, and the question of whether the counties have been denied the opportunity to pursue claims before enactment of the statutory prohibition on submissions.

As the record establishes, as far back as 1988 the counties were on notice under Social Services Law § 368-a (1) (h) (i) and the State's regulations that the State was obliged to pay overburden reimbursements, and that the counties could pursue claims for any amounts they believed they were still owed after payment. The counties had information available to pursue those claims in the decades leading up to the passage of section 61. For years, the counties knew on a weekly basis the amount the State was taking to satisfy the counties' local share of Medicaid expenses, and the State provided the counties with quarterly reports and other documents by which the counties could determine if they had a potential claim. Only after the enactment of the Cap Statute, and in reliance on its interpreta-

tion that the legislature thereby set for the counties a fixed, non-reducible maximum payment, did the State categorically reject claims submitted after 2006. The dispute over these claims spawned close to a decade of litigation in the Appellate Division, involved numerous counties, and resulted in the eventual payment of all outstanding claims. Armed with the success of this litigation, while still aware of the State's continued efforts to close the door on pre-2006 claims, the counties continued to submit more claims as the effective date of section 61 approached. Given this history, we cannot say that the counties did not have notice of the claims process or an opportunity to seek reimbursement for claims, including those going back over 20 years.

Moreover, as the Counties recognize, they have no claim to the continuation of the former overburden reimbursement system in perpetuity because the State acted well within its authority to reallocate Medicaid spending under a new legislative framework, as it did with the passage of the Cap Statute (L 2005, ch 58, § 1, part C, § 1, as amended by L 2006, ch 57, § 1, part A, § 60). Notably, the Cap Statute provides significant financial benefit to the counties, and does not place them in a demonstrably worse position than under the overburden reimbursement claims process. As the State contends, and the Counties do not dispute, the counties saved billions of dollars in the years following the enactment of the Cap Statute.

Our analysis must also give weight to the judgment of the legislature that claims should be extinguished with the enactment of the budget on April 1, 2012 (*Terry*, 95 US at 633). As the State argues, this deadline furthers the State's significant interest in the stability of its finances and the budgeting process.

Under the unique circumstances of this case we do not consider the deadline set by the legislature repugnant to due process. Therefore, there is no basis to extend the time for submission of pre-2006 claims beyond the years previously available to the counties and the date set forth in section 61.³

3. The Counties' reliance on *Brothers v Florence* (95 NY2d 290 [2000]) in support of their request for a "grace period" beyond the legislative deadline is misplaced. Even treating section 61 as a statute of limitations, the appeals before us require that we consider the history and relationship between the Counties and the State. Unlike the potential claimants in *Brothers*, the Counties have twice avoided legislative attempts to end the submissions

(n. cont'd)

III.

[3] We also conclude that mandamus relief is unwarranted. This Court has repeatedly stated that mandamus is an “extraordinary remedy” that is “available only in limited circumstances” (*Klostermann v Cuomo*, 61 NY2d 525, 537 [1984]). “Mandamus is used to enforce an administrative act positively required to be done by a provision of law” (*Matter of Walsh v LaGuardia*, 269 NY 437, 441 [1936]). It is considered extraordinary because the judiciary is loathe to interfere with the executive department’s exercise of its official duties, unless the department has failed to perform a specific act (*id.*). Here, DOH made its initial determinations and reimbursed counties quarterly, and then paid out all claims submitted prior to the April 1, 2012 deadline. The Social Services Law requires no more and the Counties are not entitled to this relief. Moreover, ordering mandamus is inconsistent with our conclusion that section 61 is constitutional.

IV.

Accordingly, in *Matter of County of Chemung* and *Matter of County of St. Lawrence*, the orders insofar as appealed from should be reversed, without costs, the petitions dismissed in their entirety and a declaration made in favor of respondents Nirav R. Shah, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., that section 61 of part D of section 1 of chapter 56 of the Laws of 2012 has not been shown to be unconstitutional; in *Matter of County of Chautauqua*, *Matter of County of Jefferson*, *Matter of County of Oneida*, *Matter of County of Genesee*, *Matter of County of Cayuga*, and *Matter of County of Monroe*, the orders insofar as appealed from should be affirmed, without costs.

GARCIA, J. (concurring). While I am in general agreement with the result arrived at by the majority, I reach that conclusion by a somewhat different analysis that I believe is more in line with the unique facts and procedural issues we confront here.

These cases present the conflicting interpretations of section 61 (L 2012, ch 56, § 1, part D, § 61) by the Third and Fourth

process, and by the State’s undisputed estimate, the Counties have already been paid approximately 98% of their claims. Therefore, the Counties’ demand for more time is not supported here.

Departments. The Third Department held that section 61 did not retroactively extinguish the counties' right to reimbursement for certain Medicaid overpayments—or “overburden expenditures”—under Social Services Law § 368-a (1) (h) and instead that Court treated section 61 as a statute of limitations on the payment of claims for pre-2006 reimbursement (*see Matter of County of St. Lawrence v Shah*, 124 AD3d 88 [3d Dept 2014]). In light of this interpretation, the Third Department imposed a six-month grace period for the submission of reimbursement claims and granted mandamus relief requiring the Department of Health to identify, calculate, and pay outstanding overburden expenditures. Conversely, the Fourth Department held that section 61 unequivocally extinguished the counties' right to pre-2006 reimbursement but later held that the counties could not challenge this action on due process grounds, despite the New York State Department of Health's (DOH) waiver of the capacity defense, because they lack the “personhood” necessary to do so (*see Matter of County of Niagara v Shah*, 122 AD3d 1240 [4th Dept 2014]; *Matter of County of Chautauqua v Shah*, 126 AD3d 1317 [4th Dept 2015]). I would reject the Third Department's interpretation of section 61 as a statute of limitations, adopt the Fourth Department's interpretation of the statute but reject its personhood analysis, and hold that the statute is constitutional under a vested due process rights analysis.

With respect to the Fourth Department's determination that section 61 extinguishes the counties' right to reimbursement, I agree that section 61 evinces a clear intent to foreclose any pre-2006 reimbursement claim. The language explicitly states that the statute is being enacted “notwithstanding” Social Services Law § 368-a (1) (h). As a result, “no reimbursement shall be made for social services districts' claims submitted on and after [the amendment's effective date], for district expenditures incurred prior to January 1, 2006 [including overburden expenditures]” (L 2012, ch 56, § 1, part D, § 61).

This interpretation of the plain language of the statute is likewise supported by the tortured litigation history that led to its enactment. The legislature first enacted the Medicaid Cap Statute (Cap Statute) in 2005 (L 2005, ch 58, § 1, part C, § 1), and litigation ensued following its passage. After courts determined that the Cap Statute did not extinguish the coun-

ties' right to reimbursements,¹ the legislature passed an amendment in 2010 stating that "the state/local social services district relative percentages of the non-federal share of medical assistance expenditures incurred prior to January 1, 2006 shall not be subject to adjustment on and after July 1, 2006" (L 2010, ch 109, § 1, part B, § 24). DOH's interpretation of this amendment as barring the counties' right to pre-2006 overburden reimbursements led to a new round of litigation, again resulting in opinions holding that the amendment did not extinguish DOH's obligation to pay these reimbursement claims. This litigation history prompted the passage of section 61. Clearly, the legislature was not imposing a new time limit for filing claims: the intent was to extinguish those claims and end this process.

Where the language of a statute directs us to ignore a specific prior statute in addition to "any other contrary provision of law," it is unnecessary to "harmonize" the two statutes. Accordingly, the Third Department's interpretation of section 61 as a statute of limitations was error. Nor is such a reading warranted to make the statute constitutional because, for the reasons discussed below, section 61 is constitutional under a vested due process rights analysis.

Turning to the issue of whether in extinguishing the claims the legislature violated due process, it is necessary to address the threshold issue of capacity of the counties to bring this suit. New York strictly adheres to the rule that "municipalities lack the capacity to bring suit to invalidate State legislation" (*City of New York v State of New York*, 86 NY2d 286, 290 [1995]). Nor is it at all clear that plaintiffs here would have fit their claims within one of the narrow exceptions to that general rule, such as proprietary interest in a specific fund of moneys (*id.* at 291-292). Nevertheless, capacity, a waivable defense, was concededly waived here (*see City of New York*, 86 NY2d at 292).² I would reject the Fourth Department's interpretation of our case law as requiring the demonstration of an additional,

1. It is unclear what the majority means in casting these decisions as "judicial misinterpretations" (majority op at 263); none of the relevant lower court decisions were reviewed by this Court (*see e.g. Matter of County of Herkimer v Daines*, 60 AD3d 1456 [4th Dept 2009], *lv denied* 13 NY3d 708 [2009]; *Matter of County of St. Lawrence v Daines*, 81 AD3d 212, 214-216 [3d Dept 2011], *lv denied* 17 NY3d 703 [2011]).

2. The majority's conclusion that the State waived any challenge to the counties' argument that they fit within an exception to the capacity defense misses the point (majority op at 262). The State has forfeited the right to as-

(n. cont'd)

undefined “personhood” requirement as a prerequisite to sue on due process grounds. The only support given for this interpretation is the reference to a “substantive right” to raise constitutional matters in *Matter of Jeter v Ellenville Cent. School Dist.* (41 NY2d 283, 287 [1977]), but a fair reading of that case demonstrates that the concern was capacity, not “personhood.” As a result, we can assume under the unique facts of this case that the counties had a vested property right in the refund of money spent to cover costs properly allocated to the State (see *Alliance of Am. Insurers v Chu*, 77 NY2d 573, 585-586 [1991]).

The waiver of the capacity defense and the determination that there is no additional personhood requirement, and an assumption that a vested property right exists in refunds owed, makes necessary a vested due process rights analysis to determine whether section 61 is constitutional. This straightforward analysis examines “fairness to the parties, reliance on pre-existing law, the extent of retroactivity and the nature of the public interest to be served by the law” (*Alliance of Am. Insurers*, 77 NY2d at 586).

I would uphold the statute’s constitutionality on the basis of such an analysis. The new payment system of section 61 provides some financial benefit to the counties in exchange for extinguishing the prior claims and in this way treats the counties fairly. The fact that those counties might disagree with the financial calculation is immaterial. Moreover, the economic or political wisdom of that calculation is beyond our review (see *Jeter*, 41 NY2d at 287). The counties had no right to rely on the preexisting payment system. Since the Cap Statute was enacted in 2005, the counties were on notice of changes in the reimbursement regime, and years of litigation and failed statutory amendments demonstrated DOH’s plain intent to extinguish pre-2006 reimbursement claims. The statute is minimally retroactive, applying only to those pre-2006 claims that were not brought by 2012. Moreover, section 61 serves the public interest in overhauling a system fraught with error and inefficiencies that still saw uncertainty with respect to the amount of outstanding claims—some potentially going back decades.

sert that the counties lack the capacity to sue the State. The counties still need to demonstrate some form of due process interest requiring constitutional protection; however, it need not be the narrow “proprietary interest” necessary to overcome a properly asserted capacity defense.

Enactment of section 61 extinguishing the counties' pre-2006 claims was not unconstitutional. Because there is no need to read in any "statute of limitations," there is also no need to provide a grace period or grant mandamus relief. Accordingly, I agree with the Fourth Department's interpretation of section 61 as extinguishing the counties' right to pre-2006 reimbursement, and hold that there was no due process violation in that legislative action.

In *Matter of County of Chemung v Shah*: Order, insofar as appealed from, reversed, without costs, petition dismissed in its entirety and a declaration made in favor of respondents Nirav R. Shah, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., that section 61 of part D of section 1 of chapter 56 of the Laws of 2012 has not been shown to be unconstitutional.

Opinion by Judge RIVERA. Chief Judge DiFIORE and Judges PIGOTT and ABDUS-SALAAM concur. Judge GARCIA concurs in result in a separate concurring opinion. Judges STEIN and FAHEY taking no part.

In *Matter of County of St. Lawrence v Shah*: Order, insofar as appealed from, reversed, without costs, petitions dismissed in their entirety and a declaration made in favor of respondents Nirav R. Shah, M.D., M.P.H., as Commissioner of the New York State Department of Health, et al., that section 61 of part D of section 1 of chapter 56 of the Laws of 2012 has not been shown to be unconstitutional.

Opinion by Judge RIVERA. Chief Judge DiFIORE and Judges PIGOTT and ABDUS-SALAAM concur. Judge GARCIA concurs in result in a separate concurring opinion. Judges STEIN and FAHEY taking no part.

In *Matter of County of Chautauqua v Shah*, *Matter of County of Jefferson v Shah*, *Matter of County of Oneida v Shah*, *Matter of County of Genesee v Shah*, *Matter of County of Cayuga v Shah* and *Matter of County of Monroe v Shah*: Order, insofar as appealed from, affirmed, without costs.

Opinion by Judge RIVERA. Chief Judge DiFIORE and Judges PIGOTT and ABDUS-SALAAM concur. Judge GARCIA concurs in result in a separate concurring opinion. Judges STEIN and FAHEY taking no part.

[66 NE3d 1057, 44 NYS3d 339]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY
BREWER, Appellant.

Argued October 18, 2016; decided November 17, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 19, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Daniel J. Doyle, J.), which had convicted defendant, upon a jury verdict, of predatory sexual assault against a child (two counts) and sexual abuse in the first degree (two counts).

People v Brewer, 129 AD3d 1619, affirmed.

HEADNOTES

Crimes — Proof of Other Crimes — Prosecution for Sexual Abuse against Child — Proof of Defendant's Drug Use

1. In the prosecution of defendant for the sexual abuse of two minor girls, the Appellate Division correctly concluded that evidence of defendant's drug use was admissible *Molineux* evidence as it was not proffered to show defendant's propensity toward crime, but to corroborate details of the victims' testimony. Both victims testified that defendant pulled them into a closet or back bedroom and forced them to perform oral sex on him, while he smoked crack cocaine with his shirt pulled over his head. The evidence of defendant's use of crack cocaine while engaging in sexual acts was not overly prejudicial in the context of the trial. Further, the trial court prohibited the People from introducing evidence of the crack cocaine recovered from defendant during the execution of the search warrant, thereby exercising its discretion in permitting evidence of drug use only as it pertained to the sex acts as described by the victims.

Crimes — Evidence — Prosecution for Sexual Abuse against Child — Proof of Prior Sexual Acts with Consenting Adult Women

2. In the prosecution of defendant for the sexual abuse of two minor girls, evidence that defendant had engaged in sexual acts with consenting adult women in the exact same manner as he had forced the girls to was not *Molineux* or propensity evidence. *Molineux* analysis is limited to the introduction of a prior uncharged crime or a prior bad act, and should not be used to evaluate a prior consensual sexual act between adults. In addition, propensity evidence is limited for policy reasons, due to fear of the jury's human tendency to more readily believe in the guilt of an accused person when it is known or suspected that he or she has previously committed a similar crime. Here, that defendant engaged in oral sex with consenting adult women, while in a closet smoking crack cocaine with his shirt pulled over his head,

showed no propensity to commit the crimes for which he was on trial. That the evidence corroborated the minor victims' accounts did not render it propensity evidence, because corroboration and propensity are distinct concepts.

Crimes — Evidence — Prosecution for Sexual Abuse against Child — Proof of Prior Sexual Acts with Consenting Adult Women

3. In the prosecution of defendant for the sexual abuse of two minor girls, the trial court properly admitted evidence of defendant's prior sexual acts with consenting adult women detailing that he had engaged in oral sex while in a closet smoking crack cocaine with his shirt pulled over his head, the same act that he had forced the girls to engage in. The decision to admit evidence of defendant's prior acts which does not constitute *Molineux* or propensity evidence rests upon the trial court's discretionary balancing of probative value and unfair prejudice. Here, where the People had established that the victims had never witnessed defendant's sexual encounters with their mother or other women, the evidence was relevant and probative because it tended to support the victims' accounts of their abuse by corroborating the peculiar manner in which defendant engaged in oral sex. Because the evidence of defendant's prior sexual encounters strengthened the People's case by making the victims' accounts ring true, it was prejudicial to defendant. However, taking into account the full extent of the evidence the People sought to introduce, and the trial court's limitation and, in some instances, outright preclusion thereof, the trial court did not abuse its discretion in concluding that the probative value of this particular evidence was not outweighed by potential prejudice.

Crimes — Evidence — Excited Utterances — Victim's Disclosure of Sexual Abuse by Defendant

4. In the prosecution of defendant for the sexual abuse of two minor girls, the trial court properly allowed the victims' mother to testify about one of the girls disclosing the abuse to her immediately after it occurred. While the prompt outcry exception to the hearsay rule is limited to testimony that a timely complaint was made, and does not allow further testimony concerning details, here the brief account of what the victim told her mother could be viewed as both a prompt outcry and an excited utterance.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Evidence §§ 334, 409, 410, 413, 422, 423, 425, 879, 882, 896.

CARMODY-WAIT 2d, Fundamentals of Criminal Evidence §§ 193:21, 193:22, 193:29; CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:80, 194:115.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.4.

NY JUR 2d, Criminal Law: Procedure §§ 2062, 2066–2070, 2078, 2164–2166, 2193, 2313, 2407.

ANNOTATION REFERENCE

See ALR Index under Abuse of Persons; Evidence Rules; Prior Offenses and Convictions; Res Gestae.

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POINTS OF COUNSEL

Easton Thompson Kasperek Shiffrein LLP, Rochester (*Brian Shiffrein* of counsel), and *Timothy P. Donaher*, *Public Defender*, Rochester, for appellant. I. The trial court’s *Molineux* ruling and the subsequent admission of evidence of Mr. Timothy Brewer’s alleged drug use and sexual proclivities and propensities with his girlfriend and with other adult women was prejudicial error. (*People v Molineux*, 168 NY 264; *People v Hudy*, 73 NY2d 40; *Matter of Brandon*, 55 NY2d 206; *Coopersmith v Gold*, 89 NY2d 957; *People v Vargas*, 88 NY2d 856; *Michelson v United States*, 335 US 469; *People v Zackowitz*, 254 NY 192; *United States v Carrillo*, 981 F2d 772; *People v Santarelli*, 49 NY2d 241; *People v Caban*, 14 NY3d 369.) II. It was error for the trial court to admit, over repeated objection, testimony about the prejudicial details of a prior consistent statement that one of the complainants made to her mother. (*People v Ludwig*, 24 NY3d 221; *People v Rosario*, 17 NY3d 501; *People v McDaniel*, 81 NY2d 10; *People v McClean*, 69 NY2d 426; *People v Smith*, 22 NY3d 462; *People v Katz*, 209 NY 311.)

Sandra Doorley, *District Attorney*, Rochester (*Robert J. Shoemaker* of counsel), for respondent. I. Evidence of defendant’s sexual proclivities was properly admitted. (*People v Rojas*, 97 NY2d 32; *People v Dorm*, 12 NY3d 16; *People v Cortez*, 22 NY3d 1061; *People v Onofre*, 51 NY2d 476; *People v Bagarozzy*, 132 AD2d 225; *People v Kelley*, 19 NY3d 887; *People v Zackowitz*, 254 NY 192; *People v Hudy*, 73 NY2d 40; *People v Vargas*, 88 NY2d 856; *People v Cassala*, 130 AD3d 1252.) II. Details of the victim’s prompt outcry were properly admitted as excited utterances. (*People v Rice*, 75 NY2d 929; *People v Medina*, 53 AD3d 1046, 11 NY3d 856; *People v Clemente*, 84 AD3d 829, 17 NY3d 793; *People v Miller*, 115 AD3d 1302, 23 NY3d 1040; *People v Edwards*, 47 NY2d 493; *People v Ludwig*, 24 NY3d 221.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

In this case involving the defendant's sexual abuse of two minor girls, we must decide whether the trial court abused its discretion as a matter of law by allowing the People to elicit evidence of the distinctive manner in which he engaged in sexual acts with consenting adult women. We conclude that the trial court did not err in admitting this evidence, which corroborated the testimony of the two minor victims, because it was relevant and highly probative, and its probative value was not outweighed by the potential for prejudice.

I.

Factual Background

The two victims in this case are sisters. When MD was nine and OD was seven, they lived in Rochester with their mother and defendant. Though defendant, who was their mother's boyfriend, was not their biological father, they called him "dad." At the time they lived there, defendant, their mother, and numerous other adults used the house to use and sell drugs and engage in sexual acts. Most often, these activities took place in a closet defendant called the "bat cave."

MD and OD each described being sexually abused by defendant, and the particular method he used: he pulled them into a closet or back bedroom and forced them to perform oral sex on him, while he smoked crack with his shirt pulled over his head. After one of these incidents, MD left defendant and immediately disclosed to her mother what had happened. The mother gathered up MD, OD, and the rest of her children and moved out of the house.

At issue here is the evidence the People sought to introduce on their direct case pursuant to what they delineated as a pretrial *Molineux* application. The prosecutor wanted to elicit that the abuse of the girls had started before they moved to Rochester; that defendant frequently beat them with a belt; that defendant rented out the "bat cave" to others in the neighborhood to use as a space for drug use and sex; that when the police arrested defendant in the house, pursuant to a search warrant, they recovered crack cocaine; and, most relevant here, that defendant was a habitual crack user and engaged in oral sex with the girls' mother and other consenting adult women in the exact same manner as he had forced the girls to: in a

closet, with his shirt pulled over his head, while smoking crack. The People planned to introduce this evidence about defendant's sexual habit through direct testimony from their mother. In their written application, the People argued that the proffered evidence would aid the jury in understanding the unique dynamics of the particular household and family, and in making credibility determinations.

The trial court heard argument on the applications and refused to allow evidence of the beatings with the belt, the renting out of the closet, and the recovery of drugs during the execution of the search warrant. With respect to defendant's consensual oral sex with adult women in the bat cave while smoking crack, defense counsel argued that the drug use and the sexual acts were "clearly prejudicial and not probative enough for [the] Court to exercise its discretion and allow that testimony." The People argued, in addition to the reasons stated in their written application, that the evidence was relevant because it demonstrated a pattern of behavior. The court ruled that the People could elicit testimony from the mother about her own observations and experiences with defendant, but limited the testimony about other adult women to those for which she was able to provide names and dates, and had personally observed engaging in sexual acts with defendant. After hearing testimony from the mother, both girls, and defendant himself, the jury found defendant guilty of all charges. On appeal, defendant's judgment was affirmed by the Appellate Division (129 AD3d 1619 [4th Dept 2015]). A Judge of this Court granted defendant leave to appeal (26 NY3d 965 [2015]), and we now affirm.

II.

The Disputed Evidence

[1] The Appellate Division correctly concluded that evidence of defendant's drug use was an uncharged crime or prior bad act, and that it could be properly admitted as *Molineux* evidence (see *People v Molineux*, 168 NY 264 [1901]) because it was not proffered to show defendant's propensity toward crime, but to corroborate details of the victims' testimony (129 AD3d at 1620). We agree that evidence of defendant's use of crack cocaine while engaging in sexual acts was not overly prejudicial in the context of this trial. Further, the trial court prohibited the People from introducing evidence of the crack cocaine

recovered from defendant during the execution of the search warrant, thereby exercising its discretion in permitting evidence of drug use only as it pertained to the sex acts described by the victims.

[2] We further agree with the Appellate Division’s conclusion that evidence of defendant’s prior sexual encounters with the girls’ mother and another consenting adult woman was not *Molineux* evidence, “because it was neither a crime nor a prior bad act for him to receive consensual oral sex from an adult in a closet with his T-shirt pulled over his head” (129 AD3d at 1620). *Molineux* analysis is limited to the introduction of a prior uncharged crime or a prior bad act. It should not be used to evaluate a prior consensual sexual act between adults.¹

In the context of this case, we also note that evidence of defendant’s prior sexual acts with adult women is not “propensity” evidence in its traditional sense. When we limit *Molineux* or other propensity evidence, we do so for policy reasons, due to fear of the jury’s “human tendency” to more readily “believe in the guilt of an accused person when it is known or suspected that he has previously committed a similar crime” (*People v Ventimiglia*, 52 NY2d 350, 359 [1981], citing *Molineux*, 168 NY at 313). But here, that defendant had engaged in oral sex with consenting adult women, while in a closet smoking crack with his shirt pulled over his head, showed no propensity to commit the crimes for which he was on trial. That this evidence corroborated the girls’ accounts does not render it propensity evidence, because corroboration and propensity are distinct concepts. Because “there [was] a proper nonpropensity purpose, the decision whether to admit evidence of defendant’s prior . . . acts rests upon the trial court’s discretionary balancing of probative value and unfair prejudice” (*People v Frankline*, 27 NY3d 1113, 1115 [2016], quoting *People v Dorm*, 12 NY3d 16, 19 [2009]).

[3] The trial court here properly considered and admitted the evidence using the appropriate factors: its relevance, proba-

1. That the People classified it as *Molineux* evidence, and the trial court considered it on that basis, does not prevent us from concluding it was not. Whether it was given that particular title, the arguments on both sides would remain the same. And though we hold that this was not properly classified as *Molineux* evidence, we note that the trial court did not abuse its discretion admitting it for the stated non-propensity purposes provided by the People. Nor do we intend by this decision to discourage the People from bringing a challenging or problematic evidentiary issue to the attention of the court and defendant before trial.

tive value to the People's case, and potential prejudice to defendant (*see generally People v Harris*, 26 NY3d 1, 5 [2015]). Here, there is no real dispute that the evidence was relevant and probative, as it tended to support the girls' account of their abuse by corroborating the peculiar manner in which defendant engaged in oral sex. Notably, as the Appellate Division pointed out, the People established that the girls had never witnessed defendant's sexual encounters with their mother or other women, and as the prosecutor argued in her summation, the girls were describing their own experiences.

Finally, the trial court did not abuse its discretion in concluding that the probative value of the evidence was not outweighed by potential prejudice. Plainly, almost all relevant, probative evidence the People seek to admit in a trial against a defendant will be, in a sense, prejudicial. The People generally wish to admit evidence supporting the theory that a defendant is guilty of the crime for which he is charged. Evidence which helps establish a defendant's guilt always can be considered evidence that "prejudices" him or her. But the probative value of a piece of evidence is not automatically outweighed by prejudice merely because the evidence is compelling. Here, "[t]he point is that the damage resulted from something other than its tendency to prove propensity. That suggests that the evidence must have been relevant to something else, as indeed it was. . . . If this evidence was damaging, it was because it had the intended effect—it undermined the defendant's theory" (*People v Hudy*, 73 NY2d 40, 72 [1988, Wachtler, Ch. J., dissenting], *abrogated on other grounds by Carmell v Texas*, 529 US 513 [2000]; *see also People v Walker*, 83 NY2d 455, 463 [1994] [the People's use of alias evidence while cross-examining defendant was within the sound discretion of the trial court, and "there is no *undue* prejudice; there is only the expected—and, indeed, intended—negative impact that naturally flows from evidence admitted for the purpose of impeachment"]).

Here, the evidence of defendant's prior sexual encounters with adult women while using drugs was prejudicial to him, as it strengthened the People's case by making the victims' accounts ring true. However, on this record, taking into account the full extent of the evidence the People sought to introduce, and the trial court's limitation and, in some instances, outright preclusion thereof, we cannot say that the court abused its discretion in admitting this particular evidence. A trial court enjoys broad discretion in deciding whether to admit evidence,

and this Court will disturb the decision “only where the trial court has either abused its discretion or exercised none at all” (*Walker*, 83 NY2d at 459 [internal quotation marks and brackets omitted], citing *People v Williams*, 56 NY2d 236, 238 [1982]). Neither concern is implicated here.

III.

Prompt Outcry and Excited Utterance

[4] Finally, defendant argues that the trial court erred in allowing the mother to testify about MD disclosing the abuse to her. Generally, the “prompt outcry exception” to the hearsay rule is limited to testimony that a timely complaint was made, and “does not allow the further testimony concerning details of the incident” (*People v Rice*, 75 NY2d 929, 932 [1990]). But the People argued that the disclosure was also an excited utterance because it came immediately on the heels of an abusive encounter, while MD was crying and sad, “made while the victim was under the continuing influence of the stress and excitement generated by the initial event” (*People v Medina*, 53 AD3d 1046, 1047 [4th Dept 2008], *lv denied* 11 NY3d 856 [2008] [internal quotation marks omitted]). The court allowed the testimony as both a prompt outcry and excited utterance.² Here, this brief account of what MD told her mother can be viewed as both a prompt outcry and an excited utterance, and thus the admission was proper.

Accordingly, the Appellate Division order should be affirmed.

Chief Judge DiFIORE and Judges PiGOTT, RiVERA, STEIN, FAHEY and GARCIA concur.

Order affirmed.

2. The trial court indicated it would allow the testimony as a prompt outcry and a “spontaneous utterance.” Given the arguments made by the People and the comments of the court, it is clear that the court used the term “spontaneous utterance” interchangeably with “excited utterance.”

[66 NE3d 1062, 44 NYS3d 344]

In the Matter of ENTERGY NUCLEAR OPERATIONS, INC., et al.,
Respondents, v NEW YORK STATE DEPARTMENT OF STATE et
al., Appellants.

Argued October 19, 2016; decided November 21, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 11, 2014. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Albany County (Michael C. Lynch, J.; op 42 Misc 3d 896 [2013]), entered in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, which had (a) dismissed petitioners' application to annul respondent Department of State's response to petitioners' declaratory ruling request in which respondent found that petitioners' application to renew the operating licenses for Indian Point Nuclear Generating Plant Unit No. 2 and Indian Point Nuclear Generating Plant Unit No. 3 was not exempt from consistency review under New York's Coastal Management Program; and (b) denied petitioners' request for a declaratory judgment; (2) granted the petition; and (3) declared that Indian Point Nuclear Generating Plant Unit No. 2 and Indian Point Nuclear Generating Plant Unit No. 3 are exempt from New York's Coastal Management Program.

Matter of Entergy Nuclear Operation, Inc. v New York State Dept. of State, 125 AD3d 21, reversed.

HEADNOTE

Administrative Law — Rule Making — Challenge to Agency's Regulatory Construction

Respondent New York State Department of State's determination that petitioners' application to renew their federal licenses to operate riverfront nuclear reactors did not fit within the grandfather exemptions of New York's Coastal Management Program (CMP) and was therefore subject to review for consistency with the CMP was rational. While the CMP is not a statute or regulation, it is a program authored and administered by respondent, and approved by the United States Secretary of Commerce, that sets forth enforceable statewide policies. As such, respondent's interpretation of that program was entitled to deference. The CMP lists the issuance of a license for a nuclear facility as a reviewable activity that requires the applicant to submit a federal consistency certification to the Department of State, but certain projects are exempt from that requirement. Regarding the first CMP exemption, for "those projects identified as grandfathered pursuant to [the]

State Environmental [Q]uality Review Act (SEQRA)” (ECL art 8), the word “identified” was reasonably interpreted by respondent as implying an affirmative step, such as the placing on a list of projects deemed approved. As the exemption refers to SEQRA legislation specifically directing state agencies to create a list of projects deemed approved and not subject to SEQRA, respondent’s interpretation gave effect to the plain language of the exemption. Further, respondent determined that the second CMP exemption applies to projects for which a SEQRA environmental impact statement had been prepared, and projects which preexisted, but would have otherwise been subject to, 19 NYCRR part 600, which relates only to state agencies’ consistency review of their own actions and applies only to actions undertaken by state agencies. Because the licensing of petitioners’ reactors did not involve a state agency reviewing its own actions, respondent rationally concluded that the exemption did not apply.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Energy and Power Sources §§ 63, 65–67, 71, 74, 80–81; AM JUR 2d, Pollution Control §§ 118, 1469, 1473, 1475, 1498, 1531, 1541, 1567.

CARMODY-WAIT 2d, Proceeding Against a Body or Officer §§ 145:39–145:40, 145:1343, 145:1347, 145:1374–145:1377, 145:1383.

McKINNEY’S, ECL art 8.

19 NYCRR part 600.

NY JUR 2d, Administrative Law § 115, 170; NY JUR 2d, Energy §§ 393, 400; NY JUR 2d, Environmental Rights and Remedies §§ 67, 70, 76–78, 131–133.

SIEGEL, NY PRAC §§ 95, 557.

ANNOTATION REFERENCE

See ALR Index under Energy; Environmental Law; Nuclear Regulatory Commission; Pollution; Reactors.

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POINTS OF COUNSEL

Eric T. Schneiderman, Attorney General, Albany (Barbara D. Underwood, Andrew D. Bing, Frederick A. Brodie and Lisa M. Burianek of counsel), for appellants. Entergy Nuclear Operations, Inc., Entergy Nuclear Indian Point 2, LLC, and Entergy Nuclear Indian Point 3, LLC’s current application for a 20-year renewal of its federal licenses for the aging nuclear reactors at

Indian Point is subject to review by the New York State Department of State for consistency with New York's coastal management policies. (*Massachusetts v United States*, 522 F3d 115; *Matter of Natural Resources Defense Council, Inc. v New York State Dept. of Envtl. Conservation*, 25 NY3d 373; *Matter of Terrace Ct., LLC v New York State Div. of Hous. & Community Renewal*, 18 NY3d 446; *Matter of Davis v Mills*, 98 NY2d 120; *Matter of New York State Assn. of Life Underwriters v New York State Banking Dept.*, 83 NY2d 353; *Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106; *People ex rel. Brown v New York State Div. of Parole*, 70 NY2d 391; *Matter of Salmon v Flacke*, 61 NY2d 798; *New York v Nuclear Regulatory Commn.*, 681 F3d 471.)

Quinn Emanuel Urquhart & Sullivan, LLP, New York City (Kathleen M. Sullivan, Sanford I. Weisburst, Yelena Konanova and Ellyde R. Thompson of counsel), Nixon Peabody LLP, Albany (Andrew C. Rose of counsel), Marcus V. Brown, Entergy Services, Inc., New Orleans, Louisiana and William B. Glew, Jr., Entergy Services, Inc., White Plains, for respondents. I. The plain language of the environmental impact statement exemption covers Indian Point. (*Matter of Visiting Nurse Serv. of N.Y. Home Care v New York State Dept. of Health*, 5 NY3d 499; *Matter of Natural Resources Defense Council, Inc. v New York State Dept. of Envtl. Conservation*, 25 NY3d 373; *Matter of Howard v Wyman*, 28 NY2d 434; *Matter of New York State Assn. of Life Underwriters v New York State Banking Dept.*, 83 NY2d 353; *INS v Cardoza-Fonseca*, 480 US 421; *Rivers v Birnbaum*, 102 AD3d 26; *Scott v Massachusetts Mut. Life Ins. Co.*, 86 NY2d 429; *Matter of Atlantic Cement Co. v Williams*, 129 AD2d 84.) II. The plain language of the State Environmental Quality Review Act exemption covers Indian Point. (*Parochial Bus Sys. v Board of Educ. of City of N.Y.*, 60 NY2d 539; *Matter of Branford House v Michetti*, 81 NY2d 681.) III. Indian Point's exempt status under the New York Coastal Management Program has not been forfeited. (*Matter of Salmon v Flacke*, 61 NY2d 798; *Matter of Atlantic Cement Co. v Williams*, 129 AD2d 84; *Pacific Gas & Elec. Co. v State Energy Resources Conservation & Development Comm'n.*, 461 US 190; *Bullcreek v Nuclear Regulatory Commn.*, 359 F3d 536.)

Deborah Brancato, Riverkeeper, Inc., Ossining, Hayley Carlock, Scenic Hudson, Inc., Poughkeepsie, and Manna Jo Greene, Hudson River Sloop Clearwater, Beacon, for River-

keeper, Inc. and others, amici curiae. I. Entergy Nuclear Operations, Inc., Entergy Nuclear Indian Point 2, LLC, and Entergy Nuclear Indian Point 3, LLC's 2007 license renewal application for Indian Point Unit 2 and Indian Point Unit 3 is subject to review for consistency with New York coastal policies as contemplated by the Federal Coastal Zone Management Act of 1972. II. The New York State Department of State acted rationally in determining that the exemption from federal coastal consistency review for projects for which a final environmental impact statement has been prepared prior to September 28, 1982 did not apply to Entergy Nuclear Operations, Inc., Entergy Nuclear Indian Point 2, LLC, and Entergy Nuclear Indian Point 3, LLC's application for permission to operate the facilities from 2013 to 2035. (*Matter of Marzec v DeBuono*, 95 NY2d 262; *Matter of New York State Assn. of Life Underwriters v New York State Banking Dept.*, 83 NY2d 353; *Matter of Howard v Wyman*, 28 NY2d 434.) III. The New York State Department of State has independent grounds to conduct a coastal consistency review of Entergy Nuclear Operations, Inc., Entergy Nuclear Indian Point 2, LLC, and Entergy Nuclear Indian Point 3, LLC's license renewal application due to the various material changes that have occurred in the operations and impacts of Indian Point Unit 2 and Indian Point Unit 3 since original operating licenses were issued in the 1970s. (*New York v Nuclear Regulatory Commn.*, 681 F3d 471.)

Singer/Bea LLP, San Francisco, California (*Renee B. Bea*, *Adam S. Cashman*, of the California bar, admitted pro hac vice, and *Stephanie L. Cobau*, of the California bar, admitted pro hac vice, of counsel), for African American Environmentalist Association and another, amici curiae. I. Closing the Indian Point nuclear reactors would undermine environmental justice. II. New York must consider the environmental impact on urban minority communities. III. Residents of Kings, Queens, and Bronx Counties would suffer an increased incidence of asthma and other related health illnesses.

Winston & Strawn LLP, Washington, D.C. (*David A. Repka* of counsel), for Nuclear Energy Institute, amicus curiae. I. The Nuclear Regulatory Commission exclusively and comprehensively regulates the operation of nuclear facilities and continuously assesses new information. (*Pacific Gas & Elec. Co. v State Energy Resources Conservation & Development Comm'n*, 461 US 190; *Siegel v Atomic Energy Commn.*, 400 F2d 778; *Nuclear*

Info. Resource Serv. v Nuclear Regulatory Commn., 969 F2d 1169; *Rockland County v United States Nuclear Regulatory Commn.*, 709 F2d 766; *Silkwood v Kerr-McGee Corp.*, 464 US 238; *Bullcreek v Nuclear Regulatory Commn.*, 359 F3d 536.) II. The Nuclear Regulatory Commission regulates aging management and assesses environmental impacts when reviewing license renewal applications. (*Baltimore Gas & Elec. Co. v Natural Resources Defense Council, Inc.*, 462 US 87.)

Hunton & Williams LLP, New York City (*Shawn Patrick Regan* of counsel), and *Hunton & Williams LLP*, Washington, D.C. (*F. William Brownell* of counsel), for Chamber of Commerce of the United States of America and another, amici curiae. I. The New York State Department of State is barred from unilaterally blocking the continued operation of Indian Point. (*Entergy Nuclear Vermont Yankee, LLC v Shumlin*, 733 F3d 393; *Matter of Angello v Labor Ready, Inc.*, 7 NY3d 579; *Matter of Trump-Equitable Fifth Ave. Co. v Gliedman*, 57 NY2d 588; *Matter of Visiting Nurse Serv. of N.Y. Home Care v New York State Dept. of Health*, 5 NY3d 499; *New Jersey Env'tl. Fedn. v United States Nuclear Regulatory Commn.*, 645 F3d 220; *Boreali v Axelrod*, 71 NY2d 1.) II. The premature closure of Indian Point would impair the regional and national economy, deter future investment, and threaten electric grid reliability.

Allegaert Berger & Vogel LLP, New York City (*Partha P. Chatteraj* of counsel), for Emily Hammond, amicus curiae. Nuclear power offers significant benefits to the environment while providing large-scale, reliable baseload power to the electric grid. (*Massachusetts v EPA*, 549 US 497.)

Wollmuth Maher & Deutsch LLP, New York City (*David H. Wollmuth*, *James J. Brennan* and *Nicholas G.O. Veliky* of counsel), for New York State Senator Kevin S. Parker and others, amici curiae. I. Indian Point provides enormous economic and reliable energy benefits to the local community, New York, and the United States. II. The New York Coastal Management Program was not intended to act as a tool for reevaluating existing facilities like Indian Point. III. The New York State Department of State's purported authority to reevaluate existing facilities under the New York Coastal Management Program would introduce great uncertainty. (*In re Megan-Racine Assoc., Inc.*, 102 F3d 671; *Sklar v Byrne*, 727 F2d 633.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

The issue presented is whether Entergy's pending application to renew its federal operating licenses for the Indian Point nuclear reactors on the Hudson River in Westchester County, for an additional 20 years, is subject to review by the New York State Department of State for consistency with the policies of New York's Coastal Management Program (CMP). The Department of State, interpreting the CMP, which it authored, concluded that the renewal application did not fit within the CMP's grandfather exemptions and that Entergy's application is therefore subject to review. An agency's interpretation of its own plan or regulation "is deferentially reviewed by the courts to determine whether there is a rational basis for the decision and, if so, [the agency's] conclusion must be upheld" (*Matter of Terrace Ct., LLC v New York State Div. of Hous. & Community Renewal*, 18 NY3d 446, 454 [2012]). We conclude that the Department of State's determination is rational, and accordingly, the Appellate Division order holding that Indian Point is exempt from review should be reversed.

I.Background

Entergy's Indian Point nuclear facility has two active nuclear reactors, Indian Point 2 and Indian Point 3.¹ The Nuclear Regulatory Commission's (NRC) predecessor, the Atomic Energy Commission, issued 40-year operating licenses for Indian Point 2 in 1973 and Indian Point 3 in 1975, when Consolidated Edison owned all three reactors. The agency now known as the New York Power Authority acquired the licensed and partially-completed Indian Point 3 from Consolidated Edison in 1975. Entergy bought Indian Point 3 from the Power Authority in 2000 and acquired Indian Point 2 in 2001. Entergy continues to operate the reactors under the original 40-year licenses in accordance with federal law (*see* 5 USC § 558; 10 CFR 2.109).

Federal law limits the term of a initial operating license to a maximum of 40 years (*see* 42 USC § 2133 [c]). In 1995, the NRC adopted its current "Part 54" regulations, authorizing the re-licensing of nuclear reactors for up to 20 years beyond the original term (*see* 10 CFR 54.31 [b]). A renewed operating license supersedes the original license (*see* 10 CFR 54.31 [c]).

1. Indian Point 1 ceased generating electricity in 1974.

An application for a license to operate a nuclear facility requires the NRC to produce a final environmental impact statement, and an application for a re-license requires a supplemental site-specific environmental impact statement, which is in addition to the 2013 Generic Environmental Impact Statement for License Renewal of Nuclear Plants (*see* 10 CFR 51.20 [b] [2]; part 51, subpart A, Appendix B).² The applicant is required to submit an environmental report to the NRC and to identify other necessary environmental permits and approvals (10 CFR 51.45, 51.53 [c]).

Congress adopted the Coastal Zone Management Act (the act) in 1972, to encourage the states to protect their coastal resources, with an aim “to preserve, protect, develop, and where possible, to restore or enhance, the resources of the Nation’s coastal zone for this and succeeding generations” (16 USC § 1452 [1]). The act states that “[t]he key to more effective protection and use of the land and water resources of the coastal zone is to encourage the states to exercise their full authority” over coastal lands and waters by adopting coastal management programs of their own (16 USC § 1451 [i]). It provides that a coastal state can choose to draft a CMP, which is a “comprehensive statement . . . setting forth objectives, policies, and standards to guide public and private uses of lands and waters in the coastal zone” (16 USC § 1453 [12]). Upon completion, the state then submits the CMP to the United States Secretary of Commerce for authorization (*see* 16 USC § 1454).

The act mandates that once the Secretary has approved a state’s management program,

“any applicant for a required [f]ederal license . . . affecting any land or water use or natural resource of the coastal zone of that state shall provide in the application to the licensing . . . agency a certification that the proposed activity complies with the enforceable policies of the state’s approved program and that such activity will be conducted in a manner consistent with the program” (16 USC § 1456 [c] [3] [A]).

Within six months of submission, the affected state must concur or object to the certification. Further, the act provides

2. United States Nuclear Regulatory Commission, Reactor License Renewal, <http://www.nrc.gov/reactors/operating/licensing/renewal/overview.html> (accessed Oct. 31, 2016).

that “[n]o license or permit shall be granted by the [relevant] [f]ederal agency” until the State or its designated agency has concurred with the certification, is deemed to have done so, or the Secretary overrides the State’s objection (16 USC § 1456 [c] [3] [A]). Federal regulations under the act require consistency review of renewal applications for federal licenses that affect any coastal use or resource where the activities were not previously reviewed by the designated state agency, where the activities are subject to new management changes, or where the renewal will cause an effect substantially different from those the state agency originally reviewed (*see* 15 CFR 930.51 [b] [1]-[3]). The act does not grant any exemptions or exceptions to the consistency requirement.

In 1982, New York adopted a CMP.³ The Department of State took the lead in preparing the CMP and administers it. The United States Secretary of Commerce approved the CMP and it became effective on September 30, 1982 (*see* 47 Fed Reg 47056-02 [1982]). The CMP sets forth 44 enforceable statewide policies relating to coastal activities against which federal license renewals and other federal actions affecting coastal resources must be assessed. State actions are also subject to review, but that review is not conducted by the Department of State but by the state agency proposing to take the action in accordance with the regulations promulgated by the Department (*see* 19 NYCRR 600.1, 600.3, 600.4; Executive Law § 919). The CMP’s statewide policies include protecting fish and wildlife resources; preventing or minimizing damage from flooding or erosion; meeting public energy needs in an environmentally safe manner; and controlling air and water pollution.

New York has designated its Department of State to review federal agency actions to ensure consistency with the 44 coastal policies set forth in the CMP. The Department conducts a federal consistency review of a proposed federal license application pursuant to the federally approved CMP (*see* 15 CFR 930.11 [h]). The CMP lists the issuance of an operating license for a nuclear facility as a reviewable activity that requires the applicant to submit a federal consistency certification to the Department. This requirement also expressly applies to renewals of federal licenses.

3. New York State Coastal Management Program and Final Environmental Impact Statement, http://www.dos.ny.gov/opd/programs/pdfs/NY_CMP.pdf (accessed Oct. 25, 2016), cached at http://www.nycourts.gov/reporter/webdocs/NY_CMP.pdf.

Certain projects are exempt from the CMP's consistency requirement:

“The projects which meet one of the following two criteria have been determined to [b]e projects for which a substantial amount of time, money and effort have been expended, and will not be subject to New York State's [CMP] and therefore will not be subject to review pursuant to the Federal consistency procedures of the Federal Coastal Zone Management Act of 1972, as amended: (1) those projects identified as grandfathered pursuant to [the] State Environmental [Q]uality Review Act [SEQRA] at the time of its enactment in 1976; and (2) those projects for which a final Environmental Impact Statement has been prepared prior to the effective date of the Department of State Part 600 regulations [see Appendix A, DOS Consistency Regulations, NYCRR Title 19, Part 600, 6600.3(4)]. If an applicant needs assistance to determine if its proposed action meets one of these two criteria, the applicant should contact the Department of State” (CMP, Part II, Section 9 at 1).⁴

The license for Indian Point 2 expired in September 2013 and the license for Indian Point 3 expired in December 2015. In 2007, Entergy applied to the NRC for a 20-year renewal of both operating licenses, and initially took the position with the NRC that its application was subject to the Department of State's federal consistency review under the CMP. However, in 2012, Entergy changed its position and sought a ruling from the NRC that its re-licensing application was not subject to the Department's review for consistency with the CMP. The State of New York opposed Entergy's request and cross-moved for a declaratory ruling that consistency review was required.⁵ The NRC staff recommended that Entergy's motion be denied because consistency review issues should be resolved by the Department of State in the first instance. On June 12, 2013,

4. As noted by the Appellate Division, the provision contains a typographical error in the original text, and the parties concur that the reference to section 6600.3 (4) is intended to refer to 19 NYCRR 600.3 (4), which is now codified at 19 NYCRR 600.3 (d).

5. See *State of New York Response to Entergy's Request to the Atomic Safety and Licensing Board for a Declaratory Order Concerning Coastal Zone Management Act Issues and Cross-Motion for Declaratory Order*, <http://pbadupws.nrc.gov/docs/ML1309/ML13095A481.pdf> (accessed Oct. 25, 2016).

the NRC's Atomic Safety and Licensing Board ruled that Entergy's motion and New York's cross motion were premature because the New York State Department of State and the NRC staff had not yet consulted.⁶

Entergy subsequently sought a declaratory ruling from the Department of State as to whether its license renewal application was exempt from the CMP's consistency requirement. It argued that the license renewals were not subject to consistency review because, with respect to the first exemption, Indian Point 2 and 3 were grandfathered under the SEQRA (*see* ECL art 8; ECL 8-0111 [5] [a]) at the time of its enactment in 1976, and with respect to the second exemption, the facilities' final environmental impact statements were adopted before the effective date of the Department of State regulations referenced in that exemption.

The Department of State determined that Entergy's application to extend its operating licenses for 20 years was not exempt from consistency review under the CMP. Entergy then commenced this hybrid CPLR article 78 proceeding/declaratory judgment action seeking to annul the Department's determination and requesting a declaratory judgment that the Indian Point nuclear reactors are not subject to the CMP. Supreme Court, among other things, upheld as rational the Department's determination that neither exemption in the CMP applied, and dismissed the proceeding (42 Misc 3d 896 [Sup Ct, Albany County 2013]). The Appellate Division reversed, holding that Indian Point fit within the second of the two exemptions listed in the CMP (125 AD3d 21 [3d Dept 2014]). The Appellate Division did not address whether Indian Point had also met the criteria of the first listed exemption. We granted the Department of State appellants' motion for leave to appeal (25 NY3d 908 [2015]).⁷

II.

The Exemptions

In considering the Department of State's interpretation of the exemptions set forth in the CMP, we are mindful of well-

6. *See Matter of Entergy Nuclear Operations, Inc. (Indian Point Nuclear Generating Units 2 and 3)*, <http://pbadupws.nrc.gov/docs/ML1316/ML13163A233.pdf> (accessed Oct. 25, 2016).

7. By determination dated November 6, 2015, the Department of State completed its consistency review and objected to Entergy's certification of consistency with the CMP. That determination is not before us.

established principles that we recently reiterated and applied in *Matter of Natural Resources Defense Council, Inc. v New York State Dept. of Envtl. Conservation* (25 NY3d 373 [2015]). “[T]he construction given statutes and regulations by the agency responsible for their administration, if not irrational or unreasonable, should be upheld” and “[t]his Court treads gently in second-guessing the experience and expertise of state agencies charged with administering statutes and regulations” (*id.* at 397 [citations and internal quotation marks omitted]). While the CMP is not a statute or regulation, it is a program authored and administered by the Department of State, and approved by the United States Secretary of Commerce, that sets forth enforceable statewide policies. As such, the Department’s interpretation of that program is entitled to deference.

Regarding the first exemption, for “those projects identified as grandfathered pursuant to State Environmental [Q]uality Review Act [SEQRA] at the time of its enactment in 1976,” Entergy contended before the Department of State that Indian Point 2 and 3 were identified as grandfathered pursuant to SEQRA at the time of its enactment. In response, the Department reasoned that the exemption was not automatic, that the relevant agency had to expressly identify the specific project as being exempt from SEQRA, and that the exemption from consistency was not coextensive with the SEQRA grandfathering provision. It looked to the “grandfathered projects lists,” established pursuant to SEQRA, in which each state agency provided “the director of the budget [with] a list of projects which such agency deem[ed] to have been approved” for the purposes of exempting those projects from SEQRA, even though the project was approved prior to SEQRA’s effective date (*see* L 1976, ch 228, § 5). Indian Point 2 was never on such a list. Thus, the Department concluded that it did not qualify for the first exemption. Regarding Indian Point 3, the Department noted that, in 1978, the New York Power Authority had included Indian Point 3 on such a list. Nevertheless, the Department concluded that this listing did not exempt the current re-licensing application as the 1978 listing was limited to construction of certain facilities and acquisition of certain real property and easements, none of which referred to the operation of Indian Point 3.

Supreme Court correctly determined that the Department of State’s interpretation of the first exemption is rational and should be upheld. The Department takes the position that the

phrase “identified as grandfathered” must have some meaning beyond simply referencing SEQRA, or the exemption would have just said “grandfathered under SEQRA.” The word “identified” is reasonably interpreted by the Department as implying an affirmative step, such as the placing on a list. Furthermore, the CMP exemption refers to SEQRA legislation that was enacted in 1976, and as noted by the Department, the 1976 SEQRA legislation specifically directed state agencies to create a list of projects deemed approved and not subject to SEQRA (*see* L 1976, ch 228, § 5), whereas the more general grandfathering provision that Entergy would have us apply was adopted in the original SEQRA legislation in 1975 (*see* L 1975, ch 612). Thus, the Department of State’s interpretation of the first exemption—unlike Entergy’s—gives effect to the plain language of the exemption, and we uphold the Department’s conclusion that the first exemption is inapplicable to Indian Point.

The second exemption applies to “those projects for which a final Environmental Impact Statement has been prepared prior to the effective date of the Department of State Part 600 regulations,” with a reference to part 600 and section 600.3 (d). The Department determined that this exemption must be understood as exempting projects for which a SEQRA environmental impact statement had been prepared, and projects which preexisted, but would have otherwise been subject to, the part 600 regulations on their effective date. Context is important when considering this exemption. The part 600 regulations referenced in the bracketed language of the second exemption relate only to state agencies’ consistency review of their own actions and apply only to actions undertaken by state agencies. Thus, because the licensing of Indian Point did not involve a state agency reviewing its own actions, the Department of State rationally concluded that this exemption does not apply.

Additionally, the Department reasoned that the second CMP exemption directly references, and must be read in the context of 19 NYCRR 600.3 (d), which expressly references final environmental impact statements prepared pursuant to SEQRA. The Department explains that when it created the exemption, it was solving a transition problem. State actions are subject to review for consistency with the CMP, but that review—known as “state consistency review”—is conducted not by the Department of State but by the state agency proposing

to take the action, in accordance with regulations promulgated by the Department. The exemption ensured that projects on which *state agencies* had invested time, effort, and resources in the preparation of a state environmental impact statement would not thereafter be required to undergo a consistency review. Stated differently, it exempted from consistency review only projects that had been subject to review under SEQRA but had not been subject to review for consistency with the State's coastal policies because the part 600 regulations had not taken effect. There is no exemption for projects subject to federal environmental impact statements. Indeed, the plain language of the exemption implies that the reason for the second exemption was that the part 600 regulations were not yet available for use.

In light of this language, it was rational for the Department of State to reject Entergy's argument that final environmental impact statements pursuant to the National Environmental Policy Act (NEPA) would satisfy this exemption, and that statements prepared under SEQRA are not required. In this appeal, Entergy, citing 6 NYCRR part 617, points out that SEQRA permits the use of final environmental impact statements prepared under NEPA. However, the Department of State rationally concluded that a federal environmental impact statement issued under NEPA before 1976 is not contemplated by the second exemption because the purpose of the exemption was to ensure that projects on which state agencies had invested time, effort, and resources in the preparation of a state environmental impact statement would not thereafter be required to undergo a consistency review.⁸

The Appellate Division rejected as irrational the Department of State's position that the final environmental impact statements must have been prepared pursuant to SEQRA. The Court was persuaded by Entergy's argument that SEQRA permits the use of final environmental impact statements prepared under NEPA and that there is no indication that the final environmental impact statements prepared for Indian Point 2 and 3 would not have complied with SEQRA. But the fact that SEQRA permits the use of a statement prepared

8. It is also worth noting that a federal environmental impact statement does not necessarily or automatically satisfy SEQRA, as the regulation obviates the need for a SEQRA environmental impact statement only insofar as a federal environmental impact statement "is sufficient to make findings" under the SEQRA regulations (6 NYCRR 617.15 [a]).

under NEPA misses the point. The Department's interpretation is rational given the references to the part 600 regulations in the bracketed language of the second exemption and the explained purpose of the exemption; those regulations relate only to state agencies' review of their own actions and apply only to actions undertaken by state agencies. In other words, it is the context of part 600, and not the definition of an environmental impact statement in part 617, that matters. When considered in context, the language of the exemption is tied to the Department's intent in drafting the exemption.

Entergy also argues that, if the second exemption is interpreted as the Department of State contends, then the exemption never applied to anything, and is essentially a null set. However, the exemption did apply to something, but it only applied to projects by state agencies that were in progress as of the effective date of the CMP regulations and that, without the exemption, would have been subject to CMP review.⁹

Finally, aside from Department of State's interpretation of the specific language of the exemptions, it is plain that these narrow exemptions for projects that had final environmental impact statements completed prior to the adoption of the CMP do not apply to re-licensing. Entergy's current application for a license to operate the Indian Point nuclear reactors for an additional 20 years is a new federal action, involving a new project, with different impacts and concerns than were present when the initial environmental impact statements were issued over 40 years ago. Thus, just as renewal of a license to operate a nuclear power plant triggers the requirement that the NRC produce a supplemental environmental impact statement (*see* 10 CFR 51.20), both the Coastal Zone Management Act and the CMP require consistency review for re-licensing of nuclear facilities.¹⁰ The Department's position that the Indian Point reactors are not forever exempt from consistency review under the CMP is reasonable.

9. The Department has informed this Court that in September 2016, it submitted to the National Oceanic and Atmospheric Administration's Office of Ocean and Coastal Resource Management a routine program change to the CMP that would eliminate certain provisions that the Department has concluded are obsolete, including the exemptions at issue in this appeal.

10. As noted by the Department, it has previously conducted federal consistency reviews of NRC license renewal applications for three other aged nuclear power plants located in New York—the James A. FitzPatrick power plant, the R.E. Ginna nuclear plant, and the Nine Mile Point Unit 1 plant.

In sum, the Department of State's interpretation of the exemptions in the Coastal Management Program, and its conclusion that Entergy's application to re-license the nuclear reactors at Indian Point is subject to consistency review are rational, and must be sustained. Accordingly, the Appellate Division order should be reversed, with costs, the petition denied, and judgment granted in favor of the Department of State appellants in accordance with this opinion.

Chief Judge DiFiore and Judges Pigott, Rivera, Stein, Fahey and Garcia concur.

Order reversed, with costs, petition denied, and judgment granted in favor of appellants in accordance with the opinion herein.

[66 NE3d 1076, 44 NYS3d 358]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent, v MATTHEW A. DAVIS, Respondent-Appellant.

Argued October 14, 2016; decided November 21, 2016

SUMMARY

CROSS APPEALS, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 27, 2015. The Appellate Division modified, on the law, a judgment of the Niagara County Court (Matthew J. Murphy III, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree (two counts), burglary in the first degree and robbery in the first degree. The modification consisted of reversing those parts of the judgment which had convicted defendant of murder in the second degree (two counts) and dismissing counts one and two of the indictment. The Appellate Division affirmed the judgment as modified.

People v Davis, 126 AD3d 1516, modified.

HEADNOTES

Crimes — Murder — Felony Murder — Sufficiently Direct Causation

1. Defendant's convictions for felony murder based upon the underlying predicate felonies of robbery and burglary were supported by legally sufficient evidence, as the jury could have reasonably concluded that defendant's conduct in assaulting the victim during a home invasion was a sufficiently direct cause of the victim's death from heart failure. Sufficiently direct causation is established by proof that defendant's actions were an actual contributory cause of the death and that the fatal result was reasonably foreseeable. So long as the necessary causative link is established, other causes, such as a victim's preexisting condition, will not relieve the defendant of responsibility for homicide. The Medical Examiner testified that the stress caused by the blunt force trauma injuries inflicted by defendant, "given [the victim's] underlying heart disease[,] led to his death." That testimony, along with the crime scene evidence that defendant's beating of the victim was severe and immediate in its consequences, was sufficient to prove that defendant's conduct set in motion and legally caused the death of the victim. Moreover, defendant violently attacked the victim, in his home, breaking his jaw and leaving him on the floor in a blood-spattered room where he was found dead. Such proof was sufficient to permit the jury to conclude that the victim's heart failure, induced by the extreme stress and trauma of such a violent assault, was a directly foreseeable consequence of defendant's conduct.

Crimes — Corroboration of Accomplice Testimony — Surveillance Video and Phone Records

2. Defendant's burglary and robbery convictions were supported by legally sufficient evidence, as the testimony of one of his alleged accomplices was

sufficiently corroborated as required by CPL 60.22 (1). Pursuant to CPL 60.22 (1), “[a] defendant may not be convicted of any offense upon the testimony of an accomplice unsupported by corroborative evidence tending to connect the defendant with the commission of such offense.” However, the corroborative evidence need not show the commission of the crime; it need not show that the defendant was connected with the commission of the crime. It is enough if it tends to connect the defendant with the commission of the crime in such a way as may reasonably satisfy the jury that the accomplice is telling the truth. Here, the surveillance video clips depicting a man who physically resembled defendant and the detailed phone records of all three accomplices so harmonized with the testifying accomplice’s narrative as to have a tendency to furnish the necessary connection between defendant and the crime.

Crimes — Evidence — Surveillance Video Clips

3. In defendant’s prosecution for felony murder based upon the underlying predicate felonies of robbery and burglary, the trial court did not err in denying defendant’s motion to preclude use of DVD video clips culled from the surveillance system on the victim’s apartment building showing defendant enter and exit the building and in the area of the victim’s apartment. The authenticating witness, who maintained the surveillance system, testified that during the computerized process of compressing and archiving the digital video files, certain images may overlap. However, he further testified that the process, which he personally conducted, did not conjure up persons that were not originally present in the camera shot. As such, the trial court did not abuse its discretion in concluding that the image-overlap issue went to weight, but not admissibility, of the video evidence.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Evidence §§ 993, 996, 1407–1410; AM JUR 2d, Homicide §§ 65, 234, 433.
CARMODY-WAIT 2d, Particular Types of Evidence § 194:69;
CARMODY-WAIT 2d, Testimony of Witnesses §§ 195:54, 195:57.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.4.
MCKINNEY’S, CPL 60.22 (1).
NY JUR 2d, Criminal Law: Procedure §§ 2216, 2217, 2322;
NY JUR 2d, Criminal Law: Substantive Principles and Offenses § 528.

ANNOTATION REFERENCE

See ALR Index under Accomplices; Corroboration; Felony-Murder Doctrine; Videotapes.

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Query: “felony murder” & cause /6 death /s foreseeable

POINTS OF COUNSEL

Michael J. Violante, District Attorney, Lockport (Laura J. Bittner, Thomas H. Brandt and Theodore A. Brenner of counsel), for appellant-respondent. I. The People proved beyond a reasonable doubt that defendant's assault on the obese victim caused the victim's death where the Chief Medical Examiner testified the stress caused by the victim's injuries given his underlying heart disease led to his death. (*Matter of Anthony M.*, 63 NY2d 270; *People v Stewart*, 40 NY2d 692; *People v Ingram*, 67 NY2d 897; *Cox v People*, 80 NY 500; *People v Matos*, 83 NY2d 509.) II. The People proved beyond a reasonable doubt that it was reasonably foreseeable that the obese victim might die after being beaten in the head by defendant during a home invasion. (*Matter of Anthony M.*, 63 NY2d 270; *People v Hernandez*, 82 NY2d 309; *People v Galle*, 77 NY2d 953.)

Patricia M. McGrath, Lockport, for respondent-appellant. I. The Appellate Division was correct in dismissing the felony murder counts of the indictment as the testimony of the Chief Medical Examiner underscored the absence of a clear link between the allegations of burglary and robbery and the decedent's death. (*People v Freycinet*, 11 NY3d 38; *People v Rawlins*, 10 NY3d 136; *People v Hernandez*, 82 NY2d 309; *People v Kibbe*, 35 NY2d 407.) II. The underlying conviction for first-degree burglary was not proved beyond a reasonable doubt. III. The underlying conviction for first-degree robbery should be dismissed for failure to provide legally sufficient proof of the crime charged. (*People v Moses*, 63 NY2d 299; *People v Berger*, 52 NY2d 214.) IV. The court below erred in allowing People's exhibit 38, a DVD showing clips of security footage from the night of August 21, 2011, to remain in evidence following the testimony of the security company representative that the clips did not fairly and accurately represent what occurred that evening. (*People v Roberts*, 66 AD3d 1135; *People v Byrnes*, 33 NY2d 343; *People v Lee*, 80 AD3d 1072.)

OPINION OF THE COURT

Chief Judge DiFiore.

In this appeal, we conclude that there was legally sufficient evidence to support the jury's findings that defendant's assault on the victim during a home invasion was an actual contributory cause of the victim's death and that the victim's death, induced by the stress of the violent event, was a reasonably

foreseeable result of defendant's conduct. We therefore modify the Appellate Division order and remit the case to the Appellate Division.

I.

The victim was found dead on the floor of his second-floor apartment, lying amongst the remnants of his broken coffee table, two days after he was assaulted during a robbery-burglary of his home. Photographs of the scene depicted blood spatter in the living room and blood smeared on the couch, wholly consistent with a violent assault, as well as the victim's body lying among the evidence of a violent encounter. Subsequent investigation revealed the involvement of defendant and his two accomplices, Teara Fatico and Chasity Wilson. Both Fatico and Wilson were indicted and pleaded guilty. Fatico, who pleaded guilty to attempted burglary, testified at trial as an accomplice as a matter of law. The evidence at trial was as follows.

On August 21, 2011, the victim sent Fatico a private Facebook message to which defendant, Fatico's then boyfriend, responded on her behalf. In that message, defendant, acting as Fatico, informed the victim that she and Wilson would be coming over to his apartment. The three planned for Fatico and Wilson to go to the victim's apartment and determine if it contained valuables and drugs to steal. That night, defendant drove Fatico and Wilson to the victim's apartment complex, which was equipped with a secure front door and an electronic surveillance system.¹ Video clips and still photographs from that surveillance system corroborate Fatico's testimony as to the comings and goings of all three accomplices in the building. Those video clips show that Fatico, Wilson, and the victim entered the building at 12:03 a.m. and walked upstairs toward the victim's second-floor apartment.

Inside the victim's apartment, Fatico, Wilson, and the victim smoked marijuana. As corroborated by cell phone records, Fatico maintained phone contact with defendant while she was with the victim. Fatico and Wilson left the victim's apartment to meet up with defendant. After the two accomplices told defendant that the victim had jars of marijuana in his apartment, the threesome moved to the next stage of the plan to rob

1. The external door of the victim's apartment building was unlocked. That door only allowed entry into a vestibule where a second, locked front door had to be accessed to gain entry into the building.

the victim. Fatico sent a text to the victim, informing him that she and Wilson would be returning to his apartment, which they did. Video clips show that the victim let Fatico and Wilson back into the building at 1:37 a.m.

Approximately 15 minutes later, Fatico left the victim's apartment, went downstairs, and let defendant, who is depicted on video wearing a white T-shirt draped over his head to shield his face from the surveillance cameras, into the building.² Surveillance footage also shows defendant, with the white T-shirt still draped over his head, on the second floor of the apartment building in the area of the victim's apartment. Defendant appears to be wearing gloves. Fatico, who had since exited the building with defendant's keys, waited in defendant's van. Minutes later, Wilson left the building and joined her. Defendant phoned Fatico approximately 13 minutes later, asking to be picked up. After exiting the victim's apartment, defendant is captured on surveillance footage, covering his face with a jacket and carrying a white garbage bag, in the second-floor hallway as well as leaving the building.

When defendant returned to the car, he was carrying the white garbage bag. The trio drove to Fatico's house where defendant revealed that the white bag contained jars of marijuana, which Fatico recognized as being from the victim's apartment. Defendant claimed that the victim told him to "just take it and go." The victim's body was discovered in the apartment two days later, when a family member, unable to make contact with the victim, notified the apartment building's maintenance supervisor.

Defendant was indicted for two counts of murder in the second degree (felony murder) (Penal Law § 125.25 [3]), and one count each of burglary in the first degree (Penal Law § 140.30 [2]) and robbery in the first degree (Penal Law § 160.15 [1]).

At trial, the Chief Medical Examiner of the Erie County Medical Examiner's Office, who did not herself prepare the autopsy report, testified with respect to the autopsy findings as to the victim's injuries and cause of death. The autopsy revealed that the victim's physical injuries included: lacera-

2. Surveillance footage shows defendant, clad in the white T-shirt, entering the vestibule of the building and unsuccessfully attempting to open the second, locked door, before using his cell phone to text Fatico and inform her that the door was locked, preventing his entry.

tions to the upper lip, right temple, and nose; fractures of the lower jaw and nasal skeleton; and hemorrhage in the right eye—all of which, according to the Medical Examiner, were consistent with blunt force injury. The victim also suffered from the natural diseases of obesity and hypertensive cardiovascular disease, or more specifically, enlargement of the heart. Based on the autopsy findings, the Medical Examiner testified that the cause of death was “Hypertensive Cardiovascular Disease,” with the contributing factor of obesity. The manner of death, however, was listed on the autopsy report as “[u]ndetermined.” The Medical Examiner further testified that “[s]tress of any kind can hasten a person’s demise by cardiovascular disease” and, while the victim’s physical injuries themselves did not cause his death, “the stress that they caused[,] . . . given [the victim’s] underlying heart disease[,] led to his death.” The Medical Examiner opined that “but for a violent struggle,” the victim would not have died at the time that he did. She explained that the manner of death was classified on the report as “[u]ndetermined” based on the inability to discern, on the facts known, between other manners of death, including natural and homicide. The Medical Examiner testified that it was her opinion that the evidence pointed towards a non-natural manner of death but that the ultimate conclusion was for the trier of fact.

The jury convicted defendant as charged. The Appellate Division unanimously modified, on the law, by reversing defendant’s convictions for murder in the second degree and dismissing those counts of the indictment (126 AD3d 1516 [4th Dept 2015]). The Court held “that the People failed to prove beyond a reasonable doubt that it was reasonably foreseeable that defendant’s actions, i.e., unlawfully entering the victim’s apartment and assaulting him, would cause the victim’s death” (*id.* at 1517). The Court opined that, despite the Medical Examiner’s testimony that defendant caused the victim’s death, she “did not testify that defendant’s culpable act was a direct cause of the death or that the fatal result was reasonably foreseeable,” and, thus, the evidence was legally insufficient (*id.*). The judgment was otherwise affirmed, with the Court determining that “[t]he accomplice’s testimony was amply corroborated by, inter alia, a surveillance video from a camera inside the victim’s apartment building and telephone records showing numerous cell phone calls between defendant and the accomplice shortly before and immediately after the crimes were

committed” (*id.* at 1517-1518). Finally, the Court concluded that defendant’s remaining contentions were without merit.

A Judge of this Court granted both the People and defendant leave to appeal (26 NY3d 966 [2015]).

II.

The primary issue in this appeal is whether legally sufficient evidence supported defendant’s felony murder convictions. We therefore view “the facts in a light most favorable to the People” to determine whether “‘there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt’” (*People v Danielson*, 9 NY3d 342, 349 [2007] [citations omitted]).

We agree with the People that the evidence at trial was sufficient to support defendant’s convictions.

A.

With respect to felony murder in the second degree, the People were required to prove that, in the course of committing robbery and burglary, defendant caused the death of the victim (*see* Penal Law § 125.25 [3]), i.e., that defendant’s conduct was “a sufficiently direct cause” of the victim’s death (*see People v Matos*, 83 NY2d 509, 511 [1994]). Sufficiently direct causation is established by proof of the following: (1) that defendant’s actions were “an actual contributory cause of [the] death, in the sense that they ‘forged a link in the chain of causes which actually brought about the death’” (*Matter of Anthony M.*, 63 NY2d 270, 280 [1984], quoting *People v Stewart*, 40 NY2d 692, 697 [1976]); and (2) that “the fatal result was reasonably foreseeable” (*People v Hernandez*, 82 NY2d 309, 314 [1993]). Here, the jury was properly instructed on the law as to the two-pronged standard to establish causation.

With respect to defendant’s actions being “an actual contributory cause of [the] death,” we have explained that so long as “the necessary causative link is established, other causes, such as a victim’s preexisting condition, will not relieve the defendant of responsibility for homicide” (*see Anthony M.*, 63 NY2d at 280). In *Matter of Anthony M.*, the defendant grabbed the handbag of an elderly victim with a history of heart-related illness, causing the victim to fall to the ground (*see id.* at 276). The victim was hospitalized with a fractured hip and other injuries; she died of a myocardial infarction approximately 10

days later (*see id.*). An expert medical witness opined that the cause of death was the stress of the mugging, in combination with the hip fracture and subsequent surgery, which “‘precipitated the myocardial infarction with subsequent cardiac arrest and ultimate death’” (*id.* at 277).

In the companion case *People v Cable*, two defendants robbed an 89-year-old victim and his wife in their Manhattan apartment (*see id.*). The victim died of a myocardial infarction two days later (*see id.* at 278). At trial, the experts disagreed as to when the myocardial infarction occurred, but one medical examiner opined that “the emotional and physical trauma of the burglary caused [the victim’s] heart attack” (*id.* at 279). With respect to both cases, we held that the jury was entitled to accept the expert testimony and find that causation had been established, noting that “the testimony of the medical expert[s] that there was a causal link [was not] so baseless or riddled with contradiction that it was unworthy of belief as a matter of law” (*see id.* at 281; *see People v Ingram*, 67 NY2d 897, 899 [1986] [concluding that medical expert’s testimony that the victim “died of (a) myocardial infarction precipitated by the stress of finding a burglar in his home . . . was sufficient under applicable legal standards”]).

[1] Here, the Medical Examiner’s testimony, in conjunction with the crime scene evidence, established a sufficient causal connection between defendant’s infliction of blunt force trauma injuries during the violent home invasion and the victim’s death. Specifically, the Medical Examiner testified that “[s]tress of any kind can hasten a person’s demise by cardiovascular disease” and that, here, the stress caused by the injuries inflicted by defendant, “given [the victim’s] underlying heart disease[,] led to his death.” That testimony, along with the crime scene evidence that defendant’s beating of the victim was severe and immediate in its consequences, “was sufficient to prove that defendant’s conduct ‘set in motion and legally caused the death’ of” the victim (*People v DaCosta*, 6 NY3d 181, 185 [2006], quoting *Matos*, 83 NY2d at 511). Thus, the jury could have reasonably concluded that defendant’s conduct was an actual contributory cause of the victim’s death.

With respect to foreseeability of the death, the People must prove “that the ultimate harm is something which should have been foreseen as being reasonably related to the acts of the accused” (*People v Kibbe*, 35 NY2d 407, 412 [1974], citing 1 Wharton, Criminal Law Procedure § 169). In this case, defend-

ant violently attacked the victim, in his home, breaking his jaw and leaving him on the floor in a blood-spattered room where he was found dead. From all of the evidence and the circumstances surrounding this violent encounter, the proof was sufficient to permit the jury to conclude that the victim's heart failure, induced by the extreme stress and trauma of such a violent assault, was a directly foreseeable consequence of defendant's conduct (*see Matos*, 83 NY2d at 511-512).

Defendant's argument to the contrary disregards the controlling law and blurs the distinction between the "cause of death" and "manner of death." As the Medical Examiner testified, the cause of death, based on the autopsy of the body, was "Hypertensive Cardiovascular Disease," but the manner of death, derived from the facts and circumstances surrounding the death, was listed on the report as "[u]ndetermined."³ The jury must consider the evidence of the facts and circumstances of the victim's death in determining causation and is not bound by an "undetermined" classification in a report that is not informed by the witnesses' trial testimony and corroborative evidence. We conclude that the trial evidence adduced as to the manner of death created a question of fact for the jury regarding foreseeability, particularly given the violence of the encounter. Viewed in a light most favorable to the People, the evidence on causation was sufficient to support defendant's felony murder convictions.

B.

[2] Defendant also argues that the evidence was insufficient to support his convictions for burglary in the first degree and robbery in the first degree because the only evidence to support those convictions was Fatico's accomplice testimony. Pursuant to CPL 60.22 (1), "[a] defendant may not be convicted of any offense upon the testimony of an accomplice unsupported by corroborative evidence tending to connect the defendant with the commission of such offense." However,

3. Notably, both the County Law and the New York City Charter provide medical examiners with the authority to conduct additional investigation or examination "to determine the means or manner of death" (County Law § 674 [3] [a]; *see* NY City Charter § 557 [f] [3]). To the extent such additional investigation was ever conducted by the Medical Examiner in this case, the facts derived therefrom would not supplant the admissible evidence at trial as to the facts and circumstances surrounding the victim's death. The jury, of course, must find the reasonable foreseeability of the death on that trial evidence alone.

“ [t]he corroborative evidence need not show the commission of the crime; it need not show that defendant was connected with the commission of the crime. It is enough if it tends to connect the defendant with the commission of the crime in such a way as may reasonably satisfy the jury that the accomplice is telling the truth’ ” (*People v Reome*, 15 NY3d 188, 191-192 [2010], quoting *People v Dixon*, 231 NY 111, 116 [1921]).

Here, the video clips depicting a man who physically resembled defendant and the detailed phone records of all three accomplices “ ‘so *harmonize[d]* with the accomplice’s narrative as to have a tendency to furnish the necessary connection between defendant and the crime’ ” (*id.* at 194, quoting *Dixon*, 231 NY at 116-117).

Defendant’s remaining contentions regarding the sufficiency of the evidence to support his convictions are without merit.

III.

[3] Finally, defendant argues that the trial court erred in denying his motion to preclude further use of the DVD of video clips culled from the building’s surveillance system at trial. The authenticating witness, who maintained the surveillance system, testified that during the computerized process of compressing and archiving the digital video files, certain images may overlap. However, he further testified that the process, which he personally conducted, does not conjure up persons that were not originally present in the camera shot. As such, the trial court did not abuse its discretion in concluding that the image-overlap issue went to weight, but not admissibility, of the video evidence (*see People v Patterson*, 93 NY2d 80, 84 [1999]).

Accordingly, the order of the Appellate Division should be modified in accordance with this opinion, the case remitted to that Court for consideration of the facts, and, as so modified, affirmed.

RIVERA, J. (dissenting in part). Defendant was convicted for the death of a 41-year-old, well-developed male who was six feet, one inch, weighed 270 pounds, and suffered from hypertensive cardiovascular disease, on the theory that the injuries suffered during a struggle with the defendant precipitated the victim’s death from heart disease. To establish defendant’s

guilt for second-degree felony murder, the People had to prove beyond a reasonable doubt that in the course of committing a robbery and burglary defendant caused the victim's death (Penal Law § 125.25 [3]). Causation for criminal liability requires both that the "culpable act [was] 'a sufficiently direct cause' of the death" and that the "fatal result was reasonably foreseeable" (*People v Hernandez*, 82 NY2d 309, 313-314 [1993], citing *Matter of Anthony M.*, 63 NY2d 270, 280 [1984]). I disagree with the majority that the People carried their burden to establish that the death was a foreseeable consequence of defendant's actions.

According to the trial evidence, during a struggle with defendant, the victim suffered a broken jaw and nose, as well as several lacerations to his face. Though there was a significant loss of blood, the victim did not suffer any internal trauma to his head, neck, or torso, and the medical examiner who conducted the autopsy characterized the injuries, either individually or combined, as "not significant enough to cause or contribute to death." The cause of death was identified as hypertensive cardiovascular disease, of which obesity was a contributing factor. The People submitted testimony from a medical examiner who did not conduct the autopsy, who opined that the injuries did not cause the victim's death but that the stress associated with the injuries "given [the victim's] underlying heart disease led to his death." In other words, the struggle-induced stress combined with the victim's obesity and preexisting heart condition led to the victim's death.

Prior cases in which the Court determined that a victim's death was foreseeable involved a defendant's direct causative action that put the victim at obvious risk of death—conduct not present in defendant's case. For example, in *Hernandez*, an armed defendant confronted a team of officers as he tried to escape a failed robbery (82 NY2d at 312). When he refused to surrender and moved towards the officers, gun drawn, they opened fire and one officer was fatally shot in the head (*id.*). Remarking on the codefendant's culpability for the officer's death, the Court stated that "it [was] simply implausible for defendants to claim that defendants could not have foreseen a bullet going astray when [the defendant] provoked a gun battle outside a residential building in an urban area" (*id.* at 319). In *People v Matos* (83 NY2d 509, 511 [1994]), a police officer suffered fatal injuries after being trapped in a rooftop air shaft while chasing the defendant as he tried to escape capture from

the scene of an attempted armed robbery. The Court held it was “foreseeable that someone might fall while in hot pursuit across urban roofs in the middle of the night” (*id.* at 512). Also, in a case ostensibly about superceding events, the Court concluded in *People v Kibbe* (35 NY2d 407, 413 [1974]) that defendants were liable for the victim’s death. As the Court detailed, the defendants had robbed the victim and threw him out of a car onto the shoulder of a rural highway, leaving him alone at night in near-zero degree weather with limited visibility conditions, without his glasses, and with his pants down, shoeless and his shirt rolled up around his chest (*id.* at 410-411). Shortly after abandoning him on the road, the victim was struck and killed by a truck (*id.*). The Court held the defendants were liable for these “directly foreseeable consequences of their actions” (*id.* at 413).

In these cases, viewing the facts in context, an obvious result of defendants’ criminal behavior was to place the victims at risk of death. In *Hernandez*, it was foreseeable that defendant’s act of confronting the officers with a loaded weapon would lead to a gunfight, and in no way surprising that someone might be killed in the cross fire. In *Matos*, it was foreseeable that the officer would die during a nighttime rooftop chase initiated by defendant’s attempted escape. Certainly, in *Kibbe*, the victim’s death was reasonably foreseeable when defendants abandoned him at night on a highway in a physically vulnerable state.*

Here, however, it is not foreseeable that a 41 year old who appears overweight but was sufficiently able to engage his attacker would die as a result of the struggle where the injuries from the assault were a broken jaw and nose, lacerations and bruises. The autopsy report states that these injuries themselves are not the type that would cause or contribute to death. Accordingly, without the required foreseeability, defendant’s felony murder conviction should not stand.

* The Court has previously addressed causation in the felony murder context of heart attacks in *Anthony M.* (63 NY2d at 281), but that case is not dispositive here. The Court in *Anthony M.* focused exclusively on whether the defendants’ actions were a contributing factor to the heart attack deaths such that the acts were a sufficiently direct cause of death (*id.*; see also *Hernandez*, 82 NY2d at 314). The Court did not address foreseeability. Regardless, *Anthony M.* and its companion case are distinguishable because they involved elderly victims, ages 83 and 89 respectively, who died of heart attacks after defendants’ assaults (*id.* at 276-277). The facts there are not comparable to a physical struggle wherein a 41-year-old victim suffers a broken jaw and nose, and dies of heart disease.

For the reasons I have discussed, and because I agree that defendant's other claims are without merit, I would affirm the Appellate Division order in its entirety.

Judges PIGOTT, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Judge RIVERA dissents in part in an opinion.

Order modified in accordance with the opinion herein, case remitted to the Appellate Division, Fourth Department, for consideration of the facts and, as so modified, affirmed.

[66 NE3d 1070, 44 NYS3d 352]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
HARVERT STEPHENS, Also Known as HAVERT STEPHENS,
Appellant.

Argued October 14, 2016; decided November 21, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered May 8, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Onondaga County (John J. Brunetti, J.), which had convicted defendant, after a nonjury trial, of criminal possession of a controlled substance in the third degree, criminal possession of a controlled substance in the fifth degree and sound reproduction in violation of Syracuse Noise Control Ordinance (Revised General Ordinances of City of Syracuse) § 40-16 (b).

People v Stephens, 128 AD3d 1497, affirmed.

HEADNOTE

Constitutional Law — Validity of Ordinance — Noise Control Ordinance Not Unconstitutionally Vague

Syracuse Noise Control Ordinance (Revised General Ordinances of City of Syracuse) § 40-16 (b), which prohibits the creation of “unnecessary noise” emanating beyond 50 feet from a motor vehicle operated on a public highway, does not offend the constitutional void-for-vagueness doctrine of due process. The ordinance defines “unnecessary noise” based on an objective standard—specifically, “a reasonable person of normal sensibilities” (Syracuse Noise Control Ordinance § 40-3 [u]). Additionally, section 40-16 (b) is tailored to a specific context—limiting the prohibition to creating “unnecessary noise” by playing a radio or similar device that can be heard at least 50 feet away when being operated in a motor vehicle on a public highway. What is usual noise in the operation of a car radio or other sound production device has become common knowledge and any ordinary motorist should have no difficulty in ascertaining whether the noise in question violates the applicable standard. Accordingly, section 40-16 (b) is sufficiently definite to put a person on notice that playing music which can be heard over 50 feet from such person’s car on a public road, in a manner that would annoy or disturb a reasonable person of normal sensibilities, is forbidden conduct, and the objective standard affords police sufficiently clear standards for enforcement.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Municipal Corporations, Counties, and Other
Political Subdivisions §§ 308, 309, 407.

NY JUR 2d, Constitutional Law §§ 86, 242; NY JUR 2d, Counties, Towns, and Municipal Corporations §§ 352, 353.

ANNOTATION REFERENCE

See ALR Index under Certainty and Definiteness; Municipal Corporations; Noise.

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Query: noise /4 ordinance & vague! /s constitution!

POINTS OF COUNSEL

Hiscock Legal Aid Society, Syracuse (*Kristen McDermott* of counsel), for appellant. I. The Syracuse Noise Control Ordinance is unconstitutionally void for vagueness, as it is drafted so broadly that it fails to give citizens fair notice of what conduct is prohibited, and allows arbitrary enforcement by police. (*People v New York Trap Rock Corp.*, 57 NY2d 371; *People ex rel. Johnson v New York State Div. of Parole*, 299 AD2d 832; *People v Stuart*, 100 NY2d 412; *Connally v General Constr. Co.*, 269 US 385; *People v Firth*, 3 NY2d 472; *People v Cruz*, 48 NY2d 419; *United States v Petrillo*, 332 US 1; *People v Illardo*, 48 NY2d 408; *People v Nelson*, 69 NY2d 302; *People v Bright*, 71 NY2d 376.) II. As Harvert Stephens' car was stopped for violating an unconstitutional ordinance, suppression of all evidence that flowed from the stop is required and the lower court erred by denying suppression based on the federal good faith exception to the exclusionary rule. (*People v De Bour*, 40 NY2d 210; *Michigan v DeFillippo*, 443 US 31; *People v Pantusco*, 107 AD2d 854; *People v Concepcion*, 17 NY3d 192; *People v LaFontaine*, 92 NY2d 470; *Illinois v Krull*, 480 US 340; *United States v Leon*, 468 US 897; *People v P.J. Video*, 68 NY2d 296; *People v Weaver*, 12 NY3d 433; *People v Harris*, 77 NY2d 434.) III. The court violated Harvert Stephens' right to be present at the reopened suppression hearing. (*Michigan v DeFillippo*, 443 US 31; *People v Spotford*, 85 NY2d 593; *People v Velasquez*, 1 NY3d 44; *People v Dokes*, 79 NY2d 656; *People v Rodriguez*, 85 NY2d 586; *People v Favor*, 82 NY2d 254; *People v Anderson*, 16 NY2d 282; *People v Morales*, 80 NY2d 450; *People v Parker*, 57 NY2d 136; *People v Epps*, 37 NY2d 343.)

William J. Fitzpatrick, District Attorney, Syracuse (James P. Maxwell of counsel), for respondent. I. Syracuse Noise Control Ordinance (Revised General Ordinances of City of Syracuse) § 40-16 (b) is constitutional. (*People v Gray*, 86 NY2d 10; *People v Belge*, 41 NY2d 60; *People v New York Trap Rock Corp.*, 57 NY2d 371; *Miller v Valley Forge Vil.*, 43 NY2d 626; *Ashton v Kentucky*, 384 US 195; *People v Bakolas*, 59 NY2d 51; *Toback v City of Long Beach*, 948 F Supp 167; *People v Golb*, 23 NY3d 455; *People v Dietze*, 75 NY2d 47; *People v On Sight Mobile Opticians*, 24 NY3d 1107.) II. Defendant's vehicle was lawfully stopped and searched. (*People v Gray*, 86 NY2d 10; *People ex rel. Johnson v New York State Div. of Parole*, 299 AD2d 832, 99 NY2d 508; *Michigan v DeFillippo*, 443 US 31; *People v Pantusco*, 107 AD2d 854; *Yellow Book of NY v Dimilia*, 188 Misc 2d 489; *People v Bradford*, 15 NY3d 329; *People v Conception*, 17 NY3d 192; *People v LaFontaine*, 92 NY2d 470.) III. The hearing court did not deny defendant's right to be present at the suppression hearing. (*People ex rel. Johnson v New York State Div. of Parole*, 299 AD2d 832; *People v Dokes*, 79 NY2d 656; *People v Anderson*, 16 NY2d 282; *People v Poleun*, 26 NY3d 973; *People v Whitehead*, 143 AD2d 1066; *People v Velasco*, 77 NY2d 469; *Snyder v Massachusetts*, 291 US 97; *People v Mullen*, 44 NY2d 1; *People v Rivera*, 94 NY2d 908.)

Robert P. Stamey, Corporation Counsel, Syracuse (John A. Sickinger of counsel), for City of Syracuse, amicus curiae. I. The Appellate Division correctly held that the Syracuse Noise Control Ordinance is not unconstitutionally vague. (*Ward v Rock Against Racism*, 491 US 781; *People v Stuart*, 100 NY2d 412; *People v New York Trap Rock Corp.*, 57 NY2d 371; *People v Bakolas*, 59 NY2d 51; *Deegan v City of Ithaca*, 444 F3d 135; *Toback v City of Long Beach*, 948 F Supp 167; *People v Lord*, 7 Misc 3d 78; *People v Frie*, 169 Misc 2d 407; *People v Hollstegge*, 129 Misc 2d 580; *People v Bakolas*, 59 NY2d 51.) II. The appellant has not preserved the issue for review before this Court; however, even if he had, the Syracuse Noise Control Ordinance does not violate the First Amendment right to free speech. (*Ward v Rock Against Racism*, 491 US 781; *International Action Ctr. v City of New York*, 587 F3d 521; *People v Barton*, 8 NY3d 70; *Costello v City of Burlington*, 632 F3d 41; *Housing Works, Inc. v Kerik*, 283 F3d 471; *Deegan v City of Ithaca*, 444 F3d 135; *Hill v Colorado*, 530 US 703; *Mastrovincenzo v City of New York*, 435 F3d 78.)

OPINION OF THE COURT

GARCIA, J.

This case calls upon us to determine the constitutionality of Syracuse Noise Control Ordinance (Revised General Ordinances of City of Syracuse) § 40-16 (b) (Sound reproduction) (hereinafter Syracuse Noise Ordinance), which prohibits the creation of “unnecessary noise” emanating beyond 50 feet from a motor vehicle operated on a public highway. Specifically, we are asked whether this section is unconstitutional pursuant to our decision in *People v New York Trap Rock Corp.* (57 NY2d 371 [1982]). For the reasons stated below, we conclude that the statute does not “offend the constitutional void-for-vagueness doctrine of due process” (*id.* at 374).

Defendant was charged with criminal possession of a controlled substance in the third degree, criminal possession of a controlled substance in the fifth degree and with sound reproduction in violation of Syracuse City Ordinance § 40-16 (b). Defendant’s vehicle was stopped by police officers who believed his car stereo was operating at a volume that could be heard more than 50 feet away in violation of section 40-16 (b). During that stop, the arresting officers discovered defendant was in possession of crack cocaine, some of which was in plain view.

Syracuse Noise Ordinance § 40-4 sets forth the “[g]eneral prohibition” against “unnecessary noise,” stating: “No person shall make, continue or cause or permit to be made any unnecessary noise.” “Unnecessary noise” is defined in section 40-3 (u) as “any excessive or unusually loud sound or any sound which either annoys, disturbs, injures or endangers the comfort, repose, health, peace or safety of a reasonable person of normal sensibilities, or which causes injury to animal life or damage to property or business” (emphasis added). This subdivision includes 11 standards “to be considered in determining whether unnecessary noise exists in a given situation” (*id.* § 40-3 [u]). The Syracuse Noise Ordinance also contains 14 sections listing acts that constitute prima facie evidence of a violation of the ordinance (*id.* § 40-4). Here, the indictment specifically charged, and defendant was convicted of, one of these 14 enumerated acts:

“No person shall operate, play or permit the operation or playing of any radio, television, phonograph, drum, musical instrument, sound amplifier or similar device which produces, reproduces or amplifies sound: . . .

“(b) In such a manner as to create unnecessary noise at fifty (50) feet from such device, when operated in or on a motor vehicle on a public highway” (*id.* § 40-16 [b]).

Defendant moved to suppress the crack cocaine discovered during the traffic stop. At the suppression hearing, two police officers testified that the music could be heard from at least 100 feet away from defendant’s vehicle. At the conclusion of the hearing, defendant moved to dismiss the count charging a violation of section 40-16 (b), arguing that the Syracuse Noise Ordinance was unconstitutional under the void-for-vagueness doctrine. He further argued that suppression of the drugs seized as a result of the stop was required.

Supreme Court denied both the dismissal and suppression motions. Although the court determined the Syracuse Noise Ordinance was arguably unconstitutional, Supreme Court concluded “that the Appellate Division should make the determination as to whether or not the ordinance passes constitutional muster.” Supreme Court further determined “[t]here was sufficient proof of probable cause to believe the defendant violated Section 40-16(b) of the Syracuse Noise Ordinance, which prohibits dissemination of ‘unnecessary noise’ beyond 50 feet of an automobile, because there was testimony on this point that the court has found credible.”

At the subsequent bench trial, which was conducted on stipulated proof, defendant was convicted as charged.

On appeal, the Appellate Division unanimously affirmed, holding that the Syracuse Noise Ordinance was constitutional (128 AD3d 1497 [4th Dept 2015]). The Appellate Division rejected defendant’s argument that the ordinance was unconstitutionally vague, reasoning that while a similar local noise ordinance was held to be void for vagueness in *Trap Rock*, the Syracuse Noise Ordinance at issue “defines ‘unnecessary noise’ with reference to an objective standard of reasonableness rather than a subjective standard, and thus it is not unconstitutionally vague on that ground” (*id.* at 1498, quoting Syracuse Noise Ordinance § 40-3 [u]). The Court further found that section 40-16 (b) was not unconstitutionally vague because it was “tailored to a specific context—the creation of ‘unnecessary noise’ beyond 50 feet of a motor vehicle on a public highway” (*id.* at 1498-1499). A Judge of this Court granted leave to appeal (26 NY3d 1011 [2015]), and we now affirm.

Defendant has challenged the constitutionality of the Syracuse Noise Ordinance both on its face and as applied.

However, when a “defendant makes an as-applied . . . challenge and the court repudiates it,” as we do here, “the facial validity of the statute is confirmed” because the court “necessarily concluded that there is at least one person—the defendant—to whom the statute may be applied constitutionally” (*People v Stuart*, 100 NY2d 412, 422-423 [2003]).

Municipal ordinances are afforded an “exceedingly strong presumption of constitutionality” (*Lighthouse Shores v Town of Islip*, 41 NY2d 7, 11 [1976]; see also *Brady v State of New York*, 80 NY2d 596, 602 [1992]) and should “be construed so as to avoid constitutional issues if such a construction is fairly possible” (*FGL & L Prop. Corp. v City of Rye*, 66 NY2d 111, 120 [1985]). We have further recognized that “noise regulation poses special problems of draftsmanship and enforcement,” as the “nature of sound makes resort to broadly stated definitions and prohibitions not only common but difficult to avoid” (*Trap Rock*, 57 NY2d at 379).

With these general principles in mind, we analyze this vagueness challenge using a two-part test (*Stuart*, 100 NY2d at 420; *People v Nelson*, 69 NY2d 302, 307 [1987]; *People v Smith*, 44 NY2d 613, 618 [1978]). First, we must determine “whether the statute in question is sufficiently definite to give a person of ordinary intelligence fair notice that his contemplated conduct is forbidden” (*Stuart*, 100 NY2d at 420 [internal quotation marks omitted], citing *Nelson*, 69 NY2d at 307; see also *Smith*, 44 NY2d at 618, quoting *United States v Harriss*, 347 US 612, 617 [1954]). Second, we must determine “whether the enactment provides officials with clear standards for enforcement” so as to avoid “resolution on an ad hoc and subjective basis, with the attendant dangers of arbitrary and discriminatory application” (*Stuart*, 100 NY2d at 420-421, quoting *Grayned v City of Rockford*, 408 US 104, 108-109 [1972]; *Nelson*, 69 NY2d at 307). Accordingly, a statute is “unconstitutionally vague under the Due Process Clauses of the Federal and State Constitutions [where] it fails to give fair notice to the ordinary citizen that the prohibited conduct is illegal, [and] it lacks minimal legislative guidelines, thereby permitting arbitrary enforcement” (*People v Bright*, 71 NY2d 376, 379 [1988]). On the other hand,

“[a] statute which employs terms having an accepted meaning long recognized in law and life cannot be said to be so vague and indefinite as to af-

ford the defendant insufficient notice of what is prohibited or inadequate guidelines for adjudication, even though there may be an element of degree in the definition as to which estimates might differ” (*People v Cruz*, 48 NY2d 419, 428 [1979] [internal quotation marks and citations omitted]).

Contrary to defendant’s claim, the Syracuse Noise Ordinance challenged here does not suffer from the same constitutional infirmities as the Poughkeepsie Noise Ordinance (Unnecessary Noise Control Ordinance of Town of Poughkeepsie [adopted July 13, 1977]) challenged in *Trap Rock*. The Poughkeepsie Noise Ordinance contained a general provision prohibiting a person from making “any unnecessary noise,” defined as “any excessive or unusually loud sound or any sound which either annoys, disturbs, injures or endangers the comfort, repose, health, peace or safety of a person” (*Trap Rock*, 57 NY2d at 375 [emphasis added]). That statute listed 10 non-exclusive standards to be considered in determining whether “unnecessary noise” existed in a given situation (*id.* at 375-376). The Poughkeepsie Noise Ordinance then listed 17 acts which would violate the law if they created unnecessary noise; notably, however, violation of any one of those 17 subdivisions would also constitute a violation of the general provision against making “any unnecessary noise” (*id.* at 376). The defendant in *Trap Rock* was convicted of violating one of the specific subdivisions as well as the general provision based upon the same conduct.

In *Trap Rock*, we turned first to the specific subdivision defendant had been found to violate—the making of unnecessary noise within 300 feet of the boundary line of a residential district—and noted that it was unreasonably expanded by the phrase “[w]ithout limiting the above language” (*id.* at 380). In effect, the *Trap Rock* defendant was convicted of violating that specific provision even though the commercial loading activity at issue took place 2,400 feet from any residential boundary (*id.*). We found “still more egregious” the fact that the identical conduct also resulted in conviction under the blanket provision against making “any unnecessary noise”—a section “permeated with vagueness” (*id.*). We found that the subjective definition of “unnecessary noise” in that provision—“any excessive or unusually loud sound or any sound which . . . annoys . . . a person”—could result in convictions based solely on the malice or animosity of a cantankerous neighbor (*id.*). The 10 specific standards that were articulated did not save the statute, as

the standards were themselves vague and non-exclusive (*id.* at 381). As a result, we held that the pervasive nature of the statute's catchall effect made the ordinance a ready candidate for ad hoc enforcement and that, accordingly, the Poughkeepsie Noise Ordinance was unconstitutional (*id.*).

The crucial difference here is that the Syracuse Noise Ordinance defines "unnecessary noise" based on an objective standard—specifically, "a reasonable person of normal sensibilities" (Syracuse Noise Ordinance § 40-3 [u]). As we concluded in *People v Bakolas* (59 NY2d 51 [1983]), decided less than a year after *Trap Rock*, the "term 'unreasonable noise' is not incapable of definition. Rather, it describes a noise of a type or volume that a reasonable person, under the circumstances, would not tolerate" (*id.* at 53). The *Bakolas* Court distinguished *Trap Rock*, finding that an objective standard prevents arbitrary and discriminatory "enforcement according to the 'malice or animosity of a cantankerous neighbor' or the 'boiling point of a particular person' " (*Bakolas*, 59 NY2d at 54, quoting *Trap Rock*, 57 NY2d at 380).

Additionally, unlike the Poughkeepsie Noise Ordinance, Syracuse Noise Ordinance § 40-16 (b) is "tailored to a specific context"—limiting the prohibition to creating "unnecessary noise" by playing a radio or similar device that can be heard at least 50 feet away when being operated in a motor vehicle on a public highway. We recognized in *Trap Rock* that "antinoise cases" have upheld noise regulations that apply within limited contexts and convey "an accepted meaning" (*Cruz*, 48 NY2d at 428) to such otherwise imprecise words as "loud" or "excessive" (*Trap Rock*, 57 NY2d at 379, quoting *People v Byron*, 17 NY2d 64, 67 [1966]). For example, in *People v Byron*, we upheld a motor vehicle statute that mandated that "[e]very motor vehicle, operated or driven upon the highways of the state, shall at all times be equipped with an adequate muffler . . . to prevent any excessive or unusual noise" (*id.* at 66). This Court concluded "[w]hat is usual noise in the operation of a car has become common knowledge and anything in excess of that is excessive or unusual and any ordinary motorist should have no difficulty in ascertaining whether or not excessive or unusual noise accompanied the operation of his vehicle" (*id.* at 67). We agree with the Appellate Division's conclusion below that "[w]hat is usual noise in the operation of a car [radio or other sound production device] has become common knowledge . . . and any ordinary motorist should have no difficulty in

ascertaining' whether the noise in question violates the applicable standard" (128 AD3d at 1499, quoting *Byron*, 17 NY2d at 67).

Accordingly, Syracuse Noise Ordinance § 40-16 (b) is sufficiently definite to put a person on notice that playing music which can be heard over 50 feet from such person's car on a public road, in a manner that would annoy or disturb "a reasonable person of normal sensibilities" is forbidden conduct and the objective standard affords police sufficiently "clear standards for enforcement" (*Stuart*, 100 NY2d at 420). Moreover, unlike the Poughkeepsie Noise Ordinance at issue in *Trap Rock*, section 40-16 does not contain any "without limiting the above language" clause that would make it possible to convict defendant of violating section 40-16 (b) for creating unnecessary noise that could be heard at distances less than 50 feet from his vehicle.

For the reasons set forth above, we hold that the Syracuse Noise Ordinance is constitutional.* We have considered defendant's remaining contentions on appeal and conclude they are without merit. Accordingly, the Appellate Division order should be affirmed.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and FAHEY concur.

Order affirmed.

* Our conclusion is in line with federal courts which have considered the Syracuse Noise Ordinance and other similar laws that incorporate an objective standard (see *Marcavage v Syracuse Police Dept.*, 515 Fed Appx 14 [2d Cir 2013]; *Howard Opera House Assoc. v Urban Outfitters, Inc.*, 322 F3d 125, 128 [2d Cir 2003]).

[68 NE3d 1, 45 NYS3d 276]

RASHEED AL RUSHAID et al., Appellants, v PICTET & CIE et al.,
Respondents.

Argued October 19, 2016; decided November 22, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 23, 2015. The Appellate Division affirmed an order of the Supreme Court, New York County (Saliann Scarpulla, J.; op 2014 NY Slip Op 32286[U] [2014]), which had (1) granted defendants' motion to dismiss the amended complaint for lack of personal jurisdiction; (2) dismissed the action in its entirety; and (3) denied plaintiffs' request for jurisdictional discovery pursuant to CPLR 3211 (d).

Rushaid v Pictet & Cie, 127 AD3d 610, reversed.

HEADNOTES

Courts — Jurisdiction — Long-Arm Jurisdiction — Transaction of Business in New York — Use of Correspondent Bank Account in New York

1. In plaintiffs' action alleging that nondomiciliary bank defendants effected wire transfers of bribe money from construction project vendors to a New York correspondent bank account as part of a money laundering scheme that ultimately put the money in the hands of several of plaintiffs' employees, defendants' alleged correspondent banking activity was sufficient to establish a purposeful course of dealing, constituting the transaction of business in New York under CPLR 302 (a) (1). Jurisdiction under CPLR 302 (a) (1) is proper even though the defendant never enters New York, so long as the defendant's activities in the state were purposeful and there is a substantial relationship between the transaction and the claim asserted. Purposeful activities are those with which a defendant, through volitional acts, avails itself of the privilege of conducting activities within the forum state, thus invoking the benefits and protections of its laws. The amended complaint asserted that the New York correspondent account was used to wire bribes to defendants, an essential step in the money-laundering scheme. The fact that defendants chose New York, when other jurisdictions were available, made the New York connection volitional and not coincidental. The vendors' choice to deposit money in New York was part of defendants' design, and not a unilateral decision. Defendants were therefore actively engaged in a cycle of banking transactions wherein money went from the vendors to New York to defendants, and then to the employees. Thus, the correspondent account was crucial to a course of repeated banking activity.

Courts — Jurisdiction — Long-Arm Jurisdiction — Substantial Relationship between Business Transaction and Claim — Use of Correspondent Bank Account in New York

2. In plaintiffs' action alleging that Geneva, Switzerland-based bank defendants effected wire transfers of bribe money from construction project

vendors to a New York correspondent bank account as part of a money laundering scheme that ultimately put the money in the hands of several of plaintiffs' employees, defendants' transactions within New York were substantially related to plaintiffs' claims within the meaning of CPLR 302 (a) (1). Jurisdiction under CPLR 302 (a) (1) is proper even though the defendant never enters New York, so long as the defendant's activities in the state were purposeful and there is a substantial relationship between the transaction and the claim asserted. Thus, there must be an articulable nexus or substantial relationship between the business transaction and the claim asserted. Plaintiffs' claims depended on the assertions that defendants established the banking structure in New York and Geneva through which they orchestrated the money laundering part of the bribery/kickback scheme. Defendants served as the employees' bankers, without whom the employees could not launder and conceal the kickbacks and bribes. The complaint further alleged that defendants effected the transfers of money to the New York correspondent bank as part of the scheme that put the bribes/kickbacks in the hands of the employees. Such allegations were enough to show the minimum level of relatedness to the New York transactions.

Courts — Jurisdiction — Long-Arm Jurisdiction — Due Process — Use of Correspondent Bank Account in New York

3. In plaintiffs' action alleging that nondomiciliary bank defendants effected wire transfers of bribe money from construction project vendors to a New York correspondent bank account as part of a money laundering scheme that ultimately put the money in the hands of several of plaintiffs' employees, defendants had sufficient minimum contacts with New York such that exercise of personal jurisdiction over defendants pursuant to CPLR 302 (a) (1) complied with federal constitutional due process requirements. A nondomiciliary must have certain minimum contacts with the forum such that the maintenance of the suit does not offend traditional notions of fair play and substantial justice. The "minimum contacts" test has come to rest on whether a defendant's conduct and connection with the forum state are such that it should reasonably anticipate being haled into court there. Such minimum contacts exist where a defendant purposefully avails itself of the privilege of conducting activities within the forum state. Here, defendants' maintenance and repeated use of a New York correspondent bank account to achieve the wrong complained of satisfied the minimum contacts component of the due process inquiry. Moreover, while the parties were foreign nationals, the burden of litigation in New York was reduced by modern communication and transportation. Furthermore, the complaint implicated the fraudulent use of New York's banking system, an issue of great importance to the State, and New York courts provided plaintiffs a greater possibility of relief.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Computers and the Internet §§ 172–178; AM JUR 2d, Corporations § 1865; AM JUR 2d, Foreign Corporations §§ 270, 283–284, 294, 296, 301, 327; AM JUR 2d, Money §§ 59–63, AM JUR 2d, Process §§ 148, 152, 157–162.

CARMODY-WAIT 2d, Jurisdiction in Personam and in Rem §§ 25:21–25:23, 25:27, 25:33–25:38, 25:44–25:48;

CARMODY-WAIT 2d, Actions and Proceedings by and Against Corporations, Their Officers, Directors, and Shareholders §§ 121:110–121:113.

McKINNEY'S, CPLR 302 (a) (1).

NY JUR 2d, Courts and Judges §§ 597–600, 621–622, 635, 643, 645, 651–652; NY JUR 2d, Business Relationships §§ 1159–1162.

SIEGEL, NY PRAC §§ 58, 75, 82–88, 94, 104.

ANNOTATION REFERENCE

Construction and application, as to isolated acts or transactions, of state statutes or rules of court predicated in personam jurisdiction over nonresidents or foreign corporations upon the doing of an act, or upon doing or transacting business or “any” business, within the state. 27 ALR3d 397.

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POINTS OF COUNSEL

Kramer Levin Naftalis & Frankel LLP, New York City (Gary P. Naftalis, Alan R. Friedman, Michael S. Oberman and Andrew J. Estes of counsel), for appellants. The Appellate Division undercut the scope of *Licci v Lebanese Can. Bank*, SAL (20 NY3d 327 [2012]) when concluding that New York lacks personal jurisdiction. (*Amigo Foods Corp. v Marine Midland Bank-N.Y.*, 39 NY2d 391; *Licci v American Exp. Bank Ltd.*, 704 F Supp 2d 403; *Sigmoil Resources v Pan Ocean Oil Corp. [Nigeria]*, 234 AD2d 103.)

Debevoise & Plimpton LLP, New York City (Maeve L. O'Connor, Amanda M. Bartlett and Cindy C. Unegbu of counsel), for respondents. I. The First Department correctly affirmed dismissal of the complaint for lack of personal jurisdiction. (*Ehrenfeld v Bin Mahfouz*, 9 NY3d 501; *McGowan v Smith*, 52 NY2d 268; *Licci v Lebanese Can. Bank*, SAL, 20 NY3d 327; *Burger King Corp. v Rudzewicz*, 471 US 462; *Amigo Foods Corp. v Marine Midland Bank-N.Y.*, 39 NY2d 391; *Bluewaters Communications Holdings, LLC v Ecclestone*, 122 AD3d 426; *Polansky v Gelrod*, 20 AD3d 663; *Kreutter v McFadden Oil Corp.*, 71 NY2d 460; *Ge Dandong v Pinnacle Performance Ltd.*, 966 F Supp 2d 374; *Mende v Milestone Tech., Inc.*, 269 F Supp

2d 246.) II. In the alternative, dismissal should be affirmed under the doctrine of forum non conveniens because this case is wholly unconnected to New York. (*Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129; *Sinochem Int'l. Co. v Malaysia Int'l. Shipping Corp.*, 549 US 422; *Marx v Akers*, 88 NY2d 189; *Islamic Republic of Iran v Pahlavi*, 62 NY2d 474; *Erausquin v Notz, Stucki Mgt. [Bermuda] Ltd.*, 806 F Supp 2d 712; *Crosstown Songs U.K. Ltd. v Spirit Music Group, Inc.*, 513 F Supp 2d 13; *Do Rosário Veiga v World Meteorological Org.*, 486 F Supp 2d 297.) III. Jurisdictional discovery is not warranted and would be pointless because this case is subject to forum non conveniens dismissal. (*Sinochem Int'l. Co. v Malaysia Int'l. Shipping Corp.*, 549 US 422; *Turedi v Coca Cola Co.*, 460 F Supp 2d 507; *Schumacher v Sea Craft Indus.*, 101 AD2d 707.) IV. Even if jurisdiction exists, the order should be affirmed on the alternate ground that the complaint fails to state a claim upon which relief may be granted. (*Marx v Akers*, 88 NY2d 189; *Global Mins. & Metals Corp. v Holme*, 35 AD3d 93; *Palmetto Partners, L.P. v AJW Qualified Partners, LLC*, 83 AD3d 804; *Kaufman v Cohen*, 307 AD2d 113; *Kirschner v Bennett*, 648 F Supp 2d 525; *Bullmore v Ernst & Young Cayman Is.*, 45 AD3d 461; *Brasseur v Speranza*, 21 AD3d 297; *Cunningham v Hagedorn*, 72 AD2d 702; *Abrams v Donati*, 66 NY2d 951; *MatlinPatterson ATA Holdings LLC v Federal Express Corp.*, 87 AD3d 836.)

OPINION OF THE COURT

RIVERA, J.

Plaintiffs challenge the dismissal of their claims for lack of personal jurisdiction, alleging defendants' business activities bring them within the reach of New York's long-arm statute. We conclude that defendants' intentional and repeated use of New York correspondent bank accounts to launder their customers' illegally obtained funds constitutes purposeful transaction of business substantially related to plaintiffs' claims, thus conferring personal jurisdiction within the meaning of CPLR 302 (a) (1). Accordingly, the Appellate Division order should be reversed and the matter remitted to Supreme Court for consideration of defendants' alternative grounds for dismissal of the amended complaint.

I. Background

Plaintiff Rasheed Al Rushaid is a Saudi resident and co-owner of plaintiff Al Rushaid Petroleum Investment Corpora-

tion (ARPIC), a company organized under the laws of Saudi Arabia, and the owner of another Saudi company, plaintiff Al Rushaid Parker Drilling, Ltd. (ARPD). Defendants are Pictet & Cie (Pictet), a private bank with its principal place of business in Geneva, Switzerland, Vice-President and Client Relationship Manager Pierre-Alain Chambaz and Pictet's eight general partners.¹ Plaintiffs sued defendants in New York state court for concealing ill-gotten money from a scheme orchestrated by three of plaintiffs' employees.

As alleged in the first amended complaint, ARPD contracted to build six oil rigs for Saudi Arabia's national oil company. Unbeknownst to the plaintiffs, three ARPD employees responsible for procuring services and vendors for the project breached their fiduciary responsibilities by accepting bribes and kickbacks from certain vendors, in exchange for purchasing products at inflated prices and ignoring deficiencies in the vendors' services.²

Defendants played a central role in the employees' scheme by knowingly laundering and concealing the bribes and kickbacks for approximately four years. According to the amended complaint, "the corrupted employees needed the help of a willing banker, a role fulfilled by Defendants Pictet and Chambaz." Specifically, Chambaz set up an offshore "bogus" company to receive the bribes—TSJ Engineering Consulting Co. Ltd. (TSJ) in the British Virgin Islands. He opened and actively managed Geneva-based Pictet bank accounts for TSJ and the individual employees. The bank orchestrated the laundering of funds from the vendors who wired bribes in favor of "Pictet and Co. Bankers Geneva" to Pictet's New York correspondent bank account.³ From there, the funds were credited by Pictet to TSJ's Geneva-based account, and the money was

1. The general partner defendants are Philippe Bertherat, Rémy Antoine Best, Renaud Fernand de Planta, Jacques Joseph de Saussure, Bertrand François Lambert Demole, Jean-Francois Demole, Marc Philippe Pictet, and Nicolas Lucien Pictet.

2. Plaintiffs alleged that once they discovered the bribes they commenced an action in Switzerland, through which they successfully froze TSJ Engineering Consulting Co. Ltd.'s and the employees' Pictet accounts. Also, the employees were indicted in Switzerland for money laundering.

3. The complaint alleges that Chambaz and Pictet knew the money was "the result of some breach of the corrupted employees' duties," "provide[d] . . . substantial help," "hid" millions of dollars in kickbacks, set up "a 'bogus' company to receive the bribes," "also set up and managed Pictet bank accounts that were used by the corrupted employees to launder and conceal the bribe money," knew that TSJ would be used to launder money, and "helped

(n. cont'd)

later divided up and transferred to the employees' individual accounts.

Plaintiffs alleged that "Pictet and Chambaz valued their cozy business relationship with the corrupted employees more than they valued proper banking procedures, or ensuring that it complied with its own financial responsibilities." As described in the amended complaint, Chambaz was no innocent banker. He was friends with the employees, and one of them—a friend for over 30 years—emailed Chambaz about TSJ's name and requested that Chambaz "add the co. to make it appear to be okay." Chambaz also knew the employees' annual income and that they worked full time as officers or directors for ARPD. Thus, he had information that the money being deposited vastly exceeded the employees' pay and was the result of some breach of their duties, but he continued to help the employees conceal the scheme.

Plaintiffs asserted that defendants aided and abetted the employees' breach of their fiduciary duty and were part of a civil conspiracy with the employees. Plaintiffs sought over \$350 million in damages for harm incurred as a result of the bribery and kickback scheme and the consequent financial devastation of their business.

Defendants moved to dismiss the amended complaint under CPLR 3211 (a) for lack of personal jurisdiction and failure to state a claim, and pursuant to CPLR 327 on the basis of forum non conveniens. Defendants also moved to dismiss as against Al Rushaid and ARPIC for lack of standing under CPLR 3211 (a) (2).

In opposition to the motion, plaintiffs submitted copies of TSJ's articles of association and other corporate documents listing the employees as owners and sole shareholders, and applications for TSJ's and the employees' Pictet bank accounts. Plaintiffs also submitted copies of documents tracing wire transfers from the vendors to Pictet's five New York correspondent accounts, which the complaint alleged were credited to TSJ's and the employees' Pictet Geneva accounts. The documents provide a record of invoices directing payment to Pictet's Citibank account in New York, "credit advice" documents

the corrupted employees open bank accounts" that would be used to receive the laundered money, all in violation of their own fiduciary duties. Thus, contrary to the dissent's assertion (dissenting op at 342), the plaintiffs allege that Pictet and Chambaz designed and orchestrated the scheme.

reflecting payment to that same account, and routing documents tracing transfers again through that same New York account. Plaintiffs also submitted similar documents evidencing receipts from and transfers to various other Pictet accounts in New York including HSBC Bank USA, N.A., Deutsche Bank Trust Company, America, and JPMorgan Chase Bank N.A. In sum, the documents represented numerous transfers, including at least 12 of which were to/from Citibank, New York and totaled over \$4 million.

Supreme Court granted defendants' motion to dismiss for lack of personal jurisdiction, concluding that defendants' use of the correspondent accounts was passive not purposeful (2014 NY Slip Op 32286[U] [Sup Ct, NY County 2014]). The court also denied jurisdictional discovery based on a statement by plaintiffs' counsel at oral argument that the request was their fallback argument. In light of its decision, the court did not address defendants' alternative grounds for dismissal.

Plaintiffs appealed, arguing that personal jurisdiction existed under the reasoning of *Licci v Lebanese Can. Bank, SAL* (20 NY3d 327 [2012]). The Appellate Division affirmed, and distinguished *Licci* as requiring deliberate acts which were absent in plaintiffs' case because the defendants merely carried out their clients' instructions and did not "purposefully avail[] [themselves] of the privilege of conducting activities in New York" (127 AD3d 610, 611 [1st Dept 2015]). We granted leave to appeal (26 NY3d 909 [2015]).

II. New York's Long-Arm Statute CPLR 302 (a) (1)

Plaintiffs allege that Pictet's repeated use of New York correspondent accounts to receive and transfer millions of dollars in illicit funds was central to the kickback and bribery scheme, and constitutes the transaction of business substantially related to their claims against defendants sufficient to confer personal jurisdiction under CPLR 302 (a) (1). Defendants respond that personal jurisdiction cannot depend on third-party conduct, and requires a type of purposeful availment by defendants that is lacking here. Defendants also counter that the bank deposits are incidental to the claimed wrongdoing because the basis for the lawsuit is defendants' role in conspiring and aiding and abetting the concealment of the bribes, not the manner in which the funds were allegedly concealed.

We conclude that defendants' use of the correspondent bank accounts was purposeful and that plaintiffs' aiding and abetting and conspiracy claims arise from these transactions. Our

decision is in accord with the analysis in *Licci*, that the requirements of CPLR 302 (a) (1) are satisfied where the quantity and quality of contacts establish a “course of dealing” with New York, and the transaction and claim are not “merely coincidental” (see *Licci*, 20 NY3d at 339-340).

A. Transacting Business in New York through a
Correspondent Account

CPLR 302 (a) (1) of New York’s long-arm statute provides, in relevant part,

“As to a cause of action arising from any of the acts enumerated in this section, a court may exercise personal jurisdiction over any non-domiciliary, or his executor or administrator, who in person or through an agent . . .

“transacts any business within the state or contracts anywhere to supply goods or services in the state.”

The CPLR 302 (a) (1) jurisdictional inquiry is twofold: under the first prong the defendant must have conducted sufficient activities to have transacted business in the state, and under the second prong, the claims must arise from the transactions.⁴ Thus, “jurisdiction is proper even though the defendant never enters New York, so long as the defendant’s activities here were purposeful and there is a substantial relationship between the transaction and the claim asserted” (*Fischbarg v Doucet*, 9 NY3d 375, 380 [2007] [internal quotation marks omitted]).

The Court has explained that “[p]urposeful activities are those with which a defendant, through volitional acts, avails itself of the privilege of conducting activities within the forum State, thus invoking the benefits and protections of its laws” (*id.* [citations omitted]). Determining “‘purposeful availment’ is an objective inquiry, [which] always requires a court to closely examine the defendant’s contacts for their quality” (*Licci*, 20 NY3d at 338, citing *Fischbarg*, 9 NY3d at 380).

4. Notably,

“[t]he transacting-business requirement of N.Y. C.P.L.R. 302 requires far fewer contacts with New York than does the doing-business requirement of N.Y. C.P.L.R. 301. Indeed, proof of one transaction in New York is sufficient to invoke jurisdiction. This easing of requirements is offset by the corresponding requirement that the cause of action arise from the very transaction or transactions which are relied upon to provide the contact with the forum” (15 NY Jur 2d, Business Relationships § 1159).

In *Amigo Foods Corp. v Marine Midland Bank-N.Y.* (39 NY2d 391 [1976]), the Court considered whether a non-domiciliary's use of a New York-based correspondent bank provides a jurisdictional basis under CPLR 302 (a) (1). In that case, plaintiff Amigo Foods Corporation, a New York wholesaler, contracted to buy potatoes from a Maine potato grower. Payment was to be made by letter of credit at or through defendant Aroostook Trust Company, a bank located in Maine. Amigo Foods obtained the letter of credit from New York-based Marine Midland Bank, which delivered the letter to Aroostook's New York correspondent bank, Irving Trust Company. The parties disputed the nature of the relationship between Aroostook and Irving Trust, and relied on competing legal theories as to whether Irving Trust was an agent or an independent contractor of Aroostook. On appeal from dismissal of the complaint for lack of jurisdiction, this Court reversed and remanded for jurisdictional discovery, concluding that Aroostook's involvement needed to be clarified because, "standing by itself, a correspondent bank relationship, without any other indicia or evidence to explain its essence, may not form the basis for long-arm jurisdiction under CPLR 302 (subd [a], par 1)" (39 NY2d at 396).

On remand, discovery revealed that Amigo Foods directed Marine Midland Bank to wire funds to the wholesaler's account with Aroostook. Marine Midland unilaterally chose to wire payment through the "relatively small checking account" defendant maintained at Irving Trust (*Amigo Foods Corp. v Marine Midland Bank-N.Y.*, 61 AD2d 896, 897 [1st Dept 1978]). When Aroostook informed the Maine potato grower of this transaction, the potato grower instructed Aroostook to reject the funds, which it did. The Appellate Division dismissed for lack of jurisdiction because Aroostook, through its New York correspondent account, had "passively and unilaterally been made the recipient of funds" (61 AD2d at 897). We affirmed for the reasons stated (*Amigo Foods Corp. v Marine Midland Bank-N.Y.*, 46 NY2d 855 [1979]).

Years later the Court revisited the issue of correspondent accounts as a basis for personal jurisdiction in *Licci*. In that case the Second Circuit certified two questions regarding the application of CPLR 302 (a) (1) to a foreign bank charged with violations of the Anti-Terrorism Act, Alien Tort Statute, and Israeli tort law. In *Licci*, several dozen United States, Canadian, and Israeli citizens were injured by terrorist attacks in

Israel launched by Hizballah. The plaintiffs sued Lebanese Canadian Bank (LCB) for facilitating terrorist acts by providing banking services to Hizballah. Personal jurisdiction in New York was alleged based on LCB's use of a New York correspondent bank account to effectuate the wire transfers that provided the funds to Hizballah's "financial arm," the Shahid Foundation, necessary to the commission of the illegal attacks (20 NY3d at 331).

In addressing the certified questions, our Court stated that

"[i]n the banking context, the requisite inquiry under CPLR 302 (a) (1)'s first prong [the transacting business requirement] may be complicated by the nature of inter-bank activity, especially given the widespread use of correspondent accounts nominally in New York to facilitate the flow of money worldwide, often for transactions that otherwise have no other connection to New York, or indeed the United States" (20 NY3d at 338).

To clarify, the Court relied on *Amigo Foods* as an example of activity that cannot serve as a basis for personal jurisdiction because Aroostook's use of the correspondent account "was essentially adventitious—i.e., it was not even Aroostook's doing" (*Licci*, 20 NY3d at 338). This Court did not reason, contrary to the dissent's suggestion (dissenting op at 341), that personal jurisdiction arising from the use of a correspondent bank account in New York must also be accompanied by additional activities in the state. Instead, *Licci* held that

"complaints alleging a foreign bank's repeated use of a correspondent account in New York on behalf of a client—in effect, a 'course of dealing' . . .—show purposeful availment of New York's dependable and transparent banking system, the dollar as a stable and fungible currency, and the predictable jurisdictional and commercial law of New York and the United States" (*Licci*, 20 NY3d at 339, citing *Indosuez Intl. Fin. v National Reserve Bank*, 98 NY2d 238, 247 [2002]).

The case cited by the Court in support of this "course of dealing" formulation, *Indosuez Intl. Fin. v National Reserve Bank* (98 NY2d 238 [2002]), involved 14 currency exchange transactions between a Netherlands corporation and a Russian bank, six of which were made by the plaintiff to a New York bank and 10 of which had New York choice of law provisions.

Personal jurisdiction existed because the parties had established payment in five prior similar transactions through a New York bank, by which “a course of dealing ha[d] been established” (98 NY2d at 247, citing *Banco Ambrosiano v Artoc Bank & Trust*, 62 NY2d 65, 72-73 [1984] [finding sufficient contacts to maintain jurisdiction where defendant maintained a correspondent bank account in New York, the account was “the very account through which” the transaction at issue was effectuated, and the defendant “regularly” used the account to “accomplish its international banking business”],⁵ and *Parex Bank v Russian Sav. Bank*, 116 F Supp 2d 415, 422 [SD NY 2000] [finding a Russian company “does business” in New York where it “routinely” conducted exchange deals and agreed to accept payment and a security deposit using New York banks and banking institutions]).

Given this understanding of the first prong of CPLR 302 (a) (1), the Court in *Licci* concluded that the repeated use by LCB of the correspondent account showed a transaction of business where LCB “deliberately used a New York account again and again” and “[p]resumably” LCB used this New York account because it was “cheaper and easier for LCB than other options” (20 NY3d at 340). Thus, even though “LCB could have routed the dollar transactions on behalf of Shahid elsewhere, the fact that LCB used a New York account ‘dozens’ of times indicates desirability and a lack of coincidence” (20 NY3d at 340).

As these cases establish, unintended and unapproved use of a correspondent bank account, where the non-domiciliary bank is a passive and unilateral recipient of funds later rejected—as in *Amigo Foods*—does not constitute purposeful availment for

5. The dissent’s apparent concern over our reference to these cases is misplaced. The Court in *Licci* cites both *Indosuez* (*Licci*, 20 NY3d at 339) and *Banco Ambrosiano* (*id.* at 335) to support its analysis of when the use of a correspondent account rises to the level of a “course of dealing.” Further, the dissent incorrectly insists that *Indosuez* is inapplicable because jurisdiction hinged on the New York forum selection clauses and the fact that the bank was itself a party to the contract. The forum selection clauses were only an alternative ground for jurisdiction, not a necessary component of it (*Indosuez*, 98 NY2d at 247). Additionally, it is true that the bank was a party to the contracts at issue, but nowhere does the Court rely on this fact in its personal jurisdiction analysis. The dissent’s attempt to distinguish *Banco Ambrosiano* is similarly unpersuasive. Not only did *Indosuez* cite *Banco Ambrosiano* in the context of defining a course of dealing, but *Licci* also cited *Banco Ambrosiano* as an example of this Court’s consideration of when a party may be subject to jurisdiction based on the use of a correspondent bank account, albeit in a different context.

personal jurisdiction under CPLR 302 (a) (1). Repeated, deliberate use that is approved by the foreign bank on behalf and for the benefit of a customer—as in *Licci*—demonstrates volitional activity constituting transaction of business. In other words, the quantity and quality of a foreign bank’s contacts with the correspondent bank must demonstrate more than banking by happenstance.

Turning to plaintiffs’ appeal, we first assume as true the facts alleged in the amended complaint because, “[o]n a motion to dismiss pursuant to CPLR 3211, the pleading is to be afforded a liberal construction. We accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994] [citation omitted]). The Court may “consider affidavits submitted by plaintiffs to remedy any defects in the complaint, because the question is whether plaintiffs have a cause of action, not whether they have properly labeled or artfully stated one” (*Chanko v American Broadcasting Cos. Inc.*, 27 NY3d 46, 52 [2016]).

[1] The amended complaint asserts that Pictet maintained a relationship with New York banks and marketed “business relations in New York” on its website. Specifically, the Citibank, New York account was used to wire the bribes to a Pictet account in Geneva, after which point, the money was divided up and distributed amongst the “corrupted employees” by deposit to their individual Pictet accounts. Chambaz knew the large sums of money being wired were proceeds of an illegal scheme but never questioned them, and continued to aid and abet the fraud. In opposition to the motion to dismiss, plaintiffs submitted copies documenting 12 wire transfers to Citibank in favor of TSJ, from 2006-2008, which reveal the movement of millions of dollars from the vendors to the employees. Similar transactions were documented from several other of Pictet’s New York correspondent accounts.

After the vendors sent the money to Citibank, Pictet did not ignore or reject the funds, as the defendant did in *Amigo Foods* (39 NY2d 391). Rather, Pictet credited the funds in that correspondent bank account to TSJ, an essential step in the money-laundering scheme. Citibank and the other banks held funds for Pictet, then Pictet credited them to the TSJ account, and next distributed the funds to the employee accounts. It is of no moment that the employees “directed the vendors” to

deposit the money in the New York accounts because what matters is defendants' banking activity with the correspondent accounts, here, that the money deposited in New York was credited to the Pictet accounts in accordance with Pictet's money-laundering. As described in the complaint, the employees accessed the funds in those accounts after Pictet credited the transfer from its New York correspondent account.

The Appellate Division erroneously concluded that plaintiffs failed to establish purposeful availment because defendants "merely carried out their clients' instructions" (127 AD3d at 611). Our cases do not require that the foreign bank itself direct the deposits, only that the bank affirmatively act on them. Contrary to the dissent's assertion (dissenting op at 341), in *Licci*, it was Hizballah that directed the wire transfers through LCB's correspondent bank and not defendant, LCB. A foreign bank with a correspondent account, therefore, that repeatedly approves deposits and the movement of funds through that account for the benefit of its customer is no less "transacting business in New York" because the customer, or a third party at the customer's direction, actually deposits or transfers the funds to New York.

Moreover, the jurisdictional inquiry at the first prong requires a close examination of defendant's contacts (*Licci*, 20 NY3d at 338). If those contacts are enough, the fact that others may also have contact with the correspondent bank is not dispositive. The facts here illustrate the point because the complaint alleges that defendants orchestrated the money laundering and that the New York account was integral to the scheme. It is precisely the fact that defendants chose New York, when other jurisdictions were available, that makes the New York connection "volitional" and not "coincidental." The focus of the jurisdictional analysis is the foreign bank's conduct vis-à-vis the correspondent bank, meaning how it uses the correspondent accounts—not whether some other bank could have been used instead.

Defendants' use of the correspondent accounts is far from the "unilateral" payment in *Amigo Foods* where plaintiffs chose to deposit money in New York at their own discretion because here the vendors' choice to deposit money in New York was precisely part of defendants' design, and not a "unilateral" decision at all. Pictet was therefore actively engaged in a cycle of banking transactions wherein money went from the vendors to New York to Geneva, and then from Geneva to the employees.

The use of the account was not “adventitious” because the account was used routinely to hold deposits which Pictet then credited to TSJ’s account in Geneva. Thus, the correspondent account was crucial to a course of repeated banking activity.

Defendants’ conduct is like that found sufficient in *Licci*, where the defendants actively used a correspondent bank to further a scheme that caused harm. As in *Licci*, the defendants’ use of the New York account to transfer money provided the employees with the “laundered” profits from the bribery and kickback scheme. Also, just as in *Licci*, defendants used the correspondent account in New York “to move the necessary” money (*Licci*, 20 NY3d at 340).

Defendants’ correspondent banking activity is sufficient to establish a purposeful course of dealing, constituting the transaction of business in New York under CPLR 302 (a) (1).

B. Cause of Action Arising from the Contacts with New York

To satisfy the second prong of CPLR 302 (a) (1) that the cause of action arise from the contacts with New York, there must be an “‘articulable nexus’ . . . or ‘substantial relationship’ . . . between the business transaction and the claim asserted” (*Licci*, 20 NY3d at 339). This inquiry is “relatively permissive” (*id.* at 339, citing *McGowan v Smith*, 52 NY2d 268 [1981], and *Kreutter v McFadden Oil Corp.*, 71 NY2d 460 [1988]), and does not require causation, but merely “a relatedness between the transaction and the legal claim such that the latter is not completely unmoored from the former, regardless of the ultimate merits of the claim” (*Licci*, 20 NY3d at 339). The claim need only be “in some way arguably connected to the transaction” (*id.* at 340).

[2] The allegations in the complaint easily satisfy this nexus requirement. Plaintiffs allege that defendants aided and abetted in the employees’ breach of their fiduciary duty to the plaintiffs, and defendants further conspired with each other and the employees by acting in concert to breach fiduciary duties, defraud plaintiffs, and convert plaintiffs’ property. These claims depend on the assertions that defendants established the banking structure in New York and Geneva through which they orchestrated the money laundering part of the bribery/kickback scheme. Defendants served as the employees’ bankers, without whom the employees could not launder and conceal millions in kickbacks and bribes. In *Licci*, the Court found the requisite nexus where the bank effected wire transfers which

financed terrorist activities. Similarly, the complaint alleges that Pictet and defendants effected the transfers of money to the New York correspondent bank as part of the money-laundering scheme that put the bribes/kickbacks in the hands of the employees. Those allegations are enough to show the minimum level of relatedness to the Citibank transactions.

Defendants argue that the use of the New York correspondent bank is not substantially related to the allegations because the transfers occurred months after TSJ and the individual Pictet bank accounts were created, and therefore the transfers were incidental to the scheme that injured the plaintiffs, since the injury would exist had payment been made by means other than wire transfers. Defendants mistakenly rely on *Johnson v Ward* (4 NY3d 516 [2005]) in support of their argument that the New York connection was “merely coincidental.” In *Johnson*, a nonresident driver, with a New York state license and registration, got into a car accident from which a tort claim arose. The accident occurred in New Jersey and all the parties were New Jersey residents. The Court reasoned that the possession of a New York license and registration at the time of the accident was “merely coincidental” because the claim arose out of the allegedly negligent driving, not the issuance of a New York license and registration (*id.* at 520). The defendant driver could have had a license from elsewhere or no license at all.

Here, the money laundering could not proceed without the use of the correspondent bank account, and, as plaintiffs argue, their claims require proof that the bribes and kickbacks were in fact paid. The money laundering scheme Chambaz designed relied precisely on the existence of bank accounts in different jurisdictions, through which the money would pass. In *Johnson*, the claim of negligence was wholly separate from defendant’s possession of a New York State license and registration. In contrast, plaintiffs’ claims of aiding and abetting breaches of fiduciary duties and conspiracy turn entirely on the money laundering Pictet and Chambaz allegedly set up and maintained, necessarily including the use of a New York bank account.

III. Federal Constitutional Due Process

Exercise of personal jurisdiction under the long-arm statute must comport with federal constitutional due process requirements (*LaMarca v Pak-Mor Mfg. Co.*, 95 NY2d 210, 216 [2000]).

It is well established that a nondomiciliary must have “certain minimum contacts with [the forum] such that the maintenance of the suit does not offend traditional notions of fair play and substantial justice” (*International Shoe Co. v Washington*, 326 US 310, 316 [1945] [internal quotation marks and citations omitted]). As the Second Circuit has aptly noted, “despite the fact that section 302(a)(1) . . . and constitutional due process are not coextensive, and that personal jurisdiction permitted under the long-arm statute may theoretically be prohibited under due process analysis, we would expect such cases to be rare” (*Licci ex rel. Licci v Lebanese Can. Bank, SAL*, 732 F3d 161, 170 [2d Cir 2013]). This is not such a case, and defendants’ arguments to the contrary are meritless.

[3] The “minimum contacts” test “has come to rest on whether a defendant’s conduct and connection with the forum State are such that it should reasonably anticipate being haled into court there” (*LaMarca*, 95 NY2d at 216 [internal quotation marks and citations omitted]). Such minimum contacts exist where a defendant “purposefully avails itself of the privilege of conducting activities within the forum State” (*id.*). Here, defendants’ maintenance and repeated use of a New York correspondent bank account “to achieve the wrong complained of in this suit satisfies the minimum contacts component of the due process inquiry” (*Licci ex rel. Licci*, 732 F3d at 173).

Whether personal jurisdiction offends “notions of fair play and substantial justice” depends on a consideration of “the burden on the defendant, the forum State’s interest in adjudicating the dispute, the plaintiff’s interest in obtaining convenient and effective relief, the interstate judicial system’s interest in obtaining the most efficient resolution of controversies, and the shared interest of the several States in furthering fundamental substantive social policies” (*Burger King Corp. v Rudzewicz*, 471 US 462, 477 [1985]). Here, while the parties are foreign nationals, the burden of litigation in New York is reduced by “modern communication and transportation” (*Licci ex rel. Licci*, 732 F3d at 174 [citations omitted]). Furthermore, the complaint implicates the fraudulent use of New York’s banking system, an issue of great importance to the State, and New York courts provide the plaintiffs a greater possibility of relief. On balance, and considering all the remaining factors, the maintenance of suit here does not “offend traditional notions of fair play and substantial justice.”

IV. Forum Non Conveniens

Defendants advance another alternative argument, that we should dismiss the complaint on forum non conveniens grounds as a matter of law. We find no support for this position. “In general, a decision to grant or deny a motion to dismiss on forum non conveniens grounds is addressed to a court’s discretion, and we will review it only to decide whether discretion has been abused” (*Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129, 137-138 [2014]). Such cases, where dismissal on forum non conveniens grounds is required as a matter of law, are “relatively uncommon” (*id.*). “The doctrine is flexible, requiring the balancing of many factors in light of the facts and circumstances of the particular case” (*National Bank & Trust Co. of N. Am. v Banco De Vizcaya*, 72 NY2d 1005, 1007 [1988]). The instant appeal is a poor candidate for forum non conveniens disposition in this Court because there has been no discovery and plaintiffs allege the existence of additional contacts that may affect the balance of factors in favor of maintaining jurisdiction over the case. Instead, Supreme Court should address the matter in the first instance.

V.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the case remitted to Supreme Court for further proceedings in accordance with this opinion.

GARCIA, J. (concurring). This case calls upon us to again examine when the use of a New York correspondent bank account by a foreign bank is sufficient to confer personal jurisdiction over that foreign bank under this State’s long-arm statute.

The majority and dissent disagree on whether the conduct of defendant here, a Swiss bank, was sufficient to satisfy the first prong of our long-arm test—the transaction of business within the state. I agree with the majority that defendant’s conduct was sufficient to confer personal jurisdiction. However, given the dissent’s dire warning that we “risk[] upending over 40 years of precedent” (dissenting op at 339), I write separately simply to make clear we do no such thing.

I.

The substance of plaintiff’s allegations are not in dispute. Nor is the rule requiring us to accept those allegations as true

in deciding the issue of personal jurisdiction (*see Licci v Lebanese Can. Bank, SAL*, 20 NY3d 327, 340 [2012]).

Plaintiff Rasheed Al Rushaid is a Saudi resident and co-owner of plaintiff Al Rushaid Petroleum Investment Corporation, a Saudi company that in turn owns plaintiff Al Rushaid Parker Drilling, Ltd. (ARPD). Defendants are Pictet & Cie (Pictet), a private bank with its principal place of business in Geneva, Switzerland, Vice-President and Client Relationship Manager Pierre-Alain Chambaz and Pictet's eight general partners.

Plaintiffs commenced this action in New York state court asserting that defendants were active participants in a kickback and money-laundering scheme orchestrated by three of ARPD's employees.

ARPD contracted to build six oil rigs for Saudi Arabia's national oil company. Three ARPD employees responsible for procuring services and vendors for the project allegedly breached their fiduciary responsibilities by accepting bribes and kickbacks from certain vendors, in exchange for purchasing products at inflated prices and ignoring deficiencies in the vendors' performance. Those vendors were located around the globe, in, among other countries, China, Norway, the United Arab Emirates and the United States.

According to the complaint, Pictet was not a passive banking establishment providing commercial services to the ARPD employees. Rather the bank, through its executive Chambaz, knew of, and affirmatively assisted in, the kickback arrangement between the ARPD employees and the vendors. Chambaz knew the corrupt ARPD employees personally—one for more than 30 years—and knew they were accepting bribes in the course of their employment. He assisted each with setting up a personal account with Pictet in Switzerland and he helped them to create a front company in the British Virgin Islands, TSJ Engineering Consulting Co., Ltd. (TSJ), to receive the bribes from those vendors.¹ Chambaz “actually knew that the substantial sums[,] [well in excess of any ARPD salary,] that

1. As evidence of Chambaz's knowledge of the scheme, plaintiffs introduced an email from one of the ARPD employees to Chambaz discussing the name of TSJ, in which the employee requested that Chambaz “add the co. [to the account name] to make it appear to be okay.” The name itself, “TSJ,” stands for the first letter of the first names of the three corrupt employees: Thomas Caplis, Shekhar Shetty, and James Wright, whose names are listed as shareholders on TSJ's articles of association.

were going into, and out of, the TSJ account were not earned by the corrupted employees in the course of their employment with ARPD, or through any legitimate business venture.”

Two causes of action are pleaded as a result: aiding and abetting the employees’ breach of fiduciary duties owed to plaintiffs and civil conspiracy for defendants’ role in establishing TSJ and the corresponding bank accounts that enabled the employees to “launder the funds that flowed from the bribes.”

II.

New York’s long-arm statute provides:

“(a) Acts which are the basis of jurisdiction. As to a cause of action arising from any of the acts enumerated in this section, a court may exercise personal jurisdiction over any non-domiciliary, or his executor or administrator, who in person or through an agent:

“1. transacts any business within the state or contracts anywhere to supply goods or services in the state” (CPLR 302 [a] [1]).

The jurisdictional inquiry is twofold: under the first prong, enumerated in subdivision (a) (1), the defendant must have conducted sufficient activities to have transacted business in the state, and under the second prong, enumerated in subdivision (a), the claims must “arise from” those specific transactions.

The crux of the disagreement is whether the use of the correspondent account in New York by the Swiss bank was purposeful. Understanding the commercial motivation behind correspondent accounts and how they are used by foreign banks is therefore relevant to resolving the issues presented. As one federal court has articulated it:

“Interbank accounts, also known as correspondent accounts, are used by foreign banks to offer services to their customers in jurisdictions where the banks have no physical presence, and otherwise to facilitate transactions involving such jurisdictions. Given the international importance of U.S. currency and the U.S. market, many foreign banks have such interbank accounts in the United States. There are banks that conduct virtually all transac-

tions external to the bank through their U.S. interbank accounts.

“Because interbank accounts can be used to complete transactions in the United States without the need to directly establish an account in the United States, they can be vehicles for money laundering, with or without the complicity of the foreign bank.” (*United States v Union Bank For Sav. & Inv. [Jordan]*, 487 F3d 8, 15 [1st Cir 2007] [citations omitted]; see generally Correspondent Banking: A Gateway for Money Laundering, a Report by the Minority Staff of the Permanent Subcommittee on Investigations of the Committee on Governmental Affairs, United States Senate, 107th Cong, 1st Sess, S Comm Print 107-1 at 11-14, 30, 41-42 [Feb. 2001].)

Here, the complaint alleges that Pictet was complicit in laundering the proceeds of a kickback scheme through its New York correspondent account. These facts fit comfortably within the guideposts established by our two cases on point: *Licci* (20 NY3d 327) and *Amigo Foods Corp. v Marine Midland Bank-N.Y.* (39 NY2d 391 [1976]).

Amigo Foods is the leading case finding mere coincidental use of a correspondent account. The facts in *Amigo Foods* are recounted in the majority and in *Licci* (majority op at 324; *Licci*, 20 NY3d at 335-336). It is clear that, as the dissent notes, the defendant bank in *Amigo Foods*, Aroostook, was the “passive recipient of payment” on a letter of credit in favor of its Maine client. However, the entity directing the payment to Aroostook’s correspondent account at a New York institution was not that client, but a third party: Marine Midland Bank-New York, the buyer’s bank. Aroostook’s entire involvement in that commercial transaction, as later developed through additional discovery, was its receipt of the payment directed by Marine Midland to Aroostook’s New York correspondent account, notification of its client in Maine, and rejection of the funds per the client’s instructions. Marine Midland—the holder of plaintiff’s letter of credit—was taking advantage, for its own convenience, of a banking service provided by Aroostook to deposit funds paid on that letter of credit (*Amigo Foods Corp. v Marine Midland Bank-N.Y.*, 61 AD2d 896 [1st Dept 1978], *affd* 46 NY2d 855 [1979]; see *Licci*, 20 NY3d at 337). The “depositor” was not defendant’s client (see dissenting op at 340).

Because the plaintiff failed to establish that Aroostook “purposely availed itself of the privilege of conducting activities in New York thereby invoking the benefits and protections of its laws” (*Licci*, 20 NY3d at 337, quoting *Amigo Foods*, 61 AD2d at 897), the analysis ended at prong one of the long-arm test.

In *Licci*, this Court found such “purposeful availment” with respect to activity conducted through defendant’s correspondent account in New York. We held that

“a foreign bank’s repeated use of a correspondent account in New York *on behalf of a client*—in effect, a ‘course of dealing’—show[s] purposeful availment of New York’s dependable and transparent banking system, the dollar as a stable and fungible currency, and the predictable jurisdictional and commercial law of New York and the United States” (*Licci*, 20 NY3d at 339 [citation omitted and emphasis supplied]).

The fundamental misimpression apparently left by *Licci* is that the defendant bank itself must somehow direct the funds into the correspondent bank account (*see Rushaid v Pictet & Cie*, 127 AD3d 610, 611 [1st Dept 2015] [“Thus, unlike (the defendant bank in *Licci*), defendants merely carried out their clients’ instructions”]). The dissent takes a quote from a later Second Circuit opinion in *Licci*: the “bank ‘deliberately chose’ to process the transfers through AmEx in New York” (dissenting op at 343, quoting *Licci ex rel. Licci v Lebanese Can. Bank, SAL*, 732 F3d 161, 171 [2d Cir 2013]).

Here, there can be no dispute that once the money was in the correspondent account—a time when only Pictet held title to the funds—the bank affirmatively and deliberately transferred the money to Switzerland on behalf of the ARPD employees (*see Sigmoid Resources v Pan Ocean Oil Corp. [Nigeria]*, 234 AD2d 103 [1st Dept 1996]). But the dissent is apparently troubled by the absence of an affirmative act by Pictet in directing the money *into* the New York correspondent bank account.²

The first problem with this line of reasoning is that nowhere in the record of *Licci* is there any indication that the defend-

2. If this is indeed the missing piece for the dissent, it would seem remand for additional discovery would be in order to determine what role if any Chambaz or others at Pictet played in the routing of funds to New York. Certainly, given the allegations concerning the establishment of the front company in the British Virgin Islands, there is enough to warrant that step. It is certainly as sufficient as the initial showing made by plaintiff in our

(n. cont’d)

ant, Lebanese Canadian Bank (LCB), itself played a role in choosing to use the New York correspondent account. Rather, as the majority points out, the only evidence in the record is that Hizballah directed the use of that account³ for deposit of funds ultimately used to further the terrorist goals of that organization. If such facts—the specific nature of the commercial transaction and the bank’s unilateral choice of the corresponding account venue to effect the transfer—truly formed the underpinning of our holding, it is odd to say the least that they are not articulated in our decision. Rather, the relevant allegations were that

“LCB used this correspondent account . . . to transfer several million dollars by means of ‘dozens’ of international wire transfers on behalf of Shahid; that LCB knew that Hizballah was a terrorist organization and that Shahid was part of its financial arm; that the wire transfers ‘caused, enabled and facilitated the terrorist rocket attacks’. . . ; and that LCB knew that Hizballah required wire transfer services in order to . . . carry out such terrorist attacks” (*Licci*, 20 NY3d at 332).

Second, just as the Lebanese bank did in *Licci*, Pictet provides a correspondent account in this State as a service to its clients. The client here—the same front company established with the help of the bank—used that service approximately 12 times to transfer millions of dollars in U.S. currency to Pictet accounts in Geneva. Funds arrived into the New York correspondent account, at the direction of the front company that the bank helped establish, from those vendors in China, U.A.E.,

first *Amigo Foods* decision—when we remitted that case to the trial court for further discovery (39 NY2d at 396). While acknowledging that such a request had been made by plaintiff pursuant to CPLR 3211 (d), the lower court denied discovery because it mistakenly believed the argument abandoned, not for any “failure” in the affidavits submitted (2014 NY Slip Op 32286[U] [2014]; see dissenting op at 343 n 2). Given that jurisdictional issues in long-arm cases are likely to be complex, discovery is “desirable, indeed may be essential, and should quite probably lead to a more accurate judgment than one made solely on the basis of inconclusive preliminary affidavits” (*Peterson v Spartan Indus.*, 33 NY2d 463, 467 [1974]).

3. The complaint alleged that the Hizballah accounts were maintained at “various LCB branches in Lebanon” and were “titled to the Shahid (Martyrs) Foundation,” (first amended complaint ¶¶ 45-46, in *Licci v American Express Bank Ltd.*, US Dist Ct, SD NY, No. 08-07253-GBD, available at 2009 WL 3639957).

Norway and the United States and were then wire transferred to Pictet accounts in Switzerland in U.S. dollars. Pictet's actions in clearing these transactions through its New York correspondent account for a client depositing millions of dollars into that Swiss bank was certainly "affirmative and deliberate" and done for the bank's own commercial purposes. That purposeful activity stands in stark contrast to Aroostook's passive receipt of a fund transfer from a third party's bank routed through New York for the sole convenience of that third party (*Amigo Foods*, 61 AD2d at 897).⁴

Moreover, although much more critical to the analysis of the second prong discussed briefly below, the allegations that Pictet was a knowing participant—as a coconspirator or aider and abettor—in the wrongdoing strongly supports a finding of purposeful availment. Pictet, it is alleged, had a shared purpose with the corrupt ARPD employees—to further the kickback scheme—in the same manner the Lebanese bank in *Licci* was alleged to have shared Hizballah's terrorist goals. Use of a correspondent bank account in New York was a deliberate step by clients in both cases to move funds central to these shared goals. In neither case was the use of a New York correspondent account merely "coincidental."

Accordingly, the finding that the actions of Pictet satisfy prong one of our test for long-arm jurisdiction is in keeping with both *Amigo Foods* and *Licci* and is not in any way a "retreat" from the principles articulated in those cases.⁵

III.

As the dissent finds that plaintiff has failed the jurisdictional test on prong one, there is no discussion of the application of the "arising from" prong. "[A]t a minimum," all that is required is "a relatedness" so that the legal claim is not "completely

4. If in *Licci*, LCB had helped Hizballah establish Shahid as a front company, Shahid had then directed donors to deposit funds in the LCB correspondent account in New York, that money was wired from that LCB bank account to a Shahid account at LCB in Lebanon, and it was then dispersed to individuals intending to carry out terrorist attacks—all with a collective purpose to further the terrorist goals of Hizballah—the dissent would find no "purposeful availment" under prong one of our long-arm test.

5. As the majority notes, Supreme Court should still address the forum non conveniens issue (majority op at 332). In that context, our State's interest in the integrity of its banking system may again be considered along with factors militating against resort to a New York forum (see *Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129, 137 [2014]).

unmoored” from the transactions (*Licci*, 20 NY3d at 339). As noted above, plaintiff alleges that Pictet aided and abetted the ARPD employees’ breach of their fiduciary duties to their employer and conspired with them to do the same. Pictet is alleged to have used its New York correspondent account to knowingly transfer the proceeds of the kickback scheme—acting this way to assist the ARPD employees in profiting from their breach of fiduciary duty (*see id.* at 340). This is sufficient to establish an articulable nexus between the use of the correspondent account and the claims asserted (*id.* at 339).

IV.

“It should hardly be unfor[e]seeable to a bank that selects and makes use of a particular forum’s banking system that it might be subject to the burden of a lawsuit in that forum for wrongs related to, and arising from, that use” (*Licci*, 732 F3d at 171-172). The conclusion that personal jurisdiction attaches in a case brought by victims of such wrongs may well chill foreign banks from taking advantage of this State’s banking system to knowingly forward money for terrorist purposes, or to knowingly launder the proceeds of illegal activity. So be it.

PIGOTT, J. (dissenting). CPLR 302 (a) (1) does not confer personal jurisdiction over a foreign bank when, as in this case, the bank’s only connection to New York is the maintenance of a New York correspondent account and the passive receipt of payments into that account, at the unilateral direction of third parties. The majority’s contrary conclusion is based on a misreading of *Licci v Lebanese Can. Bank*, SAL (20 NY3d 327 [2012]), in which we held that a foreign bank was subject to personal jurisdiction because it deliberately and repeatedly wired money through its New York correspondent account into the hands of Hizballah, to effect terrorist goals shared by the bank. In ignoring the significant distinctions between *Licci* and this case, the majority risks upending over 40 years of precedent that holds the mere maintenance of a New York correspondent account is insufficient to assert personal jurisdiction over a foreign bank. Accordingly, I dissent.

New York’s long-arm statute authorizes a court to exercise personal jurisdiction over any non-domiciliary who transacts business within the state, if the cause of action arises from such acts (*see* CPLR 302 [a] [1]). “Although it is impossible to precisely fix those acts that constitute a transaction of busi-

ness, our precedents establish that it is the quality of the defendants' New York contacts that is the primary consideration" (*Fischbarg v Doucet*, 9 NY3d 375, 380 [2007]). Specifically, we look for "[p]urposeful activities" in which a party, "through volitional acts, avails itself of the privilege of conducting activities within the forum State" (*id.* [internal quotation marks omitted]). For example, in *Fischbarg*, we upheld the exercise of personal jurisdiction over out-of-state defendants who had retained an attorney in New York to represent them in a foreign proceeding, because they "projected themselves into our state's legal services market" and, "on their own volition," chose to utilize the plaintiff's services (*id.* at 382).

So, too, in *Licci*, the foreign bank projected itself into this State by affirmatively and deliberately transferring money on behalf of a client, through its New York correspondent account, to Hizballah (*see* 20 NY3d at 340). The evidence in *Licci* established that the bank "could have . . . processed U.S.-dollar-denominated wire transfers for the Shahid account through correspondent accounts anywhere in the world," yet it "*deliberately chose* to process the many Shahid wire transfers through AmEx in New York" (*Licci ex rel. Licci v Lebanese Can. Bank, SAL*, 732 F3d 161, 171 [2d Cir 2013] [emphasis added]). What is more, the bank in *Licci* transferred the funds through its New York account "to effect *its* [the bank's] . . . shared terrorist goals" (*Licci*, 20 NY3d at 340 [emphasis added]).

"Not all purposeful activity, however, constitutes a transaction of business within the meaning of CPLR 302 (a) (1)" (*Fischbarg*, 9 NY3d at 380 [internal quotation marks omitted]). In stark contrast to *Licci*, the foreign bank in *Amigo Foods Corp. v Marine Midland Bank-N.Y.* was held not to have purposefully availed itself of the privilege of conducting activities in New York where it maintained a New York correspondent account and had "passively and unilaterally been made the recipient of funds which[,] at its customer's direction[,] it ha[d] declined" (61 AD2d 896, 897 [1st Dept 1978], *affd for reasons stated* 46 NY2d 855 [1979]). A depositor's "unilateral choice" to deposit money into the bank's account did not suddenly transform a correspondent banking relationship into the kind of volitional act that is required under the long-arm statute (*id.*).

If there were any confusion as to the meaning of our decision in *Amigo Foods*, we put it to rest in *Licci*. There, we clarified that

“*Amigo Foods* [is] best read as standing for the proposition that the first prong of the long-arm jurisdiction test . . . may be satisfied by the defendant’s use of a correspondent bank account in New York, even if no other contacts between the defendant and New York can be established, *if* the defendant’s use of that account was purposeful” (*Licci*, 20 NY3d at 338, quoting *Licci ex rel. Licci v Lebanese Can. Bank, SAL*, 673 F3d 50, 66 [2d Cir 2012]).

We described the bank’s use of its correspondent account in *Amigo Foods* as “essentially adventitious—i.e., *it was not even [the bank]’s doing*,” whereas the bank’s actions in *Licci*—knowingly and unlawfully transferring funds to Hizballah on its client’s behalf to accomplish the bank’s terrorist goals—demonstrated the kind of purposeful availment contemplated by CPLR 302 (a) (1) (*id.* at 338, 340 [emphasis added]).

Our decision in *Licci* thus confirmed the rule, based in prior case law, that something more than the mere receipt of funds in a New York correspondent account is required in order to assert personal jurisdiction over a foreign bank (*see Faravelli v Bankers Trust Co.*, 59 NY2d 615, 618 [1983], *affg for reasons stated* 85 AD2d 335, 339 [1st Dept 1982] [foreign bank not subject to personal jurisdiction under the long-arm statute where it directed a New York bank to remit payment from a purchase contract to the foreign bank’s New York correspondent account]; *Nemestky v Banque De Developpement De La Republique Du Niger*, 48 NY2d 962, 964 [1979] [foreign bank’s maintenance of a New York correspondent account was insufficient to assert personal jurisdiction, even if bank’s guarantee of the trade acceptance upon which plaintiff brought suit arose from the bank’s correspondent banking relationship]; *cf. Banco Ambrosiano v Artoc Bank & Trust*, 62 NY2d 65, 70 [1984] [plaintiff conceded lack of personal jurisdiction over foreign bank whose only contact with New York was maintenance of a New York correspondent account into which the funds that were the subject of the action were deposited]).¹

1. The majority’s reliance on *Banco Ambrosiano* is misplaced (majority op at 326). Our decision in that case was limited to an analysis of quasi in rem jurisdiction, as the plaintiff had conceded that personal jurisdiction was lacking (62 NY2d at 69-70). We cited *Banco* only once in *Licci*, as an example of a case in which we “discussed similar or related issues” involving a foreign bank’s use of a correspondent account (20 NY3d at 335).

Rather, a foreign entity must initiate purposeful contact with New York, beyond the mere maintenance of a correspondent account, in order for its relationship with a New York bank to form the basis for the exercise of personal jurisdiction (*see* 20 NY3d at 338-339; *Ehrlich-Bober & Co. v University of Houston*, 49 NY2d 574, 581-582 [1980] [public university in Texas that maintained a correspondent account in New York subject to personal jurisdiction because it had solicited the funds that were the subject of the action and specifically directed that they be placed in the account]). Accordingly, the foreign bank in *Indosuez Intl. Fin. v National Reserve Bank* (98 NY2d 238 [2002]) was subject to personal jurisdiction where the bank itself entered into numerous contracts with the plaintiff and specified that payments under those contracts were to be made into the bank's New York account, for the benefit of the bank. Unlike the foreign bank in *Amigo Foods*, whose only contact with New York was the maintenance of a correspondent account into which other parties unilaterally chose to deposit funds, the foreign bank in *Indosuez* was itself a party to the contract that had required payments to be made into its correspondent account (*id.* at 246-247). The bank had also expressly designated New York as the place of performance and submitted to New York jurisdiction in six of its agreements (*id.*).

Here, defendants' sole connection to New York was the maintenance of a correspondent account at Citibank, N.A., into which third-party vendors deposited funds that were alleged to be the proceeds of bribes and kickbacks obtained by foreign "corrupt employees" in connection with a Saudi Arabian construction project. Although plaintiffs generally alleged that defendants knew about the employees' unlawful activities overseas and helped them to set up a company in the British Virgin Islands, with bank accounts in Geneva, plaintiffs have not identified any volitional act on the part of defendants that was directed at New York.

Indeed, the only intentional conduct alleged in the complaint that relates in any way to New York was carried out by the foreign employees—who directed the vendors to wire the bribes and kickbacks to "Citibank NA, New York, in favour of 'Pictet and Co. Bankers Geneva,' for the credit of" the employees' overseas account—and the vendors, who followed that direction. Nowhere is it alleged that defendants "orchestrated the laundering of funds . . . to Pictet's New York correspondent

bank account” (majority op at 320), or that “the vendors’ choice to deposit money in New York was . . . part of defendant’s design” (majority op at 328), as it was in *Licci* (see *Licci*, 732 F3d at 171 [bank “deliberately chose” to process the transfers through AmEx in New York]).²

Like the foreign bank in *Amigo Foods*, Pictet has not wired money through its New York correspondent account, nor has it initiated any other contact with the forum state such as the kind we found dispositive in *Licci* and *Indosuez*. Even accepting as true all of the facts alleged in the amended complaint, Pictet was nothing more than an “adventitious” recipient of money that had been transferred into its account at the unilateral direction of foreign nationals, which is insufficient under section 302 (a) (1) to exercise personal jurisdiction over a foreign bank.

The majority’s interpretation of *Licci* and, consequently, its determination that Pictet’s receipt of funds at the direction of others constitutes the purposeful transaction of business in New York, is a complete about-face from the rule that we established in *Amigo Foods*, and to which foreign banks have fashioned their conduct for over four decades—namely, that maintenance of a New York correspondent account, standing alone, will not subject them to jurisdiction in this state. The majority’s retreat from that principle eschews the clear and predictable rules that are important in this area of the law, and will have grave implications for correspondent banking relationships, which “facilitate the flow of money worldwide, often for transactions that otherwise have no other connection to New York, or indeed the United States” (*Licci*, 20 NY3d at 338).³

Judges ABDUS-SALAAM, FAHEY and GARCIA concur, Judge GARCIA in a concurring opinion in which Judge ABDUS-SALAAM concurs; Judge PIGOTT dissents and votes to affirm in an opinion in which Chief Judge DiFiore and Judge STEIN concur.

2. Because the plaintiffs failed to submit affidavits in opposition to the motion to dismiss that would suggest “facts essential to justify opposition may exist but cannot then be stated,” they have not satisfied the procedural requirements of CPLR 3211 (d) that would entitle them to further jurisdictional discovery.

3. In light of my conclusion that defendants did not transact business in this state, I have no need to consider the sufficiency of plaintiffs’ allegations with respect to the second prong of the long-arm statute (see CPLR 302 [a] [1]) or whether the exercise of personal jurisdiction in this case satisfies due process (see *Walden v Fiore*, 571 US —, —, 134 S Ct 1115, 1121 [2014]).

Order reversed, with costs, and case remitted to Supreme Court, New York County, for further proceedings in accordance with the opinion herein.

[68 NE3d 64, 45 NYS3d 339]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
FINKELSTEIN, Appellant.

Argued November 17, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 30, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (James A. Yates, J., at pretrial proceedings; Lewis Bart Stone, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of coercion in the first degree (two counts).

People v Finkelstein, 121 AD3d 615, affirmed.

HEADNOTES

Crimes — Lesser Included Offense — Coercion — Heinous Quality of Conduct

1. In defendant's prosecution for coercion in the first degree for physically threatening his former girlfriend and threatening to ruin her business (*see* Penal Law § 135.65 [1]), the trial court did not err in declining to instruct the jury on the lesser included offense of coercion in the second degree (*see* Penal Law § 135.60), as defendant's conduct had the heinous quality contemplated by the first-degree statute such that the second-degree charge was not warranted. The crimes of coercion in the first and second degree are identical when the coercion is committed by instilling a fear that a person will be physically injured or that property will be damaged. The legislative history of the statutes reveals an intention that the felony of coercion in the first degree be charged whenever the method of coercion was to instill a fear of injury to a person or damage to property. The legislature, by making the misdemeanor offense all-inclusive, created a safety-valve feature in the event an unusual factual situation should develop where the method of coercion is by threat of personal or property injury, but for some reason lacks the heinous quality the legislature associated with such threats. Thus, second-degree coercion should be charged as a lesser included offense only in the unusual factual situation in which the coercion by threat of personal or property injury lacks the heinousness ordinarily associated with this manner of commission of the crime. This case did not present an unusual factual situation warranting the lesser included charge, as the People's evidence showed that defendant coerced his former girlfriend by threatening to drive away her clients, make it impossible for her to conduct business, hurt her physically and even kill her.

Crimes — Right to Representation Pro Se — Ability to Prepare for Trial Jeopardized by Abuse of Jail Privileges

2. In defendant's prosecution for coercion in the first degree, the trial court did not infringe defendant's constitutional right to represent himself by rul-

ing that he forfeited his right to proceed pro se during pretrial proceedings. The court determined that defendant had abused his privileges of phone and law library access while incarcerated pending trial in such a way that jeopardized his ability to prepare for trial. Nevertheless, the court subsequently allowed defendant to represent himself at trial.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 20, 137, 200; AM JUR 2d, Indictments and Informations §§ 181, 203, 282; AM JUR 2d, Trial §§ 902, 1198–1202.

CARMODY-WAIT 2d, Charge and Instruction to Jury §§ 200:9, 200:70, 200:80–200:85, 200:91; CARMODY-WAIT 2d, Verdict and Postverdict Proceedings § 202:14.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 13.2, 17.4, 24.8, 24.10.

McKINNEY'S, Penal Law §§ 135.60, 135:65 (1).

NY JUR 2d, Criminal Law: Substantive Principles and Offenses §§ 687, 780–788.

ANNOTATION REFERENCE

Lesser-related state offense instructions: modern status.
50 ALR 4th 1081.

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POINTS OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Sara Gurwitch of counsel), for appellant. I. Because coercion in the first degree has an implicit element of heinousness not contained in the statutory language and not submitted to the jury, Steven Finkelstein's rights to trial by jury, equal protection and due process were violated by the prosecution—not the jury—making a finding of “heinousness.” (*People v Eboli*, 34 NY2d 281; *Apprendi v New Jersey*, 530 US 466; *People v Discala*, 45 NY2d 38; *Cunningham v California*, 549 US 270; *Blakely v Washington*, 542 US 296; *Ring v Arizona*, 536 US 584; *United States v Batchelder*, 442 US 114.) II. Where this Court has distinguished first-degree coercion and second-degree coercion—which have identical statutory elements—by an implicit element of heinousness in the first-degree statute,

and there was a reasonable view of the evidence that heinousness was lacking in this case, the defense was entitled to have the jury charged on coercion in the second degree, as a lesser included offense. (*People v Eboli*, 34 NY2d 281; *People v James*, 11 NY3d 886; *People v Discala*, 45 NY2d 38; *People v Hertz*, 77 AD2d 885.) III. Steven Finkelstein was denied his fundamental constitutional right to refuse counsel and represent himself during the pretrial proceedings. (*Faretta v California*, 422 US 806; *Escobedo v Illinois*, 378 US 478; *People v Wilder*, 275 AD2d 268; *People v McIntyre*, 36 NY2d 10; *People v Schoolfield*, 196 AD2d 111.) IV. Steven Finkelstein's right to present a defense was improperly compromised by the trial judge's refusal to permit Mr. Finkelstein to call relevant witnesses on his behalf. (*Washington v Texas*, 388 US 14; *Chambers v Mississippi*, 410 US 284; *People v Carroll*, 95 NY2d 375.)

Cyrus R. Vance, Jr., District Attorney, New York City (Dana Poole and Alan Gadlin of counsel), for respondent. I. The trial court properly declined to submit second-degree coercion as a lesser included offense of first-degree coercion, a charge that included no implicit element of heinousness. (*Apprendi v New Jersey*, 530 US 466; *People v Eboli*, 34 NY2d 281; *People v Hertz*, 77 AD2d 885; *People v Dupont*, 111 Misc 2d 592; *People v Discala*, 45 NY2d 38; *People v Adams*, 50 AD3d 433; *People v Perez*, 156 AD2d 594; *People v Perea*, 99 AD2d 591; *United States v Batchelder*, 442 US 114.) II. The trial court properly determined that, through his own actions, defendant forfeited his right to proceed pro se during the pretrial proceedings. (*Faretta v California*, 422 US 806; *People v Smith*, 92 NY2d 516; *People v McIntyre*, 36 NY2d 10; *Johnson v Zerbst*, 304 US 458; *Escobedo v Illinois*, 378 US 478; *People v Smith*, 68 NY2d 737; *People v Richards*, 118 AD3d 599; *People v Arroyave*, 49 NY2d 264; *People v Lineberger*, 98 NY2d 662; *People v Wardlaw*, 6 NY3d 556.) III. The trial court did not violate defendant's right to present a defense. (*People v Spencer*, 20 NY3d 954; *People v Hudy*, 73 NY2d 40; *People v Pavao*, 59 NY2d 282; *People v Smith*, 22 NY3d 462; *People v Angelo*, 88 NY2d 217; *People v Inniss*, 83 NY2d 653.)

OPINION OF THE COURT

PIGOTT, J.

Defendant was charged with, among other crimes, two counts of coercion in the first degree for threatening his former girlfriend (*see* Penal Law § 135.65 [1]). Specifically, he threat-

ened her physically and threatened to ruin her small business after she asked defendant to move out of her apartment. Defendant refused and used various threats to ensure that he could stay. The former girlfriend then reported his conduct to his parole officer, who had defendant arrested and incarcerated. Defendant continued to harass and threaten his former girlfriend from jail.

At trial, defendant requested that the jury be instructed on the crime of coercion in the second degree (Penal Law § 135.60) as a lesser included offense of coercion in the first degree. He argued that there was a reasonable view of the evidence that his acts lacked the heinous quality required under the greater offense of coercion in the first degree. Supreme Court denied the application, stating that a charge to the lesser included offense was not warranted. The jury convicted defendant of both counts of coercion in the first degree, and the Appellate Division unanimously affirmed (121 AD3d 615 [1st Dept 2014]). A Judge of this Court granted defendant leave to appeal (26 NY3d 967 [2015]), and we now affirm.

Defendant makes two primary arguments on appeal. First, he argues that the court—not the jury—made a factual determination regarding the seriousness (heinousness) of his threats when it declined to instruct the jury on the lesser included offense of coercion in the second degree, and that such a determination violated the rule set out in *Apprendi v New Jersey* (530 US 466, 490 [2000]). However, defendant never objected to his conviction or sentence on *Apprendi* grounds, rendering that issue unpreserved for our review (see *People v Kelly*, 16 NY3d 803, 804 [2011]).

Second, defendant argues that the trial court erred in declining to instruct the jury on the lesser included offense of coercion in the second degree because “there is a reasonable view of the evidence which would support a finding that the defendant committed such lesser offense but did not commit the greater” (CPL 300.50 [1]). This Court long ago recognized that the crimes of coercion in the first and second degree “are identical when the coercion is committed by instilling a fear that a person will be physically injured or that property will be damaged” (*People v Eboli*, 34 NY2d 281, 285 [1974]). While the language of the statutes does not provide guidance on which crime is to be charged, we held in *Eboli* that the legislative history reveals an intention that the felony of “coercion in the first degree . . . be charged whenever the method of coercion was to

instill a fear of injury to a person or damage to property” (*id.* at 287). The legislature, by making the misdemeanor offense “all-inclusive,” created a “safety-valve” feature “in the event an unusual factual situation should develop where the method of coercion is . . . by threat of personal or property injury, but for some reason . . . lacks the heinous quality the Legislature associated with such threats” (*id.* at 287).

We later explained that second-degree coercion should be charged as a lesser included offense only in the “unusual factual situation” in which the coercion by threat of personal or property injury lacks “the heinousness ordinarily associated with this manner of commission of the crime” (*People v Discala*, 45 NY2d 38, 43 [1978]). We thus left open the possibility that, based on the evidence presented in a given case, a trial court could submit second-degree coercion as a lesser included offense of coercion in the first degree if the “threatened physical injury is not truly fearsome” (*id.* at 42).

[1] This case does not present one of those “unusual factual situations” warranting the lesser included charge (*id.* at 43). The People’s evidence showed that defendant coerced his former girlfriend by threatening to drive away her clients, make it impossible for her to conduct business, hurt her physically, and even kill her. Such methods of coercion have the heinous quality contemplated by the first-degree statute, and therefore the second-degree charge was not warranted.

[2] Finally, the trial court did not infringe defendant’s constitutional right to represent himself by ruling that he forfeited his right to proceed pro se during pretrial proceedings. The court determined that defendant had abused his privileges of phone and law library access while incarcerated pending trial in such a way that jeopardized his ability to prepare for trial. Nevertheless, it subsequently allowed defendant to represent himself at trial (*see People v McIntyre*, 36 NY2d 10, 17 [1974] [a defendant may not invoke the right to defend pro se where he has “engaged in conduct which would prevent the fair and orderly exposition of the issues”]). Nor did the trial court abuse its discretion in precluding the testimony of certain witnesses at trial (*see generally People v Hudy*, 73 NY2d 40, 56 [1988]).

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). I would reverse defendant’s conviction because the court assumed the jury’s fact-finding role and

mistakenly denied defendant's request for a lesser included offense charge. The majority's adherence to *People v Eboli* (34 NY2d 281 [1974]) and *People v Discala* (45 NY2d 38 [1978]) in support of the proposition that a judge, and not the jury, determines whether defendant's conduct was not of a "heinous quality" perpetuates an error in our law. Therefore, I dissent.

At the close of defendant's trial on felony charges of coercion in the first degree, defendant requested that the jury be instructed on the lesser included offense of misdemeanor coercion in the second degree. He further requested that the jury be instructed that the People must prove beyond a reasonable doubt "heinousness" as an element of first-degree coercion. The court denied the requests, concluding that the facts did not present an "extraordinary case" supporting the lesser charge, and that it was impossible to charge both counts in accordance with applicable case law. On the latter point, the court stated the charge could not be given:

"because of the impossibilities of following the remainder of the requirements set forth by the Court of Appeals and the Appellate Division First Department that it is improper to give a lesser included charge unless the Court tells the jury that they must first acquit on the higher charge before they can consider the lesser included charge.

"And under the circumstances of this case, inasmuch as the same elements must be found beyond a reasonable doubt for conviction of both charges; it is a logical impossibility for that to occur in this case."

The jury returned guilty verdicts on both counts of coercion in the first degree. The Appellate Division affirmed, concluding that the trial court did not err in withholding the instruction on the lesser included offense because of the "unusual overlapping relationship between coercion in the first and second degrees" (*People v Finkelstein*, 121 AD3d 615, 616 [2014], citing *Discala*, 45 NY2d at 38, and *Eboli*, 34 NY2d at 281). The Appellate Division further held that defendant's constitutional right to a jury determination on all essential facts was not violated when the trial court refused to instruct the jury on "heinousness" as an element of first-degree coercion (*id.*).

A defendant is guilty of misdemeanor coercion in the second degree when the defendant

“compels . . . a person to engage in conduct which the latter has a legal right to abstain from engaging in, or to abstain from engaging in conduct in which [the person] has a legal right to engage . . . by means of instilling in [the person] a fear that, if the demand is not complied with, the actor or another will” take any of several enumerated actions, including to cause “physical injury to a person” or “damage to property” (Penal Law § 135.60 [1], [2]).

A defendant is guilty of the greater offense of felony coercion in the first degree if the defendant commits coercion in the second degree by either of these two methods (Penal Law § 135.65).

Despite the apparent constitutional infirmity presented by this identity of language,¹ in *People v Eboli* (34 NY2d 281, 287 [1974]), this Court upheld a due process and equal protection challenge to felony first-degree coercion by reading into the statute a requirement that a defendant’s conduct be heinous. Notwithstanding the lack of any “indication as to when the felony prosecution is more appropriate than the misdemeanor prosecution,” the Court concluded that coercion by threat to person or property “was intended to be prosecuted as a felony” (*id.* at 285-286). The Court explained “that despite the verbal duplication in the lower degree,” the misdemeanor offense “is apparently a ‘safety valve’ feature included in the event an unusual *factual* situation should develop where the method of coercion is literally by threat of personal or property injury, but for some reason it lacks the *heinous quality* the Legislature associated with such threats” (*id.* at 287 [emphasis added]). The Court also held that the prosecutor has discretion to decide “what is an exceptional case warranting prosecution for the lower degree” (*id.* at 288 [internal quotation marks omitted]).

A few years later, in *People v Discala* (45 NY2d 38, 42-44 [1978]), the Court considered whether the misdemeanor crime should be charged as a lesser included offense, given the “anomaly of our statutes” that define the two crimes with “virtually identical” language (*id.* at 41). The Court held “the misdemeanor of coercion is a lesser included offense of felony coercion and should be charged, if requested, ‘if there is a reasonable view of the evidence which would support a finding that the defendant committed such lesser offense but did not

1. Defendant has not challenged the constitutionality of these statutes.

commit the greater’ ” (*id.* at 41, quoting CPL 300.50 [1]). In so holding the Court recognized that, as previously suggested in *Eboli*, “the misdemeanor [charge] . . . was reserved for an ‘unusual *factual* situation’ ” (*id.* at 42 [emphasis added]).

Thus, the Court in *Eboli* and *Discala* has made clear that heinousness is an implied element of felony first-degree coercion, and the distinction between the two crimes is grounded in a factual determination of whether a defendant’s conduct is or is not heinous, which the Court has interpreted to mean the “threatened . . . injury is not truly fearsome” (*Discala*, 45 NY2d at 42). On this appeal, the defendant contends it is within the province of the jury to determine whether defendant’s conduct was not heinous and should have been charged accordingly, and the judge erred by failing to charge the lesser included offense of second-degree coercion.

Defendant argues that factual determinations that result in a potential increase in punishment—here greater punishment for a felony versus a misdemeanor—are matters for the jury as the finder of fact. Defendant relies on a line of United States Supreme Court cases that require any facts that enhance a defendant’s sentence to be submitted to the jury (*see Apprendi v New Jersey*, 530 US 466, 490-492 [2000] [holding that a defendant’s bias was a fact that must be both proved beyond a reasonable doubt and found by the jury when that bias is used to enhance punishment under a hate crime statute]; *see also Ring v Arizona*, 536 US 584, 589 [2002] [ruling that a trial court could not sentence a defendant to death when the jury did not consider the aggravating circumstances for that punishment to be imposed]; *Alleyne v United States*, 570 US —, —, 133 S Ct 2151, 2162 [2013] [holding that a trial court violated defendant’s constitutional rights by considering facts when sentencing the defendant, when those facts were not found by the jury]).

Although these cases arise in the sentencing context, the general principle that factual matters are decided by the jury applies here as well. This Court has long held that factual determinations about the elements of a crime are the province of the jury, not the judge (*People v Inoa*, 25 NY3d 466, 472-473 [2015] [“It is, of course, the role of the jury to determine the facts of the case tried before it”]; *People v Dioguardi*, 8 NY2d 260, 274 [1960] [“It is the province of the jury, under clear and complete instructions from the court, to consider and weigh the facts, and to determine the defendants’ guilt or innocence of

the crime charged”]; *Justice v Lang*, 52 NY 323, 328 [1873] [explaining that the finding of facts from the proof is “within the exclusive province of the jury”]).

Here, for defendant to be guilty of coercion in the first degree the People had to establish beyond a reasonable doubt that he committed acts constituting coercion in the second degree, namely that he induced the victim to engage in conduct or abstain from engaging in conduct, by means of instilling in her a fear that if the demand was not complied with defendant would cause physical injury or property damage. The jury had to conclude that defendant’s actions were “heinous”—meaning fearsome. Further, because under *Eboli* and *Discala* it is theoretically possible for defendant to be guilty of the lesser crime if his actions were not heinous, the jury should have been instructed on this factual distinction. *Discala*’s holding that the judge must first consider whether there is a reasonable view of the evidence to support the lesser included offense charge essentially requires that the judge first determine the inverse, namely whether defendant’s actions were of a “heinous quality.” However, the affirmative determination that a defendant’s actions constitute felony first-degree coercion is for the jury because heinousness is an implied element of the crime.

Rather than let the jury decide whether defendant’s conduct was not heinous, the judge determined that this was “not an extraordinary case” warranting the lesser included charge. He based his conclusion on his assessment that it would be impossible to charge the lesser included offense without telling the jury to acquit on the felony charges before considering the lesser crime. The judge explained: “as the same elements must be found beyond a reasonable doubt for conviction of both charges; it is a logical impossibility for that to occur in this case.” However, since this Court has rationalized the tension in our case law and the anomalous nature of the statutes by reading into the statutes a fact-based difference between the two crimes, it was incumbent upon the judge to submit the misdemeanor and felony charges to the jury and to explain that the misdemeanor is appropriate if the defendant’s conduct is not heinous.² Accordingly, it was reversible error for the court to deny an instruction on the required factual element of heinousness, and to refuse a misdemeanor second-degree coercion charge.

2. For instance, one model jury instruction attempts to explain the factual distinction and recommends the following charge:

(n. cont’d)

Chief Judge DiFIORE and Judges ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Judge RIVERA dissents in an opinion.
Order affirmed.

“[T]he basic requirements for proof of the offense [of coercion] are the same in both the first and second degrees; and, before you can find either, you must find the same underlying facts. . . .

“Coercion in the second degree arises when there is an unusual factual situation where the method of coercion is literally by threat of personal or property injury, but for some reason it lacks the heinous quality of coercion in the first degree. The word ‘heinous’ means ‘extremely wicked’ or ‘shockingly evil.’ In the usual case involving a threat to cause property damage, such threats should be viewed by the jury as being heinous. It is only in the unusual or rare case that such threats do not rise to the degree or level of being heinous” (1 Howard Leventhal, Charges to Jury and Requests to Charge in a Criminal Case in New York § 18:15 [Oct. 2016 Update]).

[68 NE3d 61, 45 NYS3d 336]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES
MILLER, Appellant.

Argued November 17, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 18, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Peter J. Benitez, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree.

People v Miller, 122 AD3d 492, reversed.

HEADNOTE

Crimes — Jurors — Selection of Jury — Prohibiting Questioning Regarding Views on Involuntary Confessions

The trial court in defendant's criminal prosecution abused its discretion in entirely prohibiting questioning of prospective jurors with respect to their views on involuntary confessions, because it precluded all inquiry on the topic by either the court or defense counsel and did so, based in part, on the People's uncertainty of whether they intended to introduce defendant's inculpatory statements at trial. The judge presiding has broad discretion to control and restrict the scope of the voir dire examination. Any restriction imposed on voir dire, however, must afford counsel a fair opportunity to question prospective jurors about relevant matters. Defense counsel's request to question prospective jurors about their ability to follow the law and disregard an involuntary confession went to the heart of determining whether those jurors could be impartial and afford defendant a fair trial. Furthermore, the fact that the prosecution had not yet determined whether it would use defendant's inculpatory statements at trial should not have resulted in precluding any questioning on the issue altogether, by either the court or defense counsel. Defense counsel never sought to place the contents of defendant's statements before the jury. Moreover, the trial court had other ways to address any potential speculation and prejudice to the prosecution while still safeguarding defendant's right to adequately voir dire the jury.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Jury §§ 181, 182, 186.

CARMODY-WAIT 2d Jury Selection and Supervision
§§ 191:28, 191:29.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 22.3.

NY JUR 2d Criminal Law: Procedure §§ 2596–2598.

ANNOTATION REFERENCE

See ALR Index under Voir Dire.

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Query: question! /4 prospective /3 juror /p involuntary /s
preclu! limit!

POINTS OF COUNSEL

Alston & Bird LLP (Daniella P. Main of counsel) and *Richard M. Greenberg, Office of the Appellate Defender*, New York City (*Margaret E. Knight* of counsel), for appellant. I. The trial court committed reversible error when it precluded defense counsel from questioning prospective jurors on voir dire regarding their ability to disregard a confession they deemed involuntary. (*People v Johnson*, 94 NY2d 600; *People v Rampersant*, 182 AD2d 373; *People v Steward*, 17 NY3d 104; *People v Boulware*, 29 NY2d 135; *People v Harris*, 23 AD3d 1038; *People v Porter*, 226 AD2d 275; *Jackson v Denno*, 378 US 368; *People v Huntley*, 15 NY2d 72; *People v Doran*, 246 NY 409; *People v De Francesco*, 88 AD2d 920.) II. James Miller was denied effective assistance of counsel when his counsel failed to object to any of the egregious instances of prosecutorial misconduct during summation. (*Strickland v Washington*, 466 US 668; *People v Turner*, 5 NY3d 476; *People v Benevento*, 91 NY2d 708; *People v Ashwal*, 39 NY2d 105; *People v Fisher*, 18 NY3d 964; *People v Connette*, 101 AD2d 699; *People v De Pasquale*, 54 Misc 2d 91, 21 NY2d 715; *People v Chase*, 265 AD2d 844; *Chase v Barbary*, 404 F Supp 2d 457; *People v Morales*, 147 AD2d 381.)

Darcel D. Clark, District Attorney, Bronx (*Lori Ann Farrington* and *Nancy Killian* of counsel), for respondent. I. The trial court did not abuse its discretion in denying defendant's request to question prospective jurors about their ability to follow the law regarding statements attributed to a defendant. (*People v Steward*, 17 NY3d 104; *People v Boulware*, 29 NY2d 135; *People v Jean*, 75 NY2d 744; *People v Diaz*, 258 AD2d 356, 93 NY2d 969; *People v Cefaro*, 23 NY2d 283; *People v Porter*, 226 AD2d 275; *People v Bedessie*, 19 NY3d 147; *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *People v Cole*, 201 AD2d 438; *People v De Francesco*, 88 AD2d 920.) II. Defendant received meaningful representation and effective assistance of counsel. (*People v Romero*, 7 NY3d 911; *People v Harris*, 98

NY2d 452; *People v Iannelli*, 69 NY2d 684; *People v Taylor*, 1 NY3d 174; *People v Barnes*, 249 AD2d 239; *People v Hutchinson*, 57 AD3d 1013; *People v Baldi*, 54 NY2d 137; *Strickland v Washington*, 466 US 668; *People v Caban*, 5 NY3d 143; *People v Santiago*, 22 NY3d 740.)

OPINION OF THE COURT

PIGOTT, J.

The central issue in this appeal is whether the trial court abused its discretion in prohibiting defense counsel from questioning prospective jurors with respect to their views on involuntary confessions. Because the trial court precluded all inquiry on this topic and did so based, in part, on the prosecution's uncertainty of whether they were going to introduce defendant's inculpatory statements at trial, we conclude that the trial court abused its discretion. Defendant is therefore entitled to a new trial.

Defendant was charged with, among other things, murder in connection with the shooting death of William Richardson. Defendant gave both a verbal and written statement to the police admitting his involvement in the shooting. He stated that on the day of the incident, Richardson approached him asking about a missing cell phone. Sometime thereafter, while defendant was sitting on the steps of an apartment building, Richardson approached defendant and threatened him with an ice pick. Defendant pulled out a gun and shot at Richardson as Richardson fled. The People's case, in addition to the inculpatory statements, included two eyewitnesses to the crime.

Prior to the commencement of jury selection, defense counsel asked if he, or the court, could inform prospective jurors that there are certain rules related to the use of statements attributed to defendants. Defense counsel explained,

"I'd like to be able to wean out jurors who will never accept that. There are rules that apply to the use of [involuntary] statements. And I'm afraid if somebody who's going to be a juror and say well, you know, if he confessed or if he said he did it, that's the end of the story for me."

The prosecution responded that they were uncertain as to whether they were going to introduce defendant's statements at trial and asked that no mention of them be made.

The court denied defense counsel's request, concluding that the issue should not be addressed at the jury selection stage. It reasoned that because the prosecution had not yet determined

whether they would introduce defendant's statements, questioning the jurors with respect to their views on confessions would improperly invite the jurors to speculate as to the existence of an exculpatory or inculpatory statement in the event no statements were admitted into evidence. The court also concluded that given all the "press about trial verdicts being revisited because of issues about the statements and the circumstances under which the statements were made and whether they were coerced and whether they were truthful," jurors could accept without question the fact that an involuntary statement cannot be considered for any purpose.

At trial, the People introduced the defendant's statements on their direct case. The jury ultimately found defendant not guilty of murder in the second degree and criminal possession of a weapon in the second degree, but guilty of the lesser offense of manslaughter in the first degree. On appeal, defendant argued, among other things, that the trial court committed reversible error when it precluded defense counsel from questioning prospective jurors during voir dire as to their ability to follow and apply the law regarding the use of involuntary statements at trial. The Appellate Division rejected defendant's argument and affirmed his judgment of conviction (122 AD3d 492 [1st Dept 2014]). A Judge of this Court granted defendant leave to appeal, and we now reverse.

Criminal Procedure Law § 270.15 (1) (c) provides that "[e]ach party shall be afforded a fair opportunity to question the prospective jurors as to any unexplored matter affecting their qualifications, but the court shall not permit questioning that is repetitious or irrelevant, or questions as to a juror's knowledge of rules of law." The scope of a party's examination of prospective jurors is within the discretion of the trial court (*id.*). Because this is "an area of the law which does not lend itself to the formulation of precise standards or to the fashioning of rigid guidelines . . . [t]he Judge presiding necessarily has broad discretion to control and restrict the scope of the *voir dire* examination" (*People v Boulware*, 29 NY2d 135, 139-140 [1971]). Any restriction imposed on voir dire, however, must afford "counsel a fair opportunity to question prospective jurors about relevant matters" (*People v Steward*, 17 NY3d 104, 110 [2011] [internal quotation marks and citation omitted]).

Under the circumstances of this case, the trial court abused its discretion when it entirely precluded questioning on the issue of involuntary confessions and refused to make its own inquiry of the potential jurors on the issue. Defense counsel's

request to question prospective jurors about their ability to follow the law and disregard an involuntary confession went to the heart of determining whether those jurors could be impartial and afford defendant a fair trial. Indeed, defendant, facing the most serious charge of murder, premised his defense at trial on the involuntariness of his inculpatory statements, which effectively corroborated the testimony of the two eyewitnesses whose credibility was strenuously assailed by the defense.

Furthermore, the fact that the prosecution had not determined, by the time of jury selection, whether it would use defendant's inculpatory statements at trial should not have resulted in precluding any questioning on the issue altogether, by either the court or defense counsel.* Defense counsel here never sought to place the contents of defendant's statements before the jury. Rather, he sought only to question prospective jurors on their ability to follow and apply the law regarding the prohibited use of an involuntary statement. Moreover, the trial court had other ways to address any potential speculation and prejudice to the prosecution while still safeguarding defendant's right to adequately voir dire the jury. For instance, the court could have instructed the prospective jurors that it did not yet know whether there were any statements that would come in as evidence, but if there were, it was the law that such statements must be disregarded if the jury found them to be involuntary. Indeed, the court used a similar tactic when questioning the potential jurors about their ability to follow the law regarding the defense of justification.

In light of our determination, we need not address defendant's ineffective assistance of counsel claim.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge DiFIORE and Judges RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order reversed and a new trial ordered.

* Although the prosecutor did not mention the evidence of the statements during her opening remarks (see *People v Kurtz*, 51 NY2d 380 [1980]), the record tends to support defendant's view that it was likely the prosecution would introduce defendant's statements at trial. At the time the trial court addressed defense counsel's request to inquire about prospective jurors' views on a justification defense, the prosecution and the court both indicated their understanding that the prosecution intended to introduce defendant's verbal and written statements at trial.

[68 NE3d 22, 45 NYS3d 297]

In the Matter of DONALD WILLIAM LEO, a Disbarred Attorney,
Appellant.

Argued October 18, 2016; decided November 22, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 26, 2014. The Appellate Division denied (1) petitioner's motion for reinstatement to the bar as an attorney and counselor-at-law, and (2) petitioner's motion, in effect, for reinstatement notwithstanding the Committee on Character and Fitness for the Second Judicial Department's recommendation to deny reinstatement.

Matter of Leo, 2014 NY Slip Op 94061(U), affirmed.

HEADNOTES

Attorney and Client — Reinstatement — Standard of Review

1. The Court of Appeals' standard of review of the Appellate Division, Second Department's determination denying petitioner disbarred attorney's motion for reinstatement to the practice of law was limited to whether the Appellate Division abused its discretion. In seeking reinstatement in the Second Department, petitioner was required to show, by clear and convincing evidence, that he had fully complied with the provisions of the order disbaring or suspending him and that he possessed the character and general fitness to practice law (former Rules of App Div, 2d Dept [22 NYCRR] § 691.11 [c] [1]). The Appellate Division is the factfinder on issues of character and fitness, its discretion is inclusive, and it is best situated to assess an applicant's compliance with the applicable disbarment order and whether his or her subsequent conduct demonstrates the requisite character and fitness for readmission.

Attorney and Client — Reinstatement — Denial — Failure to Demonstrate Requisite Fitness and Character to Practice Law

2. The Appellate Division did not abuse its discretion in denying petitioner disbarred attorney's motion for reinstatement to the practice of law based on its determination that petitioner did not demonstrate the requisite fitness and character. The record included evidence that petitioner, who had tendered his resignation in the midst of a disciplinary investigation into alleged escrow violations, failed to comply with the provisions of his disbarment order requiring him to comply with 22 NYCRR 691.10 (former Rules of App Div, 2d Dept [22 NYCRR] § 691.10). Under section 691.10 (b), a disbarred, suspended or resigned attorney may only be compensated on a quantum meruit basis for legal services rendered and disbursements incurred prior to his or her removal from the bar, and the amount and manner of payment must be fixed by the court. Here, the record reflected that while petitioner only received payment for legal fees and disbursements incurred prior to his disbarment, he did not obtain the required court orders until his

error was uncovered by the subcommittee of the Committee on Character and Fitness. Moreover, petitioner provided a notice to his clients after he had tendered his resignation but before it was accepted, telling them that he was relocating and transferring his law practice to his son, and stating that they should “contact our office” or “contact us” to indicate if they would be continuing with his son or seeking new counsel. Even if, as petitioner averred, he did not have any clients at the time his resignation was accepted and therefore did not need to notify his “former” clients of his disbarment pursuant to section 691.10 (c) and (d), the notification that he did send could reasonably be considered misleading to the extent it implied that he was merely relocating and would remain involved in the practice.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d, Attorneys at Law §§ 38, 44, 65, 115–119.
CARMODY-WAIT 2d, Officers of Court §§ 3:186, 3:249,
3:335–3:336, 3:341–3:345.
22 NYCRR 691.10, 691.11.
NY JUR 2d, Attorneys at Law §§ 13, 469, 483, 490–497.

ANNOTATION REFERENCE

Reinstatement of attorney after disbarment, suspension,
or resignation. 70 ALR2d 268.

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POINTS OF COUNSEL

John F. Clennan, Ronkonkoma, for appellant. I. The contract for the sale of the Leo firm from father to son and the predisbarment notification to existing clients made under advice of counsel violated neither the disciplinary rules nor the ethical considerations in force nor any court rules. (*Mandel v Liebman*, 303 NY 88; *Morris v Snappy Car Rental*, 84 NY2d 21; *JMD Holding Corp. v Congress Fin. Corp.*, 4 NY3d 373; *Apfel v Prudential-Bache Sec.*, 81 NY2d 470; *Hooper Assoc. v AGS Computers*, 74 NY2d 487; *Sands, Taylor & Wood Co. v Quaker Oats Co.*, 978 F2d 947; *Cuisinarts, Inc. v Robot-Coupe Intl. Corp.*, 580 F Supp 634; *Matter of Picone v Commissioner of Licenses*, 241 NY 157; *Matter of Bridgman v Kern*, 257 App Div 420; *Matter of Toomey v New York State Legislature [Assembly]*, 2 NY2d 446.) II. Due process of law requires procedural regularity: adherence to existing rules, a determination on the

evidence and a written decision. The Appellate Division should have set forth its rationale so that we avoid the instant anomaly of punishing applicant for innocently following counsel's advice. (*Matter of Hecht v Monaghan*, 307 NY 461; *Ex parte Secombe*, 19 How [60 US] 9; *Ex parte Garland*, 4 Wall [71 US] 333; *Matter of Cooper*, 22 NY 67; *People ex rel. Karlin v Culkin*, 248 NY 465; *Matter of Bologno v O'Connell*, 7 NY2d 155; *Matter of Bridgman v Kern*, 257 App Div 420; *Matter of Citrin*, 94 NY2d 459; *Willner v Committee on Character & Fitness*, Appellate Div. of Supreme Court of N.Y., First Judicial Dept., 373 US 96; *Schware v Board of Bar Examiners of N. M.*, 353 US 232.)

Mitchell T. Borkowsky, Hauppauge (*Robert H. Cabbie* of counsel), for New York State Grievance Committee for the Tenth Judicial District, respondent. I. An attorney facing imminent disbarment may not dispose of a law practice by private agreement designed to nullify and circumvent the adverse consequences of disciplinary proceedings resulting in disbarment. (*Matter of Haber*, 27 AD2d 576, 23 NY2d 763; *Matter of Silverberg [Schwartz]*, 75 AD2d 817; *Glinkenhouse v Karp*, 60 AD3d 630; *Decolator, Cohen & DiPrisco v Lysaght, Lysaght & Kramer*, 304 AD2d 86; *Matter of Kourland*, 172 AD2d 77; *Matter of Au*, 41 AD3d 67; *Matter of Adams*, 42 AD3d 1; *Padilla v Sansivieri*, 31 AD3d 64; *Keinz v Peter M. Hobaica, LLC*, 114 AD3d 1250; *Matter of Keinz*, 75 AD3d 1113.) II. The denial of reinstatement to a disbarred attorney in this matter complied with applicable due process standards. (*Tang v Appellate Div. of N.Y. Supreme Ct., First Dept.*, 373 F Supp 800; *Matter of Rouss*, 221 NY 81; *Matter of Anonymous*, 74 NY2d 938; *Law Students Civil Rights Research Council, Inc. v Wadmond*, 401 US 154; *Matter of Anonymous*, 79 NY2d 782; *Matter of Citrin*, 94 NY2d 459; *Matter of Anonymous*, 97 NY2d 332; *Mildner v Gulotta*, 405 F Supp 182; *Gerzof v Gulotta*, 87 Misc 2d 768, 57 AD2d 821, 42 NY2d 960, 42 NY2d 973; *Matter of Medicon Diagnostic Labs. v Perales*, 74 NY2d 539.)

OPINION OF THE COURT

Per Curiam.

Donald William Leo was admitted to the New York bar in 1967. He tendered his resignation as an attorney in January 2004 in the midst of a disciplinary investigation into alleged escrow violations. In connection with his resignation, Leo acknowledged that he “failed to properly preserve the amount

of funds which should have been on deposit in his escrow account” and that he would be unable to “successfully defend himself on the merits” of any related disciplinary charges (*Matter of Leo*, 9 AD3d 218, 219 [2d Dept 2004]).

After tendering his resignation, Leo sold his law practice to his son. According to their written agreement, the purchase price “d[id] not include any accounts receivable” due for “services rendered” by Leo prior to the sale. Instead, those funds would be “promptly paid and delivered” to Leo as payment was received on contingency fee cases. These pending matters—more than 550 in total—were listed in a schedule attached to the purchase agreement, along with the corresponding percentage of the fee to be allocated to Leo in each case.

Shortly after the sale, Leo sent letters to all of his clients indicating that he was “relocating” to Tennessee and that he was “transferring [his] law practice and law office assets” to his son. The letter stated, in relevant part:

“If you decide to retain other counsel kindly . . .
have him or her contact *our* office . . .

“If you wish to continue with Don and *our* new team
of associates there is no need for you to contact *us*
at this time” (emphasis added).

Three months later, the Appellate Division “accepted” Leo’s proffered resignation and Leo was formally disbarred (*id.* at 219). Among other things, Leo was ordered to comply with 22 NYCRR 691.10—the Second Department’s rule governing the conduct of disbarred, suspended, and resigned attorneys (*id.* at 220).

Seven years after his disbarment, Leo applied for reinstatement. The Appellate Division held the motion in abeyance and referred the matter to the Committee on Character and Fitness (2012 NY Slip Op 61926[U]). A two-member subcommittee was assigned to conduct an investigation and a hearing was held.

During the hearing, the subcommittee members inquired into the notification that Leo had provided to clients while his resignation was pending. According to Leo, by the time the Appellate Division accepted his resignation, all of his clients had decided to either continue with his son or to retain new counsel. Leo stated that, under the relevant rule, he did not need to send a subsequent notice or otherwise notify his “former” clients of his disbarment.

Leo was also questioned about certain payments he received from his son arising from the sale of Leo's law practice. Leo was unable to provide an accounting of the amounts he had received to date, and he was unable to specify which sums, if any, remained outstanding. Leo testified that, for the first few years following the sale, Leo's son was merely "reimbursing" him for "out of pocket disbursements" that Leo had "laid out prior to leaving." Leo estimated that these reimbursements—which were not declared as income on his tax returns or mentioned in the purchase agreement—totaled "[c]lose to \$500,000." With regard to the remaining sums, Leo stated that he had "not made a determination" whether to allocate those payments to the purchase price or to the fees owed from contingency cases. Although 22 NYCRR 691.10 requires that legal fees and disbursements received post-disbarment must be "fixed by the court," Leo had not applied for a court order fixing compensation.

The subcommittee was "troubled by the testimony" at the first hearing and "decided to recommend against admission." However, shortly after the hearing, Leo's counsel requested a continuance. A second hearing was held nearly 18 months later.

During the second hearing, Leo testified that he had met with his son and reviewed all of the records relating to the payments he had received. Leo then filed motions in various counties seeking nunc pro tunc orders fixing legal fees and recoverable disbursements. The motions were granted, and copies of the orders were filed as exhibits at the second hearing.

The subcommittee thereafter concluded that Leo possessed "the present character and fitness to practice law in New York." Although the subcommittee noted that Leo's actions "did not comply with the rules relating to personal injury cases and rules relating to compensation to disciplined attorneys," it nonetheless concluded that Leo had "shown, by his determined actions, that he is willing to work hard to regain th[e] privilege" of practicing law. The subcommittee recommended reinstatement.

The full Committee on Character and Fitness disagreed and voted to recommend that Leo's motion for reinstatement be denied. In its letter dated May 2, 2014, the full Committee expressed concerns that (1) Leo's letter notifying clients that he was relocating did not conform to the applicable rules, and

(2) Leo’s failure to seek court approval of fees and disbursements until after the subcommittee had noted the irregularity did not demonstrate the requisite character and fitness for reinstatement.

The Appellate Division subsequently denied Leo’s motion for reinstatement (2014 NY Slip Op 94061[U] [2d Dept 2014]). After considering the entire record, including Leo’s papers and the report of the Committee on Character and Fitness, the Appellate Division concluded that Leo did not “demonstrate the requisite fitness and character to practice law” (*id.*).

We granted leave to appeal (25 NY3d 914 [2015]) and now affirm.

[1, 2] In the Second Department, an applicant seeking reinstatement to the bar must show “by clear and convincing evidence that [the applicant] has fully complied with the provisions of the order disbaring or suspending him or her . . . and that he or she possesses the character and general fitness to practice law” (former Rules of App Div, 2d Dept [22 NYCRR] § 691.11 [c] [1]). The Appellate Division “is the fact finder on issues of character and fitness and its discretion is inclusive” (*Matter of Anonymous*, 79 NY2d 782, 783 [1991]; see *Matter of Citrin*, 94 NY2d 459, 465 [2000]). Indeed, the Appellate Division is best situated to assess an applicant’s compliance with the applicable disbarment order and to determine whether, in light of the misconduct giving rise to his or her disbarment, the applicant’s subsequent conduct demonstrates the requisite character and fitness for readmission. Accordingly, our standard of review is limited to whether the Appellate Division abused its discretion in denying Leo’s motion for reinstatement. We discern no abuse of discretion here.

The record here includes evidence that Leo failed to comply with the provisions of his disbarment order, including the provision requiring compliance with 22 NYCRR 691.10. Specifically, section 691.10 (b) makes clear that, in the Second Department, “[a] disbarred, suspended or resigned attorney” may only be compensated “on a quantum meruit basis for legal services rendered and disbursements incurred” prior to his or her removal from the bar, and that “[t]he amount and manner of payment” must be “fixed by the court” (former Rules of App Div, 2d Dept [22 NYCRR] § 691.10 [b] [emphasis omitted]). Here, Leo received payment for legal fees and disbursements

incurred prior to his disbarment, but he did not obtain the required court orders until his error was uncovered by the subcommittee. Moreover, at his first hearing, Leo was unable to provide an accurate accounting of the payments he had received, nor could he specify whether the sums constituted disbursement reimbursements, fees for legal services rendered, or installments towards the purchase price of his firm. In the absence of the required court orders and an accurate accounting, Leo was not in compliance with section 691.10 (b).

Leo's argument regarding his pre-disbarment client notification is also unavailing. Under section 691.10, "[a] disbarred, suspended or resigned attorney" must provide notice to "all clients being represented in pending matters . . . of his disbarment, suspension or resignation and his consequent inability to act as an attorney" (*id.* § 691.10 [c]-[d]). In this case, Leo informed his clients, in advance of his anticipated disbarment, that he was "transferring" his law practice to his son, but Leo did not send a subsequent notice or otherwise inform clients of his eventual disbarment. Even if Leo did not violate section 691.10—Leo had no "current" clients at the time of his disbarment—his notification could reasonably be considered misleading to the extent it implied that Leo was merely "relocating" and would remain involved in the practice.*

In sum, on this record, there is no basis to disturb the Appellate Division's determination that Leo did not "demonstrate the requisite fitness and character to practice law."

We have considered Leo's remaining contentions and find them to be without merit.

Accordingly, the order of the Appellate Division should be affirmed, without costs.

FAHEY, J. (concurring). I respectfully concur in the result only. The majority refuses to conclude that Donald William Leo did not violate the Special Rules of the Appellate Division, Second Department, embodied in 22 NYCRR 691.10 (c) and (d) (*see* majority op at 366). To clarify: Leo did not breach those rules.

* We do not imply that Leo violated 22 NYCRR 691.10 (c) and (d), or "refuse[] to conclude" that he did not (concurring op at 366). Rather, in reviewing the Appellate Division's assessment of the entire record, we confine our decision—in accordance with our limited standard of review—to issues that are necessary to the resolution of this appeal. As the concurrence necessarily concedes by joining in the result, this issue is not.

The subject rules pertain only to the conduct of attorneys who are “disbarred, suspended or [who have] resigned” (22 NYCRR 691.10). At the time Leo gave the client notification in question, none of those classifications applied to him. Although Leo had *submitted* his resignation to the Appellate Division at the time the disputed notification had been made, that Court retained the discretion whether to *accept* Leo’s request to relinquish his law license, which it did not do until months after the communication in question.

If the submission of a letter of resignation was sufficient there would be no need for the Appellate Division to accept or reject it. The Appellate Division must clearly maintain the authority to accept a resignation or issue an order of disbarment.

In any event, on balance I agree with the majority “that there is evidence to sustain the decision of the Appellate Division” (*Matter of Anonymous*, 79 NY2d 782, 783 [1991]; *see* majority op at 366). “While one might disagree with the determination made by that court in this case, [w]e may not substitute our judgment on the merits for that of the Appellate Division” (*Anonymous*, 79 NY2d at 783 [internal quotation marks omitted]).

Chief Judge DiFiore and Judges Pigott, Abdus-Salaam, Stein and Garcia concur; Judge Fahey concurs in result in a separate concurring opinion; Judge Rivera taking no part.

Order affirmed, without costs.

[68 NE3d 26, 45 NYS3d 301]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PHILLIP COUSER, Appellant. (Appeal No. 1.)

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PHILLIP COUSER, Appellant. (Appeal No. 2.)

Argued October 14, 2016; decided November 22, 2016

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 20, 2015. The Appellate Division order, insofar as appealed from, modified, on the law, a judgment of the Supreme Court, Monroe County (Dennis M. Kehoe, A.J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree, criminal possession of a weapon in the second degree (two counts), attempted robbery in the first degree (three counts) and criminal possession of a weapon in the third degree. The modification consisted of directing that the sentences imposed on the fifth through seventh counts run concurrently with each other and consecutively to the sentence imposed on the second count.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 20, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Francis A. Affronti, J.), which had convicted defendant, upon his plea of guilty, of attempted murder in the first degree.

People v Couser, 126 AD3d 1419, affirmed.

People v Couser, 126 AD3d 1423, affirmed.

HEADNOTES

Crimes — Sentence — Concurrent and Consecutive Terms — Offenses Constituting Separate and Distinct Acts

1. In defendant's prosecution for holding a group of people at gunpoint and taking one victim's purse before shooting another victim, the trial court did not abuse its discretion in imposing consecutive sentences for defendant's robbery and attempted robbery convictions, as the taking of the purse constituted a separate act against a single victim distinct from defendant's use of the gun in an attempt to rob the remaining victims. Under Penal Law

§ 70.25 (2), sentences imposed for two or more offenses may not run consecutively where a single act constitutes two offenses or where a single act constitutes one of the offenses and a material element of the other. When there is some overlap in the elements of multiple statutory offenses, courts retain discretion to impose consecutive sentences if the People can demonstrate that the acts or omissions committed by the defendant were separate and distinct acts, even though they were part of a single transaction. While the elements of attempted first-degree robbery and first-degree robbery overlap, here, the completed robbery included a separate and distinct act, giving the trial court discretion to run the sentences consecutively. The robbery was a single criminal episode, but the taking of the purse was a separate and distinct act from the attempted robberies achieved by waving the gun.

Crimes — Right to Counsel — Effective Representation — Erroneous Advice Prompting Defendant to Plead Guilty

2. In a prosecution in which defendant received consecutive sentences for two felony convictions and subsequently pleaded guilty before retrial on an attempted murder charge stemming from the same incident, defendant was not entitled to vacatur of his guilty plea allegedly entered because of defense counsel's incorrect advice that defendant could receive an additional consecutive sentence if he went to trial. At the time of defendant's sentencing, the Appellate Division for the Fourth Department had not yet addressed whether the sentence on a first-degree felony murder charge must run concurrently with the sentence imposed on the underlying felony, but the Second and Third Departments had addressed the issue and held that it must run concurrently. However, the Fourth Department affirmed the sentencing court's conclusion that the sentences could run consecutively. Under such circumstances, defense counsel's advice to defendant, even if erroneous, did not render him ineffective.

Crimes — Plea of Guilty — *Alford* Plea — Strong Evidence of Guilt

3. Defendant's plea of guilty to attempted murder through an *Alford* plea (*North Carolina v Alford*, 400 US 25 [1970]), whereby the court accepted the plea even though defendant disputed that he possessed the requisite intent, was knowing, intelligent and voluntary and the extensive factual recitation of the trial evidence presented by both defense counsel and the People was sufficient for the court to be satisfied that there was strong evidence of guilt. If a defendant's factual recitation negates an essential element of the crime, raising substantial doubt as to guilt, the trial court must inquire further to ensure that defendant's guilty plea is both knowing and voluntary. The trial evidence indicated defendant was present in the park on the date at issue, that he was armed with a loaded handgun and displayed the handgun in the direction of his victims and that he pointed the gun at the back of one victim's head. Although defendant stated that the gun went off accidentally, three of the four victims testified that they heard defendant cock the gun before placing it at the back of the shooting victim's head. The court noted that it understood that defendant disputed whether he possessed the requisite intent, consistent with his trial testimony. After speaking with defendant, defense counsel stated that defendant did not dispute that his testimony would be consistent with his trial testimony should the case be tried. The court verified that defendant wished to proceed, and the plea was accepted. Under such circumstances, the court was not required to do more than it did to ensure that defendant voluntarily entered the plea.

Crimes — Plea of Guilty — Validity

4. Defendant's plea of guilty to attempted murder, allegedly entered to ensure that he received a concurrent sentence after he had received consecu-

tive sentences for robbery and attempted robbery convictions stemming from the same incident, was knowing, voluntary and intelligent, as concurrent sentencing was not required under the circumstances. In his attempt to rob one of the victims, defendant also shot that victim. Accordingly, the attempt to rob that victim was sufficient to support defendant's conviction for first-degree attempted murder. Wholly separate from that act, however, was the taking of another victim's purse. Although one criminal transaction occurred, those two separate and distinct acts—the shooting and the taking of the purse—perpetrated against two separate victims allowed the court to run the sentence for attempted first-degree murder consecutively to the robbery. Moreover, at the time the *Alford* plea (*North Carolina v Alford*, 400 US 25 [1970]) was requested by defendant, the People were facing retrial, during which they could have resolved their failure to specify which crime formed the basis for the first-degree attempted murder charge by identifying the attempted robbery of the shooting victim as the basis of the first-degree attempted murder count. Consequently, if defendant were convicted of attempted murder after retrial, that sentence could run consecutively to his sentence for robbery. Defendant therefore received the benefit he apparently sought by taking the plea—a concurrent minimum sentence.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

- AM JUR 2d, Criminal Law §§ 589, 590, 593, 594, 603, 646, 808, 1111–1116.
CARMODY-WAIT 2d, Pleas and Plea Bargaining §§ 182:11–182:13; CARMODY-WAIT 2d, Right to Counsel §§ 184:161–184:166, 184:223, 184:227; Sentencing Procedures § 203:6.
LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.7, 21.3, 21.4, 26.3.
MCKINNEY'S, Penal Law § 70.25 (2).
NY JUR 2d, Criminal Law: Procedure §§ 867–877, 900, 902, 1522, 1527, 1529, 3251.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Concurrent and Consecutive Sentences; Guilty Pleas.

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POINTS OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (James A. Hobbs of counsel), for appellant in the first and second above-

entitled actions. I. Consecutive sentencing was not authorized for the robbery and attempted robbery crimes. (*People v Laureano*, 87 NY2d 640; *People v Battles*, 16 NY3d 54; *People v Ramirez*, 89 NY2d 444; *People v Rodriguez*, 25 NY3d 238; *People v Dean*, 8 NY3d 929; *People v Catone*, 65 NY2d 1003; *People v Lemon*, 38 AD3d 1298; *People v Dekenipp*, 105 AD3d 1346; *People v Hyde*, 240 AD2d 849; *People v Smiley*, 121 AD2d 274.) II. Mr. Phillip Couser's *Alford* plea to attempted murder must be vacated because he received ineffective assistance of counsel at the plea stage. (*People v White*, 67 AD3d 933; *Hill v Lockhart*, 474 US 52; *People v McDonald*, 1 NY3d 109; *People v Hawkins*, 94 AD3d 1439; *People v Ford*, 86 NY2d 397; *United States v Gordon*, 156 F3d 376; *Cullen v United States*, 194 F3d 401; *Shiwlochan v Portuondo*, 345 F Supp 2d 242; *Padilla v Kentucky*, 559 US 356; *Kovacs v United States*, 744 F3d 44.) III. Mr. Couser's *Alford* plea should be vacated because the record does not show that it was the product of a knowing, voluntary, and intelligent choice. (*People v Hill*, 9 NY3d 189; *People v Mox*, 20 NY3d 936; *People v Lopez*, 71 NY2d 662; *Matter of Silmon v Travis*, 95 NY2d 470; *People v Serrano*, 15 NY2d 304; *People v Rosas*, 8 NY3d 493; *People v Parks*, 95 NY2d 811; *People v Cherry*, 46 AD3d 1234; *People v Middleton*, 32 AD3d 557; *People v Bates*, 83 AD3d 1110.)

Sandra Doorley, District Attorney, Rochester (*Kelly Christine Wolford* and *Geoffrey Kaeuper* of counsel), for respondent in the first and second above-entitled actions. I. The attempted robbery in the first degree sentences could run consecutively to the robbery in the first degree sentence. (*People v Laureano*, 87 NY2d 640; *People v McKnight*, 16 NY3d 43; *People v Rosas*, 8 NY3d 493; *People v Yong Yun Lee*, 92 NY2d 987; *People v Ramirez*, 89 NY2d 444.) II. Defendant was not deprived of effective assistance of counsel. (*People v Rodriguez*, 25 NY3d 238; *People v Parks*, 95 NY2d 811; *People v Cahill*, 2 NY3d 14; *People v Frazier*, 16 NY3d 36; *People v Lovett*, 25 NY3d 1088.) III. Defendant is not entitled to vacatur of his *Alford* plea on the ground that he negated an element. (*North Carolina v Alford*, 400 US 25; *Matter of Silmon v Travis*, 95 NY2d 470.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

In the first of these appeals we must consider whether Penal Law § 70.25 (2) permits consecutive or concurrent sentencing for defendant's convictions. Specifically, we must resolve

whether defendant's convictions for attempted robbery and robbery were properly ordered to run consecutively by the trial court. In the second appeal, we must consider whether defense counsel's advice to defendant, prior to taking an *Alford* plea to attempted murder, that his sentence after conviction for that crime could be directed to run consecutively to his other sentences rendered counsel's assistance ineffective. Additionally, we must determine whether defendant's *Alford* plea was knowing, intelligent, and voluntary. We hold that defendant's consecutive sentences for robbery and attempted robbery, as modified by the Appellate Division, meet the requirements of Penal Law § 70.25 (2) as explained by this Court in *People v Laureano* (87 NY2d 640, 643 [1996]). We also hold that defendant received effective assistance of counsel, and defendant's *Alford* plea was knowing, intelligent and voluntary.

I.

Defendant's convictions stem from his actions in a City of Rochester park on the evening of August 16, 2008. Defendant, along with three others, approached a group of five individuals as they were walking to a vehicle. Defendant pulled out a gun and told everyone to get on the ground or he would kill them. Defendant cocked the gun, placed it at the rear of one of the victims's head as that victim was lowering himself to the ground, and fired one shot. The victim of the shooting survived, as the bullet only grazed the back of his head because he flinched when defendant fired the gun. The purse of one of the other victims was taken during the incident. When defendant and his companions left, the police were called and the shooting victim was taken to the hospital. The police recovered a handgun in nearby bushes and later verified that it was the gun used in the shooting. Following an unrelated search of defendant's home in November 2008 for suspected criminal possession of a weapon, defendant was interrogated by an officer who suspected defendant might have been involved in the park robbery a few months prior. Defendant admitted to possessing a gun in the park on the date of the robbery and intending to rob the group. He claimed that he did not intend to kill anyone. Defendant was charged with one count of first-degree attempted murder (*see* Penal Law §§ 110.00, 125.27 [1] [a] [vii]), one count of first-degree robbery (*see* Penal Law § 160.15 [4]), two counts of second-degree criminal possession of a weapon (*see* Penal Law § 265.03 [1] [b]; [3]), three counts of first-degree attempted robbery (*see* Penal Law §§ 110.00, 160.15 [4]), and

third-degree criminal possession of a weapon (*see* Penal Law § 265.02 [1]).

During trial, four of the victims testified for the People. Three of the four victims testified that they heard defendant cock the gun before pointing the gun at the shooting victim. However, defendant, who testified on his own behalf, stated that he did not point the gun at anyone in particular and the gun accidentally discharged. The jury was unable to reach a verdict on the first-degree attempted murder charge, but found defendant guilty of the remaining charges. Defendant consented to a mistrial as to the attempted murder and accepted a partial verdict.

Defendant was sentenced as follows: a determinate term of 18 years with five years of postrelease supervision (PRS) for robbery; determinate terms of 15 years with five years of PRS for each count of criminal possession of a weapon in the second degree; determinate terms of 15, 10, and 5 years, with five years of PRS each, for the attempted robbery counts; and an indeterminate term of 2 to 6 years for criminal possession of a weapon in the third degree. The court directed the sentences for the robbery and the two counts of criminal possession of a weapon in the second degree to run concurrently with each other but consecutively to the remaining sentences. The court further directed that the sentence for each attempted robbery count was to run consecutively to all other sentences, and that the sentence for criminal possession of a weapon in the third degree was to run concurrently with all other sentences. The aggregate sentence, therefore, was 48 years with five years of PRS.

Prior to re-trying defendant on the first-degree attempted murder count, defense counsel requested an *Alford* plea to the minimum sentence available on that charge to run concurrent to defendant's other sentences. Initially, the court refused to permit the plea, but thereafter allowed argument on the issue. Defense counsel stated that defendant "would not be able to give a colloquy indicating an intentional act on his part," and thus an *Alford* plea was preferable.¹ The People explained that "[b]ased upon conversations after the trial the best information that we have is that the vote in the jury was eleven to one for conviction." Defense counsel stated that defendant

1. An *Alford* plea permits a defendant to plead guilty to a crime while maintaining innocence (*see North Carolina v Alford*, 400 US 25 [1970]).

“is serving a lengthy term as a result of the charges upon which he has been convicted and he sees based on our discussions that there is a strong likelihood that if we had a retrial that he would be convicted of the attempted murder charges, and he would not know what the sentence would be and whether it would be concurrent or consecutive. The offer here has been for him to plead to the charge and receive the minimum sentence to run concurrent with the sentence he is serving. And he has indicated to me that he wishes to make the voluntary choice to accept this opportunity to plead and receive this concurrent sentence.”

Following a recitation of the facts underlying the attempted murder charge by defense counsel and the People, and a recitation of what the testimony would be upon retrial, the court asked defendant “[i]s that correct . . . ?” After defendant responded “Yes,” the court accepted the *Alford* plea, stating that the discussion of the trial evidence and defendant’s intention to take the plea satisfied the requirements to which the court was legally obligated to adhere. The court asked defendant whether he was aware of what was taking place and asked him if he wanted to say anything. Defendant responded “No,” and acknowledged that he was pleading guilty. The court ordered the promised sentence of 15 years to life to run concurrently with the previously imposed sentences. Defendant appealed separately from his convictions following the jury verdict and his conviction following the *Alford* plea.

On the first appeal, the Appellate Division modified the judgment of conviction by directing the sentences imposed on the counts of attempted robbery to run concurrently with each other and consecutively to the sentence imposed on the completed robbery, and otherwise affirmed (126 AD3d 1419 [4th Dept 2015]). The Court concluded that the actus reus of all the attempted robbery counts “was a single act constituting one offense, and thus the sentences on those counts must run concurrently with each other” (126 AD3d at 1421).² The Court took no issue with the sentencing on the remaining counts, noting that the trial court properly exercised its discretion in directing that the sentences for robbery and attempted robbery

2. The People did not appeal the imposition of concurrent sentences for the three attempted robbery counts.

run consecutively. In the second appeal, the Appellate Division affirmed (126 AD3d 1423 [4th Dept 2015]), concluding that “a concurrent sentence was not required for the attempted murder count . . . because the shooting of the male victim was an act separate and distinct from the” robbery and attempted robbery counts (126 AD3d at 1422). Accordingly, the Court held that defense counsel was not ineffective for advising defendant that a sentence for attempted murder could run consecutively to his other sentences, and that defendant’s plea in exchange for a concurrent minimum sentence was knowing, intelligent and voluntary. We agree.

II.

In the first appeal, defendant argues that Penal Law § 70.25 (2) mandates concurrent sentencing under these facts because the statutory elements of the robbery and attempted robbery counts are, by definition, identical or overlapping, and defendant engaged in a single act to attempt and ultimately execute the robbery—waving his gun.

Penal Law § 70.25 (2) provides: “When more than one sentence of imprisonment is imposed on a person for two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other, the sentences . . . must run concurrently.” We have interpreted that provision to require that “sentences imposed for two or more offenses may not run consecutively: (1) where a single act constitutes two offenses, or (2) where a single act constitutes one of the offenses and a material element of the other” (*People v Laureano*, 87 NY2d at 643; see *People v Battles*, 16 NY3d 54, 58 [2010]).

In *People v Laureano*, we explained that when “determining whether concurrent sentences are required, the sentencing court must first examine the statutory definitions of the crimes for which defendant has been convicted” (87 NY2d at 643). The court must then determine “whether the *actus reus* element is, by definition, the same for both offenses (under the first prong of the statute), or if the *actus reus* for one offense is, by definition, a material element of the second offense (under the second prong)” (*id.*). The court must focus on *actus reus* rather than

mens rea “[b]ecause both prongs of Penal Law § 70.25 (2) refer to the ‘act or omission’ . . . that constitutes the offense” (*id.*).³

If a defendant’s acts or omissions do not fit under either prong of the statute, “the People have satisfied their obligation of showing that concurrent sentences are not required” (*id.*). When there “is some overlap in the elements of multiple statutory offenses,” courts retain discretion to impose consecutive sentences “if the People can demonstrate that the acts or omissions committed by [the] defendant were separate and distinct acts” (*People v Frazier*, 16 NY3d 36, 40-41 [2010] [internal quotation marks omitted]), even “though they are part of a single transaction” (*People v Brown*, 80 NY2d 361, 364 [1992]).

[1] Defendant was sentenced to consecutive terms of imprisonment for his convictions of attempted first-degree robbery and first-degree robbery. Penal Law § 160.15 (4) provides that a person commits robbery in the first degree if he or she “forcibly steals property and . . . , in the course of the commission of the crime or of immediate flight therefrom, . . . [d]isplays what appears to be a pistol, revolver, . . . or other firearm. “ While the elements of attempted first-degree robbery and first-degree robbery obviously overlap, here, the completed robbery included a separate and distinct act, giving the trial court discretion to run the sentences consecutively. The purse of one of the victims was taken during the incident. The trial evidence revealed that defendant kicked her purse to his companion, who took it before defendant fired the gun. That separate and distinct act involved the taking of one victim’s purse. The taking of this victim’s purse constituted a separate act against a single victim that was distinct from defendant’s use of the gun in an attempt to rob the remaining victims. Although the taking of the purse occurred during a single criminal transaction, the People offered evidence that defendant waved the gun, which was a separate act from the taking of the purse, and that evidence was sufficient for the trial court to impose consecutive sentences for the robbery and attempted robberies.

People v Ramirez (89 NY2d 444 [1996]) is instructive. There, a man displaying an automatic weapon ordered two security guards, who were transporting money to a money center, to lie

3. The actus reus of the crime is “‘[t]he wrongful deed that comprises the physical components of a crime’” (*People v Rosas*, 8 NY3d 493, 496 n 2 [2007], quoting Black’s Law Dictionary 39 [8th ed 2004]).

down on the ground. One of the guards moved and was shot repeatedly. Other robbers who were similarly armed stole the guns from both guards and money from inside their vehicle. The defendant, one of the robbers, was charged with nine counts of robbery: three relating to the theft from the uninjured guard, three relating to the theft from the guard who was shot, and three relating to the theft of money. We determined that the forcible taking from the uninjured guard was a material element of the robbery of the money from the vehicle, and therefore all of the sentences relating to those two thefts had to run concurrently. We, however, permitted consecutive sentences for the counts relating to the theft from the guard who was shot. Although “the crimes were temporally close in a single criminal episode,” the “entire tenor” of the robberies was “distinct” (*id.* at 454-455). So too here, the robbery was a single criminal episode, but the taking of that victim’s purse was a separate and distinct act from the attempted robberies achieved by waving the gun. As the dissent concedes, once the People offer evidence of the existence of a separate and distinct act, the trial court has discretion to order consecutive sentences. The People did so here. Under these circumstances we cannot say the trial court abused its discretion by directing that the sentences for those convictions run consecutively.⁴

III.

In the second appeal, defendant takes issue with the *Alford* plea he entered, contending that the plea must be vacated

4. The dissent’s hypothetical robbery involving a perpetrator waving his gun while demanding that a group of five victims throw their wallets toward him would not always require consecutive sentences under this decision. Rather, as the hypothetical suggests, depending on the manner in which the taking of the wallets is accomplished, there may or may not be evidence that separate and distinct acts were committed to effectuate the robbery so as to permit consecutive sentences. Even where the evidence may permit consecutive sentences, the trial court would still retain discretion to impose concurrent terms. The conclusion we make today is based on the facts of this case and the discretion of the trial judge to direct consecutive sentences based on the defendant’s separate and distinct acts. Moreover, the dissent’s prediction that this decision will result in “sentences grossly disproportionate to the crimes of which defendants are convicted” (dissenting op at 381) ignores Penal Law § 70.30 in which the legislature limited the number of consecutive sentences that can be imposed on any defendant by requiring the Department of Corrections and Community Supervision to cap the aggregate term according to the statute (*see e.g. People ex rel. Ryan v Cheverko*, 22 NY3d 132 [2013]).

because (1) he received ineffective assistance of counsel and (2) his plea was not knowing, voluntary and intelligent.

A. Ineffective Assistance of Counsel

Defendant argues that the only reason he took the plea was because his counsel advised him that he could receive an additional consecutive sentence if he went to trial. Defendant asserts that advice was incorrect, because, in his view, his conviction for attempted murder must run concurrently with his conviction for robbery as a matter of law. The first-degree murder statute provides that a person is guilty of that crime when “[w]ith intent to cause the death of another person, he causes the death of such person or of a third person; and . . . (vii) the victim was killed while the defendant was in the course of committing or attempting to commit and in furtherance of robbery” (Penal Law §§ 125.27 [1] [a] [vii]; *see* 110.00). Defendant argues that any sentence for attempted first-degree murder that would be imposed upon him would have to run concurrently with his sentences for robbery and attempted robbery, because in order to be convicted of first-degree murder under the aforementioned section, he would have had to commit an underlying enumerated felony, here the robbery.

[2] We have not directly addressed whether the sentence on a first-degree felony murder charge must run concurrently with the sentence imposed on the underlying felony. At the time of defendant’s sentencing, the Fourth Department had yet to address this issue, but the Second and Third Departments had, holding that a sentence for first-degree felony murder had to run concurrently with the sentence imposed on the underlying felony (*see People v Cherry*, 46 AD3d 1234, 1238 [3d Dept 2007], *lv denied* 10 NY3d 839 [2008]; *People v Middleton*, 32 AD3d 557, 557-558 [3d Dept 2006]; *People v Alves*, 288 AD2d 483, 484 [2d Dept 2001]). However, when faced with the issue in this case, the Fourth Department affirmed the sentencing court’s conclusion that the sentences could run consecutively. Under these circumstances, we cannot say that defense counsel’s advice to defendant, even if erroneous, rendered him ineffective (*see e.g. People v Modica*, 64 NY2d 828, 829 [1985]).

B. Validity of the Alford Plea

Defendant argues that his plea should be vacated because it was not knowing, intelligent and voluntary. He contends that the sentencing court’s failure to perform a factual allocution is inexcusable, where the trial evidence demonstrated that he lacked the intent required for attempted murder.

An *Alford* plea is permitted in New York only when “it is the product of a voluntary and rational choice, and the record before the court contains strong evidence of actual guilt” (*Matter of Silmon v Travis*, 95 NY2d 470, 475 [2000]). We have held in this context that if a defendant’s factual recitation “negates an essential element of the crime, raising *substantial doubt* as to guilt, the trial court must inquire further to ensure that defendant’s guilty plea is both knowing and voluntary” (*Matter of Silmon*, 95 NY2d at 474 n 1 [emphasis added]).

[3] The extensive factual recitation of the trial evidence presented by both defense counsel and the People was sufficient for the court to be satisfied that there was “strong evidence of guilt,” such that an *Alford* plea was appropriate under the circumstances. Specifically, during the hearing the People stated on the record that the trial evidence indicated defendant was present in the park on the date at issue; he was armed with a loaded handgun and displayed the handgun in the direction of his victims; and he pointed the gun at the back of one of the victims’s head. Although defendant stated that the gun went off accidentally, three of the four victims testified that they heard defendant cock the gun before placing it at the back of the shooting victim’s head. Defendant’s counsel agreed with the People’s recitation, and explained that defendant would not admit guilt to first-degree murder. The court noted that it understood that defendant disputed whether he possessed the requisite intent, consistent with his testimony at trial. The court then asked defense counsel to ensure that defendant was in agreement with taking the *Alford* plea. After speaking with defendant, defense counsel stated on the record that defendant was ready to proceed and that defendant did not dispute that his testimony would be consistent with his trial testimony should the case be re-tried. Defendant expressly acknowledged that counsel’s statement was correct. The court verified that defendant wished to proceed, and the plea was accepted. Under these circumstances, the trial record indicated strong evidence of guilt and the court was not required to do more than it did to ensure that defendant voluntarily entered the plea (*see Matter of Silmon*, 95 NY2d 470).

Defendant further argues that his plea was not knowing, voluntary, and intelligent because the only reason he pleaded guilty to attempted murder was to ensure that he received a concurrent sentence. The dissent concludes that similar to our felony murder jurisprudence, a conviction for intentional felony

murder must run concurrently with a conviction for the underlying felony. However, we have no occasion to address that argument as defendant first raised it in his reply brief. But, even if we were to apply our sentencing rules for felony murder, defendant's argument must fail. Under the facts of this case, concurrent sentencing was not required.

[4] Here, in his attempt to rob one of the victims, defendant also shot that victim. Accordingly, the attempt to rob that victim was sufficient to support defendant's conviction for first-degree attempted murder (*see* Penal Law § 125.27 [1] [a] [vii]). Wholly separate from that act, however, was the taking of another victim's purse. Although one criminal transaction occurred, those two separate and distinct acts—the shooting and the taking of the purse—perpetrated against two separate victims allowed the court to run the sentence for attempted first-degree murder consecutively to the robbery (*see Brown*, 80 NY2d 361; *People v Lemon*, 38 AD3d 1298, 1299 [2007]).

Defendant points out that the People's failure to specify in the indictment or at any time prior to the court instructing the jury which crime formed the basis for the first-degree attempted murder charge requires concurrent sentencing (*see People v Parks*, 95 NY2d 811, 815 [2000] ["Under (such) circumstances, it is impossible to tell which robbery is a separate and distinct act from the felony murder"]). If we were to apply our felony murder sentencing rules here, the *Parks* issue would not be fatal. At the time the *Alford* plea was requested by defendant, the People were facing a retrial, during which the People could have resolved the *Parks* issue by identifying the attempted robbery of the shooting victim as the basis of the first-degree attempted murder count. Consequently, if defendant were convicted of attempted murder after retrial, that sentence could run consecutively to his sentence for robbery. Defendant therefore received the benefit he apparently sought by taking the plea—a concurrent minimum sentence.

IV.

Accordingly, on the first appeal the Appellate Division order, insofar as appealed from, should be affirmed. On the second appeal, the Appellate Division order should be affirmed.

FAHEY, J. (dissenting in part and concurring in part). In deciding the first appeal, the majority creates a new rule that will result in an irrational parsing of the actions of defendants.

The result will be sentences grossly disproportionate to the crimes of which defendants are convicted. Furthermore, the majority has misinterpreted our precedent regarding the legality of consecutive sentencing. Inasmuch as defendant neither committed a separate act of force nor made a separate threat of force against the victim of the completed robbery to effectuate the taking of her purse, defendant's sentence for the completed robbery was required to run concurrently with the sentences imposed on the attempted robberies. I respectfully dissent in the first appeal.

With respect to the second appeal, the sentence imposed upon defendant's conviction of count one, charging him with attempted first-degree felony murder, was required to run concurrently with the sentence imposed on the underlying felony. I write separately because the majority fails to definitively resolve that issue. I nevertheless agree with the majority that because the People could have corrected their failure to specify the underlying felony during a retrial on count one, vacatur of defendant's *Alford* plea is not required. I therefore concur in the result on the second appeal.

Penal Law § 70.25 (2) provides:

“When more than one sentence of imprisonment is imposed on a person for two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other, the sentences . . . must run concurrently.”

Under section 70.25 (2), “sentences imposed for two or more offenses may not run consecutively: (1) where a single act constitutes two offenses, or (2) where a single act constitutes one of the offenses and a material element of the other” (*People v Laureano*, 87 NY2d 640, 643 [1996]).

In *Laureano*, this Court set forth a two-part test for determining whether consecutive sentences are legally permissible under Penal Law § 70.25 (2). In the first step, the sentencing court must “examine the statutory definitions of the crimes for which defendant has been convicted” (*Laureano*, 87 NY2d at 643). In doing so, the sentencing court “must determine whether the *actus reus* element is, by definition, the same for both offenses (under the first prong of the statute), or if the *actus reus* for one offense is, by definition, a material element of the second offense (under the second prong)” (*id.*). If the statutory elements do not overlap, “then the People have satis-

fied their obligation of showing that concurrent sentences are not required” (*id.*). If, however, the “statutory elements do overlap under either prong of the statute,” then the sentences must run concurrently, unless, under the second step of the analysis, the People “establish the legality of consecutive sentencing by showing that the ‘acts or omissions’ committed by defendant were separate and distinct acts” (*id.*).

At all stages of the analysis, the People bear the burden of establishing the legality of consecutive sentencing (*see id.*; *see also People v Rodriguez*, 25 NY3d 238, 244 [2015]). The sentencing court may exercise its discretion to determine whether to impose a consecutive sentence only if the People have met their burden to demonstrate that consecutive sentences are legally authorized under the Penal Law (*see Rodriguez*, 25 NY3d at 244), which is a question of law.

I.

With respect to the first appeal, I disagree with the majority that it was legally permissible for the sentence imposed on count two, charging defendant with robbery in the first degree, to run consecutively to the sentences imposed on counts five through seven, charging defendant with three counts of attempted robbery in the first degree.

Here, the completed robbery and the attempted robberies were charged pursuant to Penal Law § 160.15 (4), which provides that a person commits robbery in the first degree when “he forcibly steals property and when, in the course of the commission of the crime or of immediate flight therefrom, he or another participant in the crime . . . [d]isplays what appears to be a pistol, revolver, rifle, shotgun, machine gun or other firearm.” As the People correctly concede, and the majority acknowledges (*see* majority op at 376), under the first prong of the *Laureano* analysis, the statutory elements of attempted robbery in the first degree and robbery in the first degree obviously overlap. Thus, the People were required to demonstrate the legality of consecutive sentences “by ‘identifying the facts which support their view’ that the crimes were committed by separate acts” (*Rodriguez*, 25 NY3d at 244, quoting *Laureano*, 87 NY2d at 644).

The majority concludes that the People have met that burden because defendant committed a separate and distinct act by taking the robbery victim’s purse (*see* majority op at 376, 377). In the majority’s view, *People v Ramirez* (89 NY2d 444 [1996])

supports that determination. I disagree. *Ramirez* requires the conclusion that the mere taking of property completed through the display of a firearm—the relevant actus reus—without a separate act of force or threat of force used to accomplish the taking, does not authorize consecutive sentences on the robbery and attempted robbery charges.

In *Ramirez*, armed gunmen surrounded a vehicle being used to transport payroll bags and ordered the two guards making the delivery to the ground. One of the guards, Donahue, complied, but the other guard, Bailey, was shot several times when he attempted to move. The gunmen removed Donahue's firearm from his waistband, and Donahue "heard rummaging around in the vehicle where he had left the payroll bags belonging to the Money Center" (*id.* at 448-449). Ultimately, Donahue's gun, Bailey's gun, and the cash were all stolen (*see id.* at 449). The defendant was charged with nine counts of robbery in the first degree: three counts relating to the theft of Donahue's gun, three counts relating to the theft of Bailey's gun, and three counts relating to the theft of the Money Center's property (*see id.* at 449 and n 2).

This Court held that the sentences imposed on the counts relating to the theft of Bailey's gun could run consecutively to the sentences imposed on the counts relating to the thefts from Donahue and the Money Center because "the violent and repeated shooting of Bailey was a separate and distinct act which was not a material element of the forcible theft of Donahue's gun and the payroll bags" (*id.* at 454). Rather, the forcible theft of Donahue's gun and the payroll bags was accomplished through the display of a firearm alone. The Court further held, however, that the sentences imposed on the counts relating to the theft of Donahue's weapon and the theft of the Money Center's payroll bags had to run concurrently. The Court reasoned that the fact "that defendant was armed and displayed an obvious and actual firearm before Donahue was a necessary element of the robbery of the payroll belonging to the Money Center," and that the crimes were not separate and distinct because "[d]espite the fact that the stolen property belonged to two different victims, it is *the acts of the defendant* that control" (*id.* at 453 [emphasis added]). In other words, the actus reus of the counts pertaining to the robberies of Donahue and the Money Center "was merely a single inseparable act violative of more than one statute which thereby warrants a single punishment" (*id.* [internal quotation marks and emphasis omitted]).

Importantly, the Court required the sentences to run concurrently even though the property stolen was located in different places, and therefore required the defendant and/or his accomplices to engage in at least two different acts, or “bodily movement[s]” (see *Laureano*, 87 NY2d at 644, citing Penal Law § 15.00 [1]), to accomplish the theft of property. Donahue’s weapon was in his waistband when it was taken, and the payroll bags were in the vehicle (see *Ramirez*, 89 NY2d at 448-449). Thus, although the gunmen engaged in only one threat of force to accomplish those takings—the display of weapons and an order to get on the ground—the gunmen had to engage in separate “acts” or “bodily movements” to complete the robberies by taking Donahue’s gun from his waistband and by removing the payroll bags from the vehicle. The Court nevertheless required the sentences imposed on the counts relating to the theft of Donahue’s gun to run concurrently with the sentences imposed on the counts relating to the theft of the payroll bags from the Money Center (see *id.* at 453-454).

With this understanding of *Ramirez*, the People’s argument that a consecutive sentence was authorized for the completed robbery because defendant engaged in a separate act or “bodily movement” to take the purse does not withstand scrutiny. The victim of the completed robbery testified at trial that as she was complying with defendant’s demands to drop to the ground, she put her purse on the ground next to her. She further testified that defendant “kicked [her] purse over to his friend and told him to pick it up, which he did.” She did not testify that defendant accomplished the taking of her purse through any additional act or threat of force directed specifically at her. Under *Laureano* and *Ramirez*, then, the relevant actus reus was the same for both the completed robbery and the attempted robberies—the display of a firearm—and the taking of the purse was not a separate and distinct act authorizing consecutive sentences. Concurrent sentences were therefore required.

If the People were correct about the proper interpretation of *Ramirez*, consecutive sentences would have been permissible for the theft of Donahue’s gun and the theft of the payroll bags. The rule that can be distilled from *Ramirez* is that separate and distinct acts of force or threats of force against a particular victim may authorize consecutive sentences for robbery, but if a single act or threat of force is used to accomplish a robbery of multiple victims, the mere taking or asportation of property, even if accomplished through separate “bodily movements,”

does not allow for consecutive sentencing. The People do not argue that defendant's act of kicking the purse to his accomplice was an act of force or threat of force against the robbery victim herself, so the Court's analysis in *Ramirez* regarding the counts pertaining to the robbery of Bailey is inapposite, inasmuch as a separate and distinct act of force was committed against Bailey (see *Ramirez*, 89 NY2d at 454). Here, defendant concedes that a consecutive sentence would have been authorized had he committed a separate act or threat of force against the robbery victim herself.

One might posit that our holding in *Ramirez* was a result of the fact that the Money Center was a company and not a human victim against which an act or threat of force could be directed. We stated in *Ramirez*, however, that “[d]espite the fact that the stolen property belonged to two different victims, *it is the acts of the defendant that control*” (*id.* at 453 [emphasis added]). We have consistently examined the actions of the defendant, and not the number of victims, even those of the human variety, in determining whether consecutive sentences were legally authorized. For example, in *People v McKnight* (16 NY3d 43 [2010]), we held that consecutive sentences were permissible for the shooting of two victims because the defendant and his accomplice fired multiple shots at the victims, but we noted that “[i]f it were otherwise—if the two shots that hit [the first victim] were the only shots fired at [the second victim]—we would agree that concurrent sentencing was mandated” (*id.* at 48-49). Similarly, in *People v Battles* (16 NY3d 54 [2010], *cert denied* 565 US 828 [2011]), we held that consecutive sentences were authorized where the defendant engaged in separate acts by pouring gasoline over three victims (see *id.* at 57, 59). With respect to a fourth victim, however, who “was never doused with gasoline, but rather, was sprayed as a result of the dousing of the others,” we held that a concurrent sentence was required (*id.* at 59).

Here, defendant accomplished both the completed robbery and the attempted robberies through an action directed toward the group as a whole—he waved the gun at the group collectively and threatened them collectively with death if they did not comply with his demands to get on the ground. Again, the taking of the purse did not involve a separate act or threat of force directed against the robbery victim herself, but rather the mere asportation of property, which, pursuant to our holding in *Ramirez*, does not authorize consecutive sentences under Penal

Law § 70.25 (2). The People did not meet their burden to demonstrate that defendant directed any act of force or threat of force at the robbery victim in particular.

In contrast, under the majority's holding, even if a robbery of a group of people is accomplished through one singular act of force or threat of force, a consecutive sentence will be authorized for each instance where the defendant engages in a separate bodily movement to accomplish the taking of property. This holding is contrary to our decision in *Ramirez*.¹

Whether the taking of the purse was a separate and distinct act is not a factual question for the trial court to resolve in its discretion. This Court has no power to resolve factual questions. Accordingly, if the issue whether the People have met their burden to demonstrate that the defendant committed the crimes through separate and distinct acts were a factual question, this Court would have no power to address it. Yet we have addressed it, many times (*see e.g. Rodriguez*, 25 NY3d at 244-245 [holding that the People demonstrated that the crimes at issue were committed by separate and distinct acts]; *Ramirez*, 89 NY2d at 452-454 [rejecting the People's argument regarding separate and distinct acts with respect to certain counts, but holding that the People met their burden on that issue with respect to other counts]; *Laureano*, 87 NY2d at 644-645 [holding that the People failed to meet their burden to demonstrate that the crimes involved two separate and distinct acts]). These cases demonstrate that although the issue involves some factual analysis, we have treated the issue whether the People met their burden to demonstrate that the crimes were committed through separate and distinct acts as a legal question. Once the People have met their legal burden to establish that the crimes were committed through separate and distinct acts, *then* the sentencing court has the discretion to impose consecutive or concurrent sentences (*see Rodriguez*, 25 NY3d at 244). Here, the People did not meet that burden.

1. Moreover, the majority's holding could produce anomalous results. If, for example, a defendant approaches a group of five people, displays a firearm, and collectively directs them to throw their wallets toward him, the defendant's separate acts of bending down to pick up each of the five wallets from the ground will permit five consecutive sentences for robbery under the majority's analysis. The majority states that consecutive sentences may be legally authorized under that scenario, but that the sentencing court would have the discretion to impose either consecutive or concurrent sentences (*see* majority op at 377 n 4). In my view, however, *Ramirez* requires the conclusion that consecutive sentences would not be permissible in that scenario, and the sentencing court would be required by law to impose concurrent sentences.

I therefore would hold that the taking of the purse was not a separate and distinct act authorizing a consecutive sentence for the completed robbery. Defendant legally could be charged with four different counts of robbery or attempted robbery, one for each victim, but because defendant accomplished those robberies through the same act or threat of force, concurrent sentences were required under the Penal Law. I would modify the order of the Appellate Division by requiring that the sentence imposed on count two be served concurrently with the sentences imposed on counts five through seven.

II.

With respect to the second appeal, the sentence imposed on count one, charging defendant with attempted felony murder in the first degree, was required to run concurrently with the sentence imposed on the underlying felony. I agree with the majority that, due to the possibility that the People could correct their failure to specify the underlying felony during a retrial on count one, defendant's plea was rational and need not be vacated. I write separately, however, because in my view, the Court should definitively reject the People's argument that the sentence imposed on the attempted first-degree felony murder charge could run consecutively to the sentence imposed on the underlying felony.

A.

I agree with the majority's observation that this Court has not yet directly addressed whether a sentence imposed upon a conviction of murder in the first degree pursuant to Penal Law § 125.27 (1) (a) (vii), i.e., first-degree felony murder, must run concurrently with the sentence imposed on the underlying felony (*see* majority op at 378). New York courts have long held, however, that a sentence imposed upon a conviction of second-degree felony murder must run concurrently with the sentence imposed on the underlying felony (*see e.g. People v Parks*, 95 NY2d 811, 815 [2000]; *People v Dennis*, 91 AD3d 1277, 1280 [4th Dept 2012], *lv denied* 19 NY3d 995 [2012]; *People v Faulkner*, 36 AD3d 951, 953 [3d Dept 2007], *lv denied* 8 NY3d 922 [2007]; *People v Leftenant*, 22 AD3d 603, 605 [2d Dept 2005], *lv denied* 6 NY3d 755 [2005]; *People v Slater*, 268 AD2d 260, 260-261 [1st Dept 2000], *lv denied* 94 NY2d 925 [2000], *lv denied upon reconsideration* 95 NY2d 892 [2000]; *People v Leo*, 255 AD2d 458, 459 [2d Dept 1998], *lv denied* 93 NY2d 973 [1999]). The People do not contest this authority.

Rather, the People argue that the same rule should not apply to first-degree felony murder. The People contend that, in contrast to second-degree felony murder, with respect to first-degree felony murder, “the ‘in furtherance’ element of the attempted murder is part of the mens rea rather than the actus reus,” and, as such, “the acts constituting robbery and attempted murder are separate even though the intents served by those separate acts are interrelated.”

The People’s argument is without merit. Both the second-degree felony murder statute and the first-degree felony murder statute require the homicide to be committed “in the course of and in furtherance of” the underlying felony or immediate flight therefrom (*see* Penal Law §§ 125.25 [3]; 125.27 [1] [a] [vii]).² To the extent the People’s argument is based on the mens rea of first-degree felony murder, which, unlike second-degree felony murder, requires the defendant to commit the murder intentionally (*see* Penal Law § 125.27 [1]), this Court has always held that it is the acts of the defendant, and not the intent with which he or she acted, that control for consecutive sentencing purposes (*see McKnight*, 16 NY3d at 49; *People v Frazier*, 16 NY3d 36, 41 [2010]; *Laureano*, 87 NY2d at 644).

To the extent that the People argue that first-degree felony murder is distinguishable from second-degree felony murder because first-degree felony murder requires both an underlying felony and an intentional killing committed by the defendant himself, that argument is refuted by the Court’s holding in *People v Rosas* (8 NY3d 493 [2007]). In *Rosas*, the defendant shot his former girlfriend and her husband to death (*see id.* at 495). Even though the victims were killed by separate shots, and the defendant therefore engaged in two separate actions to accomplish the killings, the Court held that concurrent sentences were required for each count of murder in the first degree because Penal Law § 125.27 (1) (a) (viii) “requires multiple victims to constitute a single offense and thus contemplates the possibility of multiple shots” (*id.* at 499). The Court reasoned that it must “consider the *entire* actus reus of the offense with *all its components* when determining whether consecutive sentences are appropriate” (*id.* at 497 [emphasis added]).

2. For this reason, the People’s reliance on *People v Rodriguez*, where consecutive sentences were permissible (25 NY3d 238, 245 [2015]), is unavailing.

Likewise, the first-degree felony murder statute requires both an intentional killing *and* an underlying felony to constitute a single offense, and therefore contemplates the possibility of multiple acts or “bodily movements” encompassed within a single offense (*see* Penal Law § 125.27 [1] [a] [vii]). Consequently, the fact that defendant here engaged in separate acts to accomplish the underlying felony and to shoot the male victim does not authorize consecutive sentencing, because the statute requires that the defendant commit both an intentional homicidal act and an underlying felony to be guilty of the offense.

If the People wanted to ensure the possibility of a consecutive sentence on the attempted murder count, the People could have charged defendant with attempted second-degree murder under Penal Law § 125.25 (1), which would not have required proof that defendant shot the victim during the course of and in furtherance of a robbery or attempted robbery. Then, however, the People would have been unable to request a sentence with a maximum term of life imprisonment (*see generally* *Rosas*, 8 NY3d at 499-500).

The majority acknowledges that at the time of defendant’s plea, there was case law from the Second and Third Departments holding that a sentence for first-degree felony murder must run concurrently with the sentence imposed on the underlying felony (*see* majority op at 378, citing *People v Cherry*, 46 AD3d 1234, 1238 [3d Dept 2007], *lv denied* 10 NY3d 839 [2008], *People v Middleton*, 32 AD3d 557, 557-558 [3d Dept 2006], and *People v Alves*, 288 AD2d 483, 484 [2d Dept 2001]). One could interpret the Fourth Department’s decision here as a holding that the sentence imposed on the attempted first-degree felony murder count could have run consecutively to the sentence imposed on the underlying felony (*see People v Couser*, 126 AD3d 1419, 1422 [4th Dept 2015]). The Court should reject the People’s arguments and conclusively hold that the sentence imposed on a first-degree felony murder charge must run concurrently with the sentence imposed on the underlying felony.³

3. The majority concludes that it has no occasion to address the issue in part because defendant failed to raise the issue of the validity of his plea as it relates to his misunderstanding of his sentencing exposure until his reply brief (*see* majority op at 380). I respectfully disagree. In his main brief filed with this Court, as part of his contention that the record fails to demonstrate

(n. cont’d)

B.

The People failed to specify in the indictment or during trial which count of robbery or attempted robbery served as the underlying felony for the attempted murder count, and the court did not clarify that issue in its instructions to the jury. It is well settled that in that situation, the sentence imposed on the attempted first-degree felony murder count was required to run concurrently with *all* the sentences imposed on the robbery and attempted robbery counts (*see Parks*, 95 NY2d at 815).

Before retrial on count one, defendant pleaded guilty to attempted murder in the first degree as charged in the indictment, not to a lesser included offense. Although he also received the minimum sentence of 15 years' to life imprisonment as part of the plea bargain, the possibility that he could receive the maximum sentence of 25 years to life if convicted on count one after retrial would have been of no consequence to defendant, who was already serving a determinate term of 48 years' imprisonment, so long as the sentence on count one was concurrent. As I have explained, defendant would have been entitled to a concurrent sentence on count one by law even if he were convicted after trial. If not for the possibility that, during the retrial on count one, the People could have specified which robbery or attempted robbery was the underlying felony for the attempted felony murder charge, I would agree with defendant that vacatur of his plea is required.

As the majority notes, however, the People could have specified during a retrial on count one that the underlying felony for the attempted felony murder was count five, charging defendant with the attempted robbery of the shooting victim (*see* majority op at 380). I agree with the majority that the possibility that the People could have corrected that lack of specificity during a retrial on count one renders defendant's decision to accept a plea bargain in which he received the minimum concurrent sentence knowing and rational. I therefore concur in the majority's resolution of the second appeal.

that his guilty plea was knowing, voluntary, and intelligent, defendant argued that his misunderstanding of his sentencing exposure "casts substantial doubt on the voluntariness of the plea as it appears to undermine any reasonable motive [defendant] might have had for pleading guilty to a crime that he insisted he did not commit." Defendant contended that it should be clear under the circumstances that a decision to plead guilty "would *not* be knowing and rational if there is no legal possibility of consecutive sentences."

In *People v Couser* (Appeal No. 1): Order, insofar as appealed from, affirmed.

Opinion by Judge ABDUS-SALAAM. Chief Judge DiFIORE and Judges PIGOTT and GARCIA concur. Judge FAHEY dissents in part in an opinion in which Judges RIVERA and STEIN concur, Judge STEIN concurring in so much of the opinion as relates to the appeal herein.

In *People v Couser* (Appeal No. 2): Order affirmed.

Opinion by Judge ABDUS-SALAAM. Chief Judge DiFIORE and Judges PIGOTT, STEIN and GARCIA concur, Judge STEIN concurring in so much of the opinion as relates to the appeal herein. Judge FAHEY concurs in result in a separate concurring opinion in which Judge RIVERA concurs.

[68 NE3d 45, 45 NYS3d 320]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES BROWN, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRENCE YOUNG, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v EARL CANADY, Respondent.

Argued November 14, 2016; decided December 20, 2016

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 17, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Gregory Carro, J., at speedy trial motion, suppression hearings and first trial; Ruth Pickholz, J., at second trial), which had convicted defendant, upon a jury verdict, of robbery in the first degree.

APPEAL, in the second above-entitled action, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, decided February 17, 2015. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Kings County (Miriam Cyrulnik, J.), which had convicted defendant, after a nonjury trial, of disorderly conduct. The appeal to the Appellate Term brought up for review an order of that Criminal Court (David Godosky, J.) which had denied defendant's motion to dismiss the accusatory instrument on statutory speedy trial grounds.

APPEAL, in the third above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, decided December 31, 2015. The Appellate Term affirmed so much of an order of the Criminal Court of the City of New York, Kings County (ShawnDya L. Simpson, J.), as had, upon reargument, granted the branch of defendant's motion seeking to dismiss the accusatory instrument on the ground that he was denied his statutory right to a speedy trial pursuant to CPL 30.30.

People v Brown, 126 AD3d 516, reversed.

People v Young, 46 Misc 3d 142(A), 2015 NY Slip Op 50171(U), affirmed.

People v Canady, 50 Misc 3d 132(A), 2015 NY Slip Op 51942(U), reversed.

HEADNOTES

Crimes — Right to Speedy Trial — Illusory Statement of Readiness for Trial — Burden of Proof

1. In the event of a change in the People's readiness status, a previously filed off-calendar statement of readiness is presumed truthful and accurate for speedy trial purposes; the presumption can be rebutted by a defendant's demonstration that the People were not, in fact, ready at the time the statement was filed. If the defendant challenges such a statement—at a calendar call, in a CPL 30.30 motion, or both—the People must establish a valid reason for their change in readiness status to ensure that a sufficient record is made for the court to determine whether the delay is excusable. The defendant then bears the ultimate burden of demonstrating, based on the People's proffered reasons and other relevant circumstances, that the prior statement of readiness was illusory. Requiring exceptional circumstances to justify a subsequent statement of non-readiness when the People were actually ready at the time they filed their statement of readiness ignores prior holdings placing the ultimate burden on the defendant in the postreadiness context to show that delay should be charged to the People and creates a new definition of an illusory statement that finds no support in case law.

Crimes — Right to Speedy Trial — Illusory Statement of Readiness for Trial

2. Defendant was not entitled to dismissal of his criminal prosecution on speedy trial grounds, where defendant failed to demonstrate as a matter of law that the People's off-calendar statement of readiness for trial was illusory. To be effective, a statement of readiness must be communicated on the record at a time when the People are truly ready to proceed. A statement of readiness at a time when the People are not actually ready is illusory and insufficient to stop the running of the speedy trial clock. In the absence of proof that a readiness statement did not accurately reflect the People's position, the People have discharged their duty under CPL 30.30. On the court date following the People's statement of readiness, the People announced that they were not ready because the assigned prosecutor "just found out [the day before] that there [was] a [New York City Housing Authority] [h]earing related to the case." Because the prosecutor did not know of the hearing transcript at the time of the off-calendar statement of readiness, defendant failed to establish that the statement did not accurately reflect the People's position.

Crimes — Right to Speedy Trial — Delay Attributable to Court — Adjournment Period Exceeding People's Request

3. In a criminal prosecution in which the People requested a six-day adjournment but the trial court adjourned the matter for 47 days, the trial court erred in charging the People for speedy trial purposes with the entire 41-day period between the final day of the People's requested adjournment and the People's off-calendar statement of readiness, as the postreadiness

delay beyond the six days requested by the People was attributable to the court and was therefore excludable. Postreadiness delay may be charged to the People when the delay is attributable to their inaction and directly implicates their ability to proceed to trial. By contrast, postreadiness delay attributable to the court is not charged to the People. Thus, as to periods of delay that occur following the People's statement of readiness, any period of an adjournment in excess of that actually requested by the People is excluded. Even if the People's statement of readiness filed the day before the end of the adjournment period was illusory, the courts below should have charged the People going forward from the illusory statement as if that statement had never been made. They should not have attributed past court delay to the People.

Crimes — Right to Speedy Trial — Failure to Establish Valid Reason for Unreadiness

4. A summary disposition of defendant's motion to dismiss the indictment on speedy trial grounds pursuant to CPL 30.30 was not warranted, where the People failed to establish a valid reason for their unreadiness in response to defendant's motion. Although the defendant bears the ultimate burden of demonstrating that a statement of readiness is illusory, the People retain the obligation in the postreadiness context to ensure that the record explains the cause of adjournments sufficiently for the court to determine which party should properly be charged with any delay. Accordingly, if the People announce that they are not ready after they have filed an off-calendar statement of readiness, the People ultimately must explain the reason for their change in readiness status. The People must establish a valid reason for their unreadiness in response to a defendant's CPL 30.30 motion. Here, during a calendar call after the People had filed an off-calendar statement of readiness, the People answered not ready for trial. The People failed to state a reason for their unreadiness at the calendar call or in response to defendant's CPL 30.30 motion. With respect to defendant's motion, however, defendant first challenged the People's off-calendar statement of readiness in reply papers filed after the People had opposed the motion. Thus, the record was insufficient to determine whether the statement of readiness was illusory.

Crimes — Identification of Defendant — Lineup — Independent Source for Victim's Identification of Defendant

5. In a criminal prosecution in which the People conceded that the pretrial lineup at which a victim identified defendant was unduly suggestive, the trial court did not abuse its discretion in denying defendant's requests that he not be required to sit next to his counsel during the witnesses' attempts to identify him at trial. Following the suggestive pretrial lineup, the court concluded that an independent source existed for the victim's in-court identification of defendant. Although the victim's companion was not the subject of an independent source hearing, he did not participate in any pretrial identification. Accordingly, because defendant failed to sufficiently cast doubt on the reliability of the witnesses' identification testimony or otherwise demonstrate impermissible suggestiveness by the traditional in-court identification procedure, no abuse was apparent.

Crimes — Appeal — Preservation of Issue for Review — Trial Court's Voir Dire Procedure

6. Defendant failed to preserve for appellate review his challenge to the trial court's procedure of conducting its own voir dire of potential jurors before allowing each counsel five minutes to question them, where defense

counsel did not object to the court's procedure during trial. The procedure was not a mode of proceedings error reviewable by the Court of Appeals in the absence of preservation, as it is incumbent on counsel to object to temporal limitations concerning voir dire. Further, the fact that a trial court has discretion concerning the scope of voir dire demonstrates that errors in that context do not go to the essential validity of the process thereby excusing preservation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review § 575; AM JUR Criminal Law §§ 933, 937; AM JUR Evidence §§ 638, 1401.

CARMODY-WAIT 2d Eyewitness Identification Procedures § 174:3; CARMODY-WAIT Timeliness of Prosecution; Speedy Trial §§ 186:40, 186:103, 186:115, 186:125, 186:132, 186:141, 186:142; CARMODY-WAIT Appeals in Criminal Cases §§ 207:18, 207:27.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 7.1, 7.4, 18.1–18.3, 27.5.

McKINNEY'S, CPL 30.30.

NY JUR 2d Criminal Law: Procedure §§ 674, 1879, 1924, 1927–1930, 1954, 1957, 1966, 1968, 3556, 3563.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Line-ups; Speedy Trial.

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POINTS OF COUNSEL

Robert DiDio & Associates, Kew Gardens (*Danielle Muscatello* of counsel), for appellant in the first above-entitled action. I. Where a defendant challenges the validity of an off-calendar certificate of readiness, the court must conduct an inquiry, whereby the People bear the burden of showing the certificate accurately reflected the People's position as to readiness at the time the statement was made. (*People v Kendzia*, 64 NY2d 331; *People v Lomax*, 50 NY2d 351; *People v Osgood*, 52 NY2d 37; *People v Sinistaj*, 67 NY2d 236; *People v Cintron*, 161 Misc 2d 335; *People v Rodriguez*, 150 AD2d 265; *People v Chavis*, 91 NY2d 500; *People v Liotta*, 79 NY2d 841; *People v Stiles*, 70

NY2d 765; *People v Hamilton*, 46 NY2d 932.) II. The trial court abused its discretion and deprived appellant of his right to meaningful participation in jury selection. (*Gomez v United States*, 490 US 858; *People v Pepper*, 59 NY2d 353; *People v Jean*, 75 NY2d 744; *People v Boulware*, 29 NY2d 135; *People v Steward*, 17 NY3d 104; *Batson v Kentucky*, 476 US 79; *People v Hecker*, 15 NY3d 625; *People v Payne*, 88 NY2d 172; *People v Smocum*, 99 NY2d 418.) III. The trial court's failure to give counsel a fair opportunity to question potential jurors was a mode of proceedings error, thereby exempting the error from traditional preservation requirements. (*People v Gray*, 86 NY2d 10; *People v Patterson*, 39 NY2d 288; *People v Payne*, 3 NY3d 266; *People v McLucas*, 15 NY2d 167; *People v O'Rama*, 78 NY2d 270; *People v Ahmed*, 66 NY2d 307; *People v Mathis*, 272 AD2d 250; *People v Rivera*, 23 NY3d 827; *People v Silva*, 24 NY3d 294; *People v Udzenski*, 146 AD2d 245.) IV. The trial court committed a second mode of proceedings error by taking the jury's verdict without responding to a portion of a jury note requesting substantive information. (*People v O'Rama*, 78 NY2d 270; *People v Silva*, 24 NY3d 294; *People v Kisoon*, 8 NY3d 129; *People v Cotton*, 127 AD3d 778; *People v Garrow*, 126 AD3d 1362; *People v Mack*, 117 AD3d 1450.) V. The trial court's failure to employ alternative nonsuggestive in-court identification procedures was an abuse of discretion and violated appellant's constitutional right to a fair trial. (*United States v Wade*, 388 US 218; *Moore v Illinois*, 434 US 220; *United States v Archibald*, 734 F2d 938; *People v Nathan*, 147 Misc 2d 152; *People v Riley*, 70 NY2d 523; *United States v Brown*, 699 F2d 585; *People v Bradley*, 154 AD2d 609; *People v Simpson*, 125 AD2d 347; *People v Merced*, 137 AD2d 562.)

Cyrus R. Vance, Jr., District Attorney, New York City (Sylvia Wertheimer and Patrick J. Hynes of counsel), for respondent in the first above-entitled action. I. The People met their speedy trial obligations. (*People v Sibblies*, 22 NY3d 1174; *People v Chavis*, 91 NY2d 500; *People v Kastner*, 132 AD3d 420; *People v Reed*, 19 AD3d 312; *People v Khan*, 18 NY3d 535; *People v Mannino*, 306 AD2d 157; *People v Anderson*, 66 NY2d 529; *People v Cortes*, 80 NY2d 201; *People v England*, 84 NY2d 1; *People v McKenna*, 76 NY2d 59.) II. This Court is not authorized to review defendant's unpreserved claim that the trial court unduly restricted attorney questioning of prospective jurors, and in any case, the claim lacks substantive merit. (*People v Steward*, 17 NY3d 104; *People v Gray*, 86 NY2d 10; *People v Peque*, 22 NY3d 168; *People v Turriago*, 90 NY2d 77; *People v*

Galeano, 111 AD3d 537, 22 NY3d 1198; *People v Nealon*, 26 NY3d 152; *People v Alcide*, 21 NY3d 687; *People v Finch*, 23 NY3d 408; *People v Kelly*, 5 NY3d 116; *People v Agramonte*, 87 NY2d 765.) III. The corrected transcript establishes that the trial court responded to all the jury notes, including the portion of one note that the prior transcript did not affirmatively indicate had been addressed. (*People v Walston*, 23 NY3d 986; *People v Kisoona*, 8 NY3d 129; *People v Silva*, 24 NY3d 294.) IV. Defendant was not entitled to an in-court lineup. (*United States v Archibald*, 734 F2d 938; *People v Bradley*, 154 AD2d 609; *People v Brooks*, 39 AD3d 428; *People v Madison*, 8 AD3d 956; *People v Simpson*, 125 AD2d 347; *Manson v Brathwaite*, 432 US 98; *Neil v Biggers*, 409 US 188; *People v Adams*, 53 NY2d 241; *People v Marte*, 12 NY3d 583; *People v Brazeau*, 304 AD2d 254.)

The Legal Aid Society, New York City (Thomas M. O'Brien of counsel), for the Legal Aid Society, amicus curiae. I. The prosecution must have the burden to show that changed circumstances caused its non-readiness after having claimed to be ready. (*People v Sibblies*, 22 NY3d 1174; *People v Douglas*, 264 AD2d 671; *People v Camillo*, 279 AD2d 326; *People v Anderson*, 66 NY2d 529; *People v Acosta*, 249 AD2d 161; *People v Cortes*, 80 NY2d 201; *People v Bonilla*, 94 AD3d 633.) II. The standard the prosecution must satisfy to meet its burden is to show that exceptional circumstances caused its non-readiness. (*People v Ramos*, 45 Misc 3d 1219; *People v Monegro*, 49 Misc 3d 1202; *People v Kelly*, 44 Misc 3d 1211; *People v Johnson*, 44 Misc 3d 469; *People v Farrell*, 47 Misc 3d 524; *People v Price*, 14 NY3d 61; *People v Harris*, 49 Misc 3d 1206.)

Cleary Gottlieb Steen & Hamilton LLP, New York City (Ari D. MacKinnon, Darryl G. Stein and Molly B. Calkins of counsel), for The Bronx Defenders, amicus curiae. I. CPL 30.30 requires the People's actual readiness for trial. (*People v Chavis*, 91 NY2d 500; *People v England*, 84 NY2d 1; *People v Kendzia*, 64 NY2d 331; *People v Naim*, 46 Misc 3d 150[A], 2015 NY Slip Op 50270[U]; *People v Colon*, 59 NY2d 921; *People v Brooks*, 190 Misc 2d 247; *People v Minor*, 144 Misc 2d 846; *People v Lomax*, 50 NY2d 351; *People v Sibblies*, 22 NY3d 1174; *People v Proscia*, 49 Misc 3d 127[A], 2015 NY Slip Op 51373[U].) II. The People bear the burden of excluding periods of delay. (*People v Santos*, 68 NY2d 859; *People v Kendzia*, 64 NY2d 331; *People v Sibblies*, 22 NY3d 1174; *People v Carter*, 91 NY2d 795; *People v Liotta*, 79 NY2d 841; *People v Stirrup*, 91 NY2d

434; *People v Salgado*, 27 AD3d 71; *People v Sullivan*, 44 Misc 3d 1227[A], 2014 NY Slip Op 51357[U]; *People v Farrell*, 47 Misc 3d 524; *People v McLeod*, 44 Misc 3d 505.)

Thomas P. Zugibe, District Attorneys Association of the State of New York (Sarah S. Rabinowitz, Morrie I. Kleinbart, Itamar J. Yeager and Tammy J. Smiley), for District Attorneys Association of the State of New York, amicus curiae. This Court did not require the imposition of an unfeasible “exceptional circumstances” burden on the prosecution in *People v Sibblies* (22 NY3d 1174 [2014]), and should not do so now. (*People v Anderson*, 105 AD2d 38, 66 NY2d 529; *People v Kendzia*, 64 NY2d 331; *People v Stirrup*, 91 NY2d 434; *People v Acosta*, 249 AD2d 161, 92 NY2d 892; *People v Martin*, 28 AD3d 583; *People v Douglas*, 264 AD2d 671, 94 NY2d 862; *People v Miller*, 113 AD3d 885; *People v Camillo*, 279 AD2d 326; *People v Santana*, 233 AD2d 344; *People v Vargas*, 152 Misc 2d 377.)

Seymour W. James, Jr., The Legal Aid Society, New York City (Jonathan Garelick of counsel), for appellant in the second above-entitled action. Where the People filed an off-calendar statement of readiness after stating not ready for three consecutive adjournments, and then were once again not ready at the next court date, and where the stated reason for their unreadiness on that date was their need to review the transcript of a proceeding that had occurred months earlier, the off-calendar claim of readiness was illusory and the People were thus chargeable with the entire 60-day adjournment, resulting in a total delay of over 90 days. (*People v Sibblies*, 22 NY3d 1174; *People v Chavis*, 91 NY2d 500; *People v Carter*, 91 NY2d 795; *People v McKenna*, 76 NY2d 59; *People v England*, 84 NY2d 1; *People v Price*, 14 NY3d 61; *People v Bolden*, 81 NY2d 146; *People v Bonilla*, 94 AD3d 633; *People v Stirrup*, 91 NY2d 434.)

Eric Gonzalez, Acting District Attorney, Brooklyn (Leonard Joblove, Seth M. Lieberman and Jill Oziemblewski of counsel), for respondent in the second above-entitled action. The People did not exceed the applicable 90-day time limit under CPL 30.30. (*People v Wells*, 24 NY3d 971; *People v Farkas*, 16 NY3d 190; *People v Cooper*, 98 NY2d 541; *People v Sinistaj*, 67 NY2d 236; *People v Osgood*, 52 NY2d 37; *People v Cortes*, 80 NY2d 201; *People v Sibblies*, 22 NY3d 1174; *People v Carter*, 91 NY2d 795; *People v Johnson*, 191 AD2d 709; *People v Kendzia*, 64 NY2d 331.)

Eric Gonzalez, Acting District Attorney, Brooklyn (Seth M. Lieberman, Leonard Joblove and Ann Bordley of counsel), for appellant in the third above-entitled action. The People did not violate defendant's statutory right to a speedy trial. (People v Cooper, 98 NY2d 541; People v Cortes, 80 NY2d 201; People v Goss, 87 NY2d 792; People v Boumoussa, 104 AD3d 863; People v Rivera, 223 AD2d 476; People v Jacobs, 45 AD3d 883; People v McCray, 238 AD2d 442; People v Dorilas, 19 Misc 3d 75; People v Coker, 131 AD2d 585; People v Jones, 151 Misc 2d 582.)

Seymour W. James, Jr., The Legal Aid Society, New York City (Andrew C. Fine of counsel), for respondent in the third above-entitled action. The Appellate Term properly dismissed the information pursuant to CPL 30.30, because (a) it correctly included a postreadiness dispositive period of 41 days following the People's request for a brief adjournment, when they admitted their unreadiness on the next court date, a single day after having filed an off-calendar declaration of readiness; and (b) the People admitted, after having requested brief adjournments over a span of four months, that they had been unable to contact the complainant throughout this period, thereby demonstrating their continued unreadiness. (People v Cortes, 80 NY2d 201; People v Brothers, 50 NY2d 413; People ex rel. Franklin v Warden, Brooklyn House of Detention for Men, 31 NY2d 498; People v Price, 14 NY3d 61; People v Marsh, 127 AD2d 945; People v Ramos, 45 Misc 3d 1219[A], 2014 NY Slip Op 51631[U]; People v Stirrup, 91 NY2d 434; People v Liotta, 79 NY2d 841; People v Luperon, 85 NY2d 71; People v Hinton, 81 NY2d 867.)

OPINION OF THE COURT

PIGOTT, J.

[1] In each of these appeals, defendants moved to dismiss the accusatory instrument on speedy trial grounds pursuant to CPL 30.30 (1) arguing that the People's off-calendar statements of readiness were illusory because the People were not ready for trial at the next court appearance. The common issue—left open in *People v Sibblies* (22 NY3d 1174 [2014])—is whether, in the event of a change in the People's readiness status, the People or the defendant have the burden of showing that a previously filed off-calendar statement of readiness is illusory. We hold that such a statement is presumed truthful and accurate—a presumption that can be rebutted by a defend-

ant's demonstration that the People were not, in fact, ready at the time the statement was filed. If the People announce that they are not ready after having filed an off-calendar statement of readiness, and the defendant challenges such statement—at a calendar call, in a CPL 30.30 motion, or both—the People must establish a valid reason for their change in readiness status to ensure that a sufficient record is made for the court to determine whether the delay is excludable. The defendant then bears the ultimate burden of demonstrating, based on the People's proffered reasons and other relevant circumstances, that the prior statement of readiness was illusory.

I

People v Young

In January 2009, defendant Terrence Young was charged in a misdemeanor complaint with, among other things, assault in the third degree and disorderly conduct. After defendant was arraigned, the People filed an off-calendar statement of readiness and announced ready at several subsequent court appearances.

On November 13, 2009, the People announced not ready for trial explaining that the prosecutor assigned to the case was engaged in another prosecutorial assignment. After the People requested a one-week adjournment, the court adjourned the matter. The People filed an off-calendar statement of readiness on December 18, 2009.

On January 12, 2010, the People again answered not ready for trial and requested an adjournment to January 19, 2010. The People informed the court that they had learned the day before that the New York City Housing Authority (NYCHA) had conducted a hearing related to this case at which defendant and the police officer witness, Officer Lipes, testified. The People explained that they were in the process of obtaining and reviewing the transcript of that proceeding.

The next day, January 13, 2010, the People served and filed another off-calendar statement and affirmations of readiness executed by the prosecutor and Officer Lipes. The People later explained that they had obtained and reviewed the NYCHA transcript on the evening of January 12, 2010. At the January 19, 2010 calendar call, the People stated that they were ready for trial. Defendant subsequently filed a motion to dismiss pursuant to CPL 30.30 (1) (b).

Criminal Court denied defendant's motion, rejecting his argument that the entire period from December 18, 2009 to January 12, 2010 should be charged to the People because the December 18 off-calendar statement of readiness was illusory. Defendant was subsequently convicted of disorderly conduct and given a conditional discharge.

The Appellate Term affirmed defendant's conviction, concluding that the People's December 18, 2009 off-calendar statement of readiness was "not illusory, as it accurately reflected the People's position of readiness at the time it was filed" (46 Misc 3d 142[A], 2015 NY Slip Op 50171[U], *2 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2015]). A Judge of this Court granted defendant leave to appeal (25 NY3d 1173 [2015]).

People v Canady

After defendant Earl Canady allegedly assaulted a man inside a Brooklyn building, the People filed an information on February 9, 2011 charging him with, among other things, assault in the third degree. The People announced that they were ready for trial, and the case was adjourned for open file discovery.

On March 2, 2011, the People were not ready for trial because the assigned prosecutor was engaged in a trial. The People sought an adjournment to March 8, 2011; the court adjourned the matter to April 19, 2011 stating that the People would be charged with the time from March 2 to March 8.

The People subsequently served and filed an off-calendar statement of readiness on April 18, 2011. The next day, however, at an April 19 calendar call, they announced that they were not ready for trial. The court adjourned the matter and noted that the "People will be charged until they file a statement of readiness." The transcript does not indicate why the People were unready, but the court's records indicate that the People did not have their file. The People served and filed another off-calendar statement of readiness on May 4, 2011.

The court granted defendant's CPL 30.30 (1) (b) motion and dismissed the accusatory instrument. The Appellate Term affirmed, concluding, in relevant part, that the April 18, 2011 off-calendar statement of readiness was illusory and, thus, 41 days of delay in the period from March 8, 2011 until April 18, 2011 were chargeable to the People (*see* 50 Misc 3d 132[A], 2015 NY Slip Op 51942[U] [App Term, 2d Dept, 2d, 11th &

13th Jud Dists 2015]). Given its determination, the court did not reach defendant's additional claim of time chargeable to the People. A Judge of this Court granted the People leave to appeal (27 NY3d 1067 [2016]).

People v Brown

In November 2006, defendant James Brown was charged with two counts of robbery in the first degree, and subsequently was indicted on those charges. At a July 9, 2007 court appearance, the People did not answer ready for trial and, concerning an adjourn date, stated that "7/23 is good. The week of 7/30 is bad." Supreme Court adjourned the matter to August 8, 2007. On July 17, eight days after the July 9 appearance, the People filed an off-calendar statement of readiness. This was the first time they had answered ready for trial. But at the subsequent August 8 calendar call, the People answered not ready for trial and failed to provide an explanation as to why they were not ready.

Defendant moved to dismiss the indictment on speedy trial grounds pursuant to CPL 30.30 (1) (a), arguing—for the first time in his reply papers—that the July 17, 2007 statement of readiness "was illusory as the People were not ready again on August 8." The court denied the motion and also rejected defendant's request for a hearing as to the discrepancy in the People's readiness responses.

Defendant was found guilty of one count of robbery in the first degree. He was sentenced, as a persistent violent felony offender, to a term of 22 years to life. The Appellate Division affirmed (*see* 126 AD3d 516 [1st Dept 2015]), and a Judge of this Court granted defendant leave to appeal (25 NY3d 1160 [2015]).

Defendant raises several other issues in addition to his speedy trial claim. Before trial commenced, the People conceded that a pretrial lineup at which a victim identified defendant was unduly suggestive. After conducting a hearing, the court concluded that an independent source existed for the victim to identify defendant in court. Immediately after the court's ruling, defendant requested that he not be required to sit next to his counsel during the witnesses' attempts to identify him at trial. The court rejected defendant's request. Following a mistrial, the court denied defendant's renewed request that he not be required to sit next to his counsel during attempts to identify him.

Prior to jury selection, the court notified counsel that “[i]n [her] courtroom, when you voir dire, you each have five minutes. I do everything.” The court conducted its voir dire of the jurors, and then allowed counsel to question the prospective jurors. During that inquiry, the court reiterated its five-minute rule on numerous occasions and, with the purpose of hastening voir dire, interrupted defendant’s counsel multiple times while he interacted with the prospective jurors. Defendant’s counsel however never requested additional time or objected to the court’s procedure.

II

CPL 30.30

CPL 30.30 “was enacted to serve the narrow purpose of insuring prompt prosecutorial readiness for trial, and its provisions must be interpreted accordingly” (*People v Sinistaj*, 67 NY2d 236, 239 [1986]; see *People v Price*, 14 NY3d 61, 64 [2010] [“the dominant legislative intent informing CPL 30.30 . . . (is) to discourage prosecutorial inaction”]). “CPL 30.30 (1) (a) requires the People to be ready for trial within six months of the commencement of a criminal action in which a felony is charged” and section 30.30 (1) (b) requires that the People be ready within 90 days in misdemeanor cases (*Price*, 14 NY3d at 63).

“The failure to declare readiness within the statutory time limit will result in dismissal of the prosecution, unless the People can demonstrate that certain time periods should be excluded” (*id.*). Once a defendant sufficiently alleges that the People were not ready within the statutory period, “the People [have] the burden of showing their entitlement to a statutory exclusion” (*People v Luperon*, 85 NY2d 71, 81 [1995]; see *People v Santos*, 68 NY2d 859, 861 [1986]).

“‘Ready for trial’ comprises two elements” (*People v Chavis*, 91 NY2d 500, 505 [1998]). First, there must be “‘either a statement of readiness by the prosecutor in open court, transcribed by a stenographer, or recorded by the clerk or a written notice of readiness sent by the prosecutor to both defense counsel and the appropriate court clerk’ ” (*id.*, quoting *People v Kendzia*, 64 NY2d 331, 337 [1985]). Second, “the People must in fact be ready to proceed at the time they declare readiness” (*id.*). In other words, “[t]o be effective, a statement of readiness must be communicated on the record at a time when the People are truly ready to proceed” (*People v Carter*, 91 NY2d 795, 798

[1998]). “The statute contemplates an indication of present readiness, not a prediction or expectation of future readiness” (*Kendzia*, 64 NY2d at 337).

“A statement of readiness at a time when the People are not actually ready is illusory and insufficient to stop the running of the speedy trial clock” (*People v England*, 84 NY2d 1, 4 [1994]). “[R]eadiness is not defined simply by an empty declaration that the People are prepared to present their direct case” (*id.*). “The inquiry is whether the People have done all that is required of them to bring the case to a point where it may be tried” (*id.*). “[T]he statement ‘ready for trial’ contemplates more than merely mouthing those words” (*id.* at 5).

We have held that “a notice of readiness is the kind of record commitment to proceed which satisfies the People’s duty to be ready for trial, and serves to toll the ‘speedy trial clock’ from running for the remainder of that adjournment period” (*People v Stirrup*, 91 NY2d 434, 440 [1998]). Still, “postreadiness delay may be charged to the People when the delay is attributable to their inaction and directly implicates their ability to proceed to trial” (*Carter*, 91 NY2d at 799). “By contrast, postreadiness delay attributable to the court is not charged to the People” (*People v Goss*, 87 NY2d 792, 797 [1996]). Thus, “[a]s to periods of delay that occur following the People’s statement of readiness, any period of an adjournment in excess of that actually requested by the People is excluded” (*People v Boumoussa*, 104 AD3d 863, 863 [2d Dept 2013]; see *People v Rivera*, 223 AD2d 476, 476 [1st Dept 1996], *lv denied* 88 NY2d 852 [1996]).

“In the postreadiness context, the People bear the burden of ensuring that the record explains the cause of adjournments sufficiently for the court to determine which party should properly be charged with any delay” (*Stirrup*, 91 NY2d at 440; see *People v Cortes*, 80 NY2d 201, 215-216 [1992], *rearg denied* 81 NY2d 1068 [1993]). However, “the defendant ordinarily has the burden of showing that any postreadiness adjournments occurred under circumstances that should be charged to the People” (*Cortes*, 80 NY2d at 215). Thus, “[i]n the absence of proof that [a] readiness statement did not accurately reflect the People’s position . . . , the People [have] discharged their duty under CPL 30.30” (*Carter*, 91 NY2d at 799).

This Court decided *Sibblies* upon this established precedent. In *Sibblies*, the defendant was arrested for offenses arising out of an altercation occurring during a traffic stop. After filing a

misdemeanor information, the People filed an off-calendar statement of readiness. Eight days later, the People sought medical records of the police officer injured in the altercation. About three weeks after that, the People stated that they were not ready because they were continuing to investigate and were awaiting the officer's medical records. The People filed a second statement of readiness 104 days after their speedy trial period began to run. In a short memorandum, we held that the defendant's CPL 30.30 motion should have been granted and we dismissed the information (*see* 22 NY3d at 1175). However, neither of the two concurring opinions—one written by Chief Judge Lippman and the other by Judge Graffeo—garnered a majority of the Court.

Chief Judge Lippman would have held “that, if challenged, the People must demonstrate that some exceptional fact or circumstance arose after their declaration of readiness so as to render them presently not ready for trial. The requirement of an exceptional fact or circumstance should be the same as that contained in CPL 30.30 (3) (b)” (*id.* at 1178 [Lippman, Ch. J., concurring]). “If the People cannot demonstrate an exceptional fact or circumstance, then,” in the Chief Judge’s view, “the People should be considered not to have been ready when they filed the off-calendar certificate, and the time between the filing and the following appearance cannot be excluded and should be charged to them” (*id.* [Lippman, Ch. J., concurring]). Under the facts of the case, the Chief Judge concluded that “the People’s unreadiness, while declared in good faith, was not due to the type of ‘exceptional fact or circumstance’ contemplated by CPL 30.30 (3) (b)” (*id.* at 1179 [Lippman, Ch. J., concurring]).

Judge Graffeo agreed that the defendant’s motion should have been granted, but stated that “there is a presumption that a statement of readiness is truthful and accurate” (*id.* at 1180 [Graffeo, J., concurring]). Judge Graffeo concluded that the “statement of readiness . . . did not accurately reflect the People’s position” because “within days” after the statement of readiness, the People sought the medical records and at the next calendar call “admitted that [they] were not in fact ready to proceed because they were continuing their investigation” (*id.* at 1181 [Graffeo, J., concurring]).

Today, we hold that an off-calendar statement of readiness is presumed truthful and accurate and that a defendant who challenges such a statement must demonstrate that it is il-

lusory. This holding resolves the question left open in *Sibblies* in conformance with our established CPL 30.30 precedent. Indeed, as noted above, we have ordinarily placed the burden on the defendant to show that “postreadiness adjournments occurred under circumstances that should be charged to the People” (*Cortes*, 80 NY2d at 215; *see Carter*, 91 NY2d at 799). Notably, this result accords with Appellate Division case law on the issue decided before *Sibblies* (*see People v Miller*, 113 AD3d 885, 887 [3d Dept 2014]; *People v Bonilla*, 94 AD3d 633, 633 [1st Dept 2012]).

Although the defendant bears the ultimate burden of demonstrating that a statement is illusory, the People retain the obligation in the postreadiness context to ensure “that the record explains the cause of adjournments sufficiently for the court to determine which party should properly be charged with any delay” (*Stirrup*, 91 NY2d at 440). Accordingly, if the People announce that they are not ready after they have filed an off-calendar statement of readiness, the People ultimately must explain the reason for their change in readiness status. The People could, but need not, state the reasons on the record at the calendar call. In all events, however, the People must establish a valid reason for their unreadiness in response to a defendant’s CPL 30.30 motion. In an appropriate case, the defendant can use those asserted reasons and other relevant circumstances to establish that the People were not in fact ready to proceed when they declared that they were and, thus, the off-calendar statement was illusory and ineffective to stop the speedy trial clock. If the court determines that the off-calendar statement of readiness was illusory, it should calculate any delay chargeable to the People as required by statute as if the illusory statement of readiness was never made.

We decline to adopt a rule requiring the People to establish that exceptional facts or circumstances arose after they filed their off-calendar statement of readiness causing their present unreadiness for trial. Such a rule ignores our holdings placing the ultimate burden on the defendant in the postreadiness context to show that delay should be charged to the People.

In addition, the proposed rule contravenes this Court’s definition of an illusory statement of readiness. Indeed, the second element of “ready for trial” is that the People are “ready to proceed *at the time they declare readiness*” (*Chavis*, 91 NY2d at 505 [emphasis added]). It necessarily follows that an illusory statement of readiness is one that was filed “when the People

[were] not actually ready” (*England*, 84 NY2d at 4). Requiring exceptional circumstances to justify a subsequent statement of non-readiness when the People were actually ready at the time they filed their statement of readiness creates a new definition of an illusory statement that finds no support in our cases. Instead, a statement of readiness is presumed valid, and a defendant who challenges such a statement must demonstrate that it is illusory by showing that the People were not actually ready at the time they filed it.

III

People v Young

[2] Defendant failed to demonstrate as a matter of law that the December 18, 2009 off-calendar statement of readiness was illusory. On the January 12, 2010 court date following the statement, the People announced that they were not ready because the assigned prosecutor “just found out [the day before] that there’s a NYCHA [h]earing related to the case.” This case is therefore distinguishable from *Sibblies* where “the prosecutor gave no explanation for the change in circumstances between the initial statement of readiness and the subsequent admission that the People were not ready to proceed without the medical records” (22 NY3d at 1181 [Grafteo, J., concurring]). Thus, in *Sibblies*, the People failed to explain how they were ready at a time when they did not have the medical records, but subsequently declared that they were unready to proceed without them. Here, however, because the prosecutor did not know of the NYCHA hearing transcript at the time of the December 18 off-calendar statement, defendant has failed to establish that the statement did not accurately reflect the People’s position. Consequently, the courts below properly denied defendant’s CPL 30.30 motion.

People v Canady

[3] After previously announcing ready, the People were not ready on March 2, 2011 because the assigned prosecutor was engaged in a trial. The People requested an adjournment to March 8; the court adjourned the matter to April 19, 2011. The postreadiness delay attributable to the court is not charged to the People and, thus, they should have been charged only six days (Mar. 2 to Mar. 8) for the period from March 2 to April 19, 2011 (*see Goss*, 87 NY2d at 797; *Boumoussa*, 104 AD3d at 863).

Although it was unnecessary to do so in the circumstances presented, the People filed an off-calendar statement of readiness on April 18, 2011. The next day, at the scheduled calendar call, the People said that they were not ready for trial. The court's records state that the People had no file. The off-calendar statement does not affect the outcome of this case because application of the basic rule regarding court delay controls. The procedure followed by the courts below conflicted with the established rule that the People are not chargeable with delay attributable to the court.*

Even accepting that the April 18 statement was illusory, no basis exists to reach back to March 8 and charge the People with those 41 days. Assuming that the statement was illusory, the courts below should have charged the People going forward from the illusory statement as if that statement had never been made. They should not have attributed past court delay to the People.

Accordingly, the Appellate Term erred by charging the People with the 41 days from March 8, 2011 until April 18, 2011. The Appellate Term order should therefore be reversed and the matter remitted to that court for consideration of the issues it did not address.

People v Brown

[4] In *Brown*, the People were not ready for trial on July 9, 2007 and requested an adjournment to July 23, 2007. The court adjourned the case to August 8, 2007. On July 17, the People filed an off-calendar statement of readiness. However, at the August 8 calendar appearance, the People answered not ready for trial. The People failed to state a reason for their unreadiness on August 8 at the calendar call or in response to defendant's CPL 30.30 motion. With respect to the latter, however, defendant first challenged the July 17 off-calendar statement of readiness in reply papers filed after the People had opposed the motion. Thus, a summary disposition of the motion was not warranted, and the record is insufficient to determine whether

* Notably, CPL 30.30's exceptional circumstances provisions do not apply. Under the statutory scheme, periods of prosecutorial delay are excludable if the People's unreadiness was caused by exceptional circumstances (see CPL 30.30 [3] [b]; [4] [g]). No exceptional circumstances exist here; the People requested an adjournment based on a scheduling conflict. As already explained, however, the People are not chargeable with the period of the postreadiness delay attributable to the court.

the statement of readiness was illusory (*see People v Allard*, 28 NY3d 41, 46 [2016]). The case is therefore remitted to Supreme Court to conduct a hearing on that issue and, if necessary, to determine the excludability of the other disputed time periods that the courts below did not address.

[5] Turning to defendant's other assertions, we conclude that he has no constitutional right to an in-court lineup and the trial court did not abuse its discretion by denying his request for one (*see Sims v Sullivan*, 867 F2d 142, 145 [2d Cir 1989]; *People v Benjamin*, 155 AD2d 375, 375 [1st Dept 1989], *lv denied* 75 NY2d 867 [1990]). Following the suggestive pretrial lineup, the court concluded that an independent source existed for the victim's in-court identification of defendant. Although the victim's companion was not the subject of an independent source hearing, he did not participate in any pretrial identification—suggestive or otherwise. Accordingly, because defendant failed to sufficiently cast doubt on the reliability of the witnesses' identification testimony or otherwise demonstrate impermissible suggestiveness by the traditional in-court identification procedure, no abuse is apparent (*see United States v Archibald*, 734 F2d 938, 942-943 [2d Cir 1984], *mod* 756 F2d 223 [2d Cir 1984]).

[6] Defendant did not object to the trial court's voir dire procedure and, thus, the issue is unpreserved for this Court's review. His argument that the procedure amounts to a mode of proceedings error reviewable by this Court in the absence of preservation is refuted by *People v Steward* (17 NY3d 104 [2011]). There, in a case directly on point, we stated that it is incumbent on counsel to object to temporal limitations concerning voir dire (*see id.* at 111). Further, the fact that a trial court has discretion concerning the scope of voir dire (*see* CPL 270.15 [1] [c]; *Steward*, 17 NY3d at 110) demonstrates that errors in this context do not "go to the essential validity of the process" thereby excusing preservation (*People v Kelly*, 5 NY3d 116, 119 [2005]).

Finally, defendant argues for the first time on appeal to this Court that the trial court committed a mode of proceedings error by failing to notify counsel of or respond meaningfully to a portion of a jury note. No mode of proceedings error occurred here and, thus, his argument is unpreserved for our review (*see People v Mack*, 27 NY3d 534 [2016]).

Accordingly, in *People v Brown*, the Appellate Division order should be reversed and the case remitted to Supreme Court for

further proceedings in accordance with this opinion. In *People v Young*, the order of the Appellate Term should be affirmed. In *People v Canady*, the order of the Appellate Term should be reversed and the case remitted to that court for consideration of the facts and issues raised but not determined on appeal to that court.

RIVERA, J. (dissenting in *People v Canady*; concurring in part in *People v Brown* and concurring in result in *People v Young*). On a motion to dismiss pursuant to Criminal Procedure Law § 30.30, a defendant bears the initial burden of showing that the People exceeded the speedy trial limits under CPL 30.30 (*People v Santos*, 68 NY2d 859, 861 [1986]). The burden then shifts to the People to establish compliance with the statute (*id.*). As in the cases on appeal, where the People seek to exclude the time between their off-calendar declaration of readiness for trial and a subsequent declaration of un readiness, they must demonstrate sufficient basis for why their status has changed. I part ways with the majority as to the standard for both judging whether the People's reasons are adequate and determining the time period that should be charged to the People as a consequence of an inadequate justification.

The majority concludes that the period between a statement of readiness and a subsequent statement of un readiness is only chargeable to the People if their announcement of readiness was illusory at the moment declared, even if the People immediately slipped out of readiness and took no action to maintain ready status, or failed to request additional time to prepare for trial, as allowed by statute. This rule will do little to curtail the well-documented excessive delays in prosecutions with their attendant adverse impact on defendants, victims, and our communities.

The law requires more than an ephemeral declaration of readiness susceptible to being rendered meaningless during the course of a defendant's prosecution. A statement that the People are ready for trial in a specific instance means little unless it also means that the People will exercise due diligence in maintaining their readiness. Therefore, as set forth in the concurring opinion of Chief Judge Jonathan Lippman in *People v Sibblies*, the rule should be: "the People must demonstrate that some exceptional fact or circumstance arose after their declaration of readiness so as to render them presently not ready for trial. The requirement of an exceptional fact or

circumstance should be the same as that contained in CPL 30.30 (3) (b)” (*People v Sibblies*, 22 NY3d 1174, 1178 [2014] [Lippman, Ch. J., concurring, joined by Smith and Rivera, JJ.]).

CPL 30.30, the speedy trial statute, was enacted in 1972 to address the backlog of criminal cases that delayed criminal prosecutions and adversely impacted both individuals and our criminal justice system. Those delays “deprived defendants of their right to a prompt trial, hindered the People’s ability to try cases effectively, and undermined public confidence in the criminal justice system” (*Sibblies*, 22 NY3d at 1176 [Lippman, Ch. J., concurring], citing *People v Anderson*, 66 NY2d 529, 535 n 1 [1985]). The statute places a limit on the time the People have to be ready for trial: 30 days for a violation, 60 or 90 days of the commencement of the action for misdemeanors, and six months for felonies (other than class A felonies) (CPL 30.30 [1]). Where the People exceed the time allotted by statute, a defendant may move to dismiss (*id.*).

As the Court has explained, to be ready within the meaning of CPL 30.30, the People must communicate their readiness on the record, in open court or in an off-calendar statement of readiness, at a time when the People are ready for trial (*People v Kendzia*, 64 NY2d 331, 337 [1985]). The prosecution can temporarily stop the speedy trial clock by invoking exclusions in the statute, including, for example, delays caused by defense counsel, defendant’s unavailability, or time associated with competency proceedings (CPL 30.30 [4]). What the People may not do is take advantage of such delays “as to ignore their own responsibility of being ready for trial on time” (*Kendzia*, 64 NY2d at 338 [citations omitted]).

As Chief Judge Lippman explained in his *Sibblies* concurrence, when the People declare readiness for trial and then announce at the next court appearance that they are not ready, they should be charged with the time between these two statements, absent an explanation of how this lapse in status is due to “some exceptional fact or circumstance,” as contemplated by CPL 30.30 (3) (b) (*Sibblies*, 22 NY3d at 1178 [Lippman, Ch. J., concurring]). That section expressly provides:

“A motion made . . . upon expiration of the specified period may be denied where the people are not ready for trial if the people were ready for trial prior to the expiration of the specified period and their present unreadiness is due to some excep-

tional fact or circumstance, including, but not limited to, the sudden unavailability of evidence material to the people's case, when the district attorney has exercised due diligence to obtain such evidence and there are reasonable grounds to believe that such evidence will become available in a reasonable period" (CPL 30.30 [3] [b]).

Application of the standard set forth in CPL 30.30 (3) (b) holds the People accountable for their obligation under the statute, and encourages the People to maintain their prior ready status, furthering the legislative goal "[t]o promote prompt trials for defendants in criminal cases" (*Anderson*, 66 NY2d at 535 n 1).

The rule also addresses the problem of "readiness in the air, without readiness on the ground" (*Sibblies*, 22 NY3d at 1178 [Lippman, Ch. J., concurring]). More pointedly,

"[t]his rule flows from the purpose of the statute. It is intended to expedite, not delay the defendant's ability to seek resolution of a case. Indeed, allowing, without scrutiny, declarations of readiness off-calendar and subsequent declarations of unreadiness at the next appearance creates the possibility that this scenario could be reenacted ad seriatim. But CPL 30.30 is not a mechanism for filibustering trials" (*id.*).

The majority rejects this rule on the ground that the burden is on the defendant to establish the delay is chargeable to the People (majority op at 406-407). I agree that the burden remains with defendant as the movant, but the rule does not absolve the defendant of the ultimate burden; it merely clarifies the standard applicable once the burden shifts to the People to establish why they are not ready after having previously declared readiness for trial.

The majority's other reasons for rejecting the rule are similarly unpersuasive. The majority concludes that the rule contravenes our definition of an illusory statement as measured at the moment the statement is made (majority op at 406-407). This mischaracterizes the import of our case law and its application to the instant appeals. This Court's recognition that "the People must in fact be ready to proceed at the time they declare readiness" (*People v Chavis*, 91 NY2d 500, 505 [1998]) and that the "statute contemplates an indication of present readiness, not a prediction or expectation of future readiness" (*Kendzia*, 64 NY2d at 337), is meant to ensure the declaration

of readiness is not merely aspirational or lacking in good faith. This well-settled rule is not in contention here. The appeals before us are not strictly about whether the People were ready at the time they declared readiness—this Court has already made clear that if they are not ready the time is chargeable.¹ Rather, these appeals, like *Sibblies*, present the questions of whether and to what extent time is chargeable based on the People’s declaration of subsequent unreadiness. The answers to those questions lie in the purpose of the statute and its textual mandates, and require that we consider more than whether a prosecutor has made a declaration in good faith.

Nevertheless, the majority construes readiness as meaningful only in the moment, rather than as a means to achieve the legislative ends of reduced delays and prompt criminal trials. Yet, “CPL 30.30 demands prosecutorial readiness, not for its own sake, but to reduce delays in criminal prosecutions” (*Sibblies*, 22 NY3d at 1178 [Lippman, Ch. J., concurring]). Given the history and goals of the speedy trial statute, and the prescriptive language in 30.30 (3) (b), the legislature could not have intended for the People to declare readiness one moment and then announce that they are not ready, without proffering exceptional facts or circumstances for why their status has changed.

The People assert that such a standard would be unfeasible, ineffective, unwarranted, and counterproductive because it fails to take into account certain manifest and unavoidable realities with bringing a case to trial. Presumably the legislature was aware of the potential impact speedy trial limits would have on the prosecution, and enacted CPL 30.30 nonetheless. The legislature concluded that defendants, victims, and society are best served by a criminal justice system that expedites prosecutions and manages delays accordingly (Governor’s Program Bill Mem, Bill Jacket, L 1972, ch 184 at 5, 1972 Legis Ann at 6).

In any event, the People’s fear is overstated. As long as the prosecutor’s reason for lapsing into unreadiness is of the same character as those identified in the statute and the prosecutor used due diligence in attempting to remain ready, the status shift will not count against the People (CPL 30.30 [3] [b]). To

1. This is the same reason that I do not adopt Judge Graffeo’s approach as set forth in her *Sibblies* concurrence, which focuses on readiness at the time of declaration (*Sibblies*, 22 NY3d at 1181 [Graffeo, J., concurring]).

be clear, the norm should be that the prosecution maintains readiness, but the statute contemplates times when the exigencies of a particular case may result in the People's unreadiness for trial at the next court date, and in those situations the court may exclude these periods.

Moreover, the legislature has provided a statutory mechanism by which the People can seek to extend their time. The statute contemplates the exclusion of

“periods of delay occasioned by exceptional circumstances, including but not limited to, the period of delay resulting from a continuance granted at the request of a district attorney if (i) the continuance is granted because of the unavailability of evidence material to the people’s case, when the district attorney has exercised due diligence to obtain such evidence and there are reasonable grounds to believe that such evidence will become available in a reasonable period; or (ii) the continuance is granted to allow the district attorney additional time to prepare the people’s case and additional time is justified by the exceptional circumstances of the case” (CPL 30.30 [4] [g]).

The People cannot “ignore their own responsibility of being ready for trial on time” (*Kendzia*, 64 NY2d at 338) when they have at the ready a way to “extend” the speedy trial clock.

The importance of the issue before us cannot be minimized. A rule that discourages delays is as necessary and urgent today as when the legislature enacted CPL 30.30 over four decades ago. Criminal prosecutions continue to exceed the statutory time limits in an alarming number of cases. In New York City in 2014, for example, defendants charged with misdemeanors waited an average of 479 days for disposition after bench trials and 571 days after jury trials, with considerably longer delays in Bronx County (Criminal Court of the City of New York, 2014 Annual Report at 52). Defendants who are unable to make bail or ineligible for release remain incarcerated during these long delays, during which they face continual disruption of their lives, including removal from work and school.² The system as

2. Of course some defendants may believe that delays are beneficial because memories fade, witnesses leave town, and the prosecution becomes more distantiated from the criminal act. However, as the statute’s history

(n. cont’d)

it has evolved also prolongs the victims' and the community's pursuit of much needed closure.³ Therefore, I reaffirm my adoption of the rule as described in Chief Judge Lippman's concurrence in *Sibblies*.

Turning to the facts of the cases on appeal, I agree with the result reached by the majority in *People v Young*, because the People established that they did not know about the New York City Housing Authority hearing at the time they declared readiness, and that information provided the type of "exceptional fact" that explained their statement of unreadiness. I also agree with the majority that a hearing is warranted in *People v Brown* given the state of the record below. However, in *People v Canady* I would affirm the Appellate Term because the People failed to provide any reason for their statement of unreadiness and thus the court did not err in charging them with 41 days. To exclude these days, as the majority does here, would allow the People to limit the number of chargeable days simply by filing a readiness statement one day before their declaration of unreadiness. That result turns the statute on its head.

In *People v Brown*: Order reversed and case remitted to Supreme Court, New York County, for further proceedings in accordance with the opinion herein.

Opinion by Judge PIGOTT. Chief Judge DiFIORE and Judges ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur. Judge RIVERA concurs in part in a separate concurring opinion.

In *People v Young*: Order affirmed.

Opinion by Judge PIGOTT. Chief Judge DiFIORE and Judges ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur. Judge RIVERA concurs in result in a separate concurring opinion.

In *People v Canady*: Order reversed and case remitted to the Appellate Term, Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, for consideration of the facts and issues raised but not determined on appeal to that court.

makes clear, the legislative concern is not limited to the impact of these delays on defendants.

3. See Stephanie Clifford, *For Victims, an Overloaded Court System Brings Pain and Delays*, NY Times, Jan. 31, 2016, <http://www.nytimes.com/2016/02/01/nyregion/for-victims-an-overloaded-court-system-brings-pain-and-delays.html>, cached at <http://www.nycourts.gov/reporter/webdocs/for-victims-an-overl.pdf>.

Opinion by Judge PIGOTT. Chief Judge DiFIORE and Judges ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur. Judge RIVERA dissents and votes to affirm in an opinion.

[68 NE3d 671, 45 NYS3d 852]

In the Matter of ACME BUS CORP., Appellant, v ORANGE
COUNTY et al., Respondents.

Argued October 20, 2016; decided November 22, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 4, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Orange County (Elaine Slobod, J.), entered in a proceeding pursuant to CPLR article 78 to review a determination of respondents Orange County and Orange County Department of General Services awarding school bus transportation contracts, which had denied the petition and dismissed the proceeding.

Matter of ACME Bus Corp. v Orange County, 126 AD3d 688, reversed.

HEADNOTE

Municipal Corporations — Contract for Professional Services — Municipal Deviation from Request for Proposals

An award of a contract under General Municipal Law § 104-b is arbitrary and capricious if the municipality evaluates a proposal using a standard that deviates from a standard expressly set forth in its request for proposals (RFP). Accordingly, in a proceeding to vacate an award by respondent County and its Department of General Services of school bus transportation contracts after the submission of public bids pursuant to section 104-b, the County acted arbitrarily as a matter of law by accepting proposals based on a method of evaluation for the cost category—premised on the assignment of points—that was inconsistent with the standard set out in its RFP. The County's failure to follow the cost category evaluation criteria outlined in the RFP was in violation of the County's own written procurement policy. Moreover, the fundamental legislative purpose of preventing favoritism, fraud and corruption applies in the General Municipal Law § 104-b context, and an award of a contract under that section is arbitrary and capricious if, as here, a municipality evaluates a proposal by a standard which is not consistent with that set forth in the RFP. If the County believed that the RFP's methodology did not adequately reflect the importance of the cost consideration, its only option was to reject all the proposals and start over with an RFP that better reflected the weight to be given to cost.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Municipal Corporations, Counties, and Other
Political Subdivisions §§ 425, 427, 432.

McKINNEY'S, General Municipal Law § 104-b.

NY JUR 2d, Counties, Towns, and Municipal Corporations

§§ 1413, 1417, 1420, 1441, 1445–1447.

ANNOTATION REFERENCE

See ALR Index under Bids and Bidding; Counties; Public Works and Contracts.

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Query: county /p contract & RFP & award /s arbitrary

POINTS OF COUNSEL

Hamburger, Maxson, Yaffe & McNally, LLP, Melville (*Richard C. Hamburger, David N. Yaffe and Andrew K. Martingale* of counsel), for appellant. I. Orange County's deviation from its own request for proposals (RFP) specifications in evaluating the RFPs and in making the challenged contract awards was arbitrary and capricious and a violation of law. (*Matter of Riverkeeper, Inc. v Planning Bd. of Town of Southeast*, 9 NY3d 219; *Matter of Church v Wing*, 229 AD2d 1019; *Matter of Frick v Bahou*, 56 NY2d 777; *Matter of Brooks v Forsythe*, 189 AD2d 26; *Matter of AAA Carting & Rubbish Removal, Inc. v Town of Southeast*, 17 NY3d 136; *Matter of Cataract Disposal v Town Bd. of Town of Newfane*, 53 NY2d 266; *Matter of Accadia Site Contr., Inc. v Caruana*, 96 AD3d 1630; *Matter of Hungerford & Terry, Inc. v Suffolk County Water Auth.*, 12 AD3d 675; *Matter of Donno Co. v Board of Trustees of Vil. of Kings Point*, 115 AD2d 603; *Matter of Progressive Dietary Consultants of N.Y. v Wyoming County*, 90 AD2d 214.) II. The request for proposals was required to contain a usage matrix advising all proposers how their unit cost proposals would be tallied to calculate the total dollar cost of each proposal. (*Hunts Point Term. Produce Coop. Assn., Inc. v New York City Economic Dev. Corp.*, 13 Misc 3d 988, 36 AD3d 234; *Matter of Amdahl Corp. v New York State Higher Educ. Servs. Corp.*, 203 AD2d 792.) III. Education Law § 305 (14) (f), 8 NYCRR 156.12 (b), and Family Court Act § 236 require transportation proposals to be evaluated and scored in nine specific performance categories (plus cost) that were not all incorporated in the request for proposals.

Langdon C. Chapman, County Attorney, Goshen (*Carol C. Pierce* of counsel), for Orange County and another, respon-

dents. I. In reviewing an administrative decision, a court must determine if the decision of the administrative body had a rational basis, or was arbitrary and capricious. (*Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Matter of Wooley v New York State Dept. of Correctional Servs.*, 15 NY3d 275; *Matter of Peckham v Calogero*, 12 NY3d 424; *Matter of Riverkeeper, Inc. v Planning Bd. of Town of Southeast*, 9 NY3d 219; *Matter of Merson v McNally*, 90 NY2d 742; *Matter of Jackson v New York State Urban Dev. Corp.*, 67 NY2d 400; *Akpan v Koch*, 75 NY2d 561; *Matter of Citiwide News v New York City Tr. Auth.*, 62 NY2d 464; *Matter of Cataract Disposal v Town Bd. of Town of Newfane*, 53 NY2d 266.) II. Request for proposals No. RFP-DOH02-13 and Orange County's subsequent award of contracts was in adherence with the Orange County procurement policy and General Municipal Law § 104-b. (*Matter of Conduit & Found. Corp. v Metropolitan Transp. Auth.*, 66 NY2d 144; *Matter of Quest Diagnostics Inc. v County of Suffolk*, 21 Misc 3d 944; *Jo & Wo Realty Corp. v City of New York*, 157 AD2d 205, 76 NY2d 962; *Matter of Tri-State Aggregates Corp. v Metropolitan Transp. Auth.*, 108 AD2d 645; *Matter of Madison Sq. Garden, L.P. v New York Metro. Transp. Auth.*, 19 AD3d 284, 5 NY3d 878; *Matter of Transactive Corp. v New York State Dept. of Social Servs.*, 236 AD2d 48, 92 NY2d 579; *Starburst Realty Corp. v City of New York*, 131 Misc 2d 177, 125 AD2d 148, 70 NY2d 605; *Awl Indus., Inc. v Triborough Bridge & Tunnel Auth.*, 41 AD3d 141; *Matter of T.F.D. Bus Co. v City School Dist. of Mount Vernon*, 237 AD2d 448; *Matter of Clancy-Cullen Stor. Co. v Board of Elections of City of N.Y.*, 98 AD2d 635.) III. The decision to award the transportation contracts to respondents Quality Bus Service, LLC and VW Trans, LLC had a rational basis and therefore should not be disturbed. (*Matter of Automated Wagering Intl. v New York State Dept. of Taxation & Fin.*, 195 AD2d 169.) IV. Appellant ACME Bus Corp. failed to sustain its burden of proof by demonstrating that Orange County's decision was arbitrary and capricious, or the result of actual impropriety, unfair dealing or some other violation of statutory requirements. (*Matter of Acme Bus Corp. v Board of Educ. of Roosevelt Union Free School Dist.*, 91 NY2d 51; *Matter of Conduit & Found. Corp. v Metropolitan Transp. Auth.*, 66 NY2d 144; *I. Janvey & Sons v County of Nassau*, 60 NY2d 887; *Matter of Baumann & Sons Buses v Board of Educ., Northport-East Northport Union Free School Dist.*, 46 NY2d 1061; *Matter of Madison Sq. Garden, L.P. v New York Metro.*

Transp. Auth., 19 AD3d 284; *Matter of Nehorayoff v Mills*, 282 AD2d 932; *Matter of Werter v Board of Regents of Univ. of State of N.Y.*, 18 AD2d 1032; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222.) V. Education Law § 305 (14) (f), 8 NYCRR 156.12 (b), and Family Court Act § 236 are not applicable to request for proposals No. RPF-DOH02-13. VI. ACME Bus Corp. has failed to adhere to this Court's rules and the issues presented by appellant have been abandoned. (*Dalton v Educational Testing Serv.*, 87 NY2d 384; *Humphrey v State of New York*, 60 NY2d 742; *Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Quain v Buzzetta Constr. Corp.*, 69 NY2d 376.)

Dickover, Donnelly & Donovan, LLP, Goshen (David A. Donovan of counsel), for Quality Bus Service, LLC, respondent. I. Orange County's determination to award the contract for zones 1 and 2 to Quality Bus Service, LLC was supported by a rational basis and was neither arbitrary nor capricious. (*Matter of Global Tel*Link v State of N.Y. Dept. of Correctional Servs.*, 70 AD3d 1157; *Matter of Promissor, Inc. v New York State Ins. Dept.*, 307 AD2d 460; *Matter of Bill's Towing Serv., Inc. v County of Nassau*, 83 AD3d 698; *Matter of Partnership 92 LP & Bldg. Mgt. Co., Inc. v State of N.Y. Div. of Hous. & Community Renewal*, 46 AD3d 425; *Powerhouse Diesel Servs., Inc. v Hirst*, 25 Misc 3d 1229[A], 2009 NY Slip Op 52340[U]; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Paramount Communications v Gibraltar Cas. Co.*, 90 NY2d 507.) II. Orange County's contract award to Quality Bus Service, LLC and VW Trans, LLC was in accordance with the requirements of General Municipal Law § 104-b. III. Neither Education Law § 305 (14) nor Family Court Act § 236 are applicable to this proceeding.

Finkelstein & Partners, LLP, Newburgh (Joseph P. Rones of counsel), for VW Trans, LLC, respondent. I. Orange County's treating VW Trans, LLC as having the experience of its principals was not arbitrary or capricious. (*People ex rel. de Frece v Lathers*, 141 App Div 16; *Town of Massena v Niagara Mohawk Power Corp.*, 45 NY2d 482; *Jo & Wo Realty Corp. v City of New York*, 157 AD2d 205, 76 NY2d 962; *Awl Indus., Inc. v Triborough Bridge & Tunnel Auth.*, 41 AD3d 141.) II. Awarding the transportation contract to VW Trans, LLC was in the best interests of the taxpayers. (*Matter of Acme Bus Corp. v*

Board of Educ. of Roosevelt Union Free School Dist., 91 NY2d 51; *Matter of Global Tel*Link v State of N.Y. Dept. of Correctional Servs.*, 70 AD3d 1157.)

OPINION OF THE COURT

FAHEY, J.

In this CPLR article 78 proceeding to annul Orange County’s award of transportation contracts to Quality Bus Service, LLC and VW Trans, LLC, the question presented is whether the award was arbitrary and capricious. We hold that it was. We address whether evaluation criteria for public bids submitted pursuant to General Municipal Law § 104-b must be followed as set out in the requests for proposals or if the criteria may be changed, after the receipt of proposals, by the government agency responsible for evaluating them.

I.

In May 2013, the Orange County Department of General Services issued a request for proposals (RFP) from companies to provide transportation of children receiving preschool special education services in three transportation zones in Orange County. The County solicited proposals for three-year contracts for each zone, with options for two successive one-year extensions. The RFP evaluated proposals in nine categories, with a certain number of points assigned to each category, for a total of 100. The first eight categories measured performance by various criteria, while the ninth, worth 20 points, evaluated cost.

The RFP stated that “[t]he Offeror submitting the lowest cost proposal will be awarded 20 points. Awarding of points to the remaining Offerors will be based on percentage to points ratio.” In the same sentence, the RFP explained by way of “example” that “if the total cost [difference] between the lowest Offeror and the next lowest Offeror is 10% then Offeror two will have 2 points deducted from the maximum score of 20.”

The RFP further provided that

“[t]he submission of a proposal implies the Offeror’s acceptance of the evaluation criteria and Offeror’s acknowledgment that subjective judgments must be made by the Evaluation Committee. . . . The County reserves the right to: accept other than the lowest priced offer, waive any informality, or reject

any or all proposals, with or without advertising for new proposals, if in the best interest of the County.”

Quality submitted a cost proposal for each of the three zones. VW submitted a cost proposal for the third zone only. ACME Bus Corp., which held the contract at the time, submitted two alternative proposals, one containing pricing for each of the zones, and one providing an estimate for all three zones combined, at a discounted price. Under both proposals, ACME had the highest cost for the three zones.

In July 2013, Orange County awarded transportation contracts for the first two zones to Quality and for the third zone to VW. Transportation services pursuant to the contracts commenced on September 1, 2013, and continued until August 31, 2016; the County then exercised its first option to extend the contracts, which now expire on August 31, 2017.

After it was notified of the award, ACME commenced this article 78 proceeding against the County, Quality, and VW, seeking to vacate the award of the contracts “as arbitrary and capricious, . . . affected by an error of law, and . . . made in violation of lawful procedure.” ACME alleges a number of defects in the County’s process of choosing its transportation providers, only one of which is pertinent here.

The County disclosed the proposals submitted by Quality and VW, as well as the score sheets used by the County to evaluate the proposals. As the parties interpret these documents,¹ Quality had the highest overall scores for the first two zones, while VW had the highest total score for the third. In the cost category, ACME had been awarded only eight points out of 20, i.e. a 12-point deduction. ACME contended that if it had been awarded the RFP’s “percentage to points ratio” deduction for cost, it would have received only a 5.4-point deduction and achieved a higher total score than VW in the third zone.

The County, seeking dismissal of the proceeding, submitted an affidavit of the employee of the County’s consultant transportation management company who had been responsible for scoring the RFP’s cost category. The employee wrote that

“[i]n evaluating the cost proposals and determining a point to percentage ratio upon which to evaluate

1. We are troubled by the fact that the County, in seeking to demonstrate to the Court that VW had the highest score for the third zone, cites pages from the record that contain single score sheets for that zone, and not the average of the scores.

and score the three offerors, it was determined that we could not use the example as set forth in the RFP . . . because in Zone 3, there was only a 7% difference in price between the lowest bidder VW and the next lowest bidder Quality. . . . Therefore, if we used the example set forth in the RFP i.e. 2 points per 10% difference, we would not have been able to deduct any points from Quality.”

The transportation management company employee then stated that “it was determined that the County, in scoring the offerors on price . . . would use a 2 point deduction for every 4% difference in price, rounding to the nearest whole number,” instead of a two-point deduction for every 10%.

Supreme Court dismissed the proceeding, ruling that ACME “ha[d] failed to sustain its burden of demonstrating that the [County’s] determination lacked a rational basis or that an actual impropriety, unfair dealing or some other violation of statutory requirements occurred.” The court “decline[d] petitioner’s tacit invitation to redo the . . . scoring of the proposals,” stating that “the scorers had a rational basis for their determination and the court’s inquiry there ends.”

The Appellate Division affirmed (*Matter of ACME Bus Corp. v Orange County*, 126 AD3d 688 [2d Dept 2015]).

We granted ACME leave to appeal (26 NY3d 906 [2015]), and now reverse.

II.

ACME contends that the County’s scoring mechanism in the cost category deviated from the formula stated in the RFP, and that its award was therefore arbitrary and capricious within the meaning of CPLR 7803 (3). We agree.

The contracts at issue here, “requir[ing] the exercise of specialized or technical skills, expertise or knowledge” (*Matter of Omni Recycling of Westbury, Inc. v Town of Oyster Bay*, 11 NY3d 868, 869 [2008]), were not subject to the competitive bidding statute (*see* General Municipal Law § 103), but were awarded under General Municipal Law § 104-b. That statute requires contracts to

“be procured in a manner so as to assure the prudent and economical use of public moneys in the best interests of the taxpayers of the political

subdivision or district, to facilitate the acquisition of goods and services of maximum quality at the lowest possible cost under the circumstances, and to guard against favoritism, improvidence, extravagance, fraud and corruption” (General Municipal Law § 104-b [1] [emphasis added]).

To further these objectives, the statute specifies that the County “shall adopt internal policies and procedures governing all procurements of goods and services which are not required to be made pursuant to the competitive bidding requirements . . . or of any other general, special or local law” (*id.* [emphasis added]). The written policy adopted by the County pursuant to this requirement specifies, in part v (procurement of professional services), that the County’s award of a contract pursuant to an “RFP must be made in accordance with the evaluation criteria specified in the RFP” (County of Orange Procurement Policy part V [E] [Mar. 2012] [emphasis added]).

Here, the County deviated from the criteria specified in its RFP when it evaluated the proposals received pursuant to its request. The emphatic language used in the RFP’s paradigm of a percentage to points ratio—stating that if a 10% cost difference exists between the lowest offeror and the next lowest, then the latter “will have 2 points deducted from the maximum score of 20”—makes clear that the “example” was meant to explain that a percentage to points ratio is one in which a one percent cost difference translates to one percent of the total number of points allocated to cost. Instead, the County used a two-point deduction for every 4% difference in price.² Applying this new formula, a one percent cost difference corresponded to 2.5%, rather than one percent, of the number of points assigned to cost.³

2. As the transportation management company employee’s affidavit revealingly states, this was “a point to percentage ratio,” rather than the “percentage to points ratio” contemplated by the RFP.

3. The County, in trying to explain why it deviated from its own specification, provided contradictory explanations that lack a rational basis. In an email, the transportation management company employee claimed that she had awarded points in the cost category by deducting a certain number of points for every \$10,000 difference between the cost proposals. Such a method bears no resemblance to a percentage to points ratio. Shortly thereafter, the same employee submitted the affidavit in which she stated that the County deducted two points for every 4% difference in price. In an attempt to justify this change, the employee alluded to “a 7% difference in price between the lowest bidder VW and the next lowest bidder Quality” in the third zone, and

(n. cont’d)

The County abandoned the cost formula it had promised to apply and instead created a new formula that disfavored ACME. This was arbitrary and capricious for two, independent reasons.

First, the County's failure to follow the cost category evaluation criteria outlined in the RFP was in violation of the County's own procurement policy, stating that the "award . . . *must* be made in accordance with the evaluation criteria specified in the RFP" (emphasis added). We have repeatedly held in a variety of contexts that an agency acts arbitrarily when it fails to comply with its own rules (see e.g. *Matter of Vukel v New York Water & Sewer Mains*, 94 NY2d 494, 497 [2000]; *Matter of Frick v Bahou*, 56 NY2d 777, 778 [1982]). The same principle applies to the County here.

The second reason has significance that extends beyond the present case. In *Matter of AAA Carting & Rubbish Removal, Inc. v Town of Southeast* (17 NY3d 136 [2011]), we held that a municipal contract, awarded pursuant to the competitive bidding statute, should be vacated if the municipality "accept[ed] a higher bid based on subjective assessment of criteria not specified in the bid request," because such an action "gives rise to speculation that favoritism, improvidence, extravagance, fraud or corruption may have played a role in the decision" (*AAA Carting & Rubbish Removal, Inc.*, 17 NY3d at 144). We conclude that the policy grounds articulated in *AAA Carting* with respect to the competitive bidding procedures of General Municipal Law § 103 apply to the procedures under section 104-b at issue here.

We now hold that an award of a contract under General Municipal Law § 104-b is arbitrary and capricious if the municipality evaluates a proposal using a standard that deviates from a standard expressly set forth in the RFP. Such a deviation betrays a lack of "sound basis in reason" for the determination (*Matter of Murphy v New York State Div. of*

suggested that no points could have been deducted from Quality had the RFP's formula been used. The reasoning is spurious. A 7% difference between VW and Quality in the third zone would have equated to a 1.4-point deduction to Quality, the second-lowest offeror, not a zero deduction, and this number could have been rounded down to a one-point deduction.

Additionally, the record reflects that the County awarded 18 points to Quality for cost in the third zone. Under the formula that the County purportedly used, a 7% difference would have equated to a four-point deduction or 16, rather than 18, points for Quality in the third zone, bringing into question whether the County used that formula after all.

Hous. & Community Renewal, 21 NY3d 649, 652 [2013]; see generally *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 231 [1974]).

Our holding promotes the goals of fairness and the prevention of fraud and corruption in the bidding process. The offeror is given notice of the standards to be applied and acts accordingly. When different standards are applied, the process is subverted. Changing the expressly defined rules midway gives rise to speculation of fraud or corruption.

The County would have us distinguish General Municipal Law §§ 103 and 104-b in this regard. The statutes, however, are alike in a fundamental legislative purpose. The primary purposes of competitive bidding under General Municipal Law § 103 “are the (1) protection of the public fisc by obtaining the best work at the lowest possible price; and (2) *prevention of favoritism, improvidence, fraud and corruption in the awarding of public contracts*” (*AAA Carting & Rubbish Removal, Inc.*, 17 NY3d at 142 [internal quotation marks omitted and emphasis added]). Similarly, under General Municipal Law § 104-b, services that are not required by law to be procured by competitive bidding must nevertheless “be procured in a manner so as . . . to guard against favoritism, improvidence, extravagance, fraud and corruption” (General Municipal Law § 104-b [1]; see also Letter in Support from Francis J. Pordum, Assembly Sponsor, July 11, 1991, Bill Jacket, L 1991, ch 413 at 22). It is true that, pursuant to General Municipal Law § 103, the contract must be awarded to the lowest responsible bidder, whereas under General Municipal Law § 104-b a contract may be awarded to one other than the lowest responsible dollar offeror if the municipality can justify the award (see General Municipal Law § 104-b [2] [e]). However, insofar as the prevention of favoritism, fraud and corruption is concerned, the purpose is identical. The policy reasoning underlying our decision in *AAA Carting & Rubbish Removal, Inc.*—“guard[ing] against such factors” (*AAA Carting & Rubbish Removal, Inc.*, 17 NY3d at 144)—is equally applicable in the General Municipal Law § 104-b context under the circumstances here, where a municipality evaluates a proposal by a standard which is not consistent with that set forth in the RFP.

The County emphasizes that it was changing its standards to ensure that the lowest cost proposal was accepted. If the County believed that the RFP’s methodology did not adequately

reflect the importance of the cost consideration, its only option was to reject all the proposals and start over with an RFP that better reflected the weight to be given to cost (*see AAA Carting & Rubbish Removal, Inc.*, 17 NY3d at 144). The County could not change its own rules mid-game, no matter the benefits. Indeed, to allow such conduct would be an invitation to impropriety. It would give any corrupt municipal employee a blueprint for avoiding judicial review of bid-rigging: first, advertise one set of standards in the request for bids; then, after the proposals have been received and the sealed portions opened, devise new standards to enable selection of your favored company, while making sure that your selection seems superficially reasonable from an economic point of view.

The dissent's suggestion that it is improper to overturn the County's award where there is no evidence of "improper motives" (dissenting op at 430) fails to recognize that awards may be overturned even without evidence of actual impropriety. The test is whether the award is "irrational, dishonest or otherwise unlawful" (*AAA Carting & Rubbish Removal, Inc.*, 17 NY3d at 142, quoting *Matter of Conduit & Found. Corp. v Metropolitan Transp. Auth.*, 66 NY2d 144, 149 [1985]). We overturn actions in which agencies fail to comply with their own rules not only to combat actual unfairness, but also to uphold the public's perception that these agencies act fairly in awarding contracts. Moreover, the dissent's hypothesis that "[h]ad Orange County provided no example, it could have justified its choice of the actual formula as rational" (dissenting op at 431) lacks merit, because the meaning of a percentage to points ratio is commonly understood, with or without an example. The new formula used by the County in the dissent's hypothetical scenario would still represent a material change from the RFP criterion.

In sum, the County acted arbitrarily as a matter of law by accepting proposals based on a method of evaluation that is inconsistent with the standard set out in its RFP. Its determination must be set aside. There is no necessity for us to consider ACME's remaining arguments.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the matter remitted to Supreme Court for further proceedings in accordance with this opinion.

GARCIA, J. (dissenting). ACME, an unsuccessful bidder, seeks to vacate a contract that Orange County awarded to the lowest

bidder after evaluating all proposals pursuant to a proper RFP. ACME bore the burden here of demonstrating “actual impropriety, unfair dealing or some other violation of statutory requirements when challenging an award of a public contract” (*Matter of Acme Bus Corp. v Board of Educ. of Roosevelt Union Free School Dist.*, 91 NY2d 51, 55 [1997] [internal quotation marks omitted]). Because ACME has failed to demonstrate that this contract was awarded arbitrarily and capriciously or without rational basis, I would decline to set aside Orange County’s decision.

ACME submitted two proposals, one with pricing for each zone separately and one with combined, discounted pricing for all three zones. There is no dispute that in terms of cost—under both proposals—ACME was the most expensive. Nevertheless, the majority faults Orange County for awarding the contract to the lower bidder because of what it characterizes as a wholesale “deviat[ion] from the criteria specified in its RFP” (majority op at 424). A review of the language of the RFP and the review by Orange County of the proposals shows that this was not the case.

The RFP stated that the cost category would be worth 20% of the overall score, demonstrating Orange County’s assessment of the weight to be given to this important factor. Further, the RFP noted this category would be scored on a “percentage to points” ratio and provided an example of how this ratio would be applied:

“The Offeror submitting the lowest cost proposal will be awarded 20 points. Awarding of points to the remaining Offerors will be based on percentage to points ratio; *example*: if the total cost between the lowest Offeror and the next lowest Offeror is 10% then Offeror two will have 2 points deducted from the maximum score of 20” (emphasis added).

The majority describes the example’s language as “emphatic” (majority op at 424). But the language is far from emphatic, nor does it contain any language that supports the majority’s interpretation of the example as mandatory. The RFP could have stated that “the percentage to points ratio will use the following formula.” Instead, the RFP stated that it would use a percentage to points ratio, and then provided a hypothetical example of its application. While Orange County did not apply the formula given in the example, a rational basis existed for applying the ratio used, and the failure to do so is not

equivalent to changing the RFP's criteria (*see Awl Indus., Inc. v Triborough Bridge & Tunnel Auth.*, 41 AD3d 141, 142-143 [1st Dept 2007]).

The scorer of the cost category explained that the formula actually applied differed from the example provided in the RFP in an attempt to “establish a point to percentage ratio that could be applied to each and every cost proposal in each zone fairly and accurately representing the proposed costing impact to the County” in light of a very small difference in price between the lowest bidder VW and the next lowest bidder Quality. The record supports this argument. Orange County rationally decided that had it applied the ratio as demonstrated in the RFP example, the significant price differential between ACME and the other proposals would not have been adequately reflected and so the differential in the points awarded would not have accurately reflected the weight to be given to this cost consideration. As the example was just that—an example—the decision to deviate from the hypothetical was not a failure to follow the agency's own rules (*see* majority op at 425) and was not arbitrary and capricious. Moreover, the formula actually used by Orange County ensured that the final awards accurately reflected cost. Had the formula in the example been used instead,* the proposals would have been scored in a way that did not appropriately “assure the prudent and economical use of public moneys in the best interests of the taxpayers” (General Municipal Law § 104-b [1]). Accordingly, Orange County's decision not to apply the percentage to points ratio in the exact manner described in the RFP's example had a rational basis and ACME has failed to demonstrate “favoritism, improvidence, fraud [or] corruption stemming from the process used to award the subject school transportation contracts” (*Acme Bus Corp.*, 91 NY2d at 56 [internal quotation marks omitted]).

Orange County's actions here were entirely consistent with the guiding principles of General Municipal Law § 104-b governing the RFP process, which is intended to be less stringent than section 103's competitive bidding procedures

* Even if the proposals had been scored in complete compliance with the descriptive example provided in the RFP, ACME still would have scored lower in the cost category than Quality in zones 1 and 2. While ACME would have had a higher total score than VW in zone 3 under that formula, VW's proposal still cost approximately \$68,000 per month less than ACME's in zone 3.

(see *Matter of Quest Diagnostics Inc. v County of Suffolk*, 21 Misc 3d 944, 951 [Sup Ct, Suffolk County 2008] [noting that the legislature intended by means of General Municipal Law § 104-b to “afford() the municipalities a measure of discretion in determining what constitutes their best interests”]; *Awl Indus.*, 41 AD3d at 142-143 [(“W)hile it is true that all who submit proposals (under RFPs) must be treated fairly, there is no legal requirement that a final contract must conform to the original RFP”]). The majority relies heavily on cases discussing contracts awarded pursuant to General Municipal Law § 103, which is inapplicable to the RFP process here. The fact that section 104-b bestows the counties with increased flexibility in the conduct of their RFPs than that which applies under section 103 is unacknowledged by the majority. Even the cases applying section 103 on which the majority relies, however, focus on preventing municipalities from awarding a contract to a “higher bid” (majority op at 425, 426-427, citing *Matter of AAA Carting & Rubbish Removal, Inc. v Town of Southeast*, 17 NY3d 136, 144 [2011]). While we agree with the majority that section 104-b, like section 103, focuses on protection of the public fisc and prevention of fraud, the majority’s holding undoes an award that protected the former without any evidence at all that Orange County acted with improper motives.

In addition, the majority’s analysis of Orange County’s procurement policy overlooks the fact that, had Orange County awarded the contract to ACME, it would have had to address the requirements of section 104-b. Section 104-b mandates a written justification when an award does not go to the lowest priced proposal that must address “how such an award furthers the public good; assures the prudent use of taxpayers’ money; ensures that the purchased goods are of the best quality at the lowest possible cost in light of the circumstances existing; and guards against favoritism, extravagance, fraud and/or corruption” (County of Orange Procurement Policy part V [B] [Mar. 2012]). An award to ACME, as a higher bidder, would have required Orange County to submit such a written justification addressing those factors, yet the record does not demonstrate that Orange County would have been able to articulate proper justifications sufficient to comply with this policy, in light of the \$68,000 per month cost difference between ACME and VW. Its only justification would have been its inability to deviate from an example of the formula provided in the RFP despite the fact that it did not accurately account for cost differential.

It seems unfair to suggest that refusing to overturn as arbitrary and capricious a county's use of a ratio that more accurately reflects the cost differential among bidders, and results in the award of the relevant contract to the lowest bidder, will result in a green light for municipal employees to engage in impropriety (majority op at 427). Rather, the majority's holding empowers losing bidders to sue counties immediately upon the award of the contract to a lower bidder, and will require counties to factor into their budgets the cost of CPLR article 78 proceedings and Freedom of Information Law requests following the conduct of any RFP process (*see e.g. Matter of Acme Bus Corp. v County of Suffolk*, 136 AD3d 896 [2d Dept 2016]; *Matter of Wilson Omnibus Corp. v Fallsburg Cent. School Dist.*, 167 AD2d 803 [3d Dept 1990]).

Had Orange County provided no example, it could have justified its choice of the actual formula as rational, indeed prudent. Perhaps the only lesson from today's decision is that counties should leave themselves the flexibility afforded by section 104-b by not providing any such guidance or by making clear that any example is just that and not an invitation for costly litigation that ultimately undermines the very purpose of that statute.

Chief Judge DiFiore and Judges Rivera, Abdus-Salaam and Stein concur; Judge Garcia dissents and votes to affirm in an opinion in which Judge Pigott concurs.

Order reversed, with costs, and matter remitted to Supreme Court, Orange County, for further proceedings in accordance with the opinion herein.

[68 NE3d 679, 45 NYS3d 860]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY PERKINS, Appellant.

Argued November 16, 2016; decided December 20, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 28, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Barry Kron, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts). The appeal to the Appellate Division brought up for review the denial, after a hearing, of that branch of defendant's omnibus motion which was to suppress lineup identification testimony with respect to identifications made by two of the four victims.

People v Perkins, 124 AD3d 915, reversed.

HEADNOTE

Crimes — Identification of Defendant — Lineup — Distinctive Feature Prominently Figured in Prior Description

In defendant's prosecution for robberies committed against four victims in which the trial court found that defendant's distinctive feature of long dreadlocks rendered the lineup where he was the only participant with long dreadlocks unduly suggestive as to two victims who had described their assailant as having dreadlocks, there was no record support for the denial of defendant's motion to suppress the lineup procedure as to the other two victims because they had not mentioned dreadlocks to the police. A lineup's suggestiveness should not turn solely on whether a defendant's distinctive feature figured prominently in a witness's prior description. Rather, a witness's prior description is but one factor a court should consider in determining whether the lineup was one that created a substantial likelihood that the defendant would be singled out for identification. The conclusion that defendant's dreadlocks were so distinctive that they rendered the lineup unduly suggestive as to the two victims who had mentioned the perpetrator's hairstyle in their initial description to police was supported by the lineup photographs introduced into evidence at the hearing, which clearly depicted defendant as the only person with long, visible dreadlocks. The lower courts' conclusion that the same distinctive feature was not unduly suggestive for the other two victims was premised solely on their having not included dreadlocks as part of their descriptions to police. No other findings of fact were made that would have distinguished the outcomes from one another. Moreover, because one of the two victims who had not mentioned dreadlocks to police was unable to identify defendant in court, and the lineup identification was the only evidence linking defendant to that incident, the robbery count relating to that victim was dismissed.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

- AM JUR 2d, Appellate Review § 703; AM JUR 2d, Criminal Law § 907; AM JUR 2d, Evidence §§ 571, 575, 636–640, 1399–1401.
- CARMODY-WAIT 2d, Eyewitness Identification Procedures §§ 174:1, 174:10–174:15, 174:20–174:23, 174:43, 174:46–174:55; CARMODY-WAIT 2d, Pretrial Motions §§ 189:280–189:281; CARMODY-WAIT 2d, Particular Types of Evidence §§ 194:175, 194:215, 194:219, 194:223, 194:225, 194:229–194:231.
- LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 7.2–7.5, 9.4, 10.3.
- NY JUR 2d, Criminal Law: Procedure §§ 666–675, 682–685, 690, 694–698, 701–702, 709, 1662, 2103, 2107–2110, 2112, 2119–2120, 2266, 2283.

ANNOTATION REFERENCE

Criminal Defendant's Hair Color or Style as Factor in Determination of Whether Circumstances of Witness's Identification of Defendant in Photographic Array Shown by Police to Witness Were Impermissibly Suggestive as Matter of Federal Constitutional Law. 5 ALR7th 5.

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POINTS OF COUNSEL

Patterson Belknap Webb & Tyler LLP, New York City (*Stephen P. Younger*, *Harry Sandick* and *Ryan M. Mott* of counsel), and *Lynn W.L. Fahey, Appellate Advocates*, New York City (*Erica Horwitz* and *Paul Skip Laisure* of counsel), for appellant. I. The court below denied appellant his due process right to a fair trial when it refused to suppress the lineup identifications of appellant by MB and MH because they had not described their assailant as having dreadlocks even though (a) all four complainants had viewed a photo array in which appellant and all the other fillers had dreadlocks, and (b) the court ruled that the lineup, in which only appellant had dreadlocks, a “distinctive feature,” was unduly suggestive as to the two other complainants. (*United States v Wade*, 388 US 218; *People*

v Adams, 53 NY2d 241; *Neil v Biggers*, 409 US 188; *People v Marte*, 12 NY3d 583; *People v Lundquist*, 151 AD2d 505; *People v Murphy*, 260 AD2d 505; *Foster v California*, 394 US 440; *People v Carolina*, 184 AD2d 520; *People v Breitenbach*, 260 AD2d 389; *People v Moore*, 143 AD2d 1056.) II. The trial court abused its discretion when it refused to provide an adverse inference charge or any other remedy for the People's failure to preserve and turn over 911 recordings that were timely requested by the defense and relevant to the identification issue central to the case. (*People v Rosario*, 9 NY2d 286; *People v Martinez*, 71 NY2d 937; *People v Kelly*, 62 NY2d 516; *People v Watkins*, 189 AD2d 623; *People v Wallace*, 76 NY2d 953; *People v Joseph*, 86 NY2d 565; *People v Martinez*, 22 NY3d 551; *People v Haupt*, 71 NY2d 929; *People v Huynh*, 232 AD2d 655; *People v Holman*, 283 AD2d 440.) III. The lower courts' findings that the prosecutor was not racially motivated in exercising peremptory challenges against African-American women lack any record support and are clearly erroneous. (*Batson v Kentucky*, 476 US 79; *People v Bolling*, 79 NY2d 317; *Snyder v Louisiana*, 552 US 472; *People v Allen*, 86 NY2d 101; *Purkett v Elem*, 514 US 765; *Miller-El v Cockrell*, 537 US 322; *Hernandez v New York*, 500 US 352; *United States v Cecil*, 615 F3d 678; *People v Rodriguez*, 211 AD2d 275; *People v Hecker*, 15 NY3d 625.)

Richard A. Brown, District Attorney, Kew Gardens (Nancy Fitzpatrick Talcott, Robert J. Masters, John M. Castellano and Joseph N. Ferdenzi of counsel), for respondent. I. There is ample record support for the lower courts' determinations that the lineup was non-suggestive as to the witnesses who gave no description of the robber's hairstyle to police. (*People v Howard*, 22 NY3d 388; *People v Gilford*, 16 NY3d 864; *People v McBride*, 14 NY3d 440; *People v Brisco*, 99 NY2d 596; *Raheem v Kelly*, 257 F3d 122; *People v Marshall*, 51 AD3d 821; *People v Romero*, 91 NY2d 750; *People v Duuvon*, 77 NY2d 541; *People v Adams*, 53 NY2d 241; *People v Berrios*, 28 NY2d 361.) II. The trial court properly exercised its discretion when it declined to issue an adverse inference charge regarding the inadvertent destruction of the 911 call, and defendant's claim of prejudice from the missing call is unpreserved. In any event, error, if any, in the court's decision was harmless. (*People v Rosario*, 9 NY2d 286; *People v Consolazio*, 40 NY2d 446; *People v Rangelhelle*, 69 NY2d 56; *People v Wolf*, 284 AD2d 102; *People v Joseph*, 86 NY2d 565; *People v Wallace*, 76 NY2d 953; *People v Banch*, 80 NY2d 610; *People v Martinez*, 22 NY3d 551; *People v Martinez*, 71 NY2d 937; *People v Keschner*, 25 NY3d 704.) III.

In ruling on defendant's *Batson* claim, the trial court expressly validated the prosecutor's concerns about rapport based on its observations of courtroom dynamics, and defendant failed to point to anything that occurred in the courtroom that undermined that concern and therefore failed to satisfy his burden of persuasion or his burden of making a record sufficient to succeed on his appeal. (*People v Luciano*, 10 NY3d 499; *Holland v Illinois*, 493 US 474; *Batson v Kentucky*, 476 US 79; *Georgia v McCollum*, 505 US 42; *People v Kern*, 75 NY2d 638; *Hernandez v New York*, 500 US 352; *People v Wells*, 7 NY3d 51; *People v Payne*, 88 NY2d 172; *Purkett v Elem*, 514 US 765; *People v Smocum*, 99 NY2d 418.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

On this appeal, we must determine whether there was record support for the lower courts' finding that two of the four lineups conducted were not unduly suggestive. We hold that there was not.

I.

After defendant was identified as a suspect in several gunpoint robberies, the detective assigned to the case used the New York City Police Department's photo manager system to create photo arrays with his picture. In both arrays relevant here, defendant and all five "fillers" had visible dreadlocks. Each of the four victims (AB, SP, MB and MH) chose defendant's photo. No issue is raised on this appeal as to the reliability of these identifications. Approximately three weeks later, the case detective conducted lineups with the same four victims.¹ It is undisputed that at the lineup, defendant was the only participant with long dreadlocks, which were plainly visible despite the hats provided to all of the men. Again, all four victims identified defendant. Defendant was arrested and indicted for several counts of robbery. Subsequently, he moved to suppress the identification procedures.

After a *Wade* hearing, Supreme Court granted defendant's motion to suppress the lineup identifications with respect to two victims (AB and SP) but denied it with respect to the other two victims (MB and MH). The court found that defendant's

1. Detectives also conducted lineups with several other victims in connection with this pattern of robberies. Those incidents were not tried in connection with these four.

dreadlocks were “distinctive.” However, its conclusions of law as to the four lineup procedures differed solely based upon whether the relevant identifying witness had given a prior description of the perpetrator to police in which dreadlocks “figured prominently.” The court concluded that because AB and SP had described their assailant as having dreadlocks, when they viewed the lineup where defendant was the only one with this distinctive feature, the lineup was unduly suggestive. However, the court also concluded that because MB and MH had not mentioned dreadlocks to the police, the same lineup was not unduly suggestive as to them, despite the presence of the same distinctive feature. The court cited several cases from the Appellate Division in support of its conclusion that a distinctive feature renders a lineup unduly suggestive only if it “figured prominently” in the viewer’s prior description of the perpetrator to the police.

After an independent source hearing for AB and SP, the court concluded that the People had established an independent basis for them to make in-court identifications of defendant at trial despite the suppression of their lineups. During the trial, AB, SP and MH all identified defendant in the courtroom. MB did not. The jury acquitted defendant of the robbery counts with respect to AB and SP and convicted him of the counts with respect to MH and MB.

The Appellate Division affirmed, stating that the dreadlocks did not render the lineups unduly suggestive, because defendant’s “hairstyle was not part of the subject complainants’ descriptions of the perpetrator” and “was minimized by the fact that the participants all wore hats” (*People v Perkins*, 124 AD3d 915, 915 [2d Dept 2015]). A Judge of this Court granted defendant leave to appeal (25 NY3d 1205 [2015]), and we now reverse.

II.

At the outset, we note that whether a lineup is unduly suggestive is a mixed question of law and fact, and so long as there is record support for a suppression court’s conclusion, the issue is beyond our review (see *People v McBride*, 14 NY3d 440, 448 [2010]). Here, Supreme Court referenced a line of decisions from the Appellate Division which supported its different conclusions as to the four victims. Several Appellate Division cases have held that a defendant’s distinctive feature does not render a lineup unduly suggestive unless that feature figured

prominently in the witness's description (*see e.g. People v Jordan*, 44 AD3d 875, 876 [2d Dept 2007], *lv denied* 9 NY3d 1035 [2008]; *People v Ryan*, 45 AD3d 1363 [4th Dept 2007], *mod on other grounds* 12 NY3d 28 [2009]). The Second Circuit has also found that even where a defendant in a lineup has a distinguishing characteristic—in that case a black leather coat—the lineup may be unduly suggestive as to one viewer who has stressed that particular characteristic in giving a description to police but not to another who has not (*see Raheem v Kelly*, 257 F3d 122, 134 [2d Cir 2001]).

Though these cases from the Appellate Division suggest that a witness's prior mention of a distinctive feature can be a determinative factor in a lineup's suggestiveness, we hold that a bright-line rule in this area would be unworkable, and unwise. A lineup's suggestiveness should not turn solely on whether a defendant's distinctive feature figured prominently in a witness's prior description. Rather, a witness's prior description is but one factor a court should consider in determining whether the lineup is one that “create[s] a substantial likelihood that the defendant would be singled out for identification” (*People v Chipp*, 75 NY2d 327, 336 [1990]). Our review remains limited and deferential to the suppression court's findings on this mixed question of law and fact. Indeed, as we have already stated in the context of showups, identifications “are by their nature fact-specific; no two are ever going to be exactly alike. . . . To the extent we indulge in second-guessing reasonable decisions made by the lower courts when applying the broad principles by which we have advised them to evaluate [identifications], we only sow confusion” (*People v Howard*, 22 NY3d 388, 403 [2013]).

We apply the same principles here. We by no means propose that a lineup is unduly suggestive, as a matter of law, merely because a defendant has a different hairstyle than some or all of the fillers. We further decline to categorically state what features may be considered so “distinct” as to render a lineup unduly suggestive. But here, the courts below concluded that defendant's dreadlocks were distinctive—so much so that they rendered the lineup unduly suggestive as to the two victims, AB and SP, who had mentioned the perpetrator's hairstyle in their initial description to the police. This conclusion is supported by the lineup photographs introduced into evidence at the hearing, which clearly depict defendant as the only person with long, visible dreadlocks. We note that this problematic

distinction was heightened because all four victims had viewed a photo array some time earlier that depicted all participants with dreadlocks. The lower courts' conclusion that this same distinctive feature was not unduly suggestive for MB and MH was premised solely on their having not included dreadlocks as part of their descriptions. No other findings of fact were made that would distinguish the outcomes from one another. Since our holding here clarifies that a witness's failure to mention a distinctive feature in his or her initial description is not necessarily the determinative factor in assessing a lineup's suggestivity, here, we must conclude that there was no record support for the lower courts' denial of suppression for the MB and MH lineups.²

III.

Both lineups should have been suppressed. Because MB was unable to identify defendant in court, and the lineup identification was the only evidence linking defendant to that incident, the robbery count relating to her must be dismissed. Since MH did identify defendant at trial, we remit that count to Supreme Court for an independent source hearing, should the People choose to proceed in that manner. In light of our decision on the lineups, we need not reach defendant's remaining arguments. Accordingly, the order of the Appellate Division should be reversed, defendant's motion to suppress the lineup identifications granted, the second count of the indictment dismissed, and the case otherwise remitted to Supreme Court for further proceedings in accordance with this opinion.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, STEIN, FAHEY and GARCIA concur.

Order reversed, defendant's motion to suppress the lineup identifications granted, the second count of the indictment dismissed, and case otherwise remitted to Supreme Court, Queens County, for further proceedings in accordance with the opinion herein.

2. Defendant's further arguments about disparities in height, weight and age between him and the fillers are unnecessary for resolution of the issue before us, and, in any event, are unavailing. We recognize that "[t]here is no requirement . . . that a defendant in a lineup be surrounded by people nearly identical in appearance" (*People v Chipp*, 75 NY2d 327, 336 [1990]).

[68 NE3d 683, 45 NYS3d 864]

STONEHILL CAPITAL MANAGEMENT LLC et al., Appellants, v
BANK OF THE WEST et al., Respondents.

Argued November 14, 2016; decided December 20, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 7, 2015. The Appellate Division order, insofar as appealed from, (1) reversed, on the law, a judgment of the Supreme Court, New York County (O. Peter Sherwood, J.), which had awarded plaintiffs a money judgment on their breach of contract cause of action, and expressly left pending the fourth cause of action seeking indemnification for costs and expenses, including attorneys' fees; (2) denied plaintiffs' motion for summary judgment on their breach of contract cause of action; (3) granted defendant Bank of the West's cross motion for summary judgment dismissing the amended complaint; and (4) dismissed the complaint as against defendant Bank of the West. The judgment was entered upon an order of that Supreme Court (op 2014 NY Slip Op 30751[U] [2014]) which had (1) granted plaintiffs' motion for summary judgment on their breach of contract cause of action, and (2) denied defendant Bank of the West's cross motion for summary judgment dismissing the amended complaint.

Stonehill Capital Mgt., LLC v Bank of the W., 127 AD3d 429, reversed.

HEADNOTE

Contracts — Formation of Contract — Auction Sale of Syndicated Loan

Plaintiffs were entitled to summary judgment on their breach of contract claim against defendant bank arising from the auction sale of a syndicated loan, inasmuch as defendant's acceptance of plaintiffs' final bid to purchase the loan, together with the totality of the parties' actions and communications, constituted an agreement to an enforceable contract with express material terms and post-formation requirements, and plaintiffs were unable to realize the increased valuation of the loan after defendant refused to transfer it. With respect to auctions, the general rule is that a seller's acceptance of an auction bid forms a binding contract. While an auction can be conditional, it will not be deemed so absent explicit terms. Here, the Offering Memorandum stated that the bids were non-contingent final offers that, if accepted, required execution by the bidder of an included pre-negotiated asset sale agreement and payment of a deposit, and that the loans were subject only to those representations and warranties explicitly stated in the agree-

ment. Thus, the terms of the sale were preset. When defendant accepted the offer it confirmed the bid in a correspondence setting forth material terms, including the sale price, the specific loan to be sold, the timing of the closing, and the manner of payment and wire transfer instructions. With respect to execution of the agreement, plaintiffs notified defendant that the included agreement was inappropriate for the transaction and provided an alternate form, which defendant agreed was preferred and worked on preparing while plaintiffs continued to provide documentation necessary for the closing. Plaintiffs were responsive to all of defendant's requests, expressed eagerness to close the deal, took necessary steps, including securing approval of a credit agreement, and never implied an inability or unwillingness to turn over the deposit. Defendant's language in an email, which stated that acceptance of the bid was "[s]ubject to mutual execution of an acceptable [agreement]" and tender of the deposit, did not provide the forthright, reasonable signal necessary to convey that it did not intend to be bound absent a writing. The signed writing and deposit were post-agreement requirements necessary for consummation of the transfer, as established by the continued exchange of documents necessary to the asset transfer.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Auctions and Auctioneers §§ 1, 13, 20–22, 26, 30–37, 47, 52; AM JUR 2d Contracts § 18.
CARMODY-WAIT 2d Complaints in Particular Actions § 29:69; CARMODY-WAIT 2d Presentation of the Case § 56:43.
NEW YORK CONTRACT LAW §§ 1:5, 2:1, 2:7, 2:14, 3:13, 3:23, 4:3, 6:7, 12:8.
NY JUR 2d Auctions and Auctioneers §§ 1, 12, 15, 22, 24–28, 31, 34; NY JUR 2d Contracts § 28–34.
WILLISTON ON CONTRACTS (4th ed) §§ 3:2–3:5, 4:1–4:3, 4:12, 6:3, 6:11, 6:13, 6:26, 6:58–6:59.

ANNOTATION REFERENCE

Modes of making and accepting bids at auctions. 11 ALR 543.

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POINTS OF COUNSEL

Law Offices of Martin Eisenberg, New York City (*Martin Eisenberg* of counsel), for appellants. I. Bank of the West (BOTW) breached its contract with Stonehill Capital Management LLC for the sale of the loan. (*Manhattan Taxi Serv. Corp.*

v Checker Cab Mfg. Corp., 253 NY 455; *Drew v John Deere Co. of Syracuse*, 19 AD2d 308; *In re NextWave Personal Communications, Inc.*, 200 F3d 43; *Cobble Hill Nursing Home v Henry & Warren Corp.*, 74 NY2d 475; *Emigrant Bank v UBS Real Estate Sec., Inc.*, 49 AD3d 382; *Brown Bros. Elec. Contrs. v Beam Constr. Corp.*, 41 NY2d 397; *Liberty Mgt. & Constr. v Fifth Ave. & Sixty-Sixth St. Corp.*, 208 AD2d 73; *King v King*, 208 AD2d 1143; *Teachers Ins. & Annuity Assn. of Am. v Tribune Co.*, 670 F Supp 491; *Valeo Engine Cooling v Atkinson Co. of Cal.*, 240 AD2d 176.) II. Alternatively, BOTW breached its implied covenant of good faith and fair dealing. (*Maddaloni Jewelers, Inc. v Rolex Watch U.S.A., Inc.*, 41 AD3d 269; *Lonner v Simon Prop. Group, Inc.*, 57 AD3d 100; *Atlas El. Corp. v United El. Group, Inc.*, 77 AD3d 859; *Frankini v Landmark Constr. of Yonkers, Inc.*, 91 AD3d 593; *Dalton v Educational Testing Serv.*, 87 NY2d 384.) III. The Supreme Court awarded proper damages to Stonehill. (*Dalton v Educational Testing Serv.*, 87 NY2d 384; *Indu Craft, Inc. v Bank of Baroda*, 47 F3d 490; *Rich-Haven Motor Sales v National Bank of N.Y. City*, 163 AD2d 288, 76 NY2d 709.) IV. Stonehill's fourth cause of action for indemnity should be reinstated. V. Alternatively, Stonehill was unjustly enriched by BOTW's refusal to sell the loan to Stonehill. (*Beach v Touradji Capital Mgt. L.P.*, 85 AD3d 674; *Winick Realty Group LLC v Austin & Assoc.*, 51 AD3d 408; *Smith v Kirkpatrick*, 305 NY 66; *O'Brien v City of Syracuse*, 54 NY2d 353; *Georgia Malone & Co., Inc. v Rieder*, 19 NY3d 511; *Cauff, Lippman & Co. v Apogee Fin. Group, Inc.*, 807 F Supp 1007.)

Katten Muchin Rosenman LLP, New York City (*David A. Crichlow* and *Gregory C. Johnson* of counsel), for Bank of the West, respondent. I. Bank of the West (BOTW) expressly conditioned the sale of the Goett loan on the mutual execution of a written sales agreement. (*Scheck v Francis*, 26 NY2d 466; *Chatterjee Fund Mgt. v Dimensional Media Assoc.*, 260 AD2d 159; *Winston v Mediafare Entertainment Corp.*, 777 F2d 78; *Brighton Inv., Ltd. v Har-Zvi*, 88 AD3d 1220; *Jordan Panel Sys. Corp. v Turner Constr. Co.*, 45 AD3d 165; *Naturopathic Labs. Intl., Inc. v SSL Ams., Inc.*, 18 AD3d 404; *Reprosystem, B.V. v SCM Corp.*, 727 F2d 257; *Ciaramella v Reader's Digest Assn., Inc.*, 131 F3d 320; *R.G. Group, Inc. v Horn & Hardart Co.*, 751 F2d 69; *Eastern Consol. Props., Inc. v Morrie Golick Living Trust*, 83 AD3d 534.) II. BOTW and Stonehill Capital Management LLC did not agree on all material terms of the proposed loan transaction. (*Matter of Municipal Consultants &*

Publs. v Town of Ramapo, 47 NY2d 144; *Rose v Associated Univs.*, 309 AD2d 666; *Kobre v Instrument Sys. Corp.*, 54 AD2d 625, 43 NY2d 862; *Scheck v Francis*, 26 NY2d 466; *Chatterjee Fund Mgt. v Dimensional Media Assoc.*, 260 AD2d 159.) III. BOTW duly conditioned final auction results on the execution of a signed writing and the submission of a 10% cash deposit. (*City of New York v Union News Co.*, 222 NY 263; *Dulman v Fein & Co.*, 66 AD2d 809; *Matter of Premier Container Corp. [Leinwand]*, 95 Misc 2d 859; *William J. Jenack Estate Appraisers & Auctioneers, Inc. v Rabizadeh*, 22 NY3d 470; *Adjustrite Sys., Inc. v GAB Bus. Servs., Inc.*, 145 F3d 543; *Drew v Deere Co. of Syracuse*, 19 AD2d 308; *In re NextWave Personal Communications, Inc.*, 200 F3d 43; *King v King*, 208 AD2d 1143; *Valeo Engine Cooling v Atkinson Co. of Cal.*, 240 AD2d 176; *Brown Bros. Elec. Contrs. v Beam Constr. Corp.*, 41 NY2d 397.) IV. The Appellate Division correctly found that Stonehill did not satisfy the conditions precedent to a binding contract. (*Liberty Mgt. & Constr. v Fifth Ave. & Sixty-Sixth St. Corp.*, 208 AD2d 73; *Kooleraire Serv. & Installation Corp. v Board of Educ. of City of N.Y.*, 28 NY2d 101; *Stern v Gepo Realty Corp.*, 289 NY 274; *Collins Tuttle & Co. v Ausnit*, 95 AD2d 668; *Cauff, Lippman & Co. v Apogee Fin. Group, Inc.*, 807 F Supp 1007.) V. The Appellate Division correctly found that BOTW did not breach the implied covenant of good faith and fair dealing. (*Keefe v New York Law School*, 71 AD3d 569; *Sheth v New York Life Ins. Co.*, 273 AD2d 72; *Murphy v American Home Prods. Corp.*, 58 NY2d 293; *Baker v 16 Sutton Place Apt. Corp.*, 110 AD3d 479.) VI. The Appellate Division correctly dismissed Stonehill's claim for unjust enrichment. (*Atlas El. Corp. v United El. Group, Inc.*, 77 AD3d 859; *Maddaloni Jewelers, Inc. v Rolex Watch U.S.A., Inc.*, 41 AD3d 269; *Frankini v Landmark Constr. of Yonkers, Inc.*, 91 AD3d 593; *McGrath v Hilding*, 41 NY2d 625; *Clark v Daby*, 300 AD2d 732, 100 NY2d 503; *Cauff, Lippman & Co. v Apogee Fin. Group, Inc.*, 807 F Supp 1007.)

Hoguet Newman Regal & Kenney, LLP, New York City (Damian R. Cavaleri, Laura B. Hoguet and Jeffrey A. Miller of counsel), for Mission Capital Advisors, LLC, respondent. I. Reversing the Appellate Division's decision would result in uncertainty in the loan sale market. II. The Appellate Division correctly held that a party may condition the completion of a transaction on the mutual execution of a written agreement. (*Scheck v Francis*, 26 NY2d 466; *Schwartz v Greenberg*, 304 NY 250; *Chatterjee Fund Mgt. v Dimensional Media Assoc.*, 260 AD2d 159; *Jordan Panel Sys. Corp. v Turner Constr. Co.*,

45 AD3d 165; *Prospect St. Ventures I, LLC v Eclipsys Solutions Corp.*, 23 AD3d 213; *R.G. Group, Inc. v Horn & Hardart Co.*, 751 F2d 69; *Winston v Mediafare Entertainment Corp.*, 777 F2d 78; *City of New York v Union News Co.*, 222 NY 263; *Dulman v Fein & Co.*, 66 AD2d 809.) III. The qualified financial contract exemption under the statute of frauds has no application here. (*Winston v Mediafare Entertainment Corp.*, 777 F2d 78; *Eastern Consol. Props., Inc. v Morrie Golick Living Trust*, 83 AD3d 534.)

Richard Kibbe & Orbe LLP, New York City (Brian S. Fraser, Robyn H. Frumkin, Katherine Kern Harrington and Rachel S. Mechanic of counsel), for Loan Syndications and Trading Association, amicus curiae. I. The Appellate Division's decision impairs the continued development of a fair and orderly auction process for commercial loans. (*In re NextWave Personal Communications, Inc.*, 200 F3d 43.) II. The New York Legislature has recognized that the enforceability of oral contracts is essential to the proper and orderly functioning of the secondary loan trading market. III. Bank of the West was bound absent a writing. (*Winston v Mediafare Entertainment Corp.*, 777 F2d 78; *In re NextWave Personal Communications, Inc.*, 200 F3d 43; *Blossom v R.R. Co.*, 3 Wall [70 US] 196.)

OPINION OF THE COURT

RIVERA, J.

Plaintiffs Stonehill Capital Management LLC, Stonehill Institutional Partners, L.P. and Stonehill Master Fund Ltd. (collectively Stonehill) are affiliated commercial entities that seek to enforce the auction sale of a syndicated loan against defendant Bank of the West (BOTW). BOTW concedes that it accepted Stonehill's bid and then refused to transfer the loan, but claims it had no legal obligation to do so because the parties never executed a written sales agreement and Stonehill failed to submit a timely cash deposit. However, these prerequisites are not conditions precedent to formation of the parties' contract and do not render their agreement unenforceable. Therefore, Stonehill has established its entitlement to summary judgment.

I.

BOTW, a lender of various nonperforming mortgage loans, retained codefendant Mission Capital Advisors, LLC to manage

a competitive online sealed-bid auction of several of these loans. As part of the bid process, in March 2012 Mission issued an Offering Memorandum (Memorandum), which announced its solicitation of indicative bids for the purchase of the loans, individually or in any combination, and invited non-contingent final offers. The auction portfolio included a syndicated loan—with an aggregate principal value of \$8,787,141—known to the parties as the “Goett Loan.” The Goett Loan is the underlying subject of the parties’ dispute.

The Memorandum set forth information about the loan portfolio and the asset pools contained therein. In the description of the “Loan Sale Process,” the Memorandum informed interested parties that

“[a]fter receipt of [the] indicative bids, Mission, in conjunction with the Seller, will select Final Bidders to complete final due diligence before submitting non-contingent offers on the Final Bid Date (the acceptance of which by Seller will require immediate execution of pre-negotiated Asset Sale Agreement (s) by Prospective Bidder accompanied by a 10% non-refundable wire funds deposit).”

The asset sale agreement would be made available for review to final bidders. The Memorandum also included the following disclaimer:

“The seller reserves the right, at their sole and absolute discretion, to withdraw any or all of the assets from the loan sale, at any time. . . . Only those representations and warranties that are made by the seller to a prospective bidder in a definitive, executed loan sale agreement shall have any legal effect” (capitalization modified).

After Stonehill expressed an interest in the Goett Loan, Mission forwarded a proposed asset sale agreement, referred to as the “Loan Sale Agreement” (LSA). Two days later, on April 18, Stonehill submitted to Mission a \$2,363,142 final bid on the Goett Loan. The same day, by separate correspondence, Stonehill informed Mission that the LSA was not the proper document to effectuate a syndicated loan transfer, and offered to “either make the minor modifications required to that docu-

ment to account for the agent's approval process, etc, or use an LSTA syndicated loan document, whichever the Seller prefers.”¹

Mission notified Stonehill by telephone on April 20 that it had submitted the winning bid for the Goett Loan. On April 23, Stonehill sent Mission a modified redlined version of the proposed LSA, purportedly at Mission's request, containing what Stonehill considered to be the necessary technical changes that would enable the LSA to effectuate the sale and assignment of the Goett syndicated loan. Mission's representative replied that it was “a substantially larger markup than I was expecting to see. I can't actually say that our lawyer is going to use it.” Then, on April 24, BOTW's counsel sent Mission an email stating that if the Goett Loan was a syndicated credit “the LSTA form agreement is actually pretty good,” to which Mission's representative responded that he was “99.9% certain that [Stonehill is] right about this being a syndicated credit.”

On Friday, April 27, Mission emailed Stonehill written confirmation that BOTW agreed to the Stonehill bid. The correspondence stated:

“Subject to mutual execution of an acceptable [LSA], [BOTW] has agreed to the Stonehill . . . bid of:

“Mixed Portfolio - \$8,787,141 UPB

“Purchase Price - \$2,363,142

“As discussed, counsel representing [BOTW] . . . will be sending you an executable [LSA] . . . by Tuesday, May 1st. An executed signature page and 10% non-refundable deposit is expected no later than 2:00 pm EDT on Wednesday, May 2nd” (emphasis omitted).

The email also included wiring instructions for the deposit and closing.

That same day, BOTW's counsel sent Stonehill an email in which counsel explained that he was previously unaware that the Goett Loan was syndicated and that he “prefer[red] to use LSTA documentation for syndicated credits.” He pushed for an early May closing on the loan transfer because “[m]ost trade agents won't approve trades at the end of the month” and said that he would send the trade agreements the following week.

1. LSTA (Loan Syndications and Trading Association) is a trade association that publishes standardized forms for syndicated loan agreements.

On Friday, May 4, BOTW's counsel was still preparing the documents and initiated a series of email exchanges to move the deal ahead. Counsel first informed Stonehill that he was working on sending the documents by Monday and requested that, "[i]n the meantime," Stonehill send him the term sheet from a previous trade specified by counsel. Stonehill wrote back that the requested term sheet was confidential but that Stonehill would provide an LSTA form reflecting the terms of the Goett Loan transaction, stressing, "[w]e hope that this arrangement will be acceptable to you and will enable us to move forward to close quickly." BOTW's counsel responded that he "assumed as much" and it was "fine to proceed as [Stonehill] indicated."

As promised, two days later Stonehill sent the LSTA form to BOTW's counsel with the terms for the loan transaction and related documents. In this same correspondence, Stonehill informed counsel that it was forwarding the credit agreement transfer forms to Wells Fargo, the credit agreement agent, and this was a necessary step to complete and record the transfer of the Goett Loan to Stonehill.

On May 8, Stonehill informed BOTW's counsel that Wells Fargo approved the credit transfer forms. Under the credit agreement, Stonehill needed the promissory note endorsed in order to close on the Goett Loan, so Stonehill also sent counsel a standard allonge form for the promissory note on the Goett Loan issued to BOTW.

Around this time, BOTW learned that Stonehill was refinancing the Goett Loan. This would apparently increase the value of the loan, which led BOTW to consider its options with respect to the loan sale. An internal BOTW memorandum circulated on May 10 detailed both the refinancing and the auction sale to Stonehill. The memorandum explained that

"there is a question as to the direction [BOTW] should take; sale or not to sale [sic], given that no formal written commitments are executed between [BOTW]/Mission Capital and Stonehill that would obligate [BOTW] to sale [sic] the Goett Note. Fact remains that [BOTW] acted in good faith and has verbally committed to the Goett Note sale to Stonehill."

It further stated that Stonehill had proceeded with various steps to finalize the refinancing and Stonehill funding was highly likely.

On May 14, Stonehill contacted BOTW's counsel for an update. Counsel, apparently surprised by Stonehill's inquiry, forwarded the email to Mission. Then on May 16, Mission informed Stonehill by telephone that BOTW would not proceed with the trade. Over a week later, on May 25, Mission forwarded to Stonehill a May 18 email from BOTW to Mission declaring that it would not sell to Stonehill:

"[BOTW] will not proceed with this trade because it has no obligation to do so. There are no agreements (oral or written) between [BOTW] and Stonehill Capital. The Offering Memorandum specifically permits [BOTW] to withdraw any loan from the auction at any time. Specifically, it states 'The Seller reserve[s] the right, at their sole and absolute discretion, to withdraw any or all of the assets from the loan sale, at any time.' In addition, Mission Capital's bid response e-mail to Stonehill conditioned [BOTW's] response upon the execution of a definitive loan sale agreement."

As a consequence of the refinancing and the cancellation of the sale to Stonehill, on June 21 BOTW received \$4,197,441 on the Goett Loan, an excess of approximately \$1.8 million over Stonehill's bid.²

Stonehill commenced the present action against BOTW and Mission, alleging breach of contract and breach of the implied covenant of good faith and fair dealing, and seeking indemnification. In its amended complaint, Stonehill added a cause of action for unjust enrichment and demanded \$1.5 million in damages.

Supreme Court denied BOTW's motion to dismiss and cross motion for summary judgment, and granted Stonehill's motion for summary judgment on the breach of contract cause of action (*Stonehill Capital Mgt., LLC v Bank of the W.*, 2014 NY Slip Op 30751[U] [Sup Ct, NY County 2014]). Supreme Court held that because the purchase and sale agreement was pre-negotiated, BOTW's acceptance of Stonehill's bid created a binding contract. BOTW appealed and the Appellate Division reversed, granted BOTW's cross motion for summary judgment and dismissed the complaint as against BOTW, holding that Stonehill had failed to establish a valid acceptance (*Stonehill Capital Mgt., LLC v Bank of the W.*, 127 AD3d 429 [1st Dept

2. The amount of damages is not at issue in this appeal.

2015]). We granted Stonehill leave to appeal (*Stonehill Capital Mgt., LLC v Bank of the W.*, 26 NY3d 909 [2015]).

II.

A. Summary Judgment Standard

It is well established that “the proponent of a summary judgment motion must make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact” (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]; see also *William J. Jenack Estate Appraisers & Auctioneers, Inc. v Rabizadeh*, 22 NY3d 470, 475-476 [2013]; CPLR 3212 [b]). Once the movant makes the proper showing, “the burden shifts to the party opposing the motion for summary judgment to produce evidentiary proof in admissible form sufficient to establish the existence of material issues of fact which require a trial of the action” (*Alvarez*, 68 NY2d at 324). The “facts must be viewed in the light most favorable to the non-moving party” (*Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012] [internal quotation marks omitted]). However, bald, conclusory assertions or speculation and “[a] shadowy semblance of an issue” are insufficient to defeat summary judgment (*S.J. Capelin Assoc. v Globe Mfg. Corp.*, 34 NY2d 338, 341 [1974]), as are merely conclusory claims (*Putrino v Buffalo Athletic Club*, 82 NY2d 779, 781 [1993]).

B. Breach of Contract Claim

To establish a prima facie breach of contract, Stonehill must show that BOTW breached a binding agreement between the parties, which damaged Stonehill (see *Palmetto Partners, L.P. v AJW Qualified Partners, LLC*, 83 AD3d 804, 806 [2d Dept 2011]; *Fischer & Mandell, LLP v Citibank, N.A.*, 632 F3d 793, 799 [2d Cir 2011]). To form a binding contract there must be a “meeting of the minds” (*Farago v Burke*, 262 NY 229, 231 [1933]), such that there is “a manifestation of mutual assent sufficiently definite to assure that the parties are truly in agreement with respect to all material terms” (*Matter of Express Indus. & Term. Corp. v New York State Dept. of Transp.*, 93 NY2d 584, 589 [1999]). In determining whether the parties intended to enter a contract, and the nature of the contract’s material terms, we look to the “objective manifestations of the intent of the parties as gathered by their expressed words and

deeds” (*Brown Bros. Elec. Contrs. v Beam Constr. Corp.*, 41 NY2d 397, 399 [1977]). “[D]isproportionate emphasis is not to be put on any single act, phrase or other expression, but, instead, on the totality of all of these, given the attendant circumstances, the situation of the parties, and the objectives they were striving to attain” (*id.* at 399-400). With respect to auctions, the general rule is that a seller’s acceptance of an auction bid forms a binding contract, unless the bid is contingent on future conduct (*City of New York v Union News Co.*, 222 NY 263, 270 [1918]). While an auction can be conditional, meaning property can be withdrawn after the close of bidding, it will not be deemed conditional absent explicit terms (see *Slukina v 409 Edgecombe Ave. Hous. Dev. Fund Corp.*, 2013 NY Slip Op 31966[U], *8 [Sup Ct, NY County 2013]).

Stonehill maintains that BOTW’s acceptance of its bid constitutes a contract to sell the Goett Loan. In response, BOTW asserts it conditioned the sale on the parties’ execution of a written agreement and Stonehill’s submission of a 10% deposit, neither of which was satisfied prior to BOTW’s withdrawal from the transaction. We conclude, based on the totality of the parties’ actions and communications, that they agreed to an enforceable contract, with express material terms and post-formation requirements.

BOTW, through Mission as its auctioneer, solicited bids on a loan portfolio and its component parts. The Offering Memorandum stated that the bids were non-contingent final offers that, if accepted by the seller, required execution by the bidder of a pre-negotiated asset sale agreement and an accompanying 10% deposit. The Memorandum additionally informed prospective bidders that the loans sold at auction were “subject only to those representations and warranties explicitly stated in the Asset Sale Agreement,” which was included with the Memorandum. Thus, the terms of the sale were preset.

In response, Stonehill submitted a bid and separately informed Mission that the LSA included with the Memorandum was inappropriate for the type of asset that was the subject of the auction, specifically a syndicated credit facility. Stonehill offered to make the necessary modifications or use LSTA documents instead. When BOTW accepted Stonehill’s offer it confirmed the bid in a correspondence setting forth the sale price, the specific loan to be sold, the timing of the closing, and the manner of payment and wire transfer instructions—terms

material to the agreement. BOTW in no way indicated that the LSTA form or any modifications were unacceptable. At no time during the period between when BOTW accepted Stonehill's bid and when it withdrew from the transaction did BOTW communicate its objection to the LSTA form that Stonehill had sent to BOTW's counsel or indicate that the proposed modifications were "deal breakers." In fact, counsel emailed Stonehill that once he became aware that the asset was a syndicated loan, he too preferred to use the LSTA documentation.

In future correspondence counsel did not mention any problems with the LSTA form that Stonehill had sent, but instead requested documentation from Stonehill to move the transaction along towards a mid-May closing date. Specifically, in the Friday, May 4th email thread, BOTW's counsel said he was working on getting the documents to Stonehill the following Monday and requested a term sheet to further the process. After Stonehill responded that it could not return the specific term sheet requested because of confidentiality provisions, offering instead to send an LSTA form for the Goett Loan transaction, BOTW's counsel informed Stonehill that it could proceed as described.

The totality of the parties' conduct and the "objective manifestations" of their intent are evidenced by BOTW's inclusion of pre-negotiated auction terms in the Offering Memorandum, BOTW's acceptance of Stonehill's bid in correspondence that communicated the terms of the purchase and the date and instructions for the closing, the email exchanges between BOTW's counsel and Stonehill which indicated the sale was moving ahead and included references to documents necessary for closing the transaction, and BOTW's utter failure to identify or explain any objections to the LSTA form prior to the May 18th correspondence announcing its withdrawal from the sale. This established the parties' intent to enter a binding agreement in which BOTW would sell the Goett Loan to Stonehill at the accepted final price.

BOTW argues that an executed signed agreement and a 10% deposit were preconditions to the contract which were never fulfilled and so BOTW was not bound to sell the Goett Loan to Stonehill. It claims that, at best, the parties had an unenforceable agreement to agree. BOTW relies on the April 27th email to Stonehill, which provides that "[s]ubject to mutual execution of an acceptable Loan Sale Agreement, [BOTW] has agreed to the Stonehill . . . bid" and which also set a due date for the

executed signature page and the 10% deposit. BOTW argues the “subject to” language made the sale contingent on satisfaction of these two unmet conditions. This argument is unsupported by the record.

“[I]f the parties to an agreement do not intend it to be binding upon them until it is reduced to writing and signed by both of them, they are not bound and may not be held liable until it has been written out and signed” (*Scheck v Francis*, 26 NY2d 466, 469-470 [1970]). Certainly, “when a party gives forthright, reasonable signals that it means to be bound only by a written agreement, courts should not frustrate that intent” (*R.G. Group, Inc. v Horn & Hardart Co.*, 751 F2d 69, 75 [2d Cir 1984] [applying New York contract law]).

Such a forthright, reasonable signal is not obvious from the mere inclusion in an auction bid form of such formulaic language that the parties are “subject to” some future act or event. Less ambiguous and more certain language is necessary to remove any doubt of the parties’ intent not to be bound absent a writing (see e.g. *Emigrant Bank v UBS Real Estate Sec., Inc.*, 49 AD3d 382, 383 [1st Dept 2008] [“‘Subject to’ in the bid form did not unmistakably condition assent on the execution of a definitive agreement at some later juncture”]; *Bed Bath & Beyond Inc. v IBEX Constr., LLC*, 52 AD3d 413, 414 [1st Dept 2008] [“use of the language ‘subject to’ in the (letter of intent), and reference to the execution of a construction agreement as a ‘qualification,’ do not amount to an express reservation of the right not to be bound”]; cf. *Eastern Consol. Props., Inc. v Morrie Golick Living Trust*, 83 AD3d 534, 534 [1st Dept 2011] [“deal memorandum entered into by the parties, which expressly stated, ‘This memo shall memorialize the terms of the deal that have been accepted, subject to the signing of a mutually acceptable Contract of Sale,’ is a classic example of an ‘agreement to agree’ ”]).

We disagree with BOTW that the “subject to” language in the April 27th email clearly expresses an intent not to be bound to the sale of the Goett Loan. This email stated that closure of the transaction required execution of a signed document and Stonehill’s tender of the 10% deposit. That, however, is not the same as a clear expression that the parties were not bound to consummate the sale and that BOTW could withdraw at any time, for any reason. Nor did BOTW make known its desire for an unrestricted exit from the deal before accepting Stonehill’s bid or anytime before it withdrew from the transaction.

This was never made explicit before the bid was accepted either. There is a difference between conditions precedent to performance and those prefatory to the formation of a binding agreement. In *IDT Corp. v Tyco Group, S.A.R.L.* the Court explained the legal distinction:

“[A] condition precedent is an act or event, other than a lapse of time, which, unless the condition is excused, must occur before a duty to perform a promise in the agreement arises. Most conditions precedent describe acts or events which must occur before a party is obliged to perform a promise made pursuant to an existing contract, a situation to be distinguished conceptually from a condition precedent to the formation or existence of the contract itself” (*IDT Corp. v Tyco Group, S.A.R.L.*, 13 NY3d 209, 214 [2009] [internal quotation marks and citations omitted]).

Here, the signed writing and deposit were post-agreement requirements necessary for the consummation of the transfer, as established by the continued exchange of documents necessary to the asset transfer. To adopt BOTW’s argument would mean that the auction was neither final nor binding—in direct contravention of the auction sale terms and the usual manner in which reserve auctions proceed.

Truman Capital Advisors LP v Nationstar Mtge., LLC (2014 WL 4188090, 2014 US Dist LEXIS 118246 [SD NY, Aug. 25, 2014, No. 13 Civ 5945 (NRB)], *affd* 599 Fed Appx 6 [2d Cir 2015]), cited by BOTW, is distinguishable. In that breach of contract action, Truman bid on loans put up for auction by Nationstar. Nationstar reneged, relying on language in the auction terms that “[n]o obligation to sell shall be binding on Seller unless and until a written contract of sale or loan sale agreement is signed and delivered by Seller” (2014 WL 4188090, *3, 2014 US Dist LEXIS 118246, *7). The court held that Nationstar’s “right to reject the winning bid was implicitly reserved through the inclusion of the term requiring that Nationstar return a signed contract of sale or loan sale agreement in order for the transaction to be consummated” (2014 WL 4188090, *5, 2014 US Dist LEXIS 118246, *13). The Second Circuit affirmed, reiterating that the clause in the auction terms prevented Nationstar from being forced to sell even after Truman was determined to be the winning bidder (*Truman Capital Advisors LP v Nationstar Mtge., LLC*, 599 Fed Appx 6, 7 [2d Cir 2015]).

By comparison, the Memorandum and the April 27th email are not affirmative declarations foreclosing a sale “unless and until a written contract . . . is signed and delivered.” Instead, the language in these documents requires that the sale be completed upon the execution of a signed writing and the tender of the 10% deposit—post-agreement requirements the parties were obliged to perform pursuant to an existing agreement. The fact that the parties anticipate and identify future events necessary to close the sale is not the legal equivalent of an intent to delay formation of a binding contract absent the passage of those events.

Furthermore, there is no indication that these events were an actual obstacle to the sale. BOTW proffered no evidence to suggest that Stonehill refused to enter a signed agreement or to submit the deposit. Quite the opposite. Stonehill was responsive to all of BOTW’s requests for documentation, expressed its eagerness to close the deal, took necessary steps to achieve that end (including securing approval of the credit agreement from Wells Fargo), and never implied its inability or unwillingness to turn over the deposit.³

BOTW’s withdrawal was not without consequences for Stonehill, which suffered losses totaling over \$1.8 million, reflecting the difference between the refinanced Discounted Payoff proceeds on account of the loan received by BOTW (\$4,197,441) and the accepted bid sale price (\$2,363,142). In other words, BOTW’s breach of contract resulted in Stonehill not being able to realize the increased valuation of the Goett Loan.

We conclude therefore that Stonehill met its *prima facie* burden on summary judgment by showing that BOTW accepted Stonehill’s bid to purchase the Goett Loan and the parties entered a binding agreement to complete the sale, BOTW breached that agreement, and the breach caused Stonehill to suffer monetary damages.⁴ Moreover, Stonehill asserted—and

3. Additionally, BOTW’s internal memorandum acknowledged that it had “verbally committed to the Goett Note sale to Stonehill” and suggests the reason the sale did not go through was BOTW’s desire to increase its revenue from the sale, not failure to comply with the preconditions.

4. We reject any argument by BOTW that it is not bound to its agreement with Stonehill based on the Memorandum disclaimer that BOTW reserved the right at its sole discretion to withdraw any or all assets from the sale at any time. Read in context, the disclaimer concerns BOTW’s ability to withdraw assets from the “sale,” and not whether it may withdraw an acceptance of an offer.

BOTW did not dispute—that Stonehill was ready, willing and able to close.

In response, BOTW failed to establish the existence of material issues of fact. This is not a case where the parties' intentions present a question of fact that prevents summary judgment (see *Darmento v Pacific Molasses Co.*, 81 NY2d 985, 988 [1993]; *Hopfan v Harris*, 54 NY2d 843, 845 [1981]). Here the "totality of the parties' conduct," and the objective manifestations of the parties' intent as evidenced by their expressed words and deeds, establishes as a matter of law the existence of the agreement. In addition to the acceptance, the correspondence, and the LSTA form exchange, the clear objective of both parties upon the acceptance of the offer was to sell the Goett Loan to Stonehill for the bid amount. While that objective remained unchanged for Stonehill, BOTW reconsidered the sale—not because of the failure to execute a written agreement or because Stonehill had not tendered the 10% deposit, but because BOTW concluded it would make more money by reneging on the sale. That choice was a breach of its agreement with Stonehill.

III.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be reversed, with costs, and the judgment of Supreme Court in favor of the Stonehill plaintiffs on their breach of contract claim against BOTW reinstated.

Chief Judge DiFiore and Judges Pigott, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order, insofar as appealed from, reversed, with costs, and judgment of Supreme Court, New York County, in favor of plaintiffs on their breach of contract claim against defendant Bank of the West reinstated.

[68 NE3d 714, 45 NYS3d 895]

In the Matter of RAYMOND NEWCOMB et al., Appellants, v
MIDDLE COUNTRY CENTRAL SCHOOL DISTRICT, Respondent.

Argued November 15, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 6, 2015. The Appellate Division affirmed an order the Supreme Court, Suffolk County (Andrew G. Tarantino, Jr., J.; op 2014 NY Slip Op 31320[U] [2014]), which had (1) denied a petition pursuant to Education Law § 3813 and General Municipal Law § 50-e (5) for leave to serve a late notice of claim or to deem a late notice of claim timely served nunc pro tunc, and (2) dismissed the proceeding.

Matter of Newcomb v Middle Country Cent. Sch. Dist., 128 AD3d 701, reversed.

HEADNOTES

Municipal Corporations — Notice of Claim — Late Notice — Substantial Prejudice

1. A finding that a public corporation is substantially prejudiced by a late notice of claim must be based on evidence in the record and cannot be based solely on speculation and inference. Courts have broad discretion to evaluate the factors set forth in General Municipal Law § 50-e (5), which includes whether the delay in serving the notice of claim substantially prejudiced the public corporation. However, it is an abuse of discretion as a matter of law when, as here, a court determines, in the absence of any record evidence to support such determination, that a respondent will be prejudiced in its defense by a late notice of claim. Within days after his son was the victim of a hit-and-run accident at an intersection, petitioner reported the details, including the location of the accident and nature of the injuries, to his son's high school, located within respondent school district. Petitioner's notice of claim, filed five months late but shortly after petitioner discovered that there had been a large sign advertising a school play at the corner of the intersection at the time of the accident, alleged that respondent's sign obstructed the view for pedestrians and drivers and created a distraction and a dangerous and hazardous condition. In determining that substantial prejudice existed, the lower courts presumed that the matriculation and graduation of students and personnel changes hindered respondent's ability to collect information about the sign. However, this argument was not made by respondent and there was no record evidence to support it. Additionally, the courts inferred that the passage of time would prejudice respondent because of fading memories of potential witnesses. Although changes in personnel and the fading memories of witnesses may, in fact, be prejudicial, a court must consider whether record evidence indicates that substantial prejudice does in fact exist.

Municipal Corporations — Notice of Claim — Late Notice — Substantial Prejudice — Burden of Proof

2. In a proceeding in which a petitioner seeks permission to file a late notice of claim against a public corporation pursuant to General Municipal Law § 50-e (5), the burden initially rests on the petitioner to present some evidence or plausible argument that supports a finding of no substantial prejudice to the public corporation, but once an initial showing is made, the public corporation must respond with a particularized evidentiary showing that the corporation will be substantially prejudiced if the late notice is allowed. A petitioner seeking to excuse the failure to timely comply with the notice requirement should have the initial burden, but the public corporation is in the best position to know and demonstrate whether it has been substantially prejudiced by the late notice. Here, within days after his son was the victim of a hit-and-run accident at an intersection, petitioner reported the details, including the location of the accident and nature of the injuries, to his son's high school, located within respondent school district. Petitioner's notice of claim, filed shortly after petitioner received police photographs depicting a large sign advertising a school play at the corner of the intersection at the time of the accident, but five months after the statutory period for filing a claim had ended, alleged that respondent's sign obstructed the view for pedestrians and drivers and created a distraction and a dangerous and hazardous condition. Petitioner argued that the photographs, which documented the size and place of the sign, would permit respondent to reconstruct the conditions on the date of the incident. However, the lower courts, in determining that substantial prejudice existed, applied the incorrect legal standard by placing the burden solely on petitioner to establish lack of substantial prejudice and by failing to consider whether petitioner's initial showing shifted the burden to respondent.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Municipal Corporations, Counties, and Other Political Subdivisions §§ 609–611, 695–697.

CARMODY-WAIT 2d Actions By and Against Public Bodies and Public Officers §§ 144:99–144:104.

McKINNEY'S, General Municipal Law § 50-e (5).

NY JUR 2d Government Tort Liability §§ 440, 449, 455, 457.

ANNOTATION REFERENCE

See ALR Index under Notice of Claims.

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Query: late /4 notice /3 claim /s substantial! /2 prejudice!
& burden /3 proof

POINTS OF COUNSEL

Law Offices of Paul A. Montuori, P.C., Mineola (*Paul A. Montuori* of counsel), for appellants. I. The necessary actual

knowledge of the facts and circumstances of the claim is established as a matter of law because respondent created the condition and subsequently removed such condition prior to 90 days following the accident. (*Bakioglu v Tornabene*, 117 AD3d 658; *Matter of St. Paul Guardian Ins. Corp. v Pocatello Fire Dist.*, 90 AD3d 761; *Matter of Vasquez v City of Newburgh*, 35 AD3d 621; *Claud v West Babylon Union Free Sch. Dist.*, 110 AD3d 663; *Matter of Leeds v Port Washington Union Free School Dist.*, 55 AD3d 734; *Erichson v City of Poughkeepsie Police Dept.*, 66 AD3d 820; *Gibbs v City of New York*, 22 AD3d 717; *Picciano v Nassau County Civ. Serv. Commn.*, 290 AD2d 164; *Matter of Thomas v City of New York*, 118 AD3d 537; *Nunez v City of New York*, 307 AD2d 218.) II. The Second Department erred in finding prejudice because the infant petitioner placed undisputed evidence into the record demonstrating how respondent is able to conduct a full investigation of the claim and defend on the merits while respondent offered no admissible evidence showing prejudice. (*Heiman v City of New York*, 85 AD2d 25; *Matter of Underwood v New York City Hous. Auth.*, 177 AD2d 698; *Matter of Haeg v County of Suffolk*, 30 AD3d 519; *Matter of DeMolfetto v City of New York*, 216 AD2d 295; *Prude v County of Erie*, 47 AD2d 111; *Matter of Driskell v City of New York*, 31 AD2d 541; *Matter of Hayes v Delaware-Chenango-Madison-Otsego Bd. of Coop. Educ. Servs.*, 79 AD3d 1405; *Matter of Rivera v City of New York*, 127 AD3d 445; *Matter of Mercado v City of New York*, 100 AD3d 445; *Rosario v New York City Health & Hosps. Corp.*, 119 AD3d 490.) III. Petitioners-appellants' "reasonable excuse" for the short delay in filing based upon incapacitation due to the accident and the unavailability of crucial evidence because of a criminal investigation warrants the petition be granted. (*Wurster v Armfield*, 175 NY 256; *Sengstack v Sengstack*, 4 NY2d 502; *Prude v County of Erie*, 47 AD2d 111; *Matter of Regan v City of New York*, 131 AD3d 1064; *Matter of Hubbard v County of Madison*, 71 AD3d 1313; *Matter of Hurd v County of Allegany*, 39 AD2d 499; *Matter of Gillum v County of Nassau*, 284 AD2d 533; *Matter of Stuto v City of New York*, 192 Misc 935; *Matter of Lopez v County of Nassau*, 120 AD3d 688; *Matter of Haeg v County of Suffolk*, 30 AD3d 519.) IV. Construing General Municipal Law § 50-e to provide a public corporation respondent with a statutory windfall resulting from an incapacitation allegedly caused by the respondent, a crime being committed, and its own remediation of negligence prior to 90 days following an accident, violates public policy.

Congdon, Flaherty, O'Callaghan, Reid, Donlon, Travis & Fishlinger, Uniondale (*Christine Gasser* of counsel), for respondent. I. The denial of petitioner's application was consistent with the sound public policy underlying General Municipal Law § 50-e. (*Alston v State of New York*, 97 NY2d 159; *Weiss v Fote*, 7 NY2d 579; *Di Geloromo v Metropolitan Suburban Bus Auth.*, 116 AD2d 691; *Breco Envtl. Contrs., Inc. v Town of Smithtown*, 31 AD3d 357; *Spano v Kings Park Cent. School Dist.*, 61 AD3d 666; *Kolnacki v State of New York*, 8 NY3d 277; *Long v State of New York*, 7 NY3d 269; *Bermudez v State of New York*, 44 Misc 3d 605; *Campbell v City of New York*, 4 NY3d 200; *Adkins v City of New York*, 43 NY2d 346.) II. The Second Department properly exercised its discretion in denying the late notice of claim application where Middle Country Central School District did not have timely actual knowledge of the essential facts constituting the claim. (*Williams v Nassau County Med. Ctr.*, 13 AD3d 363, 6 NY3d 531; *Wade v New York City Health & Hosps. Corp.*, 85 AD3d 1016; *Matter of Mondaca v County of Westchester*, 195 AD2d 511; *Matter of Riordan v East Rochester Schools*, 291 AD2d 922; *Matter of Cuda v Rotterdam-Mohonasen Cent. School Dist.*, 285 AD2d 806; *Thomann v City of Rochester*, 256 NY 165; *Matter of Felice v Eastport/South Manor Cent. School Dist.*, 50 AD3d 138; *Matter of Thill v North Shore Cent. Sch. Dist.*, 128 AD3d 976, 26 NY3d 914; *Matter of Borrero v New York City Hous. Auth.*, 134 AD3d 1104; *Matter of Romeo v Long Is. Power Auth.*, 133 AD3d 667.) III. The Second Department properly exercised its discretion in denying the late notice of claim application where petitioner's claim was patently meritless. (*Forrest v Berlin Cent. School Dist.*, 29 AD3d 1230; *Matter of Lo Tempio v Erie County Health Dept.*, 17 AD3d 1161; *Williams v City of New York*, 290 AD2d 354; *Matter of Swain v County of Albany*, 268 AD2d 747; *Matter of Katz v Town of Bedford*, 192 AD2d 707; *Matter of Hess v West Seneca Cent. School Dist.*, 71 AD3d 1568, 15 NY3d 813; *Matter of Catherine G. v County of Essex*, 3 NY3d 175; *Pahler v Daggett*, 170 AD2d 750; *Sheehan v City of New York*, 40 NY2d 496; *Vazquez v Roldan*, 86 AD3d 640.) IV. The Second Department properly exercised its discretion in denying the late notice of claim application where petitioner did not establish the lack of substantial prejudice to Middle Country Central School District. (*Williams v Nassau County Med. Ctr.*, 6 NY3d 531; *Chattergoon v New York City Hous. Auth.*, 161 AD2d 141, 78 NY2d 958; *Zarrello v City of New York*, 61 NY2d 628; *Brown v City of Buffalo*, 100 AD3d 1439; *Matter of Felice v*

Eastport/South Manor Cent. School Dist., 50 AD3d 138; *Matter of Heffelfinger v Albany Intl. Airport*, 43 AD3d 537; *Matter of Dell'Italia v Long Is. R.R. Corp.*, 31 AD3d 758; *Matter of Murray v Village of Malverne*, 118 AD3d 798; *Matter of Manuel v Riverhead Cent. Sch. Dist.*, 116 AD3d 1048; *Matter of Hampson v Connetquot Cent. Sch. Dist.*, 114 AD3d 790.) V. The Second Department properly exercised its discretion in denying the late notice of claim application notwithstanding petitioner's arguments as to reasonable excuse. (*Matter of Lopez v County of Nassau*, 120 AD3d 688; *Matter of Haeg v County of Suffolk*, 30 AD3d 519; *Matter of DeMolfetto v City of New York*, 216 AD2d 295; *Matter of Savelli v City of New York*, 104 AD2d 943, 122 AD2d 55; *Matter of Felice v Eastport/South Manor Cent. School Dist.*, 50 AD3d 138; *Matter of Iacone v Town of Hempstead*, 82 AD3d 888; *Matter of Heffelfinger v Albany Intl. Airport*, 43 AD3d 537; *Matter of Gillum v County of Nassau*, 284 AD2d 533; *Nunez v City of New York*, 307 AD2d 218; *Morano v County of Dutchess*, 160 AD2d 690.)

Michaels & Smolak, P.C., Auburn (*Michael G. Bersani* of counsel), for New York State Academy of Trial Lawyers, amicus curiae. I. The Supreme Court and the Second Department erred in failing to place the initial burden of proving prejudice due to the delay in serving the notice of claim on Middle Country Central School District. (*Sandak v Tuxedo Union School Dist. No. 3*, 308 NY 226; *Matter of Martin v School Bd. of Union Free Dist. No. 28, Long Beach*, 301 NY 233; *Russo v City of New York*, 258 NY 344; *Camarella v East Irondequoit Cent. School Bd.*, 34 NY2d 139; *Rodriguez v City of New York*, 44 NY2d 398; *Matter of Herman v Village of Chester*, 125 AD2d 469; *Kavanaugh v Memorial Hosp. & Nursing Home of Greene County*, 126 AD2d 930; *Rechenberger v Nassau County Med. Ctr.*, 112 AD2d 150; *Strobel v County of Lewis*, 147 AD2d 948; *Caminero v New York City Health & Hosps. Corp. [Bronx Mun. Hosp. Ctr.]*, 21 AD3d 330.) II. The error was not harmless because it skewed the equitable factors to be considered under General Municipal Law § 50-e (5) in favor of Middle Country Central School District. (*Matter of Bensen v Town of Islip*, 99 AD2d 755; *Matter of Underwood v New York City Hous. Auth.*, 177 AD2d 698; *Matter of Rojas v New York City Health & Hosps. Corp.*, 127 AD3d 870.)

Edward H. Gersowitz, New York State Trial Lawyers Association, New York City, and *Pollack Pollack Isaac & De Cicco, LLP*, New York City (*Brian J. Isaac* of counsel), for New York

State Trial Lawyers Association, amicus curiae. Since the only purpose served by notice of claim statutes is to enable a municipal defendant or similar entity to conduct an investigation while the facts are still fresh, a reviewing court commits reversible error when it denies an application for leave to serve a late notice of claim where the claimant is an infant who has a reasonable excuse for not filing the notice of claim within 90 days of its accrual where the record establishes that the municipal defendant's ability to conduct an investigation would not be compromised by granting the application. (*Matter of Beary v City of Rye*, 44 NY2d 398; *Adkins v City of New York*, 43 NY2d 346; *DeLeonibus v Scognamillo*, 183 AD2d 697; *Schwartz v City of New York*, 250 NY 332; *O'Brien v City of Syracuse*, 54 NY2d 353; *Brown v City of New York*, 95 NY2d 389; *Widger v Central School Dist. No. 1*, 18 NY2d 646; *Purdy v City of New York*, 193 NY 521; *Sweeney v City of New York*, 225 NY 271.)

OPINION OF THE COURT

Chief Judge DiFIORE.

The issue in this appeal is whether the lower courts abused their discretion in denying petitioner's motion for leave to serve a late notice of claim.¹ We conclude that it is an abuse of discretion as a matter of law when, as here, a court determines, in the absence of any record evidence to support such determination, that a respondent will be substantially prejudiced in its defense by a late notice of claim. Here, the lower courts also improperly placed the burden of proving substantial prejudice solely on petitioner. We therefore reverse.

I.

Pursuant to General Municipal Law § 50-e (1) (a), a party seeking to sue a public corporation, which includes a school district, must serve a notice of claim on the prospective defendant "within ninety days after the claim arises."² General Municipal Law § 50-e (5) permits a court, in its discretion, to

1. Raymond Newcomb, individually, and as father and natural guardian of Austin Newcomb, will be referred to throughout this opinion as "petitioner."

2. General Municipal Law § 50-e applies to a "public corporation" as that term is defined in the General Construction Law (General Municipal Law § 50-e [1] [a]). The General Construction Law defines a "public corporation" as "includ[ing] a municipal corporation, a district corporation, or a public benefit corporation" (General Construction Law § 66 [1]). A "municipal

(n. cont'd)

extend the time for a petitioner to serve a notice of claim.³ The statute requires the court to consider whether the public corporation “acquired actual knowledge of the essential facts constituting the claim within [90 days after the accrual of the claim] or within a reasonable time thereafter” (General Municipal Law § 50-e [5]). Additionally, the statute requires the court to consider “all other relevant facts and circumstances” and provides a “nonexhaustive list of factors that the court should weigh” (*Williams v Nassau County Med. Ctr.*, 6 NY3d 531, 538-539 [2006]). One factor the court must consider is “whether the delay in serving the notice of claim substantially prejudiced the public corporation in maintaining its defense on the merits” (General Municipal Law § 50-e [5]).

Turning to the specific facts of this case, on March 23, 2013, petitioner’s son, who was 16 at the time, was hit by a car while attempting to cross an intersection and sustained what Supreme Court described as “devastating injuries” (2014 NY Slip Op 31320[U], *1 [Sup Ct, Suffolk County 2014]). The driver fled the scene but was subsequently arrested. Within days, petitioner reported details of the accident, including the location and the nature of his son’s injuries, to his son’s high school, which is located within respondent Middle Country Central School District (the School District). Less than one month later, petitioner’s counsel asked the police for the accident file, but the police told him that the record could not be supplied until the police investigation of the hit-and-run driver was closed. Unable to obtain the police file, petitioner had his own investigator photograph the accident site within 90 days of the accident. Petitioner timely served notices of claim on the State, Town, and County.

Over the next several months, petitioner and his counsel repeatedly asked the police department and district attorney for access to the police accident file. In September 2013, six months after the accident, petitioner’s counsel finally received the file. Unlike the photographs taken by petitioner’s investigator, the photographs in the file revealed that, at the time of the accident, there was a large sign at the corner of the intersec-

corporation” is in turn defined as “includ[ing] a county, city, town, village and school district” (*id.* § 66 [2]).

3. The late notice of claim in this case was also brought pursuant to Education Law § 3813 (2-a), which contains a provision equivalent to section 50-e (5), and applies to “any school district, board of education, [and] board of cooperative educational services” (Education Law § 3813 [1]).

tion where petitioner's son was struck. This sign had been removed sometime after the accident, and it did not appear in the photographs taken by petitioner's investigator during the 90-day statutory period. Although the sign appeared in the police photographs, due to the size of the photographs, the lettering on the sign was illegible, even with magnification. Petitioner's counsel promptly requested an enlargement or the negative of the photographs. In November 2013, petitioner's counsel received the enlarged photographs, which revealed that the sign advertised a play at another high school located within the School District.

In late November 2013, five months after the 90-day statutory period for serving a notice of claim had expired, petitioner served a notice of claim on the School District by certified mail. The notice alleged that the School District's sign "obstruct[ed] the view of the corner and pedestrians thereupon," "creat[ed] a distraction for drivers," "obstruct[ed] the view of drivers upon the roadway," and "creat[ed] a dangerous and hazardous condition." Petitioner simultaneously filed an order to show cause for leave to serve a late notice of claim pursuant to General Municipal Law § 50-e (5) or to deem the notice timely served *nunc pro tunc*.

In the submissions accompanying his order to show cause, petitioner argued, as he does before this Court, that the School District had actual knowledge of the essential facts constituting petitioner's claim within a reasonable time after the accident both because petitioner reported the details of the accident, including its location, to his son's high school within days of its occurrence, and because the School District or its agents removed the sign from the accident scene within the 90-day statutory period. Petitioner further argued that he had a reasonable excuse for the late notice due to the delay caused by the ongoing criminal investigation into the hit-and-run driver which, despite petitioner and his counsel's diligent efforts, prevented them from obtaining legible photographs of the accident scene for nearly five months after expiration of the statutory period.

Lastly, petitioner argued that the School District was not substantially prejudiced by the late notice for several reasons. These included that the School District or its agents had placed the sign at the intersection and subsequently removed it during the 90-day statutory period; that the School District knew about the accident within a few days of its occurrence because

petitioner had notified his son's high school; that the School District had access to the police report and photographs from the police file that would permit the School District to reconstruct the scene and to interview witnesses; and that, except for removal of the sign by the School District, the accident scene was unchanged, and could be inspected and investigated by the School District.

The School District's opposition consisted solely of an affirmation of counsel. The School District argued that it did not have actual knowledge of the essential facts because notice of the accident failed to connect the accident to the sign and the police accident report made no mention of the sign. The School District did not rebut petitioner's showing of lack of substantial prejudice other than to argue that petitioner bore the burden of establishing such lack of prejudice and had failed to do so. Additionally, the School District argued that, when a notice of claim is not served within 90 days or a reasonable time thereafter, the court should infer that the passage of time has created substantial prejudice due to fading witness memories.

In reply, petitioner noted that the School District had failed to submit affidavits or other evidence from a person with personal knowledge of how the School District would be substantially prejudiced by the late notice. Petitioner also argued that the School District's conclusory assertions that the passage of time creates an inference of prejudice were insufficient to meet the School District's burden of overcoming petitioner's showing of no substantial prejudice.

II.

Supreme Court, in determining whether petitioner should be permitted to serve the late notice of claim, considered four of the factors specified in General Municipal Law § 50-e (5): whether there was (1) a nexus between petitioner's son's infancy and the delay in service, (2) a reasonable excuse for the delay, (3) actual knowledge on the part of the School District of the essential facts constituting the claim within the 90-day statutory period or within a reasonable time thereafter, and (4) substantial prejudice to the School District due to the delay. Regarding factors one and two, Supreme Court concluded that there was no nexus between petitioner's son's infancy and the delay, but that the delay was justified due to "the severity and continuing nature of [petitioner's son's] injuries" as well as petitioner's inability to obtain photographs of the scene due to

the police investigation (2014 NY Slip Op 31320[U], *3). As to the third factor, Supreme Court concluded that the School District did not have actual knowledge of the essential facts within the statutory period or within a reasonable time thereafter because the School District had no actual notice that the sign may have contributed to the accident, and the police report did not mention the sign.

With respect to the fourth factor, substantial prejudice, Supreme Court placed the burden on petitioner to demonstrate that the School District was not substantially prejudiced by the delay in service.⁴ The court concluded that the matriculation and graduation of students in the interim, as well as personnel changes, “presumably hinder[ed]” the School District’s ability to collect information about the sign (2014 NY Slip Op 31320[U], *4). Additionally, Supreme Court reasoned that prejudice could be “inferred” because “the mere passage of time creates prejudice with respect to fading memories of witnesses” (*id.*). Thus, Supreme Court held that the School District was substantially prejudiced by the late notice.

The Appellate Division affirmed, referencing the same four factors discussed by Supreme Court. As relevant here, the Court concluded that petitioner failed to establish that the School District had actual knowledge within 90 days or a reasonable time thereafter that petitioner would contend that the placement of the sign was connected to the accident (128 AD3d 701, 702 [2d Dept 2015]). The Court further concluded that petitioner had failed to demonstrate that the late notice “would not substantially prejudice the School District’s ability to defend against the claim” (*id.* at 703). Accordingly, the Appellate Division held that Supreme Court had not abused its discretion in denying the motion and dismissing the proceeding (*id.*).

This Court granted petitioner leave to appeal (26 NY3d 905 [2015]), and we now reverse.

4. Supreme Court initially stated that it was respondent’s burden to show “no prejudice” (2014 NY Slip Op 31320[U], *4). However, it is clear that Supreme Court meant to say that it was petitioner’s burden to show “no prejudice” because a respondent would want to show that there *was* prejudice, not that there was a *lack of* prejudice. Moreover, all three cases cited by Supreme Court for this proposition placed the burden for substantial prejudice on the petitioner.

III.

As we have previously observed, a court's decision to grant or deny a motion to serve a late notice of claim is "purely a discretionary one" (*Cohen v Pearl Riv. Union Free School Dist.*, 51 NY2d 256, 265 [1980]; see *Wally G. v New York City Health & Hosps. Corp. [Metro. Hosp.]*, 27 NY3d 672, 675 [2016]). The lower courts have broad discretion to evaluate the factors set forth in General Municipal Law § 50-e (5). At the same time, a lower court's determinations must be supported by record evidence (see *Plummer v New York City Health & Hosps. Corp.*, 98 NY2d 263, 268 [2002] [reversing Appellate Division where record evidence did not support conclusion reached]; see also *Wally G.*, 27 NY3d at 677 [medical records will not establish actual knowledge unless records "evinced" that medical provider inflicted injury]; *Williams*, 6 NY3d at 537 [same]). Here, there was support in the record for the lower courts' determinations regarding factors one through three—that there was no nexus between petitioner's son's infancy and the delay, that there was a reasonable excuse for the delay, and that the School District did not have actual knowledge of the essential facts constituting the claim within the 90-day statutory period or a reasonable time thereafter.

The same cannot be said for the lower courts' determinations concerning substantial prejudice. In examining whether the School District would be substantially prejudiced in its defense by the late notice, Supreme Court *presumed* that the matriculation and graduation of students and personnel changes hindered the School District's ability to gather information. This argument, however, was not made by the School District and there was no record evidence to support it. Additionally, Supreme Court *inferred* that the passage of time would prejudice the School District because of fading memories of potential witnesses. The Appellate Division adopted these determinations without discussion.

[1] While this Court has previously instructed that lack of actual knowledge and lengthy delays are "important factor[s]" in determining whether the defendant is substantially prejudiced" (*Williams*, 6 NY3d at 539), mere inferences cannot support a finding of substantial prejudice where, as here, there is no record evidence to support them. We hold that a finding that a public corporation is substantially prejudiced by a late notice of claim cannot be based solely on speculation and infer-

ence; rather, a determination of substantial prejudice must be based on evidence in the record.

In another context, we have held that “the mere passage of time normally will not constitute substantial prejudice in the absence of some showing of actual injury” (*Matter of Sarkisian Bros. v State Div. of Human Rights*, 48 NY2d 816, 818 [1979]; cf. *Leader v Maroney, Ponzini & Spencer*, 97 NY2d 95, 107 [2001] [lengthy delays that extend after statute of limitations has expired can lead a court to infer prejudice]). Although changes in personnel and the fading memories of witnesses may, in fact, be “prejudicial,” a court must consider whether record evidence indicates that substantial prejudice does in fact exist. Providing proof of substantial prejudice on the record is qualitatively and quantitatively different from a mere inference of prejudice. Generic arguments and inferences will not establish “substantial prejudice” in the absence of facts in the record to support such a finding.

There is a split in Appellate Division authority regarding which party has the burden of proof to demonstrate that a late notice of claim substantially prejudices the public corporation. While there are decisions in all four departments that place the burden on the petitioner to show a lack of substantial prejudice,⁵ there are also decisions in all four departments that either place the burden on the public corporation or shift the burden to the corporation after the petitioner has made an initial showing of a lack of prejudice.⁶

[2] We hold that the burden initially rests on the petitioner to show that the late notice will not substantially prejudice the public corporation. Such a showing need not be extensive, but the petitioner must present some evidence or plausible argument that supports a finding of no substantial prejudice.

Here, for example, the petitioner argued, among other things, that the photographs from the police file, which documented the size and placement of the sign, would permit the School

5. See e.g. *Matter of Hubbard v County of Madison*, 71 AD3d 1313, 1315 (3d Dept 2010); *Matter of Lauray v City of New York*, 62 AD3d 467, 467 (1st Dept 2009); *Matter of Felice v Eastport/South Manor Cent. School Dist.*, 50 AD3d 138, 152 (2d Dept 2008); *Baehre v County of Erie*, 94 AD2d 943, 943 (4th Dept 1983).

6. See e.g. *Casale v Liverpool Cent. Sch. Dist.*, 99 AD3d 1246, 1247 (4th Dept 2012); *Matter of Apgar v Waverly Cent. School Dist.*, 36 AD3d 1113, 1115 (3d Dept 2007); *Gibbs v City of New York*, 22 AD3d 717, 720 (2d Dept 2005); *Matter of Ansong v City of New York*, 308 AD2d 333, 334 (1st Dept 2003).

District to reconstruct the conditions on the date of the incident. Once this initial showing has been made, the public corporation must respond with a particularized evidentiary showing that the corporation will be substantially prejudiced if the late notice is allowed. Here, the lower courts applied the incorrect legal standard by placing the burden solely on petitioner to establish lack of substantial prejudice and by failing to consider whether petitioner's initial showing shifted the burden to the School District. Moreover, even if the lower courts had applied the proper standard, speculation and inference do not satisfy the requirement of a particularized showing of substantial prejudice by the School District.

Plainly, a determination of "substantial prejudice" does not occur in a vacuum. As we determined in *Williams*, both the length of delay in service (which in *Williams* was 10 years) and lack of actual knowledge of the facts underlying the claim certainly can affect whether the late notice substantially prejudices the public corporation in defending the claim (6 NY3d at 538-539).⁷ Nonetheless, whether the public corporation is substantially prejudiced remains a separate inquiry under the statute (*see id.*). Indeed, there may be scenarios where, despite a finding that the public corporation lacked actual knowledge during the statutory period or a reasonable time thereafter, the public corporation nonetheless is not substantially prejudiced by the late notice (*see e.g. Hubbard*, 71 AD3d at 1315-1316).

The rule we endorse today—requiring a petitioner to make an initial showing that the public corporation will not be substantially prejudiced and then requiring the public corporation to rebut that showing with particularized evidence—strikes a fair balance. We recognize that a petitioner seeking to excuse the failure to timely comply with the notice requirement should have the initial burden to show that the public corporation will not be substantially prejudiced by the delay. The public corporation, however, is in the best position to know and demonstrate whether it has been substantially prejudiced

7. Any suggestion in *Williams* that substantial prejudice may be inferred from the passage of time (*see Williams*, 6 NY3d at 539 n 3) must be read in the particular context of that case, where the delay in serving a notice of claim was 10 years. We also stated in *Williams* that the length of the delay may be "influential" to the determination of substantial prejudice, but it is not "dispositive" (*id.* at 538-539). As we make clear in this decision, substantial prejudice may not be inferred solely from the delay in serving a notice of claim.

by the late notice. We have long held in other contexts that where “the facts are within the defendant’s peculiar knowledge, . . . he [or she] should, therefore, prove them” (*Collins v Bennett*, 46 NY 490, 494 [1871]; see *Art Masters Assoc. v United Parcel Serv.*, 77 NY2d 200, 215 [1990, Titone, J., dissenting] [noting that “(i)t is a legal commonplace that ‘if a fact lies peculiarly within the knowledge of a party, that party has the burden of proof with respect to it’ ” (citation omitted)]; see also *Terranova v Emil*, 20 NY2d 493, 497 [1967] [denying summary judgment where knowledge of facts was “peculiarly in the possession of the defendants”]). Requiring the public corporation to come forward with a particularized showing is appropriate in this context given that the public corporation is in the best position to provide evidence as to whether the late notice has substantially prejudiced its ability to defend the claim on the merits.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the matter remitted to Supreme Court for further proceedings in accordance with this opinion.

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order reversed, with costs, and matter remitted to Supreme Court, Suffolk County, for further proceedings in accordance with the opinion herein.

[68 NE3d 693, 45 NYS3d 874]

ANTHONY TURTURRO, an Infant, by His Mother and Natural Guardian, ELIDA TURTURRO, et al., Respondents, v CITY OF NEW YORK, Appellant, et al., Defendants.

Argued November 15, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 1, 2015. The Appellate Division order, insofar as appealed from, modified, on the facts, so much of a judgment of the Supreme Court, Kings County (Herbert Kramer, J.), as had found in favor of infant plaintiff Anthony Turturro as against defendant City of New York. The judgment was entered upon (1) a jury verdict finding (a) that infant plaintiff was 10% at fault in the happening of the accident, defendant Louis Pascarella was 50% at fault, and defendant City of New York was 40% at fault; (b) that infant plaintiff sustained damages, inter alia, in the principal sums of \$6,000,000 for past pain and suffering, \$15,000,000 for future pain and suffering, \$11,500,000 for future medical expenses, and \$3,000,000 for future lost earnings; and (c) that plaintiff Elida Turturro sustained damages in the principal sum of \$75,000 for loss of services; and (2) an order of that Supreme Court, which had (a) denied that branch of defendant City's CPLR 4404 (a) motion which was to set aside the verdict on the issue of liability; and (b) granted those branches of defendant City's motion which were to set aside the verdict on the issue of damages only to the extent of granting a new trial unless plaintiffs stipulated to reduce the future pain and suffering award from \$15,000,000 to \$10,000,000 and future medical expenses from \$11,500,000 to \$7,000,000; and (3) plaintiffs' stipulation to those reductions. The modification consisted of (1) deleting the provision of the judgment awarding plaintiff Elida Turturro the principal sum of \$75,000 for lost services and dismissing that cause of action; (2) deleting the provisions of the judgment awarding damages to infant plaintiff in the principal sums of \$6,000,000 for past pain and suffering and \$10,000,000 for future pain and suffering; and (3) remitting to Supreme Court for a new trial on the issues of damages for past and future pain and suffering unless within 30 days after service upon the plaintiffs of a copy of the decision and order, the plaintiffs serve and file a written stipulation consenting to

reduce the amount of damages for past pain and suffering from the principal sum of \$6,000,000 to the principal sum of \$3,000,000, and to further reduce the amount of damages for future pain and suffering from the principal sum of \$10,000,000 to the principal sum of \$7,000,000; in the event plaintiffs so stipulated, the judgment, as reduced and amended, would be affirmed. Plaintiffs so stipulated.

Turturro v City of New York, 127 AD3d 732, affirmed.

HEADNOTES

Municipal Corporations — Tort Liability — Proprietary Function — Duty to Keep Roadways in Reasonably Safe Condition — Failure to Implement Traffic Calming Measures

1. In a personal injury action arising out of an incident in which infant plaintiff was struck by a speeding vehicle while he attempted to cross a four-lane road on his bicycle, the acts or omissions on the part of defendant City of New York which were claimed to have caused the injury, i.e., the City's negligent failure to conduct a traffic calming study and implement traffic calming measures on the roadway to reduce speeding, were proprietary functions within the field of roadway design and safety. When a negligence claim is asserted against a municipality, it must be determined whether the municipality was engaged in a proprietary function at the time the claim arose, and therefore subject to suit under the ordinary rules of negligence applicable to nongovernmental parties, or acted in a governmental capacity, requiring the plaintiff to prove the existence of a special duty and giving rise to the possible applicability of the governmental function immunity defense. Such determination turns solely on the acts or omissions claimed to have caused the injury. Police and fire protection are quintessential governmental functions, while highway planning, design and maintenance are proprietary functions arising from a municipality's proprietary duty to keep its roads and highways in a reasonably safe condition. Here, the City had received numerous, repeated complaints about speeding on the subject roadway, and the Intersection Control Unit (ICU) of the Department of Transportation, upon determining that there was a speeding problem, referred the issue to the police for enforcement. However, part of plaintiffs' theory of the case was that the ICU did not follow up to determine that police enforcement had not resolved the issue, which obligated the ICU to refer the issue to the Planning Unit to study and possibly implement traffic calming measures to deter speeding through roadway design changes. Although the behavior sought to be prevented (speeding) was unlawful, plaintiffs presented evidence that roadway design changes in the form of traffic calming measures were available to the City to accomplish that purpose. Because the City was acting in a proprietary capacity, plaintiffs had no duty to prove the existence of a special duty.

Negligence — Proximate Cause — Plaintiff Hit by Speeding Vehicle — Foreseeable Consequence of City's Failure to Implement Traffic Calming Measures

2. In a personal injury action arising out of an incident in which infant plaintiff was struck by a speeding vehicle while he attempted to cross a four-lane road on his bicycle, plaintiffs met their burden of demonstrating that

defendant City of New York's negligence was a proximate cause of infant plaintiff's injuries based on their prima facie case that the City was aware of a dangerous condition on the roadway and failed to take appropriate action to study or remedy it. Although an intervening intentional or criminal act will generally sever the liability of the original tortfeasor, that principle has no application when the intentional or criminal intervention of a third party is reasonably foreseeable. Here, based on the evidence presented at trial, there was a valid line of reasoning and permissible inferences from which the jury could conclude that defendant driver's speeding down the roadway was a foreseeable consequence of the City's failure to implement traffic calming measures. Experts from both sides agreed that traffic calming measures are intended to modify driver behavior so as to deter drivers from speeding. The evidence demonstrated that the City did not adopt any traffic calming measures because it did not study whether any such measures were required in the first instance. Thus, there was a rational basis by which the jury could have concluded that traffic calming measures deter drivers from speeding, and that the City's failure to conduct a traffic calming study and to implement traffic calming measures was a substantial factor in causing the accident.

Municipal Corporations — Tort Liability — Qualified Immunity — Highway Planning and Design Decisions

3. In a personal injury action arising out of an incident in which infant plaintiff was struck by a speeding vehicle while he attempted to cross a four-lane road on his bicycle, the defense of qualified immunity was not applicable to defendant City of New York's proprietary function actions in failing to conduct a traffic calming study and implement traffic calming measures to reduce speeding where it was aware of a dangerous condition on the roadway. When a municipality studies a dangerous condition and determines as part of a reasonable plan of governmental services that certain steps need not be taken, that decision may not form the basis of liability. That qualified immunity applies only where a duly authorized public planning body has entertained and passed on the very same question of risk as would ordinarily go to the jury. Upon receiving numerous and repeated complaints of speeding on the roadway, the Intersection Control Unit (ICU) of the Department of Transportation studied three intersections on the roadway, determined that there was a speeding problem, and referred the issue to the police for enforcement. Plaintiffs presented evidence that the primary purpose of the ICU studies was to determine whether traffic control signals should be installed at particular intersections, and although ICU also studied the approach speed at the intersections, the ICU studies did not study the problem of drivers speeding down the length of the roadway and were not traffic calming studies. Experts on both sides agreed that traffic signals generally are not used to control speed and may aggravate existing speeding problems. And, after ICU referred the speeding problem for police enforcement, it did not follow up unless it received another request for a traffic control device and only after 18 months had elapsed from its last study at that intersection. Thus, there was a rational process by which the jury could conclude that the ICU studies were plainly inadequate and did not study the very same question of risk that was before the jury, i.e., the danger presented by vehicles speeding down the length of the roadway. Furthermore, there was a rational process by which the jury could have concluded that even if the ICU studies examined the problem of vehicles speeding along a stretch of the roadway, the City failed to fulfill its continuing duty to review its plan in the light of its actual operation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Highways, Streets, and Bridges §§ 371, 374–380, 382, 383; AM JUR 2d Municipal County, School, and State Tort Liability §§ 10, 38, 40, 44, 49, 99, 111.

DOBBS LAW OF TORTS § 344.

NY JUR 2d Government Tort Liability §§ 14, 31, 32, 109, 124, 130, 132, 162.

NEW YORK LAW OF TORTS §§ 17:25, 17:45, 17:61.

ANNOTATION REFERENCE

See ALR Index under Automobiles and Highway Traffic; Municipal Corporations; Privileges and Immunities.

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POINTS OF COUNSEL

Zachary W. Carter, Corporation Counsel, New York City (Susan P. Greenberg, Richard Dearing and Cecelia Chang of counsel), for appellant. I. Under settled law, the City of New York cannot be held liable in tort for failing to prevent criminally reckless speeding on public roads. (*Lauer v City of New York*, 95 NY2d 95; *Tomassi v Town of Union*, 46 NY2d 91; *People v Asaro*, 21 NY3d 677; *Valdez v City of New York*, 18 NY3d 69; *Laratro v City of New York*, 8 NY3d 79; *Riss v City of New York*, 22 NY2d 579; *Matter of World Trade Ctr. Bombing Litig.*, 17 NY3d 428; *Weiner v Metropolitan Transp. Auth.*, 55 NY2d 175; *Clinger v New York City Tr. Auth.*, 85 NY2d 957; *Shuman v Hall*, 246 NY 51.) II. Plaintiffs failed to establish that the City caused Louis Pascarella's criminal speeding. (*Ball v State of New York*, 96 AD2d 1139, 61 NY2d 990; *Atkinson v County of Oneida*, 59 NY2d 840; *Cimino v City of New York*, 43 NY2d 966; *Heffler v State of New York*, 96 AD2d 926; *Stiuso v City of New York*, 87 NY2d 889; *Friedman v State of New York*, 67 NY2d 271; *Affleck v Buckley*, 96 NY2d 553; *Ernest v Red Cr. Cent. School Dist.*, 93 NY2d 664; *Humphrey v State of New York*, 60 NY2d 742; *Scheemaker v State of New York*, 70 NY2d 985.) III. The City is entitled to immunity for its discretionary decisions about how to study and address speeding. (*Valdez v City of New York*, 18 NY3d 69; *Matter of World Trade Ctr.*

Bombing Litig., 17 NY3d 428; *Weiss v Fote*, 7 NY2d 579; *Friedman v State of New York*, 67 NY2d 271; *Laratro v City of New York*, 8 NY3d 79; *Affleck v Buckley*, 96 NY2d 553; *Chunhye Kang-Kim v City of New York*, 29 AD3d 57; *Schuster v McDonald*, 263 AD2d 473.)

Gallagher, Walker, Bianco & Plastaras, Esqs., Mineola (Robert J. Walker of counsel), for respondents. I. The City of New York was properly held liable under settled law for its failure to study and implement the roadway changes before plaintiff's accident. (*Wittorf v City of New York*, 23 NY3d 473; *Miller v State of New York*, 62 NY2d 506; *Missano v Mayor of City of N.Y.*, 160 NY 123; *Oeters v City of New York*, 270 NY 364; *Riss v City of New York*, 22 NY2d 579; *Friedman v State of New York*, 67 NY2d 271; *Weiss v Fote*, 7 NY2d 579; *Prendergast v Cosco*, 4 AD3d 880; *Heffler v State of New York*, 96 AD2d 926; *Affleck v Buckley*, 96 NY2d 553.) II. The City's negligence was a proximate cause of the plaintiff's accident. (*Monell v City of New York*, 84 AD2d 717; *Mirand v City of New York*, 84 NY2d 44; *Argentina v Emery World Wide Delivery Corp.*, 93 NY2d 554; *Gayle v City of New York*, 92 NY2d 936; *Ernest v Red Cr. Cent. School Dist.*, 93 NY2d 664; *Humphrey v State of New York*, 60 NY2d 742.)

Dennis M. Brown, County Attorney, Hauppauge (Christopher A. Jeffreys of counsel), for County of Suffolk, amicus curiae. I. The actions of the City of New York were municipal governmental functions, not proprietary functions. (*Applewhite v Accuhealth, Inc.*, 21 NY3d 420; *Miller v State of New York*, 62 NY2d 506; *Kadymir v New York City Tr. Auth.*, 55 AD3d 549; *Clinger v New York City Tr. Auth.*, 85 NY2d 957; *Sebastian v State of New York*, 93 NY2d 790; *Bass v City of New York*, 38 AD2d 407, 32 NY2d 894; *Weiner v Metropolitan Transp. Auth.*, 55 NY2d 175; *Cuffy v City of New York*, 69 NY2d 255; *Valdez v City of New York*, 18 NY3d 69; *Bonner v City of New York*, 73 NY2d 930.) II. Governmental immunity analysis precludes the claims that are presented in the case at bar. (*Tango v Tulevech*, 61 NY2d 34; *Haddock v City of New York*, 75 NY2d 478; *McCormack v City of New York*, 80 NY2d 808; *Lauer v City of New York*, 95 NY2d 95; *McLean v City of New York*, 12 NY3d 194; *Valdez v City of New York*, 18 NY3d 69; *Weiss v Fote*, 7 NY2d 579; *Friedman v State of New York*, 67 NY2d 271; *Schuster v McDonald*, 263 AD2d 473; *Affleck v Buckley*, 96 NY2d 553.)

Harris Beach PLLC, New York City (*Bradley M. Wanner* and *Andrew J. Orenstein* of counsel), for International Municipal Lawyers Association, amicus curiae. I. A municipality's entitlement to governmental immunity is a question of law to be decided by the courts. (*Valdez v City of New York*, 18 NY3d 69; *Mon v City of New York*, 78 NY2d 309.) II. A municipality's design of its roadways is a discretionary governmental function for which a municipality should be immune from liability. (*Wittorf v City of New York*, 23 NY3d 473; *Weiss v Fote*, 7 NY2d 579; *Friedman v State of New York*, 67 NY2d 271.)

OPINION OF THE COURT

FAHEY, J.

On this appeal, we are asked to determine whether the City of New York was acting in a proprietary or governmental capacity when it failed to conduct an adequate study of whether traffic calming measures should be implemented after it received numerous, repeated complaints of speeding on a Brooklyn roadway. We are also asked to determine whether the evidence was legally sufficient to uphold the jury's verdict regarding the issues of proximate cause and the City's qualified immunity.

We hold that because the acts or omissions claimed to have caused the injury were within the field of roadway design and safety, the City was acting in a proprietary capacity. Plaintiffs therefore had no obligation to prove the existence of a special duty. Furthermore, there was a rational process by which the jury could have concluded that the City's negligence was a proximate cause of the accident and that the doctrine of qualified immunity did not apply.

I.

On December 5, 2004, plaintiff Anthony Turturro, then 12 years old, was riding his bicycle on Gerritsen Avenue in Brooklyn. At the time, Gerritsen Avenue was a straight, four-lane road running roughly north to south with two lanes of traffic going in each direction, divided by a double yellow line. In the relevant area, the western side of Gerritsen Avenue was bordered by storefronts, and the eastern side was bordered by parkland and recreational areas. The speed limit on Gerritsen Avenue was 30 miles per hour.

At approximately 6:30 p.m., Anthony attempted to cross Gerritsen Avenue on his bicycle in the middle of the block. He was struck by a vehicle traveling southbound on Gerritsen Avenue,

driven by defendant Louis Pascarella. Based on the skid marks found at the scene after the collision, a police investigation determined that Pascarella was traveling at a speed of at least 54 miles per hour before the collision. Anthony survived, but with serious injuries. Pascarella subsequently pleaded guilty to assault in the second degree for recklessly causing serious physical injury to Anthony. Plaintiffs commenced this negligence action against the City, Pascarella, and the owner of the vehicle Pascarella was driving.

During trial, plaintiffs presented evidence that the City had received several letters from local residents, including children, and elected officials between 2002 and 2004 complaining of speeding on Gerritsen Avenue, some of which stated that the roadway was being used for “drag racing” and was being treated as a “racetrack.” Several individuals requested traffic signals to curb the speeding. Some requested a traffic study. Those complaints were routed to the Intersection Control Unit (ICU) of the Department of Transportation (DOT). Plaintiffs’ witnesses testified that the role of ICU was to study particular intersections and determine whether those intersections needed installation of traffic signals or alteration of existing signals. ICU conducted four studies of three intersections on Gerritsen Avenue before Anthony’s accident—two studies in 2002 and two in 2004. Three of the four ICU studies also examined the approach speed of vehicles traveling through the particular intersection that was the subject of the study. ICU found that many vehicles were speeding at each of the intersections studied. ICU notified police of the speeding problem after each study.

Plaintiffs also presented evidence that ICU did not study speeding along an entire stretch of roadway. The Brooklyn Borough Engineer at the time of the accident testified that such a speed study would have examined speeding on the roadway during off-peak hours, DOT would have notified the police if it discovered speeding during such a study, and if police enforcement of the speed limit did not alleviate the problem, the issue would have been referred to the Planning Unit of DOT, which was responsible for implementing “traffic calming” measures on the City’s roadways. Traffic calming measures are intended to lower the overall speed on a particular roadway by modifying driver behavior so that drivers are more likely to drive at or close to the speed limit. Such measures include speed humps, narrowed lanes, rumble strips, roundabouts, and raised crosswalks, among others.

Plaintiffs' expert testified that people generally drive more slowly where traffic calming methods have been implemented because such measures make drivers more cautious. The evidence presented at trial demonstrated that before Anthony's accident, the City had not conducted a study of potential traffic calming measures that could be used to address the problem of vehicles speeding along a stretch of Gerritsen Avenue. Plaintiffs' expert testified that laypeople often request traffic signals to curb speeding on a particular roadway, but that it was well known among traffic engineers that traffic signals do not control speed and could even exacerbate the problem. Significantly, plaintiffs' expert pointed out that the four ICU studies, which considered whether traffic control devices should be installed at particular intersections, did not study the problem of speeding along Gerritsen Avenue as a whole, making them inadequate to address that issue. In addition, according to plaintiffs' expert, once ICU determined that there was a speeding problem on Gerritsen Avenue and referred the issue to the police for enforcement of the speed limit, the City should have followed up to determine whether police enforcement had resolved the issue. If police enforcement was not controlling the speeding, plaintiffs' expert opined that the City should have conducted a traffic calming study and implemented traffic calming measures to reduce speeding.

The City's expert, by contrast, opined that ICU's studies and its referral of the speeding problem to police constituted an adequate response to complaints of speeding on Gerritsen Avenue. The City's expert testified that the accident rate and the average speed for Gerritsen Avenue were not abnormally high. The City also presented testimony from a DOT traffic engineer that the ICU studies contained "elements" of traffic calming. The engineer further testified, however, that "pure" traffic calming studies ordinarily were done by the Planning Unit of DOT, not ICU, and that after referral of the speeding problem to police, ICU generally did not follow up to determine whether police enforcement of the speed limit was successful unless there was another request for a traffic signal at a particular intersection.

After trial, the jury returned a verdict finding that Anthony, Pascarella, and the City were negligent, and that the negligence of each of them was a substantial factor in causing injury. The jury apportioned 10% of the liability to Anthony, 50% to Pascarella, and 40% to the City.

The City moved to set aside the verdict pursuant to CPLR 4404, arguing that it was entitled to qualified immunity because the ICU studies were adequate to address the problem of speeding on Gerritsen Avenue, and that its failure to conduct a traffic calming study or implement traffic calming measures was not a proximate cause of the accident. The City subsequently filed supplemental motion papers, in which it argued that the City was acting in a governmental capacity and therefore plaintiffs were required to prove special duty, or, in the alternative, that the City was not liable pursuant to the governmental function immunity doctrine.

Supreme Court denied the City's motion to set aside the verdict as to liability, but granted a new trial unless plaintiffs stipulated to a reduced damages award, which they did. Judgment was entered in plaintiffs' favor.

On appeal, the Appellate Division modified, by deleting the award to plaintiff Elida Turturro, Anthony's mother, for loss of services, and by remitting for a new trial on damages unless plaintiffs consented to a further reduction of the damages award, and otherwise affirmed the judgment (*see Turturro v City of New York*, 127 AD3d 732, 733-734 [2d Dept 2015]). The Appellate Division rejected the City's contention that it was acting in a governmental capacity and therefore held that plaintiffs had no obligation to prove special duty (*see id.* at 735). The Court further held that there was a rational process by which the jury could have concluded that the City was not entitled to qualified immunity and that the City's negligence was a proximate cause of the accident (*see id.* at 735-738).

Plaintiffs stipulated to the Appellate Division's reduced damages award and an amended judgment was entered. This Court granted the City leave to appeal (*Turturro v City of New York*, 26 NY3d 908 [2015]). We now affirm.

II.

"When a negligence claim is asserted against a municipality, the first issue for a court to decide is whether the municipal entity was engaged in a proprietary function or acted in a governmental capacity at the time the claim arose" (*Applewhite v Accuhealth, Inc.*, 21 NY3d 420, 425 [2013]). "A government entity performs a purely proprietary role when its 'activities essentially substitute for or supplement traditionally private enterprises'" (*id.*, quoting *Sebastian v State of New York*, 93 NY2d 790, 793 [1999]). "In contrast, a municipality will be

deemed to have been engaged in a governmental function when its acts are ‘undertaken for the protection and safety of the public pursuant to the general police powers’ ” (*id.*, quoting *Sebastian*, 93 NY2d at 793).

Although certain municipal actions have long been held to fall definitively on one side or other of the proprietary/governmental line, “this dichotomy is easier to state than to apply in some factual scenarios” and “may present a close question for the courts to decide” (*id.*). In *Miller v State of New York* (62 NY2d 506 [1984]), this Court observed:

“A governmental entity’s conduct may fall along a continuum of responsibility to individuals and society deriving from its governmental and proprietary functions. This begins with the simplest matters directly concerning a piece of property for which the entity acting as landlord has a certain duty of care, for example, the repair of steps or the maintenance of doors in an apartment building. The spectrum extends gradually out to more complex measures of safety and security for a greater area and populace, whereupon the actions increasingly, and at a certain point only, involve governmental functions, for example, the maintenance of general police and fire protection” (*id.* at 511-512).

“The relevant inquiry in determining whether a governmental agency is acting within a governmental or proprietary capacity is to examine ‘the specific act or omission out of which the injury is claimed to have arisen and the capacity in which that act or failure to act occurred’ ” (*Matter of World Trade Ctr. Bombing Litig.*, 17 NY3d 428, 447 [2011], *rearg denied* 18 NY3d 898 [2012], *cert denied sub nom. Ruiz v Port Auth. of N.Y. & N.J.*, 568 US —, 133 S Ct 133 [2012], quoting *Miller*, 62 NY2d at 513). In other words, “the determination of the primary capacity under which a governmental agency was acting turns solely on the acts or omissions claimed to have caused the injury” (*World Trade Ctr.*, 17 NY3d at 447).

If a municipality was acting in a governmental capacity, then the plaintiff must prove the existence of a special duty (*see Applewhite*, 21 NY3d at 426). Even if a plaintiff satisfies that burden, a municipality acting in a discretionary governmental capacity may rely on the “governmental function immunity defense” (*Valdez v City of New York*, 18 NY3d 69, 75 [2011]).

That defense provides immunity for the exercise of discretionary authority during the performance of a governmental function (see *id.* at 75-77; *McLean v City of New York*, 12 NY3d 194, 202-203 [2009]).

As the name “governmental function immunity defense” implies, the defense is available only when it has first been determined that the municipality was acting in a governmental capacity. The defense “shield[s] public entities from liability for discretionary actions taken *during the performance of governmental functions*” (*Valdez*, 18 NY3d at 76 [emphasis added]). The governmental function immunity defense has no applicability where the municipality has acted in a proprietary capacity, even if the acts of the municipality may be characterized as discretionary.

Moreover, a plaintiff need not prove the existence of a special duty if the municipality was acting in a proprietary capacity. Instead, if the court determines that the municipality was acting in such capacity, the municipality “is subject to suit under the ordinary rules of negligence applicable to nongovernmental parties” (*Wittorf v City of New York*, 23 NY3d 473, 479 [2014] [internal quotation marks omitted]; see *Miller*, 62 NY2d at 511).

As noted, there are certain categories of actions that have long been held to fall definitively within either the proprietary or the governmental end of the spectrum. For example, “[p]olice and fire protection are examples of long-recognized, quintessential governmental functions” (*Applewhite*, 21 NY3d at 425; see *World Trade Ctr.*, 17 NY3d at 448; *Miller*, 62 NY2d at 512). Highway planning, design, and maintenance, by contrast, are proprietary functions, arising from a municipality’s “proprietary duty to keep its roads and highways in a reasonably safe condition” (*Wittorf*, 23 NY3d at 480). A municipality’s proprietary duty to keep its roadways in a reasonably safe condition is well settled (see *Friedman v State of New York*, 67 NY2d 271, 283 [1986]; see generally *Riss v City of New York*, 22 NY2d 579, 581 [1968]; *Oeters v City of New York*, 270 NY 364, 368 [1936]).

In the specific proprietary field of roadway safety, a municipality is afforded “a qualified immunity from liability arising out of a highway planning decision” (*Friedman*, 67 NY2d at

283).¹ The qualified nature of the immunity is based on the principle that “[o]nce [a municipality] is made aware of a dangerous traffic condition it must undertake reasonable study thereof with an eye toward alleviating the danger” (*id.* at 284). The immunity arises only “‘where a duly authorized public planning body has entertained and passed on the *very same* question of risk as would ordinarily go to the jury’” (*Ernest v Red Cr. Cent. School Dist.*, 93 NY2d 664, 673 [1999], *rearg denied* 93 NY2d 1042 [1999], quoting *Weiss v Fote*, 7 NY2d 579, 588 [1960], *rearg denied* 8 NY2d 934 [1960]; see *Affleck v Buckley*, 96 NY2d 553, 557 [2001]). Even if the municipality conducts a traffic study, it “may be held liable when its study of a traffic condition is plainly inadequate or there is no reasonable basis for its traffic plan” (*Friedman*, 67 NY2d at 284). Furthermore, “after the State implements a traffic plan it is ‘under a continuing duty to review its plan in the light of its actual operation’” (*id.*, quoting *Weiss*, 7 NY2d at 587). In addition, “an unjustifiable delay in implementing [a remedial] plan constitutes a breach of the municipality’s duty to the public just as surely as if it had totally failed to study the known condition in the first instance” (*Friedman*, 67 NY2d at 286).

The City generally does not dispute that the maintenance of roadways in a safe condition falls within the proprietary category. Rather, the City contends that plaintiffs’ claims actually arise from an alleged police failure to enforce the speed limit on Gerritsen Avenue. Inasmuch as police protection is a “quintessential governmental function[]” (*Applewhite*, 21 NY3d at 425), the City argues that plaintiffs were required to prove special duty, and that the City is immune from liability pursuant to the governmental function immunity defense.

We disagree. The City’s contention is in conflict with the principle that “the determination of the primary capacity under which a governmental agency was acting turns *solely on the acts or omissions claimed to have caused the injury*” (*World Trade Ctr.*, 17 NY3d at 447 [emphasis added]). In their complaint and bill of particulars, and throughout the trial,

1. This qualified immunity, which applies in a specific field of proprietary functions, is separate from the governmental function immunity defense, which applies only to governmental functions, as explained. Moreover, “[t]here are many other types of immunity defenses that may be raised by governmental entities, including quasi-judicial immunity, legislative immunity and prosecutorial immunity” (*Valdez*, 18 NY3d at 76 n 2). We do not endeavor in this decision to address all defenses available to a municipality in a negligence action.

plaintiffs contended that Anthony's injuries arose from the City's failure to maintain Gerritsen Avenue in a reasonably safe condition. Specifically, plaintiffs alleged that the City negligently failed to conduct a traffic calming study on Gerritsen Avenue and failed to implement traffic calming measures that would have reduced speeding on that roadway. Plaintiffs did not allege that the City was negligent in failing to allocate adequate police resources to enforce the speed limit on Gerritsen Avenue.

To the contrary, part of plaintiffs' theory of the case was that although ICU referred the speeding problem to the police for enforcement, the problem was not, and could not be, alleviated solely through police enforcement. Plaintiffs' expert testified that police enforcement could be used to curb speeding, but that an adequate study of the speeding problem must be done, and that traffic calming measures were necessary if police enforcement was insufficient. The success of plaintiffs' theory therefore depended, in part, upon the jury's conclusion that the City had attempted to address the speeding problem through police enforcement, but that police enforcement was not successful in controlling speeding down the length of Gerritsen Avenue, and the City therefore had an obligation to use the traffic calming measures at its disposal to address the issue. Experts for both parties agreed that this is precisely the purpose of traffic calming—to deter speeding through roadway design changes.

We respectfully disagree with the dissent that the City was acting in a governmental capacity because plaintiffs claimed that the City failed to prevent unlawful behavior. It is not the characterization of the behavior sought to be prevented that determines whether the municipality was acting in a proprietary or governmental capacity, but rather the specific act or omission by the municipality claimed to have caused the injury (see *World Trade Ctr.*, 17 NY3d at 447; *Miller*, 62 NY2d at 513). In *Miller*, for example, the Court held that the claimant's theory that the State "failed as a landlord to properly maintain the dormitory . . . by failing to lock the outer entrances" fell "within the scope of the State's proprietary function as a landlord," even though the behavior sought to be prevented by locking the outer doors was trespassing, robbery, burglary, and assault (see *Miller*, 62 NY2d at 509-514). Here, although the behavior sought to be prevented (speeding) was unlawful, plaintiffs presented evidence that roadway design changes in

the form of traffic calming measures were available to the City to accomplish that purpose.

Furthermore, *Tomassi v Town of Union* (46 NY2d 91 [1978]) does not require a contrary result. Although the Court stated in that case that the government has a duty to make its highways “reasonably safe for people who obey the rules of the road” (*id.* at 97),² that statement cannot be read to absolve a municipality of liability for failure to keep its roadways in a reasonably safe condition whenever a vehicle collision involves driver error, such as exceeding the speed limit. Otherwise, a plaintiff involved in a collision with a vehicle that was traveling 56 miles per hour in a 55 mile-per-hour zone would be required to prove the existence of a special duty when alleging that the government failed to maintain the roadway in a reasonably safe condition. The Court in *Tomassi* further explained that a municipality must “construct and maintain its highways in a reasonably safe condition, taking into account such factors as *the traffic conditions apprehended*, the terrain encountered, fiscal practicality and a host of other criteria” (*id.* [emphasis added]).

We do not suggest that a municipality has a proprietary duty to keep its roadways free from all unlawful or reckless driving behavior. Under the particular circumstances of this case, however, plaintiffs demonstrated that the City was made aware through repeated complaints of ongoing speeding along Geritsen Avenue, that the City could have implemented roadway design changes in the form of traffic calming measures to deter speeding, and that the City failed to conduct a study of whether traffic calming measures were appropriate and therefore failed to implement any such measures. As discussed below, whether the City’s negligence was a substantial factor in causing the accident or Pascarella’s speeding was the sole proximate cause,

2. *Tomassi* involved the careless driving of two motorists whose vehicles collided on the roadway, after which one vehicle was forced into a drainage ditch on the side of the road (*see Tomassi*, 46 NY2d at 96). We have subsequently stated that “[i]mplicit in [the *Tomassi*] decision was that the municipality had no duty to improve and maintain the land abutting the roadway in a reasonably safe condition for passage by automobiles” (*Bottalico v State of New York*, 59 NY2d 302, 305 [1983]; *see Stiuso v City of New York*, 87 NY2d 889, 891 [1995]). Where, however, “the State or one of its governmental subdivisions undertakes to provide a paved strip or shoulder alongside a roadway, it must maintain the shoulder in a reasonably safe condition for foreseeable uses, *including its use resulting from a driver’s negligence*” (*Bottalico*, 59 NY2d at 304 [emphasis added]).

and whether the City was entitled to qualified immunity based on its response to those repeated complaints, were both issues to be resolved by the jury.

[1] We therefore conclude that the specific acts or omissions that plaintiffs claim caused the injury arose from the City's failure to keep Gerritsen Avenue in a reasonably safe condition. Specifically, the City failed to conduct an adequate study of whether to implement roadway design changes that would have controlled speeding. As such, the City was acting in a proprietary capacity. Plaintiffs had no obligation to prove special duty, and the City cannot rely on the governmental function immunity defense.

III.

The City further contends that plaintiffs failed to meet their burden to demonstrate that its negligence was a proximate cause of the accident. Our review of that issue is limited to whether there is a “‘valid line of reasoning and permissible inferences which could possibly lead rational [persons] to the conclusion reached by the jury on the basis of the evidence presented at trial’” (*Mazella v Beals*, 27 NY3d 694, 705 [2016], quoting *Cohen v Hallmark Cards*, 45 NY2d 493, 499 [1978]; see *Ziecker v Town of Orchard Park*, 75 NY2d 761, 762-763 [1989]). If “the evidence is such that it would not be utterly irrational for a jury to reach the result it has determined upon, and thus a valid question of fact does exist,” then this Court “may not conclude that the verdict is as a matter of law not supported by the evidence” (*Cohen*, 45 NY2d at 499; see *Ziecker*, 75 NY2d at 762-763).

“[T]here may be more than one proximate cause of an injury” (*Argentina v Emery World Wide Delivery Corp.*, 93 NY2d 554, 560 n 2 [1999]; see *Mazella*, 27 NY3d at 706). “A defendant's negligence qualifies as a proximate cause where it is ‘a substantial cause of the events which produced the injury’” (*Mazella*, 27 NY3d at 706, quoting *Derdiarian v Felix Contr. Corp.*, 51 NY2d 308, 315 [1980], *rearg denied* 52 NY2d 784, 829 [1980]). The plaintiff is not required to demonstrate “that the precise manner in which the accident happened, or the extent of injuries, was foreseeable” (*Derdiarian*, 51 NY2d at 315). “Given the unique nature of the inquiry in each case,” proximate cause is generally an issue for the trier of fact, so long as “the court has been satisfied that a prima facie case has been established” and the evidence could support various

reasonable inferences (*id.*; see generally *Bell v Board of Educ. of City of N.Y.*, 90 NY2d 944, 946 [1997]; *Alexander v Eldred*, 63 NY2d 460, 468 [1984]).

The City contends that Pascarella's reckless and criminal speeding was the sole proximate cause of the accident. It is well settled, however, that "[w]here the acts of a third person intervene between the defendant's conduct and the plaintiff's injury, the causal connection is not automatically severed. In such a case, liability turns upon whether the intervening act is a normal or foreseeable consequence of the situation created by the defendant's negligence" (*Derdiarian*, 51 NY2d at 315). This is true even where the intervening acts of a third party may be characterized as intentional, reckless, or criminal. Although "an intervening intentional or criminal act will generally sever the liability of the original tort-feasor," this principle "has no application when the intentional or criminal intervention of a third party or parties is reasonably foreseeable" (*Kush v City of Buffalo*, 59 NY2d 26, 33 [1983]; see *Bell*, 90 NY2d at 946). As with determinations regarding proximate cause generally, "[b]ecause questions concerning what is foreseeable and what is normal may be the subject of varying inferences," whether an intervening act is foreseeable or extraordinary under the circumstances "generally [is] for the fact finder to resolve" (*Derdiarian*, 51 NY2d at 315).

Based on the evidence presented at trial, there was a valid line of reasoning and permissible inferences from which the jury could conclude that Pascarella's speeding down Gerritsen Avenue was a foreseeable consequence of the City's failure to implement traffic calming measures, the purpose of which is to modify driver behavior so as to deter drivers from speeding. In other words, Pascarella's speeding, although reckless and criminal, was "a 'reasonably foreseeable' consequence of circumstances created by the [City]" (*Bell*, 90 NY2d at 946, quoting *Kush*, 59 NY2d at 33). "An intervening act may not serve as a superseding cause, and relieve an actor of responsibility, where the risk of the intervening act occurring is the very same risk which renders the actor negligent" (*Derdiarian*, 51 NY2d at 316).

The City relatedly contends that plaintiffs failed to establish that any traffic calming measure would have prevented Pascarella from speeding. The City relies on the testimony of the experts for both parties, who agreed that traffic calming measures could not physically prevent a driver from speeding,

with the exception of speed bumps, which generally have fallen out of use due to safety concerns. Plaintiffs' expert testified, however, that it was known among traffic engineers that straight, wide roads with little interference from pedestrians and other vehicles, such as Gerritsen Avenue, encourage speeding because drivers feel more comfortable on roadways with those characteristics. He testified that traffic calming measures deter speeding because they cause drivers to be more cautious, and that such measures are known to reduce the overall speed on roadways. The evidence presented at trial, however, demonstrated that the City did not adopt any traffic calming measures because it did not study whether any such measures were required in the first instance. Plaintiffs' expert opined that it was this failure to conduct a traffic calming study that contributed both to the continued speeding on Gerritsen Avenue generally and to this particular accident. Even the City's expert agreed that the design characteristics of a roadway influence driver speed, and that people generally drive faster on wide, straight roadways, regardless of the posted speed limit. The City's expert further agreed that traffic calming measures are intended to reduce the overall "curve" of speed on a particular roadway by modifying driver behavior so that drivers will travel at or closer to the prescribed speed limit.

[2] We therefore hold that plaintiffs presented a prima facie case that the City was aware of a dangerous condition on Gerritsen Avenue and failed to take appropriate action to study or remedy it, and that the City's negligence was a proximate cause of Anthony's injuries (*see Ernest*, 93 NY2d at 674-675). There was a rational process by which the jury could have concluded that traffic calming measures deter drivers such as Pascarella from speeding, and that the City's failure to conduct a traffic calming study and to implement traffic calming measures was a substantial factor in causing the accident (*cf. Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507, 520-521 [1980]). Where, as here, various reasonable inferences could be drawn from the evidence presented, the determination of proximate cause must be left to the jury, and "[i]t is not within the province of this [C]ourt to substitute its assessment of the evidence for that of the fact finder" (*Alexander*, 63 NY2d at 468; *see Derdiarian*, 51 NY2d at 315). We cannot conclude, as a matter of law, that Pascarella's speeding was an unforeseeable result of the City's negligence (*see Bell*, 90 NY2d at 946-947; *Kush*, 59 NY2d at 33), or that the jury's verdict with respect to causation was "utterly irrational" (*Cohen*, 45 NY2d at 499).

IV.

Finally, the City contends that, even if it was acting in a proprietary capacity, it was entitled to immunity for its discretionary highway planning and design decisions pursuant to the qualified immunity doctrine this Court recognized in *Weiss v Fote*. The City is correct that “when a municipality studies a dangerous condition and determines as part of a reasonable plan of governmental services that certain steps need not be taken, that decision may not form the basis of liability” (*Friedman*, 67 NY2d at 286). As explained above, however, we have also stated that this qualified immunity applies only “‘where a duly authorized public planning body has entertained and passed on the *very same* question of risk as would ordinarily go to the jury’” (*Ernest*, 93 NY2d at 673, quoting *Weiss*, 7 NY2d at 588). The municipality may be held liable if “its study of a traffic condition is plainly inadequate” or if the municipality fails to fulfill its “continuing duty to review its plan in the light of its actual operation” (*Friedman*, 67 NY2d at 284 [internal quotation marks omitted]).

During trial, plaintiffs presented evidence that the primary purpose of the ICU studies was to determine whether traffic control signals should be installed at particular intersections, and although ICU also studied the approach speed at the subject intersection in three of the four studies, the ICU studies did not study the problem of drivers speeding down the length of Gerritsen Avenue and were not traffic calming studies. Testimony from current and former City employees who worked in various positions within DOT demonstrated that ICU does not conduct traffic calming studies, and that such studies were customarily conducted by the Planning Unit of DOT. The evidence presented at trial established that no traffic calming study was conducted on Gerritsen Avenue before Anthony’s accident.

Plaintiffs’ expert opined that an appropriate study examining the problem of speeding down the length of Gerritsen Avenue would have included speed measurements taken at night and on weekends at various locations along the roadway for some length of time, and that the ICU studies, which measured approach speed at particular intersections during weekdays for approximately 20 minutes, did not meet those criteria. Plaintiffs’ expert also testified that laypeople often ask for traffic control signals to deter speeding but that it was well known among traffic experts that traffic signals do not control

speed and could exacerbate the problem. The current and former DOT employees who testified at trial, as well as the City's expert, agreed that traffic signals generally are not used to control speed and may aggravate the existing speeding problem.

Based on the evidence presented at trial, there was a rational process by which the jury could conclude that the ICU studies—which were intended primarily to determine whether traffic control signals were appropriate for particular intersections on Gerritsen Avenue—did not study the “very same” question of risk that was before the jury, i.e., the danger presented by vehicles speeding down the length of Gerritsen Avenue (*see Ernest*, 93 NY2d at 673-674; *cf. Affleck*, 96 NY2d at 556-557). In other words, the jury could have reasonably concluded that the ICU studies were “plainly inadequate” (*Friedman*, 67 NY2d at 284) because they did not examine the speeding problem of which various local residents and elected officials complained. To the extent that the City's witnesses testified that the ICU studies contained “elements” of traffic calming studies, and that the ICU studies were adequate to address the problem of speeding vehicles on Gerritsen Avenue, that evidence presented questions of fact and competing inferences for the jury to resolve.

[3] Furthermore, there was a rational process by which the jury could have concluded that even if the ICU studies examined the problem of vehicles speeding along a stretch of Gerritsen Avenue, the City failed to fulfill its “‘continuing duty to review its plan in the light of its actual operation’” (*Friedman*, 67 NY2d at 284, quoting *Weiss*, 7 NY2d at 587). The City's expert opined that the ICU studies and ICU's referral of the speeding problem to police for enforcement was an adequate response to the issue. Plaintiffs' expert opined, however, that the City failed to determine whether police enforcement of the speed limit was sufficient to control speeding, and, if it was not, whether traffic calming measures should be implemented. DOT's Chief of Signals, to whom ICU reported, testified that after ICU referred the speeding problem for police enforcement, ICU would not follow up to determine whether the police enforcement was working unless it received another request for a traffic control device at a particular intersection, and then only after 18 months had elapsed from its last study at that intersection. Under these circumstances, we cannot conclude as a matter of law that the City was entitled to qualified immunity.

V.

In summary, the City was acting in a proprietary capacity. The specific act or omission by the City claimed to have caused Anthony's injuries was the City's failure to adequately study or implement roadway design changes intended to reduce speeding in response to repeated complaints. Plaintiffs had no obligation to prove special duty, and the City may not rely on the governmental function immunity defense. In addition, there was a rational process by which the jury could conclude that Pascarella's speeding was a foreseeable consequence of the City's failure to study or implement traffic calming measures, the purpose of which is to deter speeding. Finally, the jury could have rationally concluded that the four ICU studies did not examine the very same question of risk presented to the jury—the danger of vehicles speeding along the length of Geritsen Avenue—and that the ICU studies were inadequate to address that problem. Therefore, it was reasonable for the jury to conclude that the City was not entitled to qualified immunity.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed, with costs.

PIGOTT, J. (dissenting). A 12-year-old child rode his bicycle across a four-lane highway at night. A car traveling at nearly twice the speed limit struck the child, causing severe injuries. Although the driver of the automobile eventually pleaded guilty to a felony charge of reckless assault, a jury determined—in a verdict affirmed by the majority on this appeal—that the City of New York was liable for the accident. Why? Because the City failed to take adequate measures to prevent the speeding motorist from breaking the law. That result is antithetical to our case law and principles of government immunity. How the City chooses to combat criminal conduct such as speeding on public roadways is a discretionary, governmental function, absolutely immune from suit. The majority's contrary decision exposes governmental entities to tort liability whenever they fail to take measures that could, conceivably, prevent a crime from taking place. I dissent and would reverse the judgment below.

I.

The majority correctly states the governing principles surrounding municipal liability. Those principles derive from the

fundamental rule that the State and its political subdivisions are generally immune from suit “for discretionary actions taken during the performance of governmental functions” (*Valdez v City of New York*, 18 NY3d 69, 75-76 [2011]). Such acts are immune from liability because they involve the allocation of limited public resources for the protection and safety of the public at large—determinations that are better left to the discretion of the executive and legislative branches of government than to courts or a jury (*cf. Matter of World Trade Ctr. Bombing Litig.*, 17 NY3d 428, 452-453 [2011]). Immunizing such decisions from tort liability also reflects a value judgment: that “the broader interest in having government officers and employees free to exercise judgment and discretion in their official functions, unhampered by fear of second-guessing and retaliatory lawsuits, outweighs the benefits to be had from imposing liability for . . . injury” (*Haddock v City of New York*, 75 NY2d 478, 484 [1990]).

When a municipality is not undertaking a traditional government function but has assumed the role of a private individual, it is said to be acting in a “proprietary capacity” and may be subject to the same principles of tort law as private citizens (*see Wittorf v City of New York*, 23 NY3d 473, 479 [2014]). Indeed, “[i]t is proper and necessary to hold municipalities and the State liable for injuries arising out of the day-by-day operations of government—for instance, the garden variety injury resulting from the negligent maintenance of a highway” (*Weiss v Fote*, 7 NY2d 579, 585 [1960]).

To determine whether the government is immune from liability in a given case, we examine “the specific act or omission out of which the injury is claimed to have arisen” (*Wittorf*, 23 NY3d at 479, quoting *Miller v State of New York*, 62 NY2d 506, 513 [1984]). If the particular negligence claimed arises from an act or omission by the government in its proprietary role as a landowner or landlord, it will be “subject to suit under the ordinary rules of negligence applicable to nongovernmental parties” (*Applewhite v Accuhealth, Inc.*, 21 NY3d 420, 425 [2013]). But if the specific act or omission claimed to be the cause of the accident involves the government’s traditional role as the provider of public resources to protect the populace at large—and “particularly to control the activities of criminal wrongdoers” (*Riss v City of New York*, 22 NY2d 579, 581 [1968] [emphasis added])—the government is entitled to absolute immunity and cannot be held liable for negligence unless it owed

a special duty to the injured party (*Applewhite*, 21 NY3d at 425-426).¹

I do not disagree with the majority that the government, acting as a landowner, has a proprietary duty to maintain roadways in a reasonably safe condition (*see* majority op at 479). That duty requires the government, among other things, to install adequate traffic control signals (*see Alexander v Eldred*, 63 NY2d 460, 469 [1984]; *Weiss*, 7 NY2d at 586), erect and maintain proper barriers (*see Gomez v New York State Thruway Auth.*, 73 NY2d 724, 725 [1988]; *Friedman v State of New York*, 67 NY2d 271, 286-287 [1986]), provide adequate warnings of unsafe road conditions (*see Hicks v State of New York*, 4 NY2d 1, 4 [1958]), remove dangerous snowbanks (*see Gardner v State of New York*, 79 AD3d 1635, 1636 [4th Dept 2010]), remove standing water (*see Kelly v Town of Islip*, 141 AD2d 611, 612 [2d Dept 1988], *lv dismissed and denied* 73 NY2d 865 [1989]), fill potholes (*see Ciccarella v Graf*, 116 AD2d 615, 616 [2d Dept 1986]), and generally clear roadways of debris and other hazards (*see Green v State of New York*, 71 AD2d 761, 761 [3d Dept 1979]). When the government is aware that these or similar conditions exist on a roadway yet fails to remedy the situation or study it with an eye toward alleviating the danger, the government may be subject to liability for injuries that result (*see Friedman*, 67 NY2d at 284).

The proprietary duty to maintain safe roadways, however, extends no further than making the road safe *for individuals who follow the rules of the road* (*see Tomassi v Town of Union*, 46 NY2d 91, 97 [1978]; *see also Duger v Estate of Carey*, 295 AD2d 878, 878-879 [3d Dept 2002]). It does not encompass a municipality's efforts to deter or prevent unlawful activity such as speeding. Thus, in *Tomassi v Union*, we rebuffed an attempt by plaintiffs in an automobile accident to cast the government's alleged negligence—placing a storm-water drainage ditch too close to the roadway—as a breach of its proprietary duty to maintain reasonably safe roads when, in reality, their injuries were caused by the unlawful activity of two drivers (46 NY2d at 96).

The plaintiffs in that case were passengers in a vehicle that was traveling down a two-lane road in Broome County at “an

1. Plaintiffs make no claim that the City owed them a special duty in this case. The City is therefore immune from suit if it was engaged in a governmental function.

excessive rate of speed” (*id.*). Their car was struck by another vehicle, traveling the opposite direction, whose driver was “not paying careful attention” and veered into the plaintiffs’ lane of traffic (*id.*). The passengers sustained injuries when their vehicle went off the road into a shallow storm-water drainage ditch. They brought a lawsuit against both drivers as well as the Town of Union for negligence, alleging, as relevant here, that the town negligently constructed the drainage ditch too close to the roadway and that its proximity to the road caused their injuries.

The jury returned a verdict in favor of the plaintiffs, but we reversed it on appeal, holding that “there are no grounds upon which the liability of the town may be properly predicated” (*id.* at 97). Although the government has a proprietary obligation to maintain roadways in a reasonably safe condition, we said that duty requires only that the government make the road “reasonably safe for people who obey the rules of the road” (*id.* [emphasis added]). Because there was no allegation that the road was unsafe for law-abiding motorists, the town could not be held liable for failing to reduce or prevent injuries that resulted from unlawful activity.

Our decision in *Tomassi* isn’t unique to roadway maintenance and design. We have repeatedly held, in other contexts, that a governmental entity is immune from suit where the crux of the plaintiffs’ complaint is that the government failed to take measures that could have prevented criminal activity. For example, the plaintiff in *Weiner v Metropolitan Transp. Auth.* (55 NY2d 175 [1982]) was assaulted by an intruder in a subway station owned and maintained by the defendant New York City Transit Authority. Because the government was engaged in the proprietary operation of a commuter railroad, the plaintiff alleged it was liable for failing to provide adequate police protection at the train station that it operated.

We disagreed. The specific omission alleged to be negligent was not the failure to maintain the premises in a reasonably safe condition but “the absence of police surveillance at the entrance [of the subway station] and the failure to warn of criminal activity in the area or close the entrance when police protection was not available” (*id.* at 182). Such claims are not actionable absent a special duty, we held, because it would require juries and courts to second-guess discretionary decisions about how to utilize public resources to provide general police protection and security for the public—determinations better left to the legislative and executive branches (*id.*).

The plaintiff in *Bonner v City of New York* (73 NY2d 930 [1989]) tried a similar tactic as the plaintiff in *Weiner*, again to no avail. He was a public school teacher assigned to supervise the playground at a city school in Manhattan. Because one of the gates surrounding the playground had a broken lock, the plaintiff posted himself at the gate for the security of the school children. A person who did not attend the school approached him and hit him with a baseball bat. The plaintiff brought a personal injury action against the City of New York and school district, alleging, among other things, that they “were negligent in allowing the gate to remain broken” (*id.* at 932). The jury returned a verdict against the City and school district, and the Appellate Division affirmed.

We reversed the verdict on appeal, holding that the trial court erroneously submitted the matter to the jury (*id.*). As in *Weiner*, we looked beyond the plaintiff’s characterization of his claim to the heart of the allegations. We concluded that “the particular negligence alleged [wa]s not the failure to fulfill a proprietary function,” such as repairing the broken lock. Instead, plaintiff’s claim was “premised on the contention that defendant’s security system . . . was *inadequate to protect him from criminal activity*” (*id.* at 932 [emphasis added]). Because the City’s efforts to guard against criminal attacks involve policy decisions, “no liability arises from the performance of such a function absent a special duty of protection” (*id.* at 932).²

In *Clinger v New York City Tr. Auth.* (85 NY2d 957 [1995]), we rejected yet another plaintiff’s attempt to cast a municipality’s purported negligence as proprietary, when the gravamen of

2. The majority relies on *Miller v State of New York* (62 NY2d 506 [1984]) for the proposition that the City’s duty to maintain property in a reasonably safe condition requires it to implement traffic calming measures to prevent unlawful activity such as speeding (see majority op at 481-482). But *Bonner* was decided after *Miller* and has been suggested to “cast serious doubt on [Miller’s] continuing validity” (73 NY2d at 933 [Simons, J., dissenting]). Moreover, *Miller* cannot be read as broadly as the majority suggests. The narrow duty the State breached in *Miller* was the duty “to maintain minimal security measures” at State-owned dormitories (62 NY2d at 513). The State did not breach that duty by failing to keep a particular dormitory door locked at a given time, but by implementing a *policy* of keeping all entrances at all State University of New York dormitories unlocked at all times (*id.* at 514 [Kaye, J., concurring]). We held that even a private individual would be held liable for failing to “furnish *any* security to [its] tenants” (*id.*). The particular facts in *Miller* thus put the State’s conduct on the proprietary end of the spectrum. That case does not stand for the general rule that the government has a proprietary duty to take measures to prevent unlawful activity.

the complaint was that the City of New York failed to prevent a criminal attack from taking place inside a subway tunnel. The plaintiff in *Clinger* had been attacked in a subway tunnel that was under construction. The assailant dragged her behind a large metal plate that had been temporarily positioned against the tunnel wall during construction, and he proceeded to beat, rape and rob her there (*id.* at 959). Like her predecessors in *Weiner* and *Bonner*, the plaintiff in *Clinger* claimed that the City's negligent placement of the large metal plate and its failure to close the tunnel or properly police it breached the City's proprietary duty to maintain the subway tunnel in good repair. We rejected that claim and held that the City could not be liable in tort. The real omission at issue—the City's failure to take adequate measures to prevent criminal activity in an area that it *knew* “had been the site of numerous violent felonies in the year preceding th[e] attack”—was “*so overwhelmingly governmental in nature*” as to immunize the City from liability (*id.* [emphasis added]).

It's unclear to me how the majority could reach any other conclusion in this case. It has long been the rule in this state that the government's efforts “*to control the activities of criminal wrongdoers*” belong in the category of discretionary, governmental functions immune from suit (*Riss*, 22 NY2d at 581 [emphasis added]). The particular negligence alleged in this case is that the City failed to conduct a traffic calming study on Gerritsen Avenue in response to complaints of speeding—in short, that the City did not adequately respond to criminal activity or take the appropriate measures to prevent it. That kind of allegation goes well beyond the City's proprietary duty to maintain safe roadways. It seeks to impose liability on the City for its discretionary efforts to deter individuals from deliberately breaking the law, when we have previously rejected such claims (*see Clinger*, 85 NY2d at 959 [municipal defendant not liable for injuries sustained on its property as a result of criminal activity, even though the City had a duty to maintain property in a reasonably safe condition and easily could have prevented the crime by closing access to the subway tunnel it knew had been the site of numerous attacks]; *Bonner*, 73 NY2d at 932 [municipal defendants not liable for injuries suffered at the hands of criminals, even though they had a proprietary duty to maintain property in a reasonably safe condition and easily could have prevented the crime by replacing a broken lock]).

Whether the majority characterizes the City's alleged negligence as a failure to undertake appropriate traffic calming studies or a failure to respond adequately to complaints of speeding, at bottom, the plaintiffs' complaint is that the City didn't do enough to prevent drivers like Louis Pascarella from engaging in criminally reckless conduct on Gerritsen Avenue.³ If there is anything to be learned from our case law in this area, it is that a municipality's efforts to respond to criminal activity are "so overwhelmingly governmental in nature," they cannot expose the municipality to liability in tort (*Clinger*, 85 NY2d at 959). If they did—and after the majority's decision today they most certainly will—then municipalities throughout the state will be haled into court whenever a plaintiff who has been injured on the road at the hands of a speeding or intoxicated motorist is able to identify alternative measures the government could have taken to attempt to prevent the accident.⁴

To be sure, the issue in this case is not whether the City *should* have conducted a traffic calming study or undertaken any other measures to reduce criminal activity on Gerritsen Avenue. The question is whether the City may be held liable in a personal injury action when it chooses not to utilize one or more of the methods that plaintiffs contend would have prevented the criminally reckless conduct that ultimately

3. The majority characterizes Pascarella's felonious conduct as mere "driver error," equating it to simple negligence (*see* majority op at 482). In reality, he pleaded guilty to second-degree assault for recklessly causing injury with a dangerous instrument (*see* Penal Law § 120.05 [4]), and he had engaged in such conduct on Gerritsen Avenue on numerous occasions throughout his adult life. The City was precluded at trial from introducing evidence that Pascarella's driver's license had been suspended 18 times, that he had previously been convicted of driving under the influence, and that he had received numerous moving violations for speeding, including one for speeding on Gerritsen Avenue.

4. The majority is attempting to fit a square peg (unlawful activity) into a round hole (highway planning and design). It holds that anytime a municipality is aware that criminally reckless behavior is taking place on the roadway and police enforcement is not adequate to deter such behavior, the municipality *must* use available methods of highway planning and design to curb the criminal activity or else defend a suit for negligence if an accident results (*see* majority op at 481). Not only does the majority's conclusion conflate two, analytically distinct duties, but it also imposes an insurmountable burden on the government. By the majority's logic, a municipality will be subject to suit anytime it fails to take one or more available measures that could, conceivably, prevent a crime.

caused their injuries. I would answer that question “no” and reverse the judgment below.

II.

Because the City was engaged in a governmental function when it chose to refer complaints of speeding on Gerritsen Avenue for greater police enforcement rather than conduct a traffic calming study, and because plaintiffs did not attempt to prove that the City owed them a special duty, the City was absolutely immune from suit. Even assuming, however, that the City owed a duty to investigate potential traffic calming measures and that its investigation was inadequate, plaintiffs failed as a matter of law to establish that the City’s alleged negligence was a proximate cause of the injuries sustained.

If a municipality is not entitled to immunity, a plaintiff still must demonstrate that its negligent maintenance of the roadway was a proximate cause of the accident (*see Atkinson v County of Oneida*, 59 NY2d 840, 841 [1983]). Where the evidence reveals that the municipality’s failure to remedy a dangerous condition would have “had no bearing on the happening of the accident,” liability does not lie (*Hicks*, 4 NY2d at 7-8 [finding no basis in the record for assuming that the State’s failure to erect a stop sign at an intersection proximately caused an accident where the driver “paid no attention to the physical indications that she was approaching an intersection” and “disregarded” guideposts lining the shoulders of the road]; *see also Kent v State of New York*, 37 AD2d 119, 121 [3d Dept 1971] [the State’s failure to warn drivers of road construction did not proximately cause accident where additional warnings would not have caused intoxicated driver to operate his car differently]).

So, too, where the driver of an automobile that has caused an accident is familiar with a particular roadway and a dangerous condition that exists on it, the municipality’s failure to take additional measures to warn the driver of the obstruction cannot be deemed a proximate cause of the plaintiff’s injuries (*Atkinson*, 59 NY2d at 842). “A municipality, of course, is not an insurer of the safety of its roadways,” and a City’s failure to take every step to eliminate tragic accidents does not mean the City’s acts or omissions proximately caused the plaintiff’s injuries (*Tomassi*, 46 NY2d at 97).

The accident at issue in this case was caused by the unlawful actions of the plaintiff—who crossed four lanes of traffic

at night—and Louis Pascarella—who chose to drive almost 30 miles over the speed limit with a suspended license, as he had done on numerous occasions. Indeed, Pascarella ultimately pleaded guilty to criminally reckless assault for consciously disregarding a substantial and unjustifiable risk of injury to another (*see* Penal Law §§ 15.05 [3]; 120.05 [4]), undercutting the plaintiffs’ argument that a traffic calming study could have had some bearing on the happening of the accident. What is more, plaintiffs’ expert admitted that no traffic calming measure would prevent drivers like Pascarella from deliberately breaking the law. By the expert’s own words: “You’re not going to stop a person who wants to speed.”

Given that testimony and the absence of any evidence that particular traffic calming measures would have prevented Pascarella’s recklessness, there is no rational basis upon which the jury could have concluded that the City’s failure to undertake a traffic calming study was a “substantial cause of the events which produced the injury” (*Mazella v Beals*, 27 NY3d 694, 706 [2016] [internal quotation marks omitted]). Accordingly, whether the City is immune from liability based on discretionary decisions it made in its governmental function, or plaintiffs failed to establish that the City’s inaction was the proximate cause of their injuries, the City is not liable for the tragic accident that occurred on Gerritsen Avenue.

Chief Judge DiFiore and Judges Rivera, Abdus-Salaam, Stein and Garcia concur; Judge Pigott dissents in an opinion.

Order, insofar as appealed from, affirmed, with costs.

[68 NE3d 1208, 46 NYS3d 478]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
AVILES, Appellant.

Argued October 18, 2016; decided November 22, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, decided March 23, 2015. The Appellate Term (1) reversed, on the law, an order of the Criminal Court of the City of New York, Bronx County (Harold A. Adler, J.), upon which a judgment had been entered, which had granted defendant's motion to dismiss the accusatory instrument pursuant to CPL 170.30 (1) (f); (2) denied defendant's motion; (3) reinstated the accusatory instrument; and (4) remanded the matter for further proceedings.

People v Aviles, 47 Misc 3d 126(A), 2015 NY Slip Op 50347(U), affirmed.

HEADNOTES

Motor Vehicles — Physical Coordination Tests — Police Policy of Not Administering Tests to Non-English Speaking Suspects — Equal Protection Violation — Standard of Review

1. Strict scrutiny did not apply to non-English speaking defendant's claim that his equal protection rights were violated when the police, pursuant to departmental policy, did not administer physical coordination tests following defendant's arrest for driving while intoxicated on the basis that a language barrier prevented them from communicating the test instructions to defendant, where defendant failed to show that the challenged policy singled out or intentionally discriminated against members of a suspect class. The policy was facially neutral and was not based on race, ethnicity or national origin. Rather, the policy was based solely on a suspect's ability to speak and understand English, which, by itself, does not implicate a suspect class. Nor did defendant demonstrate intentional discrimination based on his ethnicity, as the record demonstrated that the officer's decision not to conduct a coordination test was based solely on a determination that a language barrier—not defendant's ethnicity—prevented the officer from administering the test. Moreover, there was no indication that defendant's language was treated as a surrogate for his ethnicity or was a mere pretext for racial discrimination.

Motor Vehicles — Physical Coordination Tests — Police Policy of Not Administering Tests to Non-English Speaking Suspects — No Equal Protection Violation

2. The New York City Police Department's policy of not administering physical coordination tests when a language barrier prevents the administering officer from communicating the test instructions to a non-English speak-

ing person suspected of driving while intoxicated was rationally related to a legitimate governmental purpose. Accordingly, non-English speaking defendant's equal protection rights were not violated when the police failed to administer physical coordination tests on the basis of a language barrier following defendant's arrest for driving while intoxicated. Both the police department and the public have a substantial interest in ensuring the reliability of coordination tests, and the clarity of the instructions is crucial to the reliability of the results. Coordination tests are designed not only to assess a suspect's motor skills in completing specific tasks, but also to evaluate the suspect's capacity to follow instructions. However, the translation of instructions cannot be delegated to a translator and, given the time-sensitive nature of coordination tests, requiring an administering officer to seek out an appropriately trained translator could result in a delay that affects the results. The policy therefore rationally furthered the goals of avoiding delayed or erroneous results due to a language barrier. Moreover, requiring administration of translated instructions to all intoxicated driving suspects statewide would impose an exorbitant cost that would have a crippling impact on the State.

Motor Vehicles — Physical Coordination Tests — Police Policy of Not Administering Tests to Non-English Speaking Suspects — No Due Process Violation

3. The failure by police to offer non-English speaking defendant a coordination test following his arrest for driving while intoxicated on the basis that a language barrier prevented them from communicating the test instructions did not violate defendant's due process rights under the Federal and State Constitutions. The police have no duty to assist a defendant in gathering evidence or establishing a defense, nor does a defendant have a right to have the police perform a certain investigative step simply because it may yield information that is helpful to him or her. While defendants have a constitutional due process right to a qualified interpreter during judicial proceedings, the same right is not implicated during the pre-arrest investigation of suspected intoxicated driving, as the administration of coordination tests is not a judicial, quasi-judicial or administrative proceeding. In any event, the State has substantial interests in avoiding the cumbersome and prohibitively expensive administrative and fiscal burdens of providing translation services and ensuring the accuracy of physical coordination tests, which could be compromised by the use of translated instructions.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Automobiles and Highway Traffic § 346; AM
JUR 2d, Constitutional Law §§ 853, 855, 858, 862, 942.
NY JUR 2d, Automobiles and Other Vehicles § 907; NY
JUR 2d, Constitutional Law §§ 374, 378–380, 409, 414,
416.

ANNOTATION REFERENCE

See ALR Index under Driving While Intoxicated; Due
Process; Equal Protection.

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Query: coordination /3 test & “equal protection”

POINTS OF COUNSEL

Fried, Frank, Harris, Shriver & Jacobson, LLP, New York City (*Aleksandr B. Livshits* of counsel), and *The Bronx Defenders*, Bronx (*V. Marika Meis* of counsel), for appellant. I. The New York City Police Department’s failure to offer a coordination test to Jose Aviles on the basis of a language barrier violated his equal protection rights under the United States and New York State Constitutions. (*People v Rosario*, 136 Misc 2d 445; *People v Molina*, 25 Misc 3d 362; *People v Salazar*, 112 AD3d 5; *Village of Willowbrook v Olech*, 528 US 562; *Hernandez v Robles*, 7 NY3d 338; *Clark v Jeter*, 486 US 456; *Massachusetts Bd. of Retirement v Murgia*, 427 US 307; *Soberal-Perez v Heckler*, 717 F2d 36; *Hernandez v New York*, 500 US 352; *Lau v Nichols*, 414 US 563.) II. The failure of the New York City Police Department to offer Jose Aviles the opportunity to perform a coordination test violates the Due Process Clause of the United States and New York State Constitutions. (*People v Salazar*, 112 AD3d 5; *Mathews v Eldridge*, 424 US 319; *Cleveland Bd. of Ed. v Loudermill*, 470 US 532; *Morrissey v Brewer*, 408 US 471; *Cafeteria & Restaurant Workers v McElroy*, 367 US 886; *Herzfeld & Stern v Beck*, 175 AD2d 689; *Meyers v Amerada Hess Corp.*, 647 F Supp 62; *Wiener v Weintraub*, 22 NY2d 330.)

Darcel D. Clark, District Attorney, Bronx (*Stanley R. Kaplan* and *Nancy D. Killian* of counsel), for respondent. I. Defendant’s appeal should be dismissed since the essential argument provided by defendant on appeal at the Appellate Term, First Department, in the application for leave to this Court, and in the brief filed with this Court, is unpreserved and unreviewable and creates confusion as to the issue before this Court. (*People v Salazar*, 112 AD3d 5, 22 NY3d 1090.) II. The Appellate Term, First Department, properly followed the decision of the Appellate Division, First Department, in *People v Salazar* (112 AD3d 5 [2013], *lv denied* 22 NY3d 1090 [2014]), in reversing the decision and order of the nisi prius court erroneously dismissing docket No. 2011bx065081 on the ground that defendant was deprived of equal protection and due process under the Federal and State Constitutions because the police declined to administer a physical coordination test to a defendant who could not speak the same language as the police. (*Hernandez v Robles*, 7 NY3d 338; *Under 21, Catholic Home Bur. for*

Dependent Children v City of New York, 65 NY2d 344; *Personnel Administrator of Mass. v Feeney*, 442 US 256; 8200 Realty Corp. v Lindsay, 27 NY2d 124; *F. S. Royster Guano Co. v Virginia*, 253 US 412; *Soberal-Perez v Heckler*, 717 F2d 36; *Regents of Univ. of Cal. v Bakke*, 438 US 265; *San Antonio Independent School Dist. v Rodriguez*, 411 US 1; *Massachusetts Bd. of Retirement v Murgia*, 427 US 307; *People v Perez*, 27 Misc 3d 880.)

Lowenstein Sandler LLP, New York City (Natalie J. Kraner, Catherine Weiss and Steven Llanes of counsel), and Amy S. Taylor, *Make the Road New York*, Brooklyn, for Make the Road New York, amicus curiae. I. The Court should apply heightened scrutiny. (*People v Molina*, 25 Misc 3d 362; *People v Garcia-Cepero*, 22 Misc 3d 490; *People v Salazar*, 112 AD3d 5, 22 NY3d 1090; *People v Pelegrin*, 39 Misc 3d 788; *People v Perez*, 27 Misc 3d 880; *People v Burnet*, 24 Misc 3d 292; *Disabled Am. Veterans v United States Dept. of Veterans Affairs*, 962 F2d 136; *Cleburne v Cleburne Living Center, Inc.*, 473 US 432; *Plyler v Doe*, 457 US 202; *Lewis v Thompson*, 252 F3d 567.) II. The New York City Police Department's practice of denying physical coordination tests to non-English speakers cannot survive heightened scrutiny and fails even traditional rational basis review. (*Lau v Nichols*, 414 US 563; *Alexander v Sandoval*, 532 US 275; *Regents of Univ. of Cal. v Bakke*, 438 US 265; *Chevron U.S.A. Inc. v Natural Resources Defense Council, Inc.*, 467 US 837; *United States v Maricopa, County of*, 151 F Supp 3d 998, 915 F Supp 2d 1073; *New York Urban League, Inc. v State of New York*, 71 F3d 1031; *Arlington Heights v Metropolitan Housing Development Corp.*, 429 US 252; *Reno v Bossier Parish School Bd.*, 520 US 471; *Almendares v Palmer*, 284 F Supp 2d 799; *South Camden Citizens in Action v New Jersey Dept. of Env'tl. Protection*, 254 F Supp 2d 486.)

OPINION OF THE COURT

GARCIA, J.

The New York City Police Department (NYPD) does not administer physical coordination tests when a language barrier prevents the administering officer from communicating the test instructions to a non-English speaking suspect. Defendant Jose Aviles challenges this policy, arguing that his equal protection and due process rights were violated because he was denied a coordination test on the basis of a language barrier. We disagree, and hold that the order of the Appellate Term should be affirmed.

I.

Factual Background

Defendant was arrested after striking a marked New York City police vehicle that was entering traffic with its emergency lights on. According to the arresting officer, defendant had “a strong odor of alcohol on his breath,” “slurred speech,” and was “swaying and unsteady on his feet.” At the scene of the accident, defendant made the following statement to the arresting officer: “I had a few Coronas about 15 minutes ago, about 3 Coronas.”

After he was arrested, defendant was brought to an Intoxicated Driver Testing Unit (IDTU), where he consented to a breathalyzer test. The test, which was administered nearly three hours after the accident, resulted in a blood-alcohol content reading of .06—a reading below the .08 minimum required for a per se violation (Vehicle and Traffic Law § 1192 [2]). Defendant was not given a physical coordination test. Instead, the IDTU Technician Test Report contains a handwritten line crossing out the “Coordination Test” portion of the report, as well as a handwritten entry that reads: “No coord test given,” and “Language Barrier.” Defendant was ultimately charged with driving while impaired and driving while intoxicated (Vehicle and Traffic Law § 1192 [1], [3]).

Defendant moved to dismiss the misdemeanor information on the ground that the NYPD violated his rights under the Equal Protection and Due Process Clauses of the Federal and State Constitutions by failing to offer a physical coordination test on the basis of a language barrier. Specifically, defendant argued that, “while an English-speaking person arrested for driving under the influence of alcohol would ordinarily receive” a coordination test, defendant “was summarily denied this opportunity because of the language he speaks.”¹ The People opposed, contending that defendant was not denied equal protection, and that defendant’s due process rights were not implicated by the NYPD’s decision not to offer a coordination test based on defendant’s inability to speak or understand English.

1. The dissent’s discussion of persons who are “limited English proficient” or “LEP” was not raised before the trial court and, in any event, is inapplicable to this case. The trial court found—and defendant has consistently maintained—that he “speaks only Spanish, and not English.”

Criminal Court granted defendant's motion, holding that the "failure to provide the defendant—merely because he speaks only Spanish—with access to . . . potentially exculpatory evidence is a denial of his constitutional rights warranting dismissal." Specifically, the court determined that "the failure to administer the coordination test in this case constitutes a denial of due process and equal protection" under both the United States Constitution and the New York State Constitution. The Appellate Term reversed, holding that a similar constitutional challenge had recently been rejected by the Appellate Division (*People v Aviles*, 47 Misc 3d 126[A], 2015 NY Slip Op 50347[U] [App Term, 1st Dept 2015], citing *People v Salazar*, 112 AD3d 5 [1st Dept 2013]).

A Judge of this Court granted defendant leave to appeal (25 NY3d 1198 [2015]). We affirm.

II.

Equal Protection

Pursuant to the Fourteenth Amendment of the United States Constitution, "[n]o State shall . . . deny to any person within its jurisdiction the equal protection of the laws" (US Const, Amend XIV, § 1). The New York Constitution provides for equivalent equal protection safeguards (NY Const, art I, § 11; see *Hernandez v Robles*, 7 NY3d 338, 362 [2006]).

Alleged equal protection violations are primarily evaluated using either a "strict scrutiny" or a "rational basis" standard of review. Where governmental action disadvantages a suspect class or burdens a fundamental right, the conduct must be subjected to "strict scrutiny," and will be upheld only if the government can establish a compelling justification for the action (*Regents of Univ. of Cal. v Bakke*, 438 US 265, 299-300 [1978]). While "facially neutral conduct can constitute discrimination" against a suspect class in violation of equal protection, such a claim "requires that a plaintiff show an intent to discriminate against the suspect class" (*Soberal-Perez v Heckler*, 717 F2d 36, 41-42 [2d Cir 1983]). Where a suspect class or fundamental right is not implicated, the government action need only be rationally related to a legitimate governmental purpose (*id.* at 41).

[1] Here, defendant's equal protection claim is premised on the notion that the NYPD's policy of offering physical coordination tests only in English amounts to intentional discrimina-

tion on the basis of ethnicity or national origin. But strict scrutiny is inapplicable to defendant's claim, as he has not demonstrated that the challenged policy singles out members of a suspect class, nor has he shown intentional discrimination. While Hispanics as an ethnic group constitute a suspect class (*Keyes v School Dist. No. 1, Denver*, 413 US 189, 197 [1973]), the NYPD policy at issue is facially neutral and is not based on race, ethnicity, or national origin. Rather, the policy is based solely on a suspect's ability to speak and understand English, which, by itself, does not implicate a suspect class (*Soberal-Perez*, 717 F2d at 41). Nor has defendant demonstrated intentional discrimination based on his ethnicity. To the contrary, the record demonstrates that the officer's decision not to conduct a coordination test was based solely on a determination that a language barrier—not defendant's ethnicity—prevented the officer from administering the test.

The dissent contends that, where language “serve[s] as a proxy for national origin, ethnicity, and race,” a defendant could establish intentional discrimination against a suspect class sufficient to invoke strict scrutiny (dissenting op at 509-511). We agree. To be sure, upholding the facial validity of the NYPD policy does not preclude all challenges to the policy as applied to a particular defendant where, for instance, the defendant was denied a coordination test on the basis of his ethnicity, as opposed to any language barrier. But that is not the case before us. The instant case presents no evidence of such intentional discrimination or other similarly compelling circumstances. Nor is there any indication that defendant's language was “treated as a surrogate” for his ethnicity or was a mere “pretext for racial discrimination” (*Hernandez v New York*, 500 US 352, 371-372 [1991]). Rather, defendant has consistently maintained that, as a non-English speaker, he “was summarily denied this opportunity because of *the language he speaks*” (emphasis added). The record supports the notion that the decision not to administer a coordination test was a purely language-based determination—not a determination based on race, ethnicity, or national origin. Accordingly, rational basis review, rather than strict scrutiny, applies to defendant's equal protection claim.

[2] The challenged policy withstands rational basis review. Both the NYPD and the public have a substantial interest in ensuring the reliability of coordination tests, and the clarity of

the instructions is crucial to the reliability of the results. Indeed, the record makes clear that coordination tests are designed not only to assess a suspect's "motor skills in completing the specific tasks," but also to evaluate the suspect's "capacity to . . . follow instructions." But coordination tests are uniquely ill-suited for administration via translation; they are generally lengthy—containing 30 lines of instructions—and require contemporaneous demonstration and explanation of the tasks to be performed. The translation of instructions cannot be delegated to a translator, as the administering officer must have the requisite training and experience, and must be able to understand the translated instructions in order to accurately analyze the suspect's responses. Moreover, given the time-sensitive nature of coordination tests, requiring an administering officer to seek out an appropriately trained translator could result in a delay that affects the results (*see Missouri v McNeely*, 569 US —, —, 133 S Ct 1552, 1560 [2013] [noting that, "as a result of the human body's natural metabolic processes, the alcohol level in a person's blood begins to dissipate once the alcohol is fully absorbed and continues to decline until the alcohol is eliminated"])). Indeed, the value of physical coordination tests diminishes with the passage of time, and test results eventually become entirely meaningless where they follow a prolonged delay. Nor can instructions "simply be recited through a video tape," as the tests require "specific clarity in instructions and interaction." The NYPD policy therefore rationally furthers the goals of avoiding delayed or erroneous results due to a language barrier.

In addition, the NYPD undoubtedly has a substantial interest in avoiding the heavy financial and administrative burdens of employing translation services or multilingual officers qualified to administer coordination tests in the myriad languages spoken in this state. According to the record, New York State residents speak 168 distinct languages and countless dialects. Requiring the administration of translated instructions to all intoxicated driving suspects statewide would impose an exorbitant cost that would have a "crippling impact" on the State, as detailed in the record. The dissent's contention that "the NYPD has language access protocols in place and resources available to address the needs of New York City's linguistically diverse communities" (dissenting op at 507) is unsupported by the record and ignores the realities of physical coordination tests, which require precise instructions and

prompt administration.² Nor does the dissent identify which particular languages are “most often in demand” such that translation services should be required (dissenting op at 513).

Each of the rationales established by the purportedly “thin” record (dissenting op at 512 n 5) independently supplies a legitimate government interest that is furthered by the NYPD policy. Of course, “New York City’s commitment to access to justice regardless of language status” is a laudable and worthy goal (dissenting op at 507). And the City’s “recognition of the needs of its diverse communities” is undoubtedly embodied in the various executive branch letters, reports, and policies cited by the dissent (dissenting op at 510-512). But we do not measure constitutional violations against these policies, nor do they somehow give rise to an equal protection violation. Under our established constitutional analysis, we conclude that the challenged NYPD policy is rationally related to a number of legitimate governmental purposes.³

Accordingly, because the NYPD policy withstands rational basis review, defendant’s equal protection claim must be rejected.

III.

Due Process

Under the United States Constitution, “[n]o person shall be . . . deprived of life, liberty, or property, without due process of law” (US Const Amend V). The New York Constitution provides for similar protections (NY Const, art I, § 6) and “[w]e have at times found our Due Process Clause to be more protective of rights than its federal counterpart” (*Hernandez*, 7 NY3d at 362). Due process is, of course, a flexible concept that calls for such procedural protections as the particular situation demands (*Mathews v Eldridge*, 424 US 319, 334 [1976]). “Determining whether additional process is due in any

2. The dissent exempts defendant from the preservation rule and opts to “take judicial notice” of “publicly-available documents” in order to bolster arguments that defendant asserts for the first time on appeal (dissenting op at 512 n 5). We decline to do the same.

3. The dissent limits its analysis to the context of New York City. But our constitutional pronouncements apply statewide, including to areas with dramatically different resources, law enforcement practices, populations, and “linguistic needs” (dissenting op at 513 n 7). The dissent’s analysis would call into question investigatory tools employed by law enforcement statewide.

particular proceeding requires balancing the interests of the State against the individual interest sought to be protected” (*People v Ramos*, 85 NY2d 678, 684 [1995], citing *Mathews*, 424 US at 334).

[3] Defendant contends that the NYPD’s failure to offer him a coordination test based on a language barrier violated his due process rights under the federal and state constitutions. However, as an initial matter, the police have no duty to assist a defendant in gathering evidence or establishing a defense (*People v Finnegan*, 85 NY2d 53, 58 [1995]). Nor does a defendant have a right to have the police perform a certain investigative step simply because it may yield information that is helpful to him (*Arizona v Youngblood*, 488 US 51, 58-59 [1988]; *People v Hayes*, 17 NY3d 46, 51-52 [2011]). And, while defendants have a constitutional due process right to a qualified interpreter during judicial proceedings (*People v Ramos*, 26 NY2d 272, 274 [1970]), the same right is not implicated during the pre-arrest investigation of suspected intoxicated driving; the administration of coordination tests—a discretionary, investigative technique designed to gather evidence of intoxication—is not a judicial, quasi-judicial, or administrative proceeding.

In any event, as discussed above, the implicated state interests are substantial. The State has a clear interest in avoiding the cumbersome and prohibitively expensive administrative and fiscal burdens of providing the requested translation services. The State also has a strong interest in ensuring the accuracy of physical coordination tests, and the use of translated instructions—either through qualified interpreters or through multilingual officers—could compromise the test’s reliability. Given the substantial state interests involved, defendant’s due process claim must be rejected.

IV.

Accordingly, the order of the Appellate Term should be affirmed.

RIVERA, J. (dissenting). Defendant Jose Aviles claims the New York Police Department (NYPD) violated his federal and state equal protection and due process rights when it denied him a physical coordination test based solely on his language skills. The People defend the NYPD policy of offering the coordination test to everyone except those persons who are

perceived to be non-proficient in English¹ on the grounds that it ensures the reliability of the test and to do otherwise is administratively impracticable and burdensome. These representations are inadequate to overcome a policy that potentially places certain individuals in a better position than others to defend against criminal charges, especially when the NYPD has language access protocols in place and resources available to address the needs of New York City's linguistically diverse communities. Given New York City's commitment to access to justice regardless of language status, the NYPD's refusal to administer a coordination test equally to all violates defendant's federal and state equal protection rights. For these reasons, I dissent.

I.

Defendant was charged with operating a motor vehicle while under the influence of alcohol or drugs in violation of Vehicle and Traffic Law § 1192 (1) and (3). Defendant was arrested after he collided with a police vehicle pulling out of a precinct as defendant drove down the street. According to the arresting officer, defendant smelled of alcohol, his speech was slurred, and he was unsteady on his feet. Upon his arrest defendant was taken to the Intoxicated Driver Testing Unit (IDTU) at the 45th Precinct in the Bronx,² where he took a breathalyzer test which indicated a blood alcohol content (BAC) of .06, which was below the legal minimum for a per se violation.

Ordinarily, the IDTU would have offered defendant the opportunity to take a physical coordination test, as provided in

1. For purposes of clarity and uniformity, I have adopted the parties' description of persons denied the coordination test as "non-English proficient" or "limited English proficient" (LEP). The Equal Access to Human Services provision of New York City's Human Rights Law defines a LEP person as "an individual who identifies as being, or is evidently, unable to communicate meaningfully with agency or agency contractor personnel because English is not [the individual's] primary language" (Administrative Code of City of NY § 8-1002 [o]). Though the majority characterizes defendant as not being a LEP individual because of the *nisi prius* court's determination that he speaks "only Spanish, and not English" (majority op at 501 n 1), defendant clearly falls within New York City's understanding of a LEP individual.

2. The only issue before the Court is the constitutionality of the unofficial NYPD policy to withhold the coordination test from LEP individuals at New York City IDTUs. These IDTUs are unique to New York City, as the officers in all other municipalities in the state conduct sobriety tests roadside. Accordingly, the use of the IDTUs creates different expectations of NYPD, as NYPD officers have additional resources available to them for the processing of drunk drivers. Accordingly, I limit my analysis to the NYPD policy at IDTUs.

the NYPD DWI Patrol Guide (Guide). The coordination test requires an arrestee to complete a series of simple tasks: reciting the person's name and address, standing straight-up with eyes closed, walking heel-to-toe for nine steps and turning to walk back to the starting point, standing on one leg, pointing to the tip of the nose with an index finger, and writing their signature or address. Pursuant to the Guide, an officer will typically demonstrate the tasks before asking the arrestee to complete them. Here, defendant was denied the test based on the basis of what the test administrator cursorily identified as a "language barrier."

Defendant moved to dismiss the accusatory instrument on the grounds that NYPD violated his federal and state equal protection and due process rights by failing to offer the test based on his language. The People opposed the motion, arguing both that NYPD has a legitimate interest in avoiding possible confusion by withholding the coordination test from non-English speakers and that defendant cannot have a due process interest in an investigatory procedure.

The *nisi prius* court stated that in the past it had addressed similar language-based claims by permitting defense counsel to cross-examine the People's witnesses on the failure to administer the test and providing an adverse inference charge regarding the police failure to administer the test. However, in this case, the court granted the motion, concluding that where defendant's BAC was "so very low," denial of the coordination test "merely because he speaks only Spanish" violated his constitutional rights by failing to provide him with access to potentially exculpatory evidence. The court noted that under these circumstances "the trier of fact . . . is likely to have a heightened interest in seeing a video memorializing the defendant's abilities."

The Appellate Term, First Department, reversed on the basis of *People v Salazar* (112 AD3d 5 [2013]), decided after the *nisi prius* court granted defendant's motion and before the People appealed, and which rejected similar constitutional challenges to the NYPD's policy of administering the coordination test only in English (*People v Aviles*, 47 Misc 3d 126[A], 2015 NY Slip Op 50347[U] [2015]). A Judge of this Court granted defendant leave to appeal (*People v Aviles*, 25 NY3d 1198 [2015]).

II.

Defendant renews his constitutional challenges to NYPD's policy, and the People reassert that the policy is nondiscrimina-

tory and that it would be burdensome and unfeasible to administer the test other than in English. Defendant's equal protection claim has merit because the People's basis for denying him the test has no rational basis on the facts of this case.

Under both federal and state equal protection guarantees, government action that disadvantages a suspect class or burdens a fundamental right is subject to strict scrutiny and upheld only if there is a compelling justification for the action (*Johnson v California*, 543 US 499, 505 [2005]; *Matter of Aliessa v Novello*, 96 NY2d 418, 431 [2001]). A facially neutral policy is also subject to strict scrutiny if the government's act has a disparate impact on a suspect class, so long as the discrimination is intentional (*Washington v Davis*, 426 US 229, 239 [1976]). Otherwise, government action is subject to the rational basis standard of review, which requires that the action be rationally related to a legitimate governmental purpose (*Board of Trustees of Univ. of Ala. v Garrett*, 531 US 356, 367 [2001]; see also *Maresca v Cuomo*, 64 NY2d 242 [1984]).

Here, defendant claims that he was discriminated against based on a suspect classification because the NYPD policy categorizes arrestees based on language, which defendant claims serves as a proxy for his national origin, a recognized suspect classification under both federal and state equal protection jurisprudence. In response, the People maintain that the test is neutral on its face because a person of any national origin who understands English may take the test.

In *Soberal-Perez v Heckler* (717 F2d 36, 41 [2d Cir 1983], cert denied 466 US 929 [1984]), decided in 1983, the Second Circuit stated that "[l]anguage, by itself, does not identify members of a suspect class." That case involved a challenge to the Department of Health and Human Services policy of sending agency forms in English. The court applied rational basis review, holding that the Department had a legitimate interest in providing its forms only in English because the government conducts its affairs in English and "those who wish to become naturalized United States citizens must learn to read English" (*id.* at 42).

However, since the *Soberal-Perez* decision, our nation's understanding of the role language plays in our multiethnic society has evolved. In *Hernandez v New York*, a case involving a prosecutor's peremptory challenges to Latino Spanish-speaking prospective jurors, the United States Supreme Court recognized that "[i]t may well be, for certain ethnic groups and

in some communities, that proficiency in a particular language, like skin color, should be treated as a surrogate for race under an equal protection analysis” (500 US 352, 371 [1991] [citations omitted]). Indeed, a policy that affects all persons who speak a given language “without regard to the particular circumstances” of the surrounding events and individuals, may be found “to be a pretext for racial discrimination” (*id.* at 371-372).

The judiciary is not alone in recognizing that language may serve as a proxy for national origin, ethnicity, and race. The executive branch has also acknowledged a link between language and discrimination and issued Executive Order (Clinton) No. 13166 on August 11, 2000 (“Improving Access to Services for Persons with Limited English Proficiency”) to ensure compliance with Civil Rights Act title VI’s statutory prohibition against discrimination based on national origin in federally funded programs (42 USC § 2000d). To achieve its goal “to improve access to federally conducted and federally assisted programs and activities for persons who, as a result of national origin, are limited in their English proficiency” (65 Fed Reg 50,121 [Aug. 16, 2000]), the Executive Order requires federal agencies to draft guidance documents on how those programs will operate in a manner that is consistent with both title VI and the Department of Justice’s regulatory instructions.

The Department of Justice has provided guidance on Executive Order 13166, and helped municipalities to comply with title VI and its implementing regulations (*e.g.* Office of the Attorney General, Federal Government’s Renewed Commitment to Language Access Obligations Under Executive Order 13166 [Feb. 17, 2011]; US Department of Justice, Civil Rights Division, Language Access Assessment and Planning Tool for Federally Conducted and Federally Assisted Programs [May 2011]). The Department of Justice has made clear that criminal suspects and other persons in police custody are entitled to title VI protections during encounters with police (Department of Justice, Guidance to Federal Financial Assistance Recipients Regarding Title VI Prohibition against National Origin Discrimination Affecting Limited English Proficient Persons, 67 Fed Reg 41,455, 41,459 [June 18, 2002]). It has further directed that recipients of federal funds subject to title VI must take “reasonable steps to ensure meaningful access to their

programs and activities by [limited English proficient] persons” (*id.*).³

The limited view of the interrelationship of language, ethnicity, and national origin as articulated in *Soberal-Perez* does not represent today’s nuanced appreciation of how language historically affects access to justice for groups based on national origin. With an eye to this continued reality, the Court should safeguard against the use of English-only policies because “[t]he dominant cultural group can manipulate language as a device for exclusion of disfavored groups whose mother tongue is not English” (Kiyoko Kamio Knapp, *Language Minorities: Forgotten Victims of Discrimination?*, 11 Geo Immigr LJ 747, 752-753 [1997]).

Notably, compliance with legal mandates as a means for equal treatment of all members of our multilingual society can be realized through the government’s use of technological advances and increased human resources that address linguistic needs and simultaneously contain costs. This is especially true in New York City, where the population of limited English speakers is nearly two million people (New York City Mayor’s Office of Immigrant Affairs, Constituent Facts & Maps). In recognition of the needs of its diverse communities and of its legal obligations, New York City has issued an executive order directing its agencies to provide language services in compliance with title VI (NY City Executive Order No. 120 of 2008 [July 22, 2008] [“Citywide Policy on Language Access to Ensure the Effective Delivery of City Services”]; *see also* New York City Mayor’s Office of Operations, Language Access Services Initiative, <https://www1.nyc.gov/site/operations/projects/language-access-services.page>). NYPD also developed a Language Access Plan and issued internal procedures that govern law enforcement service provision to persons who are not fluent in English

3. In the title VII context, the Equal Employment Opportunity Commission (EEOC) has acknowledged the interconnectedness of language and national origin, and that neutral language policies can mask discriminatory animus and disparate treatment. As such, the EEOC guidelines broadly define national origin discrimination to include “linguistic characteristics of a national origin group” for the purposes of title VII enforcement (29 CFR 1606.1). The EEOC further advises employers that “[t]he primary language of an individual is often an essential national origin characteristic” (*id.* § 1606.7 [a]). Relatedly, the Southern District of New York has recently applied the EEOC’s interpretation to hold that an English-only policy in the workplace violated title VII’s prohibition on national origin discrimination (*Equal Empl. Opportunity Commn. v Sephora USA, LLC*, 419 F Supp 2d 408 [SD NY 2005]).

(New York Police Department, Language Access Plan [June 14, 2012], http://www.nyc.gov/html/nypd/downloads/pdf/public_information/lap_June_2012.pdf, cached at http://www.nycourts.gov/reporter/webdocs/lap_June_2012.pdf; New York Police Department Patrol Guide, Procedure No. 212-90, Guidelines for Interaction with Limited English Proficient [LEP] Persons [Oct. 16, 2013]). NYPD's official Language Access Plan encourages officers either to use a multi-language telephonic service known as "Language Line"⁴ to handle most of its interpretation needs, or to contact officers that are certified through NYPD's Language Initiative Program, which trains NYPD officers in critical languages (Language Access Plan at 4-5). Comparatively, NYPD's Patrol Guide prompts officers to rely on other officers who self-identify as bilingual (Guidelines for Interaction with Limited English Proficient [LEP] Persons at 1).⁵

This deliberate application of language services applies to the IDTU, where, for example, consent to administer the breathalyzer test is obtained by a video in Spanish (*see People v Salazar*, 112 AD3d 5, 7-8 [1st Dept 2013] [explaining how officers obtain consent to administer the breath test using an interpretive video]; *People v Rosario*, 136 Misc 2d 445, 447-448 [Crim Ct, Bronx County 1987] [same]). Similarly, NYPD has previously relied on bilingual officers to deliver the instructions on how to take the breathalyzer test (*see Salazar*, 112 AD3d at 8).

4. Language Line is a private company that provides on-demand interpretation through the telephone, 24 hours a day. People in need of interpretation call in to connect with an interpreter, who can immediately facilitate a conversation between two or more people who do not speak the same language (Language Line Solutions, Phone Interpreting, <https://www.languageline.com/interpreting/phone> [last accessed Nov. 10, 2016]).

5. The record on appeal is thin, and the People failed to submit any information about NYPD's language resources. Yet, defense counsel submitted NYPD's Language Access Plan, NYPD's field guide for serving LEP individuals, and other supporting documents, all of which the Court is permitted to take judicial notice (*see Affronti v Crosson*, 95 NY2d 713, 720 [2001]). Thus, the majority's contention that there is no record support for the claim that NYPD is equipped to interact with LEP individuals is false, as these publicly-available documents indicate that NYPD both intends to and is capable of doing so.

Contrary to the majority's assertion, defendant preserved his claim that NYPD's policy of denying the test based on language is unconstitutional because NYPD is capable of providing interpretative services. Therefore, it is wholly proper and prudent to consider all public documents regarding both NYPD's and the City's linguistic resources (*see Affronti*, 95 NY2d at 720).

Given New York City's commitment to language access and the resources available to the NYPD, the policy here does not survive even rational basis review. Furthermore, the NYPD policy is not rationally related to a legitimate governmental purpose for the separate reason that by denying defendant the test, NYPD forfeits an opportunity for the People to gather evidence of intoxication. If, as the People claim, the ultimate goal is to ensure the safety of our roadways, the policy falls short.⁶

Nevertheless, the People maintain that the policy is rationally related to its interest in ensuring the reliability of the coordination test. According to the People, the test can only be administered by a specially trained officer who cannot rely on any type of interpreter service to communicate the test instructions to the arrestee. The accuracy of this assertion is neither intuitive nor obvious, and the People failed to present evidence in support of their claim that there is no other way to maintain the integrity of the test, or that they are unable to deploy test administrators fluent in the languages most often in demand.⁷ More troubling is that the only source of this information about the difficulty in administering the coordination test is contained in a prosecutor's affirmation, submitted to the *nisi prius* court in opposition to defendant's motion to dismiss. The People provided no evidence to support the contention that the

6. The majority contends that NYPD's goal in withholding the test is "avoiding delayed or erroneous results due to a language barrier" (majority op at 504). Contrary to this assertion, the NYPD policy does not rationally further any legitimate goal, as NYPD has the available means for immediate and accurate interpretive services that would eliminate both the delay in testing and the potential for error. The majority's claim that the NYPD goal is to avoid detrimental results is unsupported by the record because there is no factual or scientific basis propounded by the People for such a claim.

7. I need not define the most in demand languages, despite the majority's suggestion otherwise (majority op at 505), because there is governmental consensus in New York City about its population's linguistic needs. NYPD's Language Access Plan identifies its "baseline languages" as Spanish, Chinese, Korean, Haitian Creole, Russian and Italian (New York Police Department, Language Access Plan at 10 [June 14, 2012]). The New York City Human Rights Law mandates that all city services and documents be provided in the same "covered languages" (Administrative Code §§ 8-1002 [j]; 8-1003, 8-1004). Executive Order 120 also requires that all of New York City's services be provided in these six languages (NY City Executive Order No. 120 of 2008 [July 22, 2008] ["Citywide Policy on Language Access to Ensure the Effective Delivery of City Services"]). Thus, the city government has identified those languages most spoken.

coordination test is difficult to administer, but instead ask this Court to credit their claims. Despite the majority's uncritical acceptance of the People's mantra that they cannot administer this test in a language other than English, we must decline the People's invitation to take them at their word. Indeed, where defendant's constitutional rights are at stake, our review of the policy and the People's reasons should be especially punctilious.

The People's arguments are also unpersuasive because the NYPD's own Language Access Plan for serving LEP individuals provides for a different result, and a close examination of the coordination test belies the claim. The physical coordination test involves no mechanical or technical manipulation and depends only on telling the person to make certain physical movements. The People fail to explain why the same mechanisms available to instruct in a language other than English on the rights and the use related to the breathalyzer test cannot be employed or modified for purposes of the coordination test. Indeed, the instructions for the coordination test are far more simple than those required to obtain consent to perform the breathalyzer test. The coordination test is comprised of short, declarative statements that can easily be translated, e.g. "touch your nose with your forefinger" (*toque su nariz con el dedo*), "walk in a straight line" (*camine en linea derecha*), or "raise your right leg" (*levante la pierna derecha*). The People's argument contradicts common sense.⁸

The fact is that NYPD already does far more to address language barriers in the field, where access to a bilingual officer or an interpreter is less controlled. Despite the challenges, the official NYPD policy requires officers to make efforts to communicate with LEP individuals out of recognition of "the importance of effective and accurate communication between its employees and the community they serve" (Language Ac-

8. The majority's characterization of this test as difficult to administer is based on an affirmation of an Assistant District Attorney. However, the People failed to submit either evidence from an experienced administrator who has firsthand knowledge about the test's complexity or expert linguistic testimony concerning the need for instruction to be provided solely by the test administrator in English. Absent such evidence, the People's "proof" is but a shell. Yet, the majority adopts the People's argument while disregarding that NYPD has a variety of tools it can use to administer this test in a manner that does not violate defendant's constitutional rights.

cess Plan at 2).⁹ Accordingly, NYPD does not have a legitimate interest in maintaining its current policy and its denial of the test to defendant violated his rights to equal protection under the law.¹⁰

III.

It is beyond cavil that the criminal justice system cannot advance procedures that benefit certain individuals but disadvantage others. Yet, the majority approves a system of justice in which English speakers are given access to potentially exculpatory evidence in DWI cases, while the same beneficial process is denied to those whose English language skills are limited due to their national origin. Such diminished treatment under the law is unconstitutional and counter to our sensibilities of fairness. It is especially unacceptable where the means to ensure equality are within reach.

For the reasons I have explained, I would reverse the Appellate Term and dismiss the accusatory instrument. Therefore, I dissent.

Chief Judge DiFiore and Judges Pigott, Abdus-Salaam and Stein concur; Judge Rivera dissents in an opinion in which Judge Fahey concurs.

Order affirmed.

9. The NYPD has long been on notice that failing to address language needs is a violation of title VI disparate impact regulations, based on national origin. In 2010, the Department of Justice issued a report in which it informed NYPD that it was not in full compliance with title VI. The report indicated that officers frequently departed from NYPD's internal policy when interacting with LEP individuals because NYPD did not provide sufficient translation services. NYPD responded by updating its Language Access Plan.

10. Since defendant has established a meritorious equal protection challenge, I have no occasion to address his due process claim.

[68 NE3d 1224, 46 NYS3d 493]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PATRICK MORGAN, Appellant.

Argued November 16, 2016; decided December 20, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 6, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Nicholas Iacovetta, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree and criminal possession of a weapon in the second degree.

People v Morgan, 124 AD3d 406, affirmed.

HEADNOTE**Crimes — Instructions — Supplemental Instruction Given to Deadlocked Jury**

The supplemental instruction given by the trial court in defendant's criminal prosecution after the jury returned a verdict that was not in fact unanimous was not coercive and did not deprive defendant of his right to a fair trial. When confronting a potential deadlock, a court may give a supplemental jury charge that encourages the jurors to reach a unanimous verdict. However, the court must not attempt to coerce or compel the jury to agree upon a particular verdict, or any verdict. Nor should the instruction impermissibly single out any juror for noncompliance with the majority or suggest that the jury would be forced to continue deliberations indefinitely. Here, the trial judge provided clarification that, in order to constitute a verdict, all jurors had to agree, and stressed that the jurors should "attempt" to reach a verdict, thereby leaving open the possibility that the jurors would have principled disagreements that would prevent them from reaching a unanimous verdict. The court did not overemphasize the need to return a verdict or suggest that the jurors were failing in their duty by not doing so, nor did the court indicate that the jurors would be subject to prolonged deliberations. Additionally, the absence of cautionary language was not fatal to the supplemental charge. Just two hours before its supplemental instruction, the trial court provided an instruction containing ample cautionary language reminding the jury "not [to] surrender an honest view of the evidence." The jury continued to deliberate for a full day after receiving the challenged supplemental charge, suggesting that it was not coerced.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d, Criminal Law §§ 346–347, 1184, 1207; AM JUR 2d, Trial §§ 1206, 1220, 1338, 1345–1349, 1408–1409, 1500–1501, 1510, 1512.

CARMODY-WAIT 2d, Motion for Mistrial § 197:9; CARMODY-WAIT 2d, Charge and Instruction to Jury §§ 200:5, 200:13, 200:82; CARMODY-WAIT 2d, Jury Conduct and Deliberation §§ 201:15, 201:19, 201:21–201:23.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 22.1, 24.8–24.10, 25.2.

NY JUR 2d, Criminal Law: Procedure §§ 2022, 2554, 2659, 2779, 2892, 2898, 2917; NY JUR 2d, Trial §§ 431, 485, 506.

ANNOTATION REFERENCE

Instructions urging dissenting jurors in state criminal case to give due consideration to opinion of majority (*Allen* charge)—modern cases. 97 ALR3d 96.

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POINTS OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Susan H. Salomon of counsel), for appellant. I. After the previously deadlocked jury rendered a defective verdict that revealed its numerical split and the identities of the two jurors in the minority, the court, when ordering the jury to resume deliberations and reminding it that its verdict had to be unanimous, wrongfully refused to include any language conveying that jurors were not to surrender conscientious beliefs solely to achieve unanimity—an omission that rendered the instruction fatally coercive. (*People v Aponte*, 2 NY3d 304; *People v Aleman*, 12 NY3d 806; *People v Alvarez*, 86 NY2d 761; *People v Pagan*, 45 NY2d 725; *People v Kisoona*, 8 NY3d 129; *Smalls v Batista*, 191 F3d 272; *People v Garcia*, 25 NY3d 77; *United States v McDonald*, 759 F3d 220; *People v Bonilla*, 225 AD2d 330; *People v Cannon*, 236 AD2d 294.) II. By refusing to grant the deliberating jury’s request to rehear the defense summation simply because it was not “evidence,” the court erroneously failed to exercise its discretion; and by endorsing the court’s wrongful and prejudicial ruling, defense counsel rendered appellant ineffective assistance. (*Herring v New York*, 422 US 853; *People v Velasco*, 77 NY2d 469; *People v Williams*, 56 NY2d 236; *People v Cronin*, 60 NY2d 430; *People v Clariot*, 188 AD2d 281; *People v Sullivan*, 160 AD2d 161; *People v*

Benevento, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *Strickland v Washington*, 466 US 668; *People v Wright*, 25 NY3d 769.)

Darcel D. Clark, District Attorney, Bronx (*Catherine M. Reno*, *Nancy D. Killian* and *Stanley R. Kaplan* of counsel), for respondent. I. The court properly charged the jury after a poll indicated that its announced verdict was not unanimous, and the court's instruction to continue deliberation in an attempt to reach a verdict was appropriate under the circumstances. (*People v Torre*, 33 AD2d 43; *People v Iannelli*, 69 NY2d 684; *People v Stephens*, 84 NY2d 990; *People v Heiserman*, 127 AD3d 1422; *People v Williams*, 38 AD3d 925; *People v Garcia*, 25 NY3d 77; *People v Pena*, 188 AD2d 349, 81 NY2d 845; *People v Horn*, 196 AD2d 886, 82 NY2d 850; *People v Aponte*, 2 NY3d 304; *People v Aleman*, 12 NY3d 806.) II. Defendant's ineffective assistance of counsel claim is not reviewable on direct appeal and, to the extent the existing record permits review, is without merit. (*People v Velasco*, 77 NY2d 469; *United States v Guanti*, 421 F2d 792; *People v Medina-Gonzalez*, 116 AD3d 519, 23 NY3d 1040; *People v Rivera*, 71 NY2d 705; *People v Blake*, 24 NY3d 78; *People v Baldi*, 54 NY2d 137; *People v Caban*, 5 NY3d 143; *People v Barboni*, 21 NY3d 393; *People v Satterfield*, 66 NY2d 796; *People v Benevento*, 91 NY2d 708.)

OPINION OF THE COURT

GARCIA, J.

This case calls upon us to determine whether the trial court's supplemental instruction given after the jury returned a "verdict" that was not in fact unanimous was "unbalanced and coercive" such that it deprived defendant of his right to a fair trial. We agree with the Appellate Division that the instruction was proper and affirm.

Defendant was charged with murder in the second degree, among other things, in connection with a shooting that occurred in 2008. On the second day of deliberations, the jury sent out a note claiming that it was deadlocked. The following morning, the court asked the parties for suggestions as to how to proceed. The People responded that the court should simply instruct the jurors to "continue deliberation" without any additional charge. Defense counsel stated he "would be [alright]" if the court "just mention[ed]" that the jury should "proceed with deliberation." The court determined that "something more" was required, and instead repeated its final instruction concerning the jury's duty to deliberate:

“To reach a unanimous verdict, you must deliberate with the other jurors. That means, you should discuss the evidence and consult with each other, listen to each other, give each other[s] views careful consideration and reason together when considering the evidence. And when you deliberate, you should do so with a view toward reaching an agreement if that can be done without surrendering individual judgment. Each of you must decide the case for yourself, but only after a fair and impartial consideration of the evidence with the other jurors. You should not surrender an honest view of the evidence simply because you want the trial to end or you are outvoted. At the same time, you should not hesitate to re-examine your views and change your mind if you become convinced that your position was not correct.”

Approximately two hours later, the jury announced it had “come to a verdict.”

In open court, the foreperson confirmed that the jury had agreed upon a verdict and had found defendant not guilty of murder in the second degree, guilty of manslaughter in the first degree, and guilty of criminal possession of a weapon in the second degree. It was not, however, a unanimous verdict; subsequent polling of the individual jurors revealed that two jurors disagreed with respect to at least one of the charged counts.

The judge informed the parties that he believed the “proper action to take . . . would simply be to remind the jury that [the] verdict has to be unanimous” and instruct them to resume deliberations. In response, defense counsel moved for a mistrial stating that the two jurors “clearly . . . have a different opinion than the other ten,” and “are going to continue to have th[at] position.” The court denied the request as premature and provided the following instruction:

“Ladies and gentleman, you may recall that during my final instructions I told you that your verdict as to any count of the indictment that you consider must be unanimous. That is, all 12 jurors must agree.

“Therefore, I am not going to accept this verdict. Instead, I’m going to order that the 12 jurors go

back to the jury room, resume your deliberations in an attempt to reach a unanimous verdict, that is where all 12 jurors agree as to any count submitted to you.”

After the jury was sent to deliberate, defense counsel asked the court to consider an additional jury instruction. The trial court declined to do so.

Deliberations continued through the following day. Among other things, the jury asked for defense counsel’s summation. The People objected, arguing that the summation was not in evidence. Defense counsel agreed, and the court declined to provide the summation to the jury. Later that day, the jury reached a verdict, finding the defendant not guilty of murder but guilty of manslaughter and criminal possession of a weapon. This time, polling was unanimous.

The Appellate Division, with one Justice dissenting, affirmed (*People v Morgan*, 124 AD3d 406 [1st Dept 2015]). The majority concluded that the court’s instruction given after polling revealed the split in the jury vote was “appropriate under the circumstances” and that “defendant was not deprived of due process by the absence from th[e] instruction of language reminding the jurors not to surrender their conscientiously held beliefs” (*id.* at 407). The majority noted that such language was included in the court’s prior charge, given just two hours earlier, and that “[j]urors are presumed to follow the legal instructions they are given” (*id.*). The majority also found that the charge “did not apply improper pressure on the two jurors who did not agree with the verdict or criticize those particular jurors” and was not coercive as demonstrated by the fact that the jury deliberated for a full day after the disputed charge (*id.*).

With respect to defendant’s contention that the court erred in denying the jury’s request for a readback of counsel’s summation, the majority held it was unpreserved and waived since counsel expressly agreed to the court’s proposal to deny the request (*id.* at 407). The majority found that, to the extent the record on direct appeal permitted review, defendant was not deprived of effective assistance of counsel by virtue of counsel’s failure to object (*id.* at 408).

The dissent would have found that the instruction was coercive for its failure to include “cautionary language admonishing [the jurors] to adhere to their conscientiously held views” and for potentially singling out the minority jurors

(*id.* at 408-409 [Manzanet-Daniels, J., dissenting]). The dissenting Justice granted leave to appeal (2015 NY Slip Op 72429[U] [1st Dept 2015]).

On appeal, defendant again argues that the trial court's supplemental instruction in response to the defective verdict was coercive because it did not include language conveying that the jurors were not to surrender their conscientiously held beliefs or, in the alternative, did not specifically refer to the cautionary language in the court's previous deadlock charge. Defendant also contends that the court failed to exercise its discretion by refusing to grant the jury's request to rehear the defense's summation during deliberations and that defense counsel was ineffective in failing to object.

Pursuant to Criminal Procedure Law § 310.80, if in response to polling, "any juror answers in the negative, the court must refuse to accept the verdict and must direct the jury to resume its deliberation." When confronting a potential deadlock, a court may give a supplemental jury charge that "encourage[s]" the jurors to reach a unanimous verdict (*People v Aponte*, 2 NY3d 304, 308 [2004]). However, the court "must not attempt to coerce or compel the jury to agree upon a particular verdict, or any verdict" (*People v Pagan*, 45 NY2d 725, 726 [1978] [internal quotation marks omitted], quoting *People v Faber*, 199 NY 256, 259 [1910]) and should not "prod jurors through prejudicial innuendoes or coerce them with untoward pressure to reach an agreement" (*id.*, 45 NY2d at 727). Nor should the instruction "impermissibly single[] out [any juror] for noncompliance with the majority" or suggest "that the jury would be forced to continue deliberations indefinitely" (*id.*). Our cases make clear that the propriety of a supplemental instruction must be considered in context and in light of all the circumstances.

In *People v Aponte*, we held that a supplemental jury instruction was "unbalanced and coercive" where the court stated that "[t]he point of this process is to get a result" and stressed that "[s]omething happened in this case . . . [i]t was proven or not . . . [t]he standard was met or it was not" (*Aponte*, 2 NY3d at 305-307). The court also instructed the jury that it would be a "rare occurrence" for a jury to be unable to resolve a case and that the jury was "nowhere near . . . the point where [the court] would begin to consider the possibility" of a deadlock (*id.* at 307). The jury returned a verdict a mere five minutes after this charge. We determined that these instructions warranted

reversal because, among other things, they “overemphasized the jury’s obligation to return a verdict” and “suggest[ed] that the jurors were failing in their duty to reach a decision” (*id.* at 308). We also noted that the trial court should have included “encouraging language” in its charge to balance those problematic comments (*id.* at 309). Finally, although not “dispositive,” the “swiftness of the verdict” also suggested that the jury was coerced (*id.*).

By contrast, in *People v Pagan*, we upheld a supplemental charge instructing the jury that they were “expected to come to a verdict” and should continue deliberations to “make every effort possible to arrive at a verdict” (*Pagan*, 45 NY2d at 726). The jury returned a verdict approximately 1½ hours later. We held that, while the instruction was not “ideal,” the court “simply asked the jury to exert its best efforts and renew deliberations” (*id.* at 727). We emphasized that the jurors were not “improperly threatened” or “singled out for noncompliance with the majority,” nor did the trial court “suggest[] that the jury would be forced to continue deliberations indefinitely” (*id.*).

The supplemental instruction in this case, taken in context, was not coercive. In response to the jury’s representation that it had reached a “verdict”—when, in fact, the jury was not unanimous—the trial judge provided clarification that, in order to constitute a verdict, all jurors had to agree. Moreover, as in *Pagan*, the trial judge here stressed that the jurors should “attempt” to reach a verdict (45 NY2d at 726), thereby leaving “open the possibility that the jurors would have principled disagreements that would prevent them from reaching a unanimous verdict” (*United States v McDonald*, 759 F3d 220, 224 [2d Cir 2014]). The court did not “overemphasize” the need to return a verdict or “suggest[] that the jurors were failing in their duty” by not doing so (*Aponte*, 2 NY3d at 308; see *McDonald*, 759 F3d at 223). Nor did the court indicate that the jurors would be subject to “prolonged deliberations” (*Aponte*, 2 NY3d at 308).

Contrary to defendant’s claim, the absence of “cautionary language” is not fatal to the supplemental charge. Just two hours before its supplemental instruction, the trial court provided an instruction containing ample cautionary language reminding the jury “not [to] surrender an honest view of the evidence.” Moreover the jury continued to deliberate for a full day after receiving the challenged supplemental charge, sug-

gesting that it was not coerced. Under these circumstances, the trial court's instructions were not coercive and, accordingly, did not deprive defendant of his right to a fair trial.

Defendant's claim concerning the trial court's failure to read back defense counsel's summation is unpreserved and otherwise meritless. On this record, we cannot say that defense counsel was ineffective for failing to object to the trial judge's ruling.

The order of the Appellate Division should be affirmed.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein and Fahey concur.

Order affirmed.

[68 NE3d 1233, 46 NYS3d 502]

ANDREW J. HAIN, Individually and as Executor of HOLLY J. HAIN, Deceased, Respondent, v ANGELA J. JAMISON et al., Appellants, and DRUMM FAMILY FARM, INC., Respondent.

Argued November 16, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered July 10, 2015. The Appellate Division order, insofar as appealed from, (1) reversed, on the law, an order of the Supreme Court, Steuben County (Marianne Furfure, J.), which had denied the motion of defendant Drumm Family Farm, Inc. for summary judgment dismissing the complaint and cross claims against it; (2) granted the motion; and (3) dismissed the complaint and all cross claims against that defendant.

Hain v Jamison, 130 AD3d 1562, reversed.

HEADNOTE

Animals — Roaming on Highway — Motorist Struck after Exiting Vehicle to Assist Calf — Proximate Cause

In a negligence action arising after a calf owned by defendant farm escaped its enclosure and decedent, who exited her vehicle and entered the roadway to assist the animal, was struck and killed by a passing vehicle, it could not be said, as a matter of law, that defendant's alleged negligence merely furnished the occasion for the collision or that the accident did not flow from defendant's negligent conduct in permitting its calf to stray. Whether defendant's alleged negligence was a proximate cause of decedent's death—or whether decedent's intervening acts severed the causal connection—was thus a question for the factfinder. The very same risk that rendered negligent defendant's alleged failure to restrain or retrieve its farm animal—namely, that the wandering calf would enter a roadway and cause a collision—was, in fact, the risk that came to fruition. That defendant could not predict the exact manner in which the calf would cause injury to a motorist did not preclude liability because the general risk and character of injuries was foreseeable. Though decedent had apparently stopped her vehicle without striking the calf, the animal was still loose in the roadway and, under the circumstances, the danger and risk of an accident had not yet passed. A factfinder could reasonably conclude that decedent's actions in exiting her vehicle and entering the roadway were an entirely normal and foreseeable consequence of the situation created by defendant's alleged negligence. Accordingly, decedent's conduct could not, as a matter of law, be considered so extraordinary under the circumstances, not foreseeable in the normal course of events, or independent of or far removed from defendant's conduct that it broke the chain of causation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Animals §§ 92, 95; AM JUR 2d Negligence §§ 560, 564, 565, 570.

DOBBS LAW OF TORTS §§ 209, 211, 215.

NY JUR 2d Animals § 170; NY JUR 2d Negligence §§ 66, 70–72, 76–81, 83.

NEW YORK LAW OF TORTS §§ 8:8, 8:12, 8:13, 8:16.

ANNOTATION REFERENCE

Liability of owner of animal for damage to motor vehicle or injury to person riding therein resulting from collision with domestic animal at large in street or highway. 29 ALR4th 431.

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Query: “proximate cause” & interven! & exit! /4 vehicle

POINTS OF COUNSEL

Coughlin & Gerhart, LLP, Binghamton (*James P. O'Brien* and *Rachel A. Abbott* of counsel), for appellants. The Appellate Division, Fourth Department erred in holding that any alleged negligence of Drumm Family Farm, Inc. could not, as a matter of law, have been a proximate cause of the decedent's injuries. (*Mirand v City of New York*, 84 NY2d 44; *Derdiarian v Felix Contr. Corp.*, 51 NY2d 308; *Forte v City of Albany*, 279 NY 416; *Sanchez v State of New York*, 99 NY2d 247; *Hastings v Sauve*, 21 NY3d 122; *Kush v City of Buffalo*, 59 NY2d 26; *Kriz v Schum*, 75 NY2d 25; *Barnes v Fix*, 63 AD3d 1515; *Lee v New York City Hous. Auth.*, 25 AD3d 214.)

Cellino & Barnes, P.C., Buffalo (*Ellen B. Sturm* of counsel), for Andrew J. Hain, respondent. The Appellate Division, Fourth Department erred in holding that any alleged negligence on the part of Drumm Family Farm, Inc. in allowing its calf to stray onto the public roadway could not have been, as a matter of law, a proximate cause of decedent's death. (*Walley v Bivins*, 81 AD3d 1286; *Mirand v City of New York*, 84 NY2d 44; *Derdiarian v Felix Contr. Corp.*, 51 NY2d 308; *Hastings v Sauve*, 21 NY3d 122; *Bard v Jahnke*, 6 NY3d 592; *Sargent v Mammoser*, 117 AD3d 1533; *Gardner v Perrine*, 101 AD3d 1587;

Barnes v Fix, 63 AD3d 1515; *Lee v New York City Hous. Auth.*, 25 AD3d 214; *Morris v Lenox Hill Hosp.*, 232 AD2d 184.)

Brian P. Fitzgerald, P.C., Buffalo (*Derek J. Roller* of counsel), for Drumm Family Farm, Inc., respondent. Drumm Family Farm, Inc.'s alleged negligence was not a proximate cause of this accident because it merely created the opportunity for Holly J. Hain to be standing in the roadway but it did not cause her to stand there. (*Hastings v Sauve*, 21 NY3d 122; *Derdiarian v Felix Contr. Corp.*, 51 NY2d 308; *Sheehan v City of New York*, 40 NY2d 496; *Rivera v City of New York*, 11 NY2d 856; *Zuckerman v City of New York*, 49 NY2d 557; *Ventricelli v Kinney Sys. Rent A Car*, 45 NY2d 950; *Ely v Pierce*, 302 AD2d 489, 100 NY2d 505; *Schiff v Possemato*, 25 AD3d 839; *Lee v New York City Hous. Auth.*, 25 AD3d 214; *Gralton v Oliver*, 277 App Div 449.)

OPINION OF THE COURT

STEIN, J.

The sole issue before us on this appeal is whether defendant Drumm Family Farm, Inc., established its entitlement to summary judgment by demonstrating the absence of a material question of fact regarding whether its alleged negligence was a proximate cause of decedent's death. We conclude that the Farm failed to meet its burden as the movant, and that proximate cause is, therefore, a question for the factfinder.

I.

Decedent, the wife of plaintiff, was struck and killed by a vehicle driven by one of the Jamison defendants as decedent was walking in the northbound lane of a rural road late one evening.¹ Plaintiff, individually and on behalf of decedent's estate, subsequently commenced this negligence action against the Jamison defendants and Drumm Family Farm, Inc. Plaintiff alleged that, at the time of the collision, decedent was assisting a calf that was loose in the roadway. The calf, owned by the Farm, had escaped its nearby enclosure. The complaint alleged that the driver who struck decedent was negligent in operating her vehicle, and that the Farm was negligent for failing to maintain its fence and restrain or retrieve the calf, thereby allowing it to wander into the roadway. The Farm and the Jamison defendants answered the complaint, and asserted cross claims for contribution and indemnification.

1. The other Jamison defendant was the owner of the vehicle.

Thereafter, the Farm moved for summary judgment dismissing the complaint and all cross claims asserted against it, arguing that its alleged negligence in allowing the calf to escape or failing to retrieve it did not constitute a proximate cause of decedent's death. Rather, the Farm argued, decedent's intervening and unforeseeable act of exiting her vehicle and entering the roadway in an attempt to assist the calf, and the other driver's negligence in operating her vehicle, were the only proximate causes of decedent's death.

In support of its motion, the Farm proffered the driver's deposition testimony explaining the circumstances of the collision. According to the driver, she was traveling north on the road in question, shortly after 10:00 p.m., when she slowed her vehicle to maneuver a curve in the road. As she came around the bend, she saw "very bright" headlights from a vehicle pulled over on the left, or southbound, side of the road. As the driver's vision adjusted and she passed the stopped vehicle, she saw decedent in the road milliseconds before hitting her and what she thought, at the time, was a dog—but which she later learned was a calf.

The Farm also submitted portions of the deposition testimony of Daniel Drumm, the Farm's owner, wherein he recounted that the calf involved in the accident had been born earlier that day. Drumm averred that he did not know how the calf escaped his property, and that he did not learn of the calf's escape until his stepdaughter alerted him to it at approximately 10:00 p.m. Drumm's stepdaughter had, in turn, just learned that the calf was loose when another relative, who lived on the same property, telephoned to relay that, approximately 30 to 45 minutes earlier, a neighbor had seen the calf loose next to the road. Drumm testified that he immediately left his home to look for the calf, at which point he came upon the accident.

Plaintiff and the Jamison defendants opposed the Farm's motion, arguing that a question of fact existed regarding whether decedent's death was a foreseeable consequence of the Farm's negligence. Proof offered in opposition to the Farm's motion, including testimony from Drumm's deposition and the affidavit of a neighboring property owner, indicated that the fence surrounding the farm was in poor condition and that, on prior occasions, cows had escaped and wandered near and into the roadway, although Drumm asserted that the fence was intact at the time of the accident.

Supreme Court denied the Farm's motion, holding that it could not conclude, as a matter of law, that decedent's conduct in exiting her vehicle was sufficiently extraordinary and unforeseeable to break the chain of causation. Upon the Farm's appeal, the Appellate Division—with one Justice dissenting—reversed, granted the Farm's motion, and dismissed the complaint and cross claims as asserted against it (130 AD3d 1562 [4th Dept 2015]). The majority held that the Farm had established that its alleged negligence in allowing the calf to escape was not a proximate cause of decedent's death, reasoning that the Farm's negligence merely furnished the occasion for, but did not cause, decedent to enter the roadway, where she was struck by the Jamison vehicle.

The Jamison defendants sought leave to appeal the dismissal of their cross claims against the Farm; plaintiff did not move for leave to appeal. We granted the Jamison defendants leave to appeal (26 NY3d 910 [2015]),² and we now reverse.

II.

It is well settled that “[e]vidence of negligence is not enough by itself to establish liability,” for it also must be proved that the negligence was a proximate, or legal, cause of the event that produced the harm sustained by the plaintiff (*Sheehan v City of New York*, 40 NY2d 496, 501 [1976]). We have previously observed that “[t]he concept of proximate cause . . . has proven to be an elusive one, incapable of being precisely defined to cover all situations” (*Derdiarian v Felix Contr. Corp.*, 51 NY2d 308, 314 [1980]). This is because the determination of proximate cause involves, among other things, policy-laden considerations; that is, the chain of causation must have an endpoint in order “to place manageable limits upon the liability that flows from negligent conduct” (*id.*; see *Sewar v Gagliardi Bros. Serv.*, 51 NY2d 752, 759 [1980, Fuchsberg, J., concurring]; *Ventricelli v Kinney Sys. Rent A Car*, 45 NY2d 950, 952 [1978], *mod* 46 NY2d 770 [1978]).

The overarching principle governing determinations of proximate cause is that a “defendant’s negligence qualifies as a proximate cause where it is ‘a substantial cause of the events

2. Although the Appellate Division order is nonfinal because the action remains pending as between plaintiff and the Jamison defendants, we elected to treat the Appellate Division order as final with respect to the Farm under the doctrine of party finality (see Arthur Karger, Powers of the New York Court of Appeals § 5:9 at 128-133 [3d ed rev 2005]).

which produced the injury’ ” (*Mazella v Beals*, 27 NY3d 694, 706 [2016], quoting *Derdiarian*, 51 NY2d at 315). Typically, the question of whether a particular act of negligence is a substantial cause of the plaintiff’s injuries is one to be made by the factfinder, as such a determination turns upon questions of foreseeability and “‘what is foreseeable and what is normal may be the subject of varying inferences’ ” (*Kriz v Schum*, 75 NY2d 25, 34 [1989], quoting *Derdiarian*, 51 NY2d at 315; see *Voss v Netherlands Ins. Co.*, 22 NY3d 728, 737 [2014]).

When a question of proximate cause involves an intervening act, “‘liability turns upon whether the intervening act is a *normal or foreseeable consequence* of the situation created by the defendant’s negligence’ ” (*Mazella*, 27 NY3d at 706 [emphasis added], quoting *Derdiarian*, 51 NY2d at 315). Thus, “[w]here the acts of a third person intervene between the defendant’s conduct and the plaintiff’s injury, the causal connection is not automatically severed” (*Derdiarian*, 51 NY2d at 315). Rather, “[t]he mere fact that other persons share some responsibility for plaintiff’s harm does not absolve defendant from liability because ‘there may be more than one proximate cause of an injury’ ” (*Mazella*, 27 NY3d at 706, quoting *Argentina v Emery World Wide Delivery Corp.*, 93 NY2d 554, 560 n 2 [1999]). It is “[o]nly where ‘the intervening act is extraordinary under the circumstances, not foreseeable in the normal course of events, or independent of or far removed from the defendant’s conduct,’ [that it] may . . . possibly ‘break[] the causal nexus’ ” (*Mazella*, 27 NY3d at 706, quoting *Derdiarian*, 51 NY2d at 315; see *Kush v City of Buffalo*, 59 NY2d 26, 33 [1983]). To state the inverse of this rule, liability *subsists* “[w]hen . . . the intervening act is a natural and foreseeable consequence of a circumstance created by defendant” (*Kush*, 59 NY2d at 33; *Lynch v Bay Ridge Obstetrical & Gynecological Assoc.*, 72 NY2d 632, 636 [1988]).

Although foreseeability and proximate cause are generally questions for the factfinder, there are instances in which proximate cause can be determined as a matter of law because “only one conclusion may be drawn from the established facts” (*Derdiarian*, 51 NY2d at 315; see *Ventricelli*, 45 NY2d at 952). Such cases may arise when the plaintiff’s injuries are caused by “independent intervening acts which *operate upon* but *do not flow from* the original negligence” (*Derdiarian*, 51 NY2d at 315 [emphasis added]; see *Campbell v Central N.Y. Regional Transp. Auth.*, 7 NY3d 819, 821 [2006]). Stated differently,

proximate cause will be found lacking where the original negligent act merely “furnished the occasion for”—but did not cause—“an unrelated act to cause injuries not ordinarily anticipated” (*Derdiarian*, 51 NY2d at 316).

While the foregoing rules may be easily stated, they are not so handily applied. The line between those intervening acts which sever the chain of causation and those which do not cannot be drawn with precision. Proximate cause is, at its core, a uniquely fact-specific determination (see *O'Neill v City of Port Jervis*, 253 NY 423, 433 [1930]), and “[d]epending upon the nature of the case, a variety of factors may be relevant in assessing legal cause” (*Derdiarian*, 51 NY2d at 314-315). Such factors include, among other things: the foreseeability of the event resulting in injury; the passage of time between the originally negligent act and the intervening act; the spatial gap, if any, between the original act and the intervening act; whether the original act of negligence was a completed occurrence or was ongoing at the time of the intervening act; whether and, if so, what other forces combined to bring about the harm; as well as public policy considerations regarding the scope of liability (see *Williams v State of New York*, 18 NY3d 981, 984 [2012]; *Derdiarian*, 51 NY2d at 314; *Martinez v Lazaroff*, 48 NY2d 819, 820 [1979], *affg* 66 AD2d 874, 875 [2d Dept 1978]; 1A NY PJI3d 2:70 at 412-414 [2016]). The relevance of each factor will vary depending upon the factual circumstances presented, but the most significant inquiry in the proximate cause analysis is often that of foreseeability. Thus, where the risk of harm created by a defendant’s conduct corresponds to that which actually results—absent an extraordinary intervening act or significant facts weighing in favor of attenuation—it cannot be said, as a matter of law, that a defendant’s negligence merely furnished the occasion for the harm (see *Mazella*, 27 NY3d at 706; *Kush*, 59 NY2d at 33; *Derdiarian*, 51 NY2d at 315). Under such circumstances, the determination of proximate cause is best left for the factfinder.

A review of our case law highlights the distinction between instances where proximate cause is a question for the jury and the rare cases in which it can be determined, as a matter of law, that a defendant’s negligence merely created the opportunity for, but did not cause, the event that resulted in harm. For example, in *Derdiarian v Felix Contr. Corp.*, a driver careened into an excavation site that was poorly barricaded, and struck the plaintiff, a construction worker (see 51 NY2d at

312). The plaintiff was injured both by the vehicle and by boiling enamel that splattered from a nearby kettle (*see id.*). We held that the question of whether the contractor defendant's alleged negligence in failing to provide an adequate safety barrier was a proximate cause of the plaintiff's injuries was properly left to the jury (*see id.* at 316). We explained that the hazard associated with the original allegedly negligent act—the provision of an insufficient safety barrier—was the risk that a driver would negligently enter the work site, and that “[a]n intervening act may not serve as a superseding cause, and relieve an actor of responsibility, where the risk of the intervening act occurring is the *very same risk* which renders the actor negligent” (*id.* [emphasis added]). With regard to the injuries caused by the boiling enamel, we also observed that the mere fact that the defendant contractor could not anticipate the precise manner of the accident or the exact nature of injuries did “not preclude liability as a matter of law where the *general risk and character of injuries are foreseeable*” (*id.* at 317 [emphasis added]; *see Mazella*, 27 NY3d at 706-709).

By contrast, in *Ventricelli v Kinney Sys. Rent A Car*, we held that proximate cause was lacking, as a matter of law, because the defendant automobile lessor's negligence merely furnished the occasion for the injury (45 NY2d at 952). There, the plaintiff leased a vehicle with a defective trunk lid and, when the trunk opened, the plaintiff pulled off the road into a curbside parking space, where he was subsequently injured by the negligent driving of a third party. We held that the collision between the two vehicles—both of which were safely and legally parked for a brief interval before the accident—was unforeseeable as a matter of law, emphasizing that the plaintiff was standing in a parking space, not an actively traveled road, and “[h]e might well have been there independent of any negligence of [the lessor], as, for example, if he were loading or unloading the trunk” (*id.* at 952). That is, although the original negligence “undoubtedly served to place the injured party at the site of the accident, the intervening act was divorced from and not the foreseeable risk associated with the original negligence” (*Derdiarian*, 51 NY2d at 315-316).

Cases holding that intervening acts break the chain of causation, as a matter of law, have one of two distinguishing features (*see Mazella*, 27 NY3d at 706). In some, the risk created by the original negligence was not the risk that materialized into harm; in other words, the intervening act was unforeseeable

(see e.g. *Campbell*, 7 NY3d at 820-821 [defendant bus driver who hit wheelchair-bound plaintiff did not proximately cause the plaintiff's injuries that subsequently resulted from his use of a defective replacement wheelchair]; *Martinez*, 48 NY2d at 820 [risk created by landlord's failure to supply hot water did not correspond to injuries suffered]). In other cases, even if there was some similarity between the risk created and the actual harm, the defendant's acts of negligence had ceased, and merely fortuitously placed the plaintiff in a location or position in which a secondary and separate instance of negligence acted independently upon the plaintiff to produce harm; the defendant's actions did not "put in motion" or significantly contribute to "the agency by which the injuries were inflicted" (1A NY PJI3d 2:70 at 412 [2016]; see e.g. *Gerrity v Muthana*, 7 NY3d 834, 835-836 [2006]). Thus, proximate cause has been found lacking, as a matter of law, where a defendant negligently caused a vehicular accident, but the first accident was completed and the plaintiff was in a position of safety when a secondary accident occurred (see *Gralton v Oliver*, 302 NY 864, 865 [1951], *affg* 277 App Div 449 [3d Dept 1950]). Conversely, a question of fact is presented for the jury where a driver's negligence contemporaneously causes another accident or where, due to a defendant's negligence, the plaintiff is left in a position susceptible to further harm (see e.g. *Tutrani v County of Suffolk*, 10 NY3d 906, 907 [2008]; *McMorrow v Trimper*, 74 NY2d 830 [1989], *affg* 149 AD2d 971 [4th Dept 1989]; see also *Commisso v Meeker*, 8 NY2d 109, 117 [1960]).

III.

Turning to the appeal at hand, the Farm concedes that the danger presented to motorists by a wandering farm animal is foreseeable insofar as a motorist's vehicle may collide directly with the animal (see *Hastings v Sauve*, 21 NY3d 122 [2013]). The Farm contends, however, that because decedent pulled her vehicle to the side of the road without striking the calf, and then made the independent and purportedly extraordinary decision to leave the safety of her vehicle, the calf's presence in the roadway and the Farm's negligence in relation thereto did not proximately cause decedent's death. Rather, the Farm maintains that its negligence merely furnished the occasion for decedent to be standing or walking in the roadway when she was struck.

In response, the Jamison defendants and plaintiff argue that decedent's actions in exiting her vehicle were reasonably

foreseeable in light of the danger presented to herself, and to other drivers, by the calf wandering in the roadway. Because decedent's actions were foreseeable, and the Farm's negligence in allowing the calf to wander was ongoing, the Jamison defendants and plaintiff contend that the causal connection was not severed, and that the question of proximate cause is one for the factfinder. We agree.

Neither of the circumstances described above, in which proximate cause may be deemed absent as a matter of law based on an intervening act, are present here. The very same risk that rendered negligent the Farm's alleged failure to restrain or retrieve its farm animal—namely, that the wandering calf would enter a roadway and cause a collision—was, in fact, the risk that came to fruition (*see Derdarian*, 51 NY2d at 316; *compare Campbell*, 7 NY3d at 820-821). That the Farm could not predict the exact manner in which the calf would cause injury to a motorist does not preclude liability because the general risk and character of injuries was foreseeable (*see Derdarian*, 51 NY2d at 317). Furthermore, although decedent had apparently stopped her vehicle without striking the calf, the animal was still loose in the roadway and, under the circumstances, the danger and risk of an accident had not yet passed. The Farm's alleged negligence—i.e., its failure to securely restrain and/or retrieve its wandering calf—was not a completed occurrence that merely fortuitously placed decedent in a relatively safe position or location where an independent and unrelated act of negligence operated to bring about her death (*see Tutrani*, 10 NY3d at 907; *compare Gralton*, 302 NY at 865). Thus, we cannot say, as a matter of law, that the Farm's negligence merely furnished the occasion for the collision or that the accident resulting in decedent's death did not flow from the Farm's negligent conduct in permitting its calf to stray.

A factfinder could reasonably conclude that decedent's actions in exiting her vehicle and entering the roadway were an entirely "normal or foreseeable consequence of the situation created by the defendant's negligence" (*Mazella*, 27 NY3d at 706, quoting *Derdarian*, 51 NY2d at 315). In *Hastings v Sauve*, we held that a property owner may be liable under ordinary principles of tort law when he or she, through negligent acts or omissions, allows a farm animal—specifically, a domestic

animal as defined in Agriculture and Markets Law § 108 (7)—to stray from the property on which the animal is kept (*see* 21 NY3d at 125-126). In *Hastings*, the plaintiff sustained injuries when her vehicle struck a cow that had wandered onto a public road (*see id.* at 124). Although we did not address the issue of proximate cause directly, an obvious assumption underlying our decision was the accepted premise that farm animals wandering unrestrained near roadways present a reasonably foreseeable danger to motorists due to their potential to interfere with traffic. As particularly relevant here, a wandering farm animal may be large enough to obstruct a roadway and, regardless of size, may impede traffic to a significant degree. Such an animal may cause substantial harm if struck by a vehicle or when a driver acts to avoid impact. In addition, a factfinder may determine that a person, under the particular circumstances of a case, may reasonably consider it safe to approach the wandering animal. Thus, a jury could reasonably conclude that it is foreseeable that a motorist who encounters such an animal on a rural roadway would attempt to remove the animal from the thoroughfare. Such conduct cannot, *as a matter of law*, be considered so “extraordinary under the circumstances, not foreseeable in the normal course of events, or independent of or far removed from the defendant’s conduct,” that it breaks the chain of causation (*Derdiarian*, 51 NY2d at 315). Thus, on this record, the Farm has failed to meet its burden of demonstrating the absence of material issues of fact, and proximate cause is a question for the factfinder.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be reversed, with costs, and defendant Drumm Family Farm, Inc.’s motion for summary judgment dismissing the Jamison defendants’ claims against it should be denied.³

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, FAHEY and GARCIA concur.

3. Our review of the Appellate Division order is “limited to those parts of the judgment that have been appealed and that aggrieve the appealing party,” and we generally may not grant affirmative relief to a nonappealing party (*Hecht v City of New York*, 60 NY2d 57, 61 [1983]; *see* 511 W. 232nd Owners Corp. v Jennifer Realty Co., 98 NY2d 144, 151 [2002]). Inasmuch as plaintiff did not seek leave to appeal to this Court, we may not, on this appeal, reinstate the complaint as asserted by non-appellant plaintiff against the Farm.

Order, insofar as appealed from, reversed, with costs, and defendant Drumm Family Farm, Inc.'s motion for summary judgment dismissing the Jamison defendants' claims against it denied.

[68 NE3d 1228, 46 NYS3d 497]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
IMMANUEL FLOWERS, Appellant.

Argued November 15, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 22, 2014. The Appellate Division affirmed a sentence of the Supreme Court, Kings County (Alan D. Marrus, J.), imposed following defendant's conviction upon a jury verdict of criminal possession of a weapon in the second degree. The Supreme Court had, after remittitur from the Appellate Division for resentencing (97 AD3d 693 [2012]), resented defendant to an indeterminate term of imprisonment of 20 years to life as a persistent violent felony offender.

People v Flowers, 121 AD3d 1014, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Mode of Proceedings Error

1. Defendant's claim on appeal from his sentence, which was identical to his original sentence, that the resentencing court, by failing to impose a lesser sentence than it originally imposed, necessarily considered improper criteria was unpreserved for appellate review and did not amount to a mode of proceedings error such that preservation was not required. The alleged error did not fall within the narrow exception to the preservation rule that is reserved for the most fundamental flaws. Nor did the resentencing court exceed its powers and impose a sentence that was illegal in a respect that was readily discernable from the trial record.

Crimes — Right to Counsel — Effective Representation — No Duty to Make Losing Argument

2. Defense counsel's failure to object to the trial court's imposition of an identical term of imprisonment at defendant's resentencing following his successful appeal of the original sentence did not render counsel's performance constitutionally deficient as the omitted challenge to the resentencing was not a winning argument. Though a presumption of vindictiveness arises where a defendant's sentence is increased following a successful appeal, a presumption has never been applied that a resentencing court relied on improper criteria where, as here, the court imposed an identical—but not greater—sentence following an appeal, and counsel can hardly be deemed ineffective for failing to pursue such an uncertain claim. In any event, a resentencing court's reimposition of an identical sentence does not indicate that it disregarded a binding appellate determination or that it necessarily relied on improper criteria. Rather, a resentencing court is entitled, on remit-

tal, to perform a fresh sentencing calculation designed to achieve its overall sentencing goal. Accordingly, even after a resentencing court disregards factors that were improperly considered, a reduction is not required so long as the remaining factors continue to justify the previously-imposed sentence. While a defendant may still obtain relief by demonstrating actual vindictiveness or continued reliance on improper criteria at resentencing, the trial court here provided on-the-record, permissible and wholly nonvindictive reasons substantiating defendant's resentence.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 831–834, 1111–1116.
CARMODY-WAIT 2d Right to Counsel §§ 184:214, 184:255,
184:274, 184:279; CARMODY-WAIT 2d Sentencing Proce-
dures § 203:209.
LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.6,
11.7, 26.8.
NY JUR 2d Criminal Law: Procedure §§ 871, 872, 885, 886,
949.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Sentence and Punish-
ment.

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term”

POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (Lawrence T. Hausman of counsel), for appellant. I. Where the Appellate Division had already found the sentencing court to have improperly relied on dismissed charges of attempted murder and assault in arriving at a sentence, the sentencing court's reimposition of the very same sentence at a post-appeal resentencing, absent reliance on any new bad facts, raised a presumption that the court, again, relied on the dismissed charges; moreover, the record independently supports the conclusion that the resentencing court considered the dismissed charges when it reimposed the same sentence. (*People v Day*, 73 NY2d 208; *People v Naranjo*, 89 NY2d 1047; *People v Van Pelt*, 76 NY2d 156; *People v Outley*, 80 NY2d 702; *People v Grant*, 94 AD3d 1139; *People v Harvey*, 76 AD3d 605; *People v*

Romero, 71 AD3d 795; *People v Reeder*, 298 AD2d 468; *People v Varlack*, 259 AD2d 392; *Matter of State of New York v Floyd Y.*, 22 NY3d 95.) II. Defense counsel provided ineffective assistance of counsel at the resentencing when she failed to object to the resentencing court's obvious continued improper reliance on the dismissed charges. (*Strickland v Washington*, 466 US 668; *People v Turner*, 5 NY3d 476; *Murray v Carrier*, 477 US 478.)

Eric Gonzalez, Acting District Attorney, Brooklyn (Avshalom Yotam, Leonard Joblove and Victor Barall of counsel), for respondent. I. Defendant's challenges to his sentence are unpreserved for appellate review and, therefore, outside the scope of this Court's jurisdiction. (*People v Harrison*, 188 AD2d 374, 82 NY2d 693; *People v Hurley*, 75 NY2d 887; *People v Lewis*, 2 NY3d 224; *People v Santiago*, 22 NY3d 900; *People v Samms*, 95 NY2d 52; *People v Nieves*, 2 NY3d 310; *People v Harris*, 101 AD3d 900; *People v Rambali*, 27 AD3d 582; *People v Ruz*, 70 NY2d 942; *People v Ocampo*, 52 AD3d 741.) II. Defendant was not deprived of the effective assistance of counsel. (*Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137; *People v Ennis*, 11 NY3d 403; *People v Caban*, 5 NY3d 143; *People v Stultz*, 2 NY3d 277; *People v Rivera*, 71 NY2d 705; *People v Modica*, 64 NY2d 828; *People v Benevento*, 91 NY2d 708; *People v Keschner*, 25 NY3d 704; *People v Howard*, 22 NY3d 388.)

OPINION OF THE COURT

GARCIA, J.

In this case, defendant Immanuel Flowers argues that the trial court erred by reimposing an identical sentence following his successful appeal. We disagree and hold, in the context of defendant's ineffective assistance claim, that defense counsel's failure to challenge defendant's resentencing did not render her performance constitutionally deficient.

Defendant was arrested in connection with a shooting. He was later charged with eight counts: attempted murder, four counts of assault, and three counts of criminal possession of a weapon. At trial, eyewitnesses testified that defendant and another individual were wrestling with a gun and, although none of the witnesses observed the shooting, gunshots were heard and defendant was seen running from the scene, tossing the gun, and fleeing in a car. The other individual, who did not testify at trial, sustained a gunshot wound to the leg.

At the close of the People's case, defendant moved to dismiss the charges. The trial court denied the motion with respect to

the three weapon possession counts, but granted it with respect to the attempted murder and four assault counts based on a lack of prima facie proof of intent to cause death or physical injury. Specifically, the court held that the People had presented sufficient evidence “that the defendant had a gun and that the defendant’s gun was the one that fired the shots that resulted in the injury to the complainant,” but that there was “no evidence at all . . . regarding the intent of the defendant.” The trial court ultimately submitted one count to the jury: criminal possession of a weapon in the second degree (Penal Law § 265.03 [3]). The jury convicted defendant.

Defendant was sentenced, as a persistent violent felony offender, to 20 years to life in prison. In imposing the sentence, the court noted that, because of his “substantial criminal record of violence,” defendant had “a very poor prognosis as far as his ability to function in the community.” The court also noted “the impact” that the crime “had on the victim,” as the case “involved a shooting in which the victim was shot in the leg.”

On appeal, the Appellate Division modified the judgment “as a matter of discretion in the interest of justice” by vacating defendant’s sentence and remitting for resentencing (*People v Flowers*, 97 AD3d 693 [2d Dept 2012]). The Court held, among other things, that “the remarks of the sentencing court demonstrated that it improperly considered a crime that was dismissed at trial for lack of legally sufficient evidence as a basis for sentencing” (*id.* at 693).

Defendant later appeared for resentencing before the same judge who imposed his original sentence. Defense counsel argued that defendant’s prior record did “not justify an upward departure from th[e] minimum.” Counsel also provided the court with a copy of defendant’s prison records which, counsel argued, demonstrated “improved behavior.” The People argued that the original sentence imposed by the court—20 years to life—should stand.

Supreme Court again sentenced defendant to an indeterminate term of 20 years to life. The court noted that defendant “had three prior felony convictions” as well as a prior parole violation, and that the probation report characterized defendant as “a significant risk to the safety of the community.” With respect to the trial evidence, the court stated that “defendant was seen throwing a gun away after that gun had been fired,” and that “[t]he evidence established that the gun had two spent

shell casings and that there were numerous other rounds in the gun which could have been fired from [it].” Defense counsel did not object.

Defendant appealed, arguing that the court had again improperly considered the dismissed counts. Defendant also argued that his counsel had been ineffective for failing to object to the court’s imposition of the same term of imprisonment at his resentencing.

The Appellate Division unanimously affirmed (*People v Flowers*, 121 AD3d 1014 [2d Dept 2014]). The Court rejected “defendant’s contention that the resentence imposed was improperly based on counts which were dismissed at trial for lack of legally sufficient evidence” as both unpreserved and without merit (*id.* at 1014). With regard to defendant’s ineffective assistance claim, the Court held that “defense counsel’s failure to register an objection to this claimed error at resentencing did not constitute ineffective assistance of counsel, as defense counsel could not have been ineffective for failing to advance an argument that had no chance of success” (*id.*).

A Judge of this Court granted defendant’s application for leave to appeal (25 NY3d 1072 [2015]). We affirm.

On appeal, defendant claims that, by failing to impose a lesser sentence than it originally imposed, the resentencing court necessarily considered improper criteria—namely, the dismissed charges. While defendant concedes that this claim is unpreserved, he contends that it should be treated as a mode of proceedings error exempted from the preservation rule. Defendant also contends that he was denied effective assistance of counsel because his attorney failed to raise an objection at resentencing.

[1] Initially, we reject defendant’s contention that the court’s reimposition of the same sentence amounts to a mode of proceedings error such that preservation was not required; the alleged error does not fall within this “narrow exception” to the preservation rule that is “reserved for the most fundamental flaws” (*People v Becoats*, 17 NY3d 643, 650-651 [2011]). Nor did the court “exceed[] its powers and impose[] a sentence that is illegal in a respect that is readily discernable from the trial record” (*People v Nieves*, 2 NY3d 310, 315 [2004]). Defendant was therefore required to preserve his argument at resentencing in order to raise it on appeal and, because he failed to do so, his claim is unreviewable (CPL 470.05 [2]).

Defendant's ineffective assistance claim is premised upon this single alleged error—counsel's failure to object at resentencing. In the "rare" case, "a single failing in an otherwise competent performance" may be "so egregious and prejudicial as to deprive a defendant of his constitutional right" to a fair trial (*People v Turner*, 5 NY3d 476, 480 [2005] [citations and internal quotation marks omitted]). To rise to that level, the alleged error must "involve an issue that is so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it, and it must be evident that the decision to forgo the contention could not have been grounded in a legitimate trial strategy" (*People v Keschner*, 25 NY3d 704, 723 [2015]). Counsel will not be deemed ineffective for failing to pursue an argument that has "little or no chance of success" (*People v Caban*, 5 NY3d 143, 152 [2005] [citation and internal quotation marks omitted]). Defendant's ineffective assistance claim must therefore be rejected if "it is clear to the Court that the objection or contention that was omitted would not have been a 'winning argument'" (*Keschner*, 25 NY3d at 723).

[2] Defendant's claim concerning his resentencing is not a winning argument. Defendant first contends that the court's failure to reduce his sentence raised a presumption that the court relied on improper criteria. Invoking *North Carolina v Pearce* (395 US 711 [1969]) and *People v Van Pelt* (76 NY2d 156 [1990])—cases establishing a presumption of vindictiveness where a defendant's sentence is increased following a successful appeal—defendant claims that a presumption should similarly apply where, absent new bad facts, the court reimposes the same term of imprisonment at a post-appeal resentencing.

Irrespective of its ultimate merit, this argument would require a novel and unprecedented statement of law; we have never applied a presumption that a sentencing court "relied on improper criteria" where, as here, the court imposed an identical—but not greater—sentence following an appeal. Counsel can hardly be deemed ineffective for failing to pursue such an uncertain claim (*People v Feliciano*, 17 NY3d 14, 28 [2011]), particularly where the Appellate Division unanimously determined that it "had no chance of success" (121 AD3d at 1014).

In any event, the presumption of vindictiveness applies only to "defendants who have won appellate reversals" who are "given *greater* sentences . . . than were imposed after their

initial convictions” (*People v Young*, 94 NY2d 171, 176 [1999] [emphasis added]). The presumption is inapplicable where, as here, the same term of imprisonment is imposed upon resentencing.

Defendant’s argument to the contrary is grounded in a fundamental misapprehension of the nature of sentencing determinations. Contrary to defendant’s claim, the sentencing court’s reimposition of an identical sentence does not indicate that it “disregard[ed] a binding appellate determination” or that it necessarily relied on improper criteria. Rather, a resentencing court is entitled, on remittal, to perform a fresh sentencing calculation designed to “achieve its over-all sentencing goal” (*Young*, 94 NY2d at 180); the original sentence does not somehow assign “permanent” weight to any sentencing factor. Sentencing courts—and resentencing courts—must be given sufficient latitude to determine the relevant factors to be considered as well as the relevant weight to assign each factor. Accordingly, even after a sentencing court disregards factors that were improperly considered, a reduction is not required so long as the remaining factors continue to justify the previously-imposed sentence. Given “the State’s interest in preserving the flexibility and discretion of sentencing courts” (*Van Pelt*, 76 NY2d at 162-163), a presumption is unwarranted under these circumstances.

Even in the absence of a presumption, a defendant may still obtain relief by demonstrating actual vindictiveness or continued reliance on improper criteria at resentencing (*Texas v McCullough*, 475 US 134, 138 [1986]). On this record, however, no such retaliatory conduct is apparent, nor is there any indication that the resentencing court improperly relied on dismissed charges. The facts considered by the court at resentencing were not improper insofar as they were not facts “exclusive to” the dismissed offenses (*People v Horne*, 97 NY2d 404, 413 [2002]). Rather, the evidence that the court mentioned during resentencing was directly relevant to the crime of conviction—second-degree criminal possession of a weapon (Penal Law § 265.03). Moreover, the court’s earlier dismissal of the attempted murder and assault counts was based purely on its determination that the evidence was legally insufficient with regard to defendant’s intent; that holding cast no doubt on the sufficiency or reliability of the proof that defendant had fired the gun.

In this case, the resentencing court provided on-the-record, permissible, and wholly nonvindictive reasons substantiating

defendant's sentence. Those reasons included defendant's three prior felony convictions, a prior parole violation, and a probation report characterizing defendant as "a significant risk to the safety of the community." The record therefore does not evince actual reliance on improper factors, or the type of retaliatory, vindictive conduct that a prophylactic presumption is designed to protect against. Because defendant's resentencing claim fails on its merit, defense counsel cannot be deemed ineffective for declining to assert it.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein and Fahey concur.

Order affirmed.

[68 NE3d 1242, 46 NYS3d 511]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT PATTERSON, Appellant.

Argued November 15, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 5, 2015. The Appellate Division order, insofar as appealed from, affirmed an amended judgment of the Supreme Court, Bronx County (Margaret L. Clancy, J.), which had convicted defendant, upon a jury verdict, of robbery in the second degree and burglary in the second degree.

People v Patterson, 128 AD3d 424, affirmed.

HEADNOTES

Crimes — Appeal — Appellate Division Review Power

1. In a criminal prosecution in which the trial court admitted evidence of unverified cell phone subscriber information for the nonhearsay purpose of showing that the particular cell phone was activated by someone who provided identifying information linked to defendant, thereby corroborating the victim's identification of defendant in a lineup, the Appellate Division did not exceed its authority under CPL 470.15 (1) when it affirmed that evidentiary ruling, as it did not rule that the subscriber information was admissible based upon a ground that was different from that on which the trial court relied. The Appellate Division explained that although the purchaser of the phone was not under a business duty to provide the pedigree information, that requirement of the business records exception to the hearsay rule did not apply, because the initial declaration was independently admissible as circumstantial evidence of defendant's identity as the purchaser. Both courts ultimately concluded that the subscriber information was not hearsay because it was not offered for the truth of the facts asserted in the statement.

Crimes — Evidence — Admissibility of Subscriber Information in Cell Phone Records — Nonhearsay Purpose

2. In the prosecution of defendant for robbery and burglary for an incident in which an accomplice to the crime received cell phone calls from a cell phone number for which the person who activated the phone provided subscriber information that included a name, birth date and address associated with defendant, the subscriber information, while contained in a business record and not verified by the cell phone company, was properly admitted at trial for a nonhearsay purpose other than simply completing the narrative. Although the contents of the statements in a record are not admissible for the truth of the matters asserted therein under the business records exception to the hearsay rule (CPLR 4518 [a]) when, as here, the informant was not acting pursuant to a business duty to report, the contents of the rec-

ord nevertheless may be used for a nonhearsay purpose. Here, the subscriber information was not hearsay because it was not admitted to prove the truth of the matters asserted therein, i.e., that an individual named “Darnell Patterson” was the subscriber of the cell phone account used at the time of the robbery, or that “Darnell” had a particular date of birth that matched that of defendant or lived at a particular address that was associated with defendant. Rather, the information was admitted for the limited purpose of showing that the individual who activated the cell phone number identified himself as Darnell Patterson and gave certain pedigree information that was otherwise associated with defendant. The evidence was ultimately relevant to help the jury assess the reliability of the victim’s identification of defendant as the perpetrator, and for consideration as a piece of the puzzle, which, considered along with other relevant evidence, gave rise to an inference that defendant was the user of the phone.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Appellate Review §§ 703, 705; AM JUR 2d Evidence § 1255.

CARMODY-WAIT 2d Particular Types of Evidence §§ 194:87–194:92; CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:1, 207:33.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 24.4, 27.2, 27.5.

NY JUR 2d Criminal Law: Procedure §§ 2173, 2178, 3687, 3688.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Business Records.

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Query: “Appellate Division” /5 authority & non-hearsay /s record

POINTS OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Ellen Dille* of counsel), for appellant. The Appellate Division erred in holding that subscriber information from prepaid cell phone records, which was admitted without limitation to prove that appellant and an accomplice were the accounts’ subscribers, was independently admissible, where that argument was not addressed by the trial court and the information, which the subscribers were under no duty to provide and which

the service providers did not verify, was inadmissible hearsay. (*Johnson v Lutz*, 253 NY 124; *People v Boswell*, 167 AD2d 928; *People v Johnson*, 237 AD2d 971; *People v Concepcion*, 17 NY3d 192; *People v Romero*, 91 NY2d 750; *People v Yusuf*, 19 NY3d 314; *People v Ingram*, 18 NY3d 948; *People v LaFontaine*, 92 NY2d 470; *People v Goldstein*, 6 NY3d 119; *Nucci v Proper*, 95 NY2d 597.)

Darcel D. Clark, District Attorney, Bronx (Ryan P. Mansell, Marianne Stracquadanio and Nancy Killian of counsel), for respondent. The trial court properly admitted subscriber information from prepaid phone records, and, in any event, any allegedly improper hearsay was harmless. (*People v Concepcion*, 17 NY3d 192; *People v LaFontaine*, 92 NY2d 470; *People v Nicholson*, 118 AD3d 1423; *People v Huertas*, 75 NY2d 487; *People v Santiago*, 52 NY2d 865; *Johnson v Lutz*, 253 NY 124; *Matter of Leon RR*, 48 NY2d 117; *People v Kennedy*, 68 NY2d 569; *People v Ortega*, 15 NY3d 610; *Kelly v Wasserman*, 5 NY2d 425.)

OPINION OF THE COURT

STEIN, J.

In this appeal, we are asked to determine whether the Appellate Division properly upheld the admission of subscriber information in prepaid cell phone records as nonhearsay evidence located within a business record. Because the subscriber information was not introduced for the truth of the matters asserted therein, the courts below properly determined that it was independently admissible.

I.

Defendant was convicted, after a jury trial, of second-degree burglary and robbery. The charges arose out of an incident in which defendant and another man entered the victim's bedroom wearing bandanas and carrying pistols after defendant's accomplice, Daichele Goree—who went to the victim's apartment by invitation—received a series of cell phone calls while she was there. The victim testified that he could see defendant's forehead, eyebrows, the bridge of his nose, his nostrils and the top of his ears. The men directed the victim to get on the ground, taped his wrists, mouth and ankles, and took the victim's cash and various items of personal property. The victim freed himself and called 911, but he was unable to give the 911 operator a description of the men apart from stating that they were black, wore bandanas and carried guns.

When police arrived shortly thereafter, the victim gave Goree's phone number to a detective, and provided a very general description of the robbers as young black men, about six feet tall, with red bandanas up to their noses. The detective subpoenaed Goree's phone records and discovered that one of three numbers called during the time frame of the incident was connected to a Sprint/Nextel account registered to a "Darnell Patterson," with an address and date of birth that were associated with defendant in police databases. The victim subsequently identified defendant in a lineup as one of the assailants and defendant was arrested; the date of birth that he provided to police upon his arrest was the same as that set forth in the Sprint subscriber information.

Prior to trial, defendant moved to preclude the People from offering into evidence the subscriber information portion of the Sprint records, arguing that it constituted hearsay within hearsay. Defendant conceded that the log of the phone calls was admissible under the business records exception, but argued that the subscriber information was not admissible pursuant to that exception because the subscriber who initially provided the information had no duty to report it accurately. Because the records stated on their face that they could be inaccurate or incomplete, defendant argued that they should be precluded. The People conceded that the subscriber information did not prove that the person who registered the phone was Darnell Patterson or that defendant was in the room when the robbery took place, but maintained that the evidence was admissible for two limited purposes: to complete the narrative; and to show that the phone number that Goree called around the time of the robbery had been registered by someone using the name Darnell Patterson, with defendant's address and birth date.

Supreme Court concluded that the subscriber information was not admissible merely for the purpose of "complet[ing] the narrative," given that the People sought to argue that the information corroborated the victim's eyewitness identification of defendant. However, the court ruled that it would admit the subscriber information as a "business record[]" through a Sprint representative's testimony that it was Sprint's regular course of business to make and keep these records, but that Sprint did not verify the information and, therefore, "disclaim[ed] any reliability." The court recognized that, because the subscriber had no business duty to provide accurate

information, the business records exception to the hearsay rule did not apply, but concluded that the subscriber history was admissible “for the purpose of showing that this is the information that was given, the fact that [the] information was given at a time that well preceded the crime itself.” That is, the court determined that the subscriber information was admissible, not for the truth of the matters asserted therein, but for the nonhearsay purpose of showing that this particular cell phone was activated by someone who supplied identifying information linked to defendant, thereby providing corroborating evidence for the victim’s identification of defendant in a lineup.

At trial, defendant repeated his objections to the Sprint cell phone records and also argued that the subscriber information on Goree’s T-Mobile cell phone records should not be received in evidence. The court overruled the objections. As relevant here, representatives of both Sprint and T-Mobile testified that the records containing subscriber information for prepaid phones are made at the time the subscriber activates the phone, the call logs are recorded or cataloged at or around the time the calls are made, and the person recording all of the information contained in the records has a business duty to record it fairly, accurately and completely, but the subscriber information is not verified. The Sprint representative also testified that, shortly before and after the time of the robbery, the Sprint number in question received eight calls from Goree’s number and made three calls to that number.

In addition, there was evidence that, on the night of the robbery, the Sprint number dialed or received calls from five other numbers. A New York City Department of Corrections investigator thereafter testified that, during defendant’s incarceration while awaiting trial on the instant charges, he called those same five numbers 1,371 times, 48 times, 31 times, 58 times and 103 times, respectively. The investigator also testified that the date of birth associated with defendant’s Department of Corrections identification number was the same as that included in the Sprint subscriber information.

The jury acquitted defendant of first-degree robbery and burglary, and grand larceny, but convicted him of second-degree robbery and burglary. On defendant’s appeal, the Appellate Division affirmed, concluding that the subscriber information—which it called “pedigree information”—“did not constitute assertions of fact” but was “properly admitted as circumstantial evidence of defendant’s identity as the purchaser of the phone,”

i.e., “that the declarant was, in all likelihood, defendant” (128 AD3d 424, 425 [1st Dept 2015]). The Court explained that, “[a]lthough the purchaser of the phone was not under a business duty to provide the pedigree information, that requirement of the business records exception to the hearsay rule did not apply, because the initial declaration was independently admissible” (*id.* at 425).

A Judge of this Court granted defendant leave to appeal (25 NY3d 1205 [2015]).

II.

[1] As a threshold matter, we reject defendant’s argument that the Appellate Division exceeded its authority under CPL 470.15 (1), which “bars that court from affirming a judgment, sentence or order on a ground not decided *adversely* to the [defendant] by the trial court” (*People v Concepcion*, 17 NY3d 192, 195 [2011]; see *People v LaFontaine*, 92 NY2d 470, 474 [1998]). Recently, in *People v Nicholson* (26 NY3d 813 [2016]), this Court cautioned against “a flawed and overly narrow construction of the statutory limits of 470.15 (1) as applied to the Appellate Division’s review of the trial court’s evidentiary ruling[s]” (*id.* at 825), particularly where the “Appellate Division [does not] render[] a decision on grounds explicitly different from those of the trial court, or on grounds that were clearly resolved in a defendant’s favor—the type of appellate overreaching prohibited by CPL 470.15 (1)—[but affirms an] evidentiary ruling on the ground relied on by the trial court” (*id.* at 825-826 [citation omitted]). We conclude that, contrary to defendant’s contention, the Appellate Division did not rule that the subscriber information was admissible based upon a ground that was different from that on which the trial court relied. Rather, both courts ultimately concluded that the subscriber information was not hearsay because it was not “‘offered for the truth of the fact[s] asserted in the statement’” (*People v Goldstein*, 6 NY3d 119, 127 [2005], *cert denied* 547 US 1159 [2006], quoting *People v Romero*, 78 NY2d 355, 361 [1991]) and, thus, the evidence was independently admissible. Under these circumstances, the Appellate Division did not exceed its authority under section 470.15 (1) and there is no *LaFontaine/Concepcion* bar to our review.

III.

[2] Turning to the merits, we agree with the courts below that the subscriber information was properly admitted for a

nonhearsay purpose other than simply completing the narrative. Therefore, defendant's argument that the information would not be admissible under the business records exception—while technically correct because the subscriber was not under a duty to report his or her “pedigree” information correctly when activating the prepaid cell phone accounts—is misplaced.

CPLR 4518 (a)* sets forth the business records exception to the hearsay rule:

“Any writing or record, whether in the form of an entry in a book or otherwise, made as a memorandum or record of any act, transaction, occurrence or event, shall be admissible in evidence in proof of that act, transaction, occurrence or event, if the judge finds that it was made in the regular course of any business and that it was the regular course of such business to make it, at the time of the act, transaction, occurrence or event, or within a reasonable time thereafter.”

More than 85 years ago, in *Johnson v Lutz* (253 NY 124 [1930]), this Court imposed an additional requirement for admissibility that is not set forth in the statute—specifically, that “[u]nless some other hearsay exception is available . . . , admission may only be granted where it is demonstrated that the informant has personal knowledge of the act, event or condition and he [or she] is under a business duty to report it to the entrant” (*Matter of Leon RR*, 48 NY2d 117, 123 [1979]; see *Cover v Cohen*, 61 NY2d 261, 274 [1984]; *Johnson v Lutz*, 253 NY 124, 127-128 [1930]; see also Vincent C. Alexander, Practice Commentaries, McKinney's Cons Laws of NY, Book 7B, CPLR C4518:1; Jerome Prince, Richardson on Evidence § 8-307 [Farrell 11th ed 1995]).

Pursuant to this rule, “[i]f the informant was not under a business duty to impart the information, but the entrant was under a business duty to obtain and record the statement, the entry is admissible to establish merely that the statement was made . . . [but] another hearsay exception is necessary in order to receive the statement *for its truth*” (*Hayes v State of New York*, 50 AD2d 693, 693-694 [1975] [emphasis added], *affd on op below* 40 NY2d 1044 [1976]). That is, although the contents

* CPLR 4518 (a) is applicable to criminal proceedings pursuant to CPL 60.10 (see *People v Ortega*, 15 NY3d 610, 617 [2010]; *People v Kennedy*, 68 NY2d 569, 575 [1986]).

of the statements in a record are not admissible for the truth of the matters asserted therein under the business records exception to the hearsay rule when the informant was not acting pursuant to a business duty to report, “the contents of the record [nevertheless] may be used for a nonhearsay purpose” (Jerome Prince, *Richardson on Evidence* § 8-307 at 606 [Farrell 11th ed 1995]; see *Splawn v Lextaj Corp.*, 197 AD2d 479, 480 [1st Dept 1993], *lv denied* 83 NY2d 753 [1994] [hotel logbook entries reporting burglaries not admissible to prove the crimes occurred but permitted to show hotel had notice of activity]; *People v Blanchard*, 177 AD2d 854, 855 [3d Dept 1991], *lv denied* 79 NY2d 918 [1992] [police blotter entry showing phone call made by someone purporting to be defendant’s father properly received not for its truth, but to impeach father, who testified that he did not make the call]; *Donohue v Losito*, 141 AD2d 691, 691-692 [2d Dept 1988], *lv denied* 72 NY2d 810 [1988] [portion of police report indicating trial witness stated that defendant had punched plaintiff in the face not admissible for its truth under CPLR 4518, but admissible to impeach witness]; see also Vincent C. Alexander, *Practice Commentaries*, McKinney’s Cons Laws of NY, Book 7B, CPLR C4518:1).

Consistent with these principles, the United States Court of Appeals for the Second Circuit concluded in *United States v Lieberman* (637 F2d 95, 100-101 [2d Cir 1980]) that a hotel guest registration card was not admissible for its truth under the business records exception to the rule against hearsay contained in Federal Rules of Evidence rule 803 (6) because the hotel employee registering guests did not verify the guests’ identity. Nevertheless, that court concluded that the registration card was “admissible as non-hearsay, simply to show that someone calling himself” the same name as a man who happened to be arrested by DEA agents while loading 46 cartons of marihuana into a van belonging to the defendant’s moving company “registered in the hotel” (*id.* at 101). The registration card provided “a foundation for further evidence that from [the individual’s] room a call was made to [defendant’s] unpublished telephone number” (*id.*). The defendant in *Lieberman* was ultimately convicted of crimes involving conspiracy to distribute marihuana. “To provide evidence that the jury should infer that” the person calling defendant was the same individual who was arrested, “the government presented the testimony of the arresting . . . agent [that] . . . the address he had read on the driver’s license carried by [the individual] . . . was the

same as that written on the hotel registration card” (*id.*). The Second Circuit concluded that “it was proper to receive the hotel registration card for the limited non-hearsay purpose, with other evidence admitted from which the jury could infer that the hotel card spoke the truth” (*id.*; see *United States v Bell*, 833 F2d 272, 276 [11th Cir 1987], *cert denied* 486 US 1013 [1988] [hotel card admissible for nonhearsay purpose of showing someone using defendant’s name and address registered at inn]; *Commonwealth v Siny Van Tran*, 460 Mass 535, 550-551, 953 NE2d 139, 155-156 [2011] [airline passenger manifest and ticket inquiry admissible for nonhearsay “purpose of showing that the statements were made by someone, even, perhaps, a person being untruthful, who held (himself or herself) out to be” the defendant]).

IV.

Similarly here, the subscriber information was not hearsay, although it was contained within business records, because it was not admitted to prove the truth of the matters asserted therein. That is, the subscriber information was not offered to prove that “Darnell Patterson” and Goree were the subscribers of the cell phone accounts used at the time of the robbery, or that “Darnell” had a particular date of birth that matched that of defendant and lived at a particular address that was associated with defendant. Indeed, it was simply irrelevant whether that information was true or false and the cell phone company representatives testified that the evidence was not verifiable. Rather, as in *Lieberman*, the information was admitted for the limited purpose of showing that the individuals who activated the cell phone numbers identified themselves as Darnell Patterson and Goree, and that “Darnell Patterson” gave certain pedigree information that was otherwise associated with defendant.

In other words, the purpose of the subscriber information was not to prove that “Darnell Patterson,” or even defendant, had activated the prepaid Sprint account, but to show that the account had some connection to defendant—regardless of how tenuous—because such a connection would be helpful to the jury in assessing the reliability of the victim’s identification of defendant as the perpetrator. The evidence was ultimately relevant to the People’s argument to the jury that it was not coincidental that *someone*—regardless of who—provided pedigree information associated with defendant in activating

the cell phone. Under the circumstances of this case, the subscriber information was not admitted for its truth, but for the jury to consider as a piece of the puzzle—along with evidence that the prepaid Sprint account called the same numbers that defendant did in prison, that the date of birth given by defendant when arrested matched that in the subscriber information, that the address given in the subscriber information was associated with defendant in police databases, and that defendant had the name Darnell tattooed on his hand—that gave rise to an inference that defendant was the user of the phone, although perhaps not the subscriber, a subtle but critical distinction for purposes of the evidentiary issue before us.

We, therefore, conclude that the subscriber information was properly admitted for a limited, nonhearsay purpose. Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed.

RIVERA, J. (concurring). I agree with the majority that the Appellate Division should be affirmed, but on different grounds. Based on our existing case law, the subscriber information was admissible for the nonhearsay purpose of completing the narrative leading to defendant's arrest. To the extent the court erroneously permitted use of the evidence beyond this limited purpose, the error was harmless. Therefore, I concur only in the result.

This Court has upheld the admission of evidence otherwise excludable for “the relevant, nonhearsay purpose of explaining the investigative process and completing the narrative of events leading to the defendant's arrest” (*People v Ludwig*, 24 NY3d 221, 231 [2014]; *People v Till*, 87 NY2d 835, 837 [1995 mem] [permitting evidence of uncharged crimes to provide background explanation of “interwoven events,” as an exception to the *Molinuex* ban on such evidence]; see also *People v Tosca*, 98 NY2d 660, 661 [2002 mem] [nonhearsay background information about how and why police pursued and confronted defendant properly admitted with limiting instructions]). I continue to believe that this “completion of the narrative” rationale can be applied too expansively, such that it allows the introduction of inadmissible and overly-prejudicial evidence (see generally *People v Morris*, 21 NY3d 588, 600-601 [2013, Rivera, J., dissenting] [the limited “completing the narrative” exception should not apply to evidence of uncharged crimes

absent ambiguity of material facts “or where the ambiguity can be addressed ‘by far less prejudicial means’ than the admission of the uncharged crimes evidence”]; *Ludwig*, 24 NY3d at 235 [Lippman, Ch. J., dissenting] [“The majority eviscerates the hearsay rule . . . by countenancing the admission of prior consistent statements that provide a ‘narrative’ or ‘investigative purpose’ even where the investigative purpose is not in issue”]). Nevertheless, the exception applies to defendant’s case.

Here, the People argued, *inter alia*, that the primary purpose of admitting the subscriber information was to complete the narrative, and the trial testimony supports this argument. The People established at trial that the police obtained the number for the phone at issue by identifying which numbers Ms. Goree called during the robbery. From there, detectives obtained the subscriber information for that phone, and this information pointed them to Darnell Patterson. The detectives linked the name from the subscriber information to defendant, which then permitted the detectives to identify defendant as a suspect for the crime. As such, the subscriber information was admissible to explain the events leading to his arrest.

The majority opines, however, that this statement is a “piece of the puzzle” that the jury may use “in assessing the reliability of the victim’s [eyewitness] identification” and a basis for the inference the “defendant was the user of the phone” (majority op at 552-553). The majority concludes that this is an appropriate nonhearsay use for the statement, since it was introduced to show that the phone had some connection to the defendant and not that the phone belonged to Darnell Patterson (*id.* at 552). The majority essentially extends the narrative exception for the hearsay at issue here beyond an explanation of the police investigation and defendant’s capture, for the purpose of establishing that defendant was the user of the phone. Of course, if defendant was the user and not the subscriber, then the subscription evidence was irrelevant to establish—circumstantially and inferentially—defendant’s criminal conduct. On the facts of this case, the subscriber would be irrelevant if that person were not the defendant. Indeed, the prosecutor went to great lengths to connect defendant to the person listed as the subscriber. The People’s evidence established that the subscriber name was defendant’s known alias, the subscriber’s date of birth was defendant’s, and the subscriber’s address was the defendant’s. Moreover, the court admitted the defendant’s tattoo only because it matched the subscriber’s name.

In comparison, if the subscriber information is introduced to complete the narrative, the jury need not accept its content as true to properly consider the evidence. The subscriber information demonstrates how the police identified defendant as a suspect for the robbery and is a link in the chain for the jury to consider in assessing the entirety of the police investigation. Admission or use for any other purpose was error. However, given the facts of this case, including the eyewitness testimony of the victim and the matching phone records between the cell phone and defendant's Rikers Island calls, any such error was harmless (*see People v Crimmins*, 36 NY2d 230, 241-242 [1975]).

Chief Judge DiFIORE and Judges PIGOTT, ABDUS-SALAAM, FAHEY and GARCIA concur; Judge RIVERA concurs in result in a separate concurring opinion.

Order, insofar as appealed from, affirmed.

[69 NE3d 604, 46 NYS3d 817]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PRINCE CLARK, Appellant.

Argued November 16, 2016; decided December 20, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered April 29, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Gustin L. Reichbach, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and assault in the second degree.

People v Clark, 129 AD3d 1, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Failure to Present Justification Defense in Favor of Misidentification Defense Approved by Defendant

1. The failure of trial counsel in defendant's murder prosecution to present a justification defense did not deprive defendant of the effective assistance of counsel, where defendant had rejected a justification defense outright and counsel instead vigorously pursued a defense of misidentification in accordance with defendant's assertion of innocence on all charges. The right to effective assistance of counsel includes defendant's right to counsel's beneficial exercise of professional skill and judgment as defendant's advocate. This was not a case where defendant's chosen defense theory was self-destructive and ensured conviction, nor did the path taken by counsel undermine his ability to deploy professional skill and expertise in presenting the chosen defense. For the same reasons, counsel was not ineffective for objecting to any charge that would have presented justification to the jury as a response to the jury's request for further instructions. Moreover, in contrast to a justification defense, the misidentification theory had the potential to achieve defendant's acquittal on all charges. Therefore, counsel's efforts to achieve defendant's stated objective by solely advancing the misidentification defense was consistent with strategic decisions of a reasonably competent attorney.

Crimes — Right to Counsel — Effective Representation — Failure to Object to Clearing of Courtroom during Voir Dire

2. Defendant was not deprived of the effective assistance of counsel where trial counsel in defendant's murder prosecution failed to object when the court ordered the courtroom cleared during voir dire to ensure seating for the prospective jurors. The right to a public trial has long been regarded as a fundamental privilege of the defendant in a criminal prosecution. However, at the time of defendant's trial, lower courts relied on Court of Appeals precedent to uphold the practice of excluding the public and family members where limited seating required it, without consideration of alternatives. Given the state of the law at the time, counsel was not ineffective for failing to object to a judicially sanctioned practice.

Crimes — Appeal — Preservation of Issue for Review — Meaningful Response to Jury Note

3. In a murder prosecution in which defendant rejected a justification defense and the jury sent a note during deliberations inquiring whether the “intent to kill” was negated if the victim “initiated the struggle and [defendant] was acting defensively,” defendant failed to preserve for appellate review his claim that the trial court, by not instructing the jury on the defense of justification, failed to meaningfully respond to the note. The trial court informed the parties that it would respond to the note by instructing the jurors that justification and self-defense were not issues before them, and defense counsel specifically objected to the court making any reference to self-defense or advising the jury that that issue was not before them. Where counsel has meaningful notice of the content of a jury note and of the trial court’s response, or lack thereof, to that note, the court’s alleged violation of the meaningful response requirement does not constitute a mode of proceedings error, and counsel is required to preserve any claim of error for appellate review. Here, counsel objected to the response precisely because the court mentioned justification and self-defense, not, as defendant argued on appeal, on the grounds that the court should have instructed the jury on the defense of justification. Thus, counsel did not preserve the specific objection raised on appeal.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Appellate Review § 575; AM JUR 2d Criminal Law §§ 1111–1116.
CARMODY-WAIT 2d Right to Counsel §§ 184:214, 184:255–184:257; CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:18, 207:27, 207:29.
LAFAYE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 11.6, 11.7, 24.1, 24.9, 27.5.
NY JUR 2d Criminal Law: Procedure §§ 871–873, 885, 886, 889, 892, 919, 927, 939, 3556, 3570, 3572.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Attorneys; Justification or Excuse.

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justification & strategic

POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (De Nice Powell of counsel), for appellant. I. Appellant was denied

the effective assistance of counsel when (1) counsel and the court, mistakenly believing that appellant had the sole authority to make the classic tactical decision of what defenses to raise, deferred to appellant's wish not to present the justification defense counsel knew should be presented; and (2) counsel failed to protect appellant's fundamental right to a public trial. (*Kirby v Illinois*, 406 US 682; *Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137; *People v Henry*, 95 NY2d 563; *Taylor v Illinois*, 484 US 400; *United States v Cronin*, 466 US 648; *Powell v Alabama*, 287 US 45; *Johnson v Zerbst*, 304 US 458; *McMann v Richardson*, 397 US 759; *Jones v Barnes*, 463 US 745.) II. The court violated its duty to respond meaningfully to the jury's request for instruction on the law when, in answering its request for guidance on how justification affected appellant's culpability for murder, it told jurors not to concern themselves with the defense and to focus instead solely on whether he intended to kill the deceased. (*Andres v United States*, 333 US 740; *People v Ahmed*, 66 NY2d 307; *People v Ciccio*, 47 NY2d 431; *People v Almodovar*, 62 NY2d 126; *People v Malloy*, 55 NY2d 296; *People v Lourido*, 70 NY2d 428; *People v Gonzalez*, 293 NY 259; *People v Woods*, 290 AD2d 346; *People v Henning*, 271 AD2d 813; *People v McManus*, 67 NY2d 541.)

Eric Gonzalez, Acting District Attorney, Brooklyn (Sholom J. Twersky and Leonard Joblove of counsel), for respondent. I. Defendant received effective assistance of counsel. (*People v Benevento*, 91 NY2d 708; *People v Wragg*, 26 NY3d 403; *People v Hobot*, 84 NY2d 1021; *People v Satterfield*, 66 NY2d 796; *People v Baldi*, 54 NY2d 137; *Strickland v Washington*, 466 US 668; *People v Rivera*, 71 NY2d 705; *People v Caban*, 5 NY3d 143; *People v Stultz*, 2 NY3d 277; *Jones v Barnes*, 463 US 745.) II. Defendant has failed to preserve his claim regarding the court's response to the jury's note, and the alleged error does not fall within the exception to the preservation requirement for "mode of proceedings" errors. (*People v Becoats*, 17 NY3d 643; *People v Kelly*, 5 NY3d 116; *People v Kisoan*, 8 NY3d 129; *People v Santi*, 3 NY3d 234; *People v Reynoso*, 73 NY2d 816; *People v Watts*, 57 NY2d 299; *People v Medor*, 39 AD3d 362; *People v Medina*, 101 AD3d 453; *People v Rodriguez*, 52 AD3d 399; *People v DeGina*, 72 NY2d 768; *People v Palladino*, 47 AD3d 491.)

OPINION OF THE COURT

RIVERA, J.

On defendant Prince Clark's appeal challenging his convic-

tion of murder in the second degree (Penal Law § 125.25 [1]) and assault in the second degree (Penal Law § 120.05 [2]), only defendant's claim of ineffective assistance of counsel is properly before us. With respect to that challenge, we conclude defendant was not denied a fair trial when his attorney pursued a defense of misidentification in accordance with defendant's assertion of innocence on all charges.

Defendant was convicted upon a jury verdict for the murder of Jamel Wisdom and assault with a deadly weapon of Gamard Talleyrand. According to the trial evidence, defendant was with his friend KM and his cousin and codefendant Michael Morrison, when Wisdom, Talleyrand, and several other men confronted defendant on the street, calling him names, and pushing and kicking him. During the attack KM heard defendant call out that someone had a knife and "they are going to cut me." However, KM did not see a knife and no knife was ever recovered from the scene. After several minutes, defendant, followed by his attackers, headed towards his apartment building, located a short distance away.

The People admitted into evidence surveillance video of defendant's building from the time of the attack as proof of defendant's criminal liability. Talleyrand, despite knowing defendant, testified that he was unable to identify defendant in the video, but KM identified herself, Morrison, and defendant. The People argued, based in part on KM's testimony, that defendant was the man depicted in the video, which captured the shooting of the victim in the lobby of defendant's building. Accordingly, we refer to this man as defendant, acknowledging that defendant maintained at trial that he is not the person in the video.

The surveillance video depicts Morrison and defendant entering the building, walking up the stairs, and then returning to the lobby and exiting together a few minutes later. The two men can then be seen in front of the building where Morrison passes something to defendant, which the People maintained was a gun. Defendant then walked towards the group that had previously attacked him, exiting the camera frame. KM testified that she then heard gunshots, but did not see the shooter since she turned and began running away. Talleyrand testified that he saw Wisdom fall down and turned to see a man, who he claimed he could not identify, with a gun. He ran and was shot twice in the leg.

Video of the lobby shows that after Talleyrand was shot, defendant reentered the building, pursued by two men, one of

whom was later identified as Wisdom. Once inside the building, Wisdom slammed defendant, who was holding a gun in his hand, up against the lobby wall. Defendant then momentarily freed himself and fired several close range shots at Wisdom. Defendant and Wisdom struggled for several seconds, during which they both fell to the floor. The man who had followed Wisdom into the building attacked defendant, but defendant eventually broke free and the two dispersed, leaving Wisdom motionless on the lobby floor. Police testified that approximately three weeks after the shooting, they apprehended defendant in Georgia.

The medical evidence established that Wisdom died as a result of six gunshot wounds. He was struck in the head, torso, and arm, and sustained an injury to his spinal cord. The People also admitted physical evidence of defendant's and Morrison's blood, along with Morrison's DNA, on a sweatshirt found on the roof of a nearby building, as well as shell casings recovered from the building lobby and the street where Talleyrand was shot.

Defendant was charged with Wisdom's murder, the attempted murder and assault of Talleyrand, and weapons possession. Codefendant Morrison was charged with assault, weapons possession, and criminal facilitation. Prior to jury selection, and without objection from defendant's counsel, the court ordered the public to wait outside to create space in the courtroom for the prospective jurors. Soon thereafter, but prior to jury selection, Morrison accepted a plea, and defendant proceeded to trial alone (*see People v Morrison*, 104 AD3d 959, 959 [2013], *lv denied* 21 NY3d 1007 [2013]).

During the People's case-in-chief, defense counsel informed the court that he believed the People's evidence supported an extreme emotional disturbance (EED) affirmative defense, and that he had informed defendant that he could not proceed with such defense without defendant's permission, to which defendant stated he "d[id] not wish to have [counsel] indicate in any manner, shape or form as far as justification or diminished capacity on the murder two." Rather, defendant steadfastly maintained he was not the individual depicted in the incriminating video. On the record, the court then addressed defendant concerning his decision not to pursue an EED or justification defense.

“THE COURT: Have you had an adequate opportunity to discuss these various legal issues and tactical decisions with your attorney?”

“THE DEFENDANT: Yes.

“THE COURT: And we’ve indicated now in open court that at least to the justification or self defense claim or the extreme emotional disturbance, both of which in essence say I did it but there was some reason I did it; either I was justified in doing it or I did it because of an extreme emotional disturbance and, therefore, my -- says in essence I’m not guilty of murder, maybe guilty of manslaughter which carries -- doesn’t carry a life term at the back of it as a murder conviction. Have you had a chance to discuss that?”

“THE DEFENDANT: I did.

“THE COURT: And your attorney says that as a tactical decision which you’re entitled to make, that you don’t want to pursue those defenses in terms of justification and or extreme emotional disturbance, is that correct?”

“THE DEFENDANT: That is correct. . . .

“THE COURT: You doing so voluntarily in full recognition of the potential consequences?”

“THE DEFENDANT: I am not making any decision -- I’m not making any decision referring to you reducing it to any manslaughter or anything like that cause this is not me.”

Counsel proceeded with a misidentification defense, in accordance with defendant’s claim of innocence. Further, counsel did not request, and the court did not charge, justification to the jury.

After the case was submitted, on the second day of deliberations, the jury sent a note inquiring: “[h]ow does the law differentiate ‘intent to kill’ from ‘intent to harm’?” and, “with respect to Mr. Wisdom[,], if he initiated the struggle and [defendant] was acting defensively, does that negate ‘intent to kill’?” The Judge informed counsel and the prosecutor that he would instruct the jurors that justification and self-defense were not issues before them. Counsel urged the court to limit its instruction to whether defendant’s actions were intentional,

and specifically objected to the court making “any reference to self defense” or “advising the jury that that issue was not before them and they’re not to rule on it.” The court responded to the note by informing the jurors that they had not been instructed on justification or self-defense, and so they were to focus on whether the People had proved beyond a reasonable doubt that defendant intended to cause Wisdom’s death.

The jury subsequently returned a guilty verdict on the second-degree murder, second-degree assault, and weapons possession counts, and acquitted defendant of the attempted murder of Talleyrand.¹ Defendant appealed.

The Appellate Division affirmed in a split decision, concluding, as relevant here, that counsel was not ineffective either for failing to advance a justification defense that would have been inconsistent with defendant’s chosen theory of misidentification, or for failing to object to the courtroom closure given the prevailing law at the time (129 AD3d 1 [2d Dept 2015]). The dissent argued that issues of fact existed as to whether defendant acted in self-defense, that the court had an obligation to charge the jury with a justification defense (an issue it would have reached in the interest of justice), and that counsel was ineffective for failing to “exercise his own professional judgment as to matters of trial tactics and strategy throughout the course of the trial” (*id.* at 45 [Miller, J., dissenting]). A dissenting Justice granted defendant leave to appeal (25 NY3d 1174 [2015]).

Defendant now reasserts his claim that counsel was ineffective for pursuing a misidentification defense at defendant’s behest, rather than offering the inconsistent defense of justification, and because counsel failed to protect defendant’s right to a public trial. Under the circumstances of this case, we find defendant’s arguments unpersuasive.

The standards for assessing a defendant’s ineffective assistance of counsel claim are well settled. Under our State Constitution a defendant must establish that counsel failed to provide meaningful representation and thus deprived defendant of a fair trial (*see People v Hobot*, 84 NY2d 1021, 1022 [1995]). “In making that assessment, the court must view counsel’s performance in its totality” (*People v Wragg*, 26 NY3d

1. At sentencing, the court dismissed the weapons possession count because it was erroneously listed on the verdict sheet as third-degree criminal possession of a weapon.

403, 409 [2015], citing *People v Baldi*, 54 NY2d 137, 147 [1981]). “Counsel’s performance should be objectively evaluated to determine whether it was consistent with strategic decisions of a reasonably competent attorney” (*People v Benevento*, 91 NY2d 708, 712 [1998] [internal quotation marks and citation omitted]). Defendant bears the ultimate burden of showing “counsel’s performance is constitutionally deficient” (*Wragg*, 26 NY3d at 409), as well as “the absence of strategic or other legitimate explanations” for counsel’s challenged actions (*People v Rivera*, 71 NY2d 705, 709 [1988]).

To satisfy the two-part federal test for ineffectiveness set forth in *Strickland v Washington*, a defendant must show “counsel’s representation fell below an objective standard of reasonableness . . . under prevailing professional norms” (466 US 668, 688 [1984]), and also “that the deficiency in performance prejudiced defendant” (*Benevento*, 91 NY2d at 713, citing *People v Ford*, 86 NY2d 397, 405 [1995]). “*Strickland*’s prejudice prong is what chiefly separates it from” our state standard (*People v Stultz*, 2 NY3d 277, 283 [2004]). As this Court has oftentimes explained, “defendant need not fully satisfy the prejudice test of *Strickland*” as “[o]ur focus is on the fairness of the proceedings as a whole” (*id.* at 284).

The right to effective assistance includes defendant’s right to counsel’s beneficial exercise of professional skill and judgment as defendant’s advocate (*Powell v Alabama*, 287 US 45, 68-69 [1932]; see *Strickland*, 466 US at 688). Counsel’s role is to advise, manage the trial, and make tactical and strategic decisions related to the defense (see *People v Colon*, 90 NY2d 824, 826 [1997]; *People v Ellis*, 81 NY2d 854, 856-857 [1993]). However, defendant retains authority over such fundamental decisions as “whether to plead guilty, waive a jury trial, testify in [defendant’s] own behalf or take an appeal” (*Colon*, 90 NY2d at 825-826 [citations omitted]). This allocation of authority reflects the nature of the attorney-client relationship, in which defendant seeks out and relies on counsel’s professional judgment, and counsel, in turn, makes tactical decisions after weighing the relevant considerations and upon consultation with defendant (see *Florida v Nixon*, 543 US 175, 187 [2004]; *People v Colville*, 20 NY3d 20, 32 [2012]; ABA Standards for Criminal Justice, Defense Function, standard 4-5.2 [c] [4th ed 2015]).

Here, we cannot say that defendant received less than meaningful representation (*Baldi*, 54 NY2d at 147). Defendant

concedes that he instructed counsel to pursue a misidentification defense, and he does not claim that counsel's professional efforts in that regard were constitutionally deficient. Rather, defendant claims he was deprived of effective assistance when counsel failed to present a defense of justification. We disagree.

[1] Each defense theory available to defendant posed its own challenges, and the choice of one, instead of the other, was not "determinative of the verdict" (*People v Petrovich*, 87 NY2d 961, 963 [1996]). We are not presented with a case in which defendant's chosen defense theory was self-destructive and ensured conviction. Nor did the path taken by counsel undermine his ability to deploy professional skill and expertise in presenting the chosen defense. For the same reasons, counsel was not ineffective for objecting to any charge that would have presented justification to the jury as a response to the jury's request for further instructions. Thus, we cannot say that counsel's representation was constitutionally deficient at the time because he vigorously pursued the defense defendant approved rather than the one defendant rejected outright.

Notably, the misidentification theory had the potential to achieve defendant's acquittal on all charges. In contrast, had counsel successfully pursued a justification defense, this would only have resulted in acquittal on the murder charge—not the assault of Talleyrand, who was shot as he ran away from the shooter. Therefore, counsel's efforts to achieve defendant's stated objective by solely advancing the misidentification defense "w[ere] consistent with strategic decisions of a reasonably competent attorney" (*Benevento*, 91 NY2d at 712 [internal quotation marks omitted]).²

To the extent defendant argues that counsel was ineffective because he misinformed him of the consequences of pursuing a misidentification defense, resolution of that claim requires consideration of matters dehors the record and cannot be decided on this appeal (*People v Cass*, 18 NY3d 553, 556

2. The parties' interpretations of *People v Petrovich* (87 NY2d 961 [1996]) in support of their respective positions do not require a different outcome or analysis. In *Petrovich* defendant's desire to charge the jury with only second-degree murder—and not manslaughter under EED—was "dispositive of a defendant's fate" (87 NY2d at 963). The Court held that the defendant had not been deprived of his right to counsel when the EED defense was not presented (*id.*). Here too, given the obvious concerns inherent to defendant's competing defense theories, we cannot say that counsel's advancing one theory over the other was in abrogation of his role as advisor and trial strategist such that his representation was less than meaningful.

[2012]). Further, if, as appellate counsel now suggests, defendant was not fully able to appreciate trial counsel's advice, that claim also involves matters not reviewable on this record.³

[2] Defendant also claims counsel was ineffective for failing to object when the court ordered the courtroom cleared during voir dire to ensure seating for the prospective jurors.⁴ This Court has held that "the right to a public trial has long been regarded as a fundamental privilege of the defendant in a criminal prosecution" (*People v Jelke*, 308 NY 56, 61 [1954]). This right extends to jury selection (*Presley v Georgia*, 558 US 209 [2010] [requiring courts to consider alternatives to courtroom closure]; see also *People v Martin*, 16 NY3d 607 [2011] [same], revg 71 AD3d 917 [2010]). However, at the time of defendant's trial, lower courts in the state relied on this Court's decision in *People v Colon* (71 NY2d 410 [1988]) to uphold the practice of excluding the public and family members where limited seating required it, without consideration of alternatives (see *People v Varela*, 22 AD3d 264, 265 [1st Dept 2005]; *People v Gibbons*, 18 AD3d 773 [2d Dept 2005]). Given the state of the law at the time, counsel was not ineffective for failing to object to a judicially sanctioned practice (see *Rivera*, 71 NY2d at 708).

Based on the totality of the circumstances at the time of defendant's representation, and upon consideration of the proceedings as a whole, we conclude counsel was not ineffective under our state standard (*Baldi*, 54 NY2d 137; *Stultz*, 2 NY3d 277). Moreover, "[s]ince our state standard . . . offers greater protection than the federal test, we necessarily reject defendant's federal constitutional challenge" (*Wragg*, 26 NY3d

3. Regardless of where the ultimate decision-making authority lies here, American Bar Association standards, not promulgated at the time of defendant's trial, now inform the profession that "[i]f defense counsel has a good faith doubt regarding the client's competence to make important decisions, counsel should consider seeking an expert evaluation from a mental health professional, within the protection of confidentiality and privilege rules if applicable" (ABA Standards for Criminal Justice, Defense Function, standard 4-5.2 [c] [4th ed 2015]). Defendant has not presented information as to whether counsel had reason to doubt defendant's ability to understand the defense strategy or assist counsel in presenting a defense. Thus, we have no occasion to express an opinion as to whether counsel's actions or inactions comported with any applicable professional norms.

4. While the record is unclear, and the parties dispute whether the public was removed, assuming the courtroom was closed, defendant's claim of ineffective assistance is meritless for the reasons we discuss.

at 412 [internal quotation marks omitted], quoting *People v Caban*, 5 NY3d 143, 156 [2005]).

[3] Defendant’s remaining claim, that the court failed to meaningfully respond to the jury note in violation of CPL 310.30, is unpreserved. This Court recently held that,

“where counsel has meaningful notice of the content of a jury note and of the trial court’s response, or lack thereof, to that note, the court’s alleged violation of the meaningful response requirement does not constitute a mode of proceedings error, and counsel is required to preserve any claim of error for appellate review” (*People v Mack*, 27 NY3d 534, 537 [2016], *rearg denied* 28 NY3d 944 [2016]).

Here, counsel objected to the response precisely because the court mentioned justification and self-defense, not, as defendant now argues, on the grounds that the court should have instructed the jury on the defense of justification. Thus, counsel did not preserve the specific objection raised on appeal (*see People v Gray*, 86 NY2d 10, 21-22 [1995]; *People v Crowder*, 24 NY3d 1134, 1136-1137 [2015]; *People v Hanley*, 20 NY3d 601, 605 [2013]).

Accordingly, the Appellate Division order should be affirmed.

Chief Judge DiFIORE and Judges PIGOTT, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order affirmed.

[69 NE3d 611, 46 NYS3d 824]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH
BRIDGEFORTH, Appellant.

Argued November 17, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 2, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Joel L. Blumenfeld, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and robbery in the second degree.

People v Bridgeforth, 119 AD3d 600, reversed.

HEADNOTES

Crimes — Jurors — Selection of Jury—*Batson* Challenge — Discrimination on Basis of Skin Color

1. Skin color is a cognizable classification upon which a *Batson* challenge (*Batson v Kentucky*, 476 US 79 [1986]) may be lodged as the New York State Constitution and the Civil Rights Law acknowledge that color is a status that implicates equal protection concerns. Accordingly, where defense counsel in a robbery prosecution met her prima facie burden on a *Batson* challenge by alleging that the prosecutor was excluding dark-colored female prospective jurors, and the prosecutor failed to provide a non-discriminatory reason for excluding one of those jurors when he stated that he could not recall why he struck her, the trial court committed reversible error by not seating the juror. The separation of “race” and “color” in the Equal Protection Clause of the State Constitution (NY Const, art I, § 11) and Civil Rights Law § 13, which prohibits disqualification of a state citizen from jury service on the basis of certain personal characteristics, indicates that “color” is a separate and distinct classification from “race.” It follows, then, that color has been recognized as a category upon which discriminatory practices have been based, including exclusion from jury service. Thus, when a movant seeks to meet his or her prima facie burden on a *Batson* challenge of demonstrating that a peremptory strike was used to discriminate by showing that multiple members of a cognizable group were excluded, the movant may meet the prima facie burden by demonstrating that the perempted potential jurors have a similar skin color. It is then for the trial court, using the existing *Batson* protocol, to decide whether the individuals identified as part of that group share a similar skin color.

Crimes — Jurors — Selection of Jury—*Batson* Procedure

2. The issue whether defendant, who lodged a *Batson* challenge (*Batson v Kentucky*, 476 US 79 [1986]) in a robbery prosecution, made out a prima facie case of discrimination was not moot and could be revisited on appeal, notwithstanding that the trial court moved past that threshold inquiry without making a finding. Though the sufficiency of the movant’s prima facie

showing on a *Batson* challenge becomes moot when the opposing party presents a non-discriminatory reason for the use of the peremptory strike and the trial court rules on the ultimate question of intentional discrimination, the trial court here failed to reach the ultimate issue as to one juror where the prosecutor gave non-pretextual reasons for perempting some potential jurors, but gave no reason for perempting the juror at issue.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 596, 602; AM JUR 2d Jury § 213.

CARMODY-WAIT 2d Jury Selection and Supervision §§ 191:64, 191:65, 191:68–191:72; CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:28, 207:123, 207:124.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 22.3, 27.5.

McKINNEY'S, Civil Rights Law § 13; NY Const, art I, § 11.

NY JUR 2d Criminal Law: Procedure §§ 2626–2631, 3681, 3683.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Peremptory Challenges.

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POINTS OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Tammy E. Linn* of counsel), for appellant. I. Prospective juror I.D. should have been seated when the prosecutor could not recall why he struck her that very day, and this *Batson v Kentucky* (476 US 79 [1986]) step two failure cannot be excused by revisiting step one to find that “black or dark-colored women” was not a cognizable class. (*Strauder v West Virginia*, 100 US 303; *Martin v Texas*, 200 US 316; *Norris v Alabama*, 294 US 587; *Neal v Delaware*, 103 US 370; *Swain v Alabama*, 380 US 202; *Miller-El v Cockrell*, 537 US 322; *Hernandez v New York*, 500 US 352; *People v Luciano*, 10 NY3d 499; *People v Allen*, 86 NY2d 101.) II. The evidence was insufficient to convict appellant of first-degree robbery because it failed to establish that his codefendant “actually possessed” a danger-

ous instrument, and whether the court denied appellant due process when it failed to disabuse the jury of the notion that actual possession was unnecessary. (*People v Pena*, 50 NY2d 400; *People v Ford*, 11 NY3d 875; *Jackson v Virginia*, 443 US 307; *In re Winship*, 397 US 358; *People v Grant*, 17 NY3d 613; *People v Peralta*, 3 AD3d 353; *People v Finch*, 23 NY3d 408; *People v Blacknall*, 63 NY2d 912; *People v Sanders*, 69 NY2d 860; *People v Cordes*, 71 AD3d 912.) III. The court denied appellant his due process right to a fair trial when it allowed the prosecutor to ask appellant whether he belonged to a “gang” without a good faith basis and without weighing the prejudicial effect of that inquiry against its probative value. (*People v Williams*, 56 NY2d 236; *People v Sandoval*, 34 NY2d 371; *People v Hayes*, 97 NY2d 203; *People v Davis*, 44 NY2d 269; *People v Mayrant*, 43 NY2d 236; *People v Greer*, 42 NY2d 170; *People v Schwartzman*, 24 NY2d 241; *People v Alamo*, 23 NY2d 630; *People v Melendez*, 74 AD3d 629; *People v Kims*, 24 NY3d 422.)

Richard A. Brown, District Attorney, Kew Gardens (Danielle S. Finn, Merri Turk Lasky, Robert J. Masters, John M. Castellano, Johnnette Traill and Joseph N. Ferdenzi of counsel), for respondent. I. Defendant has failed to provide an adequate record to review his claim that all “black or dark colored women” are a single cognizable racial group, failed to preserve his current specific contentions for review, and failed to sustain his burden of showing that the diverse members of the group, no matter what background or origin, share interests, attitudes, and a history of discrimination under the same laws. (*People v McLean*, 15 NY3d 117; *Gray v Brady*, 592 F3d 296; *Castaneda v Partida*, 430 US 482; *People v Udzenski*, 146 AD2d 245; *People v Gray*, 86 NY2d 10; *People v Starling*, 85 NY2d 509; *People v Smocum*, 99 NY2d 418; *People v James*, 99 NY2d 264; *People v Stephens*, 84 NY2d 990; *People v Allen*, 86 NY2d 101.) II. The evidence was legally sufficient to prove defendant’s guilt of robbery in the first degree beyond a reasonable doubt. (*People v Calabria*, 3 NY3d 80; *People v Lopez*, 71 NY2d 662; *People v Hawkins*, 11 NY3d 484; *People v Gray*, 86 NY2d 10; *People v Pena*, 50 NY2d 400; *People v Contes*, 60 NY2d 620; *Jackson v Virginia*, 443 US 307; *People v Cabey*, 85 NY2d 417; *People v Mauceri*, 118 AD2d 735; *People v Williams*, 84 NY2d 925.) III. Defendant was not deprived of a fair trial by the court’s charge with regard to robbery in the first degree and his claim to the contrary is unpreserved for appellate review. (*People v Patterson*, 39 NY2d 288; *People v Robinson*, 36 NY2d 224; *People v Ford*, 11 NY3d 875; *People v Cordes*, 71 AD3d

912; *People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *People v Satterfield*, 66 NY2d 796; *People v Henry*, 95 NY2d 563; *People v Flores*, 84 NY2d 184; *People v Brown*, 7 NY2d 359.) IV. The court's ruling allowing the prosecutor to ask defendant whether he was a member of a gang was a proper exercise of discretion and did not prejudice defendant. (*People v Sandoval*, 34 NY2d 371; *People v Michalek*, 82 NY2d 906; *People v Hilaire*, 211 AD2d 642; *People v Greer*, 42 NY2d 170; *People v Alamo*, 23 NY2d 630; *People v Melendez*, 74 AD3d 629; *People v Lenihan*, 30 Misc 3d 289; *People v Anonymous*, 275 AD2d 210; *People v Sealy*, 167 AD2d 362; *People v Mackey*, 49 NY2d 274.)

Akin Gump Strauss Hauer & Feld LLP, New York City (Alice Hsu, Joseph L. Sorkin, Stan Chiueh and Sofie Syed of counsel), and Vinay Harpalani, Savannah Law School, for Fred T. Korematsu Center for Law and Equality and others, amici curiae. I. *Batson v Kentucky* (476 US 79 [1986]) and its progeny seek to prevent prosecutors from striking potential jurors based on invidious stereotypes. (*Georgia v McCollum*, 505 US 42; *Thiel v Southern Pacific Co.*, 328 US 217; *J. E. B. v Alabama ex rel. T. B.*, 511 US 127; *Strauder v West Virginia*, 100 US 303; *Purkett v Elem*, 514 US 765; *People v Allen*, 86 NY2d 101; *People v Hecker*, 15 NY3d 625; *Johnson v California*, 545 US 162; *Miller-El v Dretke*, 545 US 231; *Hernandez v New York*, 500 US 352.) II. Color discrimination presents precisely the harms that *Batson v Kentucky* (476 US 79 [1986]) and its progeny aim to prevent. (*J. E. B. v Alabama ex rel. T. B.*, 511 US 127; *Hernandez v New York*, 500 US 352; *United States v Brown*, 352 F3d 654; *People v Kern*, 75 NY2d 638; *People v Childress*, 81 NY2d 263; *Castaneda v Partida*, 430 US 482; *Shaw v Reno*, 509 US 630.) III. The People's administrability concerns lack merit. (*United States v Cruikshank*, 92 US 542; *Saint Francis College v Al-Khazraji*, 481 US 604; *McDonald v Santa Fe Trail Transp. Co.*, 427 US 273; *Williams v Wendler*, 530 F3d 584; *Rodriguez v Gattuso*, 795 F Supp 860; *Village of Freeport v Barrella*, 814 F3d 594; *Batson v Kentucky*, 476 US 79; *Rico v Leftridge-Byrd*, 340 F3d 178; *United States v Thind*, 261 US 204; *Ozawa v United States*, 260 US 178.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

This appeal requires us to consider whether skin color of a prospective juror is a cognizable classification upon which a

challenge to a prosecutor's use of peremptory strikes under *Batson v Kentucky* (476 US 79 [1986]) may be based. We recognize the existence of discrimination on the basis of one's skin color, and acknowledge that under this State's Constitution and Civil Rights Law, color is a classification upon which a *Batson* challenge may be lodged. The courts below held that defendant failed to make a prima facie showing of discrimination when he challenged the prosecutor's use of peremptory strikes to exclude dark-colored women. We find this was error, and therefore reverse.

I.

Batson provides the framework under which courts analyze challenges to peremptory strikes of potential jurors based on alleged discrimination. The Supreme Court of the United States held that "the Equal Protection Clause [of the Fourteenth Amendment] forbids [a] prosecutor to challenge potential jurors solely on account of their race" (476 US at 89). *Batson's* application has been extended to discrimination on the basis of sex (see *J. E. B. v Alabama ex rel. T. B.*, 511 US 127 [1994]) and ethnicity (see *Hernandez v New York*, 500 US 352 [1991]). *Batson* outlines a three-step protocol to be applied when a defendant challenges the use of peremptory strikes during voir dire to exclude potential jurors for pretextual reasons. At step one, the movant must make a prima facie showing that the peremptory strike was used to discriminate; at step two, if that showing is made, the burden shifts to the opposing party to articulate a non-discriminatory reason for striking the juror; and finally, at step three, the trial court must determine, based on the arguments presented by the parties, whether the proffered reason for the peremptory strike was pretextual and whether the movant has shown purposeful discrimination (see *id.* at 96-98).

We have adopted *Batson* under the State Constitution and prohibit discrimination against prospective jurors by either the People or the defense "on the basis of race, gender or any other status that implicates equal protection concerns" (*People v Luciano*, 10 NY3d 499, 502-503 [2008]; see *People v Kern*, 75 NY2d 638 [1990]). In this appeal, we are asked to decide whether skin color is a "status that implicates equal protection concerns" (*id.*).

[1] The Equal Protection Clause of the State Constitution provides:

“No person shall be denied the equal protection of the laws of this state or any subdivision thereof. No person shall, because of *race*, *color*, creed or religion, be subjected to any discrimination in his or her civil rights by any other person or by any firm, corporation, or institution, or by the state or any agency or subdivision of the state” (NY Const, art I, § 11 [emphasis added]).

The separation of “race” and “color” in the Clause indicates that “color” is a distinct classification from “race.” Similarly, section 13 of the Civil Rights Law, which prohibits disqualification of a state citizen from jury service on the basis of certain personal characteristics, lists “race” and “color” as distinct classes. Specifically, this provision states that “[n]o citizen of the state possessing all other qualifications which are or may be required or prescribed by law, shall be disqualified to serve as a grand or petit juror in any court of this state on account of *race*, creed, *color*, national origin or sex” (Civil Rights Law § 13 [emphasis added]). These provisions indicate that “color” is a separate and distinct classification from “race.” It follows, then, that color has been recognized as a category upon which discriminatory practices have been based, including exclusion from jury service.

Our State Constitution and Civil Rights Law plainly acknowledge that color is a “status that implicates equal protection concerns” (*Luciano*, 10 NY3d at 503), and therefore a *Batson* challenge may be based on color. Discrimination on the basis of one’s skin color—or colorism—has been well researched and analyzed, demonstrating that “not all colors (or tones) are equal” (Trina Jones, *Shades of Brown: The Law of Skin Color*, 49 Duke LJ 1487, 1499 [2000]; see Taunya Lovell Banks, *Colorism Among South Asians: Title VII and Skin Tone Discrimination*, 14 Wash U Global Stud L Rev 665, 671-674 [2015]; Michael Hughes & Bradley R. Hertel, *The Significance of Color Remains: A Study of Life Chances, Mate Selection, and Ethnic Consciousness Among Black Americans*, 68 Soc Forces 1105, 1116 [1990]). Persons with similar skin tones are often perceived to be of a certain race and discriminated against as a result, even if they are of a different race or ethnicity. That is why color must be distinguished from race. Today, we acknowledge color as a classification separate from race for *Batson* purposes, as it has already been acknowledged by our State Constitution and Civil Rights Law. Making this distinction is necessary to serve the purpose of *Batson*, which recognized

that discrimination in the selection of jurors violates “a defendant’s right to equal protection because it denies him [or her] the protection that a trial by jury is intended to secure” (476 US at 86). Where individuals are excluded from jury service on the basis of their skin color, the defendant is denied the right to a trial by a jury of his or her peers, which is meant to reflect the community in which the defendant lives. As we stated in *People v Kern*, jury service is a principal means of participation in government, and has been used as an instrument of public justice, requiring that “‘the jury be a body truly representative of the community’” (75 NY2d at 652, quoting *Smith v Texas*, 311 US 128, 130 [1940]). “‘For . . . discrimination to result in the exclusion from jury service of otherwise qualified groups not only violates our Constitution and the laws enacted under it but is at war with our basic concepts of a democratic society and a representative government’” (*id.*). We therefore extend the application of *Batson* to challenges based on color to ensure that the jury is not used as a tool to accomplish such discrimination.

Recognizing that a *Batson* challenge may be premised on skin color does not conflict with our holding in *People v Smith* (81 NY2d 875 [1993]). There, we rejected the defendant’s contention that a *Batson* challenge may be based on the exclusion of “minorities” in general, regardless of race (*id.* at 876). Using peremptory strikes to exclude “minorities”—a category that includes a vast and varied group of individuals that is subject to change based on census and other demographic data based on population—is quite different from excluding potential jurors because they share a similar skin color. Skin color is generally an immutable characteristic.

When a movant seeks to meet his or her prima facie burden of demonstrating that a peremptory strike was used to discriminate by showing that multiple members of a cognizable group were excluded, the movant may meet the prima facie burden by demonstrating that the perempted potential jurors have a similar skin color, for example, dark-colored as was alleged here.¹ That is a much narrower showing than for an overall classification as a “minority,” and does not rest on racial

1. Movant’s burden would be the same whether the challenge is to one prospective juror of a cognizable group or more than one. As we have recognized, “[t]here are no fixed rules for determining what evidence will . . . establish a prima facie case of discrimination” (*People v Bolling*, 79 NY2d 317, 323-324 [1992]). A “pattern” of discrimination is not always

(n. cont’d)

identity, but on color, which, as stated, is separate and distinct from race under the State Constitution and the Civil Rights Law. Indeed, there is no indication that members of minority groups generally were excluded from the jury in this case, as the record demonstrates that four of the seven seated jurors prior to the *Batson* challenge belonged to minority groups. Rather, defendant's challenge was specific to the People's use of peremptory strikes to exclude dark-skinned women—a color classification.

In cases where the People or a defendant makes a *Batson* challenge on the basis of color, it is for the trial court, using the existing *Batson* protocol, to decide whether the individuals identified as part of that group share a similar skin color, in the same way the trial court makes determinations about race, gender, and ethnicity classifications. It is within this framework that we analyze the *Batson* challenge in the case before us.

II.

Defendant, a dark-complexioned African-American male, along with several other individuals, was involved in a robbery in Queens. As a result, defendant was charged with one count of robbery in the first degree and two counts of robbery in the second degree. During voir dire, the prosecutor used peremptory challenges to exclude a number of potential jurors. One of those jurors, the subject of this appeal, was a dark-complexioned Indian-American woman. Defense counsel lodged a *Batson* challenge as to five of the prosecutor's peremptory strikes, stating: "The district attorney has now perempted all the female black women and I don't believe that there are valid reasons other than their face and their gender that they have been challenged." Defense counsel specified that she was referring to "[t]he black or dark-colored [women]," noting that "the Guyanese women [were] included in that" group. The People responded "Well, Judge, we are either going to do Guyanese or African American, can't do black or skin color, Judge. But I have reasons for everybody." The trial judge did not make a step one finding. The prosecutor, however, immediately proceeded to supply reasons for four of the excluded potential jurors. When it came to the juror at issue, the prosecutor stated: "I'm trying to remember why I got rid of her," but

required, as *Batson* is applicable where the challenge is directed at a single juror of a cognizable group (see *People v Smocum*, 99 NY2d 418, 421-422 [2003]).

ultimately failed to provide a reason for striking her participation on the jury. Defense counsel again noted her objection, and in response to the trial judge's prompting to give specific reasons for why the People's explanations were pretexts, defense counsel stated that the woman "did not indicate that there was any reason why she would not be fair and impartial." The prosecutor replied that whether the potential juror would be fair and impartial is not the relevant inquiry, but rather whether there was a non-discriminatory reason for perempting the juror. The court agreed with the prosecutor on the requisite inquiry and then proceeded to seat one of the other black female jurors included in the group of black or dark-colored women the prosecutor perempted. The juror at issue here, however, was ultimately not seated.

[2] As an initial matter, we reject defendant's argument that the issue of whether he made out a prima facie case of discrimination at step one of the *Batson* protocol is moot and should not be revisited on appeal because the court moved past that threshold inquiry. In *Hernandez v New York*, the Supreme Court of the United States held that whether the movant on a *Batson* challenge made a prima facie showing of discrimination becomes moot when the opposing party presents a non-discriminatory reason for the use of a peremptory strike "and the trial court has ruled on the ultimate question of intentional discrimination" (500 US 352, 359 [1991]). We have adopted that mootness framework, holding in *People v Payne* that we need not review the prima facie showing made at step one "because the subsequent rulings by the trial courts . . . on the ultimate issue of purposeful discrimination and pretext moot this first-step issue" (88 NY2d 172, 182 [1996]; see *People v Smocum*, 99 NY2d 418, 423 [2003] [holding that "(the) issue became moot when the People stated their reasons and the court ruled on the ultimate issue"]). We recently reiterated this proposition in *People v Hecker*, where we held that "[o]nce a party has placed its [non-discriminatory] reasons on the record . . . the sufficiency of the prima facie showing becomes moot" (15 NY3d 625, 652 [2010] [internal quotation marks omitted], citing *Hernandez*, 500 US at 359, and *Smocum*, 99 NY2d at 423).² Here, the prosecutor gave non-pretextual reasons for perempting some potential jurors, but gave no reason for

2. Defendant, relying on *Hecker*, argues that once step two of the *Batson* protocol is completed the issue of whether a prima facie case of discrimination was made becomes moot. That is incorrect. In two of the companion

(n. cont'd)

perempting the juror at issue. Because the trial court failed to reach the ultimate issue as to the juror in question, defendant's challenge is not moot.

[1] Defendant argues that "contrary to the People's position, dark skin color is a cognizable class and, indeed, must be one unless the established protections of *Batson* are to be eviscerated by allowing challenges based on skin color to serve as a proxy for those based on race." We agree with defendant. By arguing that the prosecutor used five of his peremptory strikes to exclude black or dark-colored women, which encompassed the juror at issue here, defendant made a prima facie showing that the People were allegedly discriminating against dark-colored women, thus satisfying step one of the *Batson* protocol (see 476 US at 96-97).

At step two of the *Batson* protocol, the prosecutor was required to provide a non-discriminatory reason for perempting the juror at issue. Defendant contends that the juror should have been seated when the prosecutor could not recall why he struck her. It is clear from the record that the prosecutor failed to provide a reason for why he excluded the juror, stating he could not recall. The prosecutor's failure to give a specified reason for why the juror was perempted fails to satisfy the step two requirement. *Batson*'s burden shifting framework requires the nonmovant, here the People, to come forward with some non-discriminatory reason for striking each juror, which the prosecutor fails to do when she or he provides no reason at all. Consistent with this analysis, when faced with this circumstance, the Appellate Division Departments have held that a failure to recall is insufficient to satisfy step two of *Batson* (see *People v Wilson*, 73 AD3d 606, 607-608 [1st Dept 2010]; *People v Dove*, 172 AD2d 768, 768-769 [2d Dept 1991], *lv denied* 78 NY2d 1075 [1991]; *People v Bozella*, 161 AD2d 775, 775-776 [2d Dept 1990]). Thus, the prosecutor's failure to recall why he struck the juror was insufficient to meet his burden at step two. Despite this failure, the trial court did not seat the juror at issue. We hold that because defense counsel met her prima facie burden by alleging that the prosecutor was excluding

cases in *Hecker*, we stated that the issue became moot because the trial courts proceeded to steps two and three of the *Batson* protocol, demonstrating that we require an ultimate determination by the trial court before the issue becomes moot (see 15 NY3d at 652). Additionally, *Hecker* relied upon *Hernandez*, *Payne* and *Smocum*, all of which require an ultimate determination by the trial court before the issue becomes moot.

dark-colored female prospective jurors, and the prosecutor did not give a non-discriminatory reason for excluding one of those jurors, the trial court committed reversible error by not seating the juror.

III.

Defendant's additional argument that the evidence presented by the People was insufficient to convict him of first-degree robbery is unpreserved for our review. Because the courts below erred in holding that defendant failed to meet his *prima facie* burden under *Batson*, defendant must be re-tried, and therefore, we do not reach defendant's remaining argument. Accordingly, the order of the Appellate Division should be reversed, and a new trial ordered.

GARCIA, J. (concurring). I agree with the majority that reversal and a new trial are warranted in this case. I write separately because application of our well-established mootness doctrine precludes us from revisiting whether defendant met his step-one burden of identifying a pattern of discrimination against a cognizable group. It is therefore unnecessary to reach the issue of whether "skin color of a prospective juror is a cognizable classification" for purposes of a *Batson* challenge (majority op at 570).

I.

The Supreme Court in *Batson* set forth a three-step process for determining whether peremptory strikes are racially discriminatory (*Batson v Kentucky*, 476 US 79, 96-98 [1986]). Step one requires two elements to make a *prima facie* showing of race discrimination: the moving party must demonstrate (1) that members of a cognizable racial group have been excluded from the jury, and (2) that "facts and other relevant circumstances" support an inference of impermissible discrimination (*People v Childress*, 81 NY2d 263, 266 [1993]).

After the moving party has established a *prima facie* showing, the burden shifts to the nonmoving party to provide a race-neutral explanation for its challenged peremptory choices (*Batson*, 476 US at 96-97). At step three, the trial court determines whether the defendant has shown purposeful discrimination and consequently, whether or not to seat the challenged juror (*id.* at 98).

Twenty-five years ago, the Supreme Court first applied the mootness doctrine in the *Batson* context by declining to review

“the preliminary issue of whether the defendant had made a prima facie showing” at step one (*Hernandez v New York*, 500 US 352, 359 [1991 plurality]). In *Hernandez*, the prosecutor immediately “defended his use of peremptory strikes without any prompting or inquiry from the trial court” and, “[a]s a result, the trial court had no occasion to rule that petitioner had or had not made a prima facie showing of intentional discrimination” (*id.*). The Supreme Court reasoned that, where the nonmoving party “has done everything that would be required of him if the [moving party] had properly made out a prima facie case, whether the [moving party] really did so is no longer relevant” (*id.*, citing *Postal Service Bd. of Governors v Aikens*, 460 US 711, 715 [1983]). That is, once a party “has offered a race-neutral explanation for the peremptory challenges” at step two, step one “becomes moot” (*Hernandez*, 500 US at 359).

This Court has adopted the mootness doctrine as an integral part of our *Batson* jurisprudence. Once a party has proffered a race-neutral reason on the record, the sufficiency of the prima facie showing becomes moot (see *People v Hecker*, 15 NY3d 625, 652 [2010], citing *People v James*, 99 NY2d 264, 270 [2002]; *People v Smocum*, 99 NY2d 418, 422 [2003]; *People v Payne*, 88 NY2d 172, 182 [1996]).

In *People v Payne* and its companion cases involving “reverse *Batson*” challenges, the defendants argued that the trial courts erred at step one in concluding that the prosecution had “shown a prima facie case of discrimination merely by noting that all of the challenged jurors were white” (88 NY2d at 181-182). This Court did not address or resolve whether white prospective jurors constituted a cognizable group or whether the striking of white jurors raised an inference of discrimination because the trial courts’ subsequent rulings “on the ultimate issue of purposeful discrimination and pretext moot this first-step issue” (*id.*). Similarly, in *People v Hecker* and its companion case, *People v Black*, we did not review whether the defendants met their prima facie burden because “[o]nce a party has placed its race-neutral reasons on the record,” step one “becomes ‘moot’ ” (*People v Hecker*, 15 NY3d 625, 652 [2010] [citations omitted]; see also *id.* at 666-667 [Smith, J., concurring in *People v Black* and dissenting in *People v Hecker*]).

There are sound policy reasons for our strict adherence to the mootness doctrine. We have explained that, “to revisit the adequacy of the step one showing unnecessarily evades the

ultimate question of discrimination” (*Hecker*, 15 NY3d at 652; *Smocum*, 99 NY2d at 422). Moreover, the mootness doctrine effectuates *Batson*’s ultimate purpose “to provide assurance . . . that criminal judgments are not tainted by invidious discrimination” (*Hecker*, 15 NY3d at 652).

Today, in reaching the merits of step one, the majority abandons this well-established policy.

II.

In this case, defendant raised an initial *Batson* challenge, asserting that “[t]he district attorney has now perempted [sic] all the female black women and I don’t believe there are valid reasons other than their face [sic] and their gender that they have been challenged.” The prosecutor immediately asked the trial court if he could respond and, upon the court’s approval, sought defendant’s clarification as to which specific women he was challenging. Defendant specified, “the black or dark-colored, the Guyanese women that are included in that.” The prosecutor objected to the group classification stating: “Judge, we are either going to do Guyanese or African American, can’t do black or skin color.” Ultimately, the purported cognizable group apparently included four African-American women and a fifth female juror—the relevant juror in the instant appeal. It is apparent that the court and the parties all believed this juror was Guyanese when, in fact, her juror questionnaire indicates that she was born in India.

Notably absent from the record is any ruling by the trial court regarding the contours of the “cognizable class” or which particular jurors should be included within it. Rather, as the majority makes clear, the prosecutor moved past step one and plunged forward into step two, without any ruling from the trial court regarding whether the purported group of jurors did (or did not) constitute a cognizable class (*see* majority op at 574).¹

At step two, the prosecutor began by claiming, “I have reasons for everybody.” The People then set forth race-neutral reasons for striking the four African-American women. With regard to the fifth juror—the juror now at issue—the prosecu-

1. The court’s disordered ruling is perhaps unsurprising, as varied versions of the purported “cognizable class” were asserted by defense counsel. Defendant never clearly or consistently articulated any “cognizable group” for purposes of step one of the *Batson* procedure.

tor had trouble remembering why he struck her. Without specifying a race-neutral reason, the People simply concluded: “I believe the People have reasons” and “I haven’t gotten rid of all [the] Guyanese people on this panel or gotten rid of all . . . African Americans on this panel.”

Despite “trying to remember why [he] got rid of [the disputed juror],” the prosecutor never provided any race-neutral reason—or indeed *any* reason—for striking her from the panel. It is beyond dispute that a prosecutor may not rebut the defendant’s case by “merely . . . denying that he had a discriminatory motive” (*Batson*, 476 US at 98), yet the trial court accepted the People’s strikes as to four of the challenged jurors, including the juror now at issue.

Accordingly, the trial court’s failure to seat this juror was error and our mootness doctrine precludes us from revisiting step one of the *Batson* protocol.

III.

In a reformulation of our mootness doctrine, the majority asserts that mootness is inapplicable because the court did not make an “ultimate determination” regarding the juror at issue (majority op at 575-576 n 2). Even if this was a correct application of our mootness doctrine—and it is not²—the majority’s conclusion is factually wrong. Of course, the trial court’s “ultimate determination” regarding the juror at issue was made eminently clear when it *refused to seat her* (majority op at 576).³ Moreover, in making its step three determination, the trial court explicitly stated that it found a discriminatory purpose as to one of the five challenged jurors—an African-American woman who was ultimately seated—and specified

2. The majority’s new “ultimate determination” requirement is unsupported by our existing case law, which makes clear that “[o]nce a party has placed its race-neutral reasons on the record, . . . the sufficiency of the prima facie showing becomes ‘moot’” (*Hecker*, 15 NY3d at 652 [citations omitted]; majority op at 575). Instead, the majority’s approach now mandates appellate review of a step one holding even though an on-the-record reason for striking the juror has been provided—no matter how inadequate or pretextual that reason may be. Such a result undermines the purpose of the mootness doctrine, which is designed to prevent courts from “evad[ing] the ultimate question of discrimination” (*Hecker*, 15 NY3d at 652).

3. The majority claims that the mootness doctrine is inapplicable because “the trial court failed to reach the ultimate issue as to the juror in question” (majority op at 576), yet holds that “the trial court committed reversible error by not seating the juror” (majority op at 577). These irreconcilable rulings go unexplained.

that this seated juror was “[t]he *only one*” the court “really questioned,” so defendant’s “challenge [was] *denied*” (emphasis added). The majority’s conclusion that “the trial court failed to reach the ultimate issue” is both inaccurate and irrelevant (*see* majority op at 576).

IV.

Having disregarded our mootness doctrine, the majority dramatically expands our *Batson* jurisprudence beyond what any court has done before (*see e.g. People v Davis*, 46 Cal 4th 539, 583, 208 P3d 78, 116 [2009] [rejecting “(a)t the outset” defendant’s claim that “people of color” can be a cognizable group]; *Gray v Brady*, 592 F3d 296, 302 [1st Cir 2010] [holding that “minorities” cannot constitute a cognizable group under *Batson*]). Indeed, only the Second Circuit has recognized that distinct racial and ethnic groups may be combined for *Batson* purposes, but notably, that court did not rule that “dark skinned” could be its own cognizable group (*see Green v Travis*, 414 F3d 288, 297 [2d Cir 2005]). In *People v Smith*, this Court “reject[ed] appellant’s argument that, regardless of race, ‘minorities’ in general constitute a cognizable racial group” (81 NY2d 875, 876 [1993]).

The majority chooses this case—a case with a garbled record at a moot stage of the proceeding—to hold that “skin color” is a cognizable class for purposes of *Batson*. Such a monumental ruling should occur only after careful consideration, and on a record that properly presents the issue and contains a step one ruling for our review. Instead, the majority announces its holding without the benefit of a call for amicus briefing and without any discussion of the wide-ranging ramifications of its decision in the *Batson* context and beyond. Moreover, the only “guidance” offered to trial courts is that they should somehow “decide whether the individuals identified . . . share a similar skin color” (majority op at 574). The majority’s vague assurance that these determinations can be made “in the same way” they are made “about race, gender, and ethnicity classifications” supplies little concrete or practical instruction for lower courts tasked with creating a record that allows for meaningful appellate review (majority op at 574).

In this case, the People failed to provide a race-neutral reason for striking the juror at issue and, accordingly, the trial court erred by failing to seat her. Our analysis should begin and end at that.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, STEIN and FAHEY concur; Judge GARCIA concurs in result in a separate concurring opinion.

Order reversed and a new trial ordered.

[70 NE3d 936, 48 NYS3d 269]

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Argued October 18, 2016; decided December 20, 2016

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “Is there a right of public performance for creators of sound recordings under New York law and, if so, what is the nature and scope of that right?”

HEADNOTE

Copyrights and Literary Property — Common-Law Copyright — Sound Recordings Made Prior to February 15, 1972 — Right of Public Performance

New York common-law copyright does not recognize a right of public performance for creators of sound recordings made prior to February 15, 1972—the date sound recordings became protected from infringement under federal copyright law. Reproduction and performance have been treated as separate and distinct aspects of copyright, with the former based in common law and the latter based in statute. New York’s common-law copyright protection has been held to prevent only the unauthorized reproduction of the copyrighted work, but permits a purchaser to use copies of sound recordings for their intended purposes, namely, to play them. Though parties do not lose their rights merely by failing to enforce them, the fact that holders of rights to sound recordings have taken no action whatsoever to assert common-law protection for at least the past four decades—when the absence of a comprehensive federal right of public performance for sound recordings was clear—supported a conclusion that artists and copyright holders did not believe such a right existed in the common law. Because the consequences of recognizing that right for the first time could be extensive and far-reaching, and there are many competing interests at stake, such recognition should be left to the legislature. The legislative branch is uniquely qualified, and imbued with the authority, to conduct the required balancing of interests and make the necessary policy choices.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Copyright and Literary Property §§ 8, 15, 18, 21, 43, 80, 84–85, 99, 102, 104, 111, 120.

CARMODY-WAIT 2d Courts and Their Jurisdiction § 2:109;

CARMODY-WAIT 2d Injunctions § 78:75.

McKINNEY'S, NY Const, art VI, § 3 (b) (9).

NY JUR 2d Literary and Artistic Property §§ 1–3, 9, 15, 19, 22–24, 38.

ANNOTATION REFERENCE

Literary and artistic rights for purposes of, and their infringement by or in connection with, motion pictures, radio, and television. 23 ALR2d 244.

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POINTS OF COUNSEL

O'Melveny & Myers LLP, Washington, D.C. (*Jonathan D. Hacker*, of the District of Columbia bar, admitted pro hac vice, of counsel), *O'Melveny & Myers LLP*, Los Angeles, California (*Daniel M. Petrocelli*, of the California bar, admitted pro hac vice, and *Cassandra L. Seto*, of the California bar, admitted pro hac vice, of counsel), and *O'Melveny & Myers LLP*, New York City (*Anton Metlitsky* of counsel), for appellant. I. New York common law has never granted recording owners a right to control the performance of recordings after they are sold. (*RCA Mfg. Co. v Whiteman*, 114 F2d 86; *Halstead v Grinnan*, 152 US 412; *Victory v Baker*, 67 NY 366; *Palmer v De Witt*, 47 NY 532; *Casanova Entertainment Group, Inc. v City of New Rochelle*, 375 F Supp 2d 321; *Dowling v United States*, 473 US 207; *Sony Corp. of America v Universal City Studios, Inc.*, 464 US 417; *Roy Export Co. Establishment of Vaduz, Liechtenstein v Columbia Broadcasting Sys., Inc.*, 672 F2d 1095; *Capitol Records v Mercury Records Corp.*, 221 F2d 657.) II. Only the legislature can recognize a new right to control public performances of sound recordings. (*Norcon Power Partners v Niagara Mohawk Power Corp.*, 92 NY2d 458; *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14; *Chamberlain v Feldman*, 300 NY 135; *Matter of New York State Inspection, Sec. & Law Enforcement Empls., Dist. Council 82, AFSCME, AFL-CIO v Cuomo*, 64 NY2d 233; *Jewelers' Mercantile Agency v Jewelers' Weekly Publ. Co.*, 155 NY 241; *Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *Caronia v Philip Morris USA, Inc.*, 22 NY3d 439.)

Gibson, Dunn & Crutcher LLP, New York City (*Caitlin J. Halligan*, *Ester Murdukhayeva* and *Kathryn M. Cherry* of counsel), and *Gradstein & Marzano, P.C.*, Los Angeles, California (*Henry Gradstein*, of the California bar, admitted pro hac vice, *Maryann R. Marzano*, of the California bar, admitted pro hac vice, and *Daniel B. Lifschitz*, of the California bar, admitted pro hac vice, of counsel), for respondent. I. New York law—not federal law—governs this case. (*Addington v Texas*, 441 US 418; *Rice v Santa Fe Elevator Corp.*, 331 US 218; *Goldstein v California*, 412 US 546.) II. New York’s common law protects pre-1972 sound recordings from unauthorized post-sale public performance. (*Palmer v De Witt*, 47 NY 532; *Metropolitan Opera Assn., Inc. v Wagner-Nichols Recorder Corp.*, 199 Misc 786; *Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *Ferris v Frohman*, 223 US 424; *Capitol Records v Mercury Records Corp.*, 221 F2d 657; *Roy Export Co. Establishment of Vaduz, Liechtenstein v Columbia Broadcasting Sys., Inc.*, 672 F2d 1095; *White-Smith Music Publishing Co. v Apollo Co.*, 209 US 1; *Goldstein v California*, 412 US 546; *LaCienega Music Co. v ZZ Top*, 53 F3d 950; *ABKCO Music, Inc. v LaVere*, 217 F3d 684.) III. Protecting performance rights in pre-1972 sound recordings promotes key public policy goals. (*United States v Western Elec. Co., Inc.*, 531 F Supp 894; *Jewelers’ Mercantile Agency v Jewelers’ Weekly Publ. Co.*, 155 NY 241; *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14; *Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *Broadcast Music, Inc. v Columbia Broadcasting System, Inc.*, 441 US 1.)

Mitchell L. Stoltz, *Electronic Frontier Foundation*, San Francisco, California, for Electronic Frontier Foundation, amicus curiae. I. A new common-law right of public performance would have far-reaching effect. (*RCA Mfg. Co. v White-man*, 114 F2d 86.) II. New York copyright law should be interpreted consistently with federal law. (*Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *New York Trust Co. v Eisner*, 256 US 345.) III. Expansions of copyright must be based on the demonstrated need for incentives; unjustified expansions harm innovation and access. (*Sony Corp. of America v Universal City Studios, Inc.*, 464 US 417; *Authors Guild v Google, Inc.*, 770 F Supp 2d 666.) IV. Creating a new public performance right would harm innovation and competition in music distribution. (*Broadcast Music, Inc. v Columbia Broadcasting System, Inc.*, 441 US 1; *United States v Broadcast Music, Inc.*, 426 F3d 91; *eBay Inc. v MercExchange, L. L. C.*, 547 US 388; *Authors Guild v Google, Inc.*, 770 F Supp 2d 666.)

Jenner & Block LLP, Washington, D.C. (*Kenneth L. Dorosh* and *Devi M. Rao* of counsel), and *George M. Borkowski*, *Recording Industry Association of America, Inc.*, Washington, D.C., for *Recording Industry Association of America, Inc.*, amicus curiae. I. New York has a compelling interest in protecting its vibrant and economically important music industry. (*Metropolitan Opera Assn., Inc. v Wagner-Nichols Recorder Corp.*, 199 Misc 786.) II. Digital streaming of sound recordings is the future of the music industry. III. Recognition of a public performance right in pre-1972 sound recordings is essential to preserving the economic viability of an entire era of important creative works.

Paul Hastings LLP, Washington, D.C. (*Stephen B. Kinnaird* of counsel), and *Rick Kaplan* and *Suzanne Head*, *National Association of Broadcasters*, Washington, D.C., for *National Association of Broadcasters*, amicus curiae. I. There is no New York common-law property right in the public performance of sound recordings. (*Capitol Records, Inc. v Naxos of Am., Inc.*, 372 F3d 471; *Palmer v De Witt*, 47 NY 532; *Ferris v Frohman*, 223 US 424; *Dowling v United States*, 473 US 207; *Metropolitan Opera Assn., Inc. v Wagner-Nichols Recorder Corp.*, 199 Misc 786, 279 App Div 632; *Roy Export Co. Establishment of Vaduz, Liechtenstein v Columbia Broadcasting Sys., Inc.*, 672 F2d 1095; *Fortnightly Corp. v United Artists Television, Inc.*, 392 US 390; *International News Service v Associated Press*, 248 US 215.) II. The creation of performance rights in pre-1972 sound recordings should be left to the legislature. (*Chamberlain v Feldman*, 300 NY 135; *Capitol Records, Inc. v Naxos of Am., Inc.*, 372 F3d 471; *CA, Inc. v Simple.com, Inc.*, 621 F Supp 2d 45; *Capitol Records v Mercury Records Corp.*, 221 F2d 657; *Jerome H. Remick & Co. v American Auto. Accessories Co.*, 5 F2d 411; *Matter of Colt Indus. Shareholder Litig.*, 77 NY2d 185; *Southern Pacific Co. v Jensen*, 244 US 205; *Gurnee v Aetna Life & Cas. Co.*, 55 NY2d 184.)

Wilson, Elser, Moskowitz, Edelman & Dicker LLP, New York City (*Adam R. Bialek*, *Stephen J. Barrett* and *Kerianne Losier* of counsel), and *David L. Donovan*, *New York State Broadcasters Association, Inc.*, Albany, for *New York State Broadcasters Association, Inc.*, amicus curiae. I. The history of New York's music and broadcasting industries belies the existence of a common-law right of performance in sound recordings. (*Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *Barker v Parnossa, Inc.*, 39 NY2d 926; *Norcon Power Partners v Niagara*

Mohawk Power Corp., 92 NY2d 458; *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14; *Chamberlain v Feldman*, 300 NY 135.) II. The recognition of a common-law performance right in sound recordings would be impractical and destructive. (*King v Macri*, 993 F2d 294; *Roy Export Co. Establishment of Vaduz, Liechtenstein v Columbia Broadcasting Sys., Inc.*, 672 F2d 1095; *Urbont v Sony Music Entertainment*, 863 F Supp 2d 279.) III. As a matter of law, performance rights in sound recordings do not exist. (*Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *RCA Mfg. Co. v Whiteman*, 114 F2d 86; *Capitol Records v Mercury Records Corp.*, 221 F2d 657; *People v Kane*, 14 Misc 3d 283; *Roberson v Rochester Folding Box Co.*, 171 NY 538; *Gieseeking v Urania Records*, 17 Misc 2d 1034; *Ippolito v Lennon*, 150 AD2d 300.)

Hartman & Winnicki, P.C., Ridgewood, New Jersey (*Daniel L. Schmutter* of counsel), for Howard B. Abrams and others, amici curiae. I. For 75 years, it has been considered settled law that there is no common-law public performance right for sound recordings. (*RCA Mfg. Co. v Whiteman*, 114 F2d 86; *Metropolitan Opera Assn., Inc. v Wagner-Nichols Recorder Corp.*, 199 Misc 786, 279 App Div 632; *Capitol Records v Mercury Records Corp.*, 221 F2d 657; *Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540.) II. Proponents have repeatedly denied the existence of public performance rights when seeking relief from Congress. III. Applying a public performance right to broadcasters and listeners located outside of New York would violate the Dormant Commerce Clause. (*Sam Francis Found. v Christies, Inc.*, 784 F3d 1320; *RCA Mfg. Co. v Whiteman*, 114 F2d 86.)

King & Spalding LLP, San Francisco, California (*Joseph R. Wetzel* and *Ethan P. Davis* of counsel), for Association for Recorded Sound Collections, amicus curiae. I. The United States District Court for the Southern District of New York's holding that rights holders have an exclusive and perpetual right to reproduce and publicly perform pre-1972 sound recordings defies logic. (*Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *Palmer v De Witt*, 47 NY 532; *Wheaton v Peters*, 33 US 591; *Caliga v Inter Ocean Newspaper Co.*, 215 US 182; *Sony Corp. of America v Universal City Studios, Inc.*, 464 US 417; *Estate of Hemingway v Random House*, 53 Misc 2d 462; *Chamberlain v Feldman*, 300 NY 135; *Pushman v New York Graphic Socy.*, 287 NY 302; *RCA Mfg. Co. v Whiteman*, 114 F2d 86; *Goldstein v California*, 412 US 546.) II. The United States District Court for the Southern District of New York's holding

inventing a perpetual public performance right will have grave consequences for curators, consumers, and other stakeholders everywhere. (*Fogerty v Fantasy, Inc.*, 510 US 517; *Authors Guild v Google, Inc.*, 804 F3d 202; *Fendler v Morosco*, 253 NY 281; *Estate of Hemingway v Random House*, 53 Misc 2d 462.)

Irell & Manella, LLP, Los Angeles, California (*Robert M. Schwartz* and *Victor Jih* of counsel), and *Kelley Drye & Warren LLP*, New York City (*Michael Lynch* and *James Saylor* of counsel), for CBS Radio, Inc., amicus curiae. I. Defining the scope of any common-law right requires balancing the competing interests of all affected stakeholders. (*Ortega v City of New York*, 9 NY3d 69; *Landon v Kroll Lab. Specialists, Inc.*, 22 NY3d 1; *Waters v New York City Hous. Auth.*, 69 NY2d 225; *Beck Chevrolet Co., Inc. v General Motors LLC*, 27 NY3d 379; *Madden v Creative Servs.*, 84 NY2d 738; *People v Morton*, 308 NY 96; *Estate of Hemingway v Random House*, 23 NY2d 341; *Twentieth Century Music Corp. v Aiken*, 422 US 151; *Caronia v Philip Morris USA, Inc.*, 22 NY3d 439.) II. The scope of any performance right under New York common law would have to be clearly delineated and limited. (*RCA Mfg. Co. v Whiteman*, 114 F2d 86; *Motorola Credit Corp. v Standard Chartered Bank*, 24 NY3d 149; *Matter of Higby v Mahoney*, 48 NY2d 15; *Buck v Jewell-LaSalle Realty Co.*, 283 US 191; *Fortnightly Corp. v United Artists Television, Inc.*, 392 US 390; *Twentieth Century Music Corp. v Aiken*, 422 US 151; *Broadcast Music, Inc. v Claire's Boutiques, Inc.*, 949 F2d 1482; *Bonneville Intl. Corp. v Peters*, 347 F3d 485; *Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540; *Guice v Charles Schwab & Co.*, 89 NY2d 31.) III. Alternatively, the Court should decline to recognize a common-law performance right and defer the balancing of competing interests to the New York Legislature. (*Baker v Carr*, 369 US 186; *Jones v Beame*, 45 NY2d 402; *Palladino v CNY Centro, Inc.*, 23 NY3d 140; *Bivens v Six Unknown Fed. Narcotics Agents*, 403 US 388; *Duhan v Milanowski*, 75 Misc 2d 1078.)

Weil, Gotshal & Manges LLP, New York City (*Benjamin E. Marks*, *Gregory Silbert* and *Kami Lizarraga* of counsel), *Latham & Watkins LLP*, San Francisco, California (*James K. Lynch* and *Andrew M. Gass* of counsel), and *Latham & Watkins LLP*, Washington, D.C. (*Jonathan Y. Ellis* of counsel), for Pandora Media, Inc. and others, amici curiae. I. The extensive history of legislative efforts to secure a federal performance right for sound recordings reflects the uniform consensus over many decades that no common-law right exists. (*Capitol Records*,

Inc. v Naxos of Am., Inc., 4 NY3d 540; *Sears, Roebuck & Co. v Stiffel Co.*, 376 US 225.) II. The legislature, not the courts, must balance the competing interests and make the policy judgments involved in creating an exclusive right of public performance for pre-1972 recordings. (*Hall v United Parcel Serv. of Am.*, 76 NY2d 27; *Murphy v American Home Prods. Corp.*, 58 NY2d 293; *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14; *Klostermann v Cuomo*, 61 NY2d 525; *Norcon Power Partners v Niagara Mohawk Power Corp.*, 92 NY2d 458; *Twentieth Century Music Corp. v Aiken*, 422 US 151; *Metro-Goldwyn-Mayer Studios Inc. v Grokster, Ltd.*, 545 US 913.) III. The declaration of an unqualified common-law performance right would unleash widespread, inequitable burdens on numerous industries. (*Meredith Corp. v SESAC LLC*, 1 F Supp 3d 180.)

Raza Panjwani, Public Knowledge, Washington, D.C., for Public Knowledge, amicus curiae. I. The existence of a public performance right for sound recordings under New York common law is untenable, in view of the historical development of copyright law. (*The Mikado Case*, 25 F 183; *Metropolitan Opera Assn, Inc. v Wagner-Nichols Recorder Corp.*, 199 Misc 786; *Palmer v De Witt*, 47 NY 532.) II. The necessary complexities of the federal public performance right would be difficult to replicate under New York common law.

OPINION OF THE COURT

STEIN, J.

The Second Circuit Court of Appeals has certified the following question to this Court: “Is there a right of public performance for creators of sound recordings under New York law and, if so, what is the nature and scope of that right?” Because New York common-law copyright does not recognize a right of public performance for creators of sound recordings, we answer the certified question in the negative.

I.

Procedural History

Plaintiff is a corporation owned by two of the original members of the Turtles, a band formed in 1965 and most famous for its No. 1 hit song “Happy Together.” Plaintiff controls the master recordings of approximately 100 Turtles songs that were recorded before 1972. Defendant is the nation’s

largest satellite digital radio service. Defendant acknowledges that it broadcasts pre-1972 sound recordings, including Turtles songs, but does not have licenses with the performers or the sound recording copyright holders, nor does it pay them for broadcasts. Plaintiff commenced this federal putative class action, on behalf of recording artists of pre-1972 sound recordings—or the owners of their rights, who are mostly record companies—alleging common-law copyright infringement and unfair competition. Defendant moved for summary judgment dismissing the complaint.

The United States District Court for the Southern District of New York denied defendant's motion for summary judgment, finding, among other things, that New York affords a common-law right of public performance to protect copyright holders of pre-1972 sound recordings, and that defendant's conduct in making internal reproductions of plaintiff's recordings to facilitate its broadcasts did not constitute fair use (62 F Supp 3d 325 [SD NY 2014]). The District Court indicated that it intended to grant plaintiff summary judgment on liability. That court later denied defendant's motion for reconsideration (113 USPQ2d 1303, 2014 WL 7178134, 2014 US Dist LEXIS 174907 [SD NY, Dec. 12, 2014, No. 13 Civ 5784(CM)]), but certified an interlocutory appeal.

On defendant's appeal, the Second Circuit Court of Appeals determined that the case presented “a significant and unresolved issue of New York copyright law,” and certified the foregoing question to this Court (821 F3d 265, 267, 272 [2d Cir 2016]).¹ This Court accepted the certified question (27 NY3d 1015 [2016]).

II.

Federal Copyright Law

Although copyright evolved in English common law and was adapted into the common law in this country, it is now primarily governed by federal statutes. Congress enacted the first federal Copyright Act in 1790 (*see* Act of May 31, 1790 § 1 [1st Cong, 2d Sess, ch 15], 1 US Stat 124, reprinted in Lib of Cong,

1. Although the Second Circuit held that defendant copied plaintiff's sound recordings in the course of its broadcasting protocol, the court deferred resolution of the fair use defense, unfair competition, and other issues raised, until after we answer its certified question (821 F3d 265, 270 n 4, 272 [2d Cir 2016]).

Copyright Enactments, 1783-1900 at 30-32); however, federal law did not protect musical works until 1831 (*see* Copyright Act of 1831 [21st Cong, 2d Sess, ch 16], 4 US Stat 436). Despite a major revision of the Copyright Act in 1909, Congress did not consider audio musical works or recordings—as contrasted with the musical composition (sheet music)—to be within the scope of the act (*see Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540, 552 [2005]). This is unsurprising, considering that sound recording was, at that time, a relatively new technology.² State common law applies to copyright only to the extent that federal statutes do not (*see* 17 USC § 301 [a]; *Naxos*, 4 NY3d at 559). Pursuant to federal statute, copyright protection encompasses original works of authorship fixed in any tangible medium of expression, including the categories of literary works, musical works, dramatic works and, as relevant here, sound recordings, subject to certain limitations (*see* 17 USC § 102 [a]).

Sound recordings were a late addition to the federal statutes. They were first included in the Sound Recording Amendment of 1971, but the protection afforded by the amendment was limited to those recordings produced after February 15, 1972 (*see* Pub L 92-140, 85 US Stat 391 [1971]). The federal statutes then provided exclusive rights to the owner of a copyright to reproduce the work in copies or phonorecords, prepare derivative works, and distribute copies of the work to the public by sale or lease (*see* 17 USC § 106 [1]-[3]; *Arista Records, LLC v Launch Media, Inc.*, 578 F3d 148, 152 [2d Cir 2009] [noting the right to reproduce “tangible” copies of sound recordings], *cert denied* 559 US 929 [2010]). Although the statutes provided a right “to perform the copyrighted work publicly,” that right applied only to literary, musical, dramatic, and choreographic works, motion pictures, pantomimes and other audiovisual works; Congress expressly stated that this performance right did not extend to sound recordings (*see* 17 USC §§ 106 [4]; 114 [a] [providing that the exclusive rights of owners of sound recordings were limited and did not include any right of performance]; *Arista Records, LLC*, 578 F3d at 152).

A summary of the historical background of the distinction between the law’s treatment of composers versus performers was articulated in *Bonneville Intl. Corp. v Peters*, as follows:

2. The phonograph was invented in 1877.

“The creator of a musical composition has long had a right of exclusive public performance of that musical piece. . . . However, the owner of a copyright in a *sound recording* of a musical composition has long had very little copyright protection. Until 1971 there was no copyright protection at all. With the Sound Recording Amendment of 1971, a limited copyright in the reproduction of sound recordings was established in an effort to combat recording piracy. However, there was still no right to public performance of that sound recording. Therefore, while playing a compact disc recording of [a particular song] in a concert hall for the paying public would still enrich [the composer’s assignee], the person or company that owned the copyright *on the CD recording* of the music would earn no remuneration beyond the proceeds from the original sale of the recording. . . . While radio stations routinely pay copyright royalties to songwriters and composers (through associations like the American Society of Composers, Authors, and Publishers . . . (‘ASCAP’) and Broadcast Music, Inc. (‘BMI’)) for the privilege of broadcasting recorded performances of popular music, they do not pay the *recording industry* royalties for that same privilege. Perhaps surprisingly, this state of affairs, until [the early 1990s], produced relatively high levels of contentment for all parties. The recording industry and broadcasters existed in a sort of symbiotic relationship wherein the recording industry recognized that radio airplay was free advertising that lured consumers to retail stores where they would purchase recordings. And in return, the broadcasters paid no fees, licensing or otherwise, to the recording industry for the performance of those recordings. The recording industry had repeatedly sought, however, additional copyright protection in the form of a performance copyright. Until 1995, those efforts were rejected by Congress” (347 F3d 485, 487-488 [3d Cir 2003] [citations and footnotes omitted and some emphasis added]).

In 1995, due to concerns about the expansion of digital means of reproducing music, Congress enacted the Digital Performance Right in Sound Recordings Act (DPRA), which accorded sound recording owners a right to control or authorize the

public performance of the copyrighted work, but only for performances “by means of a digital audio transmission” (17 USC § 106 [6]). At the same time, however, Congress fashioned a number of exemptions to this right. Thus, under federal law, the exclusive right of performance is circumscribed, and excludes transmissions in nonsubscription broadcasts, as well as the playing of music within a business establishment and its surrounding vicinity (*see* 17 USC § 114 [d]).

Essentially, the right to control performance is now limited to digital radio services, and does not apply to AM/FM radio stations, nor to bars, restaurants or stores that play music in their establishments. “This exemption was founded in Congress’s desire not to impose ‘new and unreasonable burdens on radio and television broadcasters, which often promote, and appear to pose no threat to, the distribution of sound recordings’ ” (*Bonneville Intl. Corp.*, 347 F3d at 488, quoting HR Rep 104-274, 104th Cong, 1st Sess at 14 [1995]).

Significantly, the DPRA created a highly complex scheme that: established a statutory licensing regime for noninteractive digital subscription services; required copyright owners to grant a license to such services for performance of their sound recordings (in order to prevent an artist from refusing to allow digital radio play); provided a means of determining reasonable rates and royalty payments (including a dispute resolution system); and required that portions of the royalties be distributed to the recording artists, as well as to the copyright owner (*see* 17 USC § 114 [d], [e], [f], [g]; *Bonneville Intl. Corp.*, 347 F3d at 488-489). The enactment of the DPRA was prompted, in part, by concerns that, without appropriate protection, the creation of new sound recordings and musical works would be discouraged, and new subscription and interactive services might adversely affect sales of sound recordings and erode the ability of copyright owners to control and be paid for their work (*see Arista Records, LLC*, 578 F3d at 154). After years of public comment and deliberation, Congress attempted to strike a balance between, on the one hand, protecting owners of copyright and encouraging creation of new music and, on the other hand, promoting the development of new media and distribution forms (*see id.*). Indeed, through the DPRA’s intricate scheme of rules and exceptions, Congress balanced the interests of numerous stakeholders, including digital radio services, recording companies, composers, terrestrial radio stations, businesses that play music on their premises, performing artists, and the public.

In the DPRA, Congress specifically provided that, while the federal copyright statutes preempted other laws, they did not limit or annul the common law or statutes of any state with respect to a violation of rights unless the rights provided under state law were equivalent to the exclusive rights contained in 17 USC § 106 (*see* 17 USC § 301 [b] [3]). With respect to sound recordings fixed before February 15, 1972, Congress expressly stated that any rights or remedies under state statutes or common law (that do not conflict with the federal statutes) may be applied until February 15, 2067 (*see* 17 USC § 301 [c]). In this regard, the United States Supreme Court has held that states can regulate—by statute or common law—areas of copyright not covered by federal statutes, including recordings of musical performances fixed prior to 1972 (*see Goldstein v California*, 412 US 546, 570-571 [1973] [upholding California anti-piracy statute applied to pre-1972 sound recordings]). While Congress permitted the states to regulate unaddressed areas of copyright law until 2067, it neither indicated that such rights existed, nor required states to recognize or create new or additional rights.

In a case addressing statutory copyright, the Supreme Court explained that, while copyright is a form of property interest, it is not like ordinary chattels insofar as it “comprises a series of carefully defined and carefully delimited interests to which the law affords correspondingly exact protections” (*Dowling v United States*, 473 US 207, 216 [1985]). Consistent with that principle, 17 USC § 106 confers certain exclusive rights, including the right to publish, copy and distribute the work, but the copyright owner is subjected to defined limits and is not accorded “complete control over all possible uses of his [or her] work” (*id.* at 217 [internal quotation marks and citations omitted]).

III.

New York State Common-Law Copyright

The question now before us is whether, in light of this history, New York common law includes a right to control public performances of pre-1972 copyrighted sound recordings. If so, the copyright holders have gone decades without acting to enforce that right.

The common law, of course, evolves slowly and incrementally, eschewing sudden or sweeping changes (*see Norcon Power*

Partners v Niagara Mohawk Power Corp., 92 NY2d 458, 467-468 [1998]). We have recognized that the legislature has the ability to step in and make drastic changes to the law, but that courts cannot do so (see *Roberson v Rochester Folding Box Co.*, 171 NY 538, 545 [1902]). Rather, when addressing a legal question for the first time, courts must be mindful of the effect on future litigation and the development of the law (see *id.* at 545-547). State court cases in New York have not directly addressed the question of whether the common-law copyright for sound recordings includes the right of public performance. Thus, this issue of first impression requires a review of our state's relevant case law.

Palmer v De Witt (47 NY 532 [1872]) was an early case concerning common-law copyright of a play. In that case, this Court explained that authors have a common-law copyright—also called the right of first publication—in unpublished works of any form, including literary works, dramatic or musical compositions, designs or artwork. In accordance with such right, the author may determine whether to publish the work at all and, if so, “when, where, by whom, and in what form” (*id.* at 536). That exclusive right was limited to the first publication such that, under common law, once the work was published and dedicated to the public, it became the property of the world, and the author had no exclusive right to make multiple copies or control whether others could make and distribute copies (see *id.* at 536, 539). Nevertheless, while we did not recognize a common-law right to control distribution after the first publication, authors obtained a statutory right to multiply copies to the exclusion of others (see *id.* at 536; see also *A. J. Sandy, Inc. v Junior City*, 17 AD2d 407, 409 [1st Dept 1962]). In other words, in *Palmer*, this Court described the protection of literary labor as primarily statutory in nature and concluded that the common-law protection was “very slight at the best” (*Palmer*, 47 NY at 539).

The question then became whether the dramatic composition at issue in *Palmer* had been “published” by being performed on stage with the author's permission, even though the script, itself, had not been distributed to the public. In that regard, we explained that “[t]he rights of an author of a drama in his [or her] composition are two-fold. He [or she] is entitled to the profit arising from its performance, and also from the sale of the manuscript, or the printing and publishing [of] it” (*id.* at 543). Those rights—performance; and printing and distribu-

tion—were described as entirely distinct, it being possible for one to exist without the other (*see id.* at 542). We noted that the exclusive right of first publication existed at common law, but that the right to control public performance was created by statute; in fact, the common law permitted anyone to perform a play from memory or from a legally procured script, without paying royalties to perform it (*see id.*). *Palmer* was an early example of the principle that a copyright owner can have separate rights addressing copying and performing, with the former based in common law and the latter based in statute. We did not recognize a single, inseparable bundle of rights.

Seventy years later, in *Pushman v New York Graphic Socy.*, this Court recognized that an artist has a common-law copyright—which we alternately called “control of the right to reproduce”—that protects the right to make reproductions of a painting, which right is separate from, and does not necessarily pass with, the sale of the painting (287 NY 302, 307 [1942]). That case similarly drew a distinction between the right to make copies and the right to the physical object itself, at times giving protection to one but not the other.

An important federal case in this discussion, decided a few years before *Pushman*, is *RCA Mfg. Co. v Whiteman* (114 F2d 86 [2d Cir 1940], *certs denied* 311 US 712 [1940]). Defendant contends that *Whiteman* definitively held that New York’s common law does not provide a right of public performance to a copyright owner of a sound recording. Defendant maintains that, for the nearly 75 years between that decision in 1940 and the District Court’s decision in the present case, all interested stakeholders treated *Whiteman* as a proper statement of New York law. In *Whiteman*, RCA had a contract pursuant to which it recorded Whiteman’s orchestra and sold the records to the public, with a legend on each record stating that it was not licensed for radio broadcast (*see id.* at 87). The defendant broadcasting company purchased the records and then broadcast them on the radio. The Second Circuit considered the questions of whether Whiteman and RCA had any common-law property rights in the recordings that were invaded by such broadcasting and, if so, whether the legend limited the use that buyers might make of the records (*see id.*). The court began its analysis by noting that, although rights in sound recordings had been recognized only fairly recently—because it had been possible to record an artist’s performance only since the advent of the phonographic record—such rights had nevertheless

become valuable (*see id.* at 88). The court ultimately held that “the ‘common-law property’ in these performances ended with the sale of the records and that the restriction did not save it” (*id.*).

That holding is based, in part, on the premise that any form of copyright “is a monopoly [that] consists only in the power to prevent others from *reproducing* the copyrighted work” (*id.* [emphasis added]). The court concluded that the broadcaster did not invade that right, because it never copied the performances; the broadcaster “merely used those copies which [Whiteman and RCA] made and distributed,” in the way that the performances were intended to be used—namely, by playing them (*id.*). Addressing publication of the work, the court then applied that premise to conclude, consistent with the old common-law copyright rule, that the copyright was extinguished once a work was published (*see id.* at 89). The court stated that, if the common-law copyright had dissolved, “then anyone may copy it who chances to hear it, and may use it as he [or she] pleases. It would be the height of ‘unreasonableness’ to forbid any uses to the owner of the record which were open to anyone who might choose to copy the rendition from the record” (*id.*).

Fifteen years later, in *Capitol Records v Mercury Records Corp.* (221 F2d 657 [2d Cir 1955]), the Second Circuit again addressed the topic, including the *Whiteman* decision. At that time, a sound recording itself—as opposed to the musical composition—was not a copyrightable work under the federal statutes. Finding “a complete dearth of authority” in New York state law, the court premised its decision upon principle (*id.* at 662). As relevant here, the court addressed the question of whether the owner of the right to make certain sound recordings lost that right as soon as it sold its first records (*see id.* at 663). The court summarized *Whiteman* as holding that “the commonlaw property in the performances of musical artists which had been recorded ended with the sale of the records and that thereafter anyone might copy them and use them as he [or she] pleased” (*id.*). The court then asserted, however, that “the quoted statement from [*Whiteman*] is not the law of the State of New York” (*id.*). Citing a state trial-level decision handed down after *Whiteman*, the Second Circuit concluded that, where the originator of “records of performances by musical artists puts those records on public sale, his [or her] act does not constitute a dedication of the right to copy and sell the records” (*id.*, citing *Metropolitan Opera Assn., Inc. v*

Wagner-Nichols Recorder Corp., 199 Misc 786 [Sup Ct, NY County 1950], *affd* 279 App Div 632 [1st Dept 1951]).

In our view, *Mercury Records* overruled *Whiteman*'s holding, but not the underlying premise pronounced in that case. The holding of *Mercury Records*—that merely selling a record to the public does not divest the copyright holder of its exclusive interest in the right to copy and distribute the protected sound recording—constitutes protection against piracy, which all of the parties and amici here recognize as valid. However, *Mercury Records* did not address the underlying premise stated in *Whiteman*—that common-law copyright of sound recordings “consists only in the power to prevent others from *reproducing* the copyrighted work”; that limited right does not include control over other rights in the work, such as public performance (*Whiteman*, 114 F2d at 88 [emphasis added]). Since the 1940s, the recording and broadcasting industries appear to have acted in conformity with that premise, as evidenced by the apparent absence of any attempt by sound recording copyright owners to assert control over the right of public performance.

In the *Metropolitan Opera* case (199 Misc 786), the Metropolitan Opera (the Met) entered into a contract with ABC for the exclusive right to broadcast its performances. The Met also entered into a contract with Columbia Records for the exclusive right to make and sell phonograph records of its performances, but reserved the right to approve all records before they were offered for sale (*see id.* at 789-790). The defendant recorded the ABC broadcast performances off the air, without permission, and used those recordings to produce records that it then sold to the public (*see id.* at 790). The principal claim in the action brought by the Met was for unfair competition, but the Met also argued that it and its assignees possessed protected property rights such that they could exclude others from making recordings. The court concluded that the production of an opera included creative elements that the law of copyright would recognize and protect against appropriation (*see id.* at 798). Specifically, the court concluded that, under the common law, the live performance of an opera on stage and the broadcast of it on the radio under an exclusive broadcasting contract was publication for only a limited purpose, which did not dissolve the Met's rights to that performance for other purposes (*see id.*, citing *Palmer*, 47 NY 532). The court noted the care exercised by the Met in limiting its grants by entering

into exclusive contracts and reserving the right to approve records before their release, which indicated “an attempt to retain effective control over the broadcasting and recording of its performances” (*Metropolitan Opera Assn.*, 199 Misc at 799).

As the Second Circuit correctly stated in *Mercury Records*, *Metropolitan Opera* held that an artist or creator of a performance can, under New York common law, prevent someone without permission from exploiting a performance by making a surreptitious recording of it, reproducing that recording and selling the copies, as the defendant did there (see *Mercury Records Corp.*, 221 F2d at 663). In our view, however, *Metropolitan Opera* is essentially limited to an anti-piracy determination. Most of the other state trial-level cases also concern piracy or the meaning of the word “publication” in the copyright arena (see e.g. *Capitol Records v Greatest Records*, 43 Misc 2d 878, 879 [Sup Ct, NY County 1964]; *Columbia Broadcasting Sys. v Documentaries Unlimited*, 42 Misc 2d 723, 724-725 [Sup Ct, NY County 1964]; *Brandon Films v Arjay Enters.*, 33 Misc 2d 794, 795 [Sup Ct, NY County 1962]; *Giesecking v Urania Records*, 17 Misc 2d 1034, 1035 [Sup Ct, NY County 1956]). None of those cases, including *Metropolitan Opera*, directly address the right of public performance.³

Several cases addressing New York common law cite the decision of the Pennsylvania Supreme Court in *Waring v WDAS Broadcasting Sta.* (327 Pa 433, 194 A 631 [1937]). There, an orchestra sued a radio station for broadcasting the orchestra’s

3. Publication is an important concept in common-law copyright. Copyright originally applied only to written works and, as noted above, the act of publication generally divested the author of common-law rights (see *Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540, 551-552 [2005]; *Jewelers’ Mercantile Agency v Jewelers’ Weekly Publ. Co.*, 155 NY 241, 247 [1898]). Thus, the common-law copyright was sometimes referred to as the right of first publication (see *Pushman v New York Graphic Socy.*, 287 NY 302, 307 [1942]; *Palmer v De Witt*, 47 NY 532, 536 [1872]). We have recognized that, because copyright laws were originally created to protect the written word, courts have been confronted with challenges in attempting to apply those laws to new or different forms of communication or expression (see *Naxos*, 4 NY3d at 552). Indeed, several of the cases cited in the immediately-preceding text above, as well as many others, have addressed what constitutes a general publication of a sound recording, such as would commit the recording to the public domain and divest it of common-law copyright protection. Federal statutes define “publication,” but the definition only applies to works falling within the statutes themselves; pre-1972 sound recordings are not covered (see *id.* at 557; 17 USC § 101). Despite this digression, publication is not at issue in our discussion of the certified question here.

records, despite a label on each record stating that it was not licensed for radio broadcast (*see* 327 Pa at 436-437, 194 A at 632-633). The radio station had appropriated and used the orchestra's efforts for the station's own profit, in competition with the orchestra itself, which performed live on the radio each week in exchange for a sizable sum (*see* 327 Pa at 452-453, 194 A at 640). The Pennsylvania Supreme Court reasoned in that case that the phonograph record, itself, was distinct and independent from the title to the artistic property contained on it (the orchestra's performance of a composition), and that use of the latter could be limited despite the sale of the record (*see* 327 Pa at 448, 194 A at 638). Accordingly, the court determined that equity would allow an injunction to protect against unfair competition (*see* 327 Pa at 449, 194 A at 638).

Waring has no direct bearing on whether New York common law recognizes a right of public performance of sound recordings. To the extent this 1937 out-of-state decision pronounced a public performance right for creators of sound recordings under Pennsylvania common law, we find this holding inapplicable in the context of New York state common-law copyright.

The most recent pronouncement from this Court on New York's common-law copyright came in the 2005 case of *Capitol Records, Inc. v Naxos of Am., Inc.* (4 NY3d 540 [2005]). There, we were presented with a certified question and sub-questions that we summarized as asking "whether there is common-law copyright protection in New York for sound recordings made prior to 1972" (*id.* at 544). The plaintiff recording company, Capitol Records, had recorded famous musicians in the 1930s and had contracts with the artists that permitted an absolute worldwide right to the performances, including the right to make and sell copies of the recordings to the public. The defendant conducted its own restoration of the original recordings and offered compact discs for sale in the United States, without obtaining a license. The complaint alleged common-law copyright infringement under New York law.

The *Naxos* decision included summaries of *Waring*, *Metropolitan Opera* and *Whiteman* (*see id.* at 553-554). Our synopsis of *Waring* was limited to stating that an artist's rights in records were protected by state common law, and that the sale of records with a limiting label did not constitute a publication that would divest the artist of common-law property rights, because the labels indicated a lack of intent to make the records com-

mon property (*see id.*). We observed that the Second Circuit had reconsidered its view of state common law after *Metropolitan Opera*, and referred to that court’s announcement in *Mercury Records* “that the appropriate governing principle [under New York common law] was that ‘where the originator . . . of records of performances by musical artists puts those records on public sale, his [or her] act does not constitute a dedication of the right to copy and sell the records’” (*Naxos*, 4 NY3d at 554, quoting *Mercury Records Corp.*, 221 F2d at 663). This, we stated, was consistent with the long-standing practice of the United States Copyright Office and “became the accepted view within the music recording industry” (*Naxos*, 4 NY3d at 555). Recognizing that these decisions appear to conflict with the traditional principle that a public sale of a literary work constituted a general publication that terminated a common-law copyright, such that any further copyright protection must be statutory, we pointed out the historical distinction in the treatment of literary and musical works (*see id.*).

Turning to the scope of common-law copyright protection in New York, this Court indicated in *Naxos* that both the judiciary and the state legislature intended to fill the void left by Congress to protect owners of sound recordings (*see id.* at 559 [citing Penal Law art 275, and Arts and Cultural Affairs Law § 31.01 as legislative efforts]). We recognized that the federal statutes had abrogated our state common-law protection of sound recordings in two respects: first, the common law does not cover any sound recordings fixed after February 15, 1972, because the federal statutes cover them; and second, any state common-law protection for pre-1972 sound recordings is not perpetual because a federal statute mandates that state rights will cease in 2067 (*see Naxos*, 4 NY3d at 560; *see also* 17 USC § 301 [c]). Thus, we concluded that the pre-1972 sound recordings at issue therein were entitled to copyright protection under New York common law until 2067 (*see Naxos*, 4 NY3d at 560).

Next, it was necessary for us to determine what constituted “publication” under the facts presented. We declared that “in the realm of sound recordings, it has been the law in this state for over 50 years that, in the absence of federal statutory protection, the public sale of a sound recording otherwise unprotected by statutory copyright does not constitute a publication sufficient to divest the owner of common-law copyright protection” (*id.*). We concluded that the musical

recordings therein were entitled to common-law copyright protection under our state law, regardless of whether they had entered the public domain in the country of origin, if the alleged infringement occurred in New York (*see id.* at 561-563).

In answering one of the sub-questions in *Naxos*, this Court delineated the elements of a cause of action alleging New York common-law copyright infringement: “(1) the existence of a valid copyright; and (2) unauthorized *reproduction* of the work protected by the copyright” (*id.* at 563 [emphasis added]). We referred to the second element as requiring “unauthorized copying and distribution” (*id.*); we did not include unauthorized performance as an alternative way of establishing that element. Indeed, our decision did not, in the context of rights under state common-law copyright, discuss public performance at all.

Naxos does not resolve the question presently before us. That, too, was an anti-piracy case; it reiterated that New York’s common-law copyright protection would prevent the unauthorized copying and sale of records. However, *Naxos* did not address the right of public performance. Thus, our conclusion in *Naxos* that pre-1972 sound recordings are subject to some New York common-law copyright protection does not define the scope of that protection or stand for the proposition that there is a single aspect to that protection, as opposed to separate and distinct aspects of reproduction and performance.

While the cases discussed above are not directly on point, they do demonstrate that we can, and do, separate the various rights held by creators of sound recordings. *Palmer* recognized the two distinct rights of a play’s author—the right to control copying and sales of scripts, and the right to control performances (*see* 47 NY at 543). These rights were described in a way that separated them for legal purposes. *Pushman* also discussed the separate nature of the artist’s rights to sell a painting and to control the ability to make reproductions (*see* 287 NY at 307). Moreover, these distinct rights have been treated differently.

Most of the decisions from lower courts, or from federal courts applying New York law, have been rendered in anti-piracy cases that do not provide an answer or rationale to support a conclusion regarding the question presented here—whether New York common law provides a right of public performance to creators of sound recordings (*see Mercury Rec-*

ords Corp., 221 F2d at 663; *Giesecking*, 17 Misc 2d at 1035; *Capitol Records v Greatest Records*, 43 Misc 2d at 879; *Metropolitan Opera*, 199 Misc at 799). Although *Whiteman* was overruled in part, *Mercury Records* should not be read to overrule the underlying premise—not at issue in the latter case—that our common-law copyright protection prevents only the unauthorized reproduction of the copyrighted work, but permits a purchaser to use copies of sound recordings for their intended purpose, namely, to play them (see *Whiteman*, 114 F2d at 88). It makes sense that, consistent with its name, *copyright* prevents *copying* of a work, but does not prevent someone from using a copy, once it has been lawfully procured, in any other way the purchaser sees fit.

IV.

Societal Expectations

The understanding and expectations of society are also relevant to the question of what falls within the common-law copyright protection (see *Motorola Credit Corp. v Standard Chartered Bank*, 24 NY3d 149, 162-163 [2014] [refusing to overrule long-standing common-law rule because interested parties in the affected segment of society had relied on the rule]; *Naxos*, 4 NY3d at 561 n 9 [observing that our conclusion regarding state common-law copyright was the same position taken by the United States Copyright Office and sound recording industry]). In that regard, at hearings held before Congress, representatives of the recording industry have indicated that copyright owners do *not* have a right of performance (see e.g. *Arista Records, LLC*, 578 F3d at 153 [citing 1995 testimony of Jason Berman, president of the Recording Industry Association of America, that without a copyright in right of performance via Internet technology, the industry would be unable to compete in the emerging digital age]; testimony of Jason S. Berman before the House Judiciary Subcommittee on Courts and Intellectual Property: Hearing on HR 1506, June 21, 1995, 1995 WL 371088 [stating that under existing law, performers “have no rights to authorize or be compensated for the broadcast or other public performance of their works”]; Copyright Law Revision: Hearings before the Subcommittee on the Judiciary, Part 2, 90th Cong, 1st Sess at 496, 500 [1967] [stating that under existing law the record companies and performers receive nothing from public performance on radio or in clubs]).

While plaintiff suggests that this testimony, and the lobbying of Congress by the recording industry for a right of public performance, merely reflected the understanding that there was no *federal statutory right* to public performance in sound recordings, many of the statements reflect a broader understanding that there was *no such right*—including under state common law—to protect copyright holders of sound recordings.⁴ Indeed, several Registers of Copyrights have repeatedly indicated that no such public performance right exists, or at least that it was not generally recognized (*see* Copyright Office, Federal Copyright Protection for Pre-1972 Sound Recordings: A Report of the Register of Copyrights 44-45 [2011] [explaining that “(i)n general, state law does not appear to recognize a performance right in sound recordings”];⁵ Performance Royalty: Hearings before the Subcommittee on Patents, Trademarks, and Copyrights of the Senate Committee on the Judiciary on S 1111, 94th Cong, 1st Sess at 10 [Comm Print 1975] [stating that creators of sound recordings have copyright protection under federal law, but “still receive no royalties whatever from the public performance for profit of their copyrighted works”]; Copyright Law Revision: Hearings before Subcommittee No. 3 of the House Committee on the Judiciary on HR 4347, HR 5680, HR 6831, HR 6835, 89th Cong, 1st Sess at 1863 [Comm Print 1965] [opining, based on experience, that the chance of enacting a bill recognizing a right of performance in sound recordings was so remote as to be nonexistent]). To be sure, the beliefs of these individuals and groups are not dispositive; however, they do shed some light on the fact that stakeholders in this arena have not understood New York common-law

4. The dissent similarly asserts that, when Congress amended the Copyright Act to include post-1972 sound recordings but explicitly withheld the right of public performance, “Congress understood that state common law included a right of performance, for otherwise this express reservation would be unnecessary” (dissenting op at 630). But it is at least equally plausible that Congress believed that no right of public performance existed, even under the common law, and codified an explicit exclusion to make its understanding clear, particularly in light of the recording industry’s lobbying efforts to create such a right. Even if Congress believed that such a right existed under state common law, such belief was unfounded as it pertained to New York.

5. This 2011 statement was revised after the present case was commenced. The Register of Copyrights clarified that, while states could recognize a performance right in sound recordings under their common law, state law did not appear to recognize such a right at that time (*see* Music Licensing Study: Second Request for Comments, 79 Fed Reg 42,834 n 3 [July 23, 2014]).

copyright to provide a right of public performance to the copyright holders of sound recordings (*see Naxos*, 4 NY3d at 561 n 9).

Indeed, it would be illogical to conclude that the right of public performance would have existed for decades without the courts recognizing such a right as a matter of state common law, and in the absence of any artist or record company attempting to enforce that right in this state until now. The absence of a right of public performance in sound recordings was discussed at the federal level for years and became acutely highlighted in 1971, upon enactment of the Sound Recording Amendment, and again in 1995, upon enactment of the DPRA. At those times, all interested parties were placed on notice of the statute's limited rights for post-1972 sound recordings. Although parties do not lose their rights merely by failing to enforce them, the fact that holders of rights to sound recordings took no action whatsoever to assert common-law protection for at least the past four decades—when the absence of a comprehensive federal right of public performance for sound recordings was clear—supports our conclusion that artists and copyright holders did not believe such a right existed in the common law.

Instead, common sense supports the explanation, articulated by the Third Circuit, that the record companies and artists had a symbiotic relationship with radio stations, and wanted them to play their records to encourage name recognition and corresponding album sales (*see Bonneville Intl. Corp.*, 347 F3d at 487-489). As the dissent acknowledges (*see* dissenting op at 632-633), the Federal Copyright Office explicitly recognized the technological advances affecting the interests of the various participants in the music industry as early as 1991 (*see* Register of Copyrights, Report on Copyright Implications of Digital Audio Transmission Services at 154-155 [Oct. 1991]). Nevertheless, those participants have coexisted for many years and, until now, were apparently “happy together.” While changing technology may have rendered it more challenging for the record companies and performing artists to profit from the sale of recordings, these changes, alone, do not now warrant the precipitous creation of a common-law right that has not previously existed.

Simply stated, New York's common-law copyright has never recognized a right of public performance for pre-1972 sound recordings. Because the consequences of doing so could be

extensive and far-reaching, and there are many competing interests at stake, which we are not equipped to address, we decline to create such a right for the first time now. Even the District Court here, while finding the existence of a common-law copyright of public performance in sound recordings, acknowledged that such a right was “unprecedented,” would upset settled expectations, and would “have significant economic consequences” (62 F Supp 3d at 352). Under these circumstances, the recognition of such a right should be left to the legislature.

As Congress demonstrated when it enacted the DPRA—by including mandatory licensing and a rate-setting scheme, as well as exemptions—recognizing new rights in this complex area of law involves a delicate balancing of numerous competing interests, requiring an intricate regulatory scheme that can be crafted only by a legislative body. For instance, to make practical the exercise of the right of public performance, it would certainly be necessary to have a central agency or clearinghouse—as the DPRA has established—to maintain a record of ownership rights in sound recordings.

Further, in contrast to the anti-piracy right—which is based on an acknowledgment that no relevant stakeholder has a legitimate interest in unauthorized duplication and distribution of sound recordings—some stakeholders may be harmed if we recognize a right of public performance. Composers, for instance, are paid royalties each time their song is performed publicly (*see* 17 USC § 106 [4]). However, if the sound recording copyright holder has control over whether and when a recording of that song is played, the composer could lose royalties. In addition, the public and the artists could be harmed by the recognition of a right of public performance. Specifically, if deterred by the costs of paying to play older songs, radio services may choose to limit or cease their broadcasts of pre-1972 music. The public will then be deprived of this music and artists will be deprived of the interest in their performances that is generated by radio broadcasting, potentially resulting in decreased revenue to the performers from record sales and from live concerts, festivals and merchandise which, in many instances, have replaced record sales as the performers’ primary sources of income. These are but a few of the potential ramifications of recognizing a right of public performance; there are undoubtedly others which we have not even considered. Moreover, the requested expansion of copyright protection is

not necessary to encourage the creation of music, as it would apply only to recordings that were already created more than 40 years ago.

We cannot ignore the fact that Congress studied the nature and scope of the right to the public performance of sound recordings for nearly two decades before revising the federal statutes to recognize a limited right. Indeed, in 1976, Congress “considered at length the arguments in favor of establishing a limited performance right, in the form of a compulsory license, for copyrighted sound recordings, but concluded that the problem require[d] further study” (HR Rep 94-1476, 94th Cong, 2d Sess at 106, reprinted in 1976 US Code Cong & Admin News at 5659, 5721). As directed by the Copyright Act of 1976, the Register of Copyrights submitted a voluminous report in 1978, recommending that Congress enact a limited right to control public performances of sound recordings. Not until 1995 did Congress take action on that recommendation and enact any such right and, even then, the right it created was a narrow one circumscribed by a nuanced regulatory scheme limited to digital transmissions of post-1972 sound recordings (*see* Pub L 104-39 § 2 [3], 109 US Stat 336 [1995]). Moreover, as part of that statutory scheme, Congress included a requirement that the copyright holder pay a portion of the royalties to the recording artist; even if we were to recognize a common-law copyright to public performance, there is no guarantee that the artists would receive any portion of the royalties, as many copyrights are apparently held by the record companies. Ultimately, it cannot be overstated that, if this Court were to recognize a right of public performance under the common law, we would be ill-equipped—or simply unable—to create a structure of rules to properly guide the application of that right. The legislative branch, on the other hand, is uniquely qualified, and imbued with the authority, to conduct the required balancing of interests and make the necessary policy choices.

V.

Scope of Right

The question certified to us also asks—*if* we recognize a right of public performance in sound recordings—that we define the nature and scope of that right. Because we do not recognize such a right, we need not address the second portion of the

certified question. However, a brief discussion of the issue further demonstrates why we should not create the right in the first instance.

Plaintiff argues that the right of public performance should apply when a sound recording is used for “commercial purposes,” but the scope of that term remains undefined. For instance, it is unclear whether the right would apply to AM/FM radio broadcasting. Traditional radio stations generate money through advertisers, who essentially pay for the music, so it may very well be that the recordings will be considered as being used for a commercial purpose in that arena. It would be irresponsible for us to recognize a right of public performance and leave open such a basic question as whether such right applies to ordinary radio. It is similarly unclear whether the right would extend only to situations in which someone is charged directly for the music—such as defendant’s digital radio service, or even a jukebox—or whether the right would also apply where payment is indirect, such as to a bar that imposes a cover charge when it has a DJ who plays music. As plaintiff concedes, the public performance right might also apply to public entities, such as museums or schools. Given this uncertainty and the plethora of issues involved in deciding these questions, such line-drawing is best left to the legislature.⁶

The dissent would recognize a right of public performance in pre-1972 sound recordings that tracks the federal right in post-

6. The certified question does not differentiate between different media or types of services in the continuum of public users of sound recordings, as recounted in the concurrence, such as: terrestrial radio; free Internet radio broadcasters; subscription satellite and Internet radio broadcasters (like defendant); and interactive digital services that allow a user to “rent” the provider’s library of music at any time. Regardless of the media used, we hold that the creator of the sound recording is not entitled to a right of public performance under our common law. We acknowledge that a number of questions, not raised or addressed by the parties in this case, remain unresolved. For example, as noted in the concurrence, interesting questions may come to mind concerning whether obtaining a song from an interactive digital service—which permits a paying user to select any particular song and call it up on any device at any time, or even, perhaps, to download the song and play it when not connected to the Internet—violates some protected rights of the owners of sound recordings under state common law or some other copyright principles. That question—and, indeed, others not yet envisioned based upon new and emerging technologies—remains open until addressed by the legislature or until properly presented to the Court in the context of a proceeding in which all interested stakeholders have an opportunity to provide input regarding such novel issues.

1972 sound recordings (*see* dissenting op at 633). While the dissent notes that the federal law reflects Congress’s balancing of the varied and competing interests involved, this only highlights that a legislative body—not the courts—should make decisions regarding such a right.⁷ Additionally, it would be highly unusual for this Court to simply adopt federal statutes as the embodiment of the scope of a state common-law right. Moreover, as a practical matter, not all aspects of the complex federal scheme can be directly incorporated under our common law. For example, in the DPRA, Congress provided a means of determining reasonable rates and royalty payments, including a dispute resolution system (*see* 17 USC § 114 [f]). However, state courts have no authority to require the federal Copyright Royalty Judges to adjudicate challenges to royalty rates on pre-1972 sound recordings (*see* 17 USC §§ 114 [f]; 801-804), nor do we have the authority to create a New York State version of that dispute resolution system.

Further, the federal Copyright Act—on which the dissent would rely to define the scope of our state’s common-law right—applies nationally, not on a state-by-state basis. The dissent acknowledges that defendant’s subscribers “can travel cross-country and enjoy uninterrupted and unlimited play” of music within defendant’s coast-to-coast satellite coverage area (dissenting op at 618). Defendant’s license from the Federal Communications Commission requires it to broadcast the same music or programs nationwide, and does not allow defendant

7. The dissent relies upon a settlement reached by these parties in a federal class action in California to support the proposition that defendant is well positioned to address claims for compensation by creators of sound recordings. Such reliance is misplaced for several reasons. First, in the California action, defendant’s liability was established under a state *statute* providing a right of public performance in sound recordings (*see* Cal Civ Code § 980 [a] [2]; *see also Flo & Eddie Inc. v Sirius XM Radio Inc.*, 112 USPQ2d 1307, 2014 WL 4725382, 2014 US Dist LEXIS 139053 [CD Cal, Sept. 22, 2014, No. CV 13-5693 PSG (RZx)]). This highlights our conclusion that such a right is most appropriately created and defined by a legislative body. Second, the amount of damages for which defendant will be responsible in that action is apparently contingent on the outcomes of two other actions pending between the parties—a case brought in the Florida federal courts, and the case currently before us (*see* Jonathan Stempel, *Sirius May Settle Music Copyright Suit Brought by the Turtles for \$100M*, Insurance J, Nov. 30, 2016, available at <http://www.insurancejournal.com/news/national/2016/11/30/433536.htm>). Third, the California settlement is not final, as it requires judicial approval (*see id.*; Amanda Bronstad, *Sirius XM Radio Agrees to Settle Copyright Case With 60s Rock Band The Turtles*, Natl LJ, Nov. 14, 2016, available at <http://www.nationallawjournal.com/id=1202772377801>).

to customize its programming by state or region. Despite these circumstances and the portable nature of radio service, the dissent does not address the difficulties that would arise if this Court, and other state courts across the country, were to separately determine the existence and scope of a common-law right of public performance for sound recordings and were to reach different results in neighboring jurisdictions that may share radio airwaves. Those difficulties present yet another reason why the parameters of any such right should be defined by a legislative body.

Finally, we note that sound recording copyright holders may have other causes of action, such as unfair competition, which are not directly tied to copyright law. Indeed, in the present case, plaintiff prevailed in the District Court on its causes of action alleging unfair competition and unauthorized copying of sound recordings. The Second Circuit concluded that defendant had copied plaintiff's recordings, but postponed the questions of fair use and unfair competition until after our resolution of the certified question (821 F3d at 270 n 4, 272). Thus, even in the absence of a common-law right of public performance, plaintiff has other potential avenues of recovery.

At the end of the day, the question before us is not whether recognizing a right of public performance in sound recordings is a good idea, or whether the absence of such a right enures to the detriment of any particular individual or group. Rather, the question is whether that determination should be made by this Court or whether it should be left to the legislature; in our view, the answer is decidedly the latter. We hold that New York common law does not recognize a right of public performance for creators of pre-1972 sound recordings. Accordingly, the certified question should be answered in the negative.

FAHEY, J. (concurring). I agree with my colleagues in the majority that the common law of this state does not recognize a right of public performance for the creators of sound recordings fixed prior to February 15, 1972 (*see* majority op at 605), and that the question whether to recognize such a right is best left to the legislature (*see id.* at 606). Consequently, I also generally agree with my colleagues in the majority that the pertinent part of the certified question, which asks whether there is "a right of public performance for creators of sound recordings under New York law" (*Flo & Eddie, Inc. v Sirius XM Radio, Inc.*, 821 F3d 265, 272 [2d Cir 2016]), should be answered in the negative.

In seeking guidance from this Court, however, the United States Court of Appeals for the Second Circuit noted that we should exercise our power to “reformulate or expand [its certified] question as appropriate” (*id.* [internal quotation marks omitted]; see *Beck Chevrolet Co., Inc. v General Motors LLC*, 27 NY3d 379, 389 [2016]). That court also “welcome[d] [our] guidance on any other pertinent questions that [we] wish[] to address” (*Flo & Eddie, Inc.*, 821 F3d at 272). I write separately to accept that invitation.

Although the question *whether to recognize* a right of “public performance” for creators of sound recordings is for the legislature, the preliminary question *how to define* “public performance” is for this Court. In a technologically simpler time the distinction between performance and publication was easy to define. That is not true now. Presently, access to sound recordings falls along a continuum ranging from public performance to publication; it begins with AM/FM radio broadcasters (performance) and concludes with consumer purchase of compact discs or other hard copies of sound recordings (publication).

This continuum is best described in five steps:

1. AM/FM radio—sometimes called “terrestrial” radio. These broadcasters rely on advertising; access is free.
2. Internet “radio” operations (such as Pandora)—these broadcasters also have advertisers and are free.
3. Subscription broadcast services (such as defendant)—where consumers pay a monthly fee and are provided with commercial-free content in genres selected by the user (i.e., sports radio, 60s music, etc.). The service is available over the Internet and by satellite.
4. Interactive/“on-demand” services (such as Apple Music)—where, for a monthly subscription fee, consumers are provided access to an almost unlimited music library that is available at any time on multiple platforms (i.e., phone, iPad, computer). This service, in essence, rents the sound recording to the listener as long as the monthly fee is paid.
5. Purchase of a sound recording, either digital (i.e., through iTunes or Google Play) or hard copy (i.e., CD, vinyl, tape).

The Court’s focus generally rests with the broadcasters on the continuum, and my concern specifically rests with the method of broadcasting in the fourth step of that series. To

permit listeners to specifically select a sound recording for use through an “on-demand” service is to rent or lease that recording to those listeners inasmuch as they do not own it, but can instantly enjoy its use. To rent or lease a sound recording through an “on-demand” service is for the provider to substitute for the purchase of that recording. To prevent the sale of a sound recording through the “on-demand” rental or lease of it is not to perform the recording, but to publish it.

To that end, while I agree with the conclusion of my colleagues in the majority that the common law of this state does not recognize a right of public performance, I would answer the pertinent part of the certified question in the negative with this caveat: “public performance” does not include the act of allowing members of the public to receive the “on-demand” transmission of particular sound recordings specifically selected by those listeners.

Backdrop

On balance, I appreciate that the common law of this state recognizes a right of performance in works that arguably are similar to sound recordings (e.g., plays [see *Palmer v De Witt*, 47 NY 532, 535-536, 540-541 (1872)]; films [see *Brandon Films v Arjay Enters.*, 33 Misc 2d 794 (Sup Ct, NY County 1962)]; and film clips [see *Roy Export Co. Establishment of Vaduz, Liechtenstein v Columbia Broadcasting Sys., Inc.*, 672 F2d 1095, 1097-1099 (2d Cir 1982) (applying New York law)]). I also appreciate that *RCA Mfg. Co. v Whiteman* (114 F2d 86 [2d Cir 1940], *cert denied* 311 US 712 [1940]), its progeny, and the congressional treatment of copyright law do not answer the question whether the common law of this state has recognized a right of performance in sound recordings fixed prior to February 15, 1972.

The discussion of federal copyright law in the majority opinion (see majority op at 590-594) is helpful in reviewing the state common-law question now before us. As this Court noted in *Capitol Records, Inc. v Naxos of Am., Inc.* (4 NY3d 540 [2005]), in “examining copyright law, a page of history is worth a volume of logic” (*id.* at 546 [internal quotation marks omitted]). The evolution of the federal copyright scheme—including the recognition in 1995 of a limited performance right in recordings fixed after February 15, 1972—has been methodical and balanced. Indeed, the federal forging of that right occurred only after significant deliberation, that is, “only after Congress

heard from dozens of witnesses about the competing policy considerations, after committees produced multiple reports detailing their findings, . . . after Congress revised the proposed legislation to address each issue,” and after the Register of Copyrights issued an analysis of nearly 1,000 pages “recommending a limited performance right for post-1972 recordings” (brief for defendant-appellant at 43; see HR Rep 104-274, 104th Cong, 1st Sess [1995]; S Rep 104-128, 104th Cong, 1st Sess, reprinted in 1995 US Code Cong & Admin News at 356 [1995]).

“Terrestrial” Radio

The common law of this state evolves in a similarly measured and cautious manner (see *Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14, 28 [2006]; *Norcon Power Partners v Niagara Mohawk Power Corp.*, 92 NY2d 458, 468 [1998]), and I agree with my colleagues in the majority that the question whether there is a right of public performance in sound recordings fixed prior to February 15, 1972 is best answered by the legislature. On the one hand, artists obviously have an interest in receiving compensation for the performance of sound recordings to which they have contributed from broadcasters that perform such works for a profit. Perhaps there is even a strong rationale for such compensation: the author of one of a collection of short stories undoubtedly could be entitled to a royalty with respect to the sale of that collection, and to that end it arguably is illogical that a musician who contributes to a sound recording that was fixed prior to February 15, 1972 and that is now publicly performed by a broadcaster for profit should not be entitled to a royalty with respect to that performance.

On the other hand, there are myriad reasons for us not to make such a significant leap here. The relationship between the recording industry and the “terrestrial” radio industry was and perhaps still is a strong one inasmuch as record companies have used and continue to use free airplay (or “spins”) to generate revenue from album sales, concert ticket sales, and merchandising (see *Bonneville Intl. Corp. v Peters*, 347 F3d 485, 487-488 [3d Cir 2003] [“The recording industry and broadcasters existed in a sort of symbiotic relationship wherein the recording industry recognized that radio airplay was free advertising that lured consumers to retail stores where they would purchase recordings. And in return, the broadcasters

paid no fees, licensing or otherwise, to the recording industry for performance of those recordings” (footnote omitted)]; *see also* Robert L. Hilliard & Michael C. Keith, *The Broadcast Century and Beyond* 151 [5th ed 2010] [“(t)he recording industry manufactured the popular, youth-oriented music radio wanted and needed, and the (radio medium) provided the exposure that created a market for this product. From the perspective of the recording industry, radio was the perfect promotional vehicle for showcasing its established, as well as up-and-coming, artists”]; James N. Dertouzos, *Radio Airplay and the Record Industry: An Economic Analysis* at 5 [2008] [“a significant portion of music industry sales of albums and digital tracks can be attributed to radio airplay—at a minimum 14 percent and as high as 23 percent”], available at http://www.nab.org/documents/resources/061008_Dertouzos_Ptax.pdf, cached at http://www.nycourts.gov/reporter/webdocs/061008_Dertouzos_Ptax.pdf.¹

Internet and Satellite “Radio”

The analysis with respect to Internet and satellite broadcasters is closer. The economics of Internet and satellite “radio” (which comprise the second and third steps on my continuum) are not the same as those of “terrestrial” radio. Conventional radio has a partnership with the recording industry, and the economics of that medium have been predicated upon the idea that such broadcasters are not responsible for royalties to performers of sound recordings transmitted over their “air.”

By contrast, Internet and satellite broadcasting (which include the transmissions in which defendant engages) are relatively new phenomena, meaning that they did not grow together or in harmony with the recording industry. That is, while “terrestrial” broadcasters have long contributed to the growth of the recording industry and its artists, digital broadcasters have not given corresponding assistance to that enterprise. Perhaps Congress recognized as much in passing

1. Perhaps the federal prohibition against “payola” also illustrates this point. “Payola” refers to the practice of paying for or otherwise inducing the broadcast of a recording on a radio station without a concomitant announcement of the acceptance of consideration in exchange for that airplay (*see* 47 USC §§ 317, 508). If “terrestrial” radio was not a promotional tool for sound recordings, then there would have been no reason for record companies and other entities interested in the sales of those recordings to have attempted to increase the number of “spins” such recordings received in the radio medium through the “payola” device.

the Digital Performance Right in Sound Recordings Act of 1995 (Pub L 104-39, § 1, 109 US Stat 336 [Nov. 1, 1995]), which granted a performance right in sound recordings fixed after February 15, 1972 and required Internet “radio” broadcasters, but not “terrestrial” radio broadcasters, to license such recordings (see S Rep 93-983 at 225-226 [capturing the view of six Senators that, “(f)or years, record companies . . . gratuitously provided records to (radio) stations in hope of securing exposure by repeated play over the air”]). Nevertheless, given the complex and significant nature of this performance right question, I agree with my colleagues in the majority that the legislature should determine whether to establish a right of public performance even with respect to the “new” Internet and satellite broadcasters.

Interactive/“On-Demand” Internet Broadcasters

With respect to the fourth step on my continuum, certain Internet broadcasters—such as Apple Music, Spotify’s premium subscription, Rhapsody, and Amazon’s Music Unlimited offering—permit users to peruse a catalog of millions of songs and to “call them up on any device, including [one’s] phone, anytime [one] wants” (Peter Kafka, *Amazon Takes on Spotify with Streaming Music Services that Cost Less than \$10 a Month*, Oct. 12, 2016, <http://www.cnbc.com/2016/10/12/amazon-takes-on-spotify-with-streaming-music-services-that-cost-less-than-10-a-month.html>). One “can also download them, so [that one] can play them when . . . not connected to the internet” (*id.*). They cannot be directly converted to a hard copy. When the service ends, the user loses all access to music that has been downloaded.

In determining whether there is a common-law right of public performance for recordings fixed prior to February 15, 1972, we necessarily have occasion to speak to the nature and the limits of such right. In the realm of federal copyright law, “publication” is defined as “the distribution of copies or phonorecords of a work to the public by sale or other transfer of ownership, or by rental, lease, or lending” (1-4 Nimmer on Copyright § 4.03 [B], citing 17 USC § 101; *cf. Naxos*, 4 NY3d at 560 [“‘publication’ is a term of art that has distinct meanings in different contexts”]). To allow a user to regularly, specifically, and directly access an exact sound recording “on-demand” is not to facilitate the “public performance” of such recording, but to publish that work and therefore to infringe upon the right of

the copyright holder to sell it (*cf. id.* at 560 [“in the realm of sound recordings, it (is) the law in this state . . . that, in the absence of federal statutory protection, the public sale of a sound recording otherwise unprotected by statutory copyright does not constitute a publication sufficient to divest the owner of common-law copyright protection”]).

One of the amici astutely notes that “[i]ncreasing numbers of consumers have turned to digital streaming services as their primary source of musical content.” In fact, “[t]he move by consumers away from owning music to renting it from services like Spotify and Apple Music has caught fire” (Neil Shah, *The Summer That Streaming Took Over*, Wall St J, Aug. 25, 2016, available at <http://www.wsj.com/articles/the-summer-that-streaming-took-over-1472151516>). Consumers “who pay \$10 a month for a subscription to Spotify or Apple Music listen to music for a full 27 hours a week”—“three hours more a week than those who listen for free on YouTube and Spotify’s ad-supported site and more than double the amount non-streamers listen” (*id.*). The rising popularity of instant, unfettered access to catalogs that may exceed 30 million sound recordings (*see* Madi Alexander & Ben Sisario, *Apple Music, Spotify and a Guide to Music Streaming Services*, NY Times, Apr. 5, 2016, available at <http://www.nytimes.com/interactive/2015/06/30/business/media/music-streaming-guide.html>) has dampened music sales: digital music track and compact disc sales have declined in direct correlation to the increase in the number of songs streamed through “on-demand” services (*see* Victor Luckerson, *Spotify and YouTube Are Just Killing Digital Music Sales*, Time, Jan. 3, 2014, available at <http://business.time.com/2014/01/03/spotify-and-youtube-are-just-killing-digital-music-sales/>).

The evolution of technology should be accompanied by the evolution of the law. The “broad and flexible power of the common law” needs “to keep pace” with this new means of music consumption (*Naxos*, 4 NY3d at 555 [internal quotation marks omitted]). We must recognize that the rental or lease of sound recordings fixed prior to February 15, 1972 by Internet broadcasters who provide the public “on-demand” access to such recordings is a form of publication under copyright law.²

Indeed, the “on-demand” access to sound recordings offered to the public is unique in that it requires a paid subscription

2. The point of my dissenting colleagues “that music streaming companies [do not] ‘publish’ music” in a traditional sense (dissenting op at 629 n 10)

(n. cont’d)

that connects the customer to a nearly limitless catalog of music and gives the customer the power to instantly listen to recordings specifically selected by that user without purchasing even a single one of those songs.³ In essence, unlike “terrestrial,” Internet, and satellite radio operations, which select and play sound recordings *for all* of their listeners, “on-demand” services permit recordings to be selected and played *by each* of their users.

A 2011 report of the United States Copyright Office foresaw that the rise of such streaming services could lead to a fall in the sale of sound recordings (*see* Copyright Office, Federal Copyright Protection for Pre-1972 Sound Recordings: A Report of the Register of Copyrights 45 [2011] [“It is possible that a state court would entertain a claim for . . . common law copyright infringement (where) pre-1972 sound recordings were being made available through internet streaming, particularly if it were persuaded that the use was substituting for purchases of the plaintiff’s recording”]). Yesterday’s prediction has become today’s reality.

While I agree with my colleagues in the majority that the question whether to recognize a right of “public performance” in sound recordings fixed prior to February 15, 1972 is best answered by the legislature, I would conclude that “public performance” does not include the act of allowing members of the public to receive the “on-demand” transmission of sound recordings specifically selected by those listeners.

RIVERA, J. (dissenting). On this certified question, the United States Court of Appeals for the Second Circuit asks whether New York recognizes a right of public performance in sound recordings and, if so, what is the scope of such right (*Flo & Eddie, Inc. v Sirius XM Radio, Inc.*, 821 F3d 265, 272 [2d Cir 2016]). Contrary to the conclusion of my colleagues, New York’s broad and flexible common-law copyright protections for sound recordings encompass a public performance right that extends to the outer boundaries of current federal law, and ceases upon preemption by Congress.

misses the mark. The new technology that is “on-demand” music streaming has given rise to what effectively is the new means of publication addressed herein.

3. Of course, in this scenario, the “on-demand” providers benefit from the rental of the music in their catalogs to their subscribers, but artists and the recording companies are denied the opportunity to sell their music to those listeners.

I.

The Turtles are an American rock band that formed in the 1960s and signed to White Whale Records in 1965. The band had a number of hit songs—the most notable of their songs is “Happy Together,” which reached the number one spot on the Billboard charts in 1967 and is considered a quintessential 1960s recording.

The band acquired the copyright to the master recordings of their albums in 1971 after they sued White Whale Records for underpayment of royalties. Thereafter, two band members bought out the others’ rights to the albums and incorporated ownership of the recording’s copyright under “Flo & Eddie, Inc.” Since that time, Flo & Eddie has licensed the Turtles’ songs for use in movies, television and commercials, and for digital sale through music vendors like iTunes and Amazon.

Sirius XM Radio Inc. (Sirius) is a commercial radio broadcast company with over 25 million subscribers, making it one of the largest radio and Internet-radio broadcast companies in the United States. Unlike traditional AM/FM radio, Sirius charges subscribers a monthly fee, ranging from \$9.99 to \$18.99 per month, to generate revenue for its music broadcasting and streaming services. Sirius offers access to a variety of music, talk shows, sports coverage, and news broadcasts through satellite and Internet connections for play on personal computers and media devices. One of its main selling points is that Sirius subscribers can personalize the commercial-free music channels.

Sirius markets itself as a replacement for AM/FM radio by offering a broader reception range than terrestrial radio, available in vehicles of every major United States automobile company. Like some AM/FM channels, Sirius also features themed channels, including separate stations for period music, for example from the 1940s, 1950s, and 1960s. Yet, unlike traditional AM/FM radio with its limited reception, Sirius subscribers pay for seamless listening of various music genres, provided commercial-free, 24 hours a day, seven days a week, for the entire period their subscription is effective. Thus, without having to change channels, a subscriber can travel cross-country and enjoy uninterrupted and unlimited play of self-selected music within the Sirius coast-to-coast satellite coverage area. Additionally, Sirius provides a “rewind” function for its radio channels, which allows subscribers to jump back

in the broadcast up to five hours in the past and replay music that has already aired.¹

Sirius also allows subscribers to download music directly from its website, so that the subscriber can listen to a desired song from a computer or a variety of mobile media devices at any time. Additionally, Sirius has a streaming service, which allows subscribers with Internet or cellular access to stream any song in the Sirius catalog on-demand, without waiting to download a file.²

Sirius has a library of over 280,000 songs, and 42,000 of these songs were recorded prior to 1972. The pre-1972 library includes songs by the Turtles, 15 of which have been “performed,” meaning broadcast or streamed, by Sirius. At the time the Sirius executives were deposed, Sirius had never entered into a licensing agreement to broadcast any of the pre-1972 songs from its library, and did not believe it needed such an agreement.³

The business model and commercial success of Sirius and other digital music providers has dramatically and permanently changed the music industry. The primacy of terrestrial and analog radio is a thing of the past. Gone are the days when a listener’s sole means of acquiring music for personal enjoyment was by obtaining a record, cassette tape, or compact disc. The fast-paced changes wrought by the “digital music era” have caused devastating impacts on the music industry. In its first iteration, peer-to-peer sharing programs allowed free access to music by illegally downloading audio files—this undercut record and compact disc sales and threatened traditional revenue streams for record companies and artists (*see A&M Records,*

1. Comparatively, traditional AM/FM radio stations, or terrestrial stations, have a broadcast range that is limited by the Federal Communications Commission (*see generally* 47 CFR part 73). While in range, the radio listener does not have the ability to rewind a song that has already been broadcast.

2. This is similar to services offered by other music streaming providers, such as Spotify or Apple Music.

3. Since the interposition of this lawsuit, Sirius settled a separate lawsuit that requires it to pay record labels for the performance of the pre-1972 recordings in which the labels hold copyrights (U.S. Securities & Exchange Commission, Form 10-K [Feb. 2, 2016] at 12, Commission File No. 001-34295, Registrant: Sirius XM Holdings Inc.). This settlement agreement essentially creates a temporary licensing scheme, as Sirius will pay royalties for any broadcast from 2013 to 2017 (*id.*). Additionally, Flo & Eddie agreed to settle its other lawsuit against Sirius, which was filed in a California federal court and is pending court approval (*see Flo & Eddie, Inc. v Sirius XM Radio Inc.*, US Dist Ct, CD Cal, No. 13-CV-05693, 2016).

Inc. v Napster, Inc., 239 F3d 1004, 1016-1017 [9th Cir 2001]; see also Tamara Kurtzman, *The Day Big Music Died*, 20 J Internet L 1, 8-9 [2016]). With the arrival of legal downloading programs that charge customers to purchase music downloads, such as iTunes, the music industry found a new source of revenue (see Recording Industry Association of America, Year End Statistics, 1989-2007). However, that revenue has been “cannibalized” by the growing popularity of services that allow a listener to stream and download music for a flat subscription rate (78 Fed Reg 23,054, 23,066 [Apr. 17, 2013] [capturing Sirius’ comments to proposed rule change, in which Sirius noted that streaming services cannibalize record sales]).

Throughout this evolution in the manner by which a listener accesses and enjoys music, the market for records, tapes, and compact discs from which music is communicated and perceived has continued to shrink and is likely never to rebound (see Kurtzman, *supra* at 10). As these technological advances continue to rock the music industry, Flo & Eddie have turned to the courts and asserted their copyright interests in the performance of their songs and the profits made by Sirius from playing and facilitating digital access to the Turtles’ music.

In their New York federal lawsuit, Flo & Eddie alleged, in part, that Sirius violated New York’s common-law right of public performance by broadcasting and streaming pre-1972 sound recordings without a license, and collecting revenue from subscribers who pay to hear the music. They successfully defended against summary judgment and found a receptive ear in the district court, which held that New York’s common law recognizes a right of public performance. After the Second Circuit accepted an interlocutory appeal squarely presenting the issue, that court certified the following question for our consideration: “Is there a right of public performance for creators of sound recordings under New York law and, if so, what is the nature and scope of that right?” (*Flo & Eddie, Inc.*, 821 F3d at 272).

Contrary to my colleagues, I conclude that decisional law, statutory mandates, legislative history, and the doctrinal foundations of private rights of ownership compel a determination that our common law recognizes a creator’s right of public performance in sound recordings. The beneficial contours of this right and the creator’s interests in receiving compensation for the labor that produced the sound recording align with society’s interest in avoiding exploitation of artists and their

creative works. This right is balanced against the goal of increasing public access to creative works, the expectations of certain sectors of the music recording industry, and the reality that Congress has placed a time limit on common-law protections for pre-1972 sound recordings while providing a limited right of public performance for all sound recordings made after February 15, 1972.

I reject a parochialism that justifies turning a blind eye to the exploitative practices of today's music industry made possible by technological advances and that, as a consequence, excludes from our common-law copyright in sound recordings a quintessential property interest in the use of these works, and limits a creator's opportunity to derive financial benefit from their performance (majority op at 594-595; concurring op at 613). As this Court has previously stated, "[t]he common law is not rigid and inflexible . . . [It is] a living organism which grows and moves in response to the larger and fuller development of the nation" (*Oppenheim v Kridel*, 236 NY 156, 163-164 [1923]). Indeed, it is this Court's duty to apply New York's common-law copyright to the changing landscape of the music industry and protect the interests of creators of sound recordings against those who profit from the fruits of others' labor, without compensating the copyright holder, and do so in a manner that jeopardizes the primary source of revenue for creative genius.

II.

As far back as 1831, federal law has provided a copyright for musical compositions (Copyright Act of 1831 [21st Cong, 2d Sess, ch 16], 4 US Stat 436; *see also Bonneville Intl. Corp. v Peters*, 347 F3d 485, 487 [2003]). However, federal copyright law has continually relied on common-law principles and, since 1909, the federal Copyright Act has consistently expressed that state common law, unless preempted, may afford copyright protections for sound recordings (17 USC § 2, as added by Pub L 60-349, § 2, 35 US Stat 1076 [1909]; *Capitol Records, Inc. v Naxos of Am., Inc.*, 4 NY3d 540, 553 [2005]). In 1971, when Congress first confirmed copyright protections for sound recordings that are fixed, meaning recorded, on or after February 15, 1972, it also left untouched any state rights with respect to sound recordings fixed before that date (Sound Recordings Act, Pub L 92-140, 85 US Stat 391 [1971], codified at 17 USC § 102 [a] [7]). The United States Supreme Court has upheld the constitutionality of this dual copyright system, and recognized,

that where Congress “has left the area unattended, . . . no reason exists why the State should not be free to act” (*Goldstein v California*, 412 US 546, 570 [1973]).

Congress provided a limited right of public performance in 1995, entitling copyright holders to royalties when the recording was performed, i.e. broadcast via digital audio transmission (17 USC § 106 [6]). Once again, Congress maintained a role for state law and declared that “[w]ith respect to sound recordings fixed before February 15, 1972, any rights or remedies under the common law or statutes of any State shall not be annulled or limited by this title until February 15, 2067” (*id.* § 301 [c]). The federal law left to the states the choice both to recognize a copyright in sound recordings and to define the parameters of state law protections. Thus, with respect to the issues presented by the certified question, not only is the “area unattended,” but Congress has specifically accounted for state copyright protections (*see id.* § 301 [c]).

In response to a previous certified question from the Second Circuit, this Court clarified that our State’s common-law copyright protections apply to pre-1972 sound recordings (*Naxos*, 4 NY3d at 560). As part of a comprehensive discussion of the history of United States copyright law, with its roots in English copyright, and upon a thorough review of federal legislation, the Court stated that federal copyright developed to address concerns related to “property rights in tangible intellectual products” (*id.* at 546). The Court explained that “[w]ith the dawn of the 20th century, courts throughout the country were confronted with issues regarding the application of copyright statutes, which were created with sole reference to the written word, to new forms of communication. One of the first such challenges involved music” (*id.* at 552). Specifically, the Court identified a common-law history of protection for sound recordings and held that, absent specific federal preemption, the common law was free to identify the moment of divestment of common-law protections in audio musical works (*id.* at 552-553).

With regard to when federal copyright preempts state common law—which occurs upon “first publication”—the Court noted that for literary works, the point of divestment of common-law rights historically was the moment of public distribution of the writing (*id.* at 560). In the context of audio recordings, several early opinions rejected the sale of a record as “publication” for sound recordings because the copyright

holder did not intend to relinquish control over a performance by selling a record of the musical work (*id.* at 552-555, citing *Metropolitan Opera Assn., Inc. v Wagner-Nichols Recorder Corp.*, 199 Misc 786, 798 [Sup Ct, NY County 1950]; *Waring v WDAS Broadcasting Sta.*, 327 Pa 433, 443, 194 A 631, 636 [1937]). The *Naxos* Court similarly concluded that, so long as the federal law has not preempted state copyright law as regards sound recordings, our common law does not treat the broadcast of the recording as a publication that divests a copyright holder of any common-law copyright: “in the realm of sound recordings, it has been the law in this state for over 50 years that, in the absence of federal statutory protection, the public sale of a sound recording otherwise unprotected by statutory copyright does not constitute a publication sufficient to divest the owner of common-law copyright protection” (*id.* at 560 [citations omitted]).

In reaching this conclusion, the Court made two significant observations. First, that “the historical distinction in the treatment of literary and musical works by Congress accounts for the lack of federal statutory copyright protection for sound recordings,” and “[i]n the absence of protective legislation, Congress intended that the owner of rights to a sound recording should rely on the ‘broad and flexible’ power of the common law to protect those property rights after public dissemination of the work” (*id.* at 555). Second, that “both the judiciary and the State Legislature intended to fill [the] void” left by the federal Copyright Act “by protecting the owners of sound recordings in the absence of congressional action” (*id.* at 559). Based on this understanding of the elasticity of New York’s common law in the area of copyright as grounded in our State’s interest in protecting recordings not covered by federal law and the historical changes in technology impacting musical artists, the *Naxos* Court declared that “the common law ‘has allowed the courts to keep pace with constantly changing technological and economic aspects so as to reach just and realistic results’ ” (*id.* at 555, quoting *Metropolitan Opera*, 199 Misc at 799).

Thus, until the 2067 effective date of federal preemption, our common-law copyright governs the rights and remedies available to owners of sound recordings, and a copyright holder’s interests are not relinquished by the mere sale of the musical work. While the federal Copyright Act provides a copyright in a musical composition for “the notes and lyrics of the song” and a

copyright for “the recorded musical work performed by a specific artist” for sound recordings fixed after February 15, 1972 (*Recording Indus. Assn. of Am., Inc. v Librarian of Congress*, 608 F3d 861, 863 [DC Cir 2010]; 17 USC §§ 102 [a]; 302 [a]), our state common-law copyright for pre-February 15, 1972 sound recordings is subject to a federally designated shelf life. The Second Circuit asks whether our common law encompasses a right of public performance, viable until the effective date of federal preemption. I believe such right is a constituent part of a creator’s property interests in a sound recording.

III.

The multiple rights of ownership, use, and possession are expressed as “‘a bundle of sticks’—a collection of individual rights which, in certain combinations, constitute property” (*United States v Craft*, 535 US 274, 278 [2002]). “It is axiomatic, of course, that state law is the source of those strands that constitute a property owner’s bundle of property rights” (*Nollan v California Coastal Comm’n*, 483 US 825, 857 [1987, Brennan, J., dissenting]; see also 63C Am Jur 2d, Property § 1).

This long-standing conceptualization of property rights applies to a copyright holder’s interest in tangible and intangible intellectual products, and includes a right of public performance (17 USC § 106 [4]; *Harper & Row, Publishers, Inc. v Nation Enterprises*, 471 US 539, 546 [1985] [“Section 106 of the Copyright Act confers a bundle of exclusive rights to the owner of the copyright”]; *Penguin Group [USA] Inc. v American Buddha*, 16 NY3d 295, 305 [2011] [“The Copyright Act gives owners of copyrighted literary works five ‘exclusive rights,’ which include the right of reproduction; the right to prepare derivative works; the right to distribute copies by sale, rental, lease or lending; the right to perform the work publicly; and the right to display the work publicly”]; S Rep 94-473, 94th Cong, 1st Sess [1975] [“These exclusive rights, which comprise the so-called ‘bundle of rights’ that is a copyright, are cumulative and may overlap in some cases”]).⁴

Like tangible property rights, the intangible rights subject to copyright law may be relinquished in whole or part, as the

4. In other litigation between the parties, Sirius has acknowledged the applicability of the “bundle of rights” analogy to copyright ownership, while maintaining that it does not include exclusive rights of public performance (see *Flo & Eddie, Inc. v Sirius XM Radio Inc.*, 2014 WL 4725382, *3, 2014 US Dist LEXIS 139053, *6-7 [CD Cal, Sept. 22, 2014, No. CV 13-5693 PSG (RZx)]).

holder deems most appropriate and beneficial (*see Mills Music, Inc. v Snyder*, 469 US 153, 173-174 [1985] [recognizing that the bundle of rights associated with a copyright in a literary work can be alienated]; *see also* S Rep 94-473, 94th Cong, 1st Sess [1975]). This basic tenet of property law is central to determining whether there is any reason to exclude a right of public performance from the bundle of rights in a sound recording.

Indeed, New York courts have recognized a right of performance in other media (*see e.g. Palmer v De Witt*, 47 NY 532, 535-536 [1872] [plays]; *Brandon Films v Arjay Enters.*, 33 Misc 2d 794 [Sup Ct, NY County 1962] [films]; *De Mille Co. v Casey*, 121 Misc 78, 87-88 [Sup Ct, NY County 1923] [photoplays]).⁵ There is no logical basis to distinguish between the copyright protections of those works and a sound recording. All involve creative inspiration and genius, application of artistic ability, and the development of a final product marketable to the public. The creator's interest in the sound recording is no less real or significant than with other forms by which an artist communicates a creative idea, a concept that the majority ignores in reaching its conclusion. Indeed, addressing a slightly different matter, this Court in *Naxos* recognized performance is not the same as the mode of reproduction, and stated that the copyright holder in that case "has a protected property interest in the performances embodied on the shellac records" (*Naxos*, 4 NY3d at 564 n 11).

The right to perform a sound recording publicly is a property interest in a specific rendition of an artistic work. This public expression of the musical composition has its own unique aesthetic quality, which, once recorded, preserves for the future the artist's contribution to the final work. Thus, the distinctiveness of the work as heard is due in part to the artist's execution of the musical composition. When an artist brings to life the notes of a song and instrumental composition, the artist's rendition is a personal representation of the musical piece. Nat King Cole's silk-voiced rendition of "Unforgettable" and "The Christmas Song," Frank Sinatra's self-assured version of "My Way," Peggy Lee's highly lyricized "Fever," Aretha Franklin's

5. The *Naxos* Court provided a thorough explanation of the New York courts' treatment of common-law copyright issues. Though the majority attempts to recharacterize the *Naxos* treatment of this jurisprudence to reach its conclusion, I find no occasion to recast the line of cases discussed in *Naxos*.

commanding “Respect,” Doris Day’s full-voiced “Que Sera, Sera,” the Beatles’ harmonious “Hey Jude” and unbridled “Revolution,” Billie Holiday’s aching performance of “Strange Fruit,” Jimi Hendrix’ electric performance of “The Star-Spangled Banner,” Marvin Gaye’s enchanting “What’s Going On,” and the Turtles’ “Happy Together” are but some examples of the most well-known and beloved artistic renditions of musical works available to the public through a tangible medium.⁶ These performances—like those of lesser known and unpromoted or minimally commercially promoted artists—reflect skill and verve essential to an interpretive creative work. Most importantly, they constitute an interest in property no less consequential or worthy of legal recognition and protection than the property interest in the musical composition, for without the artist’s performance there would be no sound recording.⁷ Indeed, the sound recording is a different product from the musical composition, i.e. the combination of music notes and, in the case of songs, the lyrics. Moreover, each rendition is a version that can be made available by publicizing its performance.⁸

6. Most of these songs are in the Sirius library, and the company advertises these recordings on its website as a means to attract customers (Sirius XM, Channel Lineup, www.siriusxm.com/channellineup/?hpid=02010023&intcmp=SXM_HP-NAV_0916_DEF_HDR_PROG_CHANNEL-LINEUP [last visited Nov. 7, 2016]).

7. Several amici contend that the right of performance is unnecessary because record labels hold the copyrights to most pre-1972 recordings, not the artists (*see e.g.* brief of CBS Radio Inc. as amicus curiae in support of appellant Sirius XM Radio Inc. at 16-18, citing Register of Copyrights, Report on Performance Rights in Sound Recordings, HR Doc 15, 95th Cong, 2d Sess at 824 [1978], Comments of Jack Golodner, Executive Secretary of the Council of AFL-CIO Unions for Professional Employees). Yet, the plaintiff-respondent in this very case is an entity which has a copyright in the music that its owners expended creative energy to create. Even assuming the number of artists who would benefit from a right of performance in pre-1972 works is small, there is no reason to interpret our common law narrowly to deny them compensation for their creative work. The alternative would allow digital audio broadcasters to reap the exclusive profits from performing the musical recordings by a means that diminishes potential compensation for copyright holders. This is a particularly unjust outcome given that the companies were not part of the creative process, and do little to maintain the demand for the creator’s traditional revenue source—purchase of an ownership right in a reproduction of the sound recording.

8. Thus, the Turtles have an interest in the publication of their performance of their music, as well as the public performance of a rendition of their songs by others.

The law's protection for just such a property interest in a performance was recognized early on in *Metropolitan Opera*. That court held "[t]he law has also . . . protected the creative element in intellectual productions—that is, the form or sequence of expression, the new combination of colors, sounds or words presented by the production" (199 Misc at 798; see also *Naxos*, 4 NY3d at 555 [adopting the reasoning of *Metropolitan Opera*]).

Other jurisdictions have recognized that the creative value of a performance gives rise to a property interest in controlling the broadcast of that performance. The Supreme Court of Pennsylvania in *Waring v WDAS Broadcasting Sta.* (327 Pa 433, 194 A 631 [1937]) upheld an injunction barring an unauthorized radio station's broadcast of an orchestra's performance, and noted:

"[a] musical composition in itself is an incomplete work; the written page evidences only one of the creative acts which are necessary for its enjoyment; it is the performer who must consummate the work by transforming it into sound. If, in so doing, [the performer] contributes by . . . interpretation something of novel intellectual or artistic value, [the performer] has undoubtedly participated in the creation of a product in which [the performer] is entitled to a right of property, which in no way overlaps or duplicates that of the author in the musical composition" (327 Pa at 441, 194 A at 635).

Similarly, in *Waring v Dunlea* (26 F Supp 338, 340 [ED NC 1939]), a federal district court recognized a right of performance, explaining:

"The great singers and actors of this day give something to the composition that is particularly theirs, and to say that they could not limit its use is to deny them the right to distribute their art, as they may see fit, when they see fit. Surely, their labors and talents are entitled to the privilege of distribution, especially where, as here, the privilege is subject to definite terms and bounds" (*id.*).

Moreover, as *Metropolitan Opera* recognized, "[t]o refuse to the groups who expend time, effort, money and great skill in producing these artistic performances the protection of giving them a 'property right' in the resulting artistic creation would

be contrary to existing law, inequitable, and repugnant to the public interest” (*Metropolitan Opera*, 199 Misc at 802). This same appreciation for the labor and creative skill represented by a performance can also be found in a report on the right of public performance issued by the Federal Copyright Office.⁹ In that report, the Copyright Office stated that “[p]erformers are in the professional position of being forced to compete with, and of eventually being driven out of work by, their own recorded performances” (Register of Copyrights, Performance Rights in Sound Recordings, HR Doc 15, 95th Cong, 2d Sess at 4 [1978]). As further explained in the report, “[i]n the history of the communications revolution, performers offer the most dramatic examples of the concept known as ‘technological unemployment’ ” (*id.*).

Similarly, excluding the right of public performance from the creator’s copyright is contrary to society’s interest in protecting those whose labor has produced creative works (*see Harper & Row, Publishers, Inc. v Nation Enterprises*, 471 US 539, 548 [1985] [explaining that an author’s labor must be a protected interest when considering the fair use defense in a federal copyright claim]). Indeed, it rewards practices that undermine the traditional forms of revenue that sustain artists, and indulges exploitation made possible by the type of technology described in the instant case.

Nevertheless, Sirius urges this Court to rely on *RCA Mfg. Co. v Whiteman* (114 F2d 86, 89 [2d Cir 1940]) as the precedent upon which to determine that no right of performance has ever existed, but such reliance is misplaced. In that case, the Second Circuit determined that common law and statutory copyright protections prevent only unauthorized reproduction of a copyrighted work (*id.*). A copyright holder lost any control over the performance of a recording once that recording was broadcast because the broadcast constituted publication, such that the copyright holder could not control the broadcast of the recording in the future (*id.* at 88). The court dismissed a

9. The Copyright Office is the administrative agency responsible for executing the Copyright Act and is led by the Register of Copyrights (17 USC § 701). This office has been a sub-agency of the Library of Congress since 1897 and, since that time, the Register of Copyrights has been the “principal advisor to Congress on national and international copyright matters” by providing “impartial expertise on copyright law and policy” (Library of Congress, US Copyright Office, Overview of the Copyright Office, <http://www.copyright.gov/about/> [last visited Nov. 7, 2016], cached at http://www.nycourts.gov/reporter/webdocs/https___www.copyright.pdf).

complaint that sought to enjoin a radio station from broadcasting a sound recording because the copyright owner lost any right to control that performance by publishing the recording (*id.* at 88).

The Second Circuit overruled *Whiteman* in *Capitol Records v Mercury Records Corp.* (221 F2d 657, 663 [2d Cir 1955]), explaining that the *Metropolitan Opera* decision clarified that the broadcast of a sound recording did not constitute publication of that recording and did not result in relinquishment of a right to control the performance of the recording (*id.*, citing *Metropolitan Opera*, 199 Misc at 786).

The *Metropolitan Opera* approach to publication comports with the modern understanding of publication. As the Court has recognized, “the public sale of a sound recording otherwise unprotected by statutory copyright does not constitute a publication sufficient to divest the owner of common-law copyright protection” (*Naxos*, 4 NY3d at 560). Rather, publication is the point at which a copyright holder expressly and intentionally relinquishes any future right to control any aspect of the work’s future use (*id.*). In other words, publication only occurs when the copyright holder gives up all of the sticks in the bundle.¹⁰ Therefore, the broadcast of a sound recording does not constitute publication in the modern sense, and this aspect of *Whiteman*’s reasoning is erroneous.

Moreover, the underlying premise of *Whiteman* is inconsistent with the current understanding of a what copyright entails. The federal Copyright Act recognizes a copyright holder’s varied rights in property, such that the “bundle of sticks” metaphor describes a multi-faceted protection of interests (*e.g.* *Harper & Row*, 471 US at 546; 17 USC § 106 [4]). When the Copyright Act was amended in 1976, the Senate Report for the proposed bill indicated that section 106 was a codification of the “bundle of rights,” i.e. “the exclusive rights of reproduction, adaptation, publication, performance, and display” (S Rep 94-473, 94th Cong, 1st Sess [1975]). At the time, Congress’s inclusion of a right of performance in the statute indicated that it

10. I disagree with the concurrence to the extent my colleague espouses the view that music streaming companies “publish” music (concurring op at 616). A basic tenet of copyright law is that the right of publication is solely the right of the owner and occurs only when the copyright holder “relinquishes” further rights in the work by “some unequivocal act indicating an intent to dedicate it to the public” (*Palmer*, 47 NY at 543). This definition of “publication” is not in dispute here (*see* 17 USC § 101; *Naxos*, 4 NY2d at 557).

understood that state common law included a right of performance for other types of artistic works (17 USC § 301 [c]). *Whiteman*'s limited characterization of what a copyright entails is no longer the accepted understanding. Moreover, limiting New York's common law to reproduction of a record ignores the reality that a performance is an integral part of a sound recording and that our common law is not static, but rather allows for development of appropriate responses to technological advances (*Woods v Lancet*, 303 NY 349, 354 [1951] [(I)t is the duty of the court to bring the law into accordance with present day standards of wisdom and justice rather than with some outworn and antiquated rule of the past"]).

To be sure, copyright in a sound recording has a peculiar history because it was made possible by technological advances that distinguish it from copyright in the written word, and, as discussed, initially sound recordings were not protected by federal copyright law (*see Naxos*, 4 NY3d at 552). When Congress amended the federal Copyright Act in 1972 to include post-1972 sound recordings, it explicitly withheld a right of performance from sound recording copyright holders (*see* 17 USC §§ 106 [4]; 114 [a]). At the time, Congress understood that state common law included a right of performance, for otherwise this express reservation would be unnecessary (*id.* § 301 [c]).

My colleagues' grounds for excluding the right of public performance from New York's common-law copyright in sound recordings are unpersuasive. The first reason is that no such right has previously been recognized in New York (majority op at 604). However, as I have discussed, a generic right of public performance as part of a copyright holder's "bundle of rights" is well-established in decisional law and property doctrine. The fact that until now there has been no detailed explication on the right of public performance in sound recordings from this Court does not inexorably lead to the conclusion that no such right exists. Of course, since no New York state court has rejected the right of public performance, there is also no basis to exclude such right from the copyright holder's protections. Regardless, the United States Supreme Court has warned against placing significance on the delayed assertions of copyright protections. "It is hardly incumbent on copyright owners . . . to challenge each and every actionable infringement. And there is nothing untoward about waiting to see whether an infringer's exploitation undercuts the value of the

copyrighted work, has no effect on the original work, or even complements it” (*Petrella v Metro-Goldwyn-Mayer, Inc.*, 572 US —, —, 134 S Ct 1962, 1976 [2014]; see also *District of Columbia v Heller*, 554 US 570, 625 [2008]).

The fact that the issue is now presented for our consideration reflects the realities of the music industry and the impact of technological advances on industry and customer practices, rather than consensus on the nonexistence of a common-law right of public performance. This leads to my colleagues’ second reason for excluding the right of performance from the interests of creators of sound recordings, namely their conclusion that music industry members historically understood that there is no right of performance (majority op at 604-605). However, the fact that some in the music industry argued for a federal right does not disclaim the existence of a common-law right. Rather, the majority’s reference to a four decade “inaction” is a red herring—the music industry has changed drastically since 1971 and 1995, as the ways in which fans enjoyed music are dramatically different than the digital delivery technology at issue here. The attendant consequences of this sea change for the industry and individual artists is well documented, providing the basis for the inference that this change in circumstances prompted copyright holders to invoke their rights. Further, if, as claimed, everyone in the music industry understood that no right of performance existed, there would be no reason for Congress to legislate on the assumption that state common law protects the right of performance and no need to set a 2067 date for federal preemption of such right (17 USC § 301 [c]).

The last reason my colleagues assert for denying the right is perhaps the most unsupportable because it is grounded in the perception that it is too difficult to define the scope of such a right (majority op at 606-607). Whether a right exists is a question separate from the expanse of the right, and the considerations regarding how best to protect the right as against competing interests and societal goals serve as no excuse for removing this “stick” from a copyright holder’s bundle of rights. Our common law does not bow to the challenges brought about by change. Rather, “[o]ur court said, long ago, that it had not only the right but the duty to re-examine a question where justice demands it” (*Woods*, 303 NY at 354). The law, and the equities as they stand today, support recognition of a creator’s right of public performance in a sound recording.

IV.

Turning to the scope of the right of public performance under New York law, my guiding principle is that the right of public performance addresses the imbalance of financial incentives and revenue streams. The commercial gain in digital transmissions that are charged directly to the customer reduces the customer's incentive to purchase a copy of the sound recording in some other format that might garner financial gain to the copyright holder—for example where the performer is also the composer or holds other copyright interests. To this extent I am in agreement with my concurring colleague (concurring op at 614-615). A common-law right of public performance protects against technologies that reap financial gains from musical works and that jeopardize prior revenue streams of copyright holders, while also allowing the copyright holder to share in the profits. Moreover, the Court has long recognized its power to develop the common law when the legislature has failed to act but justice demands a change (*see Woods*, 303 NY at 354).

The analysis is informed by this Court's acknowledgment that "state common-law copyright protection is no longer perpetual for sound recordings not covered by the federal act (those fixed before February 15, 1972), because the federal act mandates that any state common-law rights will cease on February 15, 2067" (*Naxos*, 4 NY3d at 560). For sound recordings fixed after February 15, 1972, federal law provides payment to copyright holders in sound recordings when broadcast via an interactive service (e.g. Spotify or Sirius' streaming service), a radio station that requires a subscription (e.g. Sirius or Pandora), or certain other methods of re-broadcasting a licensed broadcast (17 USC § 114).

Before enactment of the federal law, Congress was made acutely aware of the urgency of establishing protections against the impact of digital broadcasting. In its 1991 report, the Copyright Office declared that

"[t]hirteen years have passed since the Copyright Office formally recommended to the Congress the enactment of a public performance right in sound recordings. Technological changes have occurred that facilitate transmission of sound recordings to huge audiences. Satellite and digital technologies make possible the celestial jukebox, music on demand, and pay-per-listen services. . . . Sound

recording authors and proprietors are harmed by the lack of a performance right in their works” (Register of Copyright, Report on Copyright Implications of Digital Audio Transmission Services at 154-155 [Oct. 1991]).

Those same interests and concerns inform the proper boundaries of the public performance right for recordings that are fixed pre-February 15, 1972 and protected only by our common law.

Given our State’s long history of protecting rights in creative works (*see Metropolitan Opera*, 199 Misc at 786; *Naxos*, 4 NY3d at 560; former Penal Law § 441-c [L 1966, ch 988]) and recognizing that the federal law currently anticipates full preemption in 2067, our common-law right of public performance in pre-1972 sound recordings best serves both the creator and the public interest in access to those recordings by tracking the federal public performance right in post-1972 musical works.

Our common law is, of course, a creature of the state, recognized and expanded by our courts. It is independent of federal law and not limited by what may be national concerns addressed by federal legislation. However, the fact that federal law exists is important, especially in an area where Congress has specifically chosen to preempt state common-law rights in the future. The fact that a New York common-law right of public performance may serve state interests by drawing upon federal law does not ignore the primacy of our common law or diminish its status. Indeed, consideration of the current system of compensation under federal copyright law provides a much needed understanding of the impact of a common-law right of public performance on the music industry, and the mechanics of protecting that right. Further extending to pre-February 15, 1972 sound recordings protection that is at least equivalent to the federal right recognized in the post-1972 works allows us to treat both classes of sound recordings equally and avoids enhanced rights for one based not on a considered reason but on an arbitrary date.

Notably, applying protections and limitations to define the right of performance that has been in place under federal law for over 20 years builds on an established framework, and one that is familiar to music industry stakeholders. Just as the industry adapted to paying royalties for the performance of sound recordings made after February 15, 1972, it will do the same under our common law for pre-1972 recordings, this time

with the experience and wisdom of having done so under the federal law. Sirius is particularly well placed to address claims for compensation since it has settled with other record labels to temporarily pay licensing fees for its broadcast of pre-1972 recordings.¹¹

Limiting the common-law right of public performance in sound recordings by exempting traditional AM/FM radio stations' analog broadcasts recognizes the benefits to copyright holders from the airing of musical works through terrestrial radio. The broadcasts popularized the music played on the "airwaves" and incentivized purchase of the recordings (e.g. *Bonneville*, 347 F3d at 487-488 [discussing the symbiotic relationship between the recording industry and AM/FM radio stations]). There is no reason to extend protections against a performance medium that has increased revenue and—unlike digital performances—poses no financial threat to copyright holders.¹² Similarly, exclusions for individual use—as compared to for-profit wholesale performance by Sirius and other digital music delivery entities—benefit the copyright holder without affecting the bottom line.

11. The existence of Sirius' settlement agreements are relevant only to the extent that they demonstrate Sirius is no stranger to dealing with the performance right at issue—clearly, Sirius is able both to negotiate and enter into licensing agreements with those who hold a copyright in sound recording. Yet, the majority misconstrues my reference to these settlements (majority op at 609 n 7). The fact that the other settlement arose out of a claim under a California statute is of no import, as Sirius' *ability* to deal with performance rights is agnostic of the source of law that created the right.

12. The exemption would have limited adverse impact on the creator's interest because analog radio performance is of little relevance in today's digital music world, particularly on record sales (see Kurtzman, *supra* at 7). It is true that terrestrial radio stations have maintained listenership during the surge of both satellite and web-based radio (Nancy Vogt, Pew Research Center for Journalism & Media, *Audio: Fact Sheet* [June 15, 2016], <http://www.journalism.org/2016/06/15/audio-fact-sheet/>, cached at http://www.nycourts.gov/reporter/webdocs/http___www.journalism.pdf). However, the major radio broadcast companies are facing crippling debt, a problem that is not expected to be fixed anytime soon (Steve Knopper, *Is Terrestrial Radio Facing Its Judgment Day with Fierce Digital Competition?*, *Billboard*, May 19, 2016, www.billboard.com/articles/business/7378152/terrestrial-radio-digital-competition-iheartradio-cumulus). Moreover, though Americans continue to tune into terrestrial radio stations, this has done little to improve the well-documented plummet in sales of sound recordings in any form (Ben Sisario & Karl Russell, *In Shift to Streaming, Music Business Has Lost Billions*, *NY Times*, Mar. 24, 2016). As these statistics indicate, terrestrial radio has been pushed to the margins to the extent that the "symbiotic relationship" between the recording industry and broadcast companies has weakened.

V.

For the reasons I have explained, I would answer the certified question in the affirmative and define the scope of New York’s common-law copyright protections as coterminous with current federal law. Recognizing this right and defining its limits in this way is in line with “the ever-evolving dictates of justice and fairness, which are the heart of our common-law tradition” (*Buckley v City of New York*, 56 NY2d 300, 305 [1982]).

Judges PIGOTT, FAHEY and GARCIA concur, Judge FAHEY in a separate concurring opinion; Judge RIVERA dissents in an opinion in which Judge ABDUS-SALAAM concurs; Chief Judge DiFIORE taking no part.

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by this Court pursuant to section 500.27 of this Court’s Rules of Practice, and after hearing argument by counsel for the parties and consideration of the briefs and record submitted, the certified question answered in the negative.

[71 NE3d 537, 49 NYS3d 46]

In the Matter of MARIAH CORRIGAN et al., Appellants, v NEW YORK STATE OFFICE OF CHILDREN AND FAMILY SERVICES et al., Respondents.

Argued January 5, 2017; decided February 9, 2017

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 24, 2015. The Appellate Division affirmed so much of an order and judgment (one paper) of the Supreme Court, Westchester County (Barry E. Warhit, J.), entered in a proceeding pursuant to CPLR article 78, as had denied the petition to review a determination of respondent Office of Children and Family Services denying petitioners' request that certain records be expunged and dismissed the proceeding.

Matter of Corrigan v New York State Off. of Children & Family Servs., 129 AD3d 1073, affirmed.

HEADNOTE

Social Services — Register of Child Abuse and Maltreatment — Expungement of Reports in Cases Assigned to Family Assessment Response Track

The procedure set forth in Social Services Law § 422 (5) (c) allowing parents to seek early expungement of sealed unfounded reports relating to child abuse does not apply where the parents are not formally investigated but are instead assigned to the Family Assessment Response (FAR) track pursuant to Social Services Law § 427-a. Social Services Law § 422 governs the investigative track for allegations of child abuse or maltreatment, and requires records to be preserved for “ten years after the receipt of the report” if the report is determined to be unfounded (Social Services Law § 422 [5] [b]) and for “ten years after the eighteenth birthday of the youngest child named in the report” if the report is determined to be “indicated” (Social Services Law § 422 [6]). The requirement that FAR track records be preserved by respondent “for ten years after the report was made” (Social Services Law § 427-a [4] [c] [i]) resembles the similar requirement in the investigative track, but the statute includes no provision corresponding to the mechanism for parents to seek early expungement of sealed unfounded reports available in the traditional investigative track. Although section 422 expressly provides that after the 10 years have elapsed the reports “shall be expunged” (Social Services Law § 422 [5] [b]; [6]), there is no reference to expungement at all in section 427-a. The failure of the legislature to include a substantive, significant prescription in a statute is a strong indication that its exclusion was intended, and the subject matter of the FAR track cannot be deemed identical to that of a traditional child abuse investigation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Infants § 15; AM JUR 2d Records and Recording Laws § 10.
CARMODY-WAIT 2d Proceeding Against a Body or Officer § 145:1436.
MCKINNEY'S, Social Services Law §§ 422, 427-a.
NY JUR 2d Public Welfare and Elder Assistance §§ 338, 341, 343.

ANNOTATION REFERENCE

See ALR Index under Abuse of Persons; Children and Minors; Expungement; Records and Recording.

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POINTS OF COUNSEL

Law Office of Peter D. Hoffman, P.C., Katonah (Peter D. Hoffman, Nikki D. Woods and Yifei He of counsel), for appellants. I. The New York State Office of Children and Family Services' decision to deny appellants an opportunity for early expungement of the record maintained by the Statewide Central Register of Child Abuse and Maltreatment was arbitrary and capricious and an abuse of discretion. (*Matter of Peckham v Calogero*, 12 NY3d 424; *Matter of Gilman v New York State Div. of Hous. & Community Renewal*, 99 NY2d 144; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Matter of Rosario v New York State Div. of Human Rights*, 21 Misc 3d 1108[A], 2008 NY Slip Op 52010[U]; *Matter of Malta Town Ctr. I, Ltd. v Town of Malta Bd. of Assessment Review*, 3 NY3d 563; *Abood v Hospital Ambulance Serv.*, 30 NY2d 295; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Matter of Capone v Weaver*, 6 NY2d 307; *A.C. v Shelby County Bd. of Educ.*, 711 F3d 687; *People ex rel. Doscher v Sisson*, 222 NY 387.) II. Denying Family Assessment Response subjects an opportunity for early expungement is not rationally related to any legitimate government interest. (*Tilles Inv. Co. v Gulotta*, 288 AD2d 303; *People v Berliner*, 179 Misc 2d 844.)

Eric T. Schneiderman, Attorney General, New York City (Valerie Figueredo, Barbara D. Underwood and Claude S. Platten of counsel), for respondents. I. The New York State Office of Children and Family Services correctly concluded that it lacks authority to grant early expungement of petitioners' report under Social Services Law § 427-a. (*Lyng v Payne*, 476 US 926; *Rankin v Shanker*, 23 NY2d 111; *Matter of Shannon*, 25 NY3d 345; *Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106; *People v Schonfeld*, 74 NY2d 324; *Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86; *People v Finnegan*, 85 NY2d 53; *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55; *Pajak v Pajak*, 56 NY2d 394; *Matter of Gruber [New York City Dept. of Personnel—Sweeney]*, 89 NY2d 225.) II. Petitioners' belated equal protection claim is unpreserved and meritless. (*Matter of Bottom v Annucci*, 26 NY3d 983; *Matter of Rosa v Fischer*, 87 AD3d 1252, 19 NY3d 802; *Lamphear v State of New York*, 91 AD2d 791; *Henry v Milonas*, 91 NY2d 264; *Matter of Lee TT. v Dowling*, 87 NY2d 699.)

OPINION OF THE COURT

FAHEY, J.

Here we address whether a statutory procedure allowing for early expungement of reports relating to alleged child abuse applies when the parents are not formally investigated but are instead assigned to the Family Assessment Response track pursuant to Social Services Law § 427-a.

I.

In February 2013, the Statewide Central Register of Child Abuse and Maltreatment maintained by the State Office of Children and Family Services (OCFS) received a telephone call alleging educational neglect by petitioners. OCFS referred the report to the Westchester County Department of Social Services, Office of Child Protective Services (CPS), pursuant to Social Services Law § 422 (2) (a) (providing that allegations in a telephone call to the Statewide Central Register that could reasonably constitute a report of child abuse or maltreatment must be transmitted by OCFS “to the appropriate local child protective service for investigation”). Based on an initial safety assessment (*see* Social Services Law § 427-a [4] [c]), CPS decided that the case was eligible to proceed under the Family Assessment Response track (FAR track) pursuant to Social

Services Law § 427-a. Under this statutory framework, a social services district may establish a program designed to “meet the needs of [families] without engaging in a traditional child protective services investigation” (Social Services Law § 427-a [4] [d] [i]). The caseworker submitted the case for closure in the month after the report was received, without recommending any services.

Petitioners, seeking to have their names formally cleared, wrote to OCFS to request expungement of the FAR records and report. The Director of the Statewide Central Register, believing petitioners to be seeking administrative review, replied that OCFS could not comply with their request because petitioners had been placed on the FAR track, rather than the standard investigative track in which parents may challenge what is known as an “indicated report,” i.e. a finding that credible evidence of alleged abuse or maltreatment exists (*see* Social Services Law §§ 412 [7]; 422 [8]). Petitioners then retained counsel, to whom an OCFS attorney explained that “[t]he statute does not afford the subject of a FAR report the ability to seek expungement of the report,” while emphasizing that the record of a FAR track case is sealed.

Petitioners commenced this CPLR article 78 proceeding against OCFS and the Director of its Central Register, challenging, as “arbitrary and capricious” and “an abuse of discretion,” OCFS’s determination to deny them the opportunity to seek early expungement of the educational neglect report. Petitioners noted that a process for seeking early expungement of a report is available to parents who have been investigated by OCFS (*see* Social Services Law § 422 [5] [c]), and contended that the statute governing the FAR track must be interpreted to include the same. The petition contained no challenge to the FAR statute on constitutional grounds. Respondents moved to dismiss, and Supreme Court granted the motion, on the ground that no statutory authority exists for early expungement of a FAR report.

The Appellate Division affirmed (129 AD3d 1073 [2d Dept 2015]), reasoning that the legislature’s failure to include in Social Services Law § 427-a any provision for early expungement, “when it had, prior to the enactment of Social Services Law § 427-a, included such a provision in a statute within the same statutory scheme, should be construed as indicating that the exclusion was intentional” (*id.* at 1075-1076 [internal quotation marks omitted]). The Appellate Division added that

in its view the legislature would not have deemed it appropriate to include a process for requesting early expungement of a FAR track report because “the stated purpose in enacting the differential response approach implemented by section 427-a was to avoid any consideration of the truth or falsity of the allegations of abuse or maltreatment in appropriate cases” (*id.* at 1076).

We granted petitioners leave to appeal to this Court and now affirm.

II.

The FAR track created by Social Services Law § 427-a is “an alternative means of addressing certain matters otherwise investigated as allegations of child abuse or maltreatment” (Social Services Law § 427-a [1]). The legislature, which introduced the FAR process in 2007 (*see* L 2007, ch 452), believed that where there are no immediate or high-risk safety concerns the needs of families can often be better served by a “non-investigative, non-adversarial, service-oriented approach” (Senate Introducer’s Mem in Support, Bill Jacket, L 2007, ch 452 at 13, 2007 NY Legis Ann at 284), and that by

“[r]emoving the stigma often associated with being reported to [the Statewide Central Register] and creating a less hostile and suspicious environment where the involvement of community resources rather than government agencies is encouraged, families will be more likely to cooperate with case workers and accept offers of support services, ultimately resulting in safer children at home” (Letter from Assembly Member Amy R. Paulin to David Nocenti, Counsel to the Governor, July 3, 2007 at 3, Bill Jacket, L 2007, ch 452 at 9).

Under the FAR approach, the local child protective service avoids “a formal determination that abuse or maltreatment has occurred” and instead employs a “family-centered approach” to “strengthen families . . . without jeopardizing the safety of children” (Senate Introducer’s Mem in Support, Bill Jacket, L 2007, ch 452 at 12, 13, 2007 NY Legis Ann at 283, 284; *see also* 18 NYCRR 432.1 [ad]; 432.13 [a] [1]). Introduced as a pilot program, the FAR track was made permanent in 2011 (*see* L 2011, ch 45).

This appeal centers on disparities between the FAR track and the preexisting investigative track governing allegations of

child abuse or maltreatment, and the significance of those differences. Social Services Law § 422 is the statute governing the investigative track. It requires that records of reports to the Statewide Central Register be preserved by OCFS for “ten years after the receipt of the report” if the report is determined to be unfounded (Social Services Law § 422 [5] [b]; *see* L 1996, ch 12) and for “ten years after the eighteenth birthday of the youngest child named in the report” if the report is determined to be “indicated” (Social Services Law § 422 [6]). At the same time, the statute expressly provides that after the 10 years have elapsed the reports “shall be expunged” (Social Services Law § 422 [5] [b]; [6]).

Social Services Law § 422 further established, by amendment adopted in 2000, a means whereby parents could seek early expungement of sealed unfounded reports, if either

“(i) the source of the report was convicted of a violation of [Penal Law § 240.55 (3) (falsely reporting an incident in the second degree)] in regard to such report; or (ii) the subject of the report presents clear and convincing evidence that affirmatively refutes the allegation of abuse or maltreatment; provided however, that the absence of credible evidence supporting the allegation of abuse or maltreatment shall not be the sole basis to expunge the report” (Social Services Law § 422 [5] [c]; *see* L 2000, ch 555).

The FAR track statute, Social Services Law § 427-a, mirrors Social Services Law § 422 in some respects, but differs in others. Section 427-a provides that when a report is included in the FAR track, the Statewide Central Register’s “records . . . of such report” are “legally sealed” and “maintained at the [S]tatewide [C]entral [R]egister . . . for ten years after the report was made” (Social Services Law § 427-a [4] [c] [i]; *see also* § 427-a [5] [c]).* The requirement that FAR track records be preserved by OCFS for 10 years resembles the similar

* Reports assigned to the FAR track and the records created thereunder are confidential and accessible only by

“(i) staff of [OCFS] and persons designated by [OCFS];

“(ii) the social services district responsible for the [FAR] track case;

“(iii) community-based agencies that have contracts with the social services district to carry out activities for the district under the [FAR] track;

(n. cont’d)

requirement in the investigative track. The purpose is “to protect the safety and welfare of a child whose family received FAR services and who subsequently becomes the subject of a report of suspected child abuse or maltreatment” (Letter from Assembly Member Amy R. Paulin to Mylan Denerstein, Counsel to Governor, June 24, 2011 at 2, Bill Jacket, L 2011, ch 377 at 7).

On the other hand, Social Services Law § 427-a includes no provision corresponding to the mechanism for parents to seek early expungement of sealed unfounded reports available in the traditional investigative track. Indeed, in Social Services Law § 427-a, there is no reference to expungement at all. The obligation to maintain the sealed record of a report assigned to the FAR track exists for no more than 10 years, but no statutory duty to expunge is expressly stated.

Petitioners contend that the right to seek early expungement may be inferred from the silence of Social Services Law § 427-a on this topic. We disagree. Principles of statutory construction teach that “the failure of the Legislature to include a substantive, significant prescription in a statute is a strong indication that its exclusion was intended” (*People v Finnegan*, 85 NY2d 53, 58 [1995], *rearg denied* 85 NY2d 968 [1995], *cert denied* 516 US 919 [1995]; *see also e.g. Pajak v Pajak*, 56 NY2d 394, 397 [1982]). Moreover, this is not a case in which the two statutes that petitioners seek to interpret in identical fashion “relate to the same subject matter, contain identical language and were adopted together” (*Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106, 121 [2012]). Rather, the FAR track was created as a new and entirely separate means of addressing certain allegations of child abuse in a program geared toward the provi-

“(iv) providers of services under the [FAR] track;

“(v) any social services district investigating a subsequent report of abuse or maltreatment involving the same subject or the same child or children named in the report;

“(vi) a court, but only while the family is receiving services provided under the [FAR] track and only pursuant to a court order or judicial subpoena, issued after notice and an opportunity for the subject of the report and all parties to the present proceeding to be heard, based on a judicial finding that such reports, records, and any information concerning such reports and records, are necessary for the determination of an issue before the court. . . . ; and

“(vii) the subject of the report included in the records of the [FAR] track” (Social Services Law § 427-a [5] [d]).

sion of social services, rather than an investigation assessing blame. In other words, the subject matter of the FAR track cannot be deemed identical to that of a traditional child abuse investigation.

In any event, while we have said that “[c]ourts must harmonize the various provisions of related statutes and construe them in a way that renders them internally compatible” (*Matter of Dutchess County Dept. of Social Servs. v Day*, 96 NY2d 149, 153 [2001] [internal quotation marks and brackets omitted]), there is no conflict between the related statutes here. Petitioners allege inequity, not inconsistency. As they see it, “a person not suspected of child abuse” and placed on the FAR track has fewer remedies than one “who was suspected of child abuse, which suspicion was later determined unfounded” upon investigation. The proper resolution of this criticism, however, requires the weighing of policy concerns, including the State’s need to retain records concerning a parent accused of child abuse or maltreatment and the desire of a parent for the elimination of unjust stigma. This is a task for the legislature, not the courts.

Petitioners argue for the first time on appeal that Social Services Law § 427-a is unconstitutional as applied, because the absence of an early expungement provision is not rationally related to a legitimate government objective. The constitutional claim is not properly before us. “Judicial review of administrative determinations pursuant to CPLR article 78 is limited to questions of law,” and “[u]npreserved issues are not issues of law” (*Matter of Khan v New York State Dept. of Health*, 96 NY2d 879, 880 [2001]).

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Judges RIVERA, ABDUS-SALAAM, STEIN and GARCIA concur; Chief Judge DiFIORE and Judge WILSON taking no part.

Order affirmed, with costs.

[71 NE3d 541, 49 NYS3d 50]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
WILLIAM FLANAGAN, Appellant.

Argued January 12, 2017; decided February 9, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 7, 2015. The Appellate Division (1) affirmed a judgment of the Supreme Court, Nassau County (Mark D. Cohen, J.), which had convicted defendant, upon a jury verdict, of conspiracy in the sixth degree and official misconduct (two counts); and (2) remitted the matter to the Supreme Court, Nassau County for further proceedings pursuant to CPL 460.50 (5).

People v Flanagan, 132 AD3d 693, affirmed.

HEADNOTES

Crimes — Official Misconduct — Malfeasance — Legally Sufficient Evidence

1. Defendant's conviction for official misconduct for malfeasance (Penal Law § 195.00 [1]) was supported by legally sufficient evidence establishing that defendant, a high-ranking police supervisor, along with his accomplices, used his position of power to orchestrate the return of unvouchered evidence to a larceny victim with the goal of terminating the open felony investigation of a police department benefactor's son and preventing the son's imminent arrest. A detective involved in the conspiracy testified that he knew that as part of his official duties he was supposed to investigate the felony larceny, that he had ample basis to make an arrest and that he was responsible for vouchering the stolen property as well as securing the surveillance video of the crime. The detective admittedly evaded those duties because his supervising officer, who was acting in furtherance of the conspiracy, made clear that there would be no arrest or prosecution in the case. Preservation of evidence under Penal Law § 450.10 is undertaken to maintain the evidence's integrity for the prosecution of the case while affording due process to the defendant by providing his or her attorney with the opportunity to review the evidence before its return to the victim. However, the District Attorney was kept in the dark about the existence of the investigation, and the son's attorney, who was involved in negotiations with the complainant, was never contacted by police. Thus, the trial testimony was sufficient to establish that the return of the evidence of the crime, where the applicable statute and department protocols were not followed, was not an authorized exercise of official functions, that defendant knew that the official actions taken were unauthorized and that those actions were undertaken with the intent to obtain a benefit.

Crimes — Official Misconduct — Nonfeasance — Legally Sufficient Evidence

2. Defendant's conviction for official misconduct for nonfeasance was supported by legally sufficient evidence demonstrating that defendant, a high-

ranking police supervisor, directed his accomplice officers to refrain from performing their fundamental duty to investigate a crime in order to prevent the arrest and prosecution of a police department benefactor's son, where there was overwhelming evidence of the crime, to the benefit of the suspect's father. The plain language of Penal Law § 195.00 (2) demonstrates that it is not the mandatory or discretionary nature of the failure to act that satisfies the duty element of nonfeasance, but rather it is the causal connection of the failure to a flagrant and intentional abuse of authority by those empowered to enforce the law. When a public servant, with the intent to obtain a benefit, knowingly refuses to perform a discretionary duty, the performance of which is so obviously fundamental to accomplishing the goals of the public servant's office, that refusal cannot legitimately be understood to be an exercise of discretion; rather, it constitutes an abuse of discretion, which equates to nonfeasance. Defendant's accomplice admitted that he did not exercise his discretion in failing to investigate the case and arrest the suspect, but instead complied with the unsavory directives of his accomplice supervisors and knowingly failed to perform his duties. Moreover, the officers here had no valid reason not to move forward with the investigation, and defendant, as an accomplice with a shared intent, could be held criminally responsible for the purposeful inertia of his accomplices.

Crimes — Conspiracy — Conspiracy to Commit Official Misconduct — Legally Sufficient Evidence

3. Defendant's conviction for conspiracy in the sixth degree was supported by legally sufficient evidence proving the crime of official misconduct and the coconspirators' agreement to commit the crime of official misconduct by virtue of the actions of defendant, a high-ranking police supervisor, and his accomplices in returning recovered stolen property to the victim in an open felony investigation to prevent the arrest and prosecution of a police department benefactor's son. To be guilty of conspiracy in the sixth degree, a defendant must "with intent that conduct constituting a crime be performed . . . agree[] with one or more persons to engage in or cause the performance of such conduct" (Penal Law § 105.00). Once an illicit agreement is shown, the overt act of any conspirator may be attributed to other conspirators to establish the offense of conspiracy and that act may be the object crime. But the overt act itself is not the crime in a conspiracy prosecution; it is merely an element of the crime that has as its basis the agreement. The evidence was sufficient to prove the crime of official misconduct beyond a reasonable doubt, and there was sufficient evidence of the coconspirators' agreement to commit the crime of official misconduct. The existence of a conspiracy was supported by the trial testimony of defendant's coconspirators, defendant's admissions in emails with a subordinate and the father and by abundant circumstantial evidence which, when viewed in the light most favorable to the People, supported the jury's finding.

Crimes — Conspiracy — Coconspirator Exception to Hearsay Rule — Statements Made by Coconspirators Prior to Defendant Joining Conspiracy

4. When a conspirator subsequently joins an ongoing conspiracy, any previous statements made by his or her coconspirators in furtherance of the conspiracy are admissible against the conspirator pursuant to the coconspirator exception to the hearsay rule. A new recruit can be thought to have joined the conspiracy with an implied adoption of what had gone on before to enhance the enterprise of which he or she is taking advantage. Moreover, statements made after a coconspirator's alleged active involvement in the

conspiracy has ceased, but the conspiracy continues, are admissible unless that conspirator has unequivocally communicated his or her withdrawal from the conspiracy to the coconspirators. Accordingly, the trial court in defendant's prosecution for his involvement in a conspiracy to commit official misconduct by preventing the arrest and prosecution of a police department benefactor's son properly admitted into evidence coconspirator hearsay statements made in furtherance of the conspiracy prior to defendant joining the conspiracy and after his active participation had ceased. Defendant, a high-ranking police supervisor, joined the conspiracy after a discussion with a coconspirator in which the coconspirator informed defendant of what had transpired and enlisted his help to prevent the criminal case from proceeding against the son. Moreover, defendant made no argument that he had unequivocally communicated his withdrawal from the conspiracy to his coconspirators.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Conspiracy §§ 5, 39, 44; AM JUR 2d Sheriffs, Police, and Constables §§ 156, 160.

CARMODY-WAIT 2d Particular Types of Evidence §§ 194:147, 194:148.

McKINNEY'S, Penal Law §§ 105.00, 195.00 (2); 450.10.

NY JUR 2d Criminal Law: Procedure §§ 2157–2159, 3785;

NY JUR 2d Criminal Law: Substantive Principles and Offenses §§ 227, 249, 1314, 1320, 1321, 1325.

ANNOTATION REFERENCE

See ALR Index under Conspiracy; Neglect of Duty; Police and Law Enforcement Officers.

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POINTS OF COUNSEL

Barket, Marion, Epstein & Kearon, LLP, Garden City (*Donna Aldea* of counsel), for appellant. I. The evidence was legally insufficient to support appellant's convictions of official misconduct and conspiracy to commit official misconduct. (*Jackson v Virginia*, 443 US 307; *People v Contes*, 60 NY2d 620; *People v Feerick*, 93 NY2d 433; *People v Hochberg*, 87 Misc 2d 1024; *People v Cunningham*, 88 Misc 2d 1065; *People v Dolan*, 172 AD2d 68; *People v McRay*, 51 NY2d 594; *People v La Carubba*, 46 NY2d 658; *People v Garson*, 6 NY3d 604; *People v*

Stuart, 100 NY2d 412.) II. Appellant was denied his right to a fair trial by the admission of prejudicial hearsay, irrelevant and prejudicial evidence, and improper and prejudicial summation arguments which, in combination, irreparably tainted this trial. (*People v Ashwal*, 39 NY2d 105; *People v Mehmood*, 112 AD3d 850; *People v Fogel*, 97 AD2d 445; *People v Walston*, 196 AD2d 903; *People v Bhupsingh*, 297 AD2d 386; *People v Calabria*, 94 NY2d 519; *People v Williams*, 212 AD2d 388; *People v Simms*, 130 AD2d 525; *People v Huertas*, 75 NY2d 487; *People v Caban*, 5 NY3d 143.) III. The integrity of the grand jury was impaired by pervasive prosecutorial misconduct. (*People v Riback*, 13 NY3d 416; *People v Calabria*, 94 NY2d 519; *People v Huston*, 88 NY2d 400; *People v Pelchat*, 62 NY2d 97; *People v Brewster*, 100 AD2d 134; *People v Hansen*, 290 AD2d 47; *People v Morgan*, 76 NY2d 493; *Jenkins v Artuz*, 294 F3d 284; *People v Colon*, 13 NY3d 343; *People v Steadman*, 82 NY2d 1.)

Madeline Singas, District Attorney, Mineola (Yael V. Levy and Tammy J. Smiley of counsel), for respondent. I. Viewed in the light most favorable to the People, the evidence overwhelmingly established that defendant, a deputy police commissioner, conspired to quash the arrest of a suspect in an active felony investigation, despite abundant evidence of guilt, to benefit the suspect's father—a close friend and key police benefactor. (*People v Bac Tran*, 80 NY2d 170; *People v Bleakley*, 69 NY2d 490; *People v Danielson*, 9 NY3d 342; *People v Perlman*, 121 AD2d 765; *People v Julian*, 41 NY2d 340; *People v Hawkins*, 11 NY3d 484; *People v Feerick*, 93 NY2d 433; *People v Ditta*, 52 NY2d 657; *People v Versaggi*, 83 NY2d 123; *People v Keyes*, 75 NY2d 343.) II. The trial was misconduct-free and exceedingly fair, as evidenced by defendant's failure to raise many of his misconduct claims at trial. (*People v Williams*, 8 NY3d 854; *People v Santiago*, 22 NY3d 740; *People v Dunham*, 78 AD3d 1073; *People v Walston*, 196 AD2d 903; *People v Wragg*, 26 NY3d 403; *People v Galloway*, 54 NY2d 396; *People v Harris*, 26 NY3d 1; *People v Reynoso*, 73 NY2d 816; *People v Caban*, 5 NY3d 143; *People v Salko*, 47 NY2d 230.) III. The grand jury proceedings were fair. (*People v Huston*, 88 NY2d 400; *People v Thompson*, 22 NY3d 687; *People v Landtiser*, 222 AD2d 525; *People v Bartolomeo*, 126 AD2d 375; *People v Lancaster*, 69 NY2d 20; *People v Poole*, 48 NY2d 144; *People v Mitchell*, 82 NY2d 509; *People v Karp*, 158 AD2d 378; *People v Calbud, Inc.*, 49 NY2d 389; *People v Darby*, 75 NY2d 449.)

OPINION OF THE COURT

Chief Judge DiFiore.

Defendant was convicted, upon a jury verdict, of conspiracy in the sixth degree (Penal Law § 105.00) and two counts of official misconduct (Penal Law § 195.00 [1], [2]). On appeal, defendant primarily challenges his convictions on the bases of the legal sufficiency of the evidence and the fairness of the trial. We conclude that these claims lack merit and affirm the order of the Appellate Division in all respects.

I.

On May 19, 2009, shortly before Memorial Day weekend, school authorities reported the larceny of over \$3,000 of electronic equipment from a high school (the High School) to the Nassau County Police Department (NCPD). That same day, an NCPD patrol officer from the Seventh Precinct responded to the High School's complaint and interviewed the principal. This was one of a string of equipment thefts at the High School that had occurred throughout the 2008-2009 school year, all of which had been reported to the NCPD. As to this most recent theft, the principal told the officer that the school's surveillance video had captured a student, Z.P., on the High School premises on May 18 after school hours and without permission, and that witnesses had seen Z.P. trying to gain entry to the auditorium where the stolen equipment had been locked inside.

The officer recorded the details of the principal's complaint in a supporting deposition using form PDCN32B. The supporting deposition, which was sworn to by the principal and signed by both the principal and the officer, plainly stated that the victim wanted the perpetrator to be arrested. On the back of the supporting deposition, the officer wrote down NCPD case report numbers associated with the prior thefts the High School had already reported. In accordance with NCPD protocol, the officer called in her case report so that the information could be entered into the NCPD computer system and then turned in the supporting deposition at the Seventh Precinct. As the suspect was not present at the scene, the patrol officer could not make an arrest and the felony investigation, upon review, was assigned to the detectives in the Seventh Precinct detective squad (the Squad) for the purpose of conducting further "investigation and [to] move towards making an arrest."

In the meantime, the assistant principal informed both Z.P. and his father, Gary Parker, that Z.P. was being suspended for

five days for stealing the equipment and that the school had reported the larceny to the police. Gary Parker was a longtime benefactor of the NCPD who regularly entertained high-ranking members of the department. Due to Parker's connections, Z.P. had obtained an internship with the NCPD that spring and, thus, was a department employee at the time the crime was reported.

A detective, who was "catching cases" on May 19 when the Squad received the police report of the larceny through the department's computer system, then created a case jacket, assigned a detective division number to the case, and assigned himself the case. That same day, however, a lieutenant, who was the commanding officer of the Squad, learned that Z.P. was an NCPD employee and that his father was closely connected with the "upper echelon" in the department, meaning "chiefs and the commissioners." The lieutenant placed a call to Internal Affairs, which directly reported to the Police Commissioner and handled all cases involving department employees, to refer the case. Hours later, she received a call from Deputy Chief of Patrol John Hunter, who did not work in Internal Affairs but nonetheless outranked her, informing her that the case would stay with the Squad. Her response was "Yes, sir." Concerned about the attention this case already appeared to be receiving, the lieutenant reassigned the case to Detective Bruce Coffey who had an established relationship with school authorities and who the lieutenant believed was better at crossing his t's and dotting his i's.

At the behest of the detective sergeant who usually supervised Coffey, the lieutenant allowed Detective Sergeant Alan Sharpe to serve as Coffey's supervisor on this case. Sharpe, who was second-in-command at the Squad, then instructed Coffey to meet with the principal. Sharpe replaced the lieutenant and became the Squad's commanding officer days later on May 27. Sharpe explained to Coffey that "higher-ups" at the NCPD had been calling about the case and these "higher-ups" did not want an arrest. Sharpe directed Coffey to obtain a statement of withdrawal from the victim, which would serve to drop the complaint and close the case. Coffey followed the order of his supervisor. On May 21, Coffey went to the High School where he met with the principal and spoke with two other school employees who were witnesses to the crime. The principal was "adamant" about having Z.P. arrested and Coffey, conflicted as to his supervisor's directives to dispose of the case

and the victim's wishes to proceed with it, did not present the principal with the withdrawal form. Afterwards, Coffey communicated the principal's position to Sharpe and told Sharpe he was unable to obtain the withdrawal.¹

In advance of the upcoming Memorial Day weekend, Gary Parker also met with the principal. Parker informed her that Z.P. had confessed to the theft, but implored her to speak to the school district superintendent about not having Z.P. arrested. The principal emailed Detective Coffey asking the police to place the investigation on hold until she was able to confer with the superintendent. Parker also called a friend of Z.P.'s, who had received stolen property from his son, and directed him to deliver this property to the police. The friend, along with another individual who had received some of the stolen property from Z.P., brought the property to the Fifth Precinct and told the police that it was stolen. The police obtained statements from these witnesses. Sharpe sent the detective originally assigned to the case to retrieve this property from the Fifth Precinct. The detective did so and placed it in the Squad's storage locker without logging it in the Squad's evidence log, contrary to normal protocol. Parker also sought the assistance of his friend, Deputy Chief of Patrol Hunter. On that Saturday, Hunter asked a police officer, who had nothing to do with the larceny investigation, but was the principal's nephew, to speak with his aunt about the case. The officer, after deliberation, informed Hunter that he would not call his aunt.

On the Tuesday after Memorial Day, the principal, the superintendent, and the attorney for the school district made the decision that, in view of the fact that in excess of \$11,000 of equipment had been stolen from the school, the High School would press charges and have Z.P. arrested. Coffey, aware of the victim's desire to proceed with the case, nonetheless complied with the order of his supervisor, Detective Sergeant Sharpe, and declined to investigate the matter any further or effectuate an arrest. To this end, Coffey never preserved, obtained, or viewed the surveillance video in the High School's possession. He also never invoiced, vouchered, or photographed the stolen property in the Squad's possession, as was required

1. The withdrawal form is on NCPD letterhead and states in part, "[t]he Detectives have advised me that they are prepared to proceed with this case. However, I no longer wish to prosecute"

by department protocol, and left this evidence of a crime in the Squad's locker instead of securing the evidence in the NCPD Property Bureau.² Although Coffey conducted interviews with two school employees on May 21, he did not prepare any written statements of these witnesses or even take notes during the interviews. Coffey's omissions and refusal to act were done with the aim of preventing Z.P.'s arrest. Coffey understood this to be the goal of his supervisor, Sharpe, who made it abundantly clear to Coffey that there would be no arrest in this case and that Coffey was to obtain a withdrawal of prosecution.

On June 16, Sharpe and Hunter made arrangements for the principal and another school employee to meet with a detective who was not involved in Z.P.'s case in order to obtain the stolen property in the Squad's possession. This detective, a 15-year veteran, after speaking with Sharpe, presented the principal with the evidence he found unvouchered in the Squad's locker and asked her to sign two documents. The first was a document acknowledging receipt of the property. The second was a withdrawal of prosecution form. Upon reviewing the documents, the principal told the detective that she would not sign the withdrawal and that she did not have authority to drop the charges. Upon learning that the High School did not want to drop the case, the detective told the principal that he would need to bring the property back to the precinct and she would have to follow up with the detective assigned to the case. Then, the detective stepped out of the room to call Sharpe, who had directed him to obtain signatures on both forms, and informed Sharpe that the High School had refused to abandon their complaint. Sharpe ordered the detective to bring the property back to the precinct. The detective complied.

Two days later, Gary Parker encountered defendant William Flanagan at the U.S. Open. Parker and defendant knew each other well and had socialized on many occasions in the past. At this time, defendant was the detective sergeant in charge of Asset Forfeiture. On or about July 14, however, defendant was appointed by the Police Commissioner to Second Deputy Com-

2. Leaving the evidence unvouchered in the Squad's locker effectively bypassed various police protocols that required notice to the interested parties, including the department. A signed "Property Bureau Invoice" (PDCN106) form was required to be filed to voucher *any* property, not just evidence of a crime, in the Property Bureau. Moreover, once the physical items were in the custody of the Property Bureau, a "Property Disposition Card" (PDCN83) and a "Notice to Claimant Card" (PDCN110) "must accompany ALL property which is to be destroyed or returned."

missioner for Special Projects, one of the highest ranks in the NCPD. Parker explained the situation with his son and enlisted defendant's help in achieving a favorable resolution, which Parker admitted was no prosecution or arrest of his son. Defendant told Parker that he would look into the matter and see what he could do.

A few days later, Parker followed up with defendant by email. Parker asked if defendant needed any further information from him, to which defendant responded "I have all I need" and noted that he had "already put a couple of pieces in motion." Phone records revealed that defendant then immediately called the Seventh Precinct and had a 10-minute phone conversation with someone there. The following Monday, defendant received an email from Sharpe stating that Sharpe was still waiting for a call back from the High School regarding the return of property the two of them had discussed the previous week. Defendant responded, "[t]hanks, talk to you soon."

Over the course of the summer, Coffey was pressured by Sharpe to return the stolen property and obtain a withdrawal of prosecution from the High School. Failed attempts to arrange the return of the stolen property were reflected in a series of emails. Parker emailed defendant throughout the summer seeking updates and expressing concern with how the case would be resolved. Defendant responded to one such email with "I have no doubt about the resolution." Additionally, the principal expressed frustration with how the department was handling the case. In one email she remarked, "I assume that [Z.P.] has not been arrested, since it is clear that the police want to bury this case."

At the end of the summer, Coffey made arrangements to meet with the principal and another school employee on September 1 to return the stolen property. At this meeting, the principal was again presented with the property and the same two documents brought by another detective to the June 16 meeting, the property receipt and withdrawal of prosecution form. Both the principal and the other employee signed the receipt, but the principal expressed outrage at being presented with the withdrawal and told Coffey that the High School was not dropping the charges. Coffey left the evidence with the principal and returned to the precinct with the unsigned withdrawal.

About one week later, Coffey received an email from Sharpe which read, "I NOTICED THE LAPTOPS AND PROJECTOR

GONE FROM PROPERTY LOCKER. WERE THEY RETURNED TO THE SCHOOL DISTRICT DUE TO THEM ELECTING NPA?”³ Coffey later informed Sharpe that the property had been returned, but that the principal had refused to sign the withdrawal. Despite Sharpe’s directive to Coffey to keep trying to get the principal to sign the withdrawal, Coffey did not comply and had no further interaction with anyone at the High School after the September 1 return.

Around this same time, Parker emailed defendant to inquire about whether the property had been returned. Defendant indicated that it had. Parker responded with “THANK YOU!!!!!!” to which defendant replied, “[d]e nada family.” Within days of this exchange, Parker’s wife sent defendant gift cards. In response to Parker’s email inquiry about defendant’s receipt of the gift cards, defendant said they were “[o]ver the top.”

Later in the fall, both defendant and Coffey were at a police retirement party. While Coffey was sitting at a table with other members of the Squad, defendant approached Coffey, shook his hand, and said, “[t]hank you.” Coffey responded, “[t]hank you. You’re welcome.” Defendant did not shake hands with anyone else at the table and Coffey understood that defendant had thanked him for his involvement with Z.P.’s case.

One year later, in September 2010, Coffey was preparing to retire. Aside from his initial meeting at the High School on May 21, 2009, Coffey had purposefully done no investigation on this case, had not followed up on any leads, and had not arrested Z.P. Nonetheless, Coffey had left the case marked open in the department’s computer system. Prior to his departure from the department, Coffey prepared a false report to close out the case. Specifically, Coffey falsely represented that the principal did not want to move forward with the case and was no longer in need of police assistance. Sharpe, as Coffey’s case supervisor, had to review and sign off on this statement. Sharpe instructed Coffey to indicate that the principal “[did] not want to see [Z.P.] arrested.” Coffey complied with this directive, though he knew that this statement was false. On September 19, 2010, the case was officially closed.

II.

In March 2011, a newspaper published an article about the thefts at the High School, which resulted in the Nassau County

3. Coffey testified that “NPA” stood for “no police action.”

District Attorney launching an investigation into the handling of Z.P.'s case. Within days of the article, Gary Parker sent an email to defendant explaining that he was going to distance himself from the NCPD for a time and stating that he hoped defendant would "understand" and "support" his decision to do so. Defendant conveyed his support and replied, "[l]uv you dude. :) Remember what I told you, 'you're family'. We take care of our own." Parker responded, "[t]hanks. A little separation"

As relevant to this appeal, after a 7^{1/2}-month grand jury proceeding, defendant was indicted, along with Deputy Chief of Patrol Hunter and Detective Sergeant Sharpe, for conspiracy in the sixth degree and two counts of official misconduct.⁴ As to the crime of conspiracy, the indictment alleged that on or about and between May 19, 2009 and September 19, 2010⁵ these individuals,

"with the intent to engage in conduct that constituted the crime of Official Misconduct, agreed with one or more persons, including the father of a target of a felony investigation . . . , to return recovered stolen property to a cooperative complainant in an open felony investigation in an effort to justify and ensure the non-arrest of the target whose arrest would have otherwise been warranted, in order to benefit the target's father, a financial and personal benefactor of members of the Nassau County Police Department."

As to official misconduct, the indictment alleged that, on or about and between June 18, 2009 and September 10, 2009,⁶ defendant committed official misconduct under a theory of malfeasance by ordering subordinates to return stolen property that had been recovered by the NCPD in an open criminal investigation in an effort to justify the non-arrest of Z.P., whose arrest would have otherwise been warranted. The indictment further alleged that on or about and between June 18, 2009

4. Defendant was also indicted for receiving reward for official misconduct in the second degree. He was acquitted of this charge at trial.

5. These dates correspond with the day the High School reported the theft to the NCPD and the day Coffey and Sharpe filed the false report to close out the case.

6. These dates correspond with the day defendant first spoke with Gary Parker about Z.P.'s case at the U.S. Open and the day Parker's wife mailed two gift cards to defendant.

and September 11, 2009⁷ defendant committed official misconduct under a theory of nonfeasance by ensuring that Z.P. would not be arrested despite the fact that there was probable cause to arrest him and a willing complainant, in violation of defendant's inherent duties as an officer as well as of NCPD policy.

Prior to trial, defendant, pursuant to CPL 210.35 (5), moved to dismiss the indictment on the ground that the integrity of the grand jury proceedings had been impaired. The trial court denied this motion, concluding that the exceptional remedy of dismissal was not warranted. Defendant then proceeded to trial. Defendant's indicted coconspirators, Hunter and Sharpe, who pleaded guilty, did not testify at defendant's trial. The unindicted coconspirators—Coffey, who had entered into a cooperation agreement with the District Attorney, and Gary Parker—both testified. Defendant did not testify. Defendant was convicted of the conspiracy count as well as both official misconduct counts.

Prior to sentencing, defendant moved to set aside the verdict on the grounds that the People had not presented legally sufficient evidence and that defendant was denied his right to a fair trial. The trial court denied this motion, concluding that, viewing the evidence in the light most favorable to the People, legally sufficient evidence was presented and that the record as a whole did not establish that defendant was denied a fair trial. Defendant was sentenced to a 60-day prison term for conspiracy to be served concurrently with a five-month term for the two official misconduct convictions (three months of which could be satisfied with community service). He was also required to pay a \$1,000 fine. The execution of judgment was stayed pending the resolution of defendant's appeal.

On appeal, the Appellate Division affirmed defendant's convictions (132 AD3d 693 [2d Dept 2015]). The Appellate Division held that the evidence was legally sufficient to support the convictions. The Court further held that defendant's denial of a fair trial claims were either unpreserved or abandoned, or lacked merit. Moreover, the Appellate Division concluded that any error in this regard was harmless. Defendant's claim that the grand jury process was defective was found to be without merit.

A Judge of this Court granted defendant leave to appeal (26 NY3d 1039 [2015]). We now affirm.

7. On September 11, defendant confirmed his receipt of the two gift cards.

III.

“The standard for reviewing the legal sufficiency of evidence in a criminal case is whether after viewing the evidence in the light most favorable to the prosecution, *any* rational trier of fact could have found the essential elements of the crime beyond a reasonable doubt” (*People v Contes*, 60 NY2d 620, 621 [1983] [internal quotation marks and citation omitted]). Here, when viewed in this light, the evidence is sufficient to establish the elements of the crimes of official misconduct under both theories as well as of conspiracy in the sixth degree.

Official misconduct is codified in Penal Law § 195.00. Subdivision (1) of the statute pertains to official misconduct by way of malfeasance and subdivision (2) pertains to nonfeasance. In enacting the statute, the legislature “replaced more than 30 prior crimes, all of which dealt with specific malfeasance or nonfeasance in the accomplishment of official duties” (*People v Feerick*, 93 NY2d 433, 445 [1999]).

Penal Law § 195.00 contains two mens rea elements, requiring both an *intent* to obtain a benefit or deprive another of a benefit⁸ and *knowingly* acting or refraining from acting (see *Feerick*, 93 NY2d at 446). The double mens rea prevents the criminalization of official actions, or lack thereof, due to “mere errors of judgment” (*id.* at 448). This exacting standard is in keeping with the legislature’s goal of criminalizing “flagrant and intentional abuse of authority by those empowered to enforce the law,” rather than “good faith but honest errors in fulfilling one’s official duties” (*id.* at 445). Importantly, the two mens rea requirements were “not [meant] to limit in any substantive way the types of conduct that would be culpable” (see *id.* at 448). Moreover,

“[p]roof that a public servant *intended* to receive a benefit along with proof that he or she also *knew* the acts were ‘unauthorized’ *negates* the possibility that the misconduct was the product of inadvertence, incompetence, blunder, neglect or dereliction of duty, or any other act, no matter how egregious, that might more properly be considered in a disciplinary rather than a criminal forum” (*id.* [referencing commentary of the commission that

8. A “benefit” is defined as “any gain or advantage to the beneficiary and includes any gain or advantage to a third person pursuant to the desire or consent of the beneficiary” (Penal Law § 10.00 [17]).

drafted the current official misconduct statute] [additional emphasis added]).

A. Official Misconduct for Malfeasance

In order to be guilty of official misconduct for malfeasance a defendant (1) must commit an act that constitutes an unauthorized exercise of his or her official functions, (2) knowing that the act is unauthorized, (3) with the intent to obtain a benefit or deprive another of a benefit (Penal Law § 195.00 [1]). Here, defendant—eschewing the intrinsic purpose of his own department’s protocols and Penal Law § 450.10—argues that he did not commit an act that was an *unauthorized* exercise of his official functions because the police have the unfettered authority to return stolen property in their possession to its rightful owner. The People counter that the return of the stolen property in this case was an unauthorized exercise of defendant’s official functions because it violated departmental protocol and state law (Penal Law § 450.10) governing the return of evidence in a pending criminal investigation or matter and was done for the singular corrupt purpose of averting Z.P.’s arrest.

We disagree with defendant’s assertion that he cannot be guilty of malfeasance because the return of stolen property to its owner is an act that is inherently authorized. However, we also disagree with the People’s assertion that the act of returning the stolen property to the High School was unauthorized on the sole basis that it was prompted by a corrupt motive or purpose. Instead, we clarify that the same act may be authorized in some cases, but unauthorized in others, based on a consideration of all the surrounding circumstances. Evidence of these circumstances may include, among other things, the manner in which the act was undertaken, the governing guidelines, rules, and protocols, as well as the actor’s motive.

For example, in *People v Feerick* (93 NY2d 433 [1999]), police officers sought to recover a missing police radio—something they indeed had the authority to do. However, because the officers recovered the radio by entering and searching an apartment and detaining the occupants, all without the occupants’ consent and without a warrant that the officers had been directed to obtain, we concluded that their actions constituted an unauthorized exercise of their official functions (*id.* at 448). We held that “defendants—although purportedly acting under the authority of the Police Department and while on duty—

were not pursuing the radio in furtherance of prescribed law enforcement duties, but rather in violation of orders and *for their own benefit*" (*id.* at 449).

[1] Here, the evidence is sufficient to establish that defendant, along with his accomplices, used his position of power to orchestrate the return of unvouchered evidence to the school authorities with the goal of terminating the open felony investigation of his friend Gary Parker's son and preventing the son's imminent arrest. Defendant became involved in the return effort at Parker's behest a mere two days after a veteran detective, who was not part of the conspiracy, refused to leave the unvouchered evidence with the victim after the principal made clear she was not withdrawing the criminal allegations in this open felony investigation. Defendant communicated with both Parker and the Squad's then-commanding officer, Sharpe, and Sharpe continued to issue directives to Coffey. Coffey testified that he knew that as part of his official duties he was supposed to investigate the felony larceny, knew he had ample basis to arrest Z.P., and knew he was responsible for vouchering the stolen property as well as securing the surveillance video of the crime. Coffey admittedly evaded these duties because his supervising officer, who was acting in furtherance of the conspiracy, made clear that there would be no arrest or prosecution in this case.

Coffey's understanding of NCPD procedures with respect to handling evidence in an open felony investigation was corroborated by the testimony of two other detectives on the Squad as well as by that of the lieutenant who preceded Sharpe in the command of the Squad. Both detectives explained that whenever the police obtain property a PDCN106 (also known as a voucher) must be filled out and the property along with the voucher must be delivered to the custody of the Property Bureau. One of the detectives also testified that notice of the return of property, which constitutes evidence in an open case, must be given to the District Attorney. Further, he testified that a DD89 ("District Attorney's release form for property") must be filled out and signed by the District Attorney before this property is returned. To this point, the lieutenant testified that there is an "onus on the police to preserve evidence so that if we go forward in a case it's available to be reviewed in that case." Moreover, she testified that before returning

property in an open case there are set procedures, which include taking photographs of the property⁹ and reaching out to the District Attorney, that must be followed.

Preservation of evidence, which is the very goal of Penal Law § 450.10, is undertaken to maintain the evidence's integrity for the prosecution of the case while affording due process to the defendant by providing his attorney with the opportunity to review the evidence before its return to the victim. In this case, the District Attorney was kept in the dark about the existence of the felony investigation. Additionally, Z.P.'s attorney, who was involved in negotiations with the High School, was never contacted by the police. Defendant's accomplices did not comply with the notice and other requirements of the statute or department protocols. Thus, the trial testimony is sufficient to establish that the return of the evidence of the crime—under these specific circumstances, where the applicable statute and department protocols were not followed—was not an authorized exercise of official functions, that defendant knew that the official actions taken were unauthorized, and that these actions were undertaken with the intent to obtain a benefit.

Defendant's argument to the contrary ignores the fact that, by the design of defendant and his accomplices, the return of evidence to the victim in this open felony case was done to avoid the procedural triggers designed to alert other members of law enforcement with official interests in the safekeeping of evidence to the unauthorized acts of the coconspirators. As in *Feerick*, it is defendant's knowing participation in a "purportedly" authorized official action, which was actually done in blatant violation of department protocols and state law, coupled with the intent to thwart arrest and prosecution of a suspect, all to the benefit of the suspect's father, that permitted the jury to rationally conclude there was legally sufficient evidence to convict defendant of official misconduct under a theory of malfeasance.

9. Although the record contains two Polaroid photographs, Coffey, who was the investigating detective and responsible for the evidence, testified that he did not take these photographs and did not know their source. Indeed, Coffey found the photographs in the box containing the unvouchered evidence that was stored in the Squad's locker. It does not appear that these photographs were taken in accordance with NCPD policy on vouchering evidence.

B. Official Misconduct for Nonfeasance

Turning to official misconduct for nonfeasance, to be guilty of this crime a defendant (1) must knowingly refrain from performing a duty imposed by law or clearly inherent in the nature of his or her office (2) with the intent to obtain a benefit or deprive another of a benefit (Penal Law § 195.00 [2]). Defendant argues that this Court should adopt a bright-line rule that nonfeasance cannot lie where a public servant has failed to perform a discretionary—as opposed to a mandatory—duty. Conversely, the People argue that defendant, along with his police accomplices, had a mandatory duty inherent in the nature of their office to follow the normal path of investigation of a sworn complaint of a felony from a cooperative victim and make an arrest when there was ample probable cause to believe Z.P. committed the larceny.

Many of the duties imposed on the vast category of public servants covered by the statute are imbued with some degree of discretion. There is nothing in the plain language of the statute that suggests the word “duty” is only meant to encompass mandatory duties in which there is absolutely no room for the exercise of discretion. Indeed, Black’s Law Dictionary has separate entries for “duty” and “discretionary duty,” intimating that a discretionary duty is but one type of duty (*compare* Black’s Law Dictionary [10th ed 2014], duty *with id.*, discretionary duty). Instead, the plain language of the statute demonstrates that it is not the mandatory or discretionary nature of the failure to act that satisfies the duty element of nonfeasance, but rather it is the causal connection of the failure to a “flagrant and intentional abuse of authority by those empowered to enforce the law” (*Feerick*, 93 NY2d at 445). Therefore, “[w]e reject this narrow interpretation of the statute and, in accordance with the statutory mandate with respect to interpretation . . . , [we] hold that the crime of official misconduct may occur even where the public official’s duty is couched with discretion” (*People v Mackell*, 47 AD2d 209, 217 [2d Dept 1975], *affd* 40 NY2d 59 [1976]).

Certainly, a public servant’s knowing refusal to perform a mandatory action coupled with an intent to obtain a benefit constitutes nonfeasance. However, when a public servant, with the intent to obtain a benefit, knowingly refuses to perform a discretionary duty, the performance of which is so obviously fundamental to accomplishing the goals of the public servant’s office, that refusal cannot legitimately be understood to be an

exercise of discretion; rather, it constitutes an abuse of discretion, which equates to nonfeasance. In such a situation, the public servant has, in essence, abdicated his or her sworn duty.

[2] Defendant's contention—that because police officers have a measure of discretion in performing their sworn duties to arrest and investigate, as a matter of law he cannot be said to have knowingly refrained from performing these duties—completely undermines a statute intended to criminalize public corruption. We readily acknowledge that the scope of a police officer's duties at the arrest and investigation stages involves the exercise of reasonable discretion. Here, however, Coffey admitted he did not exercise his discretion in failing to investigate the case and arrest Z.P. Instead, he complied with the unsavory directives of his accomplice supervisors, following the orders of those of a higher rank in his department, and knowingly failed to perform his duties. Coffey knew that a felony had been committed at the High School by a suspect identified by the victim, but he did not take written statements from known witnesses, view or obtain a copy of the surveillance video that showed the suspect entering and leaving the building, voucher the evidence, or follow up on the investigation, despite having a cooperative complainant. In a conspiracy, the actions of a coconspirator, like Coffey, are attributable to the other conspirators (*see People v Caban*, 5 NY3d 143, 148 [2005]; *People v Salko*, 47 NY2d 230, 237 [1979]). Similarly, because defendant was charged as both a principal and an accomplice, he is criminally liable for the conduct of any other person if he acted with the mental culpability required for committing the underlying offense and solicited, requested, commanded, importuned or intentionally aided that person to engage in conduct constituting the offense (*see* Penal Law § 20.00). The officers here had no valid reason not to move forward with the investigation, and defendant, as an accomplice with a shared intent, can be held criminally responsible for the purposeful inertia of his accomplices.

Pivotaly, the evidence was sufficient to establish that the termination of Z.P.'s case—which before defendant's accomplices got involved had been moving along in the normal investigative process toward arrest and prosecution—could not be attributed to any legitimate reason, such as an uncooperative victim, a lack of evidence, or the District Attorney's decision not to prosecute the case. Contrary to defendant's claim, this was not a failure of an officer to perform a discretionary

duty, but a disavowal of a sworn duty by a public official, as defendant and his accomplices sought to avoid the inexorable result that performance of such duty would have produced. Thus, the evidence was sufficient to prove that defendant committed the crime of official misconduct by nonfeasance when he directed his accomplice officers to refrain from performing their fundamental duty to investigate a crime, a duty inherent in the nature of their office.

We also reject defendant's contention that the officers here did not "refrain[] from performing . . . dut[ies]" as this phrase is understood in Penal Law § 195.00 (2) because the adoption of such a holding would upset the balance in the criminal justice system that exists between the duty of the police officer and that of the District Attorney (NY Const, art XIII, § 13; County Law § 700; *see generally Matter of Johnson v Pataki*, 91 NY2d 214 [1997]). The constitutional and statutory authority to arrest has reasonable and necessary parameters and does not bestow unfettered discretion on the police to purposely stop the investigation of a legitimate felony complaint in an attempt to prevent the prosecution of a known suspect in order to obtain a benefit for the suspect's father.

Thus, in sum, we hold that on this record the jury could have rationally concluded that the elements of official misconduct by nonfeasance were established by proof that defendant, acting alone and with others, in his supervisory capacity, caused the abdication of the inherent duty to investigate a felony complaint in order to prevent the arrest and prosecution of Z.P., where there was overwhelming evidence of the crime, all to the benefit of the suspect's father.

C. Conspiracy in the Sixth Degree

Defendant's next contention—that there was legally insufficient evidence to support his conspiracy conviction—is similarly unavailing. To be guilty of conspiracy in the sixth degree, a defendant (1) must "with intent that conduct constituting a *crime* be performed" (2) "agree[] with one or more persons to engage in or cause the performance of such conduct" (Penal Law § 105.00 [emphasis added]).

"The crime of conspiracy is an offense separate from the crime that is the object of the conspiracy. Once an illicit agreement is shown, the overt act of any conspirator may be attributed to other conspirators

to establish the offense of conspiracy and that act may be the object crime. But the overt act itself is not the crime in a conspiracy prosecution; it is merely an element of the crime that has as its basis the agreement. It is not offensive to permit a conviction of conspiracy to stand on the overt act committed by another, for the act merely provides corroboration of the existence of the agreement and indicates that the agreement has reached a point where it poses a sufficient threat to society to impose sanctions” (*People v McGee*, 49 NY2d 48, 57-58 [1979] [citations omitted]).

[3] As we have already concluded that the evidence, when viewed in the light most favorable to the People, was sufficient to prove the crime of official misconduct beyond a reasonable doubt, the first element of conspiracy has been satisfied. We further conclude that the second element of conspiracy has been satisfied as there was sufficient evidence of the coconspirators’ agreement to commit the crime of official misconduct in this case. The existence of a conspiracy was supported by the trial testimony of the coconspirators, by defendant’s admissions in his emails with Sharpe and Parker, and by abundant circumstantial evidence, which, when viewed in the light most favorable to the People, support the jury’s finding. As we have long observed, “[i]n prosecutions for the crime of conspiracy the People’s case must usually rest upon circumstantial evidence. Defendants, with the education, training and experience of the defendants in this case, do not conduct criminal conspiracies by making written records of their acts” (*People v Seely*, 253 NY 330, 339 [1930]).

IV.

[4] Lastly, defendant claims that he was denied his right to a fair trial because the trial court improperly admitted into evidence, pursuant to the coconspirator exception to the hearsay rule, coconspirator hearsay statements made in furtherance of the conspiracy but prior to defendant joining the conspiracy and after defendant’s active participation in the conspiracy ceased. This is an issue of first impression in our Court. We now hold that when a conspirator subsequently joins an ongoing conspiracy, any previous statements made by his or her coconspirators in furtherance of the conspiracy are admissible against the conspirator pursuant to the coconspirator

exception to the hearsay rule. This holding is in line with precedent of the Supreme Court of the United States, as well as with the vast majority of federal circuit courts, which have held, pursuant to the Federal Rules of Evidence, that “previous statements made by co-conspirators are admissible against a defendant who subsequently joins the conspiracy” (*United States v Brown*, 943 F2d 1246, 1255 [10th Cir 1991] [observing that First, Second, Third, Fourth, Fifth, Seventh, Eighth, Ninth, and Eleventh Circuits have all adopted this “prevailing view”]; see *United States v United States Gypsum Co.*, 333 US 364, 393 [1948] [holding the same prior to the adoption of the Federal Rules of Evidence]). We agree with the rationale for this rule expressed by the Second Circuit in *United States v Badalamenti* (794 F2d 821 [2d Cir 1986]): “a new recruit can be thought to have joined [the conspiracy] with an implied adoption of what had gone on before to enhance the enterprise of which he is taking advantage” (*id.* at 828 [internal quotation marks omitted]). Here, that is certainly the case where defendant, a high-ranking officer in the NCPD, joined the conspiracy after a discussion with coconspirator Parker in which Parker informed defendant of what had transpired and enlisted his help to prevent the criminal case from proceeding against Z.P.

We further conclude, in line with federal case law, that statements made after a conspirator’s alleged active involvement in the conspiracy has ceased, but the conspiracy continues, are admissible unless this conspirator has unequivocally communicated his or her withdrawal from the conspiracy to the coconspirators (see *United States v Brown*, 332 F3d 363, 373-374 [6th Cir 2003] [“The defendant carries the burden of proving withdrawal, and must show that he took affirmative action to defeat or disavow the purpose of the conspiracy. Without such action, liability continues for all actions in furtherance of the conspiracy by other conspirators” (internal quotation marks and citation omitted)]; see also *United States v Moore*, 651 F3d 30, 90 [DC Cir 2011] [concluding the defendant bears burden of proving withdrawal in line with holdings of the Second, Fifth, Sixth, Tenth, and Eleventh Circuits]). Here, defendant makes no argument that such a communication was made. Therefore, we conclude that the trial court made no error in admitting any of the coconspirator statements.

We hold that defendant’s remaining contentions lack merit.

Accordingly, the order of the Appellate Division should be affirmed.

Judges RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA
concur; Judge WILSON taking no part.

Order affirmed.

[71 NE3d 530, 49 NYS3d 39]

JOSE MARIN et al., Plaintiffs, v CONSTITUTION REALTY, LLC, et al., Defendants. SHERYL MENKES, ESQ., Nonparty Appellant, v DAVID B. GOLOMB, ESQ., et al., Nonparty Respondents.

Argued January 3, 2017; decided February 9, 2017

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 19, 2015. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Carol R. Edmead, J.; op 42 Misc 3d 1227[A], 2014 NY Slip Op 50206[U] [2014]), which, insofar as appealed from, had (1) denied nonparty Sheryl Menkes, Esq.'s motion to establish the attorneys' fees due to nonparty Jeffrey Manheimer, Esq. on a quantum meruit basis and to nonparty David Golomb, Esq. at 12% of the total net attorneys' fee; (2) granted Manheimer's cross motion to the extent of fixing his fee at 20% of the total net attorneys' fee; and (3) granted Golomb's cross motion to the extent of fixing his fee at 40% of the total net attorneys' fee.

Marin v Constitution Realty, LLC, 128 AD3d 505, modified.

HEADNOTES

Attorney and Client — Division of Fees — Failure to Inform Clients About Employment of Other Lawyer

1. Agreements for the division of attorneys' fees, under which the attorney of record initially engaged another attorney as cocounsel in an advisory role for an underlying construction site injury action that settled before trial, were enforceable, entitling the attorney to 20% of net attorneys' fees as indicated in the agreements, notwithstanding that neither the attorney of record nor the advisory attorney had informed the clients of the advisory attorney's involvement in violation of attorney ethics rules (former Code of Professional Responsibility DR 2-107 [a] [22 NYCRR 1200.12 (a)]; Rules of Professional Conduct [22 NYCRR 1200.0] rule 1.5 [g]). The attorney of record's failure to inform her clients of the advisory attorney's retention, while a serious ethical violation, did not allow her to avoid otherwise enforceable contracts. Both attorneys failed to inform the clients, the attorney of record led the advisory attorney to believe that the clients were informed and the clients themselves were not adversely affected by the ethical breach.

Attorney and Client — Compensation — Fee-Sharing Agreement

2. An attorney who agreed to provide assistance to the attorney of record in a construction site injury action, pursuant to a fee-sharing agreement providing that the attorney would be entitled to 12% of all attorneys' fees for his services in preparing for and handling a scheduled mediation or, "[i]f the case

does not resolve at the mediation, presently scheduled for May 20, 2013,” 40% of all attorneys’ fees “for preparing for trial and trying the case,” was entitled to 12% of the net attorneys’ fees, notwithstanding that the case was not resolved at the May 20 mediation, but was settled by an agreement via a May 31, 2013 telephone conversation between the mediator and the attorney. The first paragraph of the fee agreement stated that the attorney would “provide whatever services are needed . . . to prepare [the matter] for mediation and to handle the mediation” and that he would “receive twelve (12%) percent of all attorneys’ fees whenever the case is resolved.” No specific date or dates were mentioned for the mediation. Although the subsequent paragraph referenced the date of May 20, 2013, the agreement did not require that the mediation be concluded during a single-day session. Nor was the mediation limited to the specific date identified in the agreement. The use of commas around “presently scheduled for May 20, 2013” indicated that the date was descriptive and not intended to restrict the mediation to that date. Thus, the agreement plainly contemplated the fact that many mediation efforts require multiple sessions or follow-up conversations before settlement can be achieved. Moreover, the clear intent of the agreement’s language stating, “[i]n the event this matter has to be tried, the total of all attorneys’ fees to which [the attorney will be] entitled for all services set forth, including mediation, shall be forty (40%) percent of all attorneys’ fees whenever the case is resolved,” was that the 40% fee would be triggered only if the matter moved past mediation, which it did not.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Attorneys at Law §§ 44, 54, 58, 63–66, 137, 139, 201, 257, 305; AM JUR 2d Joint Ventures § 50.
CARMODY-WAIT 2d Officers of Court §§ 3:245, 3:283, 3:285, 3:292, 3:352, 3:374, 3:393, 3:398, 3:484, 3:489.
22 NYCRR 1200.0, rule 1.5 (g); 1200.12 (a).
NY JUR 2d Attorneys at Law §§ 101, 186, 190–191, 228, 398, 407–408, 411–412, 417, 421, 483.

ANNOTATION REFERENCE

Validity and Enforceability of Express Fee–Splitting Agreements Between Attorneys. 11 ALR6th 587.

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POINTS OF COUNSEL

Mischel & Horn, P.C., New York City (*Scott T. Horn* of counsel), for nonparty appellant. I. The Appellate Division erred in awarding David B. Golomb a 40% share of the net at-

torneys' fees. (*Wirth & Hamid Fair Booking Inc. v Wirth*, 265 NY 214; *Greenfield v Philles Records*, 98 NY2d 562; *Vermont Teddy Bear Co. v 538 Madison Realty Co.*, 1 NY3d 470; *Atwater & Co. v Panama R.R. Co.*, 246 NY 519; *Heller v Pope*, 250 NY 132; *Brown Bros. Elec. Contrs. v Beam Constr. Corp.*, 41 NY2d 397; *Sutton v East Riv. Sav. Bank*, 55 NY2d 550; *Matter of Riconda*, 90 NY2d 733; *Trump-Equitable Fifth Ave. Co. v H.R.H. Constr. Corp.*, 106 AD2d 242, 66 NY2d 779; *Farrell Lines v City of New York*, 30 NY2d 76.) II. Jeffrey A. Manheimer failed to comply with former Code of Professional Responsibility DR 2-107 (a) (22 NYCRR 1200.12 [a]) and consequently he should be limited to compensation on a quantum meruit basis. (*Lado v Wardaska*, 71 AD3d 538; *Dugan v Dorff Constr. Co.*, 281 AD2d 158; *Ford v Albany Med. Ctr.*, 283 AD2d 843; *Samuel v Druckman & Sinel, LLP*, 12 NY3d 205.)

Sullivan Papain Block McGrath & Cannavo, P.C., New York City (Brian J. Shoot of counsel), for David B. Golomb, Esq., nonparty respondent. I. Sheryl Menkes's current claims are unreviewable inasmuch as her core argument is unpreserved and all of her arguments rest upon disregard of affirmed findings of fact. (*Matter of Allstate Ins. Co. v Dawkins*, 52 AD3d 826; *Velez Org. v J.C. Contr. Corp.*, 289 AD2d 105; *People v Pressley*, 94 NY2d 935; *Matter of Malta Town Ctr. I, Ltd. v Town of Malta Bd. of Assessment Review*, 3 NY3d 563; *Feinberg v Saks & Co.*, 56 NY2d 206; *Merrill v Albany Med. Ctr. Hosp.*, 71 NY2d 990; *Bennett v St. John's Home*, 26 NY3d 1033; *Altshuler Shaham Provident Funds, Ltd. v GML Tower, LLC*, 21 NY3d 352; *Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Hecker v State of New York*, 20 NY3d 1087.) II. The lower courts correctly ruled that the "plain language" of the operative fee-sharing agreement entitled David B. Golomb to 40% of the attorney's fees. (*Schron v Troutman Sanders LLP*, 20 NY3d 430; *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157; *Bailey v Fish & Neave*, 8 NY3d 523; *Reiss v Financial Performance Corp.*, 97 NY2d 195; *Riverside S. Planning Corp. v CRP/Extell Riverside, L.P.*, 13 NY3d 398; *Apfel v Prudential-Bache Sec.*, 81 NY2d 470; *Goldston v Bandwidth Tech. Corp.*, 52 AD3d 360; *Benjamin v Koeppe*, 85 NY2d 549; *Samuel v Druckman & Sinel, LLP*, 12 NY3d 205; *Matter of Riconda*, 90 NY2d 733.) III. The lower courts were also correct in ruling that the contract appellant negotiated and signed was neither unfair nor commercially unreasonable. (*White v Continental Cas. Co.*, 9 NY3d 264; *Apfel v Prudential-Bache Sec.*, 81 NY2d 470; *Samuel v Druckman & Sinel, LLP*, 12 NY3d 205.)

Parker Waichman LLP, Port Washington (*Jay L. T. Breakstone* of counsel), for Barbara Manheimer, executrix of the Estate of Jeffrey A. Manheimer, Esq., nonparty respondent. I. The Appellate Division was correct in finding that there were no grounds for invalidating the fee agreements between Sheryl Menkes and Jeffrey A. Manheimer. II. There is no appeal as of right under CPLR 5601 (a); the decision in the Jeffrey A. Manheimer action was unanimous. (*Matter of Duchnowski*, 31 NY2d 991; *Christovao v Unisul-Uniao de Coop. Tranf. de Tomate do sul do Tejo, S.C.R.L.*, 41 NY2d 338; *Matter of Hogan v Goodspeed*, 82 NY2d 710; *Matter of City of New York*, 304 NY 785; *Matter of Whitestone Bridge Approach, in Borough of Queens, City of N.Y.*, 293 NY 684.)

OPINION OF THE COURT

Chief Judge DiFiore.

Plaintiffs Jose and Ada Marin obtained an \$8 million settlement for serious injuries Jose Marin sustained when he fell approximately 40 feet while working on a building in Manhattan. This appeal concerns a fee dispute between plaintiffs' attorney of record in that action, Sheryl Menkes, and two attorneys she engaged to assist her: Jeffrey A. Manheimer and David B. Golomb. Based on the plain language of their respective fee-sharing agreements, we conclude that Manheimer is entitled to 20% of net attorneys' fees and Golomb is entitled to 12% of net attorneys' fees. We therefore modify the Appellate Division order accordingly.

I.

A.

In February 2009, Menkes engaged Manheimer to act as co-counsel and provide advice in the action.¹ Their written agreement provided that Manheimer would receive 20% of net attorneys' fees if the case settled before trial and 25% once jury selection commenced. Neither attorney informed the clients of Manheimer's involvement, although Manheimer believed Menkes had done so. The failure to inform the clients violated the former Code of Professional Responsibility DR 2-107 (a) (22 NYCRR 1200.12 [a]) and the current Rules of Professional

1. Barbara Manheimer appears in this action as Executrix of the Estate of Jeffrey Manheimer.

Conduct (22 NYCRR 1200.0) rule 1.5 (g).² In June 2009, the agreement was amended to specify that Manheimer would act solely in an advisory capacity and would “not contact the client[s], defendants['] experts or the [c]ourt” without Menkes’s permission. The fee arrangement was unchanged. In August 2009, Menkes wrote to Manheimer unilaterally discharging him and advising him that his portion of the fees would be determined on a quantum meruit basis. Manheimer did not respond to Menkes; he did no further work on the case.

B.

In August 2012, Menkes obtained partial summary judgment on liability under Labor Law § 240 (1) on plaintiffs’ behalf. She later sought assistance from Golomb for an upcoming mediation—scheduled for May 20, 2013—and a potential trial on damages. In March 2013, Menkes and Golomb entered into a written agreement, which stated, in relevant part:³

“I [Golomb] have agreed to review the file, provide whatever services are needed, with your and your office’s assistance, to prepare it for the mediation and to handle the mediation. For those services, I will be [sic] receive twelve (12%) percent of all attorneys’ fees whenever the case is resolved, whether by settlement, verdict after trial or appeal, calculated after the attorneys have been reimbursed for all expenses laid out. This percentage due shall become fixed and owed upon execution of this agreement.

“If the case does not resolve at the mediation, presently scheduled for May 20, 2013, then I will be responsible, with your and your office’s assistance as requested, for preparing for trial and trying the case. After such mediation, I will be entitled to forty (40%) percent of all attorneys’ fees whenever the case is resolved, whether by settlement, verdict after trial or appeal, calculated after the attorneys have been reimbursed for all expenses laid out. In the event this matter has to be tried, the total of

2. The Rules of Professional Conduct replaced the Code of Professional Responsibility as the governing rules for attorney conduct in New York effective April 1, 2009.

3. Plaintiffs were notified of, and consented to, the arrangement between Menkes and Golomb. At this time, Menkes also represented in the agreement that no other attorneys were participating in the fee.

all attorneys' fees to which I am entitled for all of the services set forth, including mediation, shall be forty (40%) percent of all attorneys' fees whenever the case is resolved, whether by settlement, verdict after trial or appeal, calculated after the attorneys have been reimbursed for all expenses laid out."

The mediation began on May 20, 2013 at 2:00 p.m. Although the parties' original settlement positions were approximately \$17 million apart, by the time the session concluded at approximately 7:00 p.m., the gap was about \$1.5 million. Since the excess insurance carriers lacked authority to increase their offer at that time, the mediation session ended without a settlement agreement. On May 22, 2013, and during the following week, the mediator maintained contact with both Golomb and the carriers. On May 31, 2013, the mediator telephoned Golomb to convey a settlement offer of \$8 million, which Golomb accepted on plaintiffs' behalf. The final terms of the settlement agreement were memorialized in a June 5, 2013 letter.

C.

Menkes moved for an order establishing Golomb's attorneys' fees at 12% of net attorneys' fees and, after Manheimer intervened, Menkes also moved for an order setting his fees on a quantum meruit basis. Manheimer and Golomb each cross-moved: Manheimer to fix his fee at 20% of net attorneys' fees and Golomb, as relevant here, to fix his fee at 40% of net attorneys' fees.⁴

Supreme Court denied Menkes's motion and granted both cross motions (42 Misc 3d 1227[A], 2014 NY Slip Op 50206[U] [Sup Ct, NY County 2014]). As to Manheimer, Supreme Court held that both the February and June 2009 agreements unequivocally and unambiguously entitled Manheimer to 20% of net attorneys' fees. Supreme Court rejected Menkes's argument that because plaintiffs were never notified of and never consented to Manheimer's role as cocounsel, the agreements were unenforceable. As to Golomb, Supreme Court concluded that the plain language of the agreement provided that Golomb was entitled to 40% of net attorneys' fees because the case did not settle at the mediation session on May 20, 2013.

On appeal, the Appellate Division affirmed, with two Justices dissenting (128 AD3d 505 [1st Dept 2015]). That Court

4. The balance of Golomb's cross motion is not before us on this appeal.

unanimously agreed that Manheimer was entitled to 20% of net attorneys' fees (*see id.* at 512, 513). With respect to Golomb, the Court concluded that the plain language of the agreement between Golomb and Menkes provided that Golomb was entitled to 40% of net attorneys' fees because: (1) the agreement referenced " 'the mediation,' not the 'process' of mediation," (2) "the mediation" was defined as the one " 'presently scheduled for May 20, 2013,' " and (3) nothing in the agreement "condition[ed] Golomb's entitlement to the higher fee upon his commencing or taking any steps to prepare for trial" (*id.* at 509-510).

Two dissenting Justices would have held that the plain language entitled Golomb to only 12% of the attorneys' fees, noting that "the mediation," as used in the first substantive paragraph of the agreement, was not limited to a single date or session and that the words "presently scheduled for May 20, 2013," were descriptive, not limiting, because they were placed between commas (*id.* at 515-516). According to the dissent, the Court's analysis failed to give weight to the language requiring Golomb to " 'prepar[e] for trial and try[] the case' " in order to be entitled to the 40% fee (*id.* at 515).

Menkes appealed as of right pursuant to CPLR 5601 (a), which brings up for our review Menkes's agreements with both Manheimer and Golomb.

II.

[1] We conclude that Menkes's agreements with Manheimer are enforceable and entitle Manheimer to 20% of net attorneys' fees.

Menkes's attempt to use the ethical rules as a sword to render unenforceable, as between the two attorneys, the agreements with Manheimer that she herself drafted is unavailing. Her failure to inform her clients of Manheimer's retention, while a serious ethical violation, does not allow her to avoid otherwise enforceable contracts under the circumstances of this case (*see Samuel v Druckman & Sinel, LLP*, 12 NY3d 205, 210 [2009]). As we have previously stated, "it ill becomes defendants, who are also bound by the Code of Professional Responsibility, to seek to avoid on 'ethical' grounds the obligations of an agreement to which they freely assented and from which they reaped the benefits" (*Benjamin v Koeppe*, 85 NY2d 549, 556 [1995] [citation omitted]). This is particularly true here, where Menkes and Manheimer both failed to inform the

clients about Manheimer's retention, Menkes led Manheimer to believe that the clients were so informed, and the clients themselves were not adversely affected by the ethical breach.

Menkes's remaining arguments with respect to Manheimer are either without merit or are not preserved for our review.

III.

As to the agreement between Golomb and Menkes, general principles of contract interpretation control. "[A]greements are construed in accord with the parties' intent" (*Greenfield v Philles Records*, 98 NY2d 562, 569 [2002] [citation omitted]). The best evidence of that intent is the parties' writing (*see id.*). "[A] contract should be 'read as a whole, . . . and if possible it will be so interpreted as to give effect to its general purpose' " (*Beal Sav. Bank v Sommer*, 8 NY3d 318, 324-325 [2007] [citation omitted]). "[A] written agreement that is complete, clear and unambiguous on its face must be enforced according to the plain meaning of its terms" (*Greenfield*, 98 NY2d at 569). Whether an agreement is ambiguous or unambiguous "is an issue of law for the courts to decide" (*id.*). Here, both parties maintain that the agreement is unambiguous.

[2] The plain language of Menkes's agreement with Golomb entitles Golomb to 12% of net attorneys' fees if the matter resolved through the mediation that was scheduled to begin, but did not need to conclude, on May 20, 2013. That is what occurred here.

Two paragraphs of the agreement spell out the fee arrangement. The first states that Golomb will "provide whatever services are needed . . . to prepare [the matter] for the mediation and to handle the mediation." "For those services," i.e., preparing for and handling the mediation, Golomb will "receive twelve (12%) percent of all attorneys' fees whenever the case is resolved." No specific date or dates are mentioned for the mediation.

The subsequent paragraph states that "[i]f the case does not resolve at the mediation, presently scheduled for May 20, 2013, then [Golomb] will be responsible . . . for preparing for trial and trying the case. After such mediation, [Golomb] will be entitled to forty (40%) percent of all attorneys' fees whenever the case is resolved." Although the agreement references the date of May 20, 2013, the agreement does not require that the mediation be concluded during a single-day session. Nor was

the mediation limited to the specific date identified in the agreement; rather, the use of commas indicates that the date was merely descriptive of the mediation, and not intended to restrict the mediation to that date (*see* William Strunk Jr. & E.B. White, *The Elements of Style* 3-5 [4th ed 2000]).⁵ The agreement plainly contemplated the fact that many mediation efforts require multiple sessions or follow-up conversations before settlement can be achieved.

Moreover, the next sentence of the Golomb agreement reads “[i]n the event this matter has to be tried, the total of all attorneys’ fees to which [Golomb will be] entitled for all of the services set forth, including mediation, shall be forty (40%) percent of all attorneys’ fees whenever the case is resolved.” Thus, the clear intent of the agreement is that the 40% fee will be triggered only if the matter moves past mediation.

Here, the mediator and Golomb communicated in the days following the May 20 mediation session, with the mediator continuing to act as go-between. Ten days after the session, the mediator communicated the final \$8 million offer, which Golomb accepted. Reading the agreement as a whole, the plain language of the agreement entitles Golomb to 12% of net attorneys’ fees.

Accordingly, the order of the Appellate Division should be modified, without costs, in accordance with the opinion herein and, as so modified, affirmed.

Judges RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Judge WILSON taking no part.

Order modified, without costs, in accordance with the opinion herein and, as so modified, affirmed.

5. The conflicting opinions below disagreed as to whether Menkes preserved her argument that the phrase “presently scheduled for May 20, 2013,” offset by commas, was a descriptive term, rather than a limiting term (*see* 128 AD3d at 510, 516-517). We conclude that the argument is properly before us.

[71 NE3d 556, 49 NYS3d 65]

LEND LEASE (US) CONSTRUCTION LMB INC. et al., Appellants, v
ZURICH AMERICAN INSURANCE COMPANY et al., Respondents.

Argued January 11, 2017; decided February 14, 2017

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 22, 2015. The Appellate Division, with two Justices dissenting, modified, on the law, an order of the Supreme Court, New York County (Eileen A. Rakower, J.; op 2015 NY Slip Op 30039[U] [2015]), which had denied plaintiffs' respective motions and defendants' cross motions for summary judgment. The modification consisted of granting defendants' cross motions for summary judgment and declaring that defendants have no obligation to provide coverage under the builder's risk policy. The Appellate Division affirmed the judgment as modified.

Lend Lease (US) Constr. LMB Inc. v Zurich Am. Ins. Co., 136 AD3d 52, affirmed.

HEADNOTES

Insurance — Disclaimer of Coverage — Coverage Requirements — Disclosure of Tower Crane in Total Project Value

1. In plaintiffs' action seeking a declaration of coverage under the builder's risk policy furnished by defendants for storm damage to a tower crane affixed to a building for use in plaintiffs' construction of a skyscraper, a triable issue of fact existed as to whether the crane was covered under the insurance provided for temporary works. The crane was a "structure" within the meaning of the policy, and was "temporary" in that it was anchored and tied to the building only "during construction" and was to be "removed when . . . no longer needed." However, whether the value of the crane was disclosed as part of the "total project value," another requirement for coverage, could not be determined on the record as a matter of law. The evidence submitted with respect to the "total project value" question included an affidavit averring that the actual market value of the crane was impliedly, but not expressly, disclosed to defendants as required for the crane to constitute a "temporary work"—and, therefore, "covered property"—within the meaning of the policy.

Insurance — Exclusions — Contractor's Tools, Machinery, Plant and Equipment

2. Defendant insurers were not obligated to provide coverage under the builder's risk policy issued to plaintiffs for storm damage to a tower crane affixed to a building for use in plaintiffs' construction of a skyscraper, as the crane fell within the policy's exclusion for "[c]ontractor's tools, machinery, plant and equipment . . . not destined to become a permanent part of the [building]." The crane fell squarely within the definition of "machinery," and

although components of the crane were to permanently remain part of the building following completion of construction, the record conclusively reflected that the principal parts of the crane were “not destined to become a permanent part of the [building]” upon the completion of construction. Moreover, the exclusion was not so broad as to render coverage afforded under the temporary works provision of the policy illusory. The contractor’s tools exclusion did not defeat all of the coverage afforded under the policy’s temporary works provision, and thus enforcement of the exclusion would not create a result that would have the exclusion swallow the policy.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Building and Construction Contracts § 148;
AM JUR 2d Insurance §§ 4, 192, 403, 508, 648, 940–941,
1546, 1709, 1785.
CARMODY-WAIT 2d Complaints in Particular Actions
§ 29:103; CARMODY-WAIT 2d Judgments § 63:596.
COUCH ON INSURANCE (3d ed) §§ 102:31, 126:20, 129:18,
132:20–132:22, 155:43–155:44, 220:32.
NEW YORK CONSTRUCTION LAW MANUAL (2013 ed)
§§ 2:42–2:43, 10:3, 10:6, 10:8, 10:11, 10:14, 10:34.
NY JUR 2d Insurance §§ 583, 1642, 1645, 2052, 2056–2058,
2061, 2142, 2201, 1474.

ANNOTATION REFERENCE

Coverage under builder’s risk insurance policy. 97 ALR3d
1270.

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POINTS OF COUNSEL

Carroll McNulty & Kull LLC, New York City (*Matthew J. Lodge* of counsel), for Lend Lease (US) Construction LMB Inc., appellant. I. The tower crane constitutes “temporary works,” as defined by the policy. (*Cornacchione v Clark Concrete Co.*, 278 AD2d 800; *Cun-En Lin v Holy Family Monuments*, 18 AD3d 800; *McCoy v Kirsch*, 99 AD3d 13; *York v Sterling Ins. Co.*, 114 AD2d 665; *Cocchi v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 156 AD2d 535; *Boh v Pan Am. Petroleum Corp.*, 128 F2d 864; 242-44 E. 77th St., LLC v Greater N.Y. Mut. Ins. Co., 31 AD3d 100; *Matter of Riefberg*, 58 NY2d 134.) II. The insurers cannot satisfy their burden of showing that the contractor’s

tools exclusion applies. (*Dean v Tower Ins. Co. of N.Y.*, 19 NY3d 704; *Sea Ins. Co., Ltd. v Westchester Fire Ins. Co.*, 51 F3d 22; *American Home Assur. Co. v Port Auth. of N.Y. & N.J.*, 66 AD2d 269; *Continental Cas. Co. v Rapid-American Corp.*, 80 NY2d 640; *Village of Sylvan Beach, N.Y. v Travelers Indem. Co.*, 55 F3d 114; *Show Car Speed Shop v United States Fid. & Guar. Co.*, 192 AD2d 1063; *De Forte v Allstate Ins. Co.*, 81 AD2d 465; *Belt Painting Corp. v TIG Ins. Co.*, 100 NY2d 377; *United States Fire Ins. Co. v General Reins. Corp.*, 949 F2d 569; *Garza v Marine Transp. Lines, Inc.*, 861 F2d 23.) III. Lend Lease (US) Construction LMB Inc. has met its burden to merit judgment as a matter of law on the issue of liability. (*Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851; *Zuckerman v City of New York*, 49 NY2d 557; *Alvarez v Prospect Hosp.*, 68 NY2d 320; *Donadio v Crouse-Irving Mem. Hosp.*, 75 AD2d 715; *S.J. Capelin Assoc. v Globe Mfg. Corp.*, 34 NY2d 338; *Pizzi v Bradlee's Div. of Stop & Shop*, 172 AD2d 504; *Hewett v Marine Midland Bank of Southeastern N.Y.*, 86 AD2d 263; *B&W Heat Treating Co., Inc. v Hartford Fire Ins. Co.*, 23 AD3d 1102; *Town of Harrison v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 89 NY2d 308; *Senate Ins. Co. v Tamarack Am.*, 14 AD3d 922.)

Greenberg, Trager & Herbst, LLP, New York City (*Richard J. Lambert* of counsel), for Extell West 57th Street LLC, appellant. I. The order below should be reversed and summary judgment granted to Extell West 57th Street LLC on the issue of coverage. (*Executive Risk Indem., Inc. v Starwood Hotels & Resorts Worldwide, Inc.*, 98 AD3d 878; *Ace Wire & Cable Co. v Aetna Cas. & Sur. Co.*, 60 NY2d 390; *Belt Painting Corp. v TIG Ins. Co.*, 100 NY2d 377; *Dean v Tower Ins. Co. of N.Y.*, 19 NY3d 704; *Ragins v Hospitals Ins. Co., Inc.*, 22 NY3d 1019; *Westview Assoc. v Guaranty Natl. Ins. Co.*, 95 NY2d 334; *United States Fid. & Guar. Co. v Annunziata*, 67 NY2d 229; *City of New York v Evanston Ins. Co.*, 39 AD3d 153; *Primavera v Rose & Kieran*, 248 AD2d 842; *Raner v Security Mut. Ins. Co.*, 102 AD3d 485.) II. The tower crane is a “temporary structure” within the meaning of the temporary works coverage provision. (*Cornacchione v Clark Concrete Co.*, 278 AD2d 800; *Cun-En Lin v Holy Family Monuments*, 18 AD3d 800; *McCoy v Kirsch*, 99 AD3d 13; *Caddy v Interborough R.T. Co.*, 195 NY 415; *Matter of Riefberg*, 58 NY2d 134; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208.) III. The tower crane is “incidental to the project.” (*Harris v Allstate Ins. Co.*, 309 NY 72; *Connors v Hartford Fire Ins. Co.*, 138 AD2d 877; *Miller v Continental Ins. Co.*, 40 NY2d 675; *Wade v Atlantic Cooling Tower Servs., Inc.*,

56 AD3d 547; *Muzak Corp. v Hotel Taft Corp.*, 1 NY2d 42; *Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Matter of Salvano v Merrill Lynch, Pierce, Fenner & Smith*, 85 NY2d 173; *Matter of Mostow v State Farm Ins. Cos.*, 88 NY2d 321; *Johnson City Cent. School Dist. v Fidelity & Deposit Co. of Md.*, 226 AD2d 990; *Cetta v Robinson*, 145 AD2d 820.) IV. The value of the tower crane was included in the total project value of the insured project. V. The policy exclusion for tools and equipment is not applicable to the tower crane. (*Dean v Tower Ins. Co. of N.Y.*, 19 NY3d 704; *Miller v Continental Ins. Co.*, 40 NY2d 675; *Ace Wire & Cable Co. v Aetna Cas. & Sur. Co.*, 60 NY2d 390; *Seaboard Sur. Co. v Gillette Co.*, 64 NY2d 304; *Continental Cas. Co. v Rapid-American Corp.*, 80 NY2d 640; *North Riv. Ins. Co. v United Natl. Ins. Co.*, 152 AD2d 500; *Muzak Corp. v Hotel Taft Corp.*, 1 NY2d 42; *Green Harbour Homeowners' Assn., Inc. v G.H. Dev. & Constr., Inc.*, 14 AD3d 963; *DRK, LLC v Burlington Ins. Co.*, 74 AD3d 693; *Rocon Mfg. v Ferraro*, 199 AD2d 999.) VI. Whether or not there is other insurance is irrelevant to the interpretation of the policy. (*Continental Cas. Co. v Rapid-American Corp.*, 80 NY2d 640; *Federal Ins. Co. v Empire Mut. Ins. Co.*, 181 AD2d 568.) VII. This Court should grant Extell's motion for summary judgment on the issue of liability. (*White v Continental Cas. Co.*, 9 NY3d 264; *Jahier v Liberty Mut. Group*, 64 AD3d 683; *Japour v Ryan & Sons Agency*, 215 AD2d 817; *Saks v Nicosia Contr. Corp.*, 215 AD2d 832; *Randolph v Nationwide Mut. Fire Ins. Co.*, 242 AD2d 889; *Persky v Bank of Am. N.A.*, 261 NY 212.)

Mound Cotton Wollan & Greengrass LLP, New York City (Philip C. Silverberg, Mark S. Katz and Sanjit Shah of counsel), for respondents. I. The Appellate Division correctly held that the tower crane does not constitute a temporary work under the policy. (*Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; 242-44 E. 77th St., LLC v Greater N.Y. Mut. Ins. Co., 31 AD3d 100; *People v Illardo*, 48 NY2d 408; *Metropolitan Life Ins. Co. v Noble Lowndes Intl.*, 84 NY2d 430; *Duane Reade, Inc. v Cardtronics, LP*, 54 AD3d 137; *Hodges v Boland's Excavating & Topsoil, Inc.*, 24 AD3d 1089; *McCoy v Kirsch*, 99 AD3d 13; *Caddy v Interborough R.T. Co.*, 195 NY 415; *York v Sterling Ins. Co.*, 114 AD2d 665; *J.P. Morgan Sec. Inc. v Vigilant Ins. Co.*, 21 NY3d 324.) II. The contractor's machinery and equipment exclusion precludes coverage for the tower crane. (*Rocon Mfg. v Ferraro*, 199 AD2d 999; *Matter of Edwards v Motor Veh. Acc. Indem. Corp.*, 25 AD2d 420; *DRK, LLC v Burlington Ins. Co.*, 74 AD3d 693; *County of Columbia v Continental*

Ins. Co., 83 NY2d 618; *Walters v Great Am. Indem. Co.*, 12 NY2d 967.)

OPINION OF THE COURT

FAHEY, J.

In this action, plaintiffs seek a declaration of coverage under a program of builder's risk insurance furnished by defendants for loss—specifically, damage to a tower crane—caused by Superstorm Sandy. At issue here is the question whether the crane is covered in the first instance under the insurance provided for temporary works and, if so, whether the contractor's tools exclusion defeats that initial grant of coverage. Also at issue—and critical to our analysis—is the question whether the contractor's tools exclusion is ineffective because it would render the coverage granted in the first instance for temporary works illusory. Assuming that the policy contains coverage for the crane in the first instance, we conclude that the contractor's tools exclusion would defeat that coverage, and that such exclusion does not render the coverage afforded under the temporary works provision of the policy illusory. We therefore affirm the Appellate Division order granting summary judgment declaring that defendants have no obligation to provide coverage for the subject loss under the policy.

I.

In October 2012, plaintiff Extell West 57th Street LLC was constructing a 74-story skyscraper—commonly known as the One57 Building—at 157 West 57th Street in Manhattan. Extell had retained plaintiff Lend Lease (US) Construction LMB Inc. to act as the construction manager for that project and, in that capacity, Lend Lease had contracted with nonparty Pinnacle Industries II, LLC for certain structural concrete work with respect to that endeavor. Pursuant to its contract with Lend Lease, Pinnacle was to furnish and install, among other things, two diesel fuel tower cranes.

Only one of those cranes is at issue here. That crane was installed on a reinforced slab on the 20th floor of the building and, once all other trade work was completed at the project, it was to be dismantled and removed from the site. Several components of the crane, including beams cast into the slab and materials reinforcing the locations at which the crane was “tied” to the building as it arose next to that edifice, were designed to permanently remain part of the building upon the completion of construction.

By October 29, 2012, the crane had risen approximately 750 feet from its base. On that day, Superstorm Sandy made landfall in the New York City area. One of the most dramatic images of that landfall depicts the damage caused to the crane when the boom of the crane collapsed in high winds and teetered precariously from a height equal to the top of the building. Afterwards, “[t]he . . . blocks [surrounding the building] were evacuated for six days and the crisis became a riveting symbol of the city’s wounded infrastructure” (Charles V. Bagli, *As Crane Hung in the Sky, a Drama Unfolded to Prevent a Catastrophe Below*, NY Times, Nov. 6, 2012, available at <http://www.nytimes.com/2012/11/07/nyregion/drama-behind-securing-crippled-crane-in-manhattan.html>).

At the time of that incident, Extell was the named insured on a program of builder’s risk insurance containing coverage in the amount of \$700 million, that is, the total estimated cost of the project. The program is referred to as the “policy,” but it actually is an amalgamation of five separate insurance contracts, each of which was issued by a different defendant insurer and each of which covers a different percentage of the aggregate risk. Defendant Zurich American Insurance Company assumed half of the aggregate risk and furnished the “lead” policy with respect to that exposure.

At issue in this action is whether the policy covers damages sustained by Extell (the named insured) and Lend Lease (an additional insured) resulting from the weather-related harm to the crane.¹ That determination turns on whether the crane is covered under the policy in the first instance and, if so, whether the policy’s contractor’s tools, machinery, plant and equipment exclusion (generally, contractor’s tools exclusion) defeats that coverage.²

Following defendants’ denial and disclaimer of coverage with respect to this matter,³ plaintiffs commenced this action seeking, among other things, a declaration that the crane is covered

1. Specifically, plaintiffs sought coverage for “costs . . . relat[ing] directly to stabilizing, removing, and replacing the damaged crane.”

2. Detailed analyses of the relevant parts of the policy’s insuring clause and contractor’s tools exclusion appear in sections II and III of this opinion. Here, it bears noting only that the question whether the policy contains coverage in the first instance for the crane turns in part on whether the crane is a “temporary work,” as that phrase is incorporated in the insuring clause.

3. After plaintiffs provided timely notice of their purported losses, defendants denied and disclaimed coverage for those claims through a joint letter.

(n. cont’d)

property under the policy, and that coverage for the crane is not subject to any policy exclusion.

Supreme Court entered an order denying the competing motions and cross motions for summary judgment that eventually were filed with respect to that coverage question, ruling that there is an issue of fact whether the contractor's tools exclusion defeats coverage for the subject loss (2015 NY Slip Op 30039[U] [Sup Ct, NY County 2015]). On appeal, however, the Appellate Division—with two Justices dissenting—modified that order by granting defendants' cross motions for summary judgment and declaring "that defendants have no obligation to provide coverage under the . . . policy" (136 AD3d 52, 61 [1st Dept 2015]). The Court held that "[t]he . . . crane was integral, not 'incidental to the project,' and therefore does not fall within the [policy's] definition of Temporary Works" (*id.* at 54). "Even if the . . . crane fell within the definition of Temporary Works," the Court added, "the contractor's tools . . . exclusion would be applicable and . . . enforceable" (*id.*).

By contrast, the dissenters would have affirmed Supreme Court's order, reasoning that there is an issue of fact whether the policy contains coverage for the crane in the first instance (*see id.* at 69 [Mazzarelli, J.P., and Richter, J., dissenting]), and that, although the contractor's tools exclusion pertains to the crane, such exclusion is unenforceable because to apply that exclusion here "would be to render coverage for temporary works illusory" (*id.* at 70). In essence, the dissenters concluded that the application of the contractor's tools exclusion effectively would defeat all of the coverage granted in the first instance by the policy's temporary works provision, and that such exclusion therefore is unenforceable as a matter of public policy.

Plaintiffs appeal to this Court as of right (*see* CPLR 5601 [a]), and we now affirm the Appellate Division order.

II.

"In determining a dispute over insurance coverage, we first look to the language of the policy" (*Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208, 221 [2002]; *see Matter of Viking Pump, Inc.*, 27 NY3d 244, 257 [2016]). "As with the

There, defendants maintained that the policy does not cover the subject loss in the first instance and that, even if such coverage exists, it is defeated by the contractor's tools exclusion.

construction of contracts generally, unambiguous provisions of an insurance contract must be given their plain and ordinary meaning, and the interpretation of such provisions is a question of law for the court” (*Vigilant Ins. Co. v Bear Stearns Cos., Inc.*, 10 NY3d 170, 177 [2008] [internal quotation marks omitted]; see *Viking Pump*, 27 NY3d at 257; *Selective Ins. Co. of Am. v County of Rensselaer*, 26 NY3d 649, 655 [2016]). Of course, where “the policy may be reasonably interpreted in two conflicting manners, its terms are ambiguous” (*Matter of Mostow v State Farm Ins. Cos.*, 88 NY2d 321, 326 [1996]), and “any ambiguity must be construed in favor of the insured and against the insurer” (*White v Continental Cas. Co.*, 9 NY3d 264, 267 [2007]; see *Federal Ins. Co. v International Bus. Machs. Corp.*, 18 NY3d 642, 646 [2012]).

[1] The question whether the policy covers the crane in the first instance turns on our interpretation of language germane to the policy’s insuring agreement.⁴ On this point the parties dispute whether the crane is a “temporary . . . structure[]” within the meaning of the policy, and whether the crane was “incidental to the project.”⁵ We conclude that the crane was a “structure” (see *Lewis-Moors v Contel of N.Y.*, 78 NY2d 942, 943 [1991] [defining “structure” as including “any production or piece of work artificially built up or composed of parts joined together in some definite manner”]; see *Joblon v Solow*, 91

4. The insuring clause provides that, “subject to the terms, exclusions, limitations and conditions contained [therein, the policy] insures against all risks of direct physical loss of or damage to Covered Property while at the location of the **INSURED PROJECT***” The policy defines “covered property” as “the Insured’s interest in,” among other things, “temporary works.” The phrase “temporary works,” in turn, means

“[a]ll scaffolding (including scaffolding erection costs), formwork, falsework, shoring, fences, and temporary buildings or structures, including office and job site trailers, all incidental to the project, the value of which has been included in the estimated **TOTAL PROJECT VALUE*** of the **INSURED PROJECT*** declared by the Named Insured.”

For its part, the phrase “total project value” is defined as

“[t]he total value of **PROPERTY UNDER CONSTRUCTION***, **TEMPORARY WORKS***, existing structures (when endorsed to the Policy) and **LANDSCAPING MATERIALS***; plus labor costs that will be expended in the **INSURED PROJECT***; plus site general conditions, construction management fees, and contractor’s profit and overhead, all as stated in the Declarations.”

5. To the extent the crane is not a “temporary . . . structure[]” and was not “incidental to the project,” it would not constitute a “temporary work” within the policy and therefore would not be covered thereunder.

NY2d 457, 464 [1998] [same]; *see also* Merriam-Webster's Collegiate Dictionary 1238 [11th ed 2003] [defining "structure" as "something (as a building) that is constructed"]. We further conclude that the crane was "temporary" in that it was anchored and tied to the building only "during construction" and was to be "removed when . . . no longer needed." Similarly, we conclude that the parties' additional dispute as to whether the crane was "incidental to the project" is of no moment. The principal purpose of the project was the construction of the building, not the crane, and the installation and disassembly of the crane were merely incidental steps toward the completion of that edifice.

The parties also dispute whether the value of the crane was disclosed as part of the "total project value," another requirement for coverage.⁶ On this record, we cannot make that determination as a matter of law. The evidence submitted with respect to the "total project value" question includes an affidavit of a Lend Lease executive, who averred that the actual market value of the crane was impliedly, but not expressly, disclosed to defendants as required for the crane to constitute a "temporary work"—and, therefore, "covered property"—within the meaning of the policy. Consequently, we agree with the dissenters at the Appellate Division to the extent they concluded that there is a triable issue of fact whether there is coverage for the subject loss in the first instance (*see* 136 AD3d at 71-72 [Mazzarelli, J.P., and Richter, J., dissenting]; *see also* *Platek v Town of Hamburg*, 24 NY3d 688, 694 [2015] ["it is the insured's burden to establish the existence of coverage"]; *see generally* *Zuckerman v City of New York*, 49 NY2d 557, 562 [1980]).

III.

Although we depart from the Appellate Division order by concluding that there is an issue of fact whether the policy contains coverage for the subject loss in the first instance, we nevertheless reach the same result as that Court. Namely, we conclude that there is no coverage for that loss under the policy because any coverage afforded by that contract in the first instance is defeated by the contractor's tools exclusion. That exclusion provides that

6. To the extent the value of the crane was not disclosed as part of the "total project value," the crane would not constitute a "temporary work" within the policy and therefore would not be covered thereunder.

“[t]h[e] Policy does not insure against loss or damage to . . . Contractor’s tools, machinery, plant and equipment including spare parts and accessories, whether owned, loaned, borrowed, hired or leased, and property of a similar nature not destined to become a permanent part of the **INSURED PROJECT***, unless specifically endorsed to the Policy.”

[2] “[B]efore an insurance company is permitted to avoid policy coverage, it must satisfy the burden which it bears of establishing that the exclusions or exemptions apply in the particular case, and that they are subject to no other reasonable interpretation” (*Dean v Tower Ins. Co. of N.Y.*, 19 NY3d 704, 708 [2012], quoting *Seaboard Sur. Co. v Gillette Co.*, 64 NY2d 304, 311 [1984] [citations omitted]). Extell, in particular, contends that defendants cannot have met that burden here because the crane is not a “tool” or “equipment” within the meaning of the contractor’s tools exclusion. The subject exclusion, however, also defeats coverage for “machinery,” and the crane falls squarely within this definition of that term. “Machinery” means, among other things, “machines in general or as a functioning unit,” and “machine” is defined as “a mechanically, electrically, or electronically operated device for performing a task” (Merriam-Webster’s Collegiate Dictionary 744 [11th ed 2003]). Although Extell submitted evidence that “components of [the crane were to] permanently remain part of the [b]uilding following the completion of construction,” those “components” consisted primarily of reinforcements and ties, and the record conclusively reflects that the principal parts of the crane were “not destined to become a permanent part of the [building]” upon the completion of construction. To that end, we conclude the contractor’s tools exclusion applies to the crane.

We further conclude that there is no force to plaintiffs’ effort to avoid application of that exclusion on the ground that it is so broad as to render coverage afforded under the temporary works provision of the policy illusory. To be sure, “[a]n insurance agreement is subject to principles of contract interpretation” (*Universal Am. Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 25 NY3d 675, 680 [2015]), and an illusory contract—that is, “[a]n agreement in which one party gives as consideration a promise that is so insubstantial as to impose no obligation”—is “unenforceable” (Black’s Law Dictionary 370 [9th ed 2009]; see generally *Thomas J. Lipton, Inc. v Liberty*

Mut. Ins. Co., 34 NY2d 356, 361 [1974]; *Madawick Contr. Co. v Travelers Ins. Co.*, 307 NY 111, 118 [1954]). We agree with the Appellate Division, however, that “‘[a]n insurance policy is not illusory if it provides coverage for some acts [subject to] a potentially wide exclusion’” (136 AD3d at 60, quoting *Associated Community Bancorp, Inc. v St. Paul Mercury Ins. Co.*, 118 AD3d 608 [1st Dept 2014] [internal quotation marks and citation omitted]).

Indeed, the contractor’s tools exclusion does not defeat *all* of the coverage afforded under the policy’s temporary works provision. That exclusion would not defeat coverage initially granted for such things as the cost of erecting scaffolding, for “temporary buildings,” and for such other things as “formwork, falsework, shoring, [and] fences,” which are not “tools” within the meaning of the exclusion. The enforcement of the exclusion does not create a result that “‘would have the exclusion swallow the policy’” (*Reliance Ins. Co. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 262 AD2d 64, 65 [1st Dept 1999], quoting *Camp Dresser & McKee, Inc. v Home Ins. Co.*, 30 Mass App Ct 318, 323, 568 NE2d 631, 634 [1991]). For the same reason the exclusion does not render the coverage granted under the temporary works provision illusory.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge DiFiore and Judges Rivera, Abdus-Salaam, Stein and Garcia concur; Judge Wilson taking no part.

Order affirmed, with costs.

[71 NE3d 563, 49 NYS3d 72]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GREGORY VINING, Appellant.

Argued January 3, 2017; decided February 14, 2017

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 26, 2015. The Appellate Division order, insofar as appealed from, affirmed a judgment of the Supreme Court, New York County (A. Kirke Bartley, J.), to the extent it had convicted defendant, upon a jury verdict, of assault in the third degree, criminal mischief in the fourth degree and criminal trespass in the second degree.

People v Vining, 126 AD3d 623, affirmed.

HEADNOTE

Crimes — Evidence — Tape Recordings — Hearsay — Adoptive Admission

In a prosecution arising out of a series of domestic violence incidents, the trial court did not abuse its discretion as a matter of law in admitting into evidence the recording of a telephone call between defendant and his ex-girlfriend as an adoptive admission based on defendant's non-responsive and evasive answers to the ex-girlfriend's repeated accusations that he broke her ribs, notwithstanding that defendant's potential jail sentence was discussed and the call was recorded while defendant was incarcerated. The court properly concluded that the content of the conversation, itself, demonstrated that defendant both heard and understood what the ex-girlfriend was saying, but chose to give evasive and manipulative responses, and that view was supported by the context of the call, where defendant voluntarily contacted his accuser in violation of an order of protection in an attempt to influence her to drop the charges against him. Once the People satisfied those threshold evidentiary requirements for admissibility, the call was properly placed before the jurors, who were fully equipped to assess its significance and dynamics. The court also did not abuse its discretion as a matter of law in declining to redact that portion of the call that referenced, incorrectly, defendant's sentencing exposure as the mention of a potential prison term was inextricably intertwined with defendant's purpose in placing the call, and any potential juror prejudice was mitigated by the court's thorough limiting instruction, crafted by defense counsel. Finally, that defendant's evasive responses were made while he was incarcerated did not render them the product of an interrogation or its functional equivalent under the circumstances.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Evidence §§ 594, 811–814, 816.

CARMODY-WAIT 2d Particular Types of Evidence §§ 194:43, 194:250.

LaFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) § 24.4.

NY JUR 2d Criminal Law: Procedure § 2219; NY JUR 2d Evidence and Witnesses § 302.

ANNOTATION REFERENCE

See ALR Index under Confessions and Admissions; Sound Recordings.

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Query: “adoptive admission” & evasive & call

POINTS OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Margaret E. Knight of counsel), for appellant. I. Using Gregory Vining’s silence on a phone call explicitly monitored by the government as direct evidence of his guilt punished him for remaining silent in violation of his constitutional rights and state evidentiary rules. (*Miranda v Arizona*, 384 US 436; *People v Rutigliano*, 261 NY 103; *Doyle v Ohio*, 426 US 610; *People v Pavone*, 26 NY3d 629; *People v Basora*, 75 NY2d 992; *People v Conyers*, 52 NY2d 454; *People v Von Werne*, 41 NY2d 584; *People v Williams*, 25 NY3d 185; *Jenkins v Anderson*, 447 US 231; *People v Smith*, 172 NY 210.) II. The content of the Rikers Island telephone call was inadmissible hearsay that did not satisfy the narrow exception for an adopted admission as (1) there was insufficient evidence that Gregory Vining heard and understood the statement, and (2) his silence on a call monitored by the government did not naturally imply acquiescence. (*People v Dawson*, 50 NY2d 311; *People v Lewis*, 238 NY 1; *People v Benanti*, 158 AD2d 698; *People v Ayala*, 75 NY2d 422; *People v Crimmins*, 36 NY2d 230; *People v Morrow*, 204 AD2d 356; *People v Campney*, 94 NY2d 307; *People v Lourido*, 70 NY2d 428; *People v Ferrara*, 199 NY 414; *People v Conrow*, 200 NY 356.) III. The trial court improperly refused to redact inaccurate and misleading information about Gregory Vining’s possible sentence from the Rikers Island call. (*People v Cippolone*, 106 AD2d 458; *People v Garcia*, 63 AD2d 719; *People v Chartoff*, 72 App Div 555; *People v Hope*, 262 AD2d 254; *People v Cooper*, 78 NY2d 476; *People v Letendre*, 247 AD2d 796.) IV. The court’s negative response to a jury note inquiring whether

a person might have a right of entry to an apartment containing his belongings was an incomplete statement of law and directed the jurors to find Gregory Vining guilty of trespass. (*People v Basch*, 36 NY2d 154; *People v McCargo*, 226 AD2d 480; *People v Steinberg*, 79 NY2d 673; *People v Lee*, 116 AD3d 493; *People v Gonzalez*, 293 NY 259.)

Cyrus R. Vance, Jr., District Attorney, New York City (Ross D. Mazer, Sheila L. Bautista and Susan Axelrod of counsel), for respondent. I. The admission of portions of defendant's phone call to the victim from jail was a proper exercise of discretion by the trial court. (*People v Conyers*, 52 NY2d 454; *People v Alls*, 83 NY2d 94; *People v Campney*, 94 NY2d 307; *People v Williams*, 25 NY3d 185; *People v Pavone*, 26 NY3d 629; *People v Berg*, 92 NY2d 701; *People v Savage*, 50 NY2d 673; *Illinois v Perkins*, 496 US 292; *Doyle v Ohio*, 426 US 610; *People v De George*, 73 NY2d 614.) II. The court's supplemental charge was proper. (*People v O'Hara*, 96 NY2d 378; *People v Drake*, 7 NY3d 28; *People v Steinberg*, 79 NY2d 673; *People v Malloy*, 55 NY2d 296; *People v Almodovar*, 62 NY2d 126; *People v Graves*, 76 NY2d 16; *People v Basch*, 36 NY2d 154; *People v McCargo*, 226 AD2d 480; *People v Roman*, 85 AD3d 1630, 17 NY3d 821; *People v Vincent*, 231 AD2d 444.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

The trial court did not abuse its discretion as a matter of law in admitting a phone call between defendant and his ex-girlfriend as an adoptive admission. Once the People satisfied the threshold evidentiary requirements for admissibility, the call was properly placed before the jury to weigh its import and significance. That the call was recorded while defendant was incarcerated does not change our analysis.

I.

Defendant was charged with several counts of assault, trespass and criminal mischief, all arising out of incidents involving him and his ex-girlfriend. The proof at trial established that they had a tumultuous relationship. The People introduced evidence of separate crimes from different dates. One involved defendant purposefully breaking the victim's cable box and hitting her in the face; another involved him pushing her to the ground and stomping on her chest, ultimately breaking two of her ribs; and the third involved him

entering her apartment without her permission and remaining until he was arrested. As the People conceded, the victim was not the most reliable witness. She had problems with alcohol and drugs, a criminal history which included violence toward other ex-partners, mental health issues related to depression and schizophrenia, and had, on more than one occasion, either lied to or been less than forthcoming with the police and the District Attorney's Office. She did not appear for her scheduled testimony at the start of trial and had to be forcibly brought to court in handcuffs. The jury was aware of these issues.

During the trial, the court, upon the People's application, allowed the prosecutor to play a telephone call made from defendant to the victim while he was incarcerated. The People sought to introduce the call as an adoptive admission by silence, which defendant opposed. During the conversation, the victim repeatedly accused defendant of breaking her ribs. Defendant never denied the allegations, and instead gave non-responsive and evasive answers. For example, after she forcefully stated many times that he had broken her ribs and shown no sympathy, his response was "so I'm a threat to you?" When she said he needed time to think and change so he would not do this to anyone else, he responded by asking whether his brother had called her. They also discussed a potential jail sentence, when he accused her of "not caring" if he got "a year."

The trial court allowed defense counsel to craft a limiting instruction, and counsel offered the following, which the court read to the jury before the call was played and again during its final charge:

"I'm allowing the conversation into evidence for the limited purpose of having you determine if such failure to respond and to remain silent is indeed an admission, and if you so find, give such admission whatever weight you deem appropriate in determining its significance.

"In making this determination, you should apply the same tests you would use in your own everyday life in doing so.

"You may wish to keep in mind, one, an individual[s] silence may be attributable to his awareness that he is under no obligation to speak.

"Two: An individual's natural caution that arises

from his knowledge that anything he says may be used against him.

“Three: An individual may refrain from speaking because he believes that efforts to exonerate himself under the circumstances would be futile.

“Now, to the extent that the telephone call references the potential jail sentence, the jury is to disregard that portion of the call.”

The jury found defendant guilty of attempted assault in the third degree, assault in the third degree, criminal mischief in the fourth degree, and criminal trespass in the second degree. The Appellate Division modified the judgment in a manner not relevant to this appeal, and otherwise affirmed, holding that the trial court properly exercised discretion in admitting the call (126 AD3d 623 [1st Dept 2015]). A Judge of this Court granted defendant leave to appeal (26 NY3d 1093 [2015]), and we now affirm.

II.

An adoptive admission occurs “when a party acknowledges and assents to something ‘*already*’ uttered by another person, which thus becomes effectively the party’s own admission’ ” (*People v Campney*, 94 NY2d 307, 311 [1999], citing 4 Wigmore, Evidence § 1609 at 100 [Chadbourn rev]). Assent can be manifested by silence, because “[a] party’s silence in the face of an accusation, under circumstances that would prompt a reasonable person to protest, is generally considered an admission” (Robert A. Barker & Vincent C. Alexander, Evidence in New York State and Federal Courts § 8:17 [West’s NY Prac Series Nov 2016 Update]; see also *People v Koerner*, 154 NY 355, 374 [1897] [“If he is silent when he ought to have denied, the presumption of acquiescence arises”]). We have also recognized that “an equivocal or evasive response may similarly be used against [a] party either as an adoptive admission by silence or an express assent” (*Campney*, 94 NY2d at 316 [Smith, J., dissenting] [internal quotation marks omitted], quoting 2 McCormick, Evidence § 262 at 176 [4th ed 1992]). Here, despite the dissent’s characterization, defendant was not silent in the face of the victim’s accusations. He gave “equivocal or evasive response[s]” (*id.*).

Though we recognize that evidence of a party’s silence or evasiveness can have “minimal probative significance” and a

“substantial” risk of prejudice (*People v Conyers*, 52 NY2d 454, 458-459 [1981]), our rules of evidence allow that “manifestations made in response or reaction to an accusatory overture, which may be generally inadmissible, may be received into evidence, nevertheless, to establish a relevant demonstrative response of the affected party” (*Campney*, 94 NY2d at 312 [internal quotation marks omitted]). Further, the “danger” of the potential ambiguity of a party’s silence is not as strongly implicated where, as here, “a verbalized response is involved, not a failure to speak” (*id.* at 313).*

To use a defendant’s silence or evasive response as evidence against the defendant, the People must demonstrate that the defendant heard and understood the assertion, and reasonably would have been expected to deny it (see *People v Allen*, 300 NY 222, 225 [1949]). As with almost all evidence, “[t]he determination whether a threshold foundation has been established for the admissibility of the declaration or manifested act is made by the trial court, in light of ‘all the facts and circumstances surrounding the incident,’ while the ‘value or effect of this evidence’ is weighed by the jury” (*Campney*, 94 NY2d at 312, quoting *People v Ferrara*, 199 NY 414, 430 [1910]). The threshold question of whether a defendant heard and understood another party’s accusations involves a “factual and inferential weighing responsibility” for which “[t]he trial court is the proper forum” (*id.* at 312-313).

Here, it is clear that the trial court did not abuse its discretion as a matter of law when it made the threshold determination that defendant heard and understood the victim’s accusations against him. The court properly concluded that the content of the conversation, itself, demonstrates that defendant both heard and understood what she was saying, but chose to give evasive and manipulative responses. This view is supported by the context of the call, where, in a domestic violence case, defendant voluntarily contacted the victim in violation of

* The dissent interprets our holding in *Campney* too narrowly. By stating that “[a]pplying standard principles, we conclude that the trial court appropriately permitted the jury to consider whether defendant adopted his accomplice brother’s written statement” (*Campney*, 94 NY2d at 310), we did not hold that these “standard principles” should be limited solely to a case with the particular facts of a defendant adopting his accomplice brother’s written statement, as the dissent here suggests. Instead, we apply these standard evidentiary principles to the facts before us, as we did in *Campney*, and conclude that the trial court similarly “appropriately permitted the jury to consider” whether defendant adopted the victim’s statement.

an order of protection in an attempt to influence her to drop the charges against him. Once this foundation was established, it was proper for the call “to be placed before the jury so that the jury might weigh the import, along with its other instructions and responsibilities” (*id.* at 313).

Though we are mindful of case law suggesting that evidence of a defendant’s silence “may have a disproportionate impact upon the minds of the jurors” (*Conyers*, 52 NY2d at 459), here, we are satisfied that the jury was fully equipped to assess the significance and dynamics of this phone call. At the outset, during the call, defendant was not silent, but responded to the victim’s accusations. Further, at trial, the jury heard evidence of the rocky relationship between them, and was aware of the allegations of domestic violence. In response, defendant attacked the victim’s credibility and suggested she had a motive to lie. The jury knew that she had problems with alcohol and drugs, that she had mental health issues, and that she had been less than truthful about defendant’s actions before. In this context, the jurors could, in the simple exercise of their common sense, understand the significance of the call.

Finally, defendant argues that it was error for the court to deny his request to redact that portion of the call which references, incorrectly, defendant’s sentencing exposure. However, in this domestic violence case, the mention of a potential prison term was inextricably intertwined with defendant’s purpose of calling the victim to manipulate her to drop the charges against him (“Oh, so you don’t care if I get a year?”). We conclude that the court did not abuse its discretion as a matter of law in declining to redact this portion of the call. And with respect to this issue, as with admission of the call, any potential prejudice was mitigated by the court’s thorough limiting instruction, crafted by defense counsel.

III.

Defendant and the dissent urge that despite our state evidentiary law’s allowance of adoptive admissions, this call should not have been admitted because it was made while he was incarcerated. Because all of his calls were recorded and monitored by the Department of Correction, a reality he was aware of, he argues that this conversation was akin to silence in the face of interrogation. We decline to adopt this view. As we recently explained, “[d]efendant was not induced by any promise, or coerced by the Department, to call [the victim] and

make statements detrimental to his defense. . . . and the mere act of recording is no different from an informer sitting mute, not provoking or prompting conversation but merely listening to a statement freely made” (*People v Johnson*, 27 NY3d 199, 206 [2016]). Notably, the adoptive admission from *Campney* was made in an interrogation room, in the presence of several police officers (though not in response to any question from an officer). Here, defendant voluntarily contacted and engaged in a conversation with a civilian. That his evasive responses were made during a call while he was incarcerated does not render them the product of an interrogation or its functional equivalent. Under the circumstances of this case, where defendant voluntarily called his accuser in violation of an order of protection to persuade her to drop the charges, the call was not the product of interrogation or its functional equivalent. As always, “the trial judge’s role as gatekeeper remains unchanged and necessary to ensure compliance with constitutional mandates and the usual rules of evidence and criminal procedure” (*Johnson*, 27 NY3d at 208).

IV.

We have considered defendant’s remaining contentions and find them unpreserved. Accordingly, the Appellate Division order, insofar as appealed from, should be affirmed.

RIVERA, J. (dissenting). I disagree with the majority that defendant, while a pretrial detainee in custody on Rikers Island who was informed both of his *Miranda* rights and that his telephone calls were routinely recorded by law enforcement, acquiesced to his intimate partner’s accusations during a monitored conversation because he failed to deny her statements. We have long recognized that an accused’s pretrial silence is generally prejudicial and inadmissible. Yet, the trial court below erroneously admitted into evidence, as an adoptive admission by silence, a recording of the Rikers Island telephone call between defendant and the victim. The circumstances of defendant’s detention do not justify an inference of defendant’s acquiescence, and the use of the recording here is nothing more than an improper attempt to allow a jury to infer an admission from the silence of a defendant where such silence has no probative value (*see generally People v De George*, 73 NY2d 614 [1989]; *People v Conyers*, 52 NY2d 454 [1981]). The majority’s reasoning is contrary to both our law and principles of fairness because any inference of an admission from an inmate’s silence

during these recorded conversations is presumptively unsound, and therefore I dissent.

According to well-established state evidentiary rules, the People generally may not use either in its case-in-chief or for impeachment a defendant's pretrial silence, meaning a defendant's failure to speak or to assert affirmatively innocence in the face of inquiry by law enforcement (*People v Rutigliano*, 261 NY 103, 107 [1933]; *Conyers*, 52 NY2d at 459).^{*} This proscription on the use of silence recognizes that "a defendant's silence is generally ambiguous and 'of extremely limited probative worth'" (*People v Williams*, 25 NY3d 185, 191 [2015], quoting *Conyers*, 52 NY2d at 458). Silence is especially weak evidence of guilt because a defendant may stand mute in the face of a direct accusation for a number of reasons unrelated to actual criminal culpability (*Conyers*, 52 NY2d at 458). For example, a defendant may feel no need to respond to what defendant maintains is an unsupported, baseless allegation for which denial would be futile; a defendant may be uncertain what to say and fear any response will be misinterpreted and used against them; a defendant may distrust law enforcement; or, a defendant may simply choose to invoke the constitutional right to remain silent (*id.*). Yet, "there is a substantial risk that jurors might 'construe such silence as an admission and . . . draw an unwarranted inference of guilt'" (*Williams*, 25 NY3d at 191, quoting *Conyers*, 52 NY2d at 458-459). This rule is not predicated on any misconduct by law enforcement, but reflects the commonsense view that, under these circumstances, pretrial silence lacks probative value and the potential for prejudice, as outlined above, outweighs any probative worth of the evidence (*Conyers*, 52 NY2d at 459).

These same concerns are no less relevant when a defendant is an inmate and well aware that the government is monitor-

^{*} The majority seems to misapprehend our case law on this point by suggesting that adoptive admissions by silence should be treated differently than adoptive admissions by elusive non-responses (majority op at 690-691). Our court has long held that the touchstone of the adoptive admission by silence jurisprudence is the "failure to deny, or to make immediate and positive denials" when faced with accusation (*see People v Allen*, 300 NY 222, 225 [1949]; *see also People v Williams*, 25 NY3d 185, 189, 193-194 [2015] [holding that it was error for the prosecutor to invite jurors to consider defendant's failure to deny an accusation as evidence of guilt]). Accordingly, the People sought admission of this evidence as an adoptive admission by silence and the trial court admitted it as such. Therefore, despite the majority's assertion to the contrary (majority op at 690), defendant's elusive or non sequitur responses to the victim's accusations constitute "silence."

ing a recorded conversation with a witness or codefendant, obviating any expectation of privacy while affirming the fear of self-incrimination (*see Rutigliano*, 261 NY at 105-106, citing *Commonwealth v McDermott*, 123 Mass 140 [1877], and *McCarthy v United States*, 25 F2d 298 [6th Cir 1928]). Whether a law enforcement official asks the question, or is merely listening to another's accusation, a defendant's silence is ambiguous and prejudicial (*see e.g. People v Koerner*, 154 NY 355, 375-376 [1897] [remitting for a new trial when the trial court allowed evidence of a witness's accusation to law enforcement in the presence of the defendant but, under the circumstances, the defendant would not naturally have protested]).

The entirely separate evidentiary doctrine upon which the majority relies, the hearsay exception for adoptive admissions, cannot supplant the prohibition against the admission of a defendant's pretrial silence. Here, the trial court's admission of defendant's post-accusatory, pretrial silence in response to allegations made in a recorded Rikers Island phone call as direct evidence of guilt violated state evidentiary law, and the inquiry ends there.

Nevertheless, even under the adoptive admission exception to hearsay, it was error to admit the recorded conversation.

“[A]ccusatory statements, not denied, may be admitted against the one accused, as admissions, but only when the accusation was ‘fully known and fully understood’ by defendant . . . , and when defendant was ‘at full liberty to make answer thereto, and then only under such circumstances as would justify the inference of assent or acquiescence as to the truth of the statement by his remaining silent’ ” (*People v Allen*, 300 NY 222, 225 [1949], quoting *Koerner*, 154 NY at 374, and *People v Conrow*, 200 NY 356, 367 [1911]; *see also People v Campney*, 94 NY2d 307, 311-312 [1999]).

The circumstances must be “such as would properly or naturally call for some action or reply from [persons] similarly situated” (*Koerner*, 154 NY at 374). Silence is not assent “unless the statements were such as to properly call for a response” (*id.*). Application of the rule in criminal cases “is to be applied with careful discrimination” as “‘[r]eally it is [the] most dangerous evidence’ ” (*id.*). As the Court explained more than a century ago, this evidence “should always be received with caution, and ought not to be admitted unless the evidence is of

direct declarations of a kind which naturally call for contradiction, or some assertion made to a party with respect to [the party's] rights, in which, by silence, [the party] acquiesces" (*id.* at 374-375). Where the circumstances are such that an inference of acquiescence cannot be drawn, as in where the evidence belies just such inference, the statements do not fall within the rule and their admission is error (*Conrow*, 200 NY at 367, citing *People v Kennedy*, 164 NY 449 [1900], *People v Smith*, 172 NY 210 [1902], and *People v Cascone*, 185 NY 317 [1906]).

Here, the circumstances not only do not establish tacit acquiescence, but they also contradict any such inference. At the time of the telephone call, defendant was a pretrial detainee on Rikers Island, and there is no dispute that he had been advised of his right to remain silent under *Miranda v Arizona* (384 US 436, 467-468 [1966]). Defendant had access only to telephones monitored by the New York City Department of Correction (DOC). There can be no question that defendant was made aware that his calls were monitored and could be made available to the District Attorney's Office upon request for use in his prosecution. This Court recently described how Rikers detainees are notified in writing and by audio telecommunications that a call on a Rikers telephone is not private (*see People v Johnson*, 27 NY3d 199, 203 [2016]). The Inmate Handbook provided to all persons upon admission to Rikers Island states "that calls may be recorded and/or monitored" (*id.*). The signs posted near the Rikers' telephones warn: "Inmate telephone conversations are subject to electronic recording and/or monitoring in accordance with [DOC] policy. An inmate's use of institutional telephones constitutes consent to this recording and/or monitoring" (*id.*). A detainee using the telephone will hear a recorded advisement that "[t]his [telephone] call may be recorded and monitored" (*id.*).

Furthermore, attorneys are well aware of the Rikers' telephone monitoring and use of recorded conversations in prosecutions and for plea bargaining purposes, and advise detainees accordingly. Indeed, the very same District Attorney's Office that prosecuted defendant and appears in the instant appeal represented in *Johnson* that defendants should be assumed to understand that they are being monitored by law enforcement: "this type of evidence collection has been so well documented that it blinks reality to assume that defendants are not informed by their attorneys, at arraignments, that their unprivileged conversations will be recorded by DOC and

provided to the prosecutor upon request” (brief for respondent in response to amicus curiae submission in *People v Johnson*, 27 NY3d 199 [2016], at 4).

Given defendant’s awareness of his rights under *Miranda* and the multiple Rikers’ warnings, an inference that defendant adopted the victim’s accusatory statements is unjustified. A detainee who is informed that he has a right to remain silent before law enforcement and that all telephone statements are recorded and may be used against the detainee by the District Attorney would understand that a “verbalized response”—not silence—is a perilous course, placing any defense at risk. The natural reaction under these circumstances is to maintain silence, not to deny and contradict the accusations (see *Conyers*, 52 NY2d at 458; see also *Williams*, 25 NY3d at 191). As the District Attorney in *Johnson* recognized: “[g]iven the notices that the prisoners signed, read on the wall and heard as they made their phone calls, it is clear that far from taking secretive action to elicit incriminating statements, DOC took overt steps that would actually *deter* the prisoners from making such statements” (brief for respondent in *People v Johnson*, 27 NY3d 199 [2016], at 41 [emphasis added]). To avoid the use of incriminating evidence, a defendant should “refrain from discussing the case over the telephone with anyone but [defense counsel]” (*id.* at 43). The concurring opinion in *Johnson* also noted that the People’s alternative was “essentially, don’t talk to anyone other than your attorney about anything related to your case unless you want the prosecutor to know about it” (*Johnson*, 27 NY3d at 211). The District Attorney, and the majority, cannot ignore when a defendant comports with this advice.

The majority’s analysis relies on a misapplication of this Court’s reasoning in *People v Campney* (94 NY2d 307 [1999]) and recharacterizes in sweeping language the Court’s narrow holding, which was limited to the use of circumstantial evidence to infer a defendant’s adoption of an accomplice’s written confession. *Campney* neither involved a defendant’s silence, nor sanctioned the routine use of evidence as an adoptive admission where a defendant says nothing. Rather, the case stands for the proposition that circumstantial evidence of a defendant’s conduct and speech may support an inference that the defendant has adopted inculpatory statements (*id.* at 313). The trial court admitted circumstantial evidence to prove that the defendant had read his brother’s written and signed

statement to police confessing to the crime (*id.* at 312). After the brother gave the police a verbal statement, he asked to speak with defendant and the police left the two alone in an interrogation room for 10-15 minutes (*id.*). When the police returned, they observed defendant holding the written statement (*id.*). When an officer asked the brother if he was ready to sign the statement, the brother asked the defendant what he should do, and the defendant responded, “You might as well sign it, you already told them all about what happened” (*id.*). The Court affirmed the admission of defendant’s exclamation to his brother and the written statement as an adoptive admission (*id.*). The Court concluded based on the circumstantial evidence that the lower court “had enough before it to deduce that defendant had read or been informed of the contents of the statement, understood its implications, and affirmatively adopted the statement as his own” (*id.* at 313).

In reaching the holding in *Campney*, the Court expressly distinguished the jurisprudence on acquiescence by silence because the “defendant *explicitly* manifest[ed] an awareness of a statement and acceptance of the import of its contents” (*id.*). The adoptive admission was justified because the dangers highlighted in prior cases and associated with acquiescence by silence are not present “where a verbalized response is involved, not a failure to speak” (*id.*). Here, however, the trial court admitted the Rikers telephone call based on defendant’s silence, not a verbalized response acknowledging the accusations or suggesting an adoption of the alleged wrongdoing. Thus, *Campney* does not support the majority’s analysis. Indeed, it reinforces our long-standing recognition that evidence of a defendant’s silence is of no probative value, while being prejudicial and inherently ambiguous.

The trial court’s error in admitting the telephone conversation as a tacit admission was not harmless, particularly because the recording also contained a prior consistent statement of a victim whose credibility was the primary focus of the case. “An error of law may be found harmless where ‘the proof of the defendant’s guilt, without reference to the error, is overwhelming’ and where there is no ‘significant probability . . . that the jury would have acquitted the defendant had it not been for the error’ ” (*People v Arafet*, 13 NY3d 460, 467 [2009], quoting *People v Crimmins*, 36 NY2d 230, 241-242 [1975]). An error is typically harmless when the challenged evidence was not the People’s key piece of evidence (*see People v Arafet*, 13 NY3d 460, 468 [2009]).

Here, where the jury acquitted defendant of certain charges based on the victim's testimony, the evidence of defendant's guilt was not overwhelming. The medical evidence placed the injury as having occurred within the three weeks before the victim went to the hospital, which did not contradict defendant's claim that another boyfriend of the victim caused the injury. However, most damaging to the People's case was the credibility of the victim, their key witness, who, in the words of the prosecutor, was "a disaster." Defense counsel impeached the victim by highlighting her prior inconsistent statements, drug addiction, and prior convictions for violence against other intimate partners. In summation, the prosecutor asked the jury not to rely alone on the victim, an obvious concession to the weakness of the People's case. "I know [the victim] is a disaster. I know that. However, I am not asking you to just rely on her. She has a lot of issues but I'm not just asking you to rely on her in this case." The prosecutor, recognizing that a defendant's silence when accused of wrongdoing is powerful, expressly advocated that the jury rely on the defendant's failure to speak against the accusation as proof of his guilt. The prosecutor further argued that defendant's silence while being recorded established his guilt because anyone would have spoken out under those circumstances:

"[E]ach inmate is put on notice that their calls are recorded. There are signs posted near all of the telephones that say they are recorded. If you knew that you were being recorded and you were innocent, wouldn't that be all the more reason for you to deny it? . . .

"He couldn't deny it to her because she was there. Because she was there when he did that to her."

Thus, although the majority maintains that defendant's awareness that his calls were monitored is irrelevant (majority op at 692-693), the prosecutor used this fact persuasively before the jury.

This was a case of intimate partner violence with no witness to the assault, so the case turned on who the jury believed (*e.g.* *People v Delamota*, 18 NY3d 107, 116 [2011]). Where the victim's credibility was suspect, the medical evidence established a three-week window for the assault, and the prosecutor's summation advocated guilt based on defendant's silence, the proof of guilt was not overwhelming and a significant probability exists that the jury would have acquitted the defendant

had the court not erroneously admitted evidence of the telephone call—a call which contained a prior consistent statement used to bolster the victim’s credibility. I would reverse the Appellate Division’s order affirming defendant’s conviction.

As this case illustrates, it is inherently unfair to inform a Rikers Island detainee that telephone calls are being monitored by the government and may be used as evidence against the detainee by the prosecution, only to penalize the detainee who elects not to speak during a recorded telephone call. Now, despite this Court’s continual acknowledgment of the limited probative value of a defendant’s silence in these circumstances, and the inherent prejudice that may result from admitting evidence of a defendant’s silence, the majority penalizes defendant for choosing not to speak, a conclusion not supported by our law or notions of fairness.

I dissent.

Judges STEIN, FAHEY and GARCIA concur; Judge RIVERA dissents in an opinion in which Chief Judge DiFIORE concurs; Judge WILSON taking no part.

Order, insofar as appealed from, affirmed.

[71 NE3d 941, 49 NYS3d 353]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v HAO LIN,
Respondent.

Argued January 11, 2017; decided February 16, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered November 26, 2014. The Appellate Term (1) reversed, on the law, a judgment of the Criminal Court of the City of New York, Kings County (Dena E. Douglas, J.), which had convicted defendant, upon a jury verdict, of driving while intoxicated per se and common-law driving while intoxicated; and (2) remitted the matter to the Criminal Court for a new trial.

People v Hao Lin, 46 Misc 3d 20, reversed.

HEADNOTE

Crimes — Right of Confrontation — Breath Test Results — Testimony of Observer to Instrument Operation

In a prosecution for driving while intoxicated, no Confrontation Clause violation occurred where the police officer who directly observed defendant's breath test but did not personally administer it testified at trial based on his own observations and conclusions, rather than as a surrogate for his partner who actually administered the test, and none of the nontestifying officer's hearsay statements were admitted against defendant. The testifying officer was personally present during the entire time that the nontestifying officer and defendant were together, and he testified that he was trained to operate the machine, was very familiar with it and could tell whether it was working properly based on the nontestifying officer's actions inputting information and on sounds made by the machine itself. Based on the testifying officer's testimony that he saw the machine print out the test results, which was credited by the Appellate Term, he was as capable as the nontestifying officer of reading the printout and introducing it in evidence, regardless of who operated the machine. Though the testifying officer did not personally perform or observe the verification of the simulator solution temperature as displayed on the machine, the written checklist completed by the nontestifying officer was not admitted into evidence. As such, no testimonial statement by a nontestifying witness concerning the temperature—or any aspect of the testing procedure—was used against defendant, and the record was sufficient to allow the jury to find that the temperature of the simulator solution was within the proper range.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Automobiles and Highway Traffic §§ 124, 131,

341, 346, 348, 371, 982, 985, 988–990, 993; AM JUR 2d Criminal Law §§ 1048–1049, 1064; AM JUR 2d Evidence §§ 1035–1036.

CARMODY-WAIT 2d Discovery §§ 187:26–187:27;

CARMODY-WAIT 2d Particular Types of Evidence §§ 194:59–194:60, 194:78–194:79, 194:88, 194:97.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 3.10, 10.5, 24.4.

NY JUR 2d Automobiles and Other Vehicles §§ 892, 898, 907–910, 922, 924, 926, 1224, 1240; NY JUR 2d Criminal Law: Procedure §§ 717, 1702, 2176, 2224, 2297.

US Const 6th Amend.

ANNOTATION REFERENCE

Necessity and sufficiency of proof that tests of blood alcohol concentration were conducted in conformance with prescribed methods. 96 ALR3d 745.

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POINTS OF COUNSEL

Eric Gonzalez, Acting District Attorney, Brooklyn (Anthea H. Bruffee and Leonard Joblove of counsel), for appellant. Defendant's constitutional right of confrontation was not violated by the introduction of testimony regarding the results of a test of defendant's blood alcohol content, because that testimony was given by a witness who personally observed the administration and results of the test. (*Crawford v Washington*, 541 US 36; *People v Pealer*, 20 NY3d 447; *Michigan v Bryant*, 562 US 344; *People v Kello*, 96 NY2d 740; *Melendez-Diaz v Massachusetts*, 557 US 305; *People v Waters*, 90 NY2d 826.)

Seymour W. James, Jr., The Legal Aid Society, New York City (Denise Fabiano of counsel), for respondent. The court denied respondent his constitutional right to confrontation by admitting the breath test results through an officer who, although present in the room when the test was administered, did not perform the breathalyzer test and missed key aspects prior to and during the test's administration and results. (*Melendez-Diaz v Massachusetts*, 557 US 305; *People v Pealer*, 20 NY3d 447; *United States v James*, 712 F3d 79; *People v DeMarasse*, 85 NY2d 842; *People v Burnet*, 25 Misc 3d 307; *People*

v Brown, 13 NY3d 332; *People v Rawlins*, 10 NY3d 136; *People v Crimmins*, 36 NY2d 230.)

OPINION OF THE COURT

STEIN, J.

In this appeal challenging convictions for driving while intoxicated, defendant argues that the Confrontation Clause was violated where the police officer who testified at trial regarding defendant's breath test directly observed the test, but did not personally administer it. Because the officer testified based on his own observations and conclusions, rather than as a surrogate for his partner who actually administered the test, and none of the nontestifying officer's hearsay statements were admitted against defendant, we hold that defendant's rights under the Confrontation Clause were not violated.

I.

Defendant was arrested for driving while intoxicated (DWI) and other traffic offenses. He was taken to the police station, where Officers Harriman and Mercado—who were both experienced breath analysis operators trained on the Intoxilyzer 5000—remained in defendant's presence for the entire breath-testing procedure. Harriman administered the breath test to defendant, progressing through the 13 steps on the police department checklist and completing the forms related to the test procedure. Mercado personally observed the performance of these tasks, and operated the video recorder that memorialized defendant's test.

On defendant's first two attempts to provide a breath sample, he did not blow properly, so the machine emitted an error sound, would not give a result, and had to be reset. On the third attempt, defendant provided a proper sample. Mercado testified that he knew it was proper because the machine did not make the error sound, and it printed out the result, which was a blood alcohol content of .25 of one percentum. Mercado further testified that a person cannot alter a reading in the machine once someone blows into it.

Prior to defendant's trial, Harriman retired from the New York Police Department and moved out of state. Therefore, Mercado testified at trial regarding the breath test procedure and results, including his opinion that defendant was intoxicated. The 13-step checklist completed by Harriman was not admitted into evidence. As relevant here, the jury convicted de-

fendant of two counts of DWI. Appellate Term reversed and remitted for a new trial on those counts (46 Misc 3d 20 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2014]), holding that defendant's Confrontation Clause rights were violated. That court so concluded because Mercado did not personally observe whether the machine display of the simulator solution temperature was within the proper range, which was an essential part of the 13-step operational checklist; the court also noted that the record did not indicate whether the machine will perform if the temperature is outside the proper range. A Judge of this Court granted the People leave to appeal (25 NY3d 1202 [2015]), and we now reverse.

II.

In general, the Confrontation Clause of the Sixth Amendment renders inadmissible the testimony of a witness against a criminal defendant "unless the witness appears at trial or, if the witness is unavailable, the defendant had a prior opportunity for cross-examination" (*Melendez-Diaz v Massachusetts*, 557 US 305, 309 [2009]; see *People v Pealer*, 20 NY3d 447, 453 [2013], *cert denied* 571 US —, 134 S Ct 105 [2013]). In particular, the Confrontation Clause is concerned with admission of testimonial statements made by declarants who are unavailable for cross-examination (see *Williams v Illinois*, 567 US —, —, 132 S Ct 2221, 2238 [2012]). Many of the recent Confrontation Clause decisions of the United States Supreme Court and of this Court concern documents such as affidavits, certifications and forensic reports that were introduced without any live testimony, or through the testimony of a person who was familiar with the testing procedure in general, but who lacked any direct connection to the particular defendant's testing (see *Bullcoming v New Mexico*, 564 US 647 [2011]; *Melendez-Diaz v Massachusetts*, 557 US 305 [2009]; *People v John*, 27 NY3d 294 [2016]). While the present case is factually distinguishable, those cases are instructive.

In *Bullcoming v New Mexico*, the United States Supreme Court determined that the Confrontation Clause was violated by the introduction of a blood test report through the testimony of an analyst who was familiar with the general testing procedure, but "who had neither observed nor reviewed" the analysis of the defendant's blood (564 US at 655). The Court held that information regarding test analysis and results is admissible only through, or when accompanied by, live

testimony of someone familiar with the particular test and process actually applied to the defendant's sample (*see id.* at 661). The Court reasoned that surrogate testimony of an individual who was not involved in the test at issue is insufficient because it cannot “convey what [the testing analyst] knew or observed about . . . the particular test and testing process he [or she] employed” (*id.* at 661), and cannot “expose any lapses or lies” by the testing analyst (*id.* at 662). As the concurrence in that case acknowledged, “[i]t would be a different case if, for example, a supervisor who *observed* an analyst conducting a test testified about the results or a report about such results” (*id.* at 673 [Sotomayor, J., concurring] [emphasis added]).

In *People v John*, this Court ruled similarly—under circumstances indistinguishable from those in *Bullcoming*—where a DNA lab report was admitted into evidence “without a testifying analyst who performed, witnessed or supervised any portion of the testing” (27 NY3d at 308). We contrasted the facts in *John* with those in *People v Brown* (13 NY3d 332 [2009]), wherein we discerned no Confrontation Clause violation because the testifying witness had supervised the generation of a DNA profile, and personally examined and independently interpreted the data (*see John*, 27 NY3d at 310, citing *Brown*, 13 NY3d at 337, 340). While we held in *John* that it was not necessary for every person who came into contact with the evidence to appear at trial, we required that “at least one analyst with the requisite personal knowledge must testify” (*John*, 27 NY3d at 313). Thus, we concluded that a defendant's Confrontation Clause rights would be protected as long as the People presented testimony of “a single analyst, particularly the one who performed, *witnessed* or supervised the generation of the critical numerical DNA profile” (*id.* at 314 [emphasis added]).

Neither the United States Supreme Court nor this Court has required the primary analyst to testify in every case in order to protect a defendant's confrontation rights. Indeed, both courts have commented that the Confrontation Clause is satisfied if the trial witness is a trained analyst who supervised, witnessed or observed the testing, even without having personally conducted it (*see Bullcoming*, 564 US at 666; *id.* at 673 [Sotomayor, J., concurring]; *John*, 27 NY3d at 304, 314). This is so because someone in such a position would be able to testify not only about the typical testing protocol, but also about “the

particular test and testing process” used in that defendant’s case (*Bullcoming*, 564 US at 661), thereby permitting the defendant to adequately cross-examine the witness.

III.

Applying the rules from those cases, we conclude that no Confrontation Clause violation occurred here. Mercado was personally present during the entire time that Harriman and defendant were together. Mercado testified that he was trained to operate the machine, was very familiar with it, and could tell whether it was working properly based on Harriman’s actions inputting information and on sounds made by the machine, itself. The Appellate Term specifically stated that, even though Mercado did not personally operate the machine for defendant’s test, he was a certified and experienced operator of the machine and was able to determine whether it was successfully self-calibrating by observing Harriman’s actions and listening to the machine (*see* 46 Misc 3d at 24-25). That court noted that Mercado testified that he heard and saw nothing to indicate that defendant’s third test was unsuccessful (*see id.*). Based on Mercado’s testimony that he saw the machine print out the test results, which testimony the Appellate Term credited (*see id.* at 25), he was as capable as Harriman of reading the printout and introducing it in evidence, regardless of who operated the machine. That printout was generated by the machine based on defendant’s breath sample, and was not a statement by Harriman (*compare Bullcoming*, 564 US at 660).

Defendant argues that Mercado did not observe him for the requisite 20-minute period before the test—one of the essential 13 steps of the checklist. While Harriman was responsible for completing the paperwork and was listed as the person who observed defendant, Mercado testified that he was also present with defendant for the entire testing procedure, including the pre-test observation period. According to Mercado, he knew, based on what he saw and heard, that defendant did not engage in any activity during that time that could have skewed the test results. Indeed, the Appellate Term noted that Mercado “testified as to defendant’s condition during the requisite observation period prior to the test” (*see* 46 Misc 3d at 24).

The only step in the testing process that the Appellate Term found Mercado did not personally perform or observe, and the sole stated basis for that court finding a Confrontation Clause violation, was verification of the simulator solution temperature

as displayed on the machine. Inasmuch as the written 13-step checklist completed by Harriman was not admitted into evidence, no testimonial statement by a nontestifying witness concerning the temperature—or any aspect of the testing procedure—was used against defendant. Thus, any argument as to Mercado’s failure to observe the temperature reading would merely relate to whether there was a proper foundation for his testimony, which would not implicate a Confrontation Clause violation (*see Williams*, 567 US at —, 132 S Ct at 2238). However, to the extent that the Appellate Term based its decision on the failure of an “essential” step in the testing procedure, the trial record contradicts that court’s conclusion that there was an absence of evidence that the machine will shut itself down and fail to perform the test if the temperature is outside the proper range (*see* 46 Misc 3d at 25). Mercado testified that he knew from operating the machine so many times that it makes an “error sound” if there is a problem, and will not give a result if an error occurs. Additionally, the video recording of the testing process supports Mercado’s testimony that no error sound was audible when the machine was verifying the temperature of the simulator solution (as opposed to when defendant failed to blow properly on his first two attempts, at which times a tone was audible and Harriman had to reset the machine). The video also shows that the machine continued to operate and produced a result. The record, therefore, was sufficient to allow the jury to find that the temperature of the simulator solution was within the proper range.

IV.

In sum, Mercado observed Harriman perform all of the steps on the checklist and saw the breathalyzer machine print out the results. Based upon his personal observations, Mercado—as a trained and certified operator who was present for the entire testing protocol—was a suitable witness to testify about the testing procedure and results in defendant’s test. Inasmuch as Mercado testified as to his own observations, not as a surrogate for Harriman, there was no Confrontation Clause violation. Any alleged irregularities concerning the testing procedure would relate to the weight of Mercado’s testimony, not its admissibility (*see e.g. People v Boscic*, 15 NY3d 494, 500 [2010]). Defendant’s remaining argument lacks merit.

Accordingly, the order of the Appellate Term should be reversed and the case remitted to that court for consideration

of the facts and issues that were raised but not determined on the appeal to that court.

Chief Judge DiFIORE and Judges RIVERA, ABDUS-SALAAM, FAHEY and GARCIA concur; Judge WILSON taking no part.

Order reversed and case remitted to the Appellate Term, Second Department, Second, Eleventh and Thirteenth Judicial Districts, for consideration of the facts and issues raised but not determined on the appeal to that court.

[71 NE3d 950, 49 NYS3d 362]

TARA N.P., Appellant, v WESTERN SUFFOLK BOARD OF COOPERATIVE EDUCATIONAL SERVICES, Also Known as WESTERN SUFFOLK B.O.C.E.S., Defendant, and COUNTY OF SUFFOLK et al., Respondents, et al., Defendants.

Argued January 10, 2017; decided February 16, 2017

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 12, 2015. The Appellate Division order, insofar as appealed from, (1) reversed, on the law, so much of an order of the Supreme Court, Suffolk County (John J.J. Jones, Jr., J.; op 2012 NY Slip Op 32288[U] [2012]), as had denied that branch of the motion by defendants County of Suffolk, Suffolk County Department of Social Services and Suffolk County Department of Labor which was for summary judgment dismissing the complaint insofar as asserted against them; and (2) granted that branch of the motion.

Tara N.P. v Western Suffolk Bd. of Coop. Educ. Servs., 131 AD3d 517, affirmed.

HEADNOTE

Municipal Corporations — Tort Liability — Immunity

Defendant County was immune from liability for damages resulting from the sexual assault of plaintiff by a worker at a County-owned facility who defendant knew to be a level three sex offender, since defendant was acting in its governmental capacity when it referred the worker to the lessee of the facility and did not assume a special duty to plaintiff. When a negligence claim is asserted against a municipality, courts must examine the specific act or omission out of which the injury is claimed to have arisen and the capacity in which that act or failure to act occurred. The specific act or omission that caused plaintiff's injury was defendant's referral of the worker to the lessee of the facility through defendant's "welfare to work" program, a referral made in spite of the lessee's caveat that it would not accept candidates with a criminal record. The administration of the program by defendant's department of labor was quintessentially a governmental role, and defendant's conduct in referring the worker was undertaken solely in connection with its administration of that program and was part of defendant's fundamental governmental activity. Moreover, to sustain liability against a municipality, the duty breached must be more than that owed the public generally. Even if defendant promised that it would not refer anyone with a criminal background, that promise would have been made only to the lessee of the facility and there was no evidence that plaintiff ever had any knowledge of the terms requested by the lessee. In addition, there was no direct contact between plaintiff and defendant, and the critical element of justifiable reli-

ance could not be met. Therefore, even if the referral was ministerial, plaintiff could not recover against defendant in the absence of a special duty.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Municipal, County, School, and State Tort Liability §§ 80, 83–84, 86, 105, 107, 140, 155, 184, 243, 379, 383, 393, 407, 532, 588.

CARMODY-WAIT 2d Actions By and Against Public Bodies and Public Officers §§ 144:5–144:10, 144:16.

DOBBS LAW OF TORTS §§ 343–349, 405, 410, 419, 421, 423, 429, 432.

NY JUR 2d Government Tort Liability §§ 15–19, 158–160, 191, 209, 249, 254, 431.

NEW YORK LAW OF TORTS §§ 9:29, 12:19, 17:25, 17:47, 17:54–17:56, 17:81–17:82.

ANNOTATION REFERENCE

Liability of Municipality or Other Governmental Unit for Failure to Provide Police Protection From Crime. 90 ALR5th 273.

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POINTS OF COUNSEL

Meyerson & Levine, LLP, Franklin Square (*Mary Ellen O'Brien* and *Michael C. Levine* of counsel), for appellant. I. The Appellate Division erred when it ignored judicial precedent in a case alleging a tort claim against a municipality in its proprietary capacity. (*Miller v State of New York*, 62 NY2d 506; *Granata v City of White Plains*, 120 AD3d 1187; *McCrae v New York City Tr. Auth.*, 123 AD3d 598; *Dick v Town of Wappinger*, 63 AD3d 661; *McGowan v State of New York*, 41 AD3d 670; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *Wittorf v City of New York*, 23 NY3d 473; *Weiner v Metropolitan Transp. Auth.*, 55 NY2d 175; *Applewhite v Accuhealth, Inc.*, 21 NY3d 420; *Crosland v New York City Tr. Auth.*, 110 AD2d 148.) II. The Appellate Division misapplied established precedent finding the existence of a special duty for a ministerial act. (*Valdez v City of New York*, 18 NY3d 69; *McLean v City of New York*, 12 NY3d

194; *Garrett v Holiday Inns*, 58 NY2d 253; *Pelaez v Seide*, 2 NY3d 186; *Kircher v City of Jamestown*, 74 NY2d 251; *Mastroianni v County of Suffolk*, 91 NY2d 198; *Florence v Goldberg*, 44 NY2d 189; *Sorichetti v City of New York*, 65 NY2d 461; *De Long v County of Erie*, 60 NY2d 296; *Lauer v City of New York*, 95 NY2d 95.)

Dennis M. Brown, County Attorney, Hauppauge (Christopher A. Jeffreys of counsel), for respondents. I. The County of Suffolk did not have a proprietary use of the property where the plaintiff was assaulted. (*Applewhite v Accuhealth, Inc.*, 21 NY3d 420; *Miller v State of New York*, 62 NY2d 506; *Weiner v Metropolitan Transp. Auth.*, 55 NY2d 175; *Bass v City of New York*, 38 AD2d 407, 32 NY2d 894; *Kadymir v New York City Tr. Auth.*, 55 AD3d 549; *Clinger v New York City Tr. Auth.*, 85 NY2d 957; *Sebastian v State of New York*, 93 NY2d 790; *Marilyn S. v City of New York*, 134 AD2d 583, 73 NY2d 910; *Bonner v City of New York*, 73 NY2d 930; *Matter of World Trade Ctr. Bombing Litig.*, 17 NY3d 428.) II. The claims alleged by the plaintiff were properly dismissed by the Appellate Division based upon a governmental immunity analysis. (*Tango v Tulevech*, 61 NY2d 34; *Haddock v City of New York*, 75 NY2d 478; *McCormack v City of New York*, 80 NY2d 808; *Lauer v City of New York*, 95 NY2d 95; *McLean v City of New York*, 12 NY3d 194; *Valdez v City of New York*, 18 NY3d 69; *Cuffy v City of New York*, 69 NY2d 255; *Dinardo v City of New York*, 13 NY3d 872; *Rivera v Board of Educ. of the City of N.Y.*, 82 AD3d 614; *Brown v City of New York*, 73 AD3d 1113.)

OPINION OF THE COURT

Chief Judge DiFiore.

On this appeal, we are asked to determine whether Suffolk County can be held liable for damages resulting from the sexual assault of plaintiff by a worker at a County-owned facility where plaintiff took adult education classes. The worker, defendant Larry Smith, had been referred for a potential position with the lessee of the facility through the County's "welfare to work" program. We hold that where, as here, the County's referral of defendant Smith was within the County's governmental capacity and the County did not assume a special duty to plaintiff, summary judgment was properly granted to the County. We therefore affirm.

Plaintiff Tara N.P. was sexually assaulted while attending classes conducted by Western Suffolk Board of Cooperative

Educational Services (BOCES) at a facility operated by North Amityville Community Economic Council (NACEC). NACEC leased the facility where classes were held from Suffolk County for a nominal amount. Additionally, NACEC agreed that the facility would be a work site for the Suffolk Works Employment Program (SWEP), a “welfare to work” program operated by Suffolk County Department of Labor (DOL). NACEC agreed to accept referrals of individuals who did not have criminal records. The DOL referred defendant Smith to NACEC for a potential position as a maintenance worker notwithstanding that it knew Smith was a level three sex offender. NACEC accepted the referral of Smith and months later, while working at NACEC’s facility, Smith sexually assaulted plaintiff in an empty classroom.

Plaintiff brought this action to recover damages for personal injuries against Suffolk County, the Suffolk County Department of Social Services, and the DOL (hereinafter, collectively the County), as well as Smith, NACEC, BOCES, and others. In addition to other relief, the County moved for summary judgment dismissing the complaint insofar as asserted against it on the grounds that it did not owe plaintiff a duty of care and, in any event, was entitled to absolute governmental immunity for discretionary acts. Supreme Court, among other things, denied the County’s motion for summary judgment (2012 NY Slip Op 32288[U] [Sup Ct, Suffolk County 2012]). The Appellate Division, as relevant here, reversed that portion of Supreme Court’s order and granted the County’s motion for summary judgment on the ground of governmental immunity, holding that the County was acting in a governmental capacity and did not voluntarily assume a special duty to plaintiff. As to plaintiff’s argument that the County should be liable because it acted in a proprietary capacity as a landlord, the Appellate Division held that the “essential act complained of . . . that the County negligently referred Smith to NACEC . . . was a governmental act” and, therefore, plaintiff could not “avoid the attachment of governmental immunity” (131 AD3d 517, 520 [2d Dept 2015]). We granted plaintiff leave to appeal (26 NY3d 914 [2015]).

Plaintiff argues that the County’s negligence arose out of its proprietary function as a landlord, and that the County’s failure to provide minimal security or a warning to protect those on the premises against foreseeable harm raises issues of fact that preclude summary judgment. In the alternative,

plaintiff argues that, assuming the County is found to have acted in a governmental capacity, the County had a special duty to plaintiff and the act of referring Smith to NACEC was not discretionary.

Under our well-established case law, plaintiff's arguments are without merit. As we have previously explained, "[w]hen a negligence claim is asserted against a municipality, the first issue for a court to decide is whether the municipal entity was engaged in a proprietary function or acted in a governmental capacity at the time the claim arose" (*Applewhite v Accuhealth, Inc.*, 21 NY3d 420, 425 [2013]). "A government entity performs a purely proprietary role when its 'activities essentially substitute for or supplement traditionally private enterprises'" (*id.*, quoting *Sebastian v State of New York*, 93 NY2d 790, 793 [1999]). In that instance, the government entity is subject to suit under the ordinary rules of negligence. In contrast, acts " 'undertaken for the protection and safety of the public pursuant to the general police powers' " are governmental in nature (*id.*, quoting *Sebastian*, 93 NY2d at 793). "Because this dichotomy is easier to state than to apply in some factual scenarios, the determination categorizing the conduct of a municipality may present a close question" (*id.*). For that reason, courts must "examine 'the specific act or omission out of which the injury is claimed to have arisen and the capacity in which that act or failure to act occurred' " (*Matter of World Trade Ctr. Bombing Litig.*, 17 NY3d 428, 447 [2011] [citations omitted and emphasis added]).

In this case, the specific act or omission that caused plaintiff's injury was the County's referral of Smith to NACEC through the County's SWEP program, a referral made in spite of NACEC's caveat that it would not accept candidates with a criminal record. The administration of SWEP by the DOL was quintessentially a governmental role. The County's conduct in referring Smith was undertaken solely in connection with its administration of that program and was part of the County's fundamental governmental activity. Therefore, we hold that the County was acting in its governmental capacity when it referred Smith to NACEC.

Plaintiff's claim that the County was acting in its proprietary capacity as a landlord is unpersuasive. Again, the specific act or omission out of which the injury arose was the County's referral of Smith to NACEC. This case is distinguishable from *Miller v State of New York* (62 NY2d 506 [1984]), where we

held that the State could be liable for damages in its proprietary capacity as a landlord for failing to keep outer doors locked in a State-operated college dormitory where “there was a reasonably foreseeable likelihood of criminal intrusion into the building” (*Miller*, 62 NY2d at 508-509). Here, it is not the County’s duty as a landlord to maintain basic security that is implicated; rather, it is the County’s failure to properly adhere to the terms that NACEC requested when the County referred Smith for a potential position at NACEC’s work site.

Given that the County was exercising a governmental function in referring Smith to NACEC, “the next inquiry focuses on [whether] the municipality owed a ‘special duty’ to the injured party” (*Applewhite*, 21 NY3d at 426; see also *Coleson v City of New York*, 24 NY3d 476, 481 [2014]). As we have explained, “[t]he core principle is that to ‘sustain liability against a municipality, the duty breached must be more than that owed the public generally’ ” (*Applewhite*, 21 NY3d at 426 [citations omitted]).

“[A] special duty can arise in three situations: (1) the plaintiff belonged to a class for whose benefit a statute was enacted; (2) the government entity voluntarily assumed a duty to the plaintiff beyond what was owed to the public generally; or (3) the municipality took positive control of a known and dangerous safety condition” (*id.*).

The burden of demonstrating such a special duty lies with the plaintiff. If the “plaintiff fails to meet this burden, the analysis ends and liability may not be imputed to the municipality that acted in a governmental capacity” (*id.*).

Of the three ways a plaintiff may show the existence of a special duty, situations one and three have no relevance to this case and only the second is at issue here—namely, whether the County “voluntarily assumed a duty to the plaintiff beyond what was owed to the public generally” (*id.*).

In *Cuffy v City of New York* (69 NY2d 255 [1987]), we articulated four elements of this special relationship:

“(1) an assumption by the municipality, through promises or actions, of an affirmative duty to act on behalf of the party who was injured; (2) knowledge on the part of the municipality’s agents that inaction could lead to harm; (3) some form of *direct contact* between the municipality’s agents and the

injured party; and (4) that party's *justifiable reliance* on the municipality's affirmative undertaking" (*id.* at 260 [emphasis added]).

Notably, all four elements must be present for a special duty to attach (*Applewhite*, 21 NY3d at 431). Here, the absence of the last two elements—direct contact and justifiable reliance—is fatal to plaintiff's claim. There is no view of the evidence that could allow one to conclude that the County voluntarily assumed a special duty to plaintiff. Even if the County promised that it would not refer anyone with a criminal background, that promise would have been made only to NACEC and there is no evidence that plaintiff ever had any knowledge of NACEC's request. In addition, while "the direct contact requirement has not been applied in an overly rigid manner" (*Cuffy*, 69 NY2d at 261), it is undisputed that there was no direct contact between plaintiff and the County. The County referred Smith to NACEC and plaintiff herself never communicated directly with the County or the DOL. Indeed, "[o]ur cases have accepted direct contact . . . by someone other than the plaintiff as sufficient to create a special relationship only where the person making the contact was acting on behalf of his or her immediate family" (*Laratro v City of New York*, 8 NY3d 79, 84 [2006]), which was not the case here.

Likewise, in the absence of direct contact between plaintiff and the County, the "critical" element of justifiable reliance (*Cuffy*, 69 NY2d at 261) cannot be met.

"[A]t the heart of most of these 'special duty' cases is the unfairness that the courts have perceived in precluding recovery when a municipality's voluntary undertaking has lulled the injured party into a false sense of security and has thereby induced him either to relax his own vigilance or to forego other available avenues of protection" (*id.*).

Here, however, plaintiff has not demonstrated—and cannot demonstrate—such reliance (*see Laratro*, 8 NY3d at 84). To find that NACEC's contacts with the County could be imputed to plaintiff to satisfy the direct contact and reliance elements would eviscerate these elements entirely and "would unacceptably dilute the general rule of municipal nonliability" (*id.*). Accordingly, plaintiff raises no triable issue of fact as to a special duty running to her from the County.

Because we have determined that there is no triable issue of fact as to the existence of a special duty, we need not address

whether the County's referral of Smith was ministerial or discretionary under the "governmental function immunity defense" (see *Valdez v City of New York*, 18 NY3d 69, 75 [2011]; see also *Haddock v City of New York*, 75 NY2d 478 [1990]).* Indeed, ministerial actions may be a basis for liability, "but only if they violate a special duty owed to the plaintiff, apart from any duty to the public in general" (*McLean v City of New York*, 12 NY3d 194, 203 [2009]). Even if we were to assume in plaintiff's favor that the referral of Smith was ministerial, she cannot recover against the County in the absence of a special duty.

As we have observed in some prior cases, this unfortunately is "a case in which a failure by government to do its job has caused harm" (*id.* at 197). Nonetheless, our well-settled rule of law mandates our holding that the County is immune from liability to this plaintiff. Indeed, the public policy considerations that require our application of the special duty requirement are underscored when the governmental act at issue involves beneficial services, such as the "welfare to work" program involved here.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed, with costs.

Judges RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Judge WILSON taking no part.

Order, insofar as appealed from, affirmed, with costs.

* Notably, we did not address the question of special duty in *Haddock* and instead focused exclusively on whether the City's retention of a participant in the Work Relief Employment Program as a Parks Department utility worker was ministerial or discretionary.

[71 NE3d 932, 49 NYS3d 344]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN
FISHER, Appellant.

Argued January 12, 2017; decided February 14, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 3, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Daniel P. FitzGerald, J.), which had convicted defendant, upon his plea of guilty, of hindering prosecution in the second degree.

People v Fisher, 119 AD3d 426, affirmed.

HEADNOTES

Crimes — Plea of Guilty — Withdrawal of Plea — Failure to Disclose Handwritten Notes of Interview with Eyewitness

1. The trial court did not abuse its discretion as a matter of law in denying defendant's request pursuant to CPL 220.60 (3) to withdraw his guilty plea to hindering prosecution in the second degree (Penal Law § 205.60), pursuant to which he admitted that he rendered criminal assistance to an individual who had committed second-degree murder, based on the People's failure to disclose the prosecutor's handwritten notes of a pretrial interview with the sole eyewitness to the fatal shooting. To establish that the People violated his federal and state due process rights, defendant was required to show that the People suppressed exculpatory evidence that would have materially affected his decision to plead guilty. Here, the handwritten notes included "blurbs" indicating that the eyewitness was "unsure," "saw punch thrown," that the individual accused of murder "starts pulling out gun," and the victim "grabbed gun" and "was punching" the accused individual. The notes did not refer to defendant's acts or intention, and, as such, they did not directly or expressly provide evidence favorable to defendant by negating or placing in doubt his criminal acts. Nor did the notes support a theory that the individual accused of murder acted in self-defense. Rather, the notes made it appear as if the victim acted in self-defense. Inasmuch as the notes were not favorable to defendant by exculpating him or the accused individual, they would not have materially affected defendant's decision to plead guilty.

Crimes — Plea of Guilty — Withdrawal of Plea — Hindering Prosecution — Individual to Whom Defendant Provided Assistance Acquitted of Underlying Felony

2. In a criminal prosecution in which defendant pleaded guilty to hindering prosecution in the second degree upon his admission that he rendered criminal assistance to an individual who had committed second-degree murder, and that he knew and believed that the individual had engaged in conduct constituting second-degree murder, the trial court did not abuse its discretion as a matter of law in denying defendant's motion to withdraw his

guilty plea prior to sentencing (CPL 220.60 [3]) based on the fact that the individual to whom defendant provided assistance was acquitted of the felony charges of second-degree murder and second-degree criminal possession of a weapon. A defendant is guilty of hindering prosecution in the second degree when the defendant “renders criminal assistance to a person who has committed a class B or class C felony” (Penal Law § 205.60). The People must prove that the underlying felony was committed, but the statute does not require proof that the assisted person was ever arrested or convicted, and the People may satisfy their burden to establish the defendant’s guilt beyond a reasonable doubt by relying on the defendant’s admissions that the assisted person committed the crime. Here, defendant’s statements established the commission of the underlying felony. An acquittal is only a finding of reasonable doubt, not a finding that the person tried is in fact innocent. Moreover, criminality of one defendant is not required to establish criminality of another. Nor did collateral estoppel bar the People’s continued prosecution of defendant following the assisted person’s acquittal because defendant pleaded guilty prior to the assisted person’s acquittal, meaning that no previously determined facts were relitigated at defendant’s sentencing. To rule that an assisted person’s acquittal forecloses any finding of a defendant’s criminal liability for hindering prosecution would treat as innocent a defendant who stymies an investigation, hides evidence, or otherwise sabotages the prosecution, because those efforts lead to the assisted person’s acquittal.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Appellate Review §§ 581–582; AM JUR 2d Constitutional Law § 1012; AM JUR 2d Criminal Law §§ 589, 1159, 1163; AM JUR 2d Depositions and Discovery § 290.

CARMODY-WAIT 2d Pleas and Plea Bargaining §§ 182:66, 182:82; CARMODY-WAIT 2d Discovery §§ 187:87, 187:98, 187:102, 187:126.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 15.7, 21.2–21.4, 21.11, 24.3.

McKINNEY’S, CPL 220.60 (3); Penal Law § 205.60.

NY JUR 2d Criminal Law: Procedure §§ 1559–1560, 1566, 1575, 1733, 1735, 1742, 1744, 3477.

ANNOTATION REFERENCE

See ALR Index under Criminal Law; Evidence; Eyewitnesses; Guilty Pleas; Homicide.

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POINTS OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Matthew A. Wasserman of counsel), for appellant. I.

Kevin Fisher should have been permitted to withdraw his plea of guilty to hindering prosecution where his codefendant, whose guilt was an element of Mr. Fisher's offense, was acquitted at trial before judgment was rendered in Mr. Fisher's case. (*People v Chico*, 90 NY2d 585; *People v Clough*, 43 AD2d 451; *People v Berkowitz*, 50 NY2d 333; *People v Lo Cicero*, 14 NY2d 374; *People v McGriff*, 130 AD2d 141; *People v Sailor*, 65 NY2d 224; *People v Goodman*, 69 NY2d 32; *People v Acevedo*, 69 NY2d 478; *People v O'Toole*, 22 NY3d 335; *People ex rel. Dowdy v Smith*, 48 NY2d 477.) II. Kevin Fisher's plea was not knowing, intelligent, and voluntary where the prosecution withheld material exculpatory evidence, inducing him to plead guilty under false pretenses and denying him his right to due process. (*Brady v Maryland*, 373 US 83; *United States v Bagley*, 473 US 667; *Berger v United States*, 295 US 78; *People v Steadman*, 82 NY2d 1; *People v Martin*, 240 AD2d 5; *People v Drossos*, 291 AD2d 723; *People v Carter*, 258 AD2d 409; *People v Jones*, 44 NY2d 76.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Luis Morales* and *Alan Gadlin* of counsel), for respondent. I. Defendant's challenge to the sufficiency of the evidence of his guilt is foreclosed by his guilty plea. In any event, Clovis Roche's subsequent acquittal is no impediment to defendant's conviction. (*People v Alexander*, 97 NY2d 482; *People v Glynn*, 21 NY3d 614; *People v Muhammad*, 17 NY3d 532; *People v Jenkins*, 11 NY3d 282; *People v Feliciano*, 53 NY2d 645; *People v Goldstein*, 12 NY3d 295; *People v Benoit*, 142 AD2d 794; *People v Pena*, 50 NY2d 400; *People v Seeber*, 4 NY3d 780; *People v Thomas*, 53 NY2d 338.) II. The People complied with their *Brady* obligations. (*Brady v Maryland*, 373 US 83; *People v Fuentes*, 12 NY3d 259; *People v Hayes*, 17 NY3d 46; *People v Martin*, 240 AD2d 5; *People v Kinney*, 107 AD3d 563; *People v Armer*, 119 AD2d 930; *Tate v Wood*, 963 F2d 20; *People v Day*, 150 AD2d 595; *People v Rosario*, 9 NY2d 286; *People v Torres*, 252 AD2d 60.)

OPINION OF THE COURT

RIVERA, J.

Defendant Kevin Fisher challenges the denial of his motion to withdraw his guilty plea to one count of hindering prosecution in the second degree (Penal Law § 205.60). The courts below properly rejected defendant's claims that his plea is constitutionally infirm and that his codefendant's acquittal of

the underlying felony renders defendant innocent. Neither claim is supported by existing precedent, and his innocence theory is counter to this Court's holdings in *People v Chico* (90 NY2d 585 [1997]), *People v O'Toole* (22 NY3d 335 [2013]), and *People v Berkowitz* (50 NY2d 333 [1980]). Therefore, the Appellate Division order affirming the judgment should be affirmed.

I.

Defendant was charged with hindering prosecution in the first degree and criminal possession of a weapon in the third degree for providing and hiding a gun used by codefendant Clovis Roche in a fatal shooting. On the eve of trial, defendant pleaded guilty to the lesser included offense of hindering prosecution in the second degree, in satisfaction of the indictment. At the plea colloquy, he admitted under oath that he rendered criminal assistance to Roche, who had committed murder in the second degree, and that defendant knew and believed Roche had engaged in conduct constituting second-degree murder. As part of his plea, defendant waived his right to appeal.

Roche proceeded to trial. The People's sole eyewitness was the brother of the victim, who testified that he was at his brother's apartment with several other people when a dispute arose and Roche shot his brother. The brother's assertion that he told the police that Roche was the shooter contradicted the trial testimony of a detective who said the brother told her that he had not seen the shooting, but was consistent with later statements the brother made to other police officers, the prosecutor, and the grand jury.

The evening after the brother testified, the prosecutor discovered handwritten notes of his pretrial interview with the brother. The notes included "blurbs" indicating that the brother was "unsure," "saw punch thrown," Roche "starts pulling out gun," and the victim "grabbed gun" and "was punching" Roche. Roche's defense counsel conceded the notes should have been disclosed under *People v Rosario* (9 NY2d 286, 289 [1961]), not *Brady v Maryland* (373 US 83, 87 [1963]), and the court permitted cross-examination on the content of the prosecutor's notes.* Thereafter, defense counsel attempted to impeach the brother

* *Rosario* disclosures, codified by CPL 240.45, include any statements made by a witness who will testify at trial, while *Brady* disclosures consist of any exculpatory evidence or information favorable to defendant, which is material to guilt or punishment.

with the notes and referred to them in summation as evidence that the brother was lying on the stand and that he had not seen the shooting.

Roche testified in his defense that he never intended to shoot the victim, and only displayed the gun to persuade him and the others to leave the apartment. According to Roche, the victim grabbed for the gun, the two men fell back into the bedroom, and the gun accidentally went off twice while they struggled. Although the gun was never recovered, Roche admitted that he got it from defendant. Despite Roche's denial of any intent to use the gun, the trial court granted defense counsel's request to charge on self-defense.

The jury acquitted Roche of the felony charges of murder in the second degree and criminal possession of a weapon in the second degree, but convicted him of the misdemeanor count of criminal possession of a weapon in the fourth degree.

After Roche's acquittal on the felony counts, and prior to defendant's sentencing, defendant moved to withdraw his plea pursuant to CPL 220.60 (3). The court denied the motion and sentenced defendant in accordance with the plea agreement. The Appellate Division affirmed (*People v Fisher*, 119 AD3d 426 [1st Dept 2014]). A Judge of this Court granted leave to appeal (*People v Fisher*, 26 NY3d 1008 [2015]).

II.

A determination on a defendant's motion to withdraw a plea prior to sentencing is left to the sound discretion of the court (CPL 220.60 [3]). We review the denial of such a motion for abuse of discretion as a matter of law (*People v Manor*, 27 NY3d 1012, 1013-1014 [2016]). Here, defendant challenges the trial court's denial of his motion to withdraw his plea on two grounds: (1) the plea was not voluntary, knowing and intelligent because he entered the plea without benefit of the prosecutor's notes, which are exculpatory and would have materially affected defendant's decision to plead guilty; and (2) defendant is innocent of hindering prosecution due to Roche's acquittal of the underlying felony of second-degree murder. We conclude that the notes are not exculpatory and, regardless, would not have materially affected defendant's decision to plead. Further, the acquittal of Roche does not render defendant's admission of guilt a legal nullity. Therefore, the trial court did not abuse its discretion in denying defendant's motion.

A.

Under well-established federal and state constitutional principles, suppression of “favorable evidence in the People’s possession which is material to either guilt or punishment” is a violation of a defendant’s federal and state due process rights (*People v Bryce*, 88 NY2d 124, 128 [1996], citing *Brady*, 373 US at 87, and *People v Vilardi*, 76 NY2d 67, 73 [1990]). To establish that the People violated these rights, “defendant must show that (1) the evidence is favorable to the defendant because it is either exculpatory or impeaching in nature; (2) the evidence was suppressed by the prosecution; and (3) prejudice arose because the suppressed evidence was material” (*People v Fuentes*, 12 NY3d 259, 263 [2009]). The Appellate Division Departments and the United States Court of Appeals for the Second Circuit have held that in cases where a defendant pleads guilty and the People have suppressed exculpatory evidence, the defendant must establish that the evidence would have materially affected the decision to plead rather than go to trial (see *People v Martin*, 240 AD2d 5, 9 [1st Dept 1998]; *People v Armer*, 119 AD2d 930 [3d Dept 1986]; *Tate v Wood*, 963 F2d 20, 24 [2d Cir 1992]).

[1] Here, the notes do not refer to defendant’s acts or intention, and, as such, they do not directly or expressly provide evidence favorable to defendant by negating or placing in doubt his criminal acts. Nor do the notes support a theory that Roche acted in self-defense, as defendant claims. To the extent the notes reveal the brother told the prosecutor he saw Roche pull out a gun and then saw the victim grab it, the notes are inculpatory as to Roche. Specifically, the notes indicate that Roche was pulling the gun from his belt and not merely displaying it as he testified at trial. The notes also made it appear as if the victim acted in self-defense and not the other way around. Given that the notes are not favorable to defendant by exculpating him or Roche, we reject defendant’s contention that the notes would have materially affected his decision to plead guilty.

B.

Defendant’s alternative argument—that the People cannot establish a necessary element of hindering prosecution—is partially foreclosed by his guilty plea to the extent he challenges the sufficiency of the evidence in his case (*People v Plunkett*, 19 NY3d 400, 405 [2012]). However, we may consider his

claim that Roche's acquittal renders defendant innocent of the crime to which he pleaded guilty, along with his argument that the People are collaterally estopped from further prosecution of defendant (*People v Taylor*, 65 NY2d 1, 5 [1985]; *People v Dixon*, 29 NY2d 55, 57 [1971]).

[2] A defendant is guilty of hindering prosecution in the second degree when the defendant "renders criminal assistance to a person who has committed a class B or class C felony" (Penal Law § 205.60). In *People v Chico* (90 NY2d 585, 588 [1997]), a case involving first-degree hindering prosecution, the Court held that "the People must prove that the underlying class A felony was committed," but made clear that "the statute does not require proof that the assisted person was ever arrested or convicted." Other than the class of the underlying felony and the fact that first-degree hindering prosecution has the added element that the defendant knew or believed that the assisted person engaged in the conduct constituting a class A felony, first- and second-degree hindering prosecution share the same elements. Accordingly, the rules set forth in *Chico* apply equally to the lesser included offense.

Contrary to defendant's suggestion, the People may satisfy their burden to establish defendant's guilt beyond a reasonable doubt by relying on the defendant's admissions that the assisted person committed the crime. Indeed, *Chico* specifically permits such evidence, as the Court held the defendant's eyewitness account that the assisted person stalked and fatally shot the victim was evidence against the defendant establishing the underlying felony of intentional murder (*id.* at 589). Similarly, the elements of second-degree hindering prosecution were established at defendant's plea allocution when he admitted rendering criminal assistance to Roche, who defendant further admitted had committed second-degree murder. As in *Chico*, defendant's statements established the commission of the underlying felony (*see id.*).

Defendant argues that the court abused its discretion in denying his motion to withdraw his guilty plea because his guilt is inextricably tied to Roche's criminal liability, rendering him innocent if Roche is acquitted. Defendant's argument is at odds with the holding in *Chico* that a defendant's criminal culpability is not dependent on the assisted person's arrest or conviction (*id.* at 588). Further, defendant's argument is based on a flawed legal premise because "an acquittal is only a finding of reasonable doubt, not a finding that [the person tried] is in fact innocent" (*O'Toole*, 22 NY3d at 338).

In that vein, Roche's acquittal of the murder and conviction of weapon possession suggests the jury determined there was reasonable doubt as to whether he harbored the requisite intent to cause the victim's death or acted in self-defense. Of course, the jury rendered that verdict without the benefit of defendant's plea and his admission that Roche committed murder. The jury may also have exhibited "mercy" in Roche's case (*id.*), or engaged in unsanctioned jury nullification (*People v Goetz*, 73 NY2d 751, 752 [1988] ["there is nothing to prevent a petit jury from acquitting although finding that the prosecution has proven its case," although it is "not a legally sanctioned function of the jury and should not be encouraged by the court"]).

Defendant's position is further undermined by cases involving conspiracy, criminal facilitation, and accomplice liability, which hold that criminality of one defendant is not required to establish criminality of another (*see Berkowitz*, 50 NY2d at 343; *People v Oleksowicz*, 101 AD2d 119 [2d Dept 1984]; *People v Rasero*, 62 AD2d 845, 851 [1st Dept 1978]). Defendant seeks to distinguish these cases on the ground that the statutes for those crimes expressly provide that acquittal is no defense (Penal Law §§ 105.30, 115.10, 20.05). We are unpersuaded. In *Chico* this Court made plain that the assisted person's conviction is not a required element of the crime (*Chico*, 90 NY2d at 588). As with the unilateral theory of criminal liability for conspiracy, the legal status of the assisted person—the principal in this case—is immaterial to defendant's criminal liability for hindering prosecution (*People v Schwimmer*, 47 NY2d 1004, 1005 [1979]).

Fundamentally, the reasoning of *Berkowitz* for permitting prosecution of one defendant when a coconspirator is acquitted applies just as forcefully to cases of hindering prosecution:

"In most cases there will be significant disparities in the proof which is available against each of two defendants. . . . Hence, the acquittal of one of two defendants . . . does not mean that the People will necessarily be unable to prove the guilt of the other defendant beyond a reasonable doubt" (*id.* at 346).

Defendant's supporting assertion, that collateral estoppel bars the People's continued prosecution of a defendant following the assisted person's acquittal, is based on a misapplication of the doctrine. Collateral estoppel applies in a criminal case to prevent one party from "relitigat[ing] issues

which have already been decided against” that party (*id.* at 344, quoting *People v Lo Cicero*, 14 NY2d 374, 380 [1964]). Assuming without deciding there was an identity of the parties (see *Berkowitz*, 50 NY2d at 345), collateral estoppel could not apply because defendant pleaded guilty prior to Roche’s acquittal, meaning that no previously determined facts were relitigated at defendant’s sentencing.

C.

The logical basis for rejecting defendant’s proposed rule—an assisted person’s acquittal forecloses any finding of a defendant’s criminal liability for hindering prosecution—is rooted in the nature of the crime itself. The intended goal of hindering prosecution is the assisted person’s evasion of criminal liability for the underlying felony. The more effective a defendant’s attempts to obstruct law enforcement, the more likely the assisted person will escape prosecution or be acquitted. Defendant’s rule would have the perverse result of treating as innocent a defendant who stymies an investigation, hides evidence—as in this case—or otherwise sabotages the prosecution, because those efforts lead to the assisted person’s acquittal. Such an outcome would undermine the purpose of the statute: to hold accountable those who successfully or unsuccessfully interfere and to discourage such conduct (see Penal Law § 205.50). Additionally, in cases where the assisted person is being prosecuted, a defendant charged with hindering prosecution could plead guilty, with the intent of withdrawing the plea if the assisted person is acquitted. This is in contradiction of this Court’s rule that, whenever possible, a guilty plea is treated as final (*People v Ramos*, 63 NY2d 640, 643 [1984]; see also *People v Thomas*, 53 NY2d 338, 344-345 [1981]).

We recognize the concerns implicit in defendant’s argument that permitting his guilty plea to stand appears to grant the People two bites at the apple to establish the commission of the underlying felony. However, we do not view defendant’s conviction based on his voluntary plea as relaxing the People’s heavy burden to establish guilt beyond a reasonable doubt for every person accused of a crime (*People v Johnson*, 94 NY2d 600, 610 [2000]). The result might be different if a defendant asserted a supported claim of actual innocence in that he did not provide assistance, or if a defendant established that the assisted person was wrongly accused of a felony committed by someone else (see *People v McKennon*, 27 NY2d 671 [1970]) [de-

fendant who claims innocence before sentencing after pleading guilty entitled to hearing or withdrawal of plea if there is an assertion with factual support that plea was based on misunderstanding or mistake]; *cf. Dixon*, 29 NY2d at 56 [court has discretion not to withdraw guilty plea made knowingly and tactically when defendant makes unsupported claim of innocence before sentencing]). In both those situations the defendant would not have hindered the prosecution of a felony committed by the assisted person. Neither case is presented here, and defendant has never claimed that he did not take the gun from the scene of a homicide he had just observed Roche commit.

III.

A plea “marks the end of a criminal case, not a gateway to further litigation” (*Plunkett*, 19 NY3d at 405). As a consequence, “a motion to withdraw a guilty plea will not be granted merely for the asking” (*People v Alexander*, 97 NY2d 482, 485 [2002]). “A defendant is not entitled to withdraw his guilty plea based on a subsequent unsupported claim of innocence, where the guilty plea was voluntarily made with the advice of counsel following an appraisal of all the relevant factors,” which can include the strength of the evidence against defendant and hope of a reduced charge and sentence (*Dixon*, 29 NY2d at 57). We conclude the court neither abused its discretion in denying defendant’s motion to withdraw his plea, nor improperly rejected defendant’s attempt to relitigate his guilt. Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge DiFiore and Judges Abdus-Salaam, Stein, Fahey and Garcia concur; Judge Wilson taking no part.

Order affirmed.

[71 NE3d 930, 49 NYS3d 342]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
MICHAEL PENA, Appellant.

Argued January 12, 2017; decided February 14, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 26, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Richard D. Carruthers, J.), which had convicted defendant, upon a jury verdict, of predatory sexual assault (three counts) and criminal sexual act in the first degree (three counts), and sentenced him to an aggregate term of 75 years to life.

People v Pena, 126 AD3d 618, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Cruel and Unusual Sentence

Defendant failed to preserve for appellate review his claim that the sentence imposed on his convictions for three counts each of predatory sexual assault and criminal sexual act in the first degree, an aggregate term of 75 years to life, was “cruel and unusual” in violation of the US Constitution Eighth Amendment and NY Constitution, article I, § 5. Although defendant generally objected to the length of the sentence before the sentencing court, arguing that the sentence was draconian, he did not alert the court to his constitutional argument. Thus, the sentencing court was never given an opportunity to address any of the constitutional challenges defendant lodged with the Court of Appeals. Furthermore, the narrow exception to the preservation rule, where the illegality of a sentence can readily be discerned from the trial record, was inapplicable here.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Appellate Review §§ 514, 575, 577, 581–582, 618–619, 623, 690, 700, 716, 721–722, 769; AM JUR 2d Criminal Law § 854.

CARMODY-WAIT 2d Sentencing Procedures § 203:9; CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:16, 207:18–207:21, 207:23, 207:27, 207:56, 207:140.

LAFAVE, ET AL., CRIMINAL PROCEDURE (3d ed) §§ 26.1, 26.3.

McKINNEY’S, NY Const, art I, § 5.

NY JUR 2d Appellate Review §§ 596, 615; NY JUR 2d
Criminal Law: Procedure §§ 2970, 3281, 3577, 3717; NY
JUR 2d Penal and Correctional Institutions § 103.
US Const 8th Amend.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Constitutional
Law; Criminal Law; Sentence and Punishment.

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POINTS OF COUNSEL

Ephraim Savitt, New York City, for appellant. I. The People's waiver argument is unsupported either by the applicable statutory provisions or by the case law. (*People v Morse*, 62 NY2d 205; *People v Michael*, 48 NY2d 1.) II. Michael Pena's 75-years-to-life sentence is grossly disproportionate and violates both the US Constitution's Eighth Amendment and the New York State Constitution, article I, § 5 prohibitions against cruel and unusual punishment requiring vacatur and remand for resentencing to a constitutionally-permitted term of no greater than 25 years to life. (*Solem v Helm*, 463 US 277; *Enmund v Florida*, 458 US 782; *Gregg v Georgia*, 428 US 153; *Kennedy v Louisiana*, 554 US 407; *Coker v Georgia*, 433 US 584; *Panetti v Quarterman*, 551 US 930; *Harmelin v Michigan*, 501 US 957; *Ewing v California*, 538 US 11; *Rummel v Estelle*, 445 US 263.)

Cyrus R. Vance, Jr., District Attorney, New York City (*Joshua L. Haber* and *Susan Gliner* of counsel), for respondent. Contrary to defendant's totally unpreserved claims, the aggregate sentence imposed for his multiple violent sex crimes did not violate either the Federal or State Constitution. (*People v Miles*, 61 NY2d 635; *People v Thomas*, 50 NY2d 467; *People v Patterson*, 39 NY2d 288; *People v Rivera*, 9 NY3d 904; *People v Lane*, 7 NY3d 888; *People v Ruz*, 70 NY2d 942; *People v Ingram*, 67 NY2d 897; *United States v Rivera*, 546 F3d 245; *People v Tufano*, 105 AD3d 648; *People v Rogers*, 63 AD3d 1631.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

In August 2011, defendant, an off-duty New York City police officer, raped, sodomized and sexually assaulted a 25-year-old school teacher in a residential courtyard, while threatening her with his loaded, police-issued weapon. Defendant was convicted, upon a jury verdict, of three counts of predatory sexual assault and three counts of criminal sexual act in the first degree. He was sentenced to a term of 25 years in prison followed by 20 years of postrelease supervision on each of the three counts of criminal sexual act and 25 years to life on each corresponding count of predatory sexual assault. The sentence imposed for each of the three criminal sexual acts was run concurrently to the sentence for the corresponding predatory sexual assault, and the three “pairs” of sentences were run consecutively to each other, yielding an aggregate term of 75 years to life.¹

The Appellate Division affirmed the judgment (126 AD3d 618 [1st Dept 2015]), concluding that the sentencing court lawfully imposed consecutive sentences for defendant’s three predatory sexual assault convictions. The Appellate Division determined that although defendant’s convictions on three counts of predatory sexual assault involved a single transaction and shared the dangerous instrument element, consecutive sentences were permissible because the three criminal sexual acts were separate and distinct. Furthermore, as relevant to this appeal, the Court held, citing *People v Ingram* (67 NY2d 897, 899 [1986]), that defendant failed to preserve his claim that his aggregate sentence was unconstitutionally excessive under the Eighth Amendment of the United States Constitution. The Court declined to review the constitutional claim in the interest of justice and perceived no basis for reducing the sentence in the interest of justice.

Here, defendant renews his argument that his aggregate sentence violates the Eighth Amendment of the United States Constitution. Additionally, for the first time in any court, he contends that his sentence violates article I, § 5 of the New York Constitution.

1. The jury was deadlocked on the two counts of rape in the first degree and two corresponding counts of predatory sexual assault, and defendant subsequently pleaded guilty to all four of those counts. Pursuant to the plea agreement, the sentencing judge imposed an aggregate prison term of 10 years followed by 20 years’ postrelease supervision on each of the two rape counts, and 10 years to life on each of the two remaining predatory sexual assault counts, which he ordered to run concurrently to the aggregate sentence previously imposed.

Defendant failed to preserve for review his claim that the sentence imposed by the court was “cruel and unusual.” Although defendant generally objected to the length of the sentence before the sentencing court, arguing that the sentence was draconian, he did not alert the court to his constitutional argument.² Thus, the sentencing court was never given an opportunity to address any of the constitutional challenges that defendant now lodges with this Court. Accordingly, defendant’s “claim . . . that his sentence constituted cruel and inhuman punishment . . . is not properly before us” (*Ingram*, 67 NY2d at 899; *see also United States v Rivera*, 546 F3d 245, 254 [2d Cir 2008] [(t)here is no reason why (the defendant’s) constitutional challenges could not have been raised below, where he had ample opportunity to raise them and where the district court would have had the opportunity to address them” (citation and internal quotation marks omitted)]).

Defendant’s attempt to fit himself within the narrow exceptions to the preservation rule described by this Court in *People v Fuller* (57 NY2d 152 [1982]) and *People v Morse* (62 NY2d 205 [1984]) is unavailing. *Fuller* involved the court’s abdication of its responsibility to fix the amount and terms of restitution, and the “essential nature” of the right to be sentenced as provided by law (57 NY2d at 156). And, in *Morse*, we considered a court’s statutory power to impose an enhanced sentence. Neither of those cases involved a claim that a sentence constituted cruel and unusual punishment. In fact, we indicated in *Ingram*, citing to both *Morse* and *Fuller*, that with respect to the rules of preservation, we were distinguishing between Eighth Amendment claims on the one hand, and challenges to the fundamental sentencing power of the trial court on the other (*Ingram*, 67 NY2d at 899). Furthermore, the narrow exception to the preservation rule, where the illegality of a sentence can readily be discerned from the trial record, is inapplicable here (*see People v Santiago*, 22 NY3d 900, 903 [2013]; *People v Nieves*, 2 NY3d 310, 315-316 [2004]).

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey and Garcia concur; Judge Wilson taking no part.

Order affirmed.

2. Defendant’s submission to this Court of sentencing statistics are irrelevant as they were not presented to the sentencing court.

[71 NE3d 946, 49 NYS3d 358]

ANTHONY ODDO, Respondent, v QUEENS VILLAGE COMMITTEE
FOR MENTAL HEALTH FOR JAMAICA COMMUNITY ADOLESCENT
PROGRAM, INC., Appellant.

Argued January 10, 2017; decided February 16, 2017

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 3, 2015. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Norma Ruiz, J.), which had denied defendant's motion for summary judgment dismissing the complaint. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of Supreme Court, properly made?"

Oddo v Queens Vil. Comm. for Mental Health for Jamaica Community Adolescent Program, Inc., 135 AD3d 211, reversed.

HEADNOTE

Negligence — Duty — Substance Abuse Treatment Facility — Criminal Acts Committed by Resident after Discharge for Violating Facility Policies

Defendant residential mental health and substance abuse treatment facility did not owe a duty of care to plaintiff, who was assaulted by a resident discharged from defendant's program because he had violated policies prohibiting intoxication and physical violence, since defendant was no longer in charge of the resident when the incident occurred. Generally, there is no duty to control the conduct of third persons to prevent them from causing injury to others. However, a duty may arise where there is a relationship either between the defendant and a third-person tortfeasor that encompasses the defendant's actual control of the third person's actions, or between the defendant and the plaintiff that requires the defendant to protect the plaintiff from the conduct of others. Defendant's control over the resident was entirely dependent upon his willingness to comply with and carry out its directives. In the absence of the authority to prevent a participant from leaving, it followed that, when a participant was discharged from defendant's facility for violating its rules, or withdrew from the program, he or she would no longer be under the facility's control. Moreover, defendant was not negligent for failing to follow its internal policy of referring intoxicated residents discharged during the weekend to an intermediary facility. Although the resident was intoxicated at the time of his discharge, because he got into a physical altercation with another resident and was out of control while his transfer paperwork was being completed, defendant called the police in an effort to protect the other resident and its staff members.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Hospitals and Asylums § 25; AM JUR 2d Negligence §§ 73–75.
DOBBS LAW OF TORTS §§ 125, 251.
NY JUR 2d Hospitals and Related Health Care Facilities § 80; NY JUR 2d Negligence § 20.
NEW YORK LAW OF TORTS §§ 6:4, 6:5, 6:20.

ANNOTATION REFERENCE

See ALR Index under Hospitals; Negligence.

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POINTS OF COUNSEL

Marshall Conway & Bradley, P.C., New York City (Amy S. Weissman, Jeffrey A. Marshall and Lauren Turkel of counsel), for appellant. Queens Village Committee for Mental Health for Jamaica Community Adolescent Program, Inc. did not owe a duty to the respondent at the time of the alleged occurrence. (*Palsgraf v Long Is. R.R. Co.*, 248 NY 339; *Kimbar v Estis*, 1 NY2d 399; *Pulka v Edelman*, 40 NY2d 781, 41 NY2d 901; *Purdy v Public Adm’r of County of Westchester*, 72 NY2d 1, 72 NY2d 953; *D’Amico v Christie*, 71 NY2d 76; *Eiseman v State of New York*, 70 NY2d 175; *Henry v Vann*, 71 NY2d 76; *Ramsammy v City of New York*, 216 AD2d 234; *Fox v Marshall*, 88 AD3d 131; *Davis v South Nassau Communities Hosp.*, 26 NY3d 563.)

Burns & Harris, New York City (Brian J. Isaac, Blake G. Goldfarb and Judith F. Stempler of counsel), for respondent. The First Department properly affirmed the denial of defendant’s motion for summary judgment. (*Rivera v New York City Health & Hosps. Corp.*, 191 F Supp 2d 412; *Fox v Marshall*, 88 AD3d 131; *Winters v New York City Health & Hosps. Corp.*, 223 AD2d 405; *Laura I.M. v Hillside Children’s Ctr.*, 45 AD3d 260; *Lizardi v Westchester County Health Care Corp.*, 21 Misc 3d 1133[A], 2008 NY Slip Op 52332[U]; *Clark v State of New York*, 99 AD2d 616; *Andre v Pomeroy*, 35 NY2d 361; *Alvarez v*

Prospect Hosp., 68 NY2d 320; *William J. Jenack Estate Appraisers & Auctioneers, Inc. v Rabizadeh*, 22 NY3d 470; *De Lourdes Torres v Jones*, 26 NY3d 742.)

Pacific Legal Foundation, Sacramento, California (Deborah J. La Fetra of counsel), for Pacific Legal Foundation, amicus curiae. I. This Court should not expand the narrow duty to protect the general public from criminal acts. (*Purdy v Public Adm'r of County of Westchester*, 72 NY2d 1; *Strauss v Belle Realty Co.*, 65 NY2d 399; *Hammelburger v Foursome Inn Corp.*, 54 NY2d 580; *Di Ponzio v Riordan*, 89 NY2d 578; *Waters v New York City Hous. Auth.*, 69 NY2d 225; *Tobin v Grossman*, 24 NY2d 609; *Donohue v Copiague Union Free School Dist.*, 64 AD2d 29; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579; *Sheila C. v Povich*, 11 AD3d 120; *Bates v Constable*, 4 Misc 3d 810.) II. New York's public policy favors viable alternatives to incarceration. (*Straus & Co. v Canadian Pac. Ry. Co.*, 254 NY 407; *People v Suarez*, 6 NY3d 202; *People v Garcia*, 92 NY2d 726.)

OPINION OF THE COURT

ABDUS-SALAAM, J.

On this appeal challenging the denial of a motion for summary judgment, we consider whether the defendant mental health and substance abuse treatment facility owed a duty of care to plaintiff, who was assaulted by one of defendant's discharged residents. Because defendant discharged the resident from the program, and thus lacked control over him at the time of the incident, we hold that defendant owed no duty of care to plaintiff.

I.

Nonparty Sean Velentzas was arrested for holding a cab driver at gunpoint and forcing him to withdraw money from an ATM. Velentzas was given the opportunity to participate in Treatment Alternatives for Safer Communities (TASC). TASC is an alternative-to-incarceration service which, with the consent of the court and the District Attorney, works with organizations like defendant, Queens Village Committee for Mental Health for Jamaica Community Adolescent Program, Inc. (JCAP), to provide criminal defendants with substance abuse and mental health treatment services. Velentzas was admitted to JCAP and was expected to complete the program within 18 months; however, three weeks into his program, he got into an altercation with another resident and admitted to

having consumed alcohol while at JCAP's facility. As a result, and pursuant to established guidelines, JCAP discharged Velentzas from the facility. Shortly after his expulsion, Velentzas assaulted plaintiff Anthony Oddo—his mother's boyfriend—by repeatedly punching him in his face and stabbing him in the shoulder.

Plaintiff commenced this negligence action against JCAP contending that his injuries were solely the result of JCAP negligently releasing Velentzas. After answering the complaint and following discovery, JCAP moved for summary judgment dismissing the complaint. JCAP argued that it owed no duty to plaintiff because Velentzas was properly discharged from the facility for having violated its policies against violence and alcohol use. In support of its motion, JCAP submitted the deposition testimony and affidavit of Ricky Cottingham, JCAP's acting clinical program director. In his deposition, Cottingham explained that during approved outings, residents are escorted by JCAP staff and must sign in and out when they leave and return to the facility. However, residents can leave the program against medical advice and, in any event, JCAP staff members are not authorized to physically prevent a participant from leaving the building.

In his affidavit, Cottingham stated that he was advised by facility staff on the day of the incident that Velentzas broke two cardinal rules of the facility: intoxication and physical violence. This required his dismissal. He explained that when TASC participants are dismissed from the program, TASC must be notified of the participant's rule violation and discharge from the program, and the participant is directed to report to TASC on the following business day. Cottingham stated that because Velentzas was dismissed on a weekend, he would have to report to TASC the following Monday. Similarly, because of the weekend dismissal, TASC would also be notified on that date.

Cottingham explained that, following the incident, JCAP began filling out paperwork to transfer Velentzas to an intermediary facility until Queens TASC could be notified of the altercation and violation of JCAP's rules. However, Cottingham stated that as the paperwork was being filled out, Velentzas became enraged and began acting out of control. Staff, in accordance with JCAP's policy, called 911. When the police arrived Velentzas was escorted off the premises. Cottingham opined that JCAP did not release Velentzas to the general public and did not intend to do so.

Additionally, in support of its motion, JCAP submitted a copy of the report that was created by a JCAP clinical counselor following the incident, which stated:

“Client had pushed another client to the ground. It was alleged that he was intoxicated. He refused to submit to a breathalyzer but admitted to drinking. He stated that he was leaving and left against clinical advice. . . .

“Staff informed him that he had broken a cardinal rule and that there is no threat of violence or violence on property. Staff called 911 and he was escorted by police officers off the property.”

Supreme Court denied JCAP’s motion for summary judgment, holding that JCAP owed a duty of care to plaintiff. The Appellate Division, with one Justice dissenting, affirmed (135 AD3d 211 [1st Dept 2015]). The dissent reasoned that JCAP did not have a duty to protect the general public from Velentzas after his proper discharge from the facility. That Court granted JCAP’s motion for leave to appeal to this Court, certifying the following question: “Was the order of this Court, which affirmed the order of Supreme Court, properly made?” Because we agree with the dissent’s conclusion, we reverse, and answer the certified question in the negative.

II.

On this motion for summary judgment, we are guided by our principle that summary judgment will be granted to the movant where it presents sufficient evidence to demonstrate the absence of any material issue of fact (*see Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]). The issue here—whether JCAP owed a duty of care to plaintiff—is a legal issue for the courts” to decide (*Eiseman v State of New York*, 70 NY2d 175, 187 [1987]). Thus, the absence of a duty of care in this negligence action will entitle JCAP to summary judgment, as “[t]he threshold question in any negligence action is . . . [whether the] defendant owe[s] a legally recognized duty of care to [the] plaintiff” (*Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222, 232 [2001]).

Generally, there is no

“duty to control the conduct of third persons to prevent them from causing injury to others; li-

ability for the negligent acts of third persons generally arises when the defendant has authority to control the actions of such third persons. This is so . . . even where ‘as a practical matter’ defendant could have exercised such control” (*Purdy v Public Adm’r of County of Westchester*, 72 NY2d 1, 8 [1988] [citations omitted], *rearg denied* 72 NY2d 953 [1988], quoting *D’Amico v Christie*, 71 NY2d 76, 88 [1987]).

As we recognized in *Hamilton v Beretta U.S.A. Corp.*, “[a] duty may arise . . . where there is a relationship either between defendant and a third-person tortfeasor that encompasses defendant’s actual control of the third person’s actions, or between defendant and plaintiff that requires defendant to protect plaintiff from the conduct of others” (96 NY2d at 233). Such relationships include master and servant, parent and child, and common carriers and their passengers (*see id.*).

JCAP relies on our decisions in *D’Amico v Christie* and its companion case *Henry v Vann* (71 NY2d 76 [1987]) to support its contention that it owed no duty to plaintiff, because it was no longer in control of Velentzas. In *D’Amico*, an employee became intoxicated while attending a work event and upon leaving got into a car accident. Similarly, in *Henry*, an employee, after being fired, left the employer’s premises and was involved in a car accident. In both cases, we determined that the employer was not liable for the injuries of the plaintiff because the employer was not in control of the employee’s actions. In *Henry*, we noted that the employer “did not take charge of [the employee]; it discharged [him]” (*id.* at 89).

Plaintiff argues that we should reject JCAP’s reliance on *D’Amico* and *Henry* because here JCAP maintained control over Velentzas. We disagree. JCAP discharged Velentzas from its facility and was no longer in charge of him when the incident occurred.

III.

JCAP had some control or authority over its residents while they remained participants of the program. But, JCAP residents could leave the facility and terminate their participation in the program against medical advice. Although voluntary departure from the program would trigger adverse legal consequences—namely, dismissal from the TASC program and potential prosecution in criminal court for the charges against

them—residents could leave at any time. In short, facilities like JCAP cannot force a participant to remain on the premises. These facilities are not prisons; JCAP’s control over Velentzas was, “in fact, entirely dependent upon [his] willingness to comply with and carry out” its directives (*Matter of New York City Asbestos Litig.*, 5 NY3d 486, 495 [2005]). In the absence of the authority to prevent a participant from leaving, it follows that, when a participant is discharged from JCAP for violating facility rules, or withdraws from the program, he or she is no longer under the facility’s control.

Since JCAP had dismissed Velentzas from the program, it was not in control of him at the time of the incident giving rise to this lawsuit. Indeed, to hold otherwise would raise the question of how long any prior control would last. In *Eiseman v State of New York*, we noted that we must be cognizant not to impose on a party “limitless liability to an indeterminate class of persons conceivably injured by any negligence” (70 NY2d at 188). Recognizing that concern here, it is difficult, if not impossible, to determine when JCAP’s duty to protect the public from Velentzas would end if any duty existed beyond his discharge. It is unreasonable to impose upon facilities like JCAP a duty to protect the public from individuals they have dismissed from their charge because the duty would essentially be limitless. Additionally, finding a duty here could adversely impact facilities like JCAP’s willingness to participate in TASC, thereby inhibiting defendants’ access to treatment where TASC is deemed appropriate. Such a result would be contrary to public policy aimed at helping certain defendants overcome substance abuse issues and obtain treatment for mental health issues, in lieu of prison sentences so long as they remain in treatment.

Finally, JCAP is not negligent for failing to follow its internal policy of referring intoxicated residents discharged during the weekend to an intermediary facility. Although Velentzas was intoxicated at the time of his discharge, because he got into a physical altercation with another resident and was out of control while his transfer paperwork was being completed, JCAP called the police in an effort to protect the other resident and its staff members. JCAP’s failure to place Velentzas in an intermediary facility, however, is not a reason to hold that it still had control over him following his discharge and could be found negligent (*see Pink v Rome Youth Hockey Assn., Inc.*, 28 NY3d 994, 998 [2016]). Therefore, JCAP is not negligent for failing to follow that particular policy.

IV.

In sum, JCAP is correct that Velentzas was not under its control at the time of the assault and it owed no duty of care to plaintiff or to the public in general. Accordingly, the order of the Appellate Division should be reversed, with costs, defendant's motion for summary judgment dismissing the complaint granted, and certified question answered in the negative.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY and GARCIA concur; Judge WILSON taking no part.

Order reversed, with costs, defendant's motion for summary judgment dismissing the complaint granted, and certified question answered in the negative.

[71 NE3d 1205, 49 NYS3d 638]

CAROL ARTIBEE et al., Appellants, v HOME PLACE CORPORATION,
Respondent.

Argued January 5, 2017; decided February 14, 2017

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered August 13, 2015. The Appellate Division modified, on the law, an order of the Supreme Court, Warren County (David B. Krogmann, J.), which had, in ruling on defendant's pretrial motion in limine, stated that "neither party is barred from presenting evidence as to the State of New York's liability in the Supreme Court action" and denied defendant's request for "a specific jury charge pursuant to CPLR § 1601 directing the jury to apportion liability, if any, between Home Place and the State [of New York]." The modification consisted of (1) reversing so much of the order as had denied defendant's motion for a jury charge on apportionment; and (2) granting defendant's motion for such a jury charge. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Did this Court err, as a matter of law, in modifying, on the law, so much of the order of Supreme Court which denied defendant's motion in limine for a jury charge on apportionment by reversing so much thereof as denied that relief, granting the motion therefor and, as so modified, affirming the order?"

Artibee v Home Place Corp., 132 AD3d 96, modified.

HEADNOTE

Contribution — Apportionment of Liability among Joint Tortfeasors — State as Nonparty Tortfeasor

The factfinder in Supreme Court may not apportion fault to the State under CPLR 1601 (1) when a plaintiff claims that both the State and a private party are liable for noneconomic losses in a personal injury action. Accordingly, in plaintiffs' action seeking damages for injuries sustained when a branch fell from a tree on defendant's property bordering the state highway on which plaintiff was traveling and struck her vehicle, Supreme Court properly denied defendant's request for a jury charge directing the apportionment of liability between defendant and the State. Under CPLR 1601 (1), as long as a claimant in the Court of Claims could have commenced an action against a private tortfeasor in any court in the State of New York, then the tortfeasor's culpable conduct can be considered by the Court of Claims in determining the State's equitable share of the total liability. The statute does not, however, contain similar, express enabling language to allow apportion-

ment against the State in a Supreme Court action. Moreover, CPLR 1601 (1) provides that a nonparty tortfeasor's relative culpability must not be considered in apportioning fault "if the claimant . . . with due diligence . . . was unable to obtain jurisdiction over such person in said action." The restriction on Supreme Court imposed by the doctrine of sovereign immunity is jurisdictional in nature. By its terms, the statute does not specify that the inability to obtain jurisdiction must have a particular cause, and interpreting the word "jurisdiction" as limited to "personal jurisdiction" effectively renders meaningless the phrase "in said action . . . or in a claim against the state" in CPLR 1601 (1). Moreover, if a defendant believes that it has been held liable in Supreme Court for what is actually the State's negligent conduct, the defendant can sue the State for contribution in the Court of Claims.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Contribution §§ 29, 46, 50–54, 59–62, 88, 105;
AM JUR 2d Damages § 617; AM JUR 2d Negligence
§§ 550, 1035, 1037, 1046.

CARMODY-WAIT 2d Parties §§ 19:143, 19:149, 19:150–
19:151, 19:155, 19:158, 19:164; CARMODY-WAIT 2d Ac-
tions Against Persons Jointly Liable §§ 123:2–123:3,
123:8, 123:26, 123:44, 123:55, 123:69, 123:75–123:76,
123:120.

DOBBS LAW OF TORTS §§ 188, 192, 378, 487–497.

McKINNEY'S, CPLR 1601 (1).

NY JUR 2d Contribution, Indemnity, and Subrogation
§§ 27, 29, 37–38, 71, 44–45, 62, 66, 70; NY JUR 2d
Highways, Streets, and Bridges §§ 413–416; NY JUR 2d
Torts §§ 33–39.

NEW YORK LAW OF TORTS §§ 8:23, 10:6, 10:9–10:10, 10:13,
10:24, 10:61, 10:131.

ANNOTATION REFERENCE

Construction and effect of comparative negligence rule
where there are more than one defendant, or where
negligence of nonparties contributes to the injury. 92 ALR
691.

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POINTS OF COUNSEL

Towne Ryan & Partners, P.C., Albany (*Robert H. Coughlin, Jr.* and *James T. Towne, Jr.* of counsel), for appellants. I. The

legislature did not intend to allow apportionment of the State of New York's liability in a personal injury action in New York State trial courts outside the Court of Claims. (*Chianese v Meier*, 98 NY2d 270; *Rangolan v County of Nassau*, 96 NY2d 42; *O'Connor v State of New York*, 70 NY2d 914; *Matter of Orens v Novello*, 99 NY2d 180; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Matter of Sutka v Connors*, 73 NY2d 395; *Rezucha v Garlock Mech. Packing Co.*, 159 Misc 2d 855; *Morales v County of Nassau*, 94 NY2d 218; *Cruz v TD Bank, N.A.*, 22 NY3d 61; *Whitman v American Trucking Assns., Inc.*, 531 US 457.) II. Case law allowing apportionment against nonparty bankrupts and against employers of injured plaintiffs is distinguishable and not controlling. (*Matter of New York City Asbestos Litig.*, 194 Misc 2d 214; *In re Eastern & S. Dists. Asbestos Litig.*, 772 F Supp 1380; *Matter of New York City Asbestos Litig.*, 6 AD3d 352; *Zakshevsky v City of New York*, 149 Misc 2d 52; *Hendrickson v Philbor Motors, Inc.*, 102 AD3d 251; *Kharmah v Metropolitan Chiropractic Ctr.*, 288 AD2d 94; *Duffy v County of Chautauqua*, 225 AD2d 261; *Brown v State of New York*, 268 AD2d 548; *Rezucha v Garlock Mech. Packing Co.*, 159 Misc 2d 855.) III. Evidence of the State of New York's liability should not be permitted in Supreme Court as the defendant-respondent is not without recourse in the event it believes it has overpaid as a result of the factfinder's verdict in Supreme Court. (*Walter v White-Bonn, Inc.*, 8 AD3d 715; *O'Connor v State of New York*, 70 NY2d 914.)

Bailey, Kelleher & Johnson, P.C., Albany (*Thomas J. Johnson* of counsel), for respondent. I. The limitation of apportionment in CPLR 1601 (1) applies only when the plaintiff is unable to obtain personal jurisdiction over the absent potential tortfeasor. (*Chianese v Meier*, 98 NY2d 270; *Rangolan v County of Nassau*, 96 NY2d 42; *Morales v County of Nassau*, 94 NY2d 218; *Rezucha v Garlock Mech. Packing Co.*, 159 Misc 2d 855; *Cole v Mandell Food Stores*, 93 NY2d 34; *In re Brooklyn Navy Yard Asbestos Litig.*, 971 F2d 831; *Matter of New York City Asbestos Litig.*, 175 Misc 2d 819; *Zakshevsky v City of New York*, 149 Misc 2d 52; *Matter of New York City Asbestos Litig.*, 6 AD3d 352; *DiCamillo v County of Nassau*, 293 AD2d 563.) II. The "empty chair" at trial is not a factor to be considered in interpreting this statute. (*Kharmah v Metropolitan Chiropractic Ctr.*, 288 AD2d 94; *Hendrickson v Philbor Motors, Inc.*, 102 AD3d 251.) III. There is no limitation on the evidence that defendant-respondent may introduce at trial on the subject of its own lack of liability.

Eric T. Schneiderman, Attorney General, Albany (Frederick A. Brodie, Barbara D. Underwood and Andrew D. Bing of counsel), for State of New York, amicus curiae. Defendant is not entitled to a jury charge that would authorize apportionment of fault to the State of New York. (Rangolan v County of Nassau, 96 NY2d 42; Matter of M.B., 6 NY3d 437; Morales v County of Nassau, 94 NY2d 218; Matter of Chemical Specialties Mfrs. Assn. v Jorling, 85 NY2d 382; Chianese v Meier, 285 AD2d 315; Matter of Ellington Constr. Corp. v Zoning Bd. of Appeals of Inc. Vil. of New Hempstead, 77 NY2d 114; Liff v Schildkrout, 49 NY2d 622; Haywood v Drown, 9 NY3d 481; Matter of Ballard v HSBC Bank USA, 6 NY3d 658.)

OPINION OF THE COURT

STEIN, J.

This appeal presents us with the question of whether the factfinder in Supreme Court may apportion fault to the State under CPLR 1601 (1) when a plaintiff claims that both the State and a private party are liable for noneconomic losses in a personal injury action. We conclude that such apportionment is not permitted and, therefore, reverse.

I.

Plaintiff Carol Artibee and her spouse, derivatively, commenced this action in Supreme Court to recover for injuries that plaintiff sustained while traveling on a state highway when a large branch broke off a tree bordering the road, fell through plaintiff's Jeep and struck her on the head. Defendant allegedly owns the property on which the tree was located. The complaint alleges that defendant was negligent in failing to inspect, trim and remove the dead or diseased tree. Plaintiffs also filed a claim against the State of New York in the Court of Claims, alleging that Department of Transportation employees were negligent in failing to monitor open and obvious hazards along the state highway, properly maintain the trees, or warn drivers of the hazard.

Defendant in this action moved for permission to introduce evidence at trial of the State's negligence and for a jury charge directing the apportionment of liability for plaintiff's injuries between defendant and the State. Plaintiff expressed her "position that nothing bars the Supreme Court jury from hearing evidence at trial as to the State of New York's potential liability for [plaintiff's] injuries," but objected to allowing the

jury to apportion fault against the State. Supreme Court ruled that, while evidence of the State's negligence would be admissible, the jury would not be instructed to apportion liability between defendant and the State. The court concluded, based on the language of CPLR 1601, that the issue before it was "whether the plaintiff's inability to join the State in the Supreme Court action, because of the doctrine of sovereign immunity, equates to the plaintiff's inability to obtain *jurisdiction* over a non-party thereby limiting the applicability of CPLR [a]rticle 16 apportionment." The court determined that the language of the statute and equitable considerations required denial of defendant's request for a jury instruction regarding apportionment.

Thereafter, the court adjourned the trial to permit defendant to appeal, reasoning that it had essentially granted summary judgment dismissing defendant's claim for apportionment. The Appellate Division modified by reversing the denial of defendant's motion for a jury charge on apportionment (132 AD3d 96 [3d Dept 2015]). In holding that defendant was entitled to have the jury consider apportionment against the State when determining defendant's fault as a joint tortfeasor, the Court observed that, under CPLR 1601, "where potential tortfeasors are not joined in an action, the culpability of a nonparty tortfeasor may be imposed upon the named defendant [only] if the plaintiff can show that he or she is unable to obtain jurisdiction over the nonparty tortfeasor" (132 AD3d at 98). The Court concluded that plaintiffs here did "not face a jurisdictional limitation in impleading the State as a codefendant, but instead [could not] do so due to the doctrine of sovereign immunity" (*id.*). The Court then explained that, "[g]iven the statutory purpose of CPLR 1601 (1) to 'limit[] a joint tortfeasor's liability for noneconomic losses to its proportionate share, provided that it is 50% or less at fault,' . . . juries . . . should be given the option to . . . apportion fault between defendant and the State" (*id.* at 100, quoting *Rangolan v County of Nassau*, 96 NY2d 42, 46 [2001]). A dissenting Justice agreed with the majority that evidence of the State's wrongdoing is admissible, but expressed concern that,

"if we permit the requested charge and ask a jury (in the context of the Supreme Court action) to apportion fault (if any) between defendant, which will be present in the courtroom and which no doubt

will present a vigorous defense, and the State, which, as the ‘constitutionally mandated empty chair’ in the courtroom, can neither appear nor offer any defense, an unfair—or, at the very least, skewed—result will occur” (132 AD3d at 101 [Egan Jr., J., dissenting]).

The Third Department granted plaintiffs leave to appeal, certifying the question of whether it erred in its order of modification.

II.

CPLR 1601 (1) “modifie[d] the common-law rule of joint and several liability by limiting a joint tortfeasor’s liability in certain circumstances” (*Rangolan*, 96 NY2d at 46). The statute provides that, in a personal injury action involving two or more jointly-liable tortfeasors or in a claim brought against the State in the Court of Claims, the liability for noneconomic loss of a defendant with 50% or less “of the total liability assigned to all persons liable . . . shall not exceed that defendant’s equitable share determined in accordance with the relative culpability of each person causing or contributing to the total liability for non-economic loss” (CPLR 1601 [1]). In other words, under CPLR 1601, “a joint tortfeasor whose share of fault is 50% or less [is] liable for [a] plaintiff’s noneconomic loss only to the extent of that tortfeasor’s share of the total noneconomic loss,” so that “low-fault tortfeasors are liable only for their actual assessed share of responsibility” (*Chianese v Meier*, 98 NY2d 270, 275 [2002]). Apportionment against a nonparty tortfeasor is available under section 1601, unless “the claimant proves that with due diligence he or she was unable to obtain jurisdiction over” the nonparty tortfeasor “in said action (or in a claim against the state, in a court of this state)” (CPLR 1601 [1]).

The statutory language permitting the State to seek apportionment in the Court of Claims against a private tortfeasor if the claimant could have sued that tortfeasor in any court of this State was specifically requested by the office of the Attorney General (*see* Mem of Dept of Law, Bill Jacket, L 1986, ch 682 at 14). Pursuant to that language, as long as a claimant in the Court of Claims could have commenced an action against a private tortfeasor in *any* court in the State of New York, then the tortfeasor’s culpable conduct can be considered by the Court of Claims in determining the State’s equitable share of the total liability (*see* Siegel, NY Prac § 168C at 290 [5th ed 2011]).

The statute does not, however, contain similar, express enabling language to allow apportionment against the State in a Supreme Court action (*see id.* [acknowledging that such a rule has derived from case law, rather than any “statute in point”]).

Plaintiffs, along with the State,¹ argue that the inclusion of unambiguous language permitting the Court of Claims to consider the liability of a nonparty tortfeasor—while, at the same time, omitting language to allow the factfinder in Supreme Court to consider the liability of the State—demonstrates the legislature’s intent not to allow apportionment of the State’s liability in Supreme Court.² Moreover, even apart from the absence of language permitting apportionment against the State in Supreme Court, CPLR 1601 (1) provides that a nonparty tortfeasor’s relative culpability must not be considered in apportioning fault “if the claimant . . . with due diligence . . . was unable to obtain *jurisdiction over such person in said action*” (emphasis added). The meaning of that language is at the heart of the dispute herein.

Of course, “[t]he primary consideration of courts in interpreting a statute is to ‘ascertain and give effect to the intention of the Legislature’ . . . [and] the words of the statute are the best evidence of the Legislature’s intent” (*Riley v County of Broome*, 95 NY2d 455, 463 [2000], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 92 [a] at 177 [1971 ed]). Inasmuch as no claimant can obtain jurisdiction over the State in Supreme Court and the statute does not, by its terms, otherwise authorize the apportionment of liability against the State in

1. The State is not a party to this action, which originated in Supreme Court, but it has submitted an amicus brief to protect its interests in assuring that the procedures for litigating claims against it are applied in a manner consistent with the governing statutes. The State contends that, if apportionment is permitted against it in Supreme Court, it would be prejudiced because the parties do not adequately represent its interests—with defendants seeking to show the State is entirely liable, and plaintiff simultaneously suing the State in the Court of Claims. The State concedes that any finding of culpability against it in Supreme Court is not binding on the Court of Claims, but notes that, as a practical matter, Court of Claims judges are “attentive” to the reduction of a plaintiff’s Supreme Court verdict to account for the State’s supposed negligence and are less likely under those circumstances to accept the State’s argument that it is not liable at all.

2. We do not ignore the meaning of the word “or” in the statute (*see* dissenting op at 753-754), but recognize that the disparate language in CPLR 1601 regarding “action[s],” on the one hand, and “claim[s] against the state,” on the other, has disparate implications for private tortfeasors, as opposed to state tortfeasors.

that court, we agree with plaintiff that defendant was not entitled to a jury charge on apportionment in this action.

III.

Initially, we reject any argument that plaintiff did not face a jurisdictional limitation in impleading the State as a codefendant in this action. Rather, the State Constitution and our case law both indicate that the restriction on Supreme Court imposed by the doctrine of sovereign immunity is jurisdictional in nature. Specifically, we have explained that New York Constitution, article VI, § 9, which “preserv[es] the State’s historical sovereign immunity from suit,” is a constitutional limitation on “*the jurisdiction of Supreme Court*” (*People v Correa*, 15 NY3d 213, 227 [2010] [emphasis added]; see Siegel, NY Prac § 12 at 16 [5th ed 2011] [noting that “(t)here are two broad categories of original jurisdiction that . . . (S)upreme (C)ourt lacks: cases of which exclusive jurisdiction has been conferred by Congress on the federal courts, and actions against the state, where jurisdiction is conferred exclusively on the (C)ourt of (C)laims”]). Article VI, § 9 states that the Court of Claims “shall have jurisdiction to hear and determine claims against the state or by the state against the claimant or between conflicting claimants as the legislature may provide.” As this Court stated in *Correa*, “claims for money damages brought against the State . . . must be initiated and tried in the Court of Claims” and, thus, “Supreme Court cannot exercise *jurisdiction* over [such] claims” (15 NY3d at 227-228 [emphasis added])—that is, article VI, § 9 limits the jurisdiction of Supreme Court.³

Because it concluded in this case that there is no jurisdictional bar against suing the State in Supreme Court, the Ap-

3. Although this Court previously concluded in *People ex rel. Swift v Luce* (204 NY 478 [1912]) that the doctrine of sovereign immunity and the exclusive jurisdiction of the Court of Claims did not amount to limitations on the jurisdiction of Supreme Court, *Swift* was decided prior to the amendment to the New York Constitution, effective January 1950, that created the Court of Claims as a constitutional court of record (see *Easley v New York State Thruway Auth.*, 1 NY2d 374, 377 [1956]). At the time *Swift* was decided, the “Court of Claims” was “only an auditing board and a quasi-judicial body” (*Swift*, 204 NY at 486)—i.e., it “was one of a series of boards and tribunals set up successively by various legislative acts to hear and audit various kinds of claims against the State” (*Easley*, 1 NY2d at 377). Inasmuch as legislative acts cannot deprive Supreme Court “of one particle of its jurisdiction” (*People v Correa*, 15 NY3d 213, 229 [2010] [internal quotation marks omitted]), *Swift* was correct at the time it was decided. However, as indicated above, we have recognized, following the 1950 amendment of the State Constitution, that the

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pellate Division did not consider defendant's argument that the word "jurisdiction" in the statute refers to personal jurisdiction, as opposed to subject matter jurisdiction. To be sure, defendant's argument finds support in various commentaries and lower court cases (*see Brown v State of New York*, 268 AD2d 548, 549 [2d Dept 2000]; *Duffy v County of Chautauqua*, 225 AD2d 261, 267 [4th Dept 1996], *lv dismissed in part and denied in part* 89 NY2d 980 [1997]; *Rezucha v Garlock Mech. Packing Co.*, 159 Misc 2d 855, 860 [Sup Ct, Broome County 1993]; Siegel, NY Prac § 168C at 290 [5th ed 2011]; Vincent C. Alexander, Practice Commentaries, McKinney's Cons Laws of NY, Book 7B, CPLR C1601:3). The argument is not, however, supported by the language of the statute, its legislative history, or its purpose.

IV.

This Court has observed that "[j]urisdiction is a word of elastic, diverse, and disparate meanings" (*Lacks v Lacks*, 41 NY2d 71, 74 [1976]). It can refer to both subject matter jurisdiction, relating to "a court's competence to entertain an action," as well as to the court's "power to render a judgment on the merits," which does not relate to subject matter jurisdiction (*id.* at 75).

"[T]he rationale for the jurisdictional restriction [in CPLR 1601] is that if a diligent claimant were able to sue all tortfeasors but neglected to do so, then it would not be unfair for the culpability of a nonparty to be considered even though the claimant's recovery might not be as complete as that provided by the common-law rule of joint and several liability" (*Rezucha*, 159 Misc 2d at 860).

As a practical matter, it makes no difference to the parties what type of jurisdiction is absent—regardless of whether a defendant is not subject to long-arm jurisdiction or Supreme Court lacks subject matter jurisdiction, the "claimant [cannot] with due diligence . . . obtain jurisdiction over such person in said action" (CPLR 1601 [1]).⁴

To read the word "personal" into the statute, as dissenters and defendant would have us do, results in an interpretation

exclusive jurisdiction of the Court of Claims is a constitutional limitation on the jurisdiction of Supreme Court (*see id.* at 227-228).

4. We do not overlook the context in which the term "jurisdiction" is used, or the phrases "with due diligence" and "over such person" (*see* dissenting op at 755-756). Rather, we recognize that the "due diligence" requirement leads to

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broadier than that required by the statutory language itself, which simply uses “the catchall word ‘jurisdiction’” (*Lacks*, 41 NY2d at 75). Because CPLR 1601 is a statute in derogation of the common law, it must be strictly construed (*see e.g. Matter of New York City Asbestos Litig.*, 24 NY3d 275, 281 [2014]; McKinney’s Cons Laws of NY, Book 1, Statutes § 301, Comment). By its terms, the statute does not specify that the inability to obtain jurisdiction must have a particular cause. “If the legislature intended that the term [‘jurisdiction’] mean only ‘personal jurisdiction,’ it could have easily done so with the addition of that one word to the statute” (Siegel & Connors, NY Prac § 168C, Jan. 2017 Supp at 118; *see Matter of Theroux v Reilly*, 1 NY3d 232, 240 [2003]).

Moreover, interpreting the word “jurisdiction” as limited to “personal jurisdiction” effectively renders meaningless the phrase “in said action . . . or in a claim against the state” in CPLR 1601 (1). “[T]he inclusion of the [phrase] . . . is a strong indication that the term ‘jurisdiction’ encompasses both subject matter and personal jurisdiction” (Siegel & Connors, NY Prac § 168C, Jan. 2017 Supp at 118). On the other hand, if that phrase were eliminated, the statute would prohibit apportionment only “if the claimant prove[d] that with due diligence he or she was unable to obtain jurisdiction over such person . . . in a court of this state” (CPLR 1601 [1] [as modified to accommodate defendant’s argument]). Thus, if the statute had been so drafted, apportionment would be unauthorized only if the claimant proved that personal jurisdiction could not be obtained because the tortfeasor “is not a domiciliary of New York and no basis for extraterritorial (i.e., longarm) jurisdiction is available against [the tortfeasor]” (Siegel, NY Prac

the same result regardless of whether subject matter jurisdiction is lacking or long-arm (i.e., personal) jurisdiction is lacking—the claimant will not be able to obtain jurisdiction in either instance. Furthermore, when the term “jurisdiction” is used in reference to *the State* in the context of a personal injury action—the type of action to which CPLR 1601 applies—subject matter jurisdiction, not personal jurisdiction, is the primary consideration. The statutory language directs us to consider whether a claimant is able “with due diligence . . . to obtain jurisdiction *over such person*” in Supreme Court. When the “person” is the State, the relevant question is whether Supreme Court has *subject matter jurisdiction*. While Supreme Court generally has subject matter jurisdiction over personal injury actions, it lacks such subject matter jurisdiction when the defendant is the State, as explained above (*see Correa*, 15 NY3d at 227-228). Thus, there is, indeed, a “reason for the legislature to be concerned with subject matter jurisdiction in the context of a personal injury action” (dissenting op at 756).

§ 168C at 290 [5th ed 2011]). Inasmuch as a claimant can obtain jurisdiction over the State in a court of this State—the Court of Claims—apportionment against the State in Supreme Court would be permitted. However, judicially excising language to reach the result that defendant urges would contravene the “‘accepted rule that all parts of a statute are intended to be given effect and that a statutory construction which renders one part meaningless should be avoided’” (*Matter of Springer v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 27 NY3d 102, 107 [2016], quoting *Rocovich v Consolidated Edison Co.*, 78 NY2d 509, 515 [1991]).⁵

V.

Our reading of CPLR 1601 (1) further accords with the legislative history and objective of the statute. The legislative history is largely silent on the meaning of the word “jurisdiction” in CPLR 1601 (1), although the Governor’s Approval Memorandum states that a defendant “will not be able to reduce his or her share by any amount for which a third party is responsible if jurisdiction cannot be obtained over such party” (Governor’s Mem approving L 1986, ch 682, 1986 McKinney’s Session Laws of NY at 3183; see Mem of Dept of Law, Bill Jacket, L 1986, ch 682 at 12). Again, “the catchall word ‘jurisdiction’ ” (*Lacks*, 41 NY2d at 75) is used in the memoranda of the Governor and Department of Law, with no indication that only personal jurisdiction was considered.

5. There is no merit to defendant’s argument that interpreting jurisdiction to mean “subject matter jurisdiction” would bar apportionment against tortfeasors who are absent from the plaintiff’s action in Supreme Court due to the exclusivity provisions of the Workers’ Compensation Law, thereby rendering meaningless the second proviso of section 1601 (1) or section 1602 (4). Defendant’s argument is based upon its assumption that Supreme Court lacks subject matter jurisdiction over actions against employers whose employees have received workers’ compensation benefits. However, “[w]orkers’ compensation is an exclusive remedy as a matter of substantive law . . . , it is not the kind of subject-matter jurisdiction deficiency which ousts a court of competence to decide the case” (*Murray v City of New York*, 43 NY2d 400, 407 [1977]). In any event, third-party contribution claims can be brought by a defendant/third-party plaintiff against an employer/third-party defendant when, among other things, the plaintiff has suffered a grave injury; such claims may be resolved in the same trial as the employee plaintiff’s direct claims against the defendant, even though a direct action by the plaintiff against the employer is barred by the exclusivity provisions (see Workers’ Compensation Law § 11; see generally *Dole v Dow Chem. Co.*, 30 NY2d 143, 152-153 [1972]). In such a scenario, there would be a “claimant” within the meaning of CPLR 1601 (1) (the defendant/third-party plaintiff) who can “obtain jurisdiction over” the employer.

The legislative history does, however, more clearly confirm that the statute reflects “careful deliberations over the appropriate situations for a modified joint and several liability rule” (Governor’s Mem approving L 1986, ch 682, 1986 McKinney’s Session Laws of NY at 3184; *see Chianese*, 98 NY2d at 275; *Rangolan*, 96 NY2d at 49; *Morales v County of Nassau*, 94 NY2d 218, 224-225 [1999]). This Court has recognized that the statute “was the product of a painstaking balance of interests . . . includ[ing], among many others, the burdens to be imposed on innocent plaintiffs as well as a concern that defendants at fault to a small degree were consistently paying a disproportionate share of damages awards, adversely affecting the availability and affordability of liability insurance” (*Morales*, 94 NY2d at 224-225). Given the assiduous balancing of interests that went into this statute—including the provision permitting apportionment in the Court of Claims to benefit the State, at the State’s request (*see* Mem of Dept of Law, Bill Jacket, L 1986, ch 682 at 14)⁶—we decline to recognize the availability of apportionment where the statute does not expressly permit it.

The legislative history further confirms that a strict construction of the statute is consistent with the legislature’s purpose in enacting it. While the statute was intended to “‘remedy the inequities created by joint and several liability on low-fault, ‘deep pocket’ defendants’” (*Chianese*, 98 NY2d at 275, quoting *Rangolan*, 96 NY2d at 46), the driving purpose behind that intent was to alleviate a liability insurance crisis (*see Morales*, 94 NY2d at 225; Mem of Dept of Law, Bill Jacket, L 1986, ch 682 at 13-14). The modifications to joint and several liability

6. Defendant argues—and the dissent agrees—that, because the Department of Law’s memorandum referred to this provision as a “technical change[] . . . made to ensure that the State can take advantage of the modifications in joint and several liability” (Mem of Dept of Law, Bill Jacket, L 1986, ch 682 at 14), the State should be viewed merely as being on the same footing as other defendants to which the statute applies, rather than enjoying any special status. Defendant and the dissenters note that the memorandum does not reference any request for special status for the State pursuant to which apportionment would not be allowed in Supreme Court. However, the absence of any such request can be explained by the fact that no further request would be necessary to ensure that the State enjoys a “special status.” The language of the statute, on its face, prohibits apportionment against the State in Supreme Court because a claimant cannot “obtain jurisdiction” over the State in that court. The lack of jurisdiction, which gives the State its “special status” under the statute, is simply a function of sovereign immunity.

arose out of the recommendations of the Governor's Advisory Commission on Liability Insurance, chaired by former Court of Appeals Judge Hugh R. Jones (*see* Governor's Mem approving L 1986, ch 682, 1986 McKinney's Session Laws of NY at 3183-3184; *see also Rangolan*, 96 NY2d at 46).

The Commission opined that amendment of the common-law joint and several liability rule—which developed in the contributory negligence regime—had become necessary as a result of New York's 1975 replacement of the rule of contributory negligence with the comparative fault concept (*see* *Insuring Our Future*, Report of the Governor's Advisory Commission on Liability Insurance at 130 [Apr. 7, 1986]). “[T]he expansions of liability created by [the] contemporary doctrine . . . create[d] insurance prices that [were] greater than even institutional insureds [could] bear” (*id.* at 125), but the courts were “blind . . . to the health of the risk-spreading mechanism that American society . . . developed to assure that compensation is in fact available for those who are entitled to receive it” (*id.* at 127-128). The Commission noted that “the ends of justice are subverted when insurance is unavailable at an affordable price” (*id.* at 128), and concluded that the switch from contributory negligence to comparative fault rules exacerbated the problem by removing the disincentive for plaintiffs to sue “defendants whose minor degrees of fault might dramatize the fact that the plaintiff's fault was at least as great” (*id.* at 130). That led to defendants who were “adjudged to have a small percentage share of fault, but wound up paying all . . . of a large money judgment because no reimbursement was forthcoming from co-defendants” (*id.* at 130-131). The right of contribution under the old joint and several liability rule was “cold comfort” to deep-pocket defendants and their insurers “when the other tortfeasors [were] insolvent or nearly so” (Vincent C. Alexander, *Practice Commentaries*, McKinney's Cons Laws of NY, Book 7B, CPLR C1601:1).

The State, however, is not insolvent and, if a defendant believes that it has been held liable in Supreme Court for what is actually the State's negligent conduct, the defendant can sue the State for contribution in the Court of Claims (*see Bay Ridge Air Rights v State of New York*, 44 NY2d 49, 54 [1978]). Indeed, a strict construction of the statute does not deprive a tortfeasor of the opportunity to prove that it is a low-liability defendant because it may do so in the Court of Claims. In that regard, even defendant acknowledges that the risk of potential

prejudice to such a defendant with an absent bankrupt tortfeasor—who is subject to apportionment in Supreme Court—is far greater than the risk present when the State is the alleged joint tortfeasor because “[t]he State will always have sufficient resources to satisfy whatever judgment” is obtained against it. True, our interpretation of the statute places on defendants, rather than “on innocent plaintiffs” (*Morales*, 94 NY2d at 224), the burden of having to seek recovery against the State in the Court of Claims.⁷ However, that burden is not nearly of the same order of magnitude as the burden that CPLR 1601 was intended to remedy—forcing deep pocket defendants to pursue contribution from insolvent tortfeasors who were assessed a much greater portion of liability. Given that a strict construction of the statute does not “result in the very inequity the Legislature sought to eliminate” (*Chianese*, 98 NY2d at 278) and, in fact, promotes equity, we apply the statute as it is written. Plaintiff’s remaining arguments are unpreserved.

Accordingly, the order of the Appellate Division should be modified, without costs, by denying the motion of defendant Home Place Corporation insofar as it sought a jury charge on apportionment of liability of the State of New York pursuant to CPLR 1601 and, as so modified, affirmed, and the certified question answered in the affirmative.

ABDUS-SALAAM, J. (dissenting). The majority’s interpretation of CPLR 1601 is a strained reading of the statutory language and contravenes the legislative goal of limiting the liability of any and all tortfeasors who are responsible for 50% or less of the total liability. The majority’s analysis gives the State a preferred status over other tortfeasors, despite no indication that the legislature intended such a result, and notwithstanding that the plain reading of the text indicates the legislature simply wanted to create parallel rights of apportionment for state tortfeasors and non-state tortfeasors. Furthermore, the majority’s holding creates anomalous situations that I do not believe were intended by the legislature: (1) a defendant in Supreme Court cannot shift liability to the nonparty State, but

7. Where, as here, the plaintiff is also suing the State in the Court of Claims, our interpretation of the statute as placing the burden on a private defendant to seek contribution from the State following an adverse verdict in Supreme Court facilitates the achievement of a fair result for both plaintiffs and defendants because it provides an incentive for all parties—including both private and state tortfeasors—to appear in, and develop a full record before, a single court.

a state defendant in the Court of Claims can shift liability to a private party; and (2) a plaintiff in the Court of Claims will face apportionment with the State pointing to an empty chair, but a plaintiff in the Supreme Court will not face apportionment where the empty chair is the State. Accordingly, I respectfully dissent, and would affirm the Appellate Division's order.

CPLR article 16 was promulgated as a modification of the common-law theory of joint and several liability, the purpose of which was "to remedy the inequities created by joint and several liability on low-fault, 'deep pocket' defendants" (*Rangolan v County of Nassau*, 96 NY2d 42, 46 [2001]). As we noted in *Rangolan*, the statute was especially intended to benefit governmental entities such as municipalities (e.g., the defendant State, in plaintiffs' Court of Claims action) and landowners (e.g., the defendant Home Place, in plaintiffs' Supreme Court action) (see *Rangolan* at 48, citing the report issued by the Governor's Advisory Commission on Liability Insurance, chaired by former Court of Appeals Judge Hugh R. Jones, referenced in the majority opinion at 751).

In resolving this appeal, we are guided by the established principle that "the statutory text . . . is the clearest indicator of legislative purpose" (*Matter of M.B.*, 6 NY3d 437, 447 [2006]). In my view, the majority's analysis of the text, while appropriately focused on the word "jurisdiction," ignores the meaning of the word "or," and fails to adequately weigh the significance of the phrases "due diligence" and "over such person."

The first general provision of CPLR 1601 (1) states:

"Notwithstanding any other provision of law, when a verdict or decision in an action or claim for personal injury is determined in favor of a claimant in an action involving two or more tortfeasors jointly liable *or* in a claim against the state and the liability of a defendant is found to be fifty percent or less of the total liability assigned to all persons liable, the liability of such defendant to the claimant for non-economic loss shall not exceed the defendant's equitable share determined in accordance with the relative culpability of each person causing or contributing to the total liability for non-economic loss" (emphasis added).

The general provision, by its use of the term "or" in referring to an action involving two or more tortfeasors jointly liable *or*

in a claim against the State, indicates that the legislature intended to address alternative situations (*see* McKinney's Cons Laws of NY, Book 1, Statutes § 235, Comment ["Use of the conjunction 'or' in a statute usually indicates that the language is to be construed in an alternative sense"]; *see also* *McSweeney v Bazinet*, 269 App Div 213, 216 [3d Dept 1945], *affd* 295 NY 797 [1946]; Webster's Ninth New Collegiate Dictionary 829 [Merriam-Webster 9th ed 1986] ["or" is "used as a function word to indicate an alternative <coffee (or) tea> <sink (or) swim>, the equivalent or substitutive character of two words or phrases"]. Thus, the general provision applies alternatively—equivalently, to state tortfeasors or non-state tortfeasors. In other words, whether in Supreme Court or the Court of Claims, in a personal injury action involving jointly liable tortfeasors, where the liability of a tortfeasor is found to be 50% or less of the total liability, that tortfeasor's monetary share of the damages may not be greater than the share of liability assigned to that tortfeasor.

The statute's application to either state tortfeasors or non-state tortfeasors is again addressed in the first proviso, which states:

“provided, however that the culpable conduct of any person not a party to the action shall not be considered in determining any equitable share herein if the claimant proves that with due diligence he or she was unable to obtain jurisdiction over such person in said action (or in a claim against the state, in a court of this state)” (CPLR 1601 [1]).

Again, the use of the word “or,” which the majority does not address, demonstrates that the legislature was indicating alternative, equivalent situations—non-state tortfeasors as well as state tortfeasors. The parenthetical language was a technical change, “made to ensure that the State can take advantage of the modifications in joint and several liability contained” in the statute (Mem of Dept of Law, Bill Jacket, L 1986, ch 682 at 14). There is no indication in the legislative history that the legislature intended that the State be given special status under CPLR 1601. The State has waived its sovereign immunity and an action seeking damages for personal injury may be commenced against the State in the Court of Claims (*see* Court of Claims Act § 8).

Furthermore, if the legislature had actually wanted to preclude a private tortfeasor from seeking apportionment

against the State in Supreme Court, in contravention of the overall purpose of CPLR 1601 which is to limit the liability of low-fault tortfeasors to only their actual share of responsibility (see *Chianese v Meier*, 98 NY2d 270, 275 [2002]), it could have simply specified that a joint tortfeasor cannot seek apportionment against the State. It is unlikely that the legislature would carve out such an important exclusion without express language indicating its intent. Yet, the majority concludes that the apportionment rule, vis-à-vis state tortfeasors, is the polar opposite in Supreme Court than it is in the Court of Claims.

The majority points out that the statute “was the product of a painstaking balance of interests . . . includ[ing], among many others, the burdens to be imposed on innocent plaintiffs” (majority op at 750, 752, quoting *Morales v County of Nassau*, 94 NY2d 218, 224-225 [1999]). But the majority does not explain why the legislature would treat “innocent plaintiffs” less favorably in the Court of Claims than in Supreme Court. And yet, that is a consequence of the majority opinion, because it exposes a plaintiff in the Court of Claims to apportionment,¹ but does not similarly disadvantage a plaintiff in Supreme Court when the nonparty tortfeasor is the State. The legislature has evinced no intention of exposing plaintiffs suing the State in the Court of Claims to the apportionment of damages, while permitting plaintiffs in Supreme Court to escape that outcome.²

Furthermore, while the majority correctly recognizes that “jurisdiction” “is a word of elastic, diverse, and disparate meanings” (majority op at 747, quoting *Lacks v Lacks*, 41 NY2d 71, 74 [1976]), the majority veers off course when it applies the broadest possible interpretation of that term, without giving due weight to the context in which it is used. I do not quarrel with the majority’s point that in CPLR 1601, the legislature did not expressly specify whether it was referring to personal or subject matter jurisdiction. However, I disagree with the conclusion that because the legislature did not so specify, it must have been referring to either personal or subject matter jurisdiction.

1. As noted in the majority opinion, any apportionment determination in one court is not binding on the other court (majority op at 745 n 1).

2. I acknowledge that because a plaintiff cannot commence a personal injury action against a private tortfeasor in the Court of Claims, and cannot bring a personal injury action against the State in Supreme Court, the empty chair element of apportionment can result in an outcome that does not fully compensate a plaintiff. However, that is fundamentally rooted in the division of our court system, and not in this statute.

The statute's requirement that the plaintiff exercise due diligence to obtain jurisdiction over a tortfeasor cannot possibly refer to *a court's subject matter jurisdiction*, where the plaintiff's due diligence has no bearing because a plaintiff can do nothing to affect a court's subject matter jurisdiction over the parties' claims. Instead, the phrase "due diligence" only makes sense in relation to personal jurisdiction, where a plaintiff may or may not exercise due diligence (*see generally* CPLR 308). Similarly, the phrase "over such person" makes sense when "jurisdiction" is read as "personal jurisdiction," as the phrase is meaningless in the context of subject matter jurisdiction, which refers to the authority of a court to hear particular claims. Hence, the reference to jurisdiction in the statute logically refers only to personal jurisdiction.

Moreover, that the legislature did not specify personal or subject matter jurisdiction cannot simply be discounted as imprecise drafting. The Supreme Court always has subject matter jurisdiction over personal injury actions (other than those interposed against the State), although it might not always have personal jurisdiction. There would be no reason for the legislature to be concerned with subject matter jurisdiction in the context of a personal injury action, such as this case. Consequently, in enacting CPLR 1601, the legislature must have sought to address situations in which a party cannot obtain jurisdiction "over such person."

As noted by the majority, the conclusion reached by most courts and legal scholars that have considered the meaning of the term "jurisdiction" in the context of this statute is that personal jurisdiction, not subject matter jurisdiction, is the focus of the statute (*see* majority op at 746-747). In reaching the opposite conclusion, the majority's analysis ignores the context in which the term is used, and the descriptive phrases of "due diligence," and "over such person," which clearly only apply to personal jurisdiction.

In sum, given the purpose of CPLR 1601, which is to limit the liability of "low-fault, 'deep pocket' defendants" (*Rangolan* at 46), there is no reason why the State should be permitted to demonstrate the culpability of nonparties in the Court of Claims but defendants in Supreme Court should not have the parallel right to demonstrate the State's culpability. Contrary to the majority's conclusion, the language of the statute does not require this disparate treatment of state tortfeasors and private tortfeasors, but instead, calls for comparable treat-

ment. The majority's construction of the statute does not promote equity (*see* majority op at 752); it promotes inequity, by elevating the rights of plaintiffs in Supreme Court over those of plaintiffs in the Court of Claims, and the rights of state tortfeasors in the Court of Claims over those of private tortfeasors in Supreme Court.

Chief Judge DiFIORE and Judges FAHEY and GARCIA concur; Judge ABDUS-SALAAM dissents and votes to affirm in an opinion in which Judge RIVERA concurs; Judge WILSON taking no part.

Order modified, without costs, by denying the motion of defendant Home Place Corporation insofar as it sought a jury charge on apportionment of liability of the State of New York pursuant to CPLR 1601, and, as so modified, affirmed, and certified question answered in the affirmative.

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